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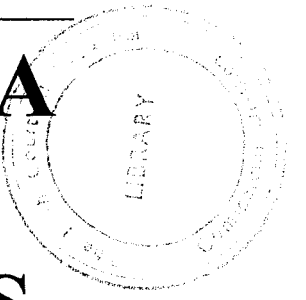

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JUDGES OF THE HIGH COURT OF ZANZIBAR 1999

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ALPHABETICAL LIST OF CASES REPORTED

African Marble Company Ltd v. Tanzania Saruji Corporation 306
African Trophy Hunting Ltd v. Attorney General and others 407
Ahmed Abdi Farrah Guled v. Cooperative and Rural Development Bank 83
Athumani Selemani Mponda v. Republic 159
Augustine Lyatonga Mrema v. Donati Mathew Mbwagai and others 453
Augustino Lyatonga Mrema v. Republic and Dr Masumbuko Lamwai . 273
Augustino Lyatonga Mrema v. Speaker of the National Assembly 206
Azim Suleman Premji v. Attorney General and Dr Aman Walid Kabourou (Number 1) 457
Blue Star Service Station v. Jackson Musseti 80
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100
Dadi Saidi Kwanga v. Nurdin Akachapa 398
Director of Public Prosecutions v. Anjelina Ojare 163
Edwin William Shetto v. Managing Director of AICC 130
Elineema Andrea v. Republic 463
Faizen Enterprises Ltd v. Africarriers Ltd 416
Felix Tumbo Kisima v. Tanzania Telecommunications Company Ltd 395
Francesco Tramontano v. Republic 275
General Tyre (E.A.) Ltd v. Patron Siame and another 144
Hasmuh Valabdas v. Attorney General 326
Institute of Development Management v. David Mwakikunga 97
Intertec East Africa A.S. v. B and S International 422
Ital African Transporters Ltd v. Giafar Beder 251
Ivan Makobrad v. Miroslav Katic Vesna, Paladin Ingra 448
James Ibambas v. Francis Sariya Mosha 364
Juma Rahisi Nanyanje v. Shekhe Farisi 29
Jumanne Rajabu and another v. Republic 69
Kassim Farijala v. Republic 377
Kijakazi Mbegu and Five others v. Ramadhani Mbegu 174
Lamshore Ltd and J S Kinyanjui v. Bizanje KUDK. 330
Lucas Hassan Mwamba v. Republic 369
Mehboob Akber Haji and Two others v. Republic 179

Mhimani Farmers Ltd v. Tanzania Breweries Ltd 37
Mohamed Kihago v. Abbas Kihago 319
Mwalimu Omari and Ahmed Baguo v. Omari A Bilali 432
Mwanahawa Hemedi v. Rashidi Kulomba 21
National Insurance Corporation v. Kweyambah Quaqer 150
Ndizu Ngasa v. Masisa Magasha 202
Noel Philemoni Mohamed v. Republic 387
Peoples' Bank of Zanzibar v. Naushad Mohamed Suleiman 269
Prince Peace Company v. National Housing Corporation 373
Republic v. Betram Mapunda and another 1
Republic v. Ismail Napose 8
Re: In the Matter of Mofaju's Investment Company Ltd 322
Said A Marinda and Thirty others v. Minister for Labour and Youth Development and the Attorney General 350
Said Mnimbo and others v. Tourism Services and another 233
Samweli Moyo v. Mary Cassian Kayombo 197
Sebastian Rukiza Kinyondo v. Dr Medard Mutalemwa Mutungi 479
Silas Simba v. Editor of Mfanyakazi Newspaper and another 404
Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334
Sylvester K. Masinde v. Pius Msekwa and the Attorney General 42
Talian Langoi v. Musee Loserian 379
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (Number 1) 299
Tanzania Transcontinental Trading Company v. Design Partnership Ltd 258
Wankira Bethuel Maise and National Housing Corporation v. Kaiku Foya 348
Wilbroad Peter Slaa and Another v. Arusha Kalwa and others 85
Yasini Mikwanga v. Republic 14
Yasin Ramadhani Chang'a v. Republic 489

NOTER-UP

East Africa Cases Reported To:

AM Kimweri v. Yusufu Athumani, [1970] HCD n. 119: *197*
Abuki and another v. Attorney General, Uganda Constitutional Court: *206*
Ali Salehe Msutu v. Republic [1980] T.L.R: *69*
Anwar Z Mohamed v. Said Selemani Masuko, Civil Reference Number 18 of 1997 (unreported): *479*
Atlantic Electric Ltd v. Morogoro Region Co-operative Union (1984) Limited, [1993] T.L.R. 12: *463*
Azim Premji v. Aman Walid Kabourou, [1996] T.L.R. 156: *479*
Bakari Ben and Jumaa Ben v. Zainabu Ama Ben Jumaa, Civil Application Number 85 of 1997 (unreported): *233*
Bank of Tanzania v. Minister of Labour and others, Civil Applications Numbers 11 and 12 of 1997 (unreported): *348*
Barka Said Salim v. Mohamed Said [1970] HCD n. 95: *384*
Bura v. Sarwatt [1967] EA 234: *42*
Col. Kashmiri v. Naginder Singh Matharu [1988] T.L.R. 163: *432*
Director of Public Prosecutions v. Sabinis Inyasi Tesha and another, [1993] T.L.R.: *233*
Dr Ally Shabhay v. Tanga Bohora Jamat, [1997] T.L.R. 305: *334*
Elias Stephen v. Republic [1982] T.L.R. 313: *69*
Ezizeus Rutakubwa v. Jason Angelo Civil Appeal Number 21 of 1987 (unreported): *387*
Febronia Gasper Maro and Evarist Gasper Maro v. Agnes G. Maro CAT – AR – Civil Application Number 2 of 1996 (unreported): *299*
Gai Lipenzule v. Sumi Magoge [1983] T.L.R. 289: *398*
Giafar Mohamed Bedder and another v. Ital African Transport Ltd Civil Application Number 4 of 1994 (unreported): *463*
Halais Pro-Chemie Industries Ltd. v. Wella AG, [1996] T.L.R. 269: *469*
Hon. Wilbroad Slaa and the Hon. Attorney General v. Arusha Kalwa and others [1999] T.L.R.: *85*
Isango v. R [1968] EA 140: *489*
Jashbhai C. Patel v. BD Joshi, (1950-1951) 17-18 EACA 42: *100*

Joseph Kabni v. Regina, 21 E.A.C.A. 260: *387*
Joseph Marco v. Pascal Rweyemamu [1977] LRT n. 59: *379*
Juma Ally Kaziyabure v. Tanzania Posts and Telecommunications Corporation [1994] T.L.R. 1: *144*
Jumanne Rajab Ngaramgongo v. Republic, [1999] T.L.R.: *69*
Kabulofwa Mwakalile and others v. R [1980] T.L.R. 144: *387*
Kighoma Ali Malima v. Abas Yusuf Mwingamno, Civil Application Number 5 of 1987 (unreported): *306*
Kyobe v. East African Airways Corportation [1972] EA 403: *130*
Leonsi Ngalai v. Hon. Justine Afred Salakana and Attorney General, Civil Appeal Number 38 of 1996 (unreported): *479*
Lobo v. Salehe S. Dhiyebi, [1961] EA: *326*
Mahona v. University of Dar es Salaam [1981] T.L.R. 55: *144*
Matalinga and another v. Attorney General [1972] EA 518: *130*
Methuselah Paul Nyagwaswa v. Christopher Mbote Nyirabu [1985] T.L.R. 103: *432*
Mohan Dairy v. Ratilal Bhurabhai, [1966] EA 571: *306*
Motel Schweitzer v. T.E.Cunningham and another, (1955) 22 E.A.C.A. 252: *150*
Mtoro bin Mwamba v. Attorney-General [1953–1957] (2) T.L.R. 327: *432*
National Bank of Commence v. Star Transport Co. Ltd, Civil Application Number 60 of 1995 (unreported): *348*
National Bank of Commerce v. Walter T. Czurn, CAT – AR-Civil Application Number 2 of 1994 (unreported): *299*
New Insurance Company Ltd v. Lilian Evelyn Cross and another [1966] EA 90: *233*
Njombe/Ludewa/Makete Cooperative Union Ltd v. Minister for Labour, Youth and Culture, HC – SONGEA – Miscellaneous Civil Cause Number 8 of 1994 (unreported): *350*
Ngweshemi v. Attorney General [1971] HCD n. 251: *42*
Obadiah Salehe v. Dodoma Wine Company Ltd, HC – DOM – Civil Case Number 53/1990 (unreported): *144*
Odhengo s/o Ogongo v. R (1954) 21 E.A.C.A. 302: *14*

Poole v. R [1960] EA 62: *258*
Principal Secretary, Ministry of Defence and National Service v. Devram P. Valambhia, [1992] T.L.R. 185: *306*
Project Planning Consultants (Tanzania) v. Tanzania Audit Corporation [1974] LRT n. 10: *100*
R v. Mitha, [1961] EA 568: *306*
R v. Muhuzi Zaidi and another [1969] HCD n.249: *202*
R v. Nyungindo s/o Luhende (1948) 15 E.A.C.A. 132: *69*
R v. Rajab Lemu Seng'enge [1980] T.L.R. 166: *275*
Rajabu v. Republic [1970] EA 395: *69*
Re: Private Boarding House Ltd [1967] EA 143: *322*
Registered Trustees of Chama cha Mapinduzi v. Govan Abdalla, Misc. Civil Notice Number1 of 1991 (unreported): *159*
Rex v. Saidi s/o Nakandu, (1948) E.A.C.A. 110: *8*
Richard William Sawe v. Woitara Richard Sawe, Civil Application No. 32 of 1994 (unreported): *258*
S Kakubukubu v. MJ Kasubi, Court of Appeal Number 14 of 1991 (unreported) *364*
Sadiki Abdallah Alawi v. Zulekha and National Bank of Commerce, Civil Application Number 56 of 1997 (DSM Registry) (unreported): *275*
Salehe Mohamburi v. Naseni Mrinda [1969] HDC n.. 276: *379*
Samson Daniel *v.* R (1934) E.A.C.A. 134: *1*
Scolastica Benedict v. Martin Benedict [1993] T.L.R. 1: *319*
The Commissioner of Income Tax v. Armstrong, [1963] E.A. 505: *306*
Transport Equipment Ltd v. Devram P. Valambhia, [1998] T.L.R. 89: *258*
Transport Equipment Ltd v. Devram P. Valambhia, Civil Application Number 46 of 1994 (unreported): *463*
VIP Engineering andMarketing Ltd v. Said Salum Bakhresa Ltd., Civil Application Number 47 of 1996 (unreported): *463*
Willow Investments v. Mrs Mbombo Ntumba [1997] T.L.R. 93: *348*
Zuffer Kamarali v. Yunus Elias [1988] T.L.R. 170: *150*

Other Cases Reported To:

AG v. Butterworths [1963] 1 QB 696: *14*
Abdul Gaffar v. State of U.P., 1B and ALD 396: *85*
Attorney-General v. Horner (Number 2) [1913] 2 Ch. 140: *306*
Bradlaugh v. Gossett (1884) 12 QBD 271: *206*
Duedu v. Yiboe [1961] 1 W.L.R. 1040: *334*
Duport Steels Ltd v. STRS [1980] 1 W.L.R. 142 (HL): *206*
Edwards v. Edwards [1997] 1 W.L.R. 149: *334*
Emmerson v. Madison 1906 AR 569: *432*
Estate of Bercovits (deceased) Canning and another v. Enever and another (Siemer Van Hermert and others intervening) [1961] 2 All ER 481: *306*
General Medical Council v. Spackman [194] AC 627: *130*
Hill v. Chief Costable of South Yorkshire, [1990] 1 W.L.R. 946: *206*
Hoystead v. Taxation Commissioner [1926] AC 155: *334*
Janardan Reddy v. State of Hyderabad, 1951 SCR 344; AIR 1951 SC 217: *206*
Kirklees B.C. v. Wickens Building Supplies Ltd (1993) AC 227: *407*
Mohum Chunder v. Azeem, (1968) 2 Punj. 309: *422*
MSM Sharma v. Dr Shree Krishna Sinha and others, AIR 1960, 1187: *206*
Nanu Ram v. Vardichand, 1978 A. Raj. 138: *422*
National Industrial Corporation Ltd v. Registrar of Companies, AIR (1963) Punj. 239: *85*
Nawaz Sharif v. President of Pakistan, P.L.D. 993 S.C. 474: *206*
New Brunswick Railway Co v. British and French Trust Corporation Ltd [1938] 4 All ER 747 *334*
Partab Singh v. Gurmji Singh, 1959 Punj. 1776: *422*
Patricia De Lille and Pan Africanist Congress of Anzania v. Speaker of the National Assembly, High Court of South Africa, 8 May 1998: *206*
R v. Bass [1953] 1 All ER: *69*
R v. Her Majesty's Treasury, ex parte Smedley, [1985] QB 657 (CA): *206*
Ras Marain Singh v. Atamaram Govind, AIR 1954 All. 319: *206*
Re: Kerala Education Bill, A 1958 SC 956: *206*

Reg. v. Morgan, [1976] AC 182: *334*
Regina v. Connely, [1963] 3 WLR 839: *334*
Ridge v. Baldwin [1963] 2 WLR 935: *130*
Screedhar Pani v. State, 1979 Uri. 55: *422*

Statutory Provisions Referred To

Advocates Ordinance

s 44(2) ..... [1999] T.L.R. 100

Appellate Jurisdiction Act 1979

s 4 ..... [1999] T.L.R. 273
s 4(3) ..... [1999] T.L.R. 463
[1999] T.L.R. 463
s 11(1) ..... [1999] T.L.R. 334

Appellate Jurisdiction (Amendment) Act Number 17 of 1993

s 4 ..... [1999] T.L.R. 463
s 4(3) ..... [1999] T.L.R. 463

Arms and Ammunitions Ordinance (Chapter 223)

s 13(1) ..... [1999] T.L.R. 69
s 13(2) ..... [1999] T.L.R. 69

Bankruptcy Ordinance (Chapter 25)

s 9 ..... [1999] T.L.R. 233
s 9(1) ..... [1999] T.L.R. 233
s 43(1)(b) ..... [1999] T.L.R. 233
s 75(1) ..... [1999] T.L.R. 233
s 76 ..... [1999] T.L.R. 233
s 77 ..... [1999] T.L.R. 233
s 83 ..... [1999] T.L.R. 233
s 118 ..... [1999] T.L.R. 233

Basic Rights and Duties Enforcement Act 1994

s 4 ..... [1999] T.L.R. 163
s 5 ..... [1999] T.L.R. 163

s 9(1) ..... [1999] T.L.R. 163
s 10 ..... [1999] T.L.R. 163
..... [1999] T.L.R. 206
s 10(1) ..... [1999] T.L.R. 163

Civil Procedure Act

s 65(2) ..... [1999] T.L.R. 306
s 194(4) ..... [1999] T.L.R. 69
s 212 ..... [1999] T.L.R. 275
s 214 ..... [1999] T.L.R. 275
s 214(1) ..... [1999] T.L.R. 275
s 214(2) ..... [1999] T.L.R. 275
s 214(2)(A)(B) ..... [1999] T.L.R. 275
s 388 ..... [1999] T.L.R. 275
Order IX, rule 6 ..... [1999] T.L.R. 416
Order IX, rule 6(1) ..... [1999] T.L.R. 416
Order XVI, rule 14 ..... [1999] T.L.R. 379
Order XVIII, rule 1 ..... [1999] T.L.R. 100
Order XIX, rule 1 ..... [1999] T.L.R. 416
Order XXI, rule 1 ..... [1999] T.L.R. 37
Order XXXVII, rule 4 ..... [1999] T.L.R. 407
[1999] T.L.R. 100

Civil Procedure Rules

Order XXVII, rule 1 ..... [1999] T.L.R. 269
Order XXIII, rule 2 ..... [1999] T.L.R. 269

Companies Ordinance (Chapter 212)

s 7 ..... [1999] T.L.R. 322
s 7(1) ..... [1999] T.L.R. 322
s 321 ..... [1999] T.L.R. 422

Constitution of Tanzania

art 12-29 ..... [1999] T.L.R. 163
art 13(1) ..... [1999] T.L.R. 206
art 13(6)(b) ..... [1999] T.L.R. 206
[1999] T.L.R. 163
art 13(b) ..... [1999] T.L.R. 206
art 15(1) ..... [1999] T.L.R. 163
art 15(2)(c) ..... [1999] T.L.R. 163
art 16(1) ..... [1999] T.L.R. 163
art 21(1) ..... [1999] T.L.R. 206
art 26 ..... [1999] T.L.R. 206
art 30(3) ..... [1999] T.L.R. 206
[1999] T.L.R. 163
art 32 ..... [1999] T.L.R. 206
art 64 ..... [1999] T.L.R. 206
art 65 ..... [1999] T.L.R. 42
art 65(1)(2) ..... [1999] T.L.R. 42
art 71(1) ..... [1999] T.L.R. 42
art 84(7) ..... [1999] T.L.R. 42
art 89(1) ..... [1999] T.L.R. 206
art 89(2) ..... [1999] T.L.R. 206
art 90(4) ..... [1999] T.L.R. 42
art 100 ..... [1999] T.L.R. 206
art 100(1) ..... [1999] T.L.R. 206
art 121 ..... [1999] T.L.R. 206

Constitution of India

art 212 ..... [1999] T.L.R. 206
art 212(1) ..... [1999] T.L.R. 206
art 212(2) ..... [1999] T.L.R. 206

Court of Appeal Rules 1979

..... [1999] T.L.R. 69
r 2 ..... [1999] T.L.R. 150
r 2(1) ..... [1999] T.L.R. 150
r 3 ..... [1999] T.L.R. 150
r 3(2)(a) ..... [1999] T.L.R. 448
r 8 ..... [1999] T.L.R. 334
r 19(1)(d) ..... [1999] T.L.R. 150
r 43(a) ..... [1999] T.L.R. 251
r 44 ..... [1999] T.L.R. 251
r 45 ..... [1999] T.L.R. 448
r 45(1) ..... [1999] T.L.R. 448
r 45(2) ..... [1999] T.L.R. 448
r 46(3) ..... [1999] T.L.R. 299
r 51 ..... [1999] T.L.R. 448
r 51(2) ..... [1999] T.L.R. 448
r 52 ..... [1999] T.L.R. 448
r 52(1) ..... [1999] T.L.R. 251
[1999] T.L.R. 448
r 57 ..... [1999] T.L.R. 448
r 57(1) ..... [1999] T.L.R. 306
r 76 ..... [1999] T.L.R. 457
r 76(1) ..... [1999] T.L.R. 150
r 76(4) ..... [1999] T.L.R. 150
r 77 ..... [1999] T.L.R. 457
r 77(1) ..... [1999] T.L.R. 479
r 79 ..... [1999] T.L.R. 457
[1999] T.L.R. 432
r 80 ..... [1999] T.L.R. 389

r 82 ..... [1999] T.L.R. 306
[1999] T.L.R. 457
r 83 ..... [1999] T.L.R. 150
..... [1999] T.L.R. 80
r 83(1) ..... [1999] T.L.R. 97
[1999] T.L.R. 150
[1999] T.L.R. 306
r 83(2) ..... [1999] T.L.R. 97
r 85(2) ..... [1999] T.L.R. 395
r 86(1) ..... [1999] T.L.R. 479
r 90 ..... [1999] T.L.R. 457
r 92(1) ..... [1999] T.L.R. 457
r 95 ..... [1999] T.L.R. 153
r 95(1) ..... [1999] T.L.R. 150
r 98 ..... [1999] T.L.R. 69
[1999] T.L.R. 83
r 100 ..... [1999] T.L.R. 479
[1999] T.L.R. 319
r 106(a) ..... [1999] T.L.R. 85
r 106(b) ..... [1999] T.L.R. 457

Criminal Procedure Act 1985

s 140(5)(a) ..... [1999] T.L.R. 163
s 148(5) ..... [1999] T.L.R. 163
s 148(5)(a) ..... [1999] T.L.R. 163
s 150 ..... [1999] T.L.R. 280
s 192 ..... [1999] T.L.R. 463
s 192(1) ..... [1999] T.L.R. 463
s 192(2) ..... [1999] T.L.R. 463

s 214(1) ..... [1999] T.L.R. 275
s 214(2) ..... [1999] T.L.R. 275
s 214(2)(a) ..... [1999] T.L.R. 275
s 293 ..... [1999] T.L.R. 369
s 298(3) ..... [1999] T.L.R. 159

Customary law (Limitation of Proceedings) Rules 1963

generally ..... [1999] T.L.R. 387

Dangerous Drugs Ordinance

s 7 ..... [1999] T.L.R. 179
s 8(a) ..... [1999] T.L.R. 179
s 23(2) ..... [1999] T.L.R. 179
s 23(2)(b) ..... [1999] T.L.R. 179

Economic and Organized Crimes Control Act Number 13 of 1984

..... [1999] T.L.R. 69
s 59(2) ..... [1999] T.L.R. 179

Elections Act 1985

s 11(2) ..... [1999] T.L.R. 85
s 47(1) ..... [1999] T.L.R. 42
s 51 ..... [1999] T.L.R. 42
[1999] T.L.R. 46
s 51(1) ..... [1999] T.L.R. 42
s 51(2) ..... [1999] T.L.R. 42
s 51(3) ..... [1999] T.L.R. 42
s 51(4) ..... [1999] T.L.R. 42
s 87 ..... [1999] T.L.R. 42
s 97(4) ..... [1999] T.L.R. 42
s 108(2) ..... [1999] T.L.R. 42

s 108(2)(a) ..... [1999] T.L.R. 42
s 108(2)(b) ..... [1999] T.L.R. 42
s 115 ..... [1999] T.L.R. 85
s 115(2) ..... [1999] T.L.R. 85
s 115(3) ..... [1999] T.L.R. 85
s 479(b) ..... [1999] T.L.R. 42
s 479(c) ..... [1999] T.L.R. 42

Elections (Election Petitions) Rules 1971

r 11 ..... [1999] T.L.R. 453
r 11(1) ..... [1999] T.L.R. 453

Employment Ordinance (Chapter 336)

s 2 ..... [1999] T.L.R. 350

Extradition Act Number 15 of 1965

s 2 ..... [1999] T.L.R. 275
s 3 ..... [1999] T.L.R. 275
s 5(1) ..... [1999] T.L.R. 275
[1999] T.L.R. 290
s 6(1) ..... [1999] T.L.R. 275
s 7 ..... [1999] T.L.R. 275
s 17 ..... [1999] T.L.R. 275
s 28 ..... [1999] T.L.R. 275

Evidence Act 1872, of India

s 114 ..... [1999] T.L.R. 306

Evidence Act 1967

s 33(1) ..... [1999] T.L.R. 69
s 10 ..... [illegible]

s 101 ..... [1999] T.L.R. 69
s 122 ..... [1999] T.L.R. 306
s 122 ..... [1999] T.L.R. 306

Evidence Decree (Chapter 5)

..... [1999] T.L.R. 330
s 103 ..... [1999] T.L.R. 330
s 115 ..... [1999] T.L.R. 330

Indian Code of Civil Procedure (1908)

..... [1999] T.L.R. 100
Order XVII, rule 1 ..... [1999] T.L.R. 100
First Schedule ..... [1999] T.L.R. 100

Industrial Court Act 1967

s 4 ..... [1999] T.L.R. 350
s 4(1) ..... [1999] T.L.R. 350
s 4(1A) ..... [1999] T.L.R. 350
s 9 ..... [1999] T.L.R. 350
s 9B ..... [1999] T.L.R. 350
s 39(4) ..... [1999] T.L.R. 350

Interpretation of Laws and General Clauses Act (Chapter 1)

s 30 ..... [1999] T.L.R. 85
s 43 ..... [1999] T.L.R. 85
s 43(d) ..... [1999] T.L.R. 85

Land Ordinance (Chapter 113)

s 2 ..... [1999] T.L.R. 364
[1999] T.L.R. 432
s 6 ..... [1999] T.L.R. 432
s 33(1)(b) ..... [1999] T.L.R. 432

Land (Law of Property and Conveyance) Ordinance (Chapter 114)

s 13 ..... [1999] T.L.R. 100

Land Registration Ordinance (Chapter 334)

s 33(1)(B) ..... [1999] T.L.R. 432
s 78(4) ..... [1999] T.L.R. 100
s 99(1)(f) ..... [1999] T.L.R. 100

Law of Limitation Act 1971

..... [1999] T.L.R. 80
s 3 ..... [1999] T.L.R. 334
s 3(1) ..... [1999] T.L.R. 100
[1999] T.L.R. 334
Part III, First Schedule ..... [1999] T.L.R. 334

Law of Limitation Decree (Chapter 12)

generally ..... [1999] T.L.R. 269

Law of Marriage Act 1971 (Chapter 71)

s 101 ..... [1999] T.L.R. 21
s 101(c) ..... [1999] T.L.R. 21
s 104 ..... [1999] T.L.R. 21
s 104(1) ..... [1999] T.L.R. 21
s 104(2) ..... [1999] T.L.R. 21
s 104(3) ..... [1999] T.L.R. 21
s 104(4) ..... [1999] T.L.R. 21
s 107(1) ..... [1999] T.L.R. 21
s 107(2) ..... [1999] T.L.R. 21
s 107(3) ..... [1999] T.L.R. 21
s 114(1) ..... [1999] T.L.R. 197
s 115 ..... [1999] T.L.R. 197

s 114(3) ..... [1999] T.L.R. 197
s 115(1)(e) ..... [1999] T.L.R. 197
s 29 ..... [1999] T.L.R. 398
s 107(1) ..... [1999] T.L.R. 21
s 107(2) ..... [1999] T.L.R. 21

Legal Practitioners Rules (Chapter 28)

r 9 ..... [1999] T.L.R. 326
s 9(2) rule (6) ..... [1999] T.L.R. 326
r 10 ..... [1999] T.L.R. 326

Magistrates' Court Act 1984

r 3 ..... [1999] T.L.R. 387
s 7 ..... [1999] T.L.R. 387
s 18(1)(a)(ii) ..... [1999] T.L.R. 29
[1999] T.L.R. 174
s 18(1)(a)(iii) ..... [1999] T.L.R. 29
s 25(1) ..... [1999] T.L.R. 379
s 37(2) ..... [1999] T.L.R. 387
Rule 1 Fifth Schedule ..... [1999] T.L.R. 174

National Bank of commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997, Act Number 23 of 1997

s 10(1)(e) ..... [1999] T.L.R. 100
s 10 ..... [1999] T.L.R. 100
s 10(1)(a) ..... [1999] T.L.R. 100
s 10(1)(b) ..... [1999] T.L.R. 100

Notaries Public and Commissioner for Oaths Ordinance (Chapter 12)

s 7 ..... [1999] T.L.R. 174
[1999] T.L.R. 100

Parliamentary Immunities, Powers and Privileges Act 1988

s 3 ..... [1999] T.L.R. 206
s 12 ..... [1999] T.L.R. 206
s 12(1) ..... [1999] T.L.R. 206
s 12(2) ..... [1999] T.L.R. 206

Parliamentary Standing Orders 1988

Order LX ..... [1999] T.L.R. 206

Penal Code (Chapter 16)

s 114(1)(a) ..... [1999] T.L.R. 14
s 114(1)(b) ..... [1999] T.L.R. 14
s 114(2) ..... [1999] T.L.R. 14
s 116(1)(b) ..... [1999] T.L.R. 17
s 116(2) ..... [1999] T.L.R. 14
s 130 ..... [1999] T.L.R. 377
s 195 ..... [1999] T.L.R. 159
s 196 ..... [1999] T.L.R. 159
[1999] T.L.R. 8
[1999] T.L.R. 369
s 197 ..... [1999] T.L.R. 369
s 225 ..... [1999] T.L.R. 69
s 241 ..... [1999] T.L.R. 202
s 268 ..... [1999] T.L.R. 387

Penal Code and the Royal Decree of Belgium

art 66 ..... [1999] T.L.R. 275
art 193 ..... [1999] T.L.R. 275
art 196 ..... [1999] T.L.R. 275
art 197 ..... [1999] T.L.R. 275

art 213 ..... [1999] T.L.R. 275
art 214 ..... [1999] T.L.R. 275
art 322 ..... [1999] T.L.R. 275

Police Force Ordinance (Chapter 322)

s 5(5) ..... [1999] T.L.R. 42
s 41 ..... [1999] T.L.R. 42

Political Parties Act 1992

s 5 ..... [1999] T.L.R. 42

Public corporations (Amendment) Act 1993

s 4A ..... [1999] T.L.R. 233
s 21 ..... [1999] T.L.R. 233
s 21(1) ..... [1999] T.L.R. 233
s 22(1)(b) ..... [1999] T.L.R. 233
s 22(1)(c) ..... [1999] T.L.R. 233
s 22(1)(d) ..... [1999] T.L.R. 233
s 22(2)(a) ..... [1999] T.L.R. 233
s 22(2)(b) ..... [1999] T.L.R. 233
s 22(2)(c) ..... [1999] T.L.R. 233
s 22(2)(d) ..... [1999] T.L.R. 233
s 22(2)(e) ..... [1999] T.L.R. 233
s 22 ..... [1999] T.L.R. 233
s 38(1) ..... [1999] T.L.R. 233
s 39(1) ..... [1999] T.L.R. 233

Prevention of Illicit Traffic in Drugs Act Number 9 of 1995

..... [1999] T.L.R. 179

Probate and Administration Ordinance (Chapter 443)

s 58(5) ..... [1999] T.L.R. 174

Public Corporations (Amendment) Act Number 16 of 1993

s 38(1) ..... [1999] T.L.R. 299
s 39 ..... [1999] T.L.R. 299
s 43 ..... [1999] T.L.R. 233
s 43(2) ..... [1999] T.L.R. 233

Security of Employment Act (Chapter 574)

s 5 ..... [1999] T.L.R. 350
s 6(1)(g) ..... [1999] T.L.R. 350
s 27(1) ..... [1999] T.L.R. 144
s 39 ..... [1999] T.L.R. 350
s 39(2) ..... [1999] T.L.R. 350
s 40A ..... [1999] T.L.R. 350
s 40A(1)(b) ..... [1999] T.L.R. 350
s 40A(5)(b) ..... [1999] T.L.R. 144

Stamp Duty Act 1972

s 46 ..... [1999] T.L.R. 100
s 5 ..... [1999] T.L.R. 233

Parliamentary Proceedings Rules 1988

r 43 ..... [1999] T.L.R. 206
r 45 ..... [1999] T.L.R. 206
r 50(2) ..... [1999] T.L.R. 206

Parliamentary Standing Rules 1988

Order 60 ..... [1999] T.L.R. 206

DIGEST OF CASES REPORTED

ADVOCATES

Competence – Competence of advocate to act for a client who is a fellow advocate – Whether an advocate can represent his partner in a court action – Legal Practitioners Rules
Hasmuh Valabdas v. Attorney General and Three others 326

AFFIDAVITS

Attestation – Affidavit attested by a Commissioner for Oaths with mutual interest in the proceedings – Whether the affidavit is defective – Section 7 of the Notaries Public and Commissioners for Oaths Ordinance Chapter 12
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

Affidavits – Supplementary Affidavit – Conditions for filing supplementary affidavit in the Court of Appeal – Rule 46(3) of the Court of Appeal Rules of 1979
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (Number 1) 299

APPEAL

Appeal to the Court of Appeal – Institution of appeal – Whether an appeal to the Court of Appeal is instituted by Notice of Appeal – Appeal and Notice of Appeal distinguished – Rules 2(1), 76 and 83(1) of the Tanzania Court of Appeal Rules 1979
National Insurance Corporation v. Kweyambah Quaker 150

Appeal to the Court of Appeal – Notice of Appeal and Jurisdiction of the High Court – Effect of lodging a notice of appeal on the jurisdiction of the High Court – Whether the High Court still has jurisdiction over a matter after notice of appeal to the Court of Appeal is lodged in respect of the same – Rule 76(1) of the Tanzania Court of Appeal Rules 1979
National Insurance Corporation v. Kweyambah Quaker 150

Appeal to the Court of Appeal – Notice of Appeal – Service of notice on respondents – Inordinate delay in serving notice on respondents – Respondents receive a copy of the notice despite delay – Effect thereof
Ahmed Abdi Farrah Guled v. Cooperative and Rural Development Bank **83**

Appeal to the Court of Appeal – Respondent not served with copies of the memorandum and record of appeal – Whether appeal is competent – Rule 80 of the Court of Appeal Rules 1979
Felix Tumbo Kisima v. Tanzania Telecommunications Company Ltd **395**

Lodging of appeal – Appeal lodged after conviction but before sentence is passed – Appeal premature
Athumani Selemani Mponda v. Republic **159**

Notice of Appeal – Notice of Appeal to the Court of Appeal – Effect on the Jurisdiction of the High Court – Whether the High Court still has jurisdiction over a matter after notice of appeal to the Court of Appeal is lodged in respect of the same – Rule 76(1) of the Tanzania Court of Appeal Rules 1979
National Insurance Corporation v. Kweyambah Quaker **150**

Notice of Appeal – Notice of Appeal to the Court of Appeal – Withdrawal of notice of appeal – Statutory provisions for withdrawing notice of appeal
National Insurance Corporation v. Kweyambah Quaker **150**

Notice of Appeal – Notice of appeal to the Court of Appeal – Withdrawal of notice of appeal – Whether notice of appeal is withdrawn by intimating to the High Court that appellant is withdrawing the notice
National Insurance Corporation v. Kweyambah Quaker **150**

Notice of Appeal – Service of notice of appeal – Inordinate delay in serving notice on respondents – Respondents receive a copy of the notice despite delay – Effect thereof
Ahmed Abdi Farrah Guled v. Cooperative and Rural Deve **83**

Notice of Appeal – Withdrawal of notice of appeal – Statutory provisions for withdrawing notice of appeal
National Insurance Corporation v. Kweyambah Quaker **150**

Parties to Appeals – Substitution of a deceased party to an appeal – Pre- requisites for such substitution – Rule 98 of the Court of Appeal Rules 1979
Ahmed Abdi Farrah Guled v. Cooperative and Rural Development Bank **83**

Record of Appeal – Record of appeal being incomplete – What steps a party may take
Azim Suleman Premji v. Attorney General and Dr Aman Walid Kabourou (Number 1) **457**

ARBITRATION

Arbitrator's Award – Amount awarded by arbitrator negotiated downwards by decree holder's advocates – Whether proper
Mlimani Farmers Ltd v. Tanzania Breweries Ltd **37**

BANKING

Bank and non-bank assets – Meaning of "non-bank assets and liabilities and all other assets, liabilities and business of the former bank" – Whether includes a debenture the bank branch to which it was issued is unknown – Section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997, Act Number 23 of 1997
Calico Textile Industries Ltd v. Zenon Investments Ltd and others **100**

Garnishee order – Garnishee order imposed on bank accounts of a wrong party to the proceedings – Whether the order may be lifted
Said Mnimbo and others v. Tourism Services and another **233**

BASIC RIGHTS

Right to Personal Freedom – Violation of the fundamental right to personal freedom – The right of an accused person to be presumed

innocent until proved guilty – Procedure to be adopted in handling cases of violation of constitutional rights – Articles 13(6)(b) and 15 of the Constitution and section 9(1) of the Basic Rights and Duties Enforcement Act 1994
Director of Public Prosecutions v. Anjelina Ojare **163**

CIVIL PRACTICE AND PROCEDURE

Affidavit – Proof by affidavit – Whether plaintiff may prove entire case by affidavit – Order 9, rule 6 and Order 19, rule 1 of the Civil Procedure Code 1966
Faizen Enterprises Ltd v. Africarriers **416**

Affidavits – Supplementary Affidavit – Conditions for filing supplementary affidavit in the Court of Appeal – Rule 46(3) of the Court of Appeal Rules of 1979
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (NUMBER 1) **299**

Appeal – Appeal to the Court of Appeal – Limitation of Time to lodge an appeal – Computation of time in which an appeal may be lodged – Point at which time starts to run – Rule 83(1) of the Court of Appeal Rules 1979
African Marble Company Ltd v. Tanzania Saruji Corporation **306**

Appeal – Appeal to the Court of Appeal – Notice of Appeal – Service of notice on respondents – Inordinate delay in serving notice on respondents – Respondents receive a copy of the notice despite delay – Effect thereof
Ahmed Abdi Farrah Guled v. Cooperative and Rural Development Bank **83**

Appeal – Appeal to the Court of Appeal – Respondent not served with copies of the memorandum and record of appeal – Whether appeal is competent – Rule 80 of the Court of Appeal Rules 1979
Felix Tumbo Kisima v. Tanzania Telecommunications Company Ltd **395**

Appeal – Legal issues on appeal – Whether a legal issue not raised at the trial may be raised on appeal
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (No. 1) **299**

Appeal – Notice of appeal – Respondent alleging that notice of appeal was not served in time – Burden to prove service of a copy of the notice of appeal – Rule 77(1) of the Court of Appeal Rules 1979
Sebastian Rukiza Kinyondo v. Dr Medard Mutalemwa Mutungi **479**

Appeal – Parties to Appeals – Respondent as successor to the original Respondent – Whether he could be made a party to the proceedings without the leave of the Court – Rule 85(2) of the Court of Appeal Rules 1979
Felix Tumbo Kisima v. Tanzania Telecommunications Company Ltd **395**

Appeal – Parties to Appeals – Substitution of a deceased party to an appeal – Pre-requisites for such substitution – Rule 98 of the Court of Appeal Rules 1979
Ahmed Abdi Farrah Guled v. Cooperative and Rural Development Bank **83**

Applications – Applications to the Court of Appeal – Form of Application – Format for bringing applications to the Court of Appeal – Form A of the First Schedule to the Court of Appeal Rules 1979
Ital African Transporters Ltd v. Giafar M. Beder **251**

Applications – Applications to the Court of Appeal – Grounds for the application must be stated in the Notice of Motion – Rule 45(1) and (2) of the Court of Appeal Rules 1979
Miroslav Katic and Two others v. Ivan Makobrad **463**

Applications – Applications to the Court of Appeal – Service of Notice of Motion on the Respondent – Time within which the Respondent is be served with a copy of the Notice of Motion – Rule 52(1) of the Court of Appeal Rules 1979

Ital African Transporters Ltd v. Giafar M. Beder 251

Applications – Fresh application for stay of execution after dismissal of a similar application by the same court – Whether proper
Blue Star Service Station v. Jackson Musseti 80

Counsel – Dismissal of counsel – Right of a party to dismiss counsel – Duty of Judge on an application by a party to dismiss advocate
Azim Suleman Premji v. Attorney General and Dr Aman Walid Kabourou (Number 1) 457

Court forms – Chief Justice has not replaced the Indian forms in the Civil Procedure Code 1966 – Purpose of court formats
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

Ex parte – Ex parte hearing – Effect of postponing hearing ex-parte – Whether provision to postpone hearing may be used to allow absent plaintiff to proceed ex-parte – Order 9, rule 6(1) of the Civil Procedure Code 1966
Faizen Enterprises Ltd v. Africarriers 416

Company – Standing in litigation – Company's standing in legal proceedings – Whether a foreign company not incorporated in its home country can institute legal proceedings.
Intertec East Africa A.S. v. B and S International 422

Execution – Execution of decree – Stay of execution pending appeal – Application for stay of execution pending an appeal that requires leave to appeal – Whether stay of execution may be granted where no leave to appeal has been sought and granted
Wankira Bethuel Maise and National Housing Corporation v. Kaiku Foya 348

Extension of Time – Grounds for extension of time – Applicant seeking extension of time to file Notice of Appeal after previous notice is struck out for failure to serve it on the respondent – Whether an honest but mistaken belief that he had served that previous notice is a sufficient ground to grant extension

Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334

Injunctive relief – Prayer for injunctive relief in the absence of a suit pending in Court – Whether the Court may grant the relief
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

Interim order – Whether court may grant an interim restoration order where its jurisdiction is challenged – Section 68 and Order 37 of the Civil Procedure Code 1966.
Prince Peace Company v. National Housing Corporation 373

Issues – Issues of Law – and issues of facts – where issues of law may dispose of the case or part of it – Court must determine issues of law first – Order 14, rule 2 of the civil procedure code 1966
Intertec East Africa A.S. v. B and S International 422

Judgment – Declaratory judgment – When a declaratory judgment may be granted by the court
Edwin William Shetto v. Managing Director of AICC 130

Jurisdiction – Pecuniary jurisdiction of Primary Court – Whether a primary court may entertain a suit for recovery of a debt arising out of contract between natural persons exceeding the value of TZS. 10 000 000 – Section 18(1)(a)(iii) of the Magistrates Courts Act 1984
Juma Rahisi Nanyanje v. Shekhe Farisi 29

Jurisdiction – When the issue of jurisdiction can be raised – Whether it can be raised regardless of the requirements of the Rules
Sebastian Rukiza Kinyondo v. Dr Medard Mutalemwa Mutungi 479

Law – Procedural Law lacking in some material particular – Whether procedure obtaining in comparable jurisdiction may be adopted – Whether variation of adopted procedure is permissible
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

Limitation of Time – Applications – Application filed out of time – High Court finds that an application filed was time barred – Whether such application may be dismissed or struck out – Section 3(1) of the Law of Limitation Act 1971
Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334

Limitation of Time – Applications – Fresh application for stay of execution after dismissal of a similar application by the same court – Applicability of the law of limitation to such subsequent application
Blue Star Service Station v. Jackson Musseti 80

Limitation of Time – Limitation period under customary law – Limitation period for recovery of clan land – Item 6 of the Customary Law (Limitation of Proceedings) Rules 1963, Government Notice Number 311 of 1963
Mathias Katonya v. Ndola Masimbi 387

Limitation of Time – Question of limitation and jurisdiction of the High Court not raised at the trial – Whether the matter can be raised for the first time in and be determined by the appellate court
Sebastian Rukiza Kinyondo v. Dr Medard Mutalemwa Mutungi 479

Limitation of time – Suits – Limitation of time for suits – Computation of Time of Limitation for filing a suit previously withdrawn – Items 34 and 52 of the schedule to the Law of Limitation Decree Chapter 12
Peoples' Bank of Zanzibar v. Naushad Mohamed Suleiman 269

Order – Interim order – Whether court may grant an interim restoration order where its jurisdiction is challenged – Section 68 and Order 37 of the Civil Procedure Code 1966.
Prince Peace Company v. National Housing Corporation 373

Order – Garnishee Order – Order imposed on bank accounts of a wrong party to proceedings – Whether order may be lifted
Said Mnimbo and others v. Tourism Services and another 233

Order – Temporary and Interim orders of injuction – Whether time prescribed for validity thereof begins to run from the time of compliance with order
African Trophy Hunting Ltd v. Attorney General and others ... 407

Pleadings – Pleading stating a specific amount prayed for as general damages – Whether proper
Edwin William Shetto v. Managing Director of AICC 130

Primary court – Irregularity in primary court proceedings – Judgment signed by magistrate only and not signed by assessors – Whether curable
Mathias Katonya v. Ndola Masimbi 390

Proceedings – Irregularity – Irregularity in the trial proceedings – Whether appellate court may vary or alter the decision – Section 37(2) of the Magistrates' Courts Act 1984.
Mathias Katonya v. Ndola Masimbi 390

Procedural Law lacking in some material particular – Whether variation of adopted procedure is permissible
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

Reference from Single Judge – Failure to serve Notice of Motion and record of the reference on respondent – Application of Rules 57, 51, 52 and 45 of Court of Appeal Rules 1979
Ivan Makobrad v. Miroslav Katic Vesna Paladin Ingra 448

Res Judicata – Issue decided in previous case was whether the first respondent had been served with Notice of Appeal – Issue in subsequent case is whether the applicant honestly believed he had served Notice of Appeal on the first respondent – Whether the matter in the subsequent case is res judicata
Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334

Review – Review by the Court of Appeal – Circumstances in which Court Appeal may review its own decision – Whether list of such circumstances is closed
Tanzania Transcontinental Trading Company v. Design Partnership Ltd 258

Review – Review Powers of the Court of Appeal – Bench of three judges – Whether the Court of Appeal consisting of three justices may extend the list of circumstances for review beyond those stated by the full bench
Tanzania Transcontinental Trading Company v. Design Partnership Ltd 258

Review – Review Powers of the Court of Appeal – Condition precedent for invoking review powers of the Court
Tanzania Transcontinental Trading Company v. Design Partnership Ltd 258

Review – Review Powers of the Court of Appeal – Full Bench of the Court of Appeal – Circumstances in which only the Full Bench may exercise review powers
Tanzania Transcontinental Trading Company v. Design Partnership Ltd 258

Stay of execution - Doubts as to true owner of property in proceedings for stay of execution – Order of stay granted
Ivan Makobrad v. Miroslav Katic Vesna Paladin Ingra 448

Suit – Withdrawal of Suit – Liberty to Bring a Fresh Suit after Withdrawal – Order XXIII, rule 2 of the Civil Procedure Rules
Peoples' Bank of Zanzibar v. Naushad Mohamed Suleiman 269

Suit – Withdrawal of Suit – Oral Application for withdrawal of suit – Order XXVII Rule 1 of the Civil Procedure Rules
Peoples' Bank of Zanzibar v. Naushad Mohamed Suleiman 269

COMPANY LAW

Foreign company- certificate of compliance by foreign company – Whether a foreign company not incorporated in its own country can take out a Certificate of compliance in Tanzania–Section321 of the companies OrdinanceChapter212
Intertec East Africa A.S. v. B. and S. International 422

Memorandum of Association – Alteration of the provisions of the Memorandum of Association – Section 7 of the Companies Ordinance Chapter 212.
Re: In the Matter of Mofaju's Investment Company Ltd 322

CONTRACT

Contract – Contract of Sale – Jointly owned property between spouses – Death of one spouse – Whether the survivor upon whom the property devolves may dispose of such property
Juma Rahisi Nanyanje v. Shekhe Farisi 29

CONSTITUTIONAL LAW AND PRACTICE

Basic Rights – Basic Rights guaranteed under the Constitution – Right to personal freedom and the right to be presumed innocent until proved guilty as guaranteed under articles 13(6)(b) and 15 of the Constitution – Procedure to be adopted in handling cases for the enforcement of basic constitutional rights – Section 9(1) of the Basic Rights and Duties Enforcement Act 1994
Director of Public Prosecutions v. Anjelina Ojare 163

Parliament – Powers, privileges and immunities of Parliament – Whether court may question an action taken by the National Assembly – Article 100(1) of the Constitution and section 12 of the Parliamentary Immunities, Powers and Privileges and Immunities Act 1988
Augustino Lyatonga Mrema v. Speaker of the National Assembly and another 206

Personal Liberty – Constitutional guarantee of personal freedom – Determination whether a statutory provision that no bail shall be granted to a person charged with the offence of murder is constitutional or not – Whether a court of resident magistrate has jurisdiction to handle the issue – Section 148(5) of the Criminal Procedure Act 1985

Director of Public Prosecutions v. Anjelina Ojare **163**

Separation of Powers – Court action to enquire into a decision taken by the National Assembly in the course and as part of parliamentary proceedings – Whether the action contravenes the doctrine of separation of powers
Augustino Lyatonga Mrema v. The Speaker of the National Assembly **206**

CORPORATION

Public Corporations – Privatization of public corporations – Public corporation declared a specified public corporation with a view to privatization – Effect of declaring the corporation a specified corporation
Said Mnimbo and others v. Tourism Services and another **233**

Public Corporation – Specified Public Corporations – Public corporation declared a specified public corporation – Effects thereof – Sections 38(1) and 39 of the Public Corporations (Amendment) Act of 1993
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (Number 1) **299**

COURT

High Court – Jurisdiction – Appeal to the Court of Appeal and Jurisdiction of the High Court – Effect of lodging a notice of appeal on the jurisdiction of the High Court – Whether the High Court still has jurisdiction over a matter after notice of appeal to the Court of Appeal is lodged in respect of the same – Rule 76(1) of the Tanzania Court of Appeal Rules 1979
National Insurance Corporation v. Kweyambah Quaker **150**

High Court – Jurisdiction of the High Court – Jurisdiction of the High Court to enforce basic rights guaranteed under the Constitution – Whether High Court sitting with a single judge has jurisdiction to hear and determine any matter relating to the

enforcement of basic rights guaranteed under the Constitution – Section 10 of the Basic Rights and Duties (Enforcement) Act 1994
Augustino Lyatonga Mrema v. Speaker of the National Assembly and another **206**

Inherent powers – Court looking at records or receipt book to determine correct date – Whether proper
Silas Simba v. Editor of Mfanyakazi Newspaper and another ... **404**

Jurisdiction – Res Judicata – Issue decided in previous case was whether the first respondent had been served with Notice of Appeal – Issue in subsequent case is whether the applicant honestly believed he had served Notice of Appeal on the first respondent – Whether the matter in the subsequent case is res judicata.
Stephen Masato Wasira v. Joseph Sinde Warioba and The Attorney General **334**

Powers – Inherent powers – Court looking at records or receipt book to determine correct date – Whether proper
Silas Simba v. Editor of Mfanyakazi Newspaper and another **404**

Primary Court – Assessors – Substitution of assessor after trial has commenced – Effect thereof – Section 7 of the Magistrates' Courts Act 1984
Mathias Katonya v. Ndola Masimbi **390**

Primary Court – Jurisdiction – Jurisdiction of primary courts over registered land in matters of probate and administration – Government Notice Number 320 of 1996
Mohamed Kihago v. Abbas Kihago **319**

Primary Court – Jurisdiction – Pecuniary jurisdiction of Primary Court – Whether a primary court may entertain a suit for recovery of a debt arising out of contract between natural persons exceeding the value of TZS. 10 000 000 – Section 18(1)(a)(iii) of the Magistrates Courts Act 1984
Juma Rahisi Nanyanje v. Shekhe Farisi **29**

Primary Court – Proceedings – Irregularity in primary court proceedings – Judgment signed by magistrate only and not signed by assessors – Whether curable
Mathias Katonya v. Ndola Masimbi **387**

COURT OF APPEAL

Affidavits – Supplementary Affidavit – Conditions for filing supplementary affidavit – Rule 46(3) of the Court of Appeal Rules of 1979
Tanzania Pharmaceutical Industries Ltd v. Dr Ephraim Njau (Number1) **299**

Appeal – Limitation of Time to lodge an appeal – Computation of time in which an appeal may be lodged – Point at which time starts to run – Rule 83(1) of the Court of Appeal Rules 1979
African Marble Company Ltd v. Tanzania Saruji Corporation **306**

Appeal – Notice of Appeal – Respondent alleging that notice of appeal was not served in time – Burden to prove service of a copy of the notice of appeal – Rule 77(1) of the Court of Appeal Rules 1979
Sebastian Rukiza Kinyondo v. Dr Medard Mutalemwa Mutungi **479**

Applications – Applications to the Court of Appeal – Grounds for the application must be stated in the Notice of Motion – Rule 45(1) and (2) of the Court of Appeal Rules 1979
Miroslav Katic and Two others v. Ivan Makobrad **463**

Applications – Form of Application – Format for bringing applications to the Court of Appeal – Form A of the First Schedule to the Court of Appeal Rules 1979
Ital African Transporters Ltd v. Giafar M. Beder **251**

Applications – Service of Notice of Motion on the Respondent – Time within which the Respondent is be served with a copy of the Notice of Motion – Rule 52(1) of the Court of Appeal Rules 1979
Ital African Transporters Ltd v. Giafar M. Beder **251**

Leave to Appeal – Application for leave to appeal to the Court of Appeal – Application to be made to the High Court first – Rule 44 of the Court of Appeal Rules 1979
Ital African Transporters Ltd v. Giafar M. Beder **251**

Review Powers – Bench of three judges – Whether the Court of Appeal consisting of three justices may extend the list of circumstances for review beyond those stated by the full bench
Tanzania Transcontinental Trading Company v. Design Partnership Ltd **258**

Review Powers – Circumstances in which Court Appeal may review its own decision – Whether list of such circumstances is closed
Tanzania Transcontinental Trading Company v. Design Partnership Ltd **258**

Review Powers – Condition precedent for invoking review powers of the court
Tanzania Transcontinental Trading Company v. Design Partnership Ltd **258**

Review Powers – Full Bench of the Court of Appeal – Circumstances in which only the Full Bench may exercise review powers
Tanzania Transcontinental Trading Company v. Design Partnership Ltd **258**

Revision – Powers of Revision – Conditions for invoking the Court of Appeal's powers of Revision – Section 4 of the Appellate Jurisdiction Act 1979
Augustino Lyatonga Mrema v. Republic and Dr Masumbuko Lamwai **273**

Revision – Powers of Revision – Objective behind vesting the Court of Appeal with powers of revision – Section 4 of the Appellate Jurisdiction Act 1979
Miroslav Katic and Two others v. Ivan Makobrad **463**

COURT OF APPEAL RULES

Application for Record of Proceedings – Copies of letter applying for record of proceedings left with theCourt – Whether the court is bound to copies of the said letter on the respondent
Institute of Development Management v. David Mwakikunga . 97

Applications – Form of Application – Format for bringing applications to the Court of Appeal – Form A of the First Schedule to the Court of Appeal Rules 1979
Ital African Transporters Ltd v. Giafar M. Beder 251

Certificate – Certificate issued by the Registrar under rule 83(1) of the Court of Appeal Rules 1979 – Presumption that certificate is right and regular – Section 122 of the Evidence Act 1967
African Marble Company Ltd v. Tanzania Saruji Corporation ... 306

Limitation of Time – Limitation of Time to lodge an appeal – Computation of time in which an appeal may be lodged – Point at which time starts to run – Rule 83(1) of the Court of Appeal Rules 1979
African Marble Company Ltd v. Tanzania Saruji Corporation ... 306

Service of Documents – Rights and duties of parties to appeal relating to service of documents – Failure to comply with the Rules and effect thereof – Rules 76, 77, 79, 82, 89(1) 90, 92 (1) and 106 (b) of the Court of Appeal Rules
Azim Suleman Premji v. Attorney General and Dr Aman Walid Kabourou (Number 1) 457

Service on the Respondent – Letter to the Registrar applying for a copy of the record of proceedings for appeal purposes not served on the respondent – Effect thereof – Rule 83(1) and (2) of the Tanzania Court of Appeal Rules 1979
Institute of Development Management v. David Mwakikunga ... 97

CRIMINAL LAW

Actus reus and mens rea – Conviction of dealing in cannabis sativa resin – Appellants' confirmation that they were owners of the container having the drugs, that they worked together along with one Eliakim to get the container, still sealed, cleared from the port resulted from their joint efforts together with Eliakim's – Whether mens rea and actus reus estlblished
Mehboob Akber Haji and Two others v. Republic 179

Cattle Theft – Two goats slaughtered and stolen at night – Appellant found with 2kgs of goat meat the following evening – Whether the appellant was the thief
Noel Philemoni Mohamed v. Republic 387

Contempt of Court – Refusal to answer a question after the court has ruled that it should be answered – Whether an act of contempt
Yasini Mikwanga v. Republic 14

Defences – Defence of provocation – Acts that may constitute provocation – Whether wife's refusal to have sexual intercourse is an act constituting provocation
Republic v. Ismail Napose 8

Defences – Defence of provocation – Evidence – Burden of proof when provocation is pleaded as a defence to a charge of murder – Burden on the prosecution to show absence of provocation
Republic v. Ismail Napose 8

Economic and Organized Crime – Illegal importation of dangerous drugs – Circumstatial evidence – Whether the offence is established
Mehboob Akber Haji and Two others v. Republic 179

Economic and Organized Crime – Leading organized crime – Bribing in order to facilitate port clearance of a container of dangerous drugs – Whether offence of leading organized crime is established – Economic and Organized Crime Control Act 1984, section 59(2) and paragraph 4(a) First Schedule
Mehboob Akber Haji and Two others v. Republic 179

Economic and Organized Crime – Leading organized crime – No proof of intent to benefit from such act – Whether offence of leading organized

crime is established – Economic and Organized Crime Control Act 1984, section 59(2) and paragraph 4(1)(a) of the First Schedule
Mehboob Akber Haji and Two others v. Republic **179**

Murder – Defence of insanity – When the defence may be raised or pleaded
Lucas Hassan Mwamba v. Republic **369**

Murder – Defence of Provocation – Acts that may constitute provocation – Whether wife's refusal to have sexual intercourse is an act constituting provocation
Republic v. Ismail Napose **8**

Murder – Defence of Provocation – Evidence – Burden of proof when provocation is pleaded as a defence to a charge of murder – Burden on the prosecution to show absence of provocation
Republic v. Ismail Napose **8**

Murder – Malice aforethought – Factors to be considered in establishing malice aforethought – Nature of the wound inflicted on the deceased – Whether a relevant factor
Republic v. Betram Mapunda and another **1**

Theft – Cattle Theft – Two goats slaughtered and stolen at night – Appellant found with 2kgs of goat meat the following evening – Whether the appellant was the thief
Noel Philemoni Mohamed v. Republic **387**

CRIMINAL PRACTICE AND PROCEDURE

Appeal – Lodging an appeal – Appeal lodged after conviction but before sentence is passed – Appeal premature
Athumani Selemani Mponda v. Republic **159**

Accused Person – Testimony by accused person – Accused person refusing to answer question – Whether accused person who opts to testify may refuse to answer question
Yasini Mikwanga v. Republic **15**

Bail – Right to bail – Statutory provision taking away the right to bail from person charged with murder – Whether the provision is constitutional – Section 148(5)(a) of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Anjelina Ojare **163**

Charges – Offence capable of being committed in alternative ways – Proper way of charging
Mehboob Akber Haji and Two others v. Republic **179**

Conviction – Summary conviction – Whether the trial magistrate must frame formal charge before conviction
Yasini Mikwanga v. Republic **15**

Defence – Defence of Alibi – Burden of proving alibi - Whether the burden is on the accused to prove alibi
Jumanne Rajabu and another v. Republic **69**

Extradition - Minister's order to court for arrest and detention of fugitive – Court's compliance with the Minister's order - Whether lawful - Section 5(1) of the Extradition Act 1965
Francesco Tramontano v. Republic **275**

Extradition – Bail - Consideration of grant or refusal of bail in Extradition Cases
Francesco Tramontano v. Republic **275**

Hearing – Preliminary hearing – Admission of a retracted cautioned statement and other disputed items as exhibits during preliminary hearing – Whether procedure was proper – Section 192 of the Criminal Procedure Act
Elineema Andrea v. Republic **463**

Identification – Accused identified at an identification parade by two witnesses and identification by one witness is challenged – Whether accused persons properly identified
Mehboob Akber Haji and Two others v. Republic **179**

Insanity – Insanity as a bar to a trial – Procedure to be followed by trial court
Lucas Hassan Mwamba v. Republic **369**

Judges Rules – Statement of accused before the Police – Failure to comply with Judges Rules – Effect of non-compliance
Jumanne Rajabu and another v. Republic **69**

Revision – Revision by the Court of Appeal – Conditions for invoking the Court of Appeal's powers of Revision – Section 4 of the Appellate Jurisdiction Act 1979
Augustino Lyatonga Mrema v. Republic and Dr Masumbuko Lamwai **273**

Sentencing – Trial judge sentencing on the basis of repealed law whose maximum sentence was less than that of the new law – Legality of sentence
Mehboob Akber Haji and Two others v. Republic **179**

Sentencing – Sentence for contempt of court – Whether a sentence of six months' imprisonment is legal
Yasini Mikwanga v. Republic **15**

Trial – Conviction entered but the passing of sentence is stayed pending appeal – Whether proper in law – Section 298(3) of the Criminal Procedure Act 1985
Athumani Selemani Mponda v. Republic **159**

Trial – Trial within a trial – Statement of accused to a Police Officer – Burden is on the prosecution to prove that it was made voluntarily
Jumanne Rajabu and another v. Republic **69**

Witnesses - Recalling of a witness upon an accused's demand – Whether Magistrate has discretion to refuse recalling - Section 214(2)(a) Criminal Procedure Act.
Francesco Tramontano v. Republic **275**

Extradition – Minister's order to court for arrest and detention of fugitive – Court compliance with Ministers order – Whether lawful – Section 5(1) of Extradition Act 1965
Francesco Tramontano v. Republic **275**

Extradition – Bail – Consideration of grant or refusal of bail in Extradition Cases
Francesco Tramontano v. Republic **275**

CUSTOMARY LAW

Customary Law – Limitation period – Limitation period for recovery of clan land – Item 6 of the Customary Law (Limitation of Proceedings) Rule 1963, Government Notice Number 311 of 1963
Mathias Katonya v. Ndola Masimbi **387**

DAMAGES

General Damages – Prayer for general damages – Whether a specific amount may be prayed for as general damages Edwin William
Shetto v. Managing Director of AICC **130**

ELECTIONS

Campaigns for election – Legality of election campaign – Election campaign at a function organized by a religious body or institution – Whether the campaign is lawful
Sylvester K. Masinde v. Pius Msekwa and the Attorney General **42**

Election campaigns – Duration of election campaign period
Sylvester K. Masinde v. Pius Msekwa and the Attorney General **42**

Election campaigns – Legality of public and private campaigns – Campaigns conducted outside the scheduled programme – Whether the campaigns are lawful
Sylvester K. Masinde v. Pius Msekwa and the Attorney General **42**

Election Petition – Corrupt practices – Electoral corrupt practices – Incumbent candidate disclosing existence of a fund for construction of wells he established well before the election campaign period – Whether the disclosure was corruptly motivated
Sylvester K. Masinde v. Pius Msekwa and the Attorney General 42

Election Petition – Limitation of time for the hearing and determination of election petition – Statute prescribing a two-year period – Whether the prescribed period takes account of the time taken up by appeals from preliminary rulings and orders – Section 115(2) of the Elections Act 1985
Wilbroad Peter Slaa and another v. Arusha Kalwa and others 85

Election Petition – Limitation of time within which the Court should hear and determine election petition – Statute prescribing a definite period for hearing and determination of election petition – Whether computation of time should exclude Sundays and public holidays – Section 115(2) of the Elections Act 1985 and s.43(d) of the Interpretation of Laws and General Clauses Act Chapter 1
Wilbroad Peter Slaa and another v. Arusha Kalwa and others 85

Election Petition – Security for costs – Whether failure to explicitly itemize security for costs in exchequer receipt renders an Election Petition incompetent – Rule 11 of the Elections (Election Petitions) Rules 1971
Augustine Lyatonga Mrema v. Donati Mathew Mbwagai and others 453

Election Petition – Time prescribed for the hearing and determination of election petitions – Extension of the prescribed time by the Minister – Whether the Minister may extend that time after it has expired – Section 115(3) of the Elections Act 1985
Wilbroad Peter Slaa and another v. Arusha Kalwa and others 85

EVIDENCE

Assessment of evidence – Re-assessment of evidence by appellate court – Duty of first appellate court in making re-assessment

Ndizu Ngasa v. Masisa Magasha 202

Evaluation of Evidence – Evaluation of evidence on appeal – Appellate court's re-evaluation of evidence of trial court – Principles to be applied
Yasin Ramadhani Chang'a v. Republic 489

Burden of Proof – Duty to prove alleged facts – The duty to prove is on the party alleging – Sections 102 and 103 of the Evidence Decree Chapter 5
Lamshore Limited and J.S. Kinyanjui v. BIZANJE K.U.D.K. ... 330

Burden of Proof – Provocation - Burden of proof when provocation is pleaded as a defence to a charge of murder – Burden on the prosecution to show absence of provocation
Republic v. Ismail Napose 8

Circumstantial evidence – Whether circumstantial evidence alone can sustain a conviction for murder
Republic v. Betram Mapunda and another 1

Witness - Court witnesses - Circumstances under which a Court can call its own witness(es)
Talian Langoi v. Musee Loserian 379

Witness – Hostile witness – Statement made by witness who later retracts it and is declared a hostile witness – Whether that statement may form the basis of conviction
Kassim Farijala v. Republic 377

FAMILY LAW

Adultery – Proof of adultery
Dadi Saidi Kwanga v. Nurdin Akachapa 398

Divorce – Grounds for the court to grant divorce – Whether willful neglect is a sufficient ground for granting divorce
Mwanahawa Hemedi v. Rashidi Kulomba 21

Maintenance – Order of maintenance for divorced wife – Order of divorce granted without a request for it and without ascertaining

husband's means and ability to pay – Whether the order was properly given – Section 115 of the Law of Marriage Act 1971
Samweli Moyo v. Mary Cassian Kayombo **197**

Marriage – Contracting a civil marriage – Whether a civil marriage is contracted by registration of intention – Section 29 of the Law of Marriage Act 1971
Dadi Saidi Kwanga v. Nurdin Akachapa **398**

Matrimonial assets – Division of matrimonial assets upon divorce or separation – Power of the court to order division – Conditions upon which the court may order division – Section 114(1) of the Law of Marriage Act 1971
Samweli Moyo v. Mary Cassian Kayombo **197**

Divorce – Dissolution of marriage – Whether dissolution effected by talak and division of matrimonial assets – Law of Marriage Act 1971
Dadi Saidi Kwanga v. Nurdin Akachapa **398**

Divorce – Petition for divorce – Attendance before the Marriage Conciliation Board before petitioning for divorce – Party failing or refusing to attend before the Board – Effect thereof – Section 101 of the Law of Marriage Act 1971
Mwanahawa Hemedi v. Rashidi Kulomba **21**

Property – Property jointly owned – Property owned jointly by husband and wife – Death of one spouse – Property devolves on to the surviving spouse
Juma Rahisi Nanyanje v. Shekhe Farisi **29**

Matrimonial Proceedings – Petition for divorce – Attendance before the Marriage Conciliation Board before petitioning for divorce – Party failing or refusing to attend before the Board – Effect thereof – Section 101 of the Law of Marriage Act 1971
Mwanahawa Hemedi v. Rashidi Kulomba **21**

JUDGMENT

Declaratory judgment – When a declaratory judgment may be granted by the court
Edwin William Shetto v. Managing Director of AICC **130**

LABOUR LAW

Abolition of employment post by employer – Legal basis for abolition
Edwin William Shetto v. Managing Director of AICC **130**

Abolition of employment post by employer – Whether such abolition terminates contract of service with the incumbent of the post abolished
Edwin William Shetto v. Managing Director of AICC **130**

Labour disputes resolution – Jurisdiction of the Minister in labour disputes – Wether the Minister has jurisdiction to adjudicate on disputes founded on redundancy – Sections 39(2) and 40A of the Security of Employment Act 1964
Said A. Marinda and Thirty others v. Minister of Labour and Youth **350**

Reinstatement – Order of reinstatement of a terminated employee – Order to reinstate an employee given by a competent authority – Options available to the employee – Sections 27(1) and 40A(5)(b) of the Security of Employment Act Chapter 574
General Tyre (E.A.) Ltd v. Patron Siame and another **144**

Reinstatement – Order of reinstatement of a terminated employee – Order to reinstate anemployee given by a competent authority – Whether the employer has option not to reinstate – Sections 27(1) and 40A(5)(b) of the Security of Employment Act Chapter 574
General Tyre (E.A.) Ltd v. Patron Siame and another **144**

Voluntary Agreement – Voluntary agreement signed by employer and employees' union but neither party takes steps to get it registered by the Industrial Court – Effect of the failure to register the agreement – Section 39(4) of the Industrial Court Act 1967

Said A. Marinda and Thirty others v. Minister of Labour and Youth 350

LAND LAW

Acquisition of title to land – Offer of title to land given over land still held under customary law – Effect thereof
James Ibambas v. Francis Sariya Mosha 364

Customary land law – Application in urban areas – No one can hold land under customary law in a planned area - Customary law cannot apply in urban areas
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

Customary land law – Circumstances in which the title of a holder of right of occupancy under customary law can be taken away
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

Customary land law – Customary title holder – Recognized by the law of the land, i.e., the Land Ordinance
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

Customary land law – Status of customary title holder – Whether a holder of land under customary law can be reduced into a squatter
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

Customary land law – Title to urban land – Title is dependent on granted rights of occupancy and customary law does not operate in urban areas
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

Customary title to land – Whether customary title to land terminates upon the land being surveyed – Section 2 of the Land Ordinance
James Ibambas v. Francis Sariya Mosha 364

Planning Area – Declaration of Planning Area – Whether declaration of urban land as a planning area divests the original owners of their customary titles thereon
Mwalimu Omari and Ahmed Baguo v. Omari A. Bilali 432

LEGAL PROFESSION

Holding Out – Advocate holding out before judgment debtor as still representing decree holder – Whether judgment debtor entitled to rely on such holding out by the advocate
Mlimani Farmers Ltd v. Tanzania Breweries Ltd *37*

Holding Out – Advocate holding up before judgment debtor as still representing decree holder and negotiates downwards the decretal amount in full settlement of the award and receives payment from judgment debtor on behalf of decree holder – Whether judgment debtor entitled to rely on such holding out by the advocate
Mlimani Farmers Ltd v. Tanzania Breweries Ltd 37

LIMITATION OF TIME

Applications – Fresh application for stay of execution after dismissal of a similar application by the same court – Applicability of the law of limitation to such subsequent application
Blue Star Service Station v. Jackson Musseti 80

Applications – Application filed out of time – High Court finds that an application filed was time barred – Whether such application may be dismissed or struck out – Section 3(1) of the Law of Limitation Act 1971
Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334

Extension of Time – Grounds for extension of time – Applicant seeking extension of time to file Notice of Appeal after previous notice is struck out for failure to serve it on the respondent – Whether an honest but mistaken belief that he had served that previous notice is a sufficient ground to grant extension
Stephen Masato Wasira v. Joseph Sinde Warioba and the Attorney General 334

NATURAL JUSTICE

Right to be heard – Decision made without giving affected person an opportunity to be heard – Effect thereof on the decision

Edwin William Shetto v. Managing Director of AICC 130

Right to be heard – Trial court decides without according a hearing to the appellants' advocate – Travesty of justice
Kijakazi Mbegu and others v. Ramadhani Mbegu 174

PARLIAMENT

Membership of Parliament – Tenure of office of Members of Parliament and the election campaign period – Whether members and the Speaker of the National Assembly still hold their respective offices during the period of election campaigns
Sylvester K. Masinde v. Pius Msekwa and the Attorney General 42

Powers, privileges and immunities of Parliament – Whether court may question an action taken by the National Assembly – Article 100(1) of the Constitution and s.12 of the Parliamentary Immunities, Powers and Privileges and Immunities Act 1988
Augustino Lyatonga Mrema v. Speaker of the National Assembly and another 206

PROBATE AND ADMINISTRATION

Application for grant of letters of administration – Caveat lodged against the application – Letters of administration granted while caveat still in force – Whether proper
Kijakazi Mbegu and others v. Ramadhani Mbegu 174

Application for grant of letters of administration – Subject matter governed by Islamic Law and case lodged in primary court – High Court orders the case to be heard by another magistrate – District Court transfers the case to itself – Whether district court has jurisdiction
Kijakazi Mbegu and others v. Ramadhani Mbegu 174

Application for grant of letters of administration – Weight to be given to clan members' views in granting letters
Kijakazi Mbegu and others v. Ramadhani Mbegu 174

Primary Court – Jurisdiction of primary courts – Whether primary courts have jurisdiction where the estate consists of registered land – Government Notice Number 320 of 1996
Mohamed Kihago v. Abbas Kihago 319

RES JUDICATA

Res Judicata – Issue decided in previous case was whether the first respondent had been served with Notice of Appeal – Issue in subsequent case is whether the applicant honestly believed he had served Notice of Appeal on the first respondent – Whether the matter in the subsequent case is res judicata.
Stephen Masato Wasira v. Joseph Sinde Warioba and The Attorney General 334

STATUTE

Interpretation of Statutes – Meaning of "any other action .... lawfully available" – Section 4 of the Basic Rights and Duties Enforcement Act 1994
Director of Public Prosecutions v. Anjelina Ojare 487

Interpretation of Statutes – Meaning of "non-bank assets and liabilities and all other assets, liabilities and business of the former bank" – Whether the meaning includes a debenture the bank branch to which it was issued is unknown – Section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997, Number 23 of 1997
Calico Textile Industries Ltd v. Zenon Investments Ltd and others 100

TORTS

Defamation – Newspaper article originating from the defendant mentioning the plaintiff by name as a director who lost his job, and stating that he was negligent and a party to a financial loss suffered by the defendant – Whether defamatory
Edwin William Shetto v. Managing Director of AICC 130

REPUBLIC *v.* BETRAM MAPUNDA AND OPTATUS TEMBO

HIGH COURT OF TANZANIA
AT MTWARA
(Msumi, J.)

CRIMINAL SESSIONS CASE No. 47 OF 1982

Criminal Law – Murder – Malice aforethought – Factors to be considered in establishing malice aforethought – Nature of the wound inflicted on the deceased – Whether a relevant factor.

Evidence – Circumstantial evidence – Whether circumstantial evidence alone can sustain a conviction for murder.

The two accused persons were jointly charged with the murder of the wife of the first accused. The deceased had died from excessive external and internal bleeding caused by a wound inflicted on her neck. The two accused were the only persons who had been with the deceased on the fateful day. The second accused was a visitor living with the couple, although for part of the day in question he was not with the couple; he had gone to visit a friend about two miles away. The prosecution relied on circumstantial evidence to prove the offence. During the trial, the first accused claimed that he was attracted by a cry of his child from the house and when he entered the house he found his wife dead, and he concluded that she had committed suicide. The prosecution disputed this claim as there was no sign of struggle and the wound on the neck of the deceased was too big for the deceased to have inflicted it upon herself. And there was no pool of blood on the bed she was found lying after death. Four pairs of blood stained trousers were dug from the ground and the blood was tested and it matched that of the deceased.

Held: (i) The circumstantial evidence available in this case irresistibly leads to the conclusion that the first accused killed the deceased with malice aforethought;

(ii) The nature of the wound shows that the first accused, who inflicted it upon the deceased, intended to kill and the charge of murder against him therefore is proved beyond reasonable doubt;

(iii) There is a reasonable doubt as to the guilt of the second accused person; he is, therefore, found not guilty.

Case referred to:

(1) Samson Daniel *v.* R (1934) EACA 134

Mr Sengwaji State Attorney, for the Republic

Mr Mkongwa Advocate, for the accused

JUDGMENT

(Delivered 31 October 1984)

MSUMI, J.: The two accused persons are jointly charged with the murder of one Evalina d/o Nchimbi. They are alleged to have committed this offence on or about the 26 June 1981 at Mpapa Village within the District of Mbinga. Both accused pleaded not guilty.

There is no dispute that one Evalina d/o Nchimbi who was the wife of the first accused is dead and that she died on 26 June 1981 at Mpapa Village. Besides being not contentious, this fact has been proved by the brother and father of the deceased who testified as PW5 and PW6 respectively. Both witnesses told the court that they identified the dead body of the deceased to Dr. Heri (PW 7) who performed post-mortem examination on it. After the said examination, they took the body to their home village for burial. On the other hand, Dr. Heri certified before this court and in his report that the said Evalina d/o Nchimbi is in fact dead. Thus acting on this evidence I take it as proved beyond reasonable doubt that Evalina d/o Nchimbi is dead. The question which follows now is how the deceased met her death.

Happily, this issue is not also in dispute. All the witnesses, *viz*: Dt. Cpl. Saidi (PW1), Beatus Kowelo (PW2), Ludgeri Fuluko (PW5), Damian Makopa Nchimbi (PW6) and Dr. Heri (PW7) who viewed the body of the deceased on different occasions observed a large cut wound on the neck. Dr. Heri deposed that the said wound cut the

skin, trachea, esophagus, left and right common carotid arteries, left and right jugular veins, and left and right sterno-mastoid muscles. The said wound measured 7 cm deep and 17 cm long. In fact, the deceased's head was almost severed from the rest of the body. The doctor concluded his report by expressing his opinion to the effect that the deceased died from excessive external and internal bleeding caused by the said cut wound. I take it as proved therefore that the deceased's death was not a natural one. To be more precise she was in fact slaughtered.

It is obvious that whoever killed the deceased was not legally justified to do so. I can think of no situation whereby one is authorized by the law to slaughter one's fellow human being. In any case there has been no suggestion, throughout the trial of this case, that the deceased was lawfully killed. Hence I find it safe to hold thus: the deceased was unlawfully killed.

As in most homicide cases, the most contentious issue in this case is whether the two accused persons are the ones who killed the deceased. In this connection the learned State Attorney conceded both in his opening and final speeches that he had no witness who saw the accused persons or either of them killing the deceased. The prosecution case wholly hinges on circumstantial evidence. But this is far from saying that the prosecution case is weak. That circumstantial evidence is sometimes the best evidence is a time-honoured legal pronouncement. Thus in *Samson Daniel v. R* (1) the then Court of Appeal for Eastern Africa observed:

> ... circumstantial evidence may be not only as conclusive as, but even more conclusive than, the evidence of an eye-witness.

However, in the same judgment the court sounded a warning when it said:

> ... the circumstantial evidence must lead to the inevitable conclusion that the death was the act or contrivance of the accused. If there is an alternative which can with any reasonable probability account for the death, this excluded the certainty which is required to justify a verdict of guilty.

Thus the question in the present case is whether the circumstantial evidence on which the prosecution side relies does irresistibly lead to establishing the guilt of the accused person. This question can only be answered after laying bare the alleged circumstantial evidence on which the case for the prosecution is built.

First, it has been undisputably established that the two accused were the only persons who were with the deceased on the fateful day and at the material time. Up to the day of incident, the first accused and deceased were living together as husband and wife. Besides the couple, the family consisted of a small child about 3 years old and a newly-born baby. However, on 23 June 1981 the second accused visited the couple and lived with them up to the day of the incident. But in fairness to the second accused person, it has been established that on that day, from 12:30am to about 2:00pm when the first accused allegedly found out that his wife was dead, he was not with the couple. It is in evidence that at that time second accused had gone to visit one Severin who was living about two miles away. Be it as it may, the most important thing is that the two accused were the only persons who had the opportunity of killing the deceased. In his defence the first accused admitted that he was with the deceased throughout that day and that besides the second accused, nobody else visited them. The accused further asserted that if any other person had come there he would necessarily have seen him.

First accused's reaction soon after he had allegedly "discovered" the body of the deceased is gravely incriminating to him. In his own words the accused told the court that he went late into their bedroom after being attracted by the cries of his child. It was then he found the deceased dead, lying in her bed. But the accused said that he did not view the body closely; he noticed her dead while standing at a distance of about five paces from the bed in which the body was lying. To say the least, this is quite unusual more so to a husband who has suddenly discovered that his dear wife is dead.

But it is even more startling when the first accused hastely came to the conclusion that the deceased had committed suicide. First

the accused told the court that he found the body with a cut wound on the neck and a knife lying on one side. In the normal circumstances one would have expected the first accused to suspect that his wife had been killed. It would have been different if the deceased was found hanging on a rope. In other words, *prima facie* the first accused person had no reason to believe, let alone suspect, that his wife had committed suicide.

There is yet another piece of circumstantial evidence which makes the first accused's claim that the deceased slaughtered herself, fictitious. According to the evidence of the witnesses who saw the body of the deceased still lying in her bed, it is evident that the body appeared peaceful. There were no signs of agony which usually accompany the moment when a person dies of suicide. For example one would have expected to find the deceased body in a state of disorder showing as if there was a struggle. It is even more strange to note that the deceased's body was quite orderly covered with a blanket. The deceased could not have slaughtered herself while calmly lying underneath the blanket.

Furthermore the first accused's claim that the deceased slaughtered herself is rendered even more unreal when you consider the gravity of the cut which led to her death. According to the doctor's report the said wound measured 17 cm long by 7 cm deep. As a result, the following tissues and/or ligaments were completely cut: *viz*, the skin, trachea, esophagus, left and right common-carotid arteries, left and right jugular veins and left and right sterno-mastoid muscles. Such grave wound could not have been self-inflicted. In order to accomplish it the victim was required to apply great force which she could not consistently maintain.

According to the first accused's claim, the deceased committed suicide while she was in her room in the bed. If this is so then one would have expected to find a pool of blood in the said room, particularly in the bed. On the contrary, the evidence of PW1 and PW2 established that only a few drops of blood were found underneath the bed. The doctor testified that the deceased bled excessively and hence the

cause of her death. Where was this blood? Deceased could not have slaughtered herself outside the house and then walk into the room! As a whole I am convinced that the first accused's claim that the deceased committed suicide is a hoax. The truth is that she was killed somewhere and her remains were carried into the room.

There is additional circumstantial evidence which gravely incriminates the first accused to this killing. In the course of his investigation, PW1 managed to dig out from the ground, among other things, four pairs of long trouser's belonging to the first accused person. All the trouser's were stained with blood. One of the trousers together with the accused's blood sample and the blood stained knife which was found near the body of the deceased, were sent to Government Chemist for observation. Consequently, it was certified that the stains found on the trousers and the knife were of a human being belonging to group AB. On the other hand the blood samples of the two accused persons were analysed and found to belong to group A and O respectively. In his defence the first accused not only admitted that all the four trousers were his, but he also confirmed that the blood stains which were on them were that of the deceased.

The explanation given by the accused on the presence of the deceased's blood stains in his four trousers does not raise any doubt, let alone reasonable doubt, as to his active involvement in the killing of the deceased. Briefly he claimed that those clothes were in the bed underneath the mat on which deceased's body was found lying. This claim is rendered fanciful by the evidence of PW1 who testified that except for the stained knife, he did not find any other blood stained item in the room, let alone in the bed in question.

In his final submission the learned defence counsel argued that if the finding of deceased's blood stains on the four trousers of the first accused is to be held incriminating to his client, then it must be held that all these trousers were worn by the first accused when he was killing the deceased. With respect, it is not necessary to make such a finding; and in fact at no time has the prosecution invited the court to such view. As the learned defence counsel quite rightly

pointed, it was not possible for the first accused to wear all these four trousers at one time. But for the sake of argument even if he did, not all the four trousers would have been so stained. At least the inner most one would have been clean. The most sensible view I hold on this question is that these four trousers were used to rub off the deceased blood after she was killed. This sounds sensible because besides the four trousers there were also recovered from the hole four underpants two of which the first accused identified to be his and the other two to be those of his late wife. Now if the learned defence counsel's explanation is to make any sense it means that at the time when she was killed the deceased was wearing those two underpants!

All in all I am convinced that the circumstancial evidence we have in this case is such that it irresistibly leads to the conclusion that the first accused was gravely involved in the killing of the deceased. However, I cannot, without discomfort, make similar finding against the second accused person. The only piece of evidence which connects him to this case is the fact that he was at the house of the first accused on the fateful day. But it has not been established the exact time of the day when the deceased was killed. This is important because there is strong evidence that between 12:30am and about 2:00 pm the second accused was away from the house. He went to see one Severin at a village called Arusha which is about two miles away. What guarantee do we have to hold that the deceased was not killed at the time when the second accused was away to Arusha village? Absolutely none. It is quite possible, in fact probable, that the deceased was killed at the time when the second accused was at the house of Severin.

Admittedly, there is a strong suspicion that the second accused might have been involved in the killing of the deceased. But fortunately it is not part of the law of this country that an accused person may be convicted on suspicion, grave though it may be. To warrant conviction the prosecution must prove beyond reasonable doubt that the accused is guilty. Anything short of this is not good enough.

And lastly there is the question of malice aforethought. With respect, I totally adopt the reasoning of the learned State Attorney. In short he argued that from the nature of the wound it is clear that the person who inflicted it intended to slaughter the deceased. And invariably, he slaughtered in order to kill. Thus in this case it is clear that whoever slaughtered the deceased, he did so with a clear intention of killing her. As I said, I totally agree with this reasoning. Hence in the present case I find it as proved that when the first accused killed the deceased, he did so with malice aforethought.

From what I have said so far I am of the opinion that the charge of murder against the first accused person has been proved beyond reasonable doubt. I accordingly find him guilty and convict him as charged. On the other hand there is reasonable doubt as to the guilt of the second accused person. In compliance with the law, I am resolving this doubt in favour of him. The second accused is therefore acquitted.

REPUBLIC *v.* ISMAIL NAPOSE

HIGH COURT OF TANZANIA
AT MTWARA

(Msumi, J.)

CRIMINAL SESSIONS CASE No. 34 OF 1982

Criminal Law – Murder – Defence of Provocation – Acts that may constitute provocation – Whether wife's refusal to have sexual intercourse is an act constituting provocation.

Provocation – Evidence – Burden of proof when provocation is pleaded as a defence to a charge of murder – Burden on the prosecution to show absence of provocation.

The accused was charged with the murder of his wife. In his sworn testimony before the court he admitted that he killed the deceased by cutting her with an axe, which was exhibited in court. The accused, however raised the defence of provocation claiming that the deceased had refused him sexual intercourse, in addition to a number of annoying acts, namely: her refusal to accompany him home at night from a *ngoma* ceremony, her delay in coming back home that same night, and her decision and act of going back to the *ngoma* the next day without the permission of the accused. The main issues before the court were whether the refusal of sexual intercourse was legally provocative and whether the accused was still in the heat of passion when he inflicted the fatal wound on the deceased.

Held: (i) Refusal of sexual intercourse *per se* does not constitute provocation; it may constitute provocation if it is coupled with other circumstances;

(ii) The acts of the deceased of refusing to accompany her husband home from a local *ngoma* ceremony and staying there until morning, and of subsequently going back to the ngoma without her husband's consent were not so grave as to constitute provocation;

(iii) The conduct of the accused was not consistent with that of a man acting in the heat of passion, as the accused was in a controlled and sober state of mind when he decided to cut the deceased with the axe; the plea of provocation is therefore dismissed;

(iv) The burden of proof of provocation is not on the accused person but, whenever provocation is raised as a defence or facts suggest its presence, it is for the prosecution to prove the absence of such possibility.

The accused is found guilty of murder

Case referred to:

(1) *Rex v. Saidi s/o Nakandu*, (1948) E.A.C.A. 110

Mr Kumwembe for the Accused

JUDGMENT

(Delivered 14 January 1985)

MSUMI, J.: The accused, Ismail Napose, stands charged with murder contrary to section 196 of the Penal Code. It is alleged that on the 4 January 1981, at Nangomba Village, Masasi District, the accused murdered his wife one Hadija d/o Hassan. He denied this allegation.

The fact of the death of Hadija d/o Hassan and its cause were sufficiently proved by the prosecution. There is the evidence of the father of the deceased one Issa Mtegama (PW3) who, among other things, testified that on 5 January 1981 he got information of the death of his daughter. The report further revealed that the deceased was hacked to death by the accused. And on the following day he identified the deceased's body to the doctor who performed autopsy on the same. In addition there is the post mortem examination report (Exhibit P4) which certifies that one Hadija d/o Hassan is in fact dead and that her death was due to acute blood loss and asphyxia. And similarly the accused himself admits that his wife one Hadija d/o Hassan is dead and that she died out of a cut wound inflicted on her body.

As one of the few exceptions among homicide cases, there is no dispute in this case on the allegation that it is the accused who unlawfully killed the deceased. The sole evidence on this question has been provided by the accused himself. In his sworn testimony before this court the accused admitted that he killed the deceased by cutting her with an axe. There is also the evidence of P.C. William (PW1) and Detective Sgt. Dunstan (PW2) that on the morning of 5 January 1981, while they were on duty at Masasi Police Station, the accused came and reported to them that he had cut his wife with an axe and he feared that she might be dead. To confirm this report, Dt. Sgt. Dunstan went to the house of the accused where he found the deceased dead with a cut wound on the neck. And near the deceased body there was lying an axe stained with human blood of the same

group with that of the deceased (Exhibit P2). There is also an extra judicial statement (Exhibit P3) made by the accused to the Justice of the Peace, one Alto Barnabas Mbuti (PW5). In the said statement the accused narrated quite vividly how he hacked the deceased with an axe while she was a sleep. The substance of this statement was positively accepted by the accused.

It is uncontroverted that the accused killed the deceased by cutting her on the neck with an axe. The axe in question was exhibited before this court and there is no doubt that it is quite lethal. The report on post-mortem examination shows the gravity of the said fatal cut wound. To quote the doctor's words, it was a "deep cut wound on the front of the neck at suprasternal notch. The (L) carotid artery completely torn off, the esophagus was discontinued and the trachea just below the larynx was open and some segments were missing." From this description of the wound it is quite clear that the accused must have used great force in inflicting it. Furthermore it is relevant to point out the fact that the neck is one of the most vulnerable parts of the human body. Now taking into consideration all these factors, the only reasonable conclusion is that the accused killed the deceased with malice aforethought.

Accused raised the defence of provocation. To elaborate this, the accused gave the following story. He said on the night of 4 January 1981 himself and the deceased attended an initiation ceremony where there were some local *ngomas* being played. They stayed there up to midnight when the accused asked the deceased that they should go back home. The deceased refused saying that she still wanted to watch the *ngomas*. After he had failed to persuade her, the accused decided to return home alone. The deceased stayed there the whole night and returned home in the morning at about 11:00am. Again, without the consent of the accused, the deceased went back to the said ceremony at about 1:00pm after she had prepared food for the family. She came back at 6:00pm and after they had taken their meal, the accused and the deceased retired to bed. The accused then asked the deceased for sexual intercourse; she refused saying that she was

not in the mood. The accused tried to persuade her to the extent of attempting to undress her underpant by force but without success. Hence he despaired and left her alone. Then about two hours later after the deceased had fallen asleep the accused picked the axe in question from underneath the bed and with it he cut the deceased. After that he walked for over ten miles to Masasi Police Station to report the matter. The accused claims that the deceased's previous conduct of refusing to accompany him back home from the *ngoma* where she decided to stay till the following morning and her decision to go back to the said ngoma on the afternoon of the material day coupled with her refusal to play sex with him made him so angry that he lost his control and hence administered the fatal wound on her.

The defence of provocation is statutory. The law as embodied in section 202 of the Penal Code says that when a person kills another in the heat of passion caused by any wrongful act or insult of such a nature as is likely, when done to an ordinary person, to deprive him of the power of self control and to induce him to commit upon the person by whom the act or insult is done or offered, and he does the killing before there is time for his passion to cool, then he is in law said to have killed in provocation and hence the offence committed is manslaughter as opposed to murder. As alleged by the accused, in the instant case the alleged provocative act is the deceased's refusal of sexual intercourse. Happily the law is quite clear on whether refusal of sexual intercourse by a wife is a sufficient act to cause legal provocation. Among the leading decisions on this point is that of *Rex v. Saidi s/o Nakandu* (1). In that case it was held by the then Court of Appeal for Eastern Africa that, refusal of sexual intercourse *per se* does not constitute provocation. However, such refusal may constitute provocation if it is coupled with other circumstances. In the present case it has been strongly argued by Mr Kumwembe, the learned defence counsel, that there were some circumstances which rendered the refusal of sexual intercourse legally provocative. On this, the learned defence counsel pointed out the fact that on the night previous to the incident the deceased insolvently refused to

accompany the accused back home from the local *ngoma* and instead she stayed there till the following morning. And again on the afternoon of the fateful day, the deceased decided to go back to the said ngoma without the prior consent of the accused. With respect to the learned defence counsel, I don't think that these two incidents were so grave as to precipitate the deceased's refusal of sexual intercourse to an act which would have caused legal provocation. Hence, no wonder that the accused did not make a fuss on either of the incident. There is no evidence that the accused queried the deceased on the alleged insolent acts, let alone reprimanding her for the same. It appears that the accused took both incidents quite lightly or at most he was courageous enough to endure them without bitterness. By the time the accused and the deceased went to bed the alleged two incidents were almost forgotten issues.

This fact accounts for the accused's move for sexual intercourse as soon as they were in bed. It is quite evident that the accused's sudden change of temperament which climaxed to his inflicting the said fatal wound on the deceased was motivated wholly by the deceased's refusal of sexual intercourse.

But assuming, for the sake of argument, that there were circumstances which justifiably rendered the deceased's refusal of sexual intercourse legally provocative, still the question remains whether the accused was still in the heat of passion when he inflicted the fatal wound on her. I find it irresistible to give a negative reply to this question. What happened is that after the accused had failed to persuade her, which included his attempt to take off her underpants by force, he got despaired and apparently decided to call it off. He remained in bed with the deceased for almost two good hours, apparently pondering what he should do next. By that time the deceased was peacefully asleep. It was then that he decided to pick the axe in question, and executed his murderous intent. Such conduct is not consistent with that of man acting in the heat of passion. It is quite clear that the accused was in a controlled and sober state of mind when he decided to cut the deceased with the axe. As a whole I am quite convinced

that the facts of this case are such that they do not suggest any possibility of the accused killed the deceased in provocation. I make this finding while fully conscious of the fact that our law does not impose any burden on an accused person to establish a defence of provocation. Whenever the facts of a case suggest, albeit remotely, that the alleged killing might have been done in provocation, then it is for the prosecution to prove the absence of such possibility.

Both two gentlemen assessors were of the unanimous opinion that the accused is guilty. They out rightly dismissed the accused's plea that he killed the deceased in provocation. With respect, I am of the same opinion. I am satisfied that the charge of murder preferred against the accused has been proved beyond reasonable doubt. I accordingly find him guilty and convict him of the same.

Accused has been convicted of one of the most heinous offences known in our law murder. There is only one mandatory sentence which this court is required to impose. Accused is sentenced to suffer death by hanging.

YASINI MIKWANGA *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT MTWARA

(Msumi, J.)

CRIMINAL APPEAL No. 15 of 1982

(From the District Court of Kilwa District at Kilwa, in Criminal Case No. 33 of 1981, T.B. Mutakyawa, Esq., District Magistrate)

Criminal Law – Contempt of Court – Refusal to answer a question after the court has ruled that it should be answered – Whether an act of contempt.

Criminal Practice and Procedure – Summary conviction – Whether the trial magistrate must frame formal charge before conviction

Criminal Practice and Procedure – Testimony by accused person – Accused person refusing to answer question – Whether accused person who opts to testify may refuse to answer question

Criminal Practice and Procedure – Sentencing – Sentence for Contempt of Court – Whether a sentence of six months' imprisonment is legal.

The appellant and three others were charged with shop breaking and stealing before the Kilwa District Court. During cross examination by a co-accused, the appellant refused to answer a question put to him, contending that it was irrelevant. The trial magistrate ordered the appellant to answer the question but the appellant still refused, whereupon the trial magistrate summarily convicted him of Contempt of Court. On appeal to the High Court the main issue was whether that refusal amounted to Contempt of Court.

Held: (i) The cardinal purpose of creating the offence of Contempt of Court is to arrest all whose conduct is reasonably feared to be interfering with the proper administration of justice

(ii) Once the Court Rules that a witness should answer a question then the witness ought to comply, otherwise he will be liable for Contempt of Court, except where the witness is impaired by physical infirmity.

(iii) The refusal of the appellant to comply with the trial magistrate's order to answer the question contravened the provisions of section 114(1)(b) of the Penal Code; upon opting to testify in the witness box the appellant automatically subjected himself to all rules governing witnesses.

(iv) In summary proceedings the magistrate should frame the charge before entering conviction.

(v) There are no set rules to comply with in drafting a charge under summary proceedings but explaining the gist of the offensive conduct, the particulars of the law it contravenes, and finally availing an opportunity to make a reply to the charge are things that should be done, and all these were complied with before the appellant was convicted; the conviction, therefore, complied with section 114(1)(b) of the Penal Code.

(vi) According to section 114(2) of the Penal Code the maximum sentence for Contempt of Court is a fine of TZS. 400 or one month's imprisonment in default where there has been a summary conviction; the sentence of 6 months' imprisonment in this case was illegal.

Appeal against conviction dismissed; appeal against sentence allowed

Cases referred to:

(1) *Odhengo s/o Ogongo v. R* (1954) 21 E.A.C.A. 302

(2) *AG v. Butterworths* [1963] 1 Q.B. 696

Mr Mchora for the Appellant

JUDGMENT

(Dated 27 March 1985)

MSUMI, J.: Appellant was summarily convicted of Contempt of Court contrary to section 114(1)(b) of the Penal Code. He was sentenced to six months imprisonment.

What happened is that the appellant and three other persons were charged with shop breaking and stealing contrary to sections 296(1) and 265 of the Penal Code. In his defence the appellant opted to testify on affirmation. And while he was being cross examined by one of his co-accused, the appellant refused to answer one of the questions put to him contending that the same was irrelevant. It would appear that the alleged question concerned a case in which the appellant was previously convicted. The learned trial district magistrate overruled the objection and ordered the appellant to answer the question. But the appellant stood his ground; he refused to answer the question. It was then that the learned trial magistrate decided to take cognizance of the alleged contemptuous conduct and summarily convicted him under the provisions of section 114(2) of the Penal Code.

The learned defence counsel, Mr Mchora, submitted as his first ground of appeal that the alleged offensive conduct of the appellant

did not amount to a Contempt of Court. This view was emphatically shared by the learned Senior State Attorney on behalf of the Republic. With respect, I am of the contrary opinion. The appellant's conduct clearly contravenes subsection 1(b) of section 114. It appears both learned counsels have in their minds either subsection 1(a) or 1(1) of section 114. Otherwise it is incomprehensible how the conduct of the appellant can be excluded from being contemptuous under subsection 1(b). Perhaps I may do service to the learned counsel if I quote the said subsection:

> 114(1) Any person who:
>
> (a) ...
>
> (b) having been called upon to give evidence in a judicial proceeding, fails to attend or, having attended, refuses to be sworn or to make an affirmation or, *having been sworn or affirmed, refuses without lawful excuse to answer a question* or remains in the room in which such proceeding is being heard or taken, after the witnesses have been ordered to leave such room; is guilty of a misdemeanor, and is liable to imprisonment for six months or to a fine not exceeding TZS 500 (five hundred). [emphasis supplied]

It is true that as an accused, the appellant was not a compellable witness hence it cannot be said that he was called to give evidence. But once the appellant had opted to testify in the witness box he automatically subjected himself to all rules governing witnesses. For example, like other witnesses, he was required either to affirm or swear and he was subject to cross examination. In this case when the appellant refused to comply with the trial magistrate's order that he should answer the question, he was clearly contravening the provisions of subsection 1(b) of section 114. In *Joseph Odhengo s/o Ogongo v. R.* (1) the appellant was summarily convicted of Contempt of Court contrary to section 116(1)(b) of the Kenya Penal Code, which is in *pari materia* with section 114 1(b) of our Penal Code. In principle the Court of Appeal for Eastern Africa agreed with the trial judge that the appellant's refusal to answer questions put to him as a witness was contemptuous.

Perhaps one of the questions which may arise at this juncture is whether the appellant had lawful excuse not to answer the question, notwithstanding the court's order that he should do so. I am of the view that except where the witness is impaired by physical infirmity or otherwise, in every case once the Court Rules out that the witness should answer the question then he ought to comply, otherwise he will be liable for contempt. The trial court's order might be legally wrong; for example where the magistrate allows a question which has the effect of extracting some inadmissible evidence such as a previous conviction, as in this case. All the same, that order must be obeyed. Any contrary view will have the undesired effect of creating an *impasse* in the conduct of the trial. The cardinal aim of creating the offence of Contempt of Court is to arrest all conduct aimed, or reasonably feared to be aimed, at interfering with the proper administration of justice.

As pointed out by Lord Donovan in *AG v. Butterworth* (2) that:

> The question to be decided ... in all cases of alleged Contempt of Court, is whether the action complained of is calculated to interfere with the proper administration of justice. There is more than one way of so interfering.

No doubt that one of the essential conditions for proper administration of justice is that there should prevail discipline in court throughout any trial. This condition will definitely be undermined if any party in the trial was to be allowed with impunity to defy an order of the court on the ground that the said order is illegal or otherwise improper. I don't think that the legislature meant to tolerate such condition when it impliedly exempted a witness, under section 114(1)(b), from answering a question by giving lawful excuse. Any statutory provision which directly or indirectly purports to strip off the courts' inherent power of maintaining law and order in the course of a trial must be viewed with circumspection.

In his second ground of appeal, the learned defence counsel submitted that the trial magistrate ought to have framed a charge which should have contained the gist of the purported contemptuous conduct. The

learned counsel is of the opinion that the trial magistrate failed to do so hence there resulted a failure of justice. Again the learned Senior State Attorney found this argument irresistible. With respect, I am again unfortunate in finding myself holding a different view. I admit that section 114(2) under which courts are allowed to take cognizance of certain contemptuous conduct and convict a person summarily has seen repeatedly interpreted by this court, and courts above, as requiring the magistrate to frame a charge before a summary conviction is entered. Thus when dealing with a similar provision in the Penal Code of Kenya in *Odhengo s/o Ogongo v. R* (1) the Court of Appeal for Eastern Africa said:

> The observation which we wish to make on this is that, when a court takes cognizance of an offence under the provision of section 116(2), it is in fact assuming and exercising a jurisdiction to deal summarily with the offence and that in every such case, it is essential that the court should frame and record the substance of a charge, call upon the person accused to show cause why he should not be convicted on that charge, and give him a fair opportunity to reply.

I am of the opinion that this requirement is sufficiently complied with where a magistrate adopts any procedure which has the practical effect of notifying the accused the gist of his offensive conduct and affording him an opportunity to reply. Unlike a formal criminal charge, there are no set rules which a magistrate is required to comply with in drafting such a charge under summary proceeding. In determining whether the provisions of subsection (2) of section 114 have been complied with, the question should be whether the court took the necessary steps in explaining to the accused the gist of his offensive conduct, the particular provision of the law which it contravenes and, lastly, give him an opportunity to make a reply. There is no magic formula for attaining these ends. Thus in *Ogongo's* case (1) the Court of Appeal was of the opinion that these ends have been adequately attained by the trial judge when he recorded:

A, charged with refusing without lawful excuse to answer a question contrary to section 116(b) Penal Code. Court takes cognizance of offence under section 116(2) and sentences A ...

Of course in that case, the Court of Appeal was also influenced by the fact that the trial court's record showed that appellant had been persistently warned by the court to answer questions but in vain. In the present case, before convicting the appellant the learned trial magistrate recorded:

Court: This accused witness has been repeatedly warned by the court to answer questions put to him by his co-accused but he has deliberately refused to answer. This is, in my view a disrespect to the court and as such the accused witness has committed the offence of Contempt of Court contrary to section 114(1)(b) of the Penal Code Chapter 16.

The accused witness is therefore asked to state his reasons as to why he should not be punished for Contempt of Court.

Accused witness states: I have refused to answer the questions put to me by the co-accused (number 3) because they are irrelevant to this instant case except that they are relevant to the previous case (Criminal Civil Number 30 of 1981) which has already been determined by this court on 26 June 1981. I repeat that I am not going to answer the accused's question in this cross-examination.

And after the appellant's reply, the learned trial magistrate summarily convicted the appellant. With respect, I am quite convinced that from the court record as quoted above the learned trial magistrate slavishly complied with the provisions of subsection (2) of section 114. The learned defence counsel's argument, which unfortunately was not challenged by the learned Senior State Attorney, is dismissed.

However, I totally agree with both learned counsel that the sentence of six months imprisonment imposed on the appellant is illegal. According to section 114(2) under which the summary conviction was entered, the maximum sentence which a court is empowered to impose is a fine of TZS. 400 (four hundred) or one month imprisonment in default. It is only where the accused has been convicted through normal indictment

that the court is empowered to impose a maximum sentence of six months or a fine not exceeding 500 (five hundred) TZS.

In conclusion, the appeal against conviction is dismissed. But on the ground of illegality, the appeal against sentence is allowed. Hence the sentence of six months imprisonment is set aside and in substitute the appellant is sentenced to imprisonment for one month. This alteration of sentence is of no beneficial value to the appellant as he has already completed serving the said illegal sentence. It is, however, important for record purposes.

MWANAHAWA HEMEDI v. RASHIDI KULOMBA

IN THE HIGH COURT OF TANZANIA

AT MTWARA

(Kyando, J.)

(PC) MATRIMONIAL CIVIL APPEAL No. 2 OF 1983

(From the decision of the District Court of Newala at Newala in Civil Appeal No. 9 of 1982 Original Chilangala Civil Case No. 36 of 1981)

Family Law – Divorce – Grounds for the court to grant divorce – Whether willful neglect is a sufficient ground for granting divorce.

Family Law – Petition for divorce – Attendance before the Marriage Conciliation Board before petitioning for divorce – Party failing or refusing to attend before the Board – Effect thereof – Section 101 of the Law of Marriage Act 1971.

The appellant had petitioned the Primary Court for a Decree of Divorce due to conflicts in her marriage with the respondent. The Primary Court unanimously granted the petition and dissolved the marriage. The respondent successfully appealed to the District Court. The appellant appealed further to the High Court.

Held: (i) According to section 101 of the Law of Marriage Act 1971, no person shall petition for divorce unless he/she has first referred the matrimonial dispute to the Marriage Conciliation Board and the Board has certified that it has failed to reconcile the parties.

(ii) Section 101(c) of the Law of Marriage Act 1971 provides that a party cannot be compelled to attend before a Marriage Conciliation Board but the effect of refusal or failure to attend is to allow the other party to proceed to petition for divorce without the Board's certificate.

(iii) Section 107(1) of the Law of Marriage Act 1971 requires the court, in determining whether or not a marriage is irreparably broken down, to have regard to all relevant factors regarding the conduct and circumstances of the parties.

(iv) To establish that a marriage is irreparably broken down, the court may accept evidence to show any of the factors mentioned under section 107(2) of the Law of Marriage Act 1971, which mentions wilful neglect as one of the factors.

(v) There was wilful neglect on the part of the respondent.

Appeal allowed

JUDGMENT

(Dated 01 October 1987)

KYANDO, J.: This is a second appeal. On 30 September 1987, I allowed it but reserved my reasons for doing so. I now proceed to give them.

The appellant, Mwanahawa Mohemedi, had petitioned the Primary Court of Chilangala, Newala District, for a decree of divorce. In a unanimous decision the Primary Court decided in her favour and dissolved her marriage to the respondent, Rashidi Kulomba. The respondent was aggrieved and he appealed to the District Court. The District Court (S.M. Ngwawasya, DM) allowed the appeal and set aside the decision of the Primary Court. The appellant then appealed to this court.

Briefly, the parties were married in 1974. The appellant stated in her evidence that they lived happily thereafter until in 1977 when conflicts started to afflict their marriage. Those conflicts were narrated by the appellant to the Primary Court as follows:

Mdaiwa alilima shamba, akasema ni letu wote mimi na mke mwenzangu. Wakati wa mavuno aliuza na fedha akanunua kanga pande 9. Mimi akanipa pande 2 na mwenzangu akampa pande 7.

Nilipomuuliza sababu ya kufanya hivyo hakunipa jibu. Mwaka 1978 mdaiwa alilima shamba na kumpa mwenzangu tu, mimi aliniacha bila shamba, ilibidi nijitegemee mwenyewe kulima hadi kuvuna bila kumuona mdaiwa shambani kwangu. Siku moja mdaiwa alifika nyumbani nilimokuwa nalala akachukua kitanda akakikatakata na kunipiga akidai kuwa mimi ninatembea na wanaume ovyo.

Mwaka 1979 mdaiwa alilima tena shamba kwa mke mwenzangu bila mimi kunisaidia ama kunijali. Mke mwenzangu aliuguliwa na mtoto wake akalazwa hospitali. Alikaa huko muda mrefu sana hadi mtoto akapata nafuu. Aliporudi kulikuwa kilimo cha soya naye aliambiwa akapumzike. Akaenda kwao. Mimi na mume huyu tukalima soya na mahindi tukapata gunia 9 za soya na mahindi kiasi, mdaiwa alienda kumchukua mke mwenzangu na kumkabidhi mahindi yale bila kunishauri. Nilipomuuliza alisema hawezi kulazimishwa maana sikutoka na kitu kwetu. Baada ya kuuza soya alininunulia vitu vichache tu, nilipomuuliza akasema nisimpangie. Mwaka 1981 alisema nataka kulima shamba lake peke yake anakataa ugomvi. Wakati wa kukata mtama alikata wake na wa mke mwenzangu, nilipomuuliza kuhusu wangu akaniambia hujui tu kwamba sikupendi? Mimi nilipika mkumi watu wanisaidie kukata mtama, mdaiwa aliwakataza watu wasinisaidie. Nilipomuuliza akasema ni kwa kuwa ni mwezi wa Ramadhani, ungekuwa mfungo Mosi ungepata talaka yako. Nilikwenda kwa Balozi akaitwa akakataa. Nikaenda Bodi ya Ndoa, nako alikataa kufika kiasi cha mara tatu, nikapata barua kwenda mahakamani, ambako tulipangiwa kusuluhishwa nyumbani. Wazee walisema mashauri yatazungumzwa tarehe 8 Septemba 1981. Siku hiyo ya tarehe 8 Septemba 1981 mdaiwa aliondoka akaenda

safari zake. Wazee walisubiri hadi kushindwa wakarudi majumbani kwao. Baada ya siku chache nikaenda kusalimu wazazi huko Mtama. Niliporudi nikakuta gunia mbili za Mtama hazipo, viazi vikuu shambani hakuna. Nilipomuuliza mdaiwa alisema ameuza.

In his defence to the above allegations by the appellant the respondent merely told the Primary Court as follows:

Mimi nafahamu kuwa mdai anataka talaka mimi nimemkubalia. Sina zaidi.

Mshauri Na.1: Matatizo yetu yamesuluhishwa zaidi ya mara tano.

Mshauri Na.2: Mdai ana tabia ambayo hadi sasa mimi nimeshindwa kwa kweli madai yake yana msingi. Nakubaliana naye apate talaka.

On the basis of the above, the Primary Court proceeded to decide the matter in favour, as shown already, of the appellant. I might add that she (the appellant) had produced a letter from the Marriage Conciliatory Board which stated that the board had failed to reconcile the parties because the respondent would not attend before it.

In allowing the respondent's appeal to the District Court, the learned District Magistrate observed, *inter alia*, that the trial court, in granting divorce, had argued (*sic*) that because the appellant had refused to attend a Conciliatory Board, then this is clear evidence that the marriage has broken down. On perusing the record there is no where to the effect that the appellant was served with notices to attend the board. If a person refuses to attend a board, the procedure is that the Chairman may apply for a court summons to compel him to attend the board. As the case stands there is no where showing that the Chairman had applied for the court's assistance.

The learned District Magistrate went on to state:

> Also the only evidence that the marriage has irreparably broken down is as listed under section 107(1)(2)(3) of Act Number 5 of 1971. With due respect, this is not one of them.

The District Magistrate finally held that the points raised by the respondent (now appellant) were not "so strong to compel the court to grant divorce. These are minor quarrels which could be reconciled by the elders or their Marriage Conciliatory Board".

In admitting appellant's appeal to hearing my learned brother, Msumi, J, minuted:

> Admit.
>
> District Court's decision at variance with the evidence on record.

With very deep respect, this is so. The learned District Magistrate mistakenly and unjustifiably assumed that the Primary Court granted the petition only on the ground that the respondent had failed to attend Conciliatory Board meetings. The Primary Court, on the contrary, went behind the refusal of the respondent to attend the Conciliatory Board Meetings and analysed and considered the evidence constituting the appellant's complaints which she wanted the Conciliatory Board and the court to consider and resolve. The learned District Magistrate therefore misdirected himself in considering the case as decided by the Primary Court in the manner he considered it. Besides what has been just stated above, the learned District Magistrate seriously misdirected himself on the two points of law he considered in his judgment, i.e. that in relation to the procedure for procuring the attendance of a party to a matrimonial dispute before a Conciliatory Board, and that on the grounds upon which a court can dissolve a marriage. As regards the first point the learned District Magistrate no doubt had in mind the provisions which are in section 104 of the Law of Marriage Act 1971. The relevant parts of section104 state:

> 104(1) A board to which a matrimonial dispute or matter has been referred shall require the attendance of the parties and shall give each of them an opportunity of being heard and *may hear such other persons* and make such inquiries as it may think fit ... [emphasis supplied]
>
> (2) Where a board is of the opinion that it is necessary for it to require the attendance of any person before it, may by Notice in Writing

require such person to attend before the Board on the date and at the time and place specified in such notice.

(3) Where a person on whom a notice under subsection (2) is served fails to comply with such notice, the board may apply to a Primary Court or District Court for a summons to be issued to such person to appear before the board on the date and at the time and place specified in such summons.

(4) Every summons issued under subsection (3) shall be in the same form and shall have the same effect as a summons issued by a court requiring the attendance of a witness in any suit, and any non-compliance with such summons shall constitute a Contempt of Court and be punishable accordingly.

In construing these provisions, reference has to be had to the provisions of section 101(c) of the Law of Marriage Act 1971, also section 101(c) provides:

No person shall petition for divorce unless her or she has first referred the matrimonial difficulty to a board and the board has certified that it has failed to reconcile the parties:

Provided that this requirement shall not apply in any case:

(a) ...

(b) ...

(c) Where the respondent has been required to appear before the board and has willfully failed to attend; or

Under section 101(c), therefore, a party can decide not to attend before a Marriage Conciliatory Board and the consequences will be not to compel his attendance by a summons, but to allow the other party to proceed to petition for divorce without referring the matrimonial difficulty to a board. This means then that the procedures for summonses do not apply to parties themselves to matrimonial disputes or matters; they apply to other persons whom a board may deem fit to require their attendance. The situation is analogous to an ordinary civil suit:

if a party to a suit fails to appear after being duly notified, the suit proceeds without hearing him; if a witness fails to attend court, however, after being summoned, he can be liable to penalties.

So in the instant case there was no legal requirement for the board to summon the respondent. He failed to attend before the Board and under section 101(c) of the Law of Marriage Act, 1971, the board gave the appellant a letter to take to the court. This was a very proper procedure.

Turning to the second point, it is not clear what the learned District Magistrate meant when he stated in his judgment that the only evidence that a marriage has irreparably broken down is as listed in section 107(1), (2) and (3) of the Law of Marriage Act Number 5 of 1971. This is because section 7(1) contains general provisions. It states:

107(1) In deciding whether or not a marriage has broken down, the court *shall have regard to all relevant evidence regarding the conduct and circumstances* of the parties... [emphasis supplied]

These provisions do not specify any particular kind of evidence to establish that a marriage has broken down. They empower, in fact compel, a court to have regard to all relevant evidence regarding the conduct and circumstances of the parties, and in the instant case the appellant was complaining about the conduct of the respondent towards her.

Even if specifics were required, section107(2) provides:

107(2) Without prejudice to the generality of sub-section (1), the court may accept anyone or more of the following matters as evidence that a marriage has broken down but proof of any such matter shall not entitle a party as a right to a decree:

(a) ...

(b) ...

(c) ...

(d) Wilful neglect on the party of the respondent.

(e) ...

The appellant's complaints fell within the ambit of section 107(2)(d) of the Law of Marriage Act. As noted above, the learned District Magistrate was blinded from considering these by the assumption, which he made, that the Primary Court granted the Decree of Divorce solely on the ground that the respondent had failed to attend before the Conciliation Board. With respect, he erred. There was more than this on record to justify the Primary Court's decision. If he (the learned District Magistrate) was not in a hurry to write a brief and cursory judgment he would have found time to see the overwhelming evidence which the Primary Court considered in reaching its decision. I hold that the Primary Court was justified in dissolving the marriage in this case. I restore therefore that decision and set aside that of the District Court.

Before me, the respondent pretended to be still in love with his wife. He revealed that she married another man after she was granted the decree of divorce by the Primary Court. She later divorced that other man too and is now with yet a different man. In the Primary Court, he (the respondent) agreed that his marriage with the appellant was ridden with conflicts and that they should be divorced. I fail to understand him now therefore when he says he would like her back. The situation is almost impossible now, with the marriage she has contracted.

It is for the above reasons that I allowed appellant's appeal in this matter.

JUMA RAHISI NANYANJE *v.* SHEKHE FARISI

HIGH COURT OF TANZANIA
AT MTWARA
(Kyando, J.)

(PC) CIVIL APPEAL No. 24 OF 1985

(Appeal from the judgment of Newala District Court in DC Civil Appeal No. 21 of 1985)

Civil Practice and Procedure – Jurisdiction – Pecuniary jurisdiction of Primary Court – Whether a Primary Court may entertain a suit for recovery of a debt arising out of contract between natural persons exceeding the value of TZS. 10 000 000 – section 18(1)(a)(iii) of the Magistrates Courts Act 1984.

Family Law – Property – Property owned jointly between husband and wife – Death of one spouse – Property devolves on the survivor.

Contract of Sale – Jointly owned property between spouses – Death of one spouse – Whether the survivor upon whom the property devolves may dispose of such property.

Farisi Mbwana and his wife jointly owned a house. After the death of the wife the husband sold the house to the appellant for TZS. 15 000 without informing his five children. One of the children successfully filed a suit in a Primary Court to recover the house on the grounds that their father could not validly sell the house which he jointly owned with their mother. An appeal by the appellant to the District Court challenging, among others, the jurisdiction of the Primary Court was not successful. A further appeal was made to the High Court.

Held: (i) The District Court Magistrate erred in holding that the Primary Court had pecuniary jurisdiction to entertain this matter by virtue of the provisions of section 18(1)(a)(ii) of the Magistrates Courts Act 1984;

(ii) Since Farisi Mbwana and his late wife, the mother of the respondent, were joint owners of the house during her lifetime then, upon her death, and in the absence

of evidence that she had bequeathed her share in it to some other person, property in the house devolved upon the husband;

(iii) Since upon the death of the wife property in the house devolved upon the husband, he could deal with it as he wanted and, therefore, he could dispose of it by sale;

(iv) The sale of the house by Farisi Mbwana to the appellant was valid.

Appeal allowed

Statutory provision referred to:

1. Magistrates' Courts Act 1984, sections 18(1)(a)(ii) and (iii)

JUDGMENT

(Dated 03 October 1987)

KYANDO, J.: This is a second appeal. The respondent Shekhe Farisi Mbwana had instituted a suit in the Urban Primary Court at Newala seeking to redeem a house which his father, Farisi Mbwana, had sold to the appellant, Juma Rahisi Nanyanje. He won in the Primary Court. The appellant was dissatisfied. He appealed to the District Court – against the decision of the Primary Court. The District Court upheld the decision of the Primary Court and dismissed appellant's appeal. Aggrieved by the decision of the District Court also, he is now appealing to this court.

Here and in the District court the appellant has been represented by Mr Kumwembe, advocate. The respondent has been appearing in person.

Briefly the respondent's father sold his house at Newala to the appellant, in 1983. the price at which the house was sold was TZS. 15 000. The house had belonged to Farisi Mbwana jointly with his wife, before the latter died in 1976. They, Farisi Mbwana and his late wife, were blessed with five children, the respondent herein being one of them. Farisi Mbwana sold the house to the appellant in

secrecy, without informing or consulting his children. In fact the children were not there when he sold the house. They had gone on safari. They came to know about the fact that the house had been sold alot later, when their father informed them that they were now tenants in the house and were to pay rent to the appellant as he had sold it to him. The respondent said he was surprised to hear this. He therefore filed a suit in the Primary Court to redeem the house. He told the Primary Court as follows:

Mimi nadai kurudishiwa nyumba iliyouzwa hapa Newala Mjini kwa huyu mdaiwa, kwa vile baba amemuuzia mdaiwa huyu bila ya halali yoyote, na nyumba hiyo ilijengwa kutokana na fedha za ushirika na ndoa baina ya baba na mama, na huyu mama hivi sasa ni marehemu, na baba alipouza nyumba hiyo hakutupa taarifa yoyote kuwa anauza nyumba hiyo na hata hisa ya huyo marehemu mama hakuwahi kutugawia, hivyo kuwa vile mimi sina mahala popote kwa kuishi, nadai mdaiwa arudishe nyumba hiyo katika mikono yetu nasi tayari kumrudishia mdaiwa fedha yote aliyonunulia myumba hiyo toka kwa baba maana baba ameuza kwa sisi bila ya kutufahamisha sisi watoto wake. Na sisi watoto tupo jumla watano na tunaishi katika nyumba hiyo hadi hivi sasa kwa vile hatuna sehemu ingine ya kuishi.

XXD by first Assessor

Wakati baba anauza nyumba hiyo mimi nilikuwa safarini na hakunieleza niliporidi mpaka baba akaanza kujiandaa kuhama hapa Newala na kwenda kuishi Mayao, na akasema hivi sasa mtamlipa pango huyu mdaiwa, mimi nikashangaa kwa vipi? Akasema hii nyumba niliuza, ndipo mimi nikatambua kuwa hii nyumba kumbe imeuzwa na kwamba imeuzwa TZS. 15 000.

Farisi Mbwana himself gave evidence for the respondent in the Primary Court. He confirmed that he had sold the house without consulting his children and it is clear from his evidence that he wants to support respondent's efforts to redeem it now.

As already stated, the Primary Court unanimously found for the respondent. It ordered the appellant to return the house to the respondent

and that he in turn be refunded his TZS. 15 000. The appellant appealed to the District Court, as again already shown. There he lost again. In his appeal to this court he has set out three grounds of appeal in his Memorandum of Appeal which for convenience I produce below:

1. The learned District Magistrate misdirected himself on the correct interpretation of sections 18(1)(a)(ii) of the Magistrate's Court Act 1984, and wherefore erred in holding as he did that the Primary Court from which the original appeal had originated, had pecuniary jurisdiction to entertain the suit.

2. The learned District Magistrate erred in holding that the sale of the house between Farisi Mbwana and the appellant was not a valid contract without advancing any reasons to support such a holding.

3. The learned District Magistrate misdirected himself on the meaning and use of the word "alimony" within the context of the instant case.

The first ground arises from the decision of the District Magistrate on the following ground in the appeal to the District Court:

(ii) That the trial court had no pecuniary jurisdiction to entertain and hear the suit as the value of the subject matter of the suit (that is the disputed house) exceeded the sum of TZS. 10 000

In making this a ground of appeal the appellant had relied on sections 18(1)(a)(iii) of the Magistrate's Court Act 1984, which provides:

18(1) A Primary Court shall have and exercise jurisdiction

(a) in all proceedings of civil nature,

(iii) for the recovery of civil debts arising out of contract, if the value of the suit does not exceed TZS. 10 000 (ten thousand). [emphasis supplied]

In his decision on this ground the District Magistrate held that sections 18(1)(a)(iii) of the Magistrates Courts Act was not the one applicable to the present case. He held that sections 18(1)(a)(ii) was the one applicable. Section 18(1)(a)(ii) provides as follows:

18(1) A Primary Court shall have and exercise jurisdiction :

(a) in all proceedings of civil nature,

(ii) for the recovery of civil debts, rent or interests due to the Republic, any District, City, Municipal or Town Council or Township Authority under any judgment, written law (unless jurisdiction therein is expressly conferred on a court for courts other than Primary Courts) right of occupancy, lease, sub-lease or contract, if the value of the subject matter of the suit does not exceed TZS. 20 000(twenty thousand) ...

The learned District Magistrate reasoned thus in deciding on the ground just referred to herein above:

> Section 18(1)(a)(ii) MCA'84 relates to recovery of civil debts, and which includes the right of occupancy to a subject matter which does not exceed the value of TZS. 20 000 The disputed sold house was sold for TZS. 15 000 The inferior court under the circumstances had pecuniary jurisdiction to entertain the suit.

With respect to the learned District Magistrate, in holding as he did nor the application of section 18(1)(a)(ii) of the Magistrates' Courts Act to this case he erred. Paragraph (ii) of section 18(1)(a) reproduced above relates to recovery of civil debts, rent or interest *due to the Republic or District, City, Municipal, Town Council or Township Authorities* under e.g. a right of occupancy, lease, contract etc. if that debt, rent or interest does not exceed TZS. 20 000 in value. The respondent in this case is not a Republic or District, City, Municipal Council etc. authority to come within the preview of the provisions of section 18(1)(a)(ii) of the Magistrates Courts Act. The District Magistrate therefore, as already held, erred in holding that the Primary Court had pecuniary jurisdiction to entertain this matter by virtue of these provisions of the law and Mr Kumwembe for the appellant is fully justified in complaining about his decision on the ground of jurisdiction.

Ground three in the Memorandum of Appeal to this court arises from the following paragraph of the judgment of the District Magistrate:

> The evidence on record is that the respondent is among the born sons of Farisi Mbwana. Mbwana was married to their mother and the spouses succeeded to get five children in total. That during their matrimonial life they chanced to build in community a house which is now a subject matter in this appeal. The allegation by Shekhe that the house was found *(sic)* by both of his parents, and his father has been evidently amalgamated with him. Shekhe had further testified at the inferior court, and which has not been denied by his father that the house was sold in-camera *(sic)*. That his agnates and himself were not informed of the purported sell *(sic)*. *Inter alia* of these it was sold during his absence and his agnates. He and his agnates claim to redeem it as it was found jointly and thus they had alimony in it. [Emphasis supplied]

Here again I agree with Mr Kumwembe that the use of the word alimony in the context of this case or as it appears in the above paragraph (the word appears again in the last paragraph of the judgment) was misplaced, such as the use of such other words as "amalgamated", "in camera" and "*inter alia*" in this paragraph. I think the problem here is one of language, i.e. lack of sufficient knowledge of the English language on the part of the learned District Magistrate. For his benefit the word "alimony" means allowance paid by a man to his wife, or former wife, by a court order e.g. after legal separation or divorce. They way it has been used in his judgement in this case renders the paragraphs in which it appears incomprehensible.

Finally, I turn to ground two in the appellant's Memorandum of Appeal to this court. This, I think, is the crucial ground. The learned District Magistrate stated the issue on this grounds as follows:

> The *ratio decidendi (sic)* in this appeal is to whether Farisi Mbwana had the right to dispose the house in such a way and whether the purported sell (*sic*) was valid.

Both courts below held that the sale was invalid. In so holding the learned District Magistrate observed:

> It is not evidently rebutted by Mbwana in this case, I would rather refer him a seller, that he was married to the respondent's mother, who is now a deceased. The seller does not dispute the fact that he jointly found *(sic)* the house in dispute with the respondent's mother during their young period *(sic)*. It is not argued that during their marriage they were blessed children, including the respondent. So since it is conceded the house he obtained during the subsistence of a marriage there is a rebuttable presumption that their beneficial interests therein were equal. The respondent together with his agnates are claiming of alimony what their deceased mother had shared with his father. Indeed I accede with their contention and thus Farisi had no right at all to dispose the house in such a way without contention of his children. What Farisi did she sold the house in camera *(sic)* the sale *(sic)* which I declare it to be null and void. The respondent therefore has got the right to redeem the house on the benefit of other agnates.

I have already explained the correct meaning of the word "alimony." Here certainly respondent's mother's interest in the house during her lifetime was not 'alimony" as she had not been divorced. Apart from this, I find it difficult to fathom the learned District Magistrate's reasoning and conclusion in the paragraph I have just reproduced. If, as is undisputed, Farisi Mbwana and his late wife, the mother of the respondent, were joint owners of the house during her lifetime, upon her death who inherited her interest in that house? Naturally her husband – the joint owner, in the absence of evidence that she had bequeathed her share in it (the house) to some other person. Now if the house became the property of her husband Farisi Mbwana following her death, was he not entitled to deal with it in any manner he deemed fit? Was he not entitled to dispose of it by way of e.g. sale, as he did in this case? Quite clearly he was. No evidence was led or accused showing how the children of the marriage acquired interest in the house to the exclusion of or during the lifetime of Farisi Mbwana. There is no evidence that their late mother bequeathed her share in the house to whom – by way of e.g. a will. The respondent's claim is based solely on the ground that their mother had a share in the house. With respect that share has now devolved upon their father, Farisi Mbwana, because he is still alive. When he sold the house he had full and complete rights to do so. If he was wrong in the view of

the respondent and the other children, that is a matter between them and their father, it is not one to affect the interests of the applicant in the house after he purchased it.

There was no allegation of fraud practiced on Farisi Mbwana by the appellant when the former sold the house to him, i.e. the appellant. On the contrary, the evidence shows that it is Farisi Mbwana himself who went to the appellant and proposed to sell the house. There was no allegation of coercion against the appellant either in this transaction. Nor has it ever been contended that Farisi Mbwana was of unsound mind when he sold the house. How then can the sale have been null and void? With deep respect to the two Lower Courts, the sale of the house to the appellant was perfectly valid. As I have said above if Farisi Mbwana's children, including the respondent, are not happy about it they should blame their father. They should not seek to defeat the interests of another person who innocently purchased the house. They should perhaps claim a share in a TZS. 15 000 he (their father) got for the house.

For the above reasons, I hold that the sale of the house by Farisi Mbwana to the appellant Juma Rahisi Nanyanje was valid and the two courts below were wrong in holding that it was not. Their decisions are hereby set aside. The appeal succeeds with costs, here and in the two courts below. Order accordingly.

MLIMANI FARMERS LIMITED *v.* TANZANIA BREWERIES LIMITED

HIGH COURT OF TANZANIA AT ARUSHA

(Mroso, J.)

CIVIL CASE No. 16 OF 1988

Arbitration – Arbitrator's Award – Amount awarded by arbitrator negotiated downwards by decree holder's advocates – Whether proper.

Legal Profession – Holding Out – Advocate holding out before judgment debtor as still representing decree holder – Whether judgment debtor entitled to rely on such holding out by the advocate.

Legal Profession – Holding Out – Advocate holding out before judgment debtor as still representing decree holder and negotiates downwards the decretal amount in full settlement of the award and receives payment from judgment debtor on behalf of decree holder – Whether judgment debtor entitled to rely on such holding out by the advocate.

The plaintiff, whose lawyers were Ngalo and Co. Advocates, was involved in arbitration proceedings with the defendant. The arbitration ended in the plaintiff's favour. More than a year after the conclusion of the arbitral proceedings the plaintiff filed an application in the High Court for execution of the Arbitral Award. The defendant pointed out that they had already settled the award by paying Ngalo and Co. Advocates, whom they were made to understand, through their letters, that they were acting for the decree holders. After the close of the arbitration proceedings Ngalo and Co. Advocates, continued to hold themselves out as advocates for the decree holder and, communicating with the judgment debtor through letters, negotiated downwards the decretal amount due to the decree holder and received the negotiated sum from the judgment debtor. The court considered the propriety of the actions of Ngalo and Co. Advocates.

Held: (i) Considering the background of Ngalo and Co. Advocates' role in the decree holder's case against the judgment debtor and the advocates' posture in the letters

that they were still acting for the decree holder, the judgment debtor would be entitled to assume that Ngalo and Co. Advocates, had full authority to act for their clients and to accept payment on their behalf notwithstanding the provisions of Order 21, rule 1 of the Civil Procedure Code 1966;

(ii) There is nothing in law against a decree holder agreeing with the judgment debtor to forego part or the whole of an amount due under a decree.

Application dismissed

Mr Mahatane, for the Applicant

Ms. Bigeye, of the TLC, for the Respondents

RULING

(Dated 12 May 1998)

MROSO, J.: Mlimani Farmers Ltd filed in this Court Civil Case Number 16 of 1988 against The Tanzania Breweries Ltd. The suit was based on alleged breach of contract by the Tanzania Breweries Ltd resulting in loss to the plaintiff in the case. It turned out however that the parties had agreed to submit any dispute between themselves, arising from the contract, to arbitration first. The suit was therefore, stayed pending arbitration.

Arbitration proceedings took long to be finalized. The arbitrators' award which related also to three other claimants against Tanzania Breweries Ltd. was handed down on 6 December 1996. Mlimani Farmers Ltd. was awarded TZS. 6 640 000 out of a total claim of TZS. 11 886 940 plus 10% interest from the date of filing the suit in court till full payment and costs of the proceedings before the arbitrator. The award was filed in the court record presumably as a decree.

On or about 18 February 1998 Mlimani Farmers Ltd. as decree holders filed in this court an application for execution, claiming that it is entitled to TZS. 18 689 11 40 to be paid out of the judgment debtors' account with Stanbic Bank Tanzania Ltd, Arusha Branch.

Since the award was more than a year old, notice had to be served on the judgment debtor to show cause why execution should not issue.

Miss Bigeye of the Tanzania Legal Corporation for the judgment debtor filed an affidavit in court to the effect that subsequent to the award the firm of Ngalo and Company, Advocates, who had been representing the decree holder from the time the suit was filed in court, during arbitration proceedings until after the award was handed down by the arbitrator reached a settlement with the judgment debtor that a payment of TZS. 16 886 000 would settle all claims by Mlimani Farmers Ltd as well as the other three claimants. Following that agreement it is deposed that the judgment debtor issued to Ngalo and Co. Cheque Number 209825 of 26 August 1977 for TZS. 16 886 000 and that receipt of the cheque was duly acknowledged. It is further averred that the judgment debtor's liability to the decree holders having been satisfied there could be no cause now for execution as applied by Mlimani Farmers.

Mr Mahatane, learned advocate for Mlimani Farmers, has strenuously fought the judgment debtors' contention that the decree in favour of his client has been satisfied. He submitted first, that Ngalo and Co. were not the advocates for the decree holder subsequent to the arbitrator's award. He argued that Ngalo and Co. were advocates for the decree holder up to the award stage and that execution proceedings were separate and distinct, which needed fresh instructions from the decree holders. Secondly, according to Mr Mahatane, there was the question whether the firm of Ngalo and Co. had the right to receive payment of the decretal amount on behalf of the decree holders in view of the provisions of Order 21, rule 1 of the Civil Procedure Code 1966, and further, whether the judgment debtor had a right to assume that Ngalo and Co could receive payment on behalf of the decree holders. The judgment debtor must have paid to Ngalo and Co. at its own risk. At any rate the total amount of payment which Ngalo and Co. agree to receive and actually received for all the decree holders was less than their entitlement under the arbitration

award and Mlimani Farmers Ltd has not, to-date, even received from Ngalo and Co. its share of the payment.

The court was referred to a letter dated 27 June 1997 which was written by Ngalo and Co. to the Principal Corporation Counsel, Arusha, in which it is admitted that if the 10% interest as per the arbitration award is added to the award for each claimant, the award "will be more than doubted". The letter further said:

> We have considered the spirit under which the arbitration proceedings were carried out and we are prepared to ask our clients to waive the interest element if, TBL will settle this matter within thirty days of today. Such settlement must include TZS. 1 800 000.00 as own costs and again we consider this to be a very modest figure considering the time these proceedings have taken. TBL should therefore issue one cheque payable to Ngalo and Company Advocates in the sum of TZS.14 286 000.

On 11 August 1997, Ngalo and Co. wrote to Tanzania Breweries Ltd. to say, *inter alia,* "... we wish to confirm on behalf of our clients that once TBL makes payment to us as per the advice of TLC, our clients will discharge TBL fully from any other claims whatsoever regarding this matter." Yet again, on 28 August 1997 Ngalo and Co. wrote to Tanzania Breweries Ltd acknowledging receipt of a cheque for TZS. 16 886 000 the letter said:

> On behalf of our clients... We wish to acknowledge receipt of cheque For TZS. 16 886 000 in full and final settlement of their claims.

I gather from all those letters that Ngalo and Co. held themselves up before the judgment debtor that they still represented the decree holders even after the award was handed down; that they were authorized by their clients to forego part of the award, that is the interest element, that they could receive payment in behalf of their clients and that a payment of TZS. 16 886 000 would settle the clients' claims fully and finally. Considering the background of Ngalo and Co.'s role in the decree holder's case against the judgment debtor and the advocate's posture in the letters that they were still acting for the decree holder the judgment debtor would be entitled to assume that Ngalo and Co.

had full authority to act for their clients and to accept payment on their behalf, notwithstanding the provisions of Order 21, rule 1 of the Civil Procedure Code. 1966. I do not, therefore, subscribe to Mr Mahatane's argument that the judgment debtor paid to Ngalo and Co. at its own risk in the circumstances. If Ngalo and Co. were not in fact acting with authority from the decree holder the latter will be entitled to take whatever action it may deem appropriate against the firm of advocates.

Mr Mahatane further argued that Ngalo and Co.'s letters to the Principal Corporation Counsel, TLC, and to Tanzania Breweries Ltd were not copied to the decree holders. In contract he tendered to court a letter of 18 December 1995 from Mlimani Farmers Ltd to Messrs Ngalo and Co., Advocates, which was also copied to the advocates for the Judgment debtor. The letter contained certain complaints against the advocates for example, there was a complaint that no one from Mlimani Farmers Ltd had been called to give evidence before the Arbitrator "which is strange and unethical". Mr Mahatane did not cite to me any legal obligation for Ngalo and Co. to reciprocate by also copying the letters he wrote to the Judgment debtor to his own clients. I think that the rest of the world is entitled to assume until the contrary is shown, that what an advocate says or does in connection with his client he has authority to say or do so.

As for the point that the amount to be paid to the decree holder as negotiated by Ngalo and Co. subsequent to the Arbitrator's award was less than the amount under the award because the interest element was discounted, there is nothing in law against a decree holder agreeing with the judgment debtor to forgo the whole or a part of an amount due under a decree. So, once it is held as I have done that Ngalo and Co. Advocates are assumed to have been acting with authority from the decree holder in entering into negotiations with the judgment debtor subsequent to the award it was legitimate for the judgment debtor to agree to pay the sum of TZS 16 886 000 to the advocates in full and final settlement of the claims which included those by the decree holder in this matter.

For the above reasons I am satisfied that the judgment debtor has shown sufficient cause why execution should not issue against it. The application for execution is dismissed with costs.

SYLVESTER K. MASINDE *v.* PIUS C. MSEKWA AND THE ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Nyalali, C.J., Kisanga and Mfalila, JJ.A.)

CIVIL APPEAL No. 57 OF 1997

(From the judgment and decree of the High Court of Tanzania at Mwanza, Mwaikasu, J, dated 22 June 1996, in Miscellaneous Cause No.17 of 1995)

Elections – Campaigns for election – Legality of election campaign – Election campaign at a function organized by a religious body or institution – Whether the campaign is lawful.

Parliament – Membership of Parliament – Tenure of office of Members of Parliament and the campaign period – Whether members and the Speaker of the National Assembly still hold their respective offices during the period of election campaigns.

Elections – Election campaigns – Legality of public and private campaigns – Campaigns conducted outside the scheduled programme – Whether the campaigns are lawful.

Elections – Election campaigns – Duration of election campaign period

Elections – Election Petition – Corrupt practices – Electoral corrupt practices – Incumbent candidate disclosing existence of a fund for construction of wells he established well before the election campaign period – Whether the disclosure was corruptly motivated.

This is an appeal against the judgment and decree of the High Court dismissing an election petition that sought to nullify the parliamentary election results for Ukerewe Constituency. It was common ground that during the campaign period, which ran from 30 August 1995 to 28 October 1995, the election campaigns for the contestants were organized and managed by and through their respective political parties. Meanwhile, during that same period there were celebrations held between the 4 and the 10 of September 1995 by the Catholic Church at various places in the constituency to mark the centenary of that Church in Ukerewe District. The first respondent attended the centenary celebrations at several places and he was introduced at these functions as a Member of Parliament and Speaker of the National Assembly and he was invited to speak, and he did speak. The appellant contended in court that the manner in which the first respondent was treated at those functions and the manner in which he utilized that opportunity amounted to an illegal campaign in that he was treated as an incumbent Member of Parliament and Speaker of the National Assembly, while he was not, and that he used religious occasions to ask for votes while no other candidate was given a similar opportunity. The appellant has also alleged, among other things, some further unlawful election campaigning and corrupt practices. In this appeal, he raised some ten grounds of appeal.

Held: (i) An election campaign that involves a religious body or religious institution in organizing it violates the fundamental principle and value of secularism and national unity which are among the principles and values upon which the state in Tanzania is founded and, therefore, such campaign is unlawful;

(ii) Where an election campaign involves the making of statements that exploit religious differences, the election results would be voided under the provisions of section 108(2)(a) of the Elections Act 1985;

(iii) Election campaigns should not contravene the provisions of section 51(1) of the Elections Act 1985 which require an election campaign to be organized by the candidate or the candidate's agent or the candidate's political party; if contravened, depending on the circumstances of the case, such contravention is capable of affecting the results of the election within the meaning of section 108(2) of the Act;

(iv) Under normal circumstances, a Member of Parliament holds office as such a member until Parliament is dissolved to allow for new General Elections to be held; it follows that during the election campaign period, defined under section 87 of the

Elections Act 1985, the country does not have any Members of Parliament whatsoever and the provisions of article 90(4) of the Constitution, which provide for recall of the dissolved Parliament in emergency, do not change that position;

(v) Once elected to be Speaker of the National Assembly, a person continues under normal circumstances to be the Speaker, not only throughout the life of Parliament but also until a new Parliament meets after General Elections;

(vi) In accordance with the spirit of the provisions of section 51 of the Elections Act 1985 it is prohibited to conduct an election campaign in public outside the programme notified to the Returning Officer;

(vii) Although the provisions of sub-section (1) of section 51 of the Elections Act 1985 concerning organizers of election campaigns apply to all election campaigns, whether conducted in public or in private, the provisions of sub-sections (2), (3) and (4) of that section concerning schedules of campaign programmes apply only to election campaigns in public; they do not apply to house to house campaigns;

(viii) The election campaign period for purposes of organizing election campaigns in accordance with section 51 of the Elections Act 1985, is that period determined by the Electoral Commission and terminating on the day preceding election day;

(ix) Disclosing the existence of a fund for construction of water wells, which was established by the first respondent long before the election period, is exempt from being treated as a corrupt practice by virtue of the provisions of section 97(4) of the Elections Act 1985;

(x) The rule in the precedents from decisions made in election petitions under the one-party state system, which would permit an adjustment of votes in favour of the losing candidate in deciding whether the number of voters prevented from voting would have made a difference in the election results, is no longer good law under the multi-party electoral system with more than two candidates sponsored by more than one political party do contest elections; the correct approach now would be to make a *pro-rata* apportionment of the estimated votes among the contesting candidates.

Appeal dismissed

Cases referred to:

(1) *Ngweshemi v. Attorney General* [1971] HCD n. 251

(2) *Bura v. Sarwatt* [1967] EA 234

Mr Bob Makani, for the Appellant

Proffessor Msanga, for the first Respondent

Mr S.M. Sengwaji, for the second Respondent

JUDGMENT

(Dated 12 May 1998)

NYALALI, C.J.: This is an appeal by one Sylvester K. Masinde, hereinafter known as the appellant, against the judgment and decree of the High Court at Mwanza where he had instituted an election petition seeking the nullification of Parliamentary election results for Ukerewe constituency. The respondents to this appeal are one Pius C. Msekwa and the Attorney-General, hereinafter known as the first respondent and second respondent respectively. Both held similar status in the High Court proceedings. The High Court, Mwaikasu, J., dismissed the petition with costs. The appellant was aggrieved by the decision, hence this appeal to this court

Mr Bob Makani, learned advocate who had represented the appellant in the High Court, represents the appellant before us, whereas Professor Msanga, learned advocate, and Mr S.M. Sengwaji, learned Principal State Attorney, represent the first respondent and second respondent respectively as was the position in the High Court proceedings.

The Memorandum of Appeal contains ten grounds of appeal as follows:

(1) That the Honourable Judge erred in fact and law in rejecting or not considering and evaluating the evidence of the appellant's polling agents, second respondent's witnesses and the tendered documents on the issues of under supply of ballot papers and notice on creation of new polling stations or change of polling stations and specimen ballot papers.

(2) That the Honourable Judge erred in fact and law in holding that it had not been proved that non-compliance with section section 479(b) and (c) of the Election Act 1985 as amended prevented from voting an ascertainable number of voters at the polling stations in question.

(3) That the Honourable Judge erred in law and fact in holding that it had not been proved that the irregularity of under supplying ballot papers to 15 polling stations without replenishment and to other polling stations which got replenishment prevented from voting an ascertainable number of registered voters. He further erred in fact when he held that even if the figures *(sic)* polling agents in the polling stations were taken and added to the votes of the appellant, the first respondent would still have won.

(4) That the Honourable Judge erred in fact and law in holding that it had not been proved that non-posting of "*mfano wa karatasi*"(ballot paper specimen) within the statutory period did result in some ascertainable number of voters not voting for the candidate of their choice.

(5) That the Honourable Judge erred in law and fact in holding that it was not proved that the first respondent campaigned at religious fora during the 100 years anniversary celebrations and the making of campaign statements at such fora was not prohibited under the Elections Act 198 nor under the instructions of the National Electoral Commission.

(6) That the Honourable Judge erred in law and fact in holding that the promise by the first respondent to assist in building a small chapel at Hamuyebe was not made with corrupt intention to induce voters to vote for him.

(7) That the Honourable Judge erred in law and fact in holding that the money contribution made towards Ukara wells is exempt as corruption under section 97(4) of the Elections Act.

(8) That the Honourable Judge erred in law and fact in dismissing the issue of illegal campaigns made by the First respondent at Murutunguru TTC without evaluating the evidence.

(9) That the Honourable Judge erred in law and fact in holding that road construction at Nansio during the campaign period was not executed with corrupt motive of influencing voters to vote for the first respondent.

(10) That the Honourable Judge erred in fact and law in failing to nullify the election results of Ukerewe Parliamentary constituency against the weight of the evidence.

According to the proceedings both in this court and trial High Court, there is no dispute but common ground between the parties that on the 29 October 1995, General Parliamentary and Presidential Elections took place in Ukerewe Constituency as they did in other constituencies in the rest of Tanzania. These were the first multi-party elections since the country transformed itself from a one-party state into a multi-party state in 1992. Six political parties contested the elections in Ukerewe constituency. Each of the contesting political parties sponsored one parliamentary candidate. The first respondent was sponsored by CCM, whereas the appellant was sponsored by CHADEMA. When the parliamentary election results were declared by the Returning Officer, the first respondent secured 18 606 votes, followed by the appellant who obtained 16 324 votes. The other four candidates followed far behind.

It is common ground also that polling day was the culmination of a period which had been declared to be a campaign period by the National Electoral Commission. The period commenced on 30 August 1995 and ended on the eve of polling day – that is – the 28 October 1995. Unlike under the one party system, when election campaigns were organized and managed by the established single political party, this time, under the multi-party system, the election campaigns were organized and managed by the contesting political parties.

Furthermore it is undisputed between the parties that as a result of the campaigns by the political parties and their candidates 50 451 persons registered themselves as voters in Ukerewe constituency exceeding by far the projected number of 40 000 potential voters

originally estimated by the National Electoral Commission. Similarly on polling day, 39 544 registered voters turned out and voted, representing 78.4% of all registered voters. This compared very favourably with the position in the last elections in 1990 under the one party system when 67.4% of the registered voters in Ukerewe constituency voted.

It is also common ground that during the period declared by the National Electoral Commission to be the campaign period, there were celebrations held between 4 September 1995 to 10 September 1995 by the Catholic Church at various places in Ukerewe constituency to mark the centenary of the Catholic Church in Ukerewe District. The first respondent attended the centenary functions at Hamuyebe, Nyamanga Parish, Murutunguru Parish and Kagunguli. At Hamuyebe, Nyamanga and Kagunguli he was introduced as a Member of Parliament and Speaker of the National Assembly and was invited to speak, which he did. None of these places were listed or scheduled in his election campaign programme.

It is common ground too, that during the same campaign period the first respondent visited and spoke at Murutunguru Teachers Training College about the subject of a book he had recently authored titled *Essays on the Transition to Multipartism in Tanzania.* This event was not part of his scheduled campaign programme. There is common ground also that at a campaign rally held at Bwisya in Ukara ward, the appellant was asked a question by one Misana Mwichagala (the thirteenth witness for the petitioner) as to what he had done for Ukara ward during his tenure as a Member of Parliament. In reply, the appellant spoke about his contribution to the development of Ukara Ward, including the establishment of a fund in 1993 to finance the digging of water wells and for which he had deposited money in a bank account, of which passbook he produced and displayed to the assembled crowd as evidence.

There is common ground again that since 1994 there had been a road construction project in Ukerewe, initiated by the first respondent as incumbent Member of Parliament, adopted by the Ukerewe District Council and financed by the Central Government.

Similarly, there is no dispute but common ground that initially 148 polling stations were envisaged but some were subsequently sub-divided and thus increased to 212 polling stations for the constituency. Specimen ballot papers were not posted at polling stations at least 8 days before polling day as required by section 47(1) of the elections Act, 1985. It is common ground also that 50 polling stations initially designated as registration centres located under trees were shifted to buildings but no notification of such change was given at least 8 days before polling day as required by section 47(1) of the Elections Act, 1985. The other matter which is common ground between the parties is that there were shortages of ballot papers at 11 polling stations and the shortage was made good by additional supplies some hours later. There was another shortage of ballot papers at 15 other polling stations but no additional supply of ballot papers was made.

We now turn to the matters that are in dispute between the parties, and which concern the grounds of appeal. It is the appellant's case both in this court and in the High Court that the manner in which the first respondent was treated at the centenary celebrations of the Catholic Church, and the manner in which he utilized that opportunity, amounted to an illegal campaign in that he was treated as an incumbent Member of Parliament and a Speaker of the National Assembly, when he was not; and in that he used the religious occasions to ask for votes when no other candidate was given a similar opportunity.

Moreover, it is the appellant's case that at Hamuyebe, the first respondent offered to build a chapel with the corrupt purpose of inducing the faithful to vote for him on polling day. It is part of the appellant's case that these illegal and corrupt campaigns affected the results because the religious functions were attended by very many people.

Furthermore, it is the appellant's contention that the talk given by the first respondent at Murutunguru Teachers Training College was an election campaign as it was favourable to CCM but was illegal because it was not in the first respondent's official campaign programme.

According to the appellant, this illegal campaign affected the results of the election in view of the large number of people who attended the talk.

It is also the appellant's contention that the road construction project in Nansio was speeded up by or on behalf of the first respondent during the election campaign period for the corrupt purpose of inducing the electorate to vote for the first respondent. According to the appellant this corrupt practice affected the results.

With regard to the election campaign rally at Bwisya it is the appellant's contention that the first respondent corruptly disclosed the existence of the fund for water wells and in furtherance of that corrupt purpose, displayed the bank passbook containing the account of the fund in order to induce the electorate to vote for him.

Moreover, it is the appellant's case that the failure to notify the electorate within the period prescribed by law about the change of location of 50 polling stations, and the failure to supply sufficient ballot papers at a number of polling stations, had the effect of depriving many registered voters of their right to vote. Finally, it is the appellant's contention that the failure to post specimen ballot papers early at polling stations had the effect of confusing many voters as to the identity of the candidate of their choice. According to the appellant, the totality of these non-compliances with the law affected the results of the election.

The case for the first respondent relating to the centenary celebrations consists of a denial of using the occasions for political purposes and an assertion to the effect that the only places where he was requested to speak was at Hamuyebe, Nyamanga and Kagunguli and that his speech at Nyamanga and Kagunguli was confined to congratulating and greeting his fellow Catholic believers for a well organized centenary celebration. At Hamuyebe he spoke only in response to a request by a Catholic Youth Organization and the Archbishop to have a chapel built at Hamuyebe hill to which he offered to cooperate with his fellow catholic believers of the area to have such a chapel built. It is the contention of the

first respondent that it was correct for the church leaders at the celebrations which he attended to treat him as an incumbent Member of Parliament and as the Speaker of the National Assembly as according to the law he held such positions until polling day.

Furthermore with regard to the election campaign in general, it is part of the case for the first respondent that in a multi-party political system, there are no restrictions as to venue and audience of an election campaign, including campaigning from house to house and door to door.

As to the talk at Murutunguru Teachers Training College, the contention of the first respondent is that he was invited by the Principal of the College to speak for educational purposes about the contents of his recently published book and that at no stage did he attempt to persuade his listeners to vote for him. As to the road construction project, the case for the first respondent is to the effect that no special effort was made to speed up the construction work during the election campaign period but to the contrary the construction work which had been interrupted by the rainy season early in the year, suffered from a shortage of funds and eventually ground to a halt towards the end of 1995. As to the election rally at Bwisya, it is the first respondent" case that the disclosure of the existence of the fund for construction of wells in Ukara ward was made in good faith while answering questions raised at the rally and not for corrupt motives. Finally it is the case for both the first respondent and the second respondent that the failure to notify the electorate about the change of venue for 50 polling stations and to post specimen ballot papers within the period prescribed by law could not have affected the results, firstly, because the conditions applied equally to all candidates, and secondly, because efforts were made by officials of the National Electoral Commission to disseminate information about the change of venue and to ensure that specimen ballot papers were posted at polling stations before polling commenced. Moreover all candidates fully utilized the election campaigns to make themselves known to the electorate before polling day. As to the supply of insufficient ballot papers to some polling stations, it is

the contention of both the first and second respondents that such failure could not have affected the results because conditions applied equally to all candidates and nobody complained about being unable to vote as a result of the shortage of ballot papers.

The first issue for consideration and decision in this case is very important not only to the parties in this case, but for the continued stability and peace of Tanzania. The issue is whether under the multi-party system recently adopted in this country, it is lawful to conduct a political election campaign at a religious function. We are of the considered opinion that the correct answer to this issue is to be found in the law relevant to election campaigns and the principles and values which underlie that law. The relevant law is to be found under Part V of the Elections Act, 1985, particularly section 51. Because of the gravity of the issue, we need to reproduce the entire section here:

> 51 (1) Where there is a contested election in a constituency the election campaign shall be organised by the candidate, the candidate's political party or by his agent.
>
> (2) The candidate, his agent or the candidate's political party, as the case may be, indicating the proposed programme for the public meetings of the candidate's campaign specifying the tie and places of those meetings.
>
> (3) A candidate or his agent or a political party acting with the approval or consent of the candidate may convene or address any public meeting in the constituency held pursuant to subsection (2), for the purpose of furthering the candidate's election or the programme of his political party.
>
> (4) A Returning Officer may call a meeting of all the candidates or their agents for the purposes of coordinating the campaign programme of the candidates.
>
> (5) Every Returning Officer shall cause a copy of the coordinated programme to be submitted to the District Commissioner and the police officer commanding the police within the constituency and such programme shall constitute a notice of the proposed meetings for the purposes of the Political Parties Act, 1992 and the Police Force Ordinance."

On a close examination of the provisions of section 51, the following matters are apparent. First, section 5 has to be read in conjunction with relevant provisions of the Political Parties Act 1992 and the Police Force Ordinance Chapter 322; [see sub-section (5)]. Second, every election campaign must be organized either by the candidate or the candidate's political party or by his agent. [see sub-section (1)]. Third, a schedule of the election campaign programme, specifying time and places must be submitted to the Returning Officer by the organizers. The question that arises at this juncture is whether an election campaign, which is held at a religious function, can be construed as being organized by a candidate or a candidate's agent or a candidate's political party as required by law. We think not.

Such an election campaign has in common sense to be construed as being organized either exclusively by the religious body or institution concerned or jointly by such religious body or institution on the one hand, and the candidate or his agent or political party on the other. Such an election campaign is therefore bound to be in contravention of the provisions of sub-section (1) of section 51 which requires an election campaign to be organized by the candidate or the candidate's agent or the candidate's political party. Such contravention, depending on the circumstances of a case, is capable of affecting the results of the election within the meaning of section 108(2)(b) of the Elections Act. Moreover, where such election campaign involves the making of statements which exploit religious differences, the election results would be voided under the provisions of sub-section (2)(a) of section 108.

There is another point which needs to be emphasized here. An election campaign which involves a religious body or religious institution in organizing it, is violative of the fundamental principle and value of secularism and national unity, which are among the principles and values upon which the Tanzanian state is founded, and therefore, such campaign is unlawful. That being the position, the forces of law and order, particularly the Police Force, would not only be justified

but duty bound to prevent such an election campaign from taking place on the ground of being prejudicial to the maintenance of public order under section 41 of the Police Force Ordinance.

Let us now see whether the first respondent conducted any election campaign at the centenary religious functions which he attended a Hamuyebe, Nyamanga Parish, Murutunguru Parish and Kagunguli Parish. The only relevant evidence even on the petitioner's side on the Hamuyebe events, is that of Christopher Mutesighwa Masini, the twentieth witness for the petitioner (hereinafter referred to as PW20). On the first respondent's side, the only relevant evidence is that of the first respondent himself and that of Rev. Ferdinand Mwalimu, the second witness for the respondents' side (hereinafter referred to as DW2). We have closely examined the testimony of these witnesses. It is common ground that the first respondent spoke at a small function at which a cross was erected at the top Hamuyebe hill. There was no loudspeaker at the hill. PW20 and the majority of the assemblage waited at the foot of the hill – at least 100 meters below. Bearing in mind the distance at which PW20 waited and the absence of a loudspeaker at the cross-erection ceremony, it is our view that PW20 cannot safely be relied upon as to what he claims to have heard the first respondent speak at that function. On the other hand the testimony of the first respondent is supported by DW2 in asserting to the effect that the first respondent spoke only in response to a request made by a Catholic Youth to have a small chapel built there and he offered to cooperate with fellow believers to fulfill that request.

Undoubtedly DW2 is a personal friend of the first respondent but in law the burden of proving the allegation is upon the petitioner. The first respondent has no obligation to disprove that allegation. The trial judge was therefore correct in finding this allegation not proved.

As to the events at Nyamanga Parish, the evidence given on the petitioner's side is that of Protas Clavery Dalo – the thirty ninth witness for the petitioner (hereinafter referred to as PW39). On the other side, evidence was given by the first respondent and DW2. PW39 told the trial High Court *inter alia:*

> ... When we got at our parish, the ceremony started with a Mass in Church. The church was full and some people stood outside. There were about 1000/2000 people. In the course of the Mass, the Archbishop preached. After that he told the faithful that accompanying was our Speaker and MP who wanted to say a few words to us. Thereafter the Honourable Msekwa was called to stand and was introduced by the Archbishop. When he greeted us, Hon. Msekwa began explaining to us a short history as to how the Catholic Church got established in Ukerewe District. After that he told us to remember him. Thereafter we continued with our Mass ceremony. By his statement that we should remember him, as it was an election period, in my view that was a prayer to vote for him. Such statement had no connection with our church ceremony...

The testimony of the first respondent and DW2 contradicts that of PW39 in material particulars in asserting that the first respondent spoke after the Mass had ended and not in the middle of the Mass ceremony. Furthermore DW2 testified that:

> According to the Catholic liturgical order, after reading the Gospel, then follows a preaching over such Bible reading by the one who conducts the Mass, but nobody else is allowed to make another speech soon after that ...

In the light of the testimony of DW2 regarding the liturgical order of the Mass ceremony, testimony which was not challenged under cross-examination, we are satisfied that PW39 was lying when he said that the first respondent was invited to speak immediately after the Archbishop had preached at the Mass. Consequently we find PW39 unreliable, and since the petitioner's allegations on this issue are denied by the other side, we are satisfied that the trial judge was correct in holding that the petitioner had failed to prove those allegations.

Next, we move to the events at Murutunguru Parish, the relevant evidence on this issue was given by Sebastian Magele Flela, the fortieth witness for the petitioner (hereinafter referred to as PW40) and by the first respondent. There is common ground that the events concerned the opening of a secondary school. PW40 testified, *inter alia*, that:

> ... After that the Archbishop introduced Hon. Msekwa, our M.P., Speaker and son, adding that we should not think that to be a campaign ...When Hon. Msekwa stood up to speak he told us that, through the Archbishop had said that was not a campaigner yet we believed that he had already *(sic)* elected as our M.P. adding that for those who did not know him he was the one leading the prayer in the National Assembly. He further added that he was the one who has made possible the opening of Murutunguru Secondary School. In my view I took that as Hon. Msekwa's endeavours to have our votes...

The testimony of the first respondent is to the effect that he was neither invited to speak nor did he speak at the opening of Murutunguru Secondary School. We have closely examined the evidence on both sides and we find it difficult to accept that the first respondent talked about his election as a Member of Parliament inspite of the clear warning by the Archbishop against campaigning at that occasion. In the light of this kind of evidence, we agree with the view of the learned trial judge that the allegation in question was not proved to the standard required by law.

As to the events at Kagunguli Parish, the relevant evidence on the petitioner's side was given by the petitioner himself and by one Stephen Anselemi, the forty first witness for the petitioner (hereinafter referred to as PW41). The first respondent gave the only evidence relevant to the events at Kagunguli Parish. After closely examining the evidence on both sides, it is apparent to us that the testimony of the petitioner and PW41 is inconsistent in material particulars. According to PW41's recollection, after the first respondent had been introduced by the Archbishop, the first respondent stated:

> My fellow Christians we are today celebrating 100 years anniversary of the Catholic Church. However, it is good that we rejoice, this Church for the first time has an MP who is also the Speaker. I have made my contribution in the Church. I have contributed TZS. 100 000 for the rehabilitation of the Church. I have contributed solar energy equipment. My brothers and sisters, I will continue to be good. Remember me as you remember the prayer "Our Father" and "Hail Mary" on the polling day.

The petitioner himself however in his testimony simply stated:

> Before addressing the faithful the first respondent was favourably introduced by the Archbishop as their M.P., Speaker and fruit of Kagunguli Parish. At such gathering among other things the first respondent began by talking about 1995 General Elections whereby he made it known that he was one of the candidates through CCM ticket. When the people heard him say that was the year of General Elections people began murmuring "Mmm!" The first respondent was seated at the high table together with the Bishop. When one of the priests saw me he called me to such place and I also got seated at the high table but I was not as well introduced by the Archbishop as he had done for the first respondent neither did I get the opportunity to speak there. I believe such opportunity given to the first respondent by the Archbishop greatly affected my prospects as against the first respondent.

It is apparent that the testimony of the petitioner differs in material particulars from that of PW41, especially about the first respondent's contribution to the rehabilitation of the church and procurement of solar energy equipment for the same church. Since the petitioner and PW41 were present when the first respondent spoke, it is inconceivable that the petitioner would not mention in his testimony the church contributions of the first respondent, if indeed they were mentioned. It seems to us that one of these two witnesses is unreliable, and since it is impossible to say which one, we are bound to agree with the trial Judge's view that the allegations concerning the events at Kagunguli were not proved to the standard required by law.

The third issue for consideration and decision in the case is purely a matter of law, and it is whether the first respondent was still a Member of Parliament and the Speaker of the National Assembly during the period of the election campaign. The answer to this issue is to be found in the relevant provisions of the Constitution of the United Republic of Tanzania and the Elections Act 1985. The learned trial judge, after considering the relevant law concluded in his judgment:

> I therefore hold that the tenure of office of an MP unless earlier terminated for any of the reasons specified under section 71(1) of the Constitution

ends on the day immediately before the day of commencement of the campaign period, following dissolution of Parliament. It follows, therefore, as day follows night, that during the campaign period, the first respondent was not, in law, an MP and was not therefore entitled to so introduce himself during the campaigns. He did however, so introduce himself out of a *bona fide* belief that he was, in law, still holding such office of an MP....

The relevant provisions of the Constitution and the Elections Act 1985 considered by the learned trial judge are articles 65 and 71(1) of the Constitution and section 87 of the Elections Act 1985. For purposes of completeness, the provisions of articles 84(7) and 90(4) of the Constitution ought to have been considered also.

We start with article 71(1) of the Constitution which prescribes the tenure of a Member of Parliament. Paragraph (g) has a proviso to the effect that if a member of Parliament does not cease to be such a member under the circumstances stated therein, then, if he or she does not resign or die, then he or she continues to hold office as a Member of Parliament until the time of the next General Election. Sub-paragraph (g) states in Kiswahili:

> Kwa Mbunge ambaye anatakiwa kutoa taarifa rasmi ya mali kwa mujibu wa masharti ya ibara ya 70, ikiwa atashindwa kutoa hilo tamko rasmi kwa mujibu wa masharti ya ibara ya 70 katika muda uliowekwa mahususi kwa ajili hiyo kwa mujibu wa sheria iliyotungwa na Bunge, *lakini iwapo Mbunge hatakoma kuwa Mbunge kwa mujibu wa jambo lolote kati ya mambo hayo yaliyotajwa na kama hatajiuzulu au kufariki mapema zaidi basi Mbunge ataendelea kushika madaraka yake kama Mbunge mpaka wakati wa Uchaguzi Mkuu unaofuata.*

It seems clear up to this stage that under normal circumstances, a Member of Parliament holds office until the time of the next General Election. The answer is to be found under article 65 which provides for the normal lifespan of Parliament as being five years, commencing from the date when a new Parliament is summoned to meet for the first time following a General Election, and ending on the date when

Parliament is dissolved for the purpose of holding another General Election in the normal way. That article states:

> (1) Bila ya kuathiri masharti mengineyo ya Katiba hii, maisha ya kila Bunge yatakuwa ni muda wa miaka mitano.
>
> (2) Kwa madhumuni ya Katiba hii maneno Maisha ya Bunge maana yake ni ule muda wote unaoanzia tarehe ambapo Bunge jipya limeitishwa kukutana kwa mara ya kwanza baada ya Uchaguzi mkuu na kuishia tarehe ya kuvunjwa kwa Bunge kwa ajili ya kuwezesha Uchaguzi Mkuu mwingine wa kawaida kufanyika.

On a proper interpretation of these provisions – that is articles 71(1) and 65(1) and (2), we are satisfied that a Member of Parliament under normal circumstances holds office as such a member until Parliament is dissolved to allow for new General Elections to be held. It follows therefore that during the election campaign period, which is defined under section 87 of the Elections Act 1985 as being, "...the whole of the period immediately following after dissolution of Parliament or the occurrence of a vacancy in the House declared by the Speaker by notice published in the gazette up to the day immediately preceding election day", the country does not have any members of parliament whatsoever. There was thus no Member of Parliament for Ukerewe Constituency during the election campaign period and it was wrong for the first respondent to be described or to describe himself as a Member of Parliament at the centenary religious functions of the Catholic Church. The provisions of sub-article (4) of Article 90 of the Constitution, which provide for recall of the dissolved Parliament in a period of emergency, do not change the legal position. That sub-article explicitly refers in the past tense to people who had been Members of the Parliament before its dissolution. It states *inter alia* in Kiswahili:

> ...Rais aweza kutoa Taarifa Maalum ya kuitisha Mkutano wa Bunge nakuagiza kwamba Spika na watu wote *walikuwa* Wabunge mara tu kabla Bunge halijavunjwa wahudhiria Mkutano huo wa Bunge...

We have underlined the relevant part. It is significant however that the Speaker, unlike the Members of Parliament, is not referred to in the past tense under sub-article (4). Why is the Speaker not referred to as "aliyekuwa Spika" (who was the Speaker)? We think that this is deliberate because under sub-Article (1) of Article 84, a Speaker need not be an incumbent Member of Parliament. That sub-article states: "Kutakuwa na Spika wa Bunge ambaye atachaguliwa na Wabunge kutoka miongoni mwa watu ambao ni Wabunge *au wenye sifa za kuwa Wabunge...* " we have underlined the relevant part. Furthermore under sub-article (7) of Article 84 the tenure of office of the Speaker is different from that of a Member of Parliament. This is clearly so under the provisions of paragraphs (a) to (h) of sub-Article (7) of Article 84 which states in Kiwahili:

> Spika atakoma kuwa Spika na ataacha kiti cha Spika litokeapo lolote kati ya mambo yafuatayo:
>
> (1) Iwapo mtu huyo alichaguliwa kutoka miongoni mwa Wabunge, basi ikiwa atakoma kuwa Mbunge kwa sababu yoyote ambayo haihusiki na kuvunjwa Bunge, au
>
> (2) Ikiwa kutatokea jambo lolote ambalo kama asingekuwa Spika lingemfanya mtu huyo asiwe na sifa za uchaguzi au apoteze sifa za uchaguzi wa Spika; au
>
> (3) Bunge litakapokutana kwa mara ya kwanza baada ya Uchaguzi Mkuu uliofanywa baada ya Bunge kuvunjwa, lakini masharti ya ayah ii yatatumika bila ya kuathiri masharti ya ibara ndogo ya (4) ya ibara ya 90 ya Katiba hiii; au
>
> (4) Ikiwa mtu huyo ataondolewa kwenye madaraka ya Spika kwa azimio la Bunge lililoungwa mkono na Wabunge ambao idadi yao haipungui theluthi mbili ya Wabunge wote; au
>
> (5) Ikiwa mtu huyo atashindwa kuwasilisha kwa Rais tamko kwa mujibu wa masharti ya ibara ndogo ya (3) ya ibara hii; au
>
> (6) Ikiwa mtu huyo atapatikana na hatia kwa kosa la kutoa habari za uongo, kwa kiapo kinyume cha Sheria ya Kanuni ya Jinai, kuhusu

> tamko rasmi lolote lililotolewa kwa mujibu wa masharti ya ibara ndogo ya (3) ya ibara hii; au
>
> (7) Ikiwa mtu huyo atashindwa kuwasilisha kwa Rais taarifa ya mali kwa mujibu wa masharti ya ibara ndogo ya (5) ya ibara hii kabla ya kumalizika muda uliowekwa kwa ajili hiyo kwa mujibu wa Sheria iliyotungwa na Bunge; au
>
> (8) Ikiwa itathibitika kuwa mtuhuyo amevunja masharti ya Sheria ya Maadili ya Viongozi wa Umma.

It is apparent from the facts of this case that with the exception of the circumstances mentioned under paragraph (c), none of the other circumstances stated under paragraph (a) to (h) were applicable at the time of the election campaign. The first respondent therefore continued to be the Speaker under the Constitution until the first meeting of the new Parliament to be constituted after the General Elections. In other words, a person once elected to be a Speaker continues under normal circumstances to be the Speaker not only throughout the life of Parliament but until a new Parliament meets after General Elections. This being the legal position, we are satisfied and we find that it was correct for the first respondent to be described and to describe himself as the Speaker at the centenary religious functions which he attended during the period of the election campaign.

The fourth issue for consideration and decision is a consequence of our findings on the third issue, and it is whether the false representation made by and for the first respondent that he was a Member of Parliament affected the results. Undoubtedly, one of the principles which underlie a democratic election is that the electorate are entitled to make an informed choice of candidate and it is towards that end that the election campaign is all about. We have therefore seriously asked ourselves whether the misinformation, about the first respondent being a Member of Parliament, did affect the ability of the electorate in Ukerewe constituency to make an informed choice of the first respondent as their new Member of Parliament. We think not for two reasons. Firstly, there was no evidence adduced at the trial to suggest that the electorate

in Ukerewe Constituency were made to believe that they had no choice but to re-elect the first respondent for another term of five years. We think that the circumstances that prevailed under the multi-party election campaign were unconducive to crystallization of such a belief.

This is clearly reflected in the margin of victory between the first respondent and the petitioner, a margin which cannot be described as overwhelming. The second reason arises from indisputable evidence given by the first respondent himself to the effect that prior to 1995 he had been a well known public figure in Ukerewe Constituency not only by virtue of having been a Member of Parliament for Ukerewe Constituency since 1990 but also by virtue of various public positions which he had held at various times at the national level, including that of being a Speaker of the National Assembly, Director of National Elections from 1961 to 1970 and Vice-Chairman of the Election Commission from 1970 to 1980. The evidence also shows that he has authored many books both in Kiswahili and English. He has been Executive Secretary of both TANU and CCM and at the time of giving his testimony, he was still Chairman of the Board of Directors of the Dodoma Capital Development Authority and Chairman of the Board of Directors of the Co-opeative College, Moshi. In short, the evidence concerning his status may be summarized to the effect that he was at the time of the election campaign a very well known public figure. That being the position, it is highly unlikely that the misinformation in question affected the extent and manner in which the electorate in Ukerewe Constituency knew the first respondent. What is more likely is that the electorate knew the first respondent better than they were informed during this particular election campaign period.

The fifth issue for consideration and decision before us concerns also the election campaign of the first respondent, and it is whether the first respondent's talk at Murutunguru Teacher Training College amounted to an illegal campaign. The evidence given for the petitioner on this point, that is the testimony of Elias Chamba and Tenesi Mpanduji (that is the fifth and sixth witnesses for the petitioner) was entirely supportive of the side for the respondent to the effect that the talk

by the first respondent was purely educational and not in any way an election campaign. It follows therefore that there is no basis for faulting the finding of the learned trial judge on this point.

The sixth issue in this case is an issue of law, and it is whether it is prohibited to conduct an election campaign outside the scheduled programme as notified to the Returning Officer in accordance with the provisions of section 51 of the Elections Act 1985. It seems to us that so far as election campaigns in public are concerned, the provisions of sub-sections (2) and (3) of section 51 cast an obligation upon the organizers of election campaigns to prepare and submit to the Returning Officer an election campaign programme specifying the times and venues of such campaigns. The underlying objective of this exercise is apparent under sub-section (4) which empowers a Returning Officer to call a meeting of all the candidates or their agents for purposes of coordinating the campaign programme of the candidates. In accordance with the spirit of these provisions, we are satisfied that it is prohibited to conduct an election campaign in public outside the programme notified to the Returning Officer. We make this finding for future guidance only since it has not been proved in this case that there was an election campaign outside the notified programme. For purposes of clarity, we need to point out that, although the provisions of sub-section (1) of section 51, concerning organizers of election campaigns, apply to all election campaigns whether in public or in private, the provisions of sub-sections (2), (3) and (4), concerning schedules of campaign programmes, apply only to election campaigns in public. They do not apply to house to house campaigns, for example.

The seventh issue is also one of law, and it concerns the duration of the election campaign period. Although there is no specific allegation of campaigning outside the prescribed period in this case, we have to address this issue because the parties in this case are uncertain about the campaign period. Section 87 of the Elections Act 1985 states:

> For purposes of the provisions of Chapter VI and Chapter VIII, the term 'campaign period' in relation to a Parliamentary Election, means, except

> for section 97, the whole period immediately following after dissolution of Parliament or the occurrence of a vacancy in the House declared by the Speaker by notice published in the Gazette up to the day immediately preceding election day.

It is apparent that this definition under section 87 relates only to the provisions of Chapter VI (concerning election offences) and Chapter VII (concerning avoidance of elections by election petition). It must be obvious to anyone that election campaigns cannot commence until after the process of nomination of candidates to stand for election has been completed under Parts II and III of Chapter IV of the Act. Moreover, section 46 states, *inter alia*:

> Where candidates are nominated for election in a constituency, the Commission shall, by notice published in the Gazette, appoint a day not less than sixty days and not more than ninety days after the day they have been nominated to stand as candidates for election in the constituency.

It is apparent that the Elections Act envisages a period of not less than sixty days and not more than ninety days to elapse between nominations of candidates and the election day. It is our considered opinion that this period is for no other purpose but for what may be described as the official campaign, organized and conducted under the provisions of section 51, which we have discussed earlier. This period is declared by the National Electoral Commission normally at the time when it appoints the election day, as it is the only body with competency to determine the conclusion of the nomination process. The answer therefore on this issue is that the election campaign period for purposes of organizing election campaigns in accordance with section 51, is that period determined by the Electoral Commission terminating on the day preceding election day.

The eight issue before us relates to the allegation of corrupt practice at the Bwisye election campaign rally. There is no controversy on the evidence regarding what transpired at the rally. The controversy concerns the meaning of what occurred. According to Mr Bob Makani, learned advocate for the appellant, the conduct of the first respondent

in disclosing the existence of a fund he had established in 1993 for the construction of water wells in Ukara Ward was corruptly motivated, otherwise the First respondent would have made the disclosure before the election campaign. With due respect to Mr Makani, we agree with the submission made by Professor Msanga to the effect that the disclosure was made *bona fide*. It seems to us that the disclosure would not have been made at Bwisye had the first respondent not been challenged to tell what he had done for Ukara Ward during his incumbency as a Member of Parliament. Furthermore, we agree with the view of the learned trial judge that this fund, which was established long before the election period, is exempt from being treated as a corrupt practice by virtue of the provisions of section 97(4) of the Elections Act 1985 which states:

> (4) For the purposes of this section an act or transaction shall not be deemed to constitute bribery if it is proved to have been designed to advance the interests of community fund raising, self-help, self-reliance or social welfare projects within the constituency and to have been done before the campaign period.

The ninth issue before us concerns another allegation of corrupt practice on the part of the first respondent, and it is whether the road construction work for Nansio was corruptly speeded up during the election campaign period. The relevant evidence on the petitioner's side was given by the petitioner himself, and by one Jovinus Nakilangwa Nagabona, who was the twenty sixth witness for the petitioner, hereinafter referred to as PW.26. On the other side, the relevant evidence was given by the first respondent, one Godwin Samweli Mpinzile (the third witness for the respondent's side, hereinafter referred to as DW3) and one Deonist Kishenyi (the eight witness for the respondent's side – hereinafter referred to as SW.8). We have closely examined the evidence on both sides and it seems to us that the evidence of the first respondent, supported as it is by DW3 and DW8 is more convicting. DW3 was the resident engineer of MECCO, the company which had contracted to construct the road in question, and DW8 was the District Development Director for Ukerewe District and

responsible for making payments to MECCO. We think DW3 and DW8 were in a better position to know what happened to the Nansio road construction work than either the petitioner or PW26, who had no dealings with the road construction project. The evidence of DW3 and DW8 supports that of the first respondent in showing that there was no speeding up of the road construction work during the election campaign period. We therefore find that the allegation of corrupt practice on this point was not proved to the standard required by law.

The tenth issue for us in this case concerns the effect of the failure to notify the electorate of the change of venue for some 50 polling stations, failure to supply sufficient number of ballot papers and failure to post specimen ballot papers at polling stations within the prescribed period. In dealing with this issue, the learned trial judge stated, *inter alia:*

> ... I do not find them substantial and to have affected the results of the election. I have come to such conclusion upon being satisfied that the petitioner has failed to establish with some precision or certainty as to how many electors at each of the polling stations alleged to have been issued with notices of change of polling stations, together with specimen ballot papers, outside the prescribed period were prevented to exercise their right to vote on account of such non-compliance complained of. For apart from the evidence of polling agents, none of the victims, the electors concerned, has been called to testify before this court. In fact, except for three polling agents, none of the other polling agents raised any complaint in the prescribed complaint forms they were supposed to register such complaint but instead have endorsed satisfaction with the conduct of elections at their respective polling stations. And while PW15, PW16 and PW27, had the temerity to tell the court that each had filled complaint form CF7 about the alleged shortages, the complaint forms they filled (Exhibits D7K D7 (i) and D7 respectively) have proved them false. They are all shown to have endorsed their satisfaction with the conduct of the election at their respective polling stations. Neither is there any complaint Form C.F. 4, filled by any of the voters who might have been so prevented to vote on account of shortage of ballot papers. As it has been pointed out earlier the essence of complaint here is not that there were shortages of ballot papers, rather that there were persons of an ascertainable number entitled to vote who, having turned up at a polling station to vote, were prevented from exercising such right by any of the alleged non-compliances and or irregularities. This, in my view, has not been proved at all. Most of the polling agents having signed the complaint forms, their respective polling stations, endorsing that they were satisfied with the conduct of the elections, they cannot now in terms of sections 100(1) and 101 of the Evidence Act 1976, be heard to come out with new stories to the contrary.

Mr Bob Makani has complained about certain aspects of the views of the learned trial judge. The first complaint relates to the view that the petitioner had to prove a definite number of voters as being prevented by the non-compliances from exercising their right to vote. Mr Makani submits that it is impossible to call all the people who did not vote to give evidence in court. While we agree with Mr makani to a certain extent, we do not think that the learned trial judge meant that there was need to prove with mathematical certainty the number of voters who had been prevented from voting by the non-compliances. What the learned trial judge meant is that there are always people who fail to turn at polling stations for their own reasons and there was need for cogent evidence to exclude such people in the estimate of voters who could have been affected by the non-compliances. Such evidence could be obtained by contacting some registered voters, who did not vote, to find out why they, and others whom they knew, did not vote. Such evidence could provide proof beyond reasonable doubt concerning the number of voters affected. This is the kind of evidence which the learned trial judge had in mind and he rightly found it lacking.

We have asked ourselves whether it would have made any difference if there was cogent evidence to enable the court to make a reasonable estimate of the number of voters prevented from voting by the non-compliance. According to the precedents decided under the one party electoral system, in which only two candidates sponsored by the

same party contested a parliamentary seat, it was considered appropriate to consider the margin of victory between the two contesting candidates, and to pose the question whether the results would be different if the estimated votes were given to the losing candidate. If the answer was in the affirmative, the election results would be held to be affected. See the cases of *Ngweshemi v. Attorny General* (1) and *Bura v. Sarwat* (2). We are of the considered opinion that the rule in these cases decided by the High Court, permitting adjustment of votes in favour of the losing candidate, is no longer good law under the newly adopted multi-party electoral system, where more than two candidates, sponsored by more than one political party, do contest elections. We think the correct approach under the multi-party system is to make a *pro rata* apportionment of the estimated votes between the contesting candidates. If the outcome of such exercise eliminates or considerably reduce the margin of victory, the court may, in our view, hold that the election result is affected.

The other complaint by Mr Makani relates to the views of the learned trial judge in respect of the status of the various forms prescribed for recording complaints in the electoral process, such as CF7 and CF4. We think there is merit in Mr Makani's complaint. The learned trial judge's view is more clearly expressed in another part of his judgement that:

> Where such prescribed complaint form is signed by both the pesiding officer on one hand and the polling agent or the candidate, on the other, the form so signed constitutes a written agreement between the Electoral Commission and the candidate, on the contents of such complaint form. And where any party entitled to so register a complaint about the conduct of election is made aware of the existence of such complaint forms but deliberately ignores to register his complaint in the prescribed forms at the relevant stage of the electoral process, he does so at his own peril as that would be violation of the law, and his complaints would rightly betaken to have been an afterthought or frame-up complaints. For such provisions under the Elections Act, do, clearly fall under the provisions of section 100(1) and section 101 of the Evidence Act 1967 at amended....

These views of the learned trial judge to the effect that the prescribed complaints forms, once utilized by the persons concerned, constituted a contract, the contents of which could not be contradicted by oral evidence, is with respect, a clear misdirection on the law. The correct legal position is that the prescribed forms are intended to serve only as material for testing the credibility of complaints made in respect of the electoral process. This means that the evidence of a witness who could have recorded his or her complaint in a prescribed form but fails to do so would not be relied upon unless he or she explains the failure to record the complaint at the appropriate stage of the electoral process.

This misdirection however does not detract from the main finding of the learned trial judge to the effect that the petitioner had failed to prove to the standard required by law that there were voters who were prevented from voting by the non-compliances in question.

In the final analysis therefore there is no ground upon which this appeal can succeed and we are bound to dismiss it in its entirety with costs, and we order accordingly.

JUMANNE RAJABU *alias* NGALAMGONGO AND ANOTHER *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT TABORA

(Mchome, J.)

CRIMINAL APPEALS Nos. 195 AND 249 OF 1991

(From the decision of the District Court of Tabora District, at Tabora, GW Mirumbe, Esq, RM, in Criminal Case No. 36 of 1990)

Criminal Practice and Procedure – Judges Rules – Statement of accused before the Police – Failure to comply with Judges Rules – Effect of non-compliance.

Evidence – Judges Rules – Statement of accused before the Police – Must be certified by the accused.

Criminal Practice and Procedure – Trial within a trial – Statement of accused – Burden is on the prosecution to prove that it was made voluntarily.

Evidence – Alibi – Whether the burden is on the accused to prove alibi.

In a charge of armed robbery and causing grievous bodily harm, the two appellants were found guilty and sentenced by a District Court. The evidence supporting the conviction of the first appellant was of a ballistic expert who testified that the spent cartridges found at the scene of crime were fired from the sub-machine gun found in possession of the appellant. The pieces of evidence against the second appellant were two. The first was his own retracted confession before the Police. The appellant had not signed or certified a copy of the statement he made. Further, in a trial within a trial, he disowned his statement, whereupon the court placed the burden on him to prove that his statement was not voluntarily made. The second piece of evidence was that he was mentioned by a co-accused in the latter's confession. At the trial, this appellant raised an alibi which the court rejected because he had failed to prove it. The High Court considered the propriety of the proceedings of the Lower Court.

Held: (i) Under section 33(1) of the Evidence Act 1967, the evidence of a co-accused in his confession cannot be considered against the second appellant;

(ii) An accused person bears no burden to prove an alibi; an accused person who puts forward an alibi as an answer to a charge does not assume any burden of proving that answer, and it is a misdirection to refer to any burden as resting on the accused person in such a case;

(iii) Any statement made in accordance with the Judges Rules should, whenever possible, be taken down in writing and signed by the person making it after it has been read to him and he has been invited to make any corrections he may wish;

(iv) Judges Rules do not have the force of law; however, they are administrative directions for the guidance of police authorities and if not complied with the presiding judge may reject evidence obtained in contravention of the Rules;

(v) The statement before the Police was not properly taken as it was not in compliance with the Judges Rules;

(vi) The evidence of a ballistic expert has to be regarded with suspicion if there is no conclusive proof that another similar weapon could not have made similar marks as those found in cartridges examined by the expert, and the first appellant ought to have been given the benefit of that doubt.

Appeals allowed

Cases referred to:

(1) *R. v. Bass* [1953] 1 All ER

(2) *R. v. Nyungindo s/o Luhende* (1948) 15 E.A.C.A 132

(3) *Jumanne Rajab Ngaramgongo v. The Republic* [1999] T.L.R. 69

(4) *Rajabu v. Republic* [1970] EA 395

JUDGMENT

(Dated 15 May 1998)

MCHOME, J.: Jointly with six others, the appellants in Criminal Appeal Number 195 and 249 of 1991 were charged with two counts in original Tabora District Court Criminal case Number 36 of 1990. The first count was Armed Robbery contrary to sections 285 and 286 of the Penal Code. The second one was grevious harm contrary to section 225, also of the Penal Code. The first appellant, Jumanne Rajabu Ngaramgongo was the original first accused while the second appellant, Rajabu Makumbi, was the original eighth accused person.

The original seventh accused person pleaded guilty and was convicted on his own plea of guilty and sentenced to thirty years' imprisonment on the first count. The second, third, fourth fifth and sixth accused persons were found guilty, convicted, and sentenced to thirty years' imprisonment and six strokes punishment each on the first count, and to three years' imprisonment each on the second count. Aggrieved, they have now appealed to this court against both convictions and sentences.

Their appeals have been consolidated as they originate from the same criminal case as I have already pointed out.

Briefly, the facts of this case are that the shop one Musa Katambala, PW1, commonly known as "Mawese shop," was on the 21 February 1990, broken into at night by a gang of robbers, armed with a sub-machine gun and a pistol. The robbers fired gun shots in the air to scare the shit out of the inmates and neighbours who would attempt to come to their victims' aid.

But one daring neighbour, Yassin Ramadhani, PW2, came to the scene. But a gun bullet from the robbers got him below his abdomen and perforated his bladder. From this and other injuries, PW1 was rushed to the hospital, where, after a long hospitalization period, he was lucky to recover.

That night the thieves stole several items from the said Mawese shop total valued at TZS. 94 000. None of the inmates of the shop identified the robbers save one Mashaka Iddi. Mashaka was not called as a witness at the trial.

There is no direct evidence against the appellants. They were not identified at the scene as the robbers were said to be marked. And none of the stolen property was found in either of the appellant's possession.

The only evidence against the second appellant (original eighth accused person) is this retracted confession before the police and his being mentioned by the original seventh accused person in the latter's confession.

The evidence of the seventh accused, under section 33(1) of the Evidence Act 1967, cannot be considered against the second appellant. There then remains only his own confession which the second appellant had retracted and repudiated.

In convicting the second appellant on the repudiated confession the learned trial magistrate held, *inter alia:*

> The eighth accused's line of defence did not comply with the provisions of section 194(4) of the C.P. .i.e. he did not give notice that he would rely on the defence of an alibi. .. He did not call the *sungusungu* vigilantes who he claimed to have locked him in during the material night. Accused person does not have to prove an alibi. See *Ali Salehe Msutu v. Republic* [1980] T.L.R. I. Also in *Elias Stephen v. Republic* [1982] T.L.R. 313, this court held: "an accused person who puts forward an alibi as an answer to a charge does not assume any burden proving that answer, and it is a misdirection to refer to any burden as resting on the prisoner in such a case."

The learned trial magistrate misdirected himself in this case by requiring the second appellant to have called the "*sungusungu*" to prove his *alibi.* The rejection of the alibi is one of the reasons which made the trial court think it safe to convict on the uncorroborated repudiated confession. Had he not improperly shifted the burden to prove an alibi to the 2 and appellant it is most likely the learned trial court would have not found it safe to convict.

The statement before the police was not properly taken either. The Judges' Rules require that after warning him and taking his statement the police officer or justice of the peace reads over the statement to the accused and the latter certifies that it is true. But here instead of the accused it is the police officer who certified the statement to be correct. Rule 9 of the Judges Rules (See Philip Durand, "**Evidence for Magistrates**" page 256) reads:

> Any statement made in accordance with the above rules should whenever possible, be taken in writing and signed by the person making it after it has been read to him, and he has been invited to make any corrections he may wish.

In *R. v. Bass* (1) it was held:

> ... this court has said on many occasions that the Judges Rules have not the force of law, but theoadministrative directions for the guidance of police authorities. That means, if they are not complied with, the presiding judge many reject evidence obtained in contravention of them...

In our case if the learned trial Resident Magistrate had queried the propriety of the non-compliance with the rules on procedure in recording the statement by the police officer, there are chances that he would have refused to admit the statement.

In a trial-within-trial, the burden is also on the prosecution to prove that the accused made his statement voluntarily. But the learned trial Resident Magistrate in this case shifted that burden to the accused.

It is the accused (second appellant) who testified first in the trial-within-trial, and at some length. The police officer was called and in a short statement of three short sentences carried the day and the court ruled that the statement was admissible. See *R. v. Nyungindo s/o Luhunde* (2).

The second appellant denied to have made any statement at all. The trial court ought to have checked with the accused's signature to see if it is similar to the one alleged to be his in the statement. I have looked at the appellant's petition of appeal to see if there is a signature of his to compare with the one in the statement. The petition of appeal has a right-thumb-mark instead of a signature. This raises a doubt whether the second appellant is literate, and the author of that signature on the confession statement tendered by the police.

With all these irregularities I have tried to point out the admission of the second appellant's statement is questionable. It is definitely unsafe to convict on such a statement without corroboration.

The evidence against the first appellant, Jumanne Rajabu Ngaramgongo, is that of a gun found in his compound and cartridges found at his mother's house. The first appellant denies possession of these weapons. The said weapons were recovered on 24 February 1990, three days after this robbery was committed. They were tendered in court in Criminal (Economic) Case Number 5 of 1990. In that case the first appellant was charged with unauthorized possession of arms and ammunition, contrary to section 13(1) and (2) of the Arms and Ammunitions Ordinance Chapter 223 read together with paragraph 21 of the Economic and Organized Crimes Control Act Number 13 of 1994, as amended by Act number 10 of 1989.

He was found guilty of the "Economic Crime" by the Resident Magistrates Court of Tabora (Shayo, S.R.M.) and sentenced to fifteen years imprisonment and twelve strokes of the cane. His appeal against that conviction and sentence were summarily rejected by this court (Honourable B.D. Chipeta, J.) as:

> The S.M.G. (sub-machine gun) and 29 rounds of ammunition were found in his house and compound. There was fulminating evidence to that effect. The appellant utterly failed to give account as to how he came by the said gun and ammunitions. The conviction, therefore, was inevitable ...

Like in his defence, in his Memorandum of Appeal, the first appellant denies possession of the gun and rounds of ammunition. But as his appeal against conviction for the unlawful possession of that gun has been summarily dismissed and he has preferred no further appeal, he has no right to deny his possession of those weapons. That judgment was final, and proof of his possession of the arms contained in that judgment is conclusive. And as stated in "**Osborn's Concise Law Dictionary**"(6 ed) page 289:

> A thing adjudicated is received as the truth. A judicial decision is conclusive until reversed, and its verity cannot be contradicted.

As stated earlier the only evidence against the first appellant is his unlawful possession of the gun and catridges. No one identified him at the scene of crime. Even his two original co-accused did not mention the first appellant as a co-participant in this crime. Even the original seventh accused person who pleaded guilty did not implicate the first appellant in this crime.

The issue now is whether the weapon the first appellant was found in possession of three days after the robbery is the one used in the carrying out of the robbery.

The evidence of the ballistics expert. PW7, Superintendent of Police Idi Kingmte, is most relevant to this issue. It is partly as follows:

I recall on 22 March 1990 I received the following Exhibit from D/Sgt. Phillip:

> One submachine gun with number 2C 882 which I marked as Exhibit "A".
>
> 4 cartridges (shells) which I marked as Exhibit "C"1-"C4" respectively.
>
> These cartridges were found in the scene of offence in relation to this case. The gun was apprehended in an incident Ref. Tbr.LR/405. After receiving these Exhibit I started to examine them.
>
> I examined the gun itself and found that its butt and muzzle were both cut off. I made an experiment to see if it was in a working order. I took two rounds of ammunition from our laboratory and fired from the gun. After firing two shots I made a finding that the gun was in a working order. After that I took the two cartridges I fired myself and compared them to the four cartridges brought from Tabora (picked from the scene of crime) using a microscope After careful examination I found that al the cartridges had the same marks. This showed that the four cartridges were also fired from the same gun ...

His report was tendered as Exhibit P.IV. It states, *inter alia:*

> A convincing matching pin impressions and breech-face characteristics on the test fired cartridges and on the spent cartridges...Were noted; and to my opinion the spent cartridges... purporting to have been found at the scene of crime were fired from the sub-machine gun number 2C 882...

In convicting the first appellant, the learned President Magistrate stated:

> I have made up my mind that the ballistic expert evidence cannot be faulted.

Can it not be faulted? In *Jumanne Rajabu Ngaramgongo v. Republic* (3) (Tabora Registry, unreported), this same first appellant, Ngaramgongo, was found guilty of armed robbery, using the same gun number 2C 8882, which had been tendered in Economic Criminal Case Number 5 of 1990, and on the same ballistics experts opinion. In allowing his appeal, my learned brother Makanja, J. Held:

> Another matter which was given undue weight was the ballistic expert's report we said that the gun be examined was the same as the one which was used at the scene of crime.... It should be remembered that expert witnesses give no more than their expert opinion. A ballistic expert will be outside the province of his expertise if he asserts as PW3 did that the gun he examined was the one and no other gun of identical calibre, which discharged the five shells which were found at the residence of the complainant. If we take this evidence wholesale we will be saying that every submachine gun impresses its own peculiar characteristics on empty shells which are fired from it ...

While armed robbery cases abound in this country reported cases on fire arms experts opinions are very hard to come by.

One such "rare commodities" is the case of *Rajabu v. Republic* (4). The summary of the facts of that case reveal that in October, 1968 a spent shotgun cartridge was found at the scene of a robbery. In November 1968, a man was killed by a shortgun during a robbery and a spent shotgun cartridge was found at the scene. In February 1960 the appellant was found in possession of a shotgun. At the trial of the appellant on a charge of murder a police officer gave evidence identifying with absolute accuracy the cartridges as having been fired from the shotgun found in the appellant's possession. No other evidence connected the appellant with the murder. The appellant was convicted of murder and appealed. At the hearing of the appeal their Lordships, the Justices of the East African Court of Appeal, referred to text books concerning firearms identification. Their Lordships quoted at page 397 from one of the text books, **"Firearms Investigation and Evidence,"** by Major-General Hatcher, Ltd. – Colonel Jurey and Jacwellr:

> The more one sees of the breech faces of different weapons and their fixing pins, as well as the way that these surfaces are finished, the more one becomes convinced that similarity of cartridge case makings is rare and identity never encountered at all. For some reason every revolver and automatic will impart some striking mark or marks. The presence of

these on two different cartridges is a strong indication of identity; however, in the absence of other similar points, it should never be taken as positive.

And from page 337 of that text on the pin impressions of shotguns the authors are quoted to have said:

> Unfortunately, for identification purposes the pressure inside the chamber of a shotgun is far lower than that encountered even in hand guns. This is a particular disadvantage... since the family characteristics are even fainter than breech face and firing pin impressions from pistols. These makings, however, can be extremely illuminating in some cases.... The identifying laboratory will not want to state definitely in any given instance the exact make and model firing a crime shell: however, no harm at all will be done to your prestige if you state a probability that turns out to be correct.

From **"An Introduction to Tool Marks, Firearms and Stereograph,"** by John E. Daries, their Lordships quoted from page 78:

> Firing pin impressions are quite often specifically identifiable with the weapon in which firing took place.... While most firearm examiners have made a study of the shapes and styles of rim fire (particularly the 0.22 calibre) firing pin marks with a view to determining the probable weapon used, it seems less consideration has been given to centre fire marks.

And lastly their lordships quoted from page three of **"Firearms Identification,"** by J.H. Matthews:

> Similarly the marking produced on the head of a fired cartridge (shell) of ten can give valuable information as to the type and make of a gun used and often can identify the particular gun when located.

Then their Lordships observed:

> As there was no other evidence linking the appellant with the murder of Simba it was clear that the conviction could not be upheld unless, first, the evidence left no doubt the gun found in the possession of the appellant had fired the cartridge found at the scene of the murder and secondly, that the only possible reasonable inference to be drawn from the fact that the appellant was found in possession of the murder weapon was that he fired that at the time of the murder...

They then concluded:

> An expert witness merely gives opinion evidence and the value of that evidence depends upon the experience and ability of the witness and the extent to which his opinion is supported by the opinion and experience of other recognized experts in the particular field...We have come to the conclusion that the opinion evidence of Assistant Superintendent of Police Malangalila identifying beyond doubt the cartridge found at the scene of the murder as having been fired from the greener shotgun found in the possession of the appellant cannot be accepted, and that any such evidence given by this officer in the courts should be regarded with suspension and and not accepted unless other factors exist.

It would have been proper to apply the doctrine of recent possession to this case as the first appellant was found in possession of the alleged crime weapon only three days after the said crime was committed.

But the expert evidence, like in the Eastern African Court of Appeal case cited above has to be regarded with suspicion. There is no conclusive proof that another similar weapon can not have made similar marks as those found in the cartridges examined by PW7.

So the appellant ought to have been given the benefit of that doubt.

For these reasons I allow these appeals and quash the convictions and set aside the sentences against both appellants. They are both to be released from custody immediately unless held further in connection with other lawful matters.

BLUE STAR SERVICE STATION *v.* JACKSON MUSSETI t/a MUSSETI ENTEPRISES

COURT OF APPEAL OF TANZANIA AT MWANZA

(Nyalali, C.J.)

MZA CIVIL APPLICATION No.11 OF 1997

(From the judgment of the High Court of Tanzania at Mwanza, Mrema, J., dated 24 April 1997, Civil Case No. 65 of 1994)

Civil Practice and Procedure – Applications – Fresh application for stay of execution after dismissal of a similar application by the same court – Whether proper.

Limitation of Time – Applications – Fresh application for stay of execution after dismissal of a similar application by the same court – Applicability of the law of limitation to such subsequent application.

An application for stay of execution was lodged in the Court of Appeal at Mwanza on 30 April 1997. The application was heard and dismissed on 1 December 1997 on the ground that the decree which was the subject matter of the application was not part of the record of proceedings. On 24 December 1997, a fresh application for stay of execution was filed in the same court. The court considered the propriety of the fresh application and the applicability of the law of limitation to it.

Held: (i) Where the application is dismissed not on the merits, as was the case in the present case where it was dismissed for lack of the appropriate decree, it would be proper to subsequently file a fresh application subject to the requirements of the law of limitation;

(ii) The fresh application in this case is time-barred under the Law of Limitation Act 1971.

(iii) *Obiter:* Where an application for stay of execution of a decree or other order is dismissed on merits, it would be an abuse of the court process to subsequently file a similar application in the court;

Application dismissed

Mr Matata, for the Applicant

Mr Rutaisire, for the Respondent

Editorial note: The first application should have been struck out.

RULING

(Delivered 19 May 1998)

NYALALI, C.J.: This is an interesting matter. It concerns an application for stay of execution of a decree pending an intended appeal to the Court of Appeal. The Application was filed in the Mwanza sub-registry of the court on 24 December 1997. Prior to that, a similar application that is – MZA Civil Application Number 7 of 1997 was instituted in the court on 30 April 1997. That application was heard and dismissed by this court on 1 December 1997 on the ground that the decree, which was the subject of the application, was not part of the record of proceedings. Thereafter, the current application was filed as a fresh application.

When this fresh application came up for hearing this morning, Mr Rutaisire, learned advocate for the respondent, informed the court that the respondent's side has not been served with the Notice of Motion. Mr Matata, learned advocate for the applicant on the other hand contended that unsuccessful steps were taken to serve such Notice of Motion upon Mr Rutaisire. The matter however turned on a different but very important basis of procedure and practice. The basis concerns the propriety of making a fresh application for stay of execution after dismissal of an earlier similar application by the same court, and the applicability of the law of limitation to such subsequent application.

I propose to deal with the first concern – that is whether it is proper to lodge a fresh application for stay of execution after dismissal of a similar earlier application. Although my research on the point

has been hampered by inadequacy of relevant material in the Mwanza High Court Library, I am satisfied that where an application for stay of execution of decree or other order is dismissed on the merits, it would be an abuse of court process to subsequently file a similar application in the court. However, where the application is dismissed not on the merits as was in the present case, where it was dismissed for lack of the appropriate decree, it would be proper to subsequently file a fresh application, subject of course to the requirements of the Law of Limitation. Such a course of action is not prohibited by the Tanzania Court of Appeal Rules 1979.

I now come to the second concern, and this is whether the current application is not barred by the Law of Limitation.

I now come to the second concern, and this is whether the current application is not barred by the Law of Limitation. Mr Matata, learned advocate for the applicant correctly concedes that the application is time-barred under the Law of Limitation Act 1971. It is provided under Part III of the First Schedule to the Law of Limitation Act 1971 read together with the provisions of section 3 of the Act, to the effect that an application under any written law for which no specific period of limitation is provided under the Act or any other written law is sixty days. Since the relevant judgment for which stay of execution is sought was given by the High Court on 24 April 1997 and the current application was lodged in court on 24 December 1997, there can be no doubt that more than sixty days had expired before the application was so lodged. Consequently I will have to dismiss this application.

Before I do so however, I have to state that the respondent is not entitled to costs. This is because, the basis upon which the application is being dismissed was not raised by the respondent's side but the court itself, in performance of its duty to act according to law.

In the final analysis therefore, this application is dismissed without costs. Delivered in the presence of advocates for the applicant and the respondent in person. I order accordingly.

AHMED ABDI FARRAH GULED *v.* COOPERATIVE AND RURAL DEVELOPMENT BANK

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, J.A.)

CIVIL APPLICATION No. 1 OF 1998

(From the judgment of the High Court of Tanzania at Dodoma, Msoffe, J.A.,dated 6 October 1996, in Civil Appeal No. 34 of 1994)

Civil Practice and Procedure – Appeals – Notice of Appeal – Service of notice on respondents – Inordinate delay in serving respondents – Respondents receive a copy of the notice despite delay – Effect thereof.

Civil Practice and Procedure – Appeals – Parties – Substitution for deceased party – Pre-requisites thereof – Rule 98 of the Court of Appeal Rules 1979.

Before his death the applicant had filed a Notice of Appeal to challenge the decision of the High Court. Unfortunately, a copy of that notice was not served on the respondents; it was close to 4 years when they finally received it. After the death of the applicant, his son sought to be substituted for his father as a party. However, he had not lodged an application to be so substituted.

Held: (i) Since the respondents received the copy of the Notice of Appeal despite the inordinate delay, then they could be taken to have connived in the delay;

(ii) Since the son had already been granted letters of administration, a prerequisite for an application to be made a party under rule 98 of the Court of Appeal Rules 1979, he could lodge an application to be made a party to the proceedings;

(iii) For the sake of advancing justice the son of the applicant be given an opportunity to apply to be made a party under rule 98 of the Court of Appeal Rules 1979.

Order accordingly

Mr Mpoki, for the Respondent

RULING

(Dated 27 May 1998)

RAMADHANI, J.A.: This application involves intricate points of procedure of this court. One of the parties in the Lower Courts, Abdi Farrah Guled, is now deceased. But before he died he had filed in time, a Notice of Appeal challenging the opinion of Msoffe, J. That was on 6 October 1994, the day the judgment complained of was delivered. Unfortunately a copy of that Notice of Appeal was not served on the respondents until 23 February 1998, that is, after close to four years. That in itself is a violation of rules. However, as the respondents received a copy despite the inordinate delay, then they could be taken to have connived at the delay.

Mr Mpoki, learned counsel for the respondent, pointed out another violation.He submitted that the appeal ought to have been instituted by 6 December 1994, that is sixty days after the Notice of Appeal was filed. The applicant in his sworn Certificate of Urgency claim that the deceased had applied for a copy of records as far back as October 1994 but without success.

However, Mr Mpoki submitted that they have not been given a copy of that letter, so the exemption under rule 83 cannot be claimed by the appellant in this case. So, Mr Mpoki submitted, that the Notice of Appeal ought to be struck out for failure to take an essential step. Mr Mpoki pointed out further that there is an application to strike out the Notice of Appeal filed since 12 March 1998 but that no date has been set down for hearing.

As already said, the appellant is dead. This application has been filed by the son of the deceased. He is praying for a stay of execution. But the application is incompetent as the applicant has never been a party to the proceedings. He ought to have filed an application to be substituted for his deceased father. The applicant has already been granted letters of administration, a prerequisite for an application to be made a party under rule 98. However, there is no such application.

The applicant has indicated that he would want to engage the services of an advocate to help him go through the procedural maze.

I think that for the sake of advancing justice, the applicant be given an opportunity to apply to be made a party under rule 98. It is doubtful whether the application to strike out the Notice of Appeal can proceed *ex-parte*. So, it is for benefit of the respondent, too, that the applicant be made a party. In order to facilitate an application under rule 98 I give temporary stay of execution until such time an application to be made a party is filed together with an application for stay of execution. The respondent may also apply for his application to strike out the notice of appeal to be heard then.

The applicant is given twenty-one days to file his applications.

Costs to follow event.

WILBROAD PETER SLAA *v.* ARUSHA KALWA AND FIVE OTHERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Nyalali, CJ, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 28 OF 1998

(From the ruling and order of the High Court of Tanzania at Arusha, Nchalla, J., dated 27 March 1998, in Miscellaneous Civil Cause No. 9 of 1995)

Election Petition – Limitation of time within which High Court should hear and determine election petition – Statute prescribing a definite period for hearing and determination of election petitions – Whether computation of time should exclude Sundays and public holidays – Section 115(2) of the

Elections Act 1985 and section 43(d) of the Interpretation of Laws and General Clauses Act Chapter 1.

Election Petition – Limitation of time for the hearing and determination of election petitions – Statute prescribing a two-year period – Whether the prescribed period takes account of the time taken up by appeals from preliminary rulings and orders – Section 115(2) of the Elections Act 1985.

Election Petition – Time prescribed for the hearing and determination of election petitions – Extension of the prescribed time by the Minister – Whether the Minister may extend that time after it has expired – Section 115(3) of the Elections Act 1985.

Following the October 1995 General Elections, an election petition was filed in the High Court on 14 November 1995, challenging the parliamentary election results for Karatu Constituency. Section 115(2) of the Elections Act 1985 requires the High Court to hear and determine every election petition within two years from the date of its presentation in court. Two years after filing this petition, hearing had not commenced because it was held up by an appeal on some preliminary issues raised and ruled upon by the High Court. Meanwhile, sometime in December 1997, the Act was amended by adding sub-section (3) to section 115, empowering the Minister to extend the prescribed period. Accordingly, the Minister issued a notice, published on 12 December 1997 as Government Notice 772 of 1997, extending the period prescribed under section 115(2) by six months. When the petition was finally called up for resumption of hearing on 23 March 1998, a preliminary objection was raised challenging the competence of the High Court to hear the petition on the ground that two years had already passed after its filing and that the Minister's notice was legally ineffective. The objection was dismissed by the High Court. From that dismissal came this appeal.

Held: (i) The period prescribed for the hearing and determination of election petitions is more does not exclude Sundays and public holidays;

(ii) According to section 115(2) of the Elections Act 1985, the obligation of the High Court to hear and determine an election petition within two years operates only when the election petition is before that court and not when it is lawfully before another court; the two-year period, therefore, excludes the time when the petition goes to the Court of Appeal on appeal from preliminary rulings and orders;

(iii) Although the two-year prescribed period for the hearing and determination of the Karatu election petition was bound to expire on 15 November 1997, by that date the petition had ten more months to run because of the time that had been taken up by an intervening appellate process from preliminary rulings;

(iv) ***Obiter:*** Section 115(3) of the Elections Act 1985, which empowers the Minister to extend the prescribed period by six months, does not empower the Minister to extend the prescribed period after it has expired; the Minister can only extend that period while it is still subsisting; the power of the Minister to extend the prescribed period under section 115(3) of the Elections Act 1985 does not include a power to revive an expired period or to create a new one.

Appeal dismissed

Cases referred to:

(1) *National Industrial Corporation Ltd v. Registrar of Companies,* A.I.R. (1963) Punj.239

(2) *Abdul Gaffar v. State of U.P,* 1B and ALD 396

Statutory provisions referred to:

(1) Elections Act 1985, section 115

(2) Interpretation of Laws and General Clauses Act, section 43(d)

Mr *Maira,* for the Appellant

Mr *Musei,* for the Respondent

Mrs *Macha*, Senior State Attorney as *amicus curiae*

JUDGMENT

(Dated 2 June 1998)

NYALALI, C.J.: This matter concerns an election petition instituted in the High Court at Arusha on the 14 November 1995, challenging the Parliamentary election results for the Karatu Constituency, and which by virtue of the provisions of section 11(2) of the Elections Act 1985, the High Court is required to, "... hear and determine ...

within two years from the date of presentation of the election petition before it". About two and a half years after the presentation of the petition, hearing of that petition has not commenced because of preliminary issues raised and decided upon in the High Court and consequential appeals to this court. The first Notice of Appeal to this court concerning such preliminary issues was lodged in the High Court at Arusha on 27 November 1996. On the 26 September 1997, that is about ten months later, the Court of Appeal dismissed the appeal and directed the proceedings in the High Court to continue from the stage reached before the appeal.

According to court correspondence and the case records both in this court and the High Court, the original High Court case file was sent back to Arusha by the Deputy Registrar under cover letter Ref. Number Civil Appeal Number 29 of 1927 of 26 September 1997. In a ruling delivered by the High Court on 5 December 1997, that fact is noted but it is also stated therein that, "However, the record reached this court on 11 November 1997 and on 14 November, exactly two years after the petition was filed in this court, the record was brought to me, and I fixed it for mention on 20 November 1997 with an order that the parties be notified ..." In this ruling, the High Court, *inter alia*, suspended further proceedings to await a Presidential Assent to a Bill which had been passed by the Parliament amending the provisions of section 115 of the Elections Act 1985 by providing for extension of time to hear and determine election petitions.

According to the proceedings both in this court and the High Court, it is common ground between the parties that the President assented to the Bill on 11 December 1997 and it became law as Act Number 31 of 1997. The Act added a sub-section (3) to section 115 of the Elections Act 1985 which reads as follows:

> (3) Where the election case in unlikely to be determined within the period of two years the Minister responsible for legal affairs may after consultation with the Chief Justice by Notice published in the Gazette extend the period for a further period not exceeding six months as he shall determine.

A day after the Bill had received the Presidential Assent, that is on the 12 December 1997, a Notice was published in the Gazette as Number 772 of 1997 stating as follows:

> Whereas the provisions of section 115(2) provides that each election petition case shall be determined within a period of two years from the date of presentation of the election before the court:
>
> and whereas there are election petition cases which are pending in the High Court of Tanzania and which could not be finalized within the specified period of two years:
>
> and WHEREAS section 115(3) of the Elections Act 1985 empowers the Minister responsible for legal affairs to extend the period for hearing and determining election cases:
>
> Now therefore I, Harith Bakari Mwapachu, the Minister for Justice and Constitutional Affairs, in exercise of powers conferred upon me by section 115(3) of the Election Act 1985, do hereby notify as follows:
>
> 1. This Notice may be cited as the Elections (Extension of the period of Determination of Election Petition) Notice 1997, and shall come into operation on the 12 December.
>
> 2. Notice is hereby given that the period for the hearing and determination of election petitions presented after the General Election 1995, is hereby extended for a further period of six months.

Thereafter the case came up for mention before the District Registrar several times, apparently because the trial judge had been transferred from Arusha to Mwanza. On the 23 March 1998, when the petition came up for resumption of hearing, a preliminary issue was raised by Mr Maira, learned advocate for the Honourable Wilbroad Peter Slaa, M.P., who is the first respondent to the petition, objecting in effect to the competency of the High Court to hear the petition at that stage, on the ground that the Notice of the Minister extending the period of hearing was legally ineffective. The learned trial judge, Nchalla, J, after considering the submissions made by all the parties

to the petition, dismissed the objection. The objector was aggrieved by that decision, hence this appeal to this court.

Mr Maira, learned advocate, appears for the appellant in this appeal, while Mr Musei, learned advocate, appears for the respondents, that is Arusha Kalwa and five others. We allowed Mrs Macha, learned Senior State Attorney from the Attorney General's Chambers to appear as *amicus curiae* (a friend of the court) since the issues involved in this appeal obviously concern the Government. We note that, unlike in the High Court, the law does not require the Attorney General to be joined as a party to appellate election proceedings if he does not wish to take sides in the appeal.

When this appeal came up for hearing a week ago, there was a preliminary Notice of Motion filed by Mr Musei of an intention to object to the hearing of the appeal on the ground of invalidity of the Notice of Appeal. However, as a result of discussions between the bench and Mr Musei, the Notice of Motion was withdrawn.

The Memorandum of Appeal before us contains three grounds of Appeal as follows:

1. That the learned trial judge erred in law and in fact holding that section 11(2) of the Elections Act 1985 as amended being temporary enactment having lapsed on 15 November 1997 in so far as this petition could legally be extended by G.N. 772 of 1997 which took effect on 12 December 1997.

2. That the learned trial judge erred in law in holding that G.N. 772 of 1997 which was made on the 10 day of December 1997 a day before Act Number 31 of 1997 which conferred the powers of extending the period was assented to by his Excellency the President of the United Republic of Tanzania. The same was assented to and became law on 11 December 1997.

3. The learned trial judge erred in law in holding that there was a defect in the drafting of G.N. 772 of 1997 and that such defect was curable by section 30 of the Interpretation of Laws and General Clauses Act Number 30 of 1972.

We allowed Mr Maira under rule 106(a) of the Tanzania Court of Appeal Rules to address us on a point not covered by the three grounds of appeal, and this concerns a finding by the learned trial judge where he stated, *inter alia*, that:

> Lastly, but not least, I quite agree with Mr Musei, learned advocate that in construing section 115(2) of the Act, the period of two years mentioned therein must be two years when the court is all the while seized of the petition. In computing the said two year period, the time when the court was not seized of the petition as was the case here when the record was before the Court of Appeal, has to be excluded. In my considered view, this is a salutary interpretation of section 115(2) of the Act which will cure or save the provision from uncertainty or inherent absurdity. I so find.

The appellant's case both in this court and the High Court is to the effect that the provisions of sub-section (2) of section 115 of the Elections Act 1985, which prescribe a period of two years for hearing and determination of election petitions is temporary in nature and was intended to expire two years after election petitions were presented in the High Court. It is part of the appellant's case that the provisions of Act Number 31 of 1997 which provide for extension of the period of two years, have no effect since the Bill passed by Parliament was not assented to until after the expiry of the prescribed period of two years. Similarly, it is part of the appellant's case that the Notice given by the Minister responsible for legal affairs under G.N. 772 of 1997 was ineffective since it was based on a non-effective legislation.

Finally, the appellant contends to the effect that in computing the period of two years within which the High Court is required to conclude the trial, the time when the election petition was not before that court but was on appeal before the Court of Appeal has to be included, since there is no express provision to the contrary under section 115 of the Act.

The respondents' case on the other hand is to the effect that the provisions of sub-section (2) of section 115 are of a permanent nature and are in force until repealed or amended by Parliament. The respondents also contend to the effect that on a proper interpretation of the provisions of sub-section (2) of section 115 of the Act, the prescribed period of two years relates only to the time when the election petition is before the High Court and does not include the time covered by any appellate process. Furthermore, according to the respondents, the prescribed period of two years excludes any time when proceedings in the High Court are stayed or suspended by order of the trial court, as it was done on two occasions in this case, pending the appellate process.

The first important issue for consideration and decision in this appeal is whether the provisions of sub-section (2) of section 115, which prescribe the period of two years, are temporary. Mr Maira, learned advocate cited **Halsbury's Statutes of England,** (2 ed), Volume 24 pages 171, 173 and 174. It is stated therein at page 171 that, "An Act may be either temporary or perpetual. A temporary Act may be expressed to remain in force for a fixed period (subject in certain instances to extension by Order in Council). At page 173 it is stated, "A temporary Act expires (unless provision is made for its continuance as to which, ... at the end of the period for which it is expressed to remain in force, or, if it is to remain in force until a date fixed by order in Council, on such date as is fixed". We find nothing relevant on page 174. It is however apparent, from what Mr Maira cited to us, that an Act of Parliament or a provision within such Act is of a temporary nature only if it is expressly stated therein to that effect. We have closely examined the provisions of section 115 of the Elections Act 1985 and we find no express statement to the effect that sub-section(2) is for a limited period. What we find is an express statement prescribing a specific period within which the election petition is to be determined by the trial court. For all these reasons we are satisfied that sub-section (2) is not temporary but perpetual, and we so find.

The next important issue for consideration and decision is whether the election petition challenging the parliamentary election results for Karatu Constituency falls within the scope of sub-section (3) of section 115 of the Elections Act, 1985 which empowers the Minister responsible for legal affairs to extend the prescribed period for a further six months. In considering this issue, the question arises whether in computing the prescribed period, account has to be taken of public holidays. Mrs Macha, learned Senior State Attorney from the Attorney-General's Chambers, in her capacity as a friend of the court, has drawn our attention to the provisions of section 43 of the Interpretation of Laws and General Clauses Act 1972, Chapter 1 of the Revised Laws of Tanzania. That section states under paragraph (d):

> When an act or proceeding is directed to be done or taken within any time not exceeding six days, excluded days shall not be reckoned in the computation of the time.

It is Mrs Macha's submission that since public holidays are 'excluded days' in terms of section 43, and since excluded days are not reckoned only where the period to be computed does not exceed six days, it follows that public holidays are included in computing the prescribed period of two years. We note that Mrs Macha's submission is supportable at Common Law. Under paragraph 1140 of **Halsbury's Laws of England** Volume 45 (4 ed) it is stated as a general rule "Where a period is fixed within which some act must be done, Sundays and holidays in general count like other days...." Neither Mr Musei nor Mr Maira expressed a view contrary to that of Mrs Macha. We are satisfied that in computing the period of two years prescribed under sub-section (2) of section 115 of the Elections Act, 1985 public holidays are to be included, and we so find.

The second question which has to be answered before we decide the issue concerning the applicability of sub-section (3) to the Karatu election petition, is whether the prescribed period of two years relates only to the time when the High Court is seized of the election petition and excludes the time when the proceedings are removed from the

High Court by appellate process. In answering this question, we have had to closely examine the relevant provisions of sub-section(2). It is provided therein that the election petition has to be heard and decided "within two years from the date of presentation of the election petition before it." We have underlined the words "before it" because we think they provide the clue to the answer. It is our considered opinion that the obligation of the High Court to hear and determine the election petition within two years operates only when the election petition is before that court, and not when, according to law, it is before another court, such as the Court of Appeal.

The third question which we must answer before dealing with the issue of the applicability of sub-section (3) of section 115 to the Karatu election petition, is whether, bearing in mind the appellate process, the period of two years prescribed under sub-section (2) has already expired, and if not, when is it expected to expire?

Obviously, the answer to this question is a matter of mathematical calculation. It is common ground that the Karatu election petition was presented to the High Court on 14 November 1995. It must follow that, in the absence of intervention by the appellate process, we have to conclude that the prescribed period of two years was bound to expire on 15 November 1997. But we have to exclude the period covered by the appellate process, that is from the time the first Notice of Appeal was lodged on 27 November 1996 to the day when the first appeal was decided on 26 September 1997, which is a period of about ten months. This means by the 15 November 1997, the Karatu election petition had been before the High Court for two years less ten months – that is – for one year and two months. To put it differently, it can be said that as on the 15 November 1997 the prescribed period for the Karatu election petition still had ten more months to run, expiring on 15 September 1998, unless there was another intervention by the appellate process, as indeed it occurred.

As already mentioned, the resumption of trial of the petition before the High Court was interrupted a second time, that is by the

present appeal. This means the time covered by this appeal, from 27 March 1998 to the time we deliver this judgement, must also be excluded.

We are aware that an understanding of the law as we have explained it, will help a great deal in discouraging preliminary appeals made as delaying tactics for getting an election petition time-barred. It is also our view that such delying tactics ought to be discouraged by the courts by ordering advocates involved in obvious delaying tactics, to personally pay the costs occasioned by such tactics.

In the light of the answers we have found on this aspect of the matter, it is apparent that when the Presidential Assent was given to the Bill in question on 11 December 1997, and the Notice of the Minister was published on 12 December 1997, the prescribed period of two years had not expired in respect of the Karatu election petition. It is also apparent that as matters stand at present, where the prescribed period still has more than ten months to run, it cannot be said in terms of the provisions of sub-section (3) of section 115, that "the election case is unlikely to be determined within the period of two years".

What this means is that it is not yet time for the Minister responsible for legal affairs to exercise his powers of extension in respect of the Karatu election petition. Undoubtedly, there may be other election petition cases where GN. 772 of 1997 is of relevancy. In the case before us, the conduct of the parties in appealing on preliminary issues, has kept the prescribed period well and alive for months to come. It must be clear by now that, this appeal cannot succeed. But before we make our final decision, there is another issue which, though not necessary for decision of this appeal, has to be resolved because advocates on both sides made submissions on it at length. The issue is whether under the provisions of sub-section(3) of section 115, the Minister responsible for legal affairs is empowered to extend the prescribed period after it has expired.

We are satisfied that the answer must be in the negative. It is clear under the provisions of sub-section(3) of section 115 that the

Minister exercises these powers only under circumstances where there are election cases which are "unlikely to be determined within the period of two years." This provision presupposes that the prescribed period has not expired but the remaining time of the period is insufficient for the conclusion of the case or cases concerned. Furthermore, we do not think that the power to extend, means or includes the power to revive an expired period or to create a new period. We are supported in this view by judicial opinion of the courts in India. This can be seen in the case of *National Industrial, Corporation Ltd. v. Registrar of Companies* (1) and Case of *Abdul Gaffar v. State of U.P.* (2). These cases are cited in **Mitra's Legal and Commercial Dictionary,** (5 ed) page 296. The learned author states that, "the word 'extension' imports continuance of an existing thing and effect must be given to the word where it occurs".

As to the point discussed in the course of hearing this appeal concerning the power of the High Court to suspend or stay proceedings before it, we do not think that the High Court is empowered to suspend the running of the prescribed period in respect of an election petition which is before it. In our view, the orders made in this case suspending the proceedings pending the appeals, were superfluous since the proceedings ceased to be before the High Court by virtue of the appellate process.

Finally, as a matter practice under the law as it is at present, we need to state that where an appeal on preliminary issue is made in an election petition, the registries of the High Court and the Court of Appeal have to expedite the preparation of the Record of Appeal and facilitate an early hearing of the intended appeal. In appropriate cases, the Court of Appeal may even re-arrange its cause lists so that election appeals are dealt with dispatch.

In conclusion we now dismiss this appeal. Since it is not obvious in this case that delaying tactics have been employed by any advocate, we make the normal order that costs be paid by the appellant.

INSTITUTE OF DEVELOPMENT MANAGEMENT, MZUMBE *v.* DAVID MWAKIKUNGA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, J.A.)

CIVIL APPLICATION No. 6 OF 1998

(From the decision of A. R. Manento, Esq., Principal Resident Magistrate, Extended Jurisdiction, dated 25 November 1997, in Civil Appeal No. 22 of 1997)

Civil Practice and Procedure – Tanzania Court of Appeal Rules – Application to strike out Notice of Appeal – Letter to the Registrar applying for a copy of the record of proceedings for appeal purposes not served on the respondent – Effect thereof – Rule 83(1) and (2) of the Tanzania Court of Appeal Rules 1979.

Civil Practice and Procedure – Tanzania Court of Appeal Rules – Copies of letter applying for record of proceedings left with the court – Whether the court is bound to serve copies of the said letter on the respondent.

The respondent in this application filed a Notice of Appeal in time, on 1 December 1997, wishing to appeal against the decision of the Principal Resident Magistrate, Extended Jurisdiction dated 25 November 1997. His letter to the Registrar applying for a copy of the proceedings was also delivered in time on 5 December 1997, but the letter was neither copied nor sent the other party. And he did not lodge his appeal within 60 days from the date he filed the Notice of Appeal. The applicant then brought this application to strike out the Notice of Appeal on the ground that the respondent had failed to institute his intended appeal within the period prescribed by rule 83(1) of the Court of Appeal Rules. The respondent admitted that it was an oversight on his part not to have copied the letter in question to the applicant but blamed the court for not sending a copy to the applicant.

Held: (i) The expression "... sent to the respondent" in rule 83(2) of the Rules cannot be understood to mean that the copy of the letter was sent to the respondent by the court; it must mean that the copy was sent by the applicant;

(ii) The respondent had himself to blame for not sending a copy of the said letter to the applicant and thereby depriving himself of the protection under rule 83(1) against the time running out against him.

Notice of Appeal struck out

Statutory provision referred to:

(1) Tanzania Court of Appeal Rules 1979, rule 83(1) and (2)

Mr S.A. Massati, for the Applicant

RULING

(Dated 09 June 1998)

KISANGA, J.A.: This is an application to strike out the Notice of Appeal on the ground that the respondent failed to institute the appeal within the prescribed period in terms of rule 83(1) of the Court of Appeal Rules. The applicant's Notice of Motion is duly supported by affidavit to which the respondent has filed counter affidavit. Before me the applicant was represented by Mr S.A. Massati, learned advocate, while the respondent who was unrepresented appeared and responded to the application in person.

From the pleadings and the oral submissions by or on behalf of the parties, it is common ground that the respondent's Notice of Appeal in this case was given in time on 1 December 1997. Again there is no dispute that the respondent's letter to the Registrar applying for a copy of proceedings was delivered in time on 5 December 1997 but that such letter was neither copied nor sent to the applicant. It is plain that because the letter was neither copied nor sent to the applicant, the respondent is precluded from claiming protection under rule 83(1) of the Rules against time running against him. That is to say since such letter was neither copied nor sent to the applicant, the respondent was obliged to institute his appeal within 60 days from 1 December 1997 when he gave the Notice of Appeal. This he

did not do and so time ran out on 1 December 1998 thus providing the basis for bringing this application.

In his oral submission the respondent admitted that it was an oversight on his part not to have copied the letter in question to the applicant but blamed the court for not sending a copy of it to the applicant. He contended that he left sufficient copies of that letter with the court and trusted that the court would have sent one of them to the applicant. He added that he did not know that he was required to send a copy to the respondent, nor did the court inform him of this.

The relevant provision of the law is rule 83(2) of the Rule which says:

> (2) An appellant shall not be entitled to rely on the exception to sub-rule(1) unless his application for the copy was in writing and a copy of it was sent to the respondent.

The expression "... was sent to the respondent" cannot, in my view, be understood to mean that the copy of the letter was sent to the respondent by the court. I think it must mean that the copy of the letter was sent to the respondent by the appellant, and I could read nothing in the provision to suggest that the court is to act as conduit for the purpose. Upon that construction therefore, I hold that the respondent had himself to blame for not sending a copy of the said letter to the applicant, with the result that he deprived himself of the protection under rule 83(1) against the time running out against him.

In the result the application is granted, and the Notice of Appeal is accordingly struck out for failure by the respondent to institute the appeal within the prescribed period. Costs to the applicant.

CALICO TEXTILE INDUSTRIES LIMITED *v.* ZENON INVESTMENTS LTD, REGISTRAR OF TITLES AND NBC HOLDING CORPORTAION

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Mackanja, J.)

MISCELLANEOUS CIVIL CAUSE No. 10 OF 1998

Civil Practice and Procedure – Injunctive relief – Prayer for injunctive relief in the absence of a suit pending in court – Whether the court may grant the relief.

Civil Practice and Procedure – Procedural law lacking in some material particular – Whether variation of adopted procedure is permissible.

Civil Practice and Procedure – Court forms – Chief Justice has not replaced the Indian forms in the Civil Procedure Code 1966 – Purpose of court formats.

Civil Practice and Procedure – Procedural law lacking in some material particular – Whether procedure obtaining in comparable jurisdiction may be adopted – Whether variation of adopted procedure is permissible.

Notaries Public and Commissioners for Oaths – Attestation – Affidavit attested by a Commissioner for Oaths with mutual interest in the proceedings – Whether the affidavit is defective – Section 7 of the Notaries Public and Commissioners for Oaths Ordinance Chapter 12.

Statutory interpretation – Meaning of "non-bank assets and liabilities and all other assets, liabilities and business of the former bank" – Whether the meaning includes a debenture the bank branch to which it was issued is unknown – Section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997 Number 23 of 1997 – Ejusdem generis rule.

Banking – Statutory interpretation – Meaning of "non-bank assets and liabilities and all other assets, liabilities and business of the former bank" – Whether includes a debenture the bank branch to which it was issued is unknown – Section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997 Act Number 23 of 1997.

The applicants, acting through Mr Nimrod Mkono, brought proceedings with several prayers, including prayers for: an injunction to restrain the first respondent from selling or disposing of or in any way dealing with the title deed of the subject of the action, removal of a caveat relating to the subject of the action filed in the Land Registry, and rectification of the Land Registry by the second respondent. The application was supported by an affidavit attested by an employee of TDFL, a company with interest in the applicant. In opposing the application the respondents raised preliminary objections on a number of grounds, including that: (a) the format of the Chamber Summons and supporting affidavit was not in accordance with the provisions of the Civil Procedure Code 1966, under which the application was brought; (b) injunction could not be applied for in the absence of a suit pending in court; (c) the affidavit supporting the application was defective, having been attested by an employee of TDFL, the principal and client of Mr Mkono in his capacity as receiver and manager including TDFL; and (d) the third respondent was wrongly joined in the application because it had no interest in the debenture since the debenture was not a non-bank asset or liability under the provisions of section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997. The court considered the objections.

Held: (i) In principle, where our procedural law lacks in some material particular, courts can conveniently adopt procedures that obtain in comparable jurisdictions, especially India, from where our Civil Procedure Code was derived;

(ii) Since the objective of the various forms is the promotion of coherence, certainty and flow in preparing pleadings, deviation from a court format in India *per se* would not constitute a ground which could lead to rendition of a proceeding as being invalid;

(iii) Under the Civil Procedure Code a court may grant a temporary injunction to protect property that is the subject of a suit pending the determination of that suit or until any further orders are made in relation to that suit; an order for temporary injunction, therefore, cannot be made in a proceeding which is not, *stricto sensu*, a suit;

(iv) The present application for injunction is invalid because it is not based on a suit which is pending in court;

(v) To the extent that the Commissioner for Oaths who attested Mr Mkono's affidavit has an interest in the affairs of the applicant the affidavit contravenes the provisions of section 7 of the Notaries Public and Commissioners for Oaths Ordinance Chapter 12, and is therefore defective and the application was invalid *ab initio*;

(vi) Since the affidavit supporting the application was fatally defective when these proceedings were initiated, the application was invalid *ab initio;* nothing could be done to save it, and since there is no affidavit to support the application, such application is totally invalid, *ab initio;*

(vii) A liberal interpretation of section 10 of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act 1997 irresistibly leads to the conclusion that the banking business to which mortgages and debentures belong were transferred to the NBC (1997) Ltd and to NMB; according to section 10(1)(e) no banking assets were transferred to the second respondent, so that the words "...and liabilities and all other assets, liabilities and business of the former bank..." must be construed *ujusdem generis* with the words "non-banking assets" which proceed them, and by reason of that interpretation the debenture in question could only be transferred to NMB or NBC (1997) Ltd;

Application dismissed

Cases referred to:

(1) *Project Planning Consultants (Tanzania) v. Tanzania Audit Corporation,* [1974] L.R.T., n.10

(2) *Jashbhai C. Patel v. B.D. Joshi,* [1950-51] 17-18 E.A.C.A. 42

Statutory provisions referred to:

(1) National Bank of Commerce, section 10(1)(e)

(2) Civil Procedure Code, section 95, Order XLIII, rule 2 and Order XXXVII, rule 1(a)

(3) Land Registration Ordinance, sections 78(4) and 99(1)(f)

(4) Land (Law of Property and Conveyance), section 13

Prof. Z.S. Gondwe, for the Applicant

Mr Mihayo, Mr Ng'maryo and *Ms. Mguto,* for the Respondents

RULING

(Delivered 16 June 1998)

MACKANJA, J.: Messrs Calico Textile Industries Limited, acting through Mr Nimrod Elireheemah Mkono, have brought these proceedings in which they seek several prayers to be granted them. Mr Mkono swears that he acts as receiver and manager for the applicant, a matter that has been hotly contested by the respondents. Suffice it for now to say that the application has been filed under section 95, Order XLIII, rule 2 and Order XXXVII, rule 1(a) of the Civil Procedure Code, and sections 78(4) and 99(1)(f) of the Land Registration Ordinance Chapter 334. And the reliefs sought are as follows:

(1) an injunction restraining the first respondent by itself and/or its agents of whatsoever description from selling, disposing of or in any way dealing with the title deed of the subject of this action;

(2) the caveat registered on 13 August 1997 in the Land Register as Filed Document Number 88682 by the first respondent be removed.

(3) the second respondent should rectify the Land Register by deleing the memorial proclaiming a notice of deposit of title in favour of the erstwhile National Bank of Commerce which was registered on 7 July 1997 as Filed Document Number 56156;

(4) the first respondent should deposit in court the title deed registered under Certificate of Title Number 15056, Folio Number 9074, Serial Number 479/60 at the Dar es Salaam Land Registry so as to facilitate its release to the applicant;

(5) costs;

(6) such other relief as the court may find just to grant.

The application is supported by the affidavit of Mr Mkono. He swears that sometime ago Calico Textile Industries Limited (CALICO) executed a Debenture, dated 20 December 1985, to Tanzania Development Finance Company Limited (TDFL) under which CALICO as beneficial

owner Charged, *inter alia,* its lease (registered on 10 June 1960 as Title Number 15056 under Folio 9074, serial Number 47/60 with a first specific charge as security for the payment of monies due from CALICO to TDF. By a deed of appointment of receiver and manager dated 7 April 1992 TDFL appointed him to be their receiver and manager of all properties and assets whatsoever charged under the CALICO debenture, including the land comprised in the title deed registered under Certificate of Occupancy, Land Title Number 15056, Folio Number 9074, Serial Number 479/60, Dar es Salaam Land Registry. Search of the Land Register in the course of his duties as receiver and manager of CALICO disclosed a prior caveat against the property. This was registered on 18 August 1997 as Filed Document Number 88682, by Alexander Muganda of Muganda and Kamugisha, as advocates for the first respondent.

The second paragraph is the first respondent's caveat reads as follows:

> I solemnly and sincerely declare that M/S Zenon Investments Limited have an interest in the above registered land and require a caveat to be registered and enforced against the land which is presently registered in the name of M/s Calico Textile Industries Limited and that the said M/s Zenon Investment Ltd. pursuant to an agreement with the National Bank of Commerce, under which former purchased the debts of Calico Textile Industries Limited owed to the said Bank, thereby by acquiring interest in the said land, and is currently in the process of having the said land registered in the name of Zenon Investments Limited.

Mr Mkono depones further that although any person who claims an interest in any registered land may register a caveat against a land, it is common knowledge that no overseas body corporate may hold or register an interest in land in the United Republic unless it is in possession of a valid licence first hand and received pursuant to the provisions of section 13 of the Land (Law of Property and Conveyance) Ordinance Chapter 114. The first respondent, a foreign company, he said, had not been granted such licence at the time of registering

such a caveat. According to him it follows that the purported caveat is invalid, and should therefore be removed from the land register.

It is the affidavit evidence of Mr Mkono that in its letter dated 13 June 1997 NBC not only admitted knowledge of his appointment by TDFL, as receiver and manager of CALICO, but also:

> (a) Confirmed to me in writing it has resolved to join TIB and TDFL in the Receivership and that all the legal formalities pertaining to the joining of the Receivership would be communicated to me officially as Receiver and Manager by the Bank and Chief Counsel who would also deal with me on the title deed.
>
> (b) By its letter dated 17 June 1997 duly appointed me joint Receiver and Manager of CALICO.

His letter of 25 July 1997 points out that the arrangement NBC were making with CALICO to have the first respondent settle Calico's debt would defeat and/or prejudice the interest of TDFL. He therefore demanded in that letter that NBC should release the title deed to no other person but him as the receiver and manager of the assets and properties of CALICO. That letter is Annexture NEM 4 to his affidavit. It is Mr Mkono's contention that NBC completely ignored his demand because a Notice of Assignment dated 5 September 1997, drawn by their advocates and copied to him in part reads as follows:

> We give notice to you that, pursuant to the terms of Assignment dated 6 August 1997, National Bank of Commerce has assigned all its right, title and interest to Zenon Investments Limited, under the Loan Agreement and the Security Documents referred to above. Annexed herewith marked (NEM 5) is a true copy of the Notice of Assignment.

So the title deed in blatant disregard of his demand and, ostensibly pursuant to the purported assignment executed by NBC in favour of the first respondent, was delivered to the first respondent by NBC. As a consequence he has been prevented from selling the property which has now lost the price he could have received for the same. That in a very conspicuous departure from known land registration

practice, the respondent registered the first respondent's caveat without annexing to the caveat the instrument of assignment mentioned in the caveat and the Notice of Assignment. Following this omission he argues that wherever it is, that instrument:

(a) is not effectual because, being a disposition, it has not been registered as required by law;

(b) is invalid because the first respondent is a foreign company and may therefore not have power to hold any interest in land in the Territory unless is in possession of a valid licence first had and received pursuant to the provisions of section 13 of the Land (Law of Property and Conveyance) Ordinance Chapter 114;

(c) is invalid because it amounts to a fraudulent preference against the creditors of CALICO, "including TDFL".

(d) cannot be acted upon by any competent authority because it has not been duly stamped; and

(e) unlawful because, contrary to the express prohibition of the law, it purports to place a sum in Tanzanian currency to the credit of a person resident outside Tanzania, to wit, the first respondent.

Itis the applicant's contention that the first respondent's caveat is so flawed and does not satisfy the requirements of relevant laws. It is not registrable and should, therefore, be removed from the Land Register. Indeed, it is their argument that NBC must be seen to have fully discharged CALICO from its obligations to NBC at the point it accepted payment from the first respondent in full satisfaction of the debt owed to NBC by CALICO. So, it is the applicant's case that since it is claimed that acceptances of payment from the first respondent by NBC operated as full discharge of CALICO, it follows that there was left no outstanding obligation (due from CALICO) which NBC could "assign" to the first respondent. In other words, under the purported instrument of assignment there was no condition passing from NBC to the first respondent and that agreement is therefore void. It is in the evidence of Mr Mkono that the first respondent's

caveat is, on this additional ground, also invalid because it is derived from a void agreement. For the like reasons, the detention of the title deed by the first respondent is wrongful. He concludes his evidence by saying that:

> In the circumstances and for the reasons aforesaid, I do humbly beg this honourable court to order the second respondent to remove the first respondent's Caveat from the Land Registrar, to order the first respondent to deposit in court the Title Deed go as to facilitate its release to the applicant and for an injunction, pending the disposal of the application, restraining the first respondent by itself, its servant or agent from dealing with the Title Deed in any way.

The respondents are opposing the application and that they have done with considerable verve. First, the counter affidavit evidence of Mohbub Alam Chatur raises a number of preliminary points of objections and issues of law as follows:

1. that the format of Chamber Summons and of the supportive affidavit is not in accordance with the provisions of the Civil Procedure Code under which the application is brought;

2. that since this chamber application is effectively brought under Order XLIII, rule 2 and Order XXXVII, rule 1(a) no injunction can be prayed for because the same pends nothing against any of the three respondents, jointly or severally;

3. that the prayers indicated in the Chamber Summons are absolute and completely contrary to the provision of Order XXXVII, rule 1(a) which strictly allows temporary injunctions to be issued "pending the disposal of the suit".

4. that there is no cause of action disclosed whether in the Chamber Summons or in the affidavit of Mr Mkono as receiver and manager appointed by the Tanzania Development Finance Limited (TDFL), about six years ago, to justify Calico Textile Industries Limited making this application against any and/or all the respondents;

5. that third respondent is wrongly joined as a respondent in as much as the disputed Notice of Deposit over the land registered under certificate of Title Number 15056 was a banking asset to the defunct National Bank of Commerce and cannot, therefore, fall under the provisions of section 10(1)(e) which vests the third respondent with solely non-banking assets and liabilities of the former National Bank of Commerce; in the alternative, the interest in the banking assets was assigned by NBC to Zenon Investment Limited.

6. that the affidavit of Nimrod Elirehemah Mkono is hopelessly defective having been attested by a Mrs F.M. Ngalomba, learned counsel, who is an employee of TDFL, the principal and client of Mr Mkono acting in his capacity as receiver manager.

In an affidavit he has filed in reply to the counter affidavit Mr Mkono invites me to strike out the counter affidavit because the deponent being an "unqualified person" is not authorized to swear to the facts contained in the counter affidavit nor is as qualified to draw that document.

I will now, from the above background, consider and determine the preliminary issues of objection on points of law. This will be done in tandem with consideration of the applicant's own objections against the validity or otherwise of the counter affidavit. Let me say right away that learned counsel have approached their task with industry and scholarship. I have found the cases they have cited to be very useful. Let me also say that what cries for a decision now is not the application on the merits; only points of law that have been raised will be considered. I will begin with the first preliminary objection, and proceed to the decide the others in their relationship with the reliefs that are sought in the chamber application.

Learned defence counsel, namely, Mr Thomas Bashite Mihayo, Mr Eric Sikujua Ng'maryo and Ms. Jessie Stephen Maguto, have argued in respect of the first objection that the Chamber Summons and its accompanying affidavit are so defective and so irregularly filed that they cannot, in fairness to the law, be said to have properly

initiated an application for an order for temporary injunction before this court. It is their contention that the reply to the counter affidavit of Mahebub Alam Chatur by Nimrod Elirehemah Mkono brought no new evidence other than repeating the contents of his earlier affidavit. That the reply does not traverse the several points of law raised in the preliminary objections in the counter affidavit of Mahebub Alam Chatur. Instead, the written submissions by Professor Zebron Steven Gondwe in Item "A" of his summary of Argument and later, and with virtually no elaboration in paragraph 1.1 and 1.2 raised preliminary objection on a point of law. However, in the presence of preliminary objection being raised by both parties in a matter, they ask whose should be heard and determined first? They opine that it is the respondents' objection which must be considered and determined first, and only upon the court dismissing the respondents' preliminary objection can the applicant's objection then be heard and determined. They cited Woodroffe and Asser Ali, learned authors of the book, **Woodroffe and Ammer Ali's Civil Procedure in British India**, (2 ed) [1916] at page 842 when examining Order XVII, rule 1 of the Indian Code of Civil Procedure (1908) which is in *pari materia* with Order XVIII, rule 1 of our own Civil Procedure Code, 1966, in support of their arguments. The learned authors say that:

> The party on whom the *onus probandi* lies as developed by the record must begin ... At the hearing of a case on a preliminary issue the defendant by whom the issue is raised has the right to begin.

The issue as to which preliminary points of law are to be determined first attracts no controversy at all. In my view as has always been the case, whoever alleges the existence or otherwise of a fact has the *onus probandi* to prove what he alleges. Here it is part of the defence that the application is untenable at law. So it must first be established whether or not it is so. It is after that attacks on the defence will be considered. I therefore propose to deal with the defence objection first.

This brings me to the first preliminary objection, namely, the contention that the applicant's Chamber Summons and affidavit are

deficient in format. Learned defence counsel have drawn my attention to the contention that court documents, including Chamber Summons and affidavits have prescribed formats with which parties to civil litigations are bound to comply. It is their case that the requirement to conform to prescribed forms in civil procedure is laid down in section 101(2) of the Civil Procedure Code 1966. Although they concede that so far the Chief Justice has not replaced the Indian forms the use of those forms binds parties by virtue of section 101(2) and (3) of the Civil Procedure Code. I am now invited to hold that the affidavit of Nimrod Elirehemah Mkono and its summons have a title that does not even remotely resemble the form given in the First Schedule to the Indian Code of Civil Procedure, which they allege is the legally prescribed title for all proceedings filed in the court, A copy of that form is Annexture NMN2 to the defence lawyers written submission. It is reproduced here for ease of reference.

Appendixes to the First Schedule Forms

APPENDIX A.

PLEADINGS

(1)TITLES OF SUITS

IN THE COURT OF

A.B.(add description and residence).....Plaintiff

Versus

C.D. (add description and residence).....Defendant

The Secretary of State for India in Council

The Advocate General of _____

The Collector of _____

The State of _____

The A.B. Company, Limited having to registered office at

"A. B. a public officer of the C.D. Company

A.B. (add description and residence), on behalf of himself and all other creditor of C.D. Late of (add description and residence).

A.B. (add description and resident) on behalf of himself and all otherholders of debenture issued by the Company Limited _____

The Official Receiver _____

A.B., a minor (add description and residence), by C.D. (or by the court of Wards), his next friend.

I agree with learned defence counsel that, in principle, where our procedural law lacks in some material particular we can conveniently adopt procedures that obtain in comparable jurisdictions, especially India from where our Civil Procedure Code was derived. I am not persuaded, however, that deviation from a court format used in India *per se* would constitute a ground which could lead to the rendition of a proceeding as being invalid. In this connection I uphold the submissions of Professor Zebron Steven Gondwe, learned counsel for the applicant, who argues that the objective of the various forms cited by learned defence counsel is no more than the promotion of coherence, certainty and flow in preparing pleadings. In any case, Appendix MNM 2 relates to "Titles of Suits". An application such as this one, although it is a civil proceeding, does not constitute a suit. In my view a suit is one that is instituted by a plaint, in which the plaintiff sues and the defendant resists the claim in the manner provided in the Civil Procedure Code. Especially, the institution of a suit must comply with Orders I-VIII of the Civil Procedure Code, or under the Civil Procedure Code applicable to Primary Courts. Any proceeding of a civil nature that is instituted otherwise than is provided above is not a suit and, therefore, must be governed by different regulations. At any rate, the defence has not shown how non-compliance with the format in appendix (MNM2) has affected

the validity of this application. This probably explains Prof. Gondwe's wonderment as to why, if the Chamber Summons and the supporting affidavit were wrongly headed, the respondents have their pleadings in the same format they attack. To that extent this objection lacks merit and it would fail.

It is contended in the second point of objection that this application is untenable because it contains a prayer for an injunctive relief in the absence of a suit which is pending in court on which it would have been founded. As it is obvious from the record of proceedings the applicant cites Order XXXVI, rule 1(a) of the Civil Procedure Code as the basis for making this application. Order XXXVII deals with temporary orders. Rule 1(a) provides:

> 1. Where in any suit it is proved by affidavit or otherwise:
>
> (a) That any property in dispute in a suit is in danger of being wasted, damaged, or alienated by any party to the suit or suffer loss of value by reason of the continued use by any party to the suit or suffer loss of value by reason of the continued use by any party to the suit or wrongly sold in execution of a decree ...
>
> (b) The court may be order grant a temporary injunction to restrain such act, or make such other order for the purpose of staying and preventing the wasting, damaging, alienation, sale, loss in value, removal or disposition of the property as the court thinks fit, until the disposal of the suit or until further orders.

The defence lawyers contend that the citation of this particular provision which is for temporary injunction and interlocutory orders necessarily gives the whole application a temporary and interlocutory bearing. Yet this application is obviously for orders absolute as prayed for under sections 78(4) and 99(1) (b) and (f) of the Land Registration Ordinance Chapter 334 and, contrary to the filed prior to the application. It is therefore the contention of the defence that the above state of affairs makes the reliefs sought impossible to grant. For that reason alone they invite me to dismiss the application in its entirety.

In his reply, Professor Gondwe argues that a temporary injunction is not the sole relief that is sought so that if it fails then the entire application must follow suit. To that extent I agree with him, but he has not addressed the issue whether an application for an injunction can be sought in the absence of a suit. It remains to be seen, as the prayer goes in the Chamber Summons and as Prof. Gondwe argues, that the injunction can be granted to restrain the first respondent from selling, disposing of or in any way dealing with the land or the title deed in respect thereof pending the determination of the application.

It is the applicant's case that the application is maintainable because, as pointed out earlier, the injunctive relief is one of several prayers. He is convinced that he is entitled to proceed the way he has done in terms of sections 78(4) and 99(1) (b) and (f) of the Land Registration Ordinance, Chapter 334, under which the application is brought. These sections provide as follows:

> 78(1)...
>
> (4) The High Court, the application of the owner of the estate or interest affect, may summon the caveator to attend and show cause why such caveat should not be removed and thereupon the High Court may make such order, either *ex parte* or otherwise as it thinks fit. ....
>
> 99(1) Subject to any express provisions of this Ordinance the land register may be rectified pursuant to an order of the High Court or by the Registrar, subject to an appeal to the High Court, in any of the following cases-
>
> (b) where the High Court, on the application of any person who is aggrieved by any memorial made in, or by the omission of any memorial from the land register, or by any default being made, or unnecessary delay taking place, in the inscription of any memorial in the land register, makes an order for the rectification of the land register;

(c) in any other case, where, by reason of any error, or omission in the land register, or by reason of any memorial made under a mistake, or for other sufficient cause it may be deemed just to rectify the land register.

Accordingly, Professor Gondwe submits that it will be readily apparent that section 78(4) aforesaid permits the applicant to commence proceedings, as he has done, by way of an application and that section 99(1) and (f) empowers this court to issue orders envisaged therein.

As regards the procedure by which an application for a temporary relief which is not based on a suit, Professor Gondwe submits that the instant application is akin to the "Originating Summons" obtaining under English practice. He then refers to the definition of that expression and that of the term "summons" in **Osborn's Concise Law Dictionary**, (5 ed). He does not mention the pages, but according to the (7 ed) of that law dictionary that expression and term of law are defined at pages 316 and 241, respectively. The definitions are as follows:

Summons. A document issued from the office of a court of justice, calling upon the person to whom it is directed to attend before a judge or officer of the court. In the High Court of Justice a summons is a mode of making an application to a judge or master in chambers for the decision of matters of procedure prior to or *in lieu* of the hearing of an action in court e.g. a summons for directions (q.v.) (see Order 54).

Originating Summons. Proceedings may be begun by originating summons, as well as by writ, or petition (Order 5) Proceedings suitable for commencement by originating summons are where the principal question is the construction of an Act, statutory instrument, deed, will contract or other document or some other question of law, and where there is unlikely to be any substial dispute of fact.

Originating summons is issued in the Queen's Bench Division as well as in the Chancery Division, expect that claims in tort (Other than trespass to land) or for fraud, breach of promise, infringement of patents, personal injury, and fatal accidents cases must be began by writ (Order 5, 28).

Professor Gondwe winds up his argument on this issue saying that in view or the foregoing, it is patent that the instant application, lodged under section 78(4) of the Land Registration Ordinance, is an Originating Summons which can form the basis, as is the case here, of an interlocutory application.

There is no doubt that the practice and procedure obtaining in England is as Professor Gondwe has pointed out. He is borne out on this by eminent jurists of English jurisprudence on the subject of pre-emptive justice. The learned authors of **Halsbury's Laws of England**, (4 ed) in paragraph 1048 of Volume 24, say that an application for an injunction may be made by any party to a cause or matter before or after trial, whether or not a claim for the injunction was included in the party's originating summons. The learned authors of **Commercial Litigation: Pre-emptive Remedies** by Ian S. Golderein, M.K. and K.H.P. Walkinson, LL.B (Hons) go further; they cite the procedural order under which an application for an injunction may be made by an originating summons. This they say at pages 30 to 32 of their book. The most relevant parts are as follows:

PART C: PRACTICE AND PROCEDURE

1. Introduction

2. 1. Order 29, rule:

(1) An application for the grant of an injunction may be made by any party to a cause or matter before or after the trial of the cause or matter, whether or not a claim for the injunction was included in that party's writ, originating summons, counterclaim or third party notice, as the case may be.

(2) Where the applicant is the plaintiff and the case is one of urgency such application may be made *ex parte* on affidavit but, except as aforesaid, such application must be made by motion or summons.

(3) The plaintiff may not make such an application before the issue of the writ or Originating Summons by which the cause or matter is to be begun except where the case is one of urgency, and in that case the injunction applied for may be granted on terms providing for the issue of the writ or summons and such other terms if any, as the court thinks fit.

There is no doubt that the English provisions that govern the institution of applications for pre-emptive reliefs in the form of temporary injunctions cover a wide range of civil proceedings. In my view this is so because the law related to "a cause or matter." The Civil Procedure Code under which we operate is not as wide as the English law. Order XXXVII of the Civil Procedure Code lays down a specific procedure which governs any party who desires to institute an application for a temporary injunction. The instant application has been brought under rule 1(a) of the said order; it provides:

1. Where in any suit it is proved by affidavit or otherwise

(a) That any property in dispute in a suit is in danger of being wasted, damaged, or alienated by any party to the suit.

(b) ....

The court may be order grant a temporary injunction to restrain such act.

Until the disposal of the suit, or until further orders.

For purposes of the Civil Procedure Code a court may grant a temporary injunction to protect property that is the subject of a suit pending the determination of that suit or until any further, orders are made in relation to that suit. An order for a temporary injunction, therefore, cannot be made in a proceeding which is not, *stricto sensu,* a suit. I am fortified in this by the scholarly commentary on Order XXXIV 1(a) of the Indian Code of Civil Procedure as made by the learned authors of **Sakar's Law of Civil Procedure,** (8 ed), 1 June 1992. That Order is in *pari materia* with our Order XXXVII, rule 1(a); the authors say this at page 1416:

The principles governing the grant of injunction are well-settled... the object is to preserve the *status quo* while rights are being litigated and the onus is an the plaintiff to show his need for the injunction.

The term "Plaintiff" in litigation is based on the one who brings and prosecutes a suit. It is a term that refers to the party in a suit who has lodged a claim for reliefs in terms of the Civil Procedure Code as earlier pointed out. So there must be a suit pending in court in respect of which an application for an injunction will be made.

Of course I also have in mind the English practice. Foreign practice will be employed where our own law had made no provision. Where we have a law in place courts in this country will limit themselves to emulating sound principles of law and of practice from foreign jurisdictions of comparable system of justice. It is in these circumstances I am persuaded to accept the defence proposition that an application for an injunction will be invalid if it is not based on a suit which is pending in court, for as I have said, an application such as this one is not a suit. The prayer for an injunction would therefore be refused.

Learned defence counsel contend that the supporting affidavit that was sworn by Mr Mkono is incurably defective. According to them the counter affidavit of Mr Mahbub A. Chatur, having been not controverted, establishes that Mrs F.M. Ngalomba the Commissioner for Oaths before whom Mr Mkono swore the affidavit, is an employee of TDFL. It is their further submission that in paragraph 4 of the affidavit of Mr Mkono, it is unequivocally stated that TDFL appointed him the receiver and manager of Calico. Mr Mkono is the deponent of the affidavit attested by Mrs Ngalomba who is an employee of TDFL. Thus, both Mr Mkono and Mrs Ngalomba are persons employed by TDFL and are acting on its behalf. Learned counsel have drawn my attention to the fact that the role of an officer who attests the signature of a deponent is that of a Commissioner for Oaths, and that the law that regulates the powers and duties of Commissioner of Oaths is the Notaries Public and Commissioners for Oaths Ordinance Chapter 12. They argue that particular piece of legislation is categorical in its total restriction of the exercise of the powers by a Commissioner

for Oaths in proceedings or matter in which that Commissioner is interested. So, because of their mutual interest in the proceedings on behalf of their principal, TDFL, learned defence counsel would have no hold that the attestion of the affidavit of Mr Mkono by Mrs Ngalomba is irreparably defective. They argue that by reason of the alleged defects, there is no application which this court can adjudicate upon. They have cited the decision of this court, Onyiuke, J., in *The Project Planning Consultants (Tanzania) v. Tanzania Audit Corporation* (1) in support of ther arguments.

The learned counsel for the applicants puts forward the proposition that section 7 of The Notaries Public and Commissioner for Oaths Ordinance, Chapter 12, is directed not at the instrument, but at the conduct of the Commissioners for Oaths. Had the Legislature intended any sanctions against the affected instrument it would have made specific provision therefore. He gave as examples section 44(2) of the Advocates Ordinance and section 46 of the Stamp Duty Act 1972 which expressly pronounce the fate of a non-complying instrument. He makes the further point that the respondents themselves concede that TDFL is not a party to this application. So to him it is difficult in such circumstances to comprehend how Mrs Ngalomba, a mere employee of TDFL, would have such interest in this matter as would trigger the operation of section 7 of the Notaries Public and Commissioners for Oaths Ordinance. They submit that Mrs Ngalomba is a duly admitted advocate and Commissioner for Oaths who has no interest in this matter. In fact the definition of "interest" and especially the definition of "indirect interest" completely exclude her attestation of the affidavit that supports the application from the review of the provisions aforesaid.

Even more damaging to the respondent's argument he contended, is the fact that the case they are relying on i.e. *Project Planning Consultants (Tanzania) v. Tanzania Audit Corporation* (1) is easily distinguishable and that, in fact, confirms the applicant's argument. In that case it was held that an officer of the Tanzania Legal Corporation cannot act as a Commissioner for Oaths in any proceedings in which

that corporation is advocate to any of the parties to the proceedings. In the instant case TDFL is not an advocate to any of the parties. Indeed, it is not even a party to the application, so it is no wonder that the respondents did not annex to their written submissions what one would have thought a crucial decision for their argument; it is because the same case defeats their argument.

After having argued with so much vitality, Prof. Gondwe submitted that where a matter is heard by way of written submissions, as is the case here, a reply constitutes the applicant's final address to the court. He cited *Jashbhai C. Patel v. B.D. Joshi* (2) where it was held that even during a party's final address court has the discretion to entertain the substitution of properly drawn instrument for one which exhibits same defect(s) in form where no injury has been occasioned to the other party. It is contended that in the instant case the attestation in question has occasioned no injury to the respondents. "... We are lodging herewith 6 copies of the re-sworn affidavit of the applicant, and the only changes therein are the date of making the oath the signature of the Commission for Oaths, the stamp of said Commissioner and the addresses of the respondents. The rest of the Affidavit is unchanged. My Lord, as the respondents concede in paragraph 66 of their submission, this application involves a 'complexity of issues' which we believe can only be resolved if this application is heard on its merits. My Lord, under section 95 and 97 of the Code, it is within this honourable court's discretion to admit the re-sworn affidavit and to order re-service thereof on the respondents.

The controversy, really, if any, lies in the construction of section 7 of the Notary Public and Commissioners for Oaths Ordinance. It provides.

> (7) No Commissioner for Oaths shall exercise any of his powers as a Commissioner for Oaths in any proceedings or matter in which he is advocate to the parties to proceedings or matter in which he is interested.

These provisions create two situations in which a Commissioner for Oaths is disqualified, namely:

(1) He/she shall not exercise any of his powers is any proceeding in which he is advocate to the parties;

(2) He/she is also barred from exercising such powers in proceedings or matter in which he is interested.

Of the two limbs, I am persuaded by Prof. Gondwe that it has not been established that Mrs Ngalomba who attested Mr Nimrod M. Mkono's affidavit has at any time acted for the parties. As to the second limb there is no doubt that she is an employee of TDFL, Mr Mkono's principals in his capacity as receiver manager of the applicant. The issue is whether her employment is evidence of sufficiency of interest in these proceedings. Professor Gondwe argues that Mrs Ngalomba has no interest in TDFL and has cited the definition of term "interest" in **Osborn's Concide Law Disctionary**, to be:

> **Interest** : A person is said to have interest in a thing when he has rights, titles, advantages, duties, liabilities concerned with it, whether present, or future, ascertained or potential, provided they are not too remote ..."

Some of the meanings ascribed to that word "interest" by the **Collins English Dictionary**, (2 ed) is this:

> 5. benefit, advantage; a right, share of claim, esp. in a business or property.

The issue now is whether Mrs Ngalomba has an interest in TDFL.

There is no doubt that as an employee she has an interest in TDFL from several standpoints. She has rights accruing from her employment; she has duties and obligations under a contract of employment. She derives advantages from her relation with TDFL. She has a right to continue working with TDFL and to be remunerated commensurately. In these circumstances, TDFL is her principal in whose continued survival she must have a legimate interest. Does this interest bar her to act as a Commissioner for Oaths in a judicial proceeding in which her employer is interested?

Professor Gondwe has pointed out that TDFL is not a party to this application. That part of learned counsel's submissions is quite

attractive but it is entirely untenable. The affidavit of Mr Mkono clearly shows that the present applicant is more of a frontman for TDFL and that what really appears to have prompted this application are the direct interests of TDFL. That this is the case can be seen from paragraphs 3 and 4 of that affidavit. I will reproduce them here for ease of reference.

> 3. Sometimes ago Calico Textile Industries Limited (CALICO) executed a Debenture, dated 20 December 1985 to Tanzania Development Finance Company Ltd (TDFL) under which CALICO as beneficial owner charged, *Inter alia* its lease (Registered on 10 June 1960 as Title Number 15056 under Folio Number 9074, serial Number 47(60) (the "Property") with a first specific charge as security for the payment of monies due from CALICO to TDFL.
>
> 4. By a Deed of Appointment of Receiver and Manager dated 7 April 1992, TDFL appointed me to be their Receiver and Manager of all properties and assets whatsoever charged under the CALICO Debenture.

So although not directly a party TDFL is a constructive party to the proceedings because the powers the receiver manager exercises are those of TDFL in the management of CALICO which no longer can act through its own principal officers. To that extent, the affairs of CALICO are inextricably interwoven with those of TDFL. The interests of CALICO are now merged with those of TDFL. To that extent Mrs Ngalomba has an interest in the affairs of CALICO as well. Her attestation of Mr Mkono's affidavit has consequently contravened the provisions of section 7 of the Notaries Public and Commissioners for Oaths Ordinance. In this connection I find as useful reference the decision of this court, Onyiuke, J., in the case of *The Project Planning Consultants (Tanzania) v. Tanzania Audit Corporation* (1) where it was held, *inter alia;*

> The purpose of this section (section 7 of Chapter 12) is to ensure the Independence of a Commissioner for Oaths as an officer of court and to avoid any possible clash of interest in the discharge of his duties as a Commissioner for Oaths. The history of Commissioners for Oaths is given

at page 417 in Volume I of the **Dictionary of England Law** by Earl Jewitt. According to his book, Masters extraordinary in Chancery acted in very early times as Commissioners to administer oaths to persons making affidavits before them concerning Chancery Suits and Judges of the Common Law Courts were authorized under statute by Commission to empower persons to take affidavits for a fee concerning common law actions. The Commissioners for Oaths Act 1889 which amends and consolidates twenty-four enactments on the subject, enacts section 1 that the Lord Chancellor, may from time to time, by Commission signed by him to appoint practicing solicitors or other fit and proper persons to be Commissioners for Oaths with power, in England or elsewhere, to administer oath *(sic)* or take any affidavit for the purposes of any court in England but it is provided that a Commissioner may not act in any proceeding in which he is solicitor to any of the parties to the proceeding or in which he is interested. This latter provision has been reproduced is section 7 of our Notaries Public and Commissioner *(sic)* for Oaths Ordinance....

In the view of the foregoing I will strike out the affidavit in support of the present application as not been *(sic)* properly sworn. Order XLIII, rule 2 requires every Chamber Application to be supported by an affidavit. Since there is no affidavit supporting this application, I will strike out the application also.

Professor Gondwe has contended that if it is held that the attestation is fatally irregular, the affidavit be found to be in order because Parliament directes sanction against Commissioners for Oaths and not against the instruments they execute. In my view that argument is untenable nor are the examples he gave of any assistance. If the Legislature thought that provisions similar to those that apply to an unstamped document were to apply to irregularly attested affidavits, nothing would have stopped it from saying so. Since the words employed in section 7 of the Notaries Public and Commissioners for Oaths Ordinance are unambiguous this court is not entitled to introduce a foreign meaning to that statute for in doing so the intention of Parliament will be rendured absurd. Hence the affidavit in question is fatally defective and nothing can be done that will save it.

Professor Gondwe has persued another line of argument. He contends that if the affidavit supporting the application is found to be defective, it can be cured by filing another affidavit containing the same facts, which, in fact he did without leave of court. He has cited *Jashbhai C. Patel v. B.D. Joshi* (2), a case that originated from the Supreme Court of Kenya, for the preposition that a party may be allowed to substitute a properly drawn instrument for one that is defective. But, surely the substitution of a properly drawn instrument for a defective one is not the same as substituting a properly attested affidavit with one that is defective. The reason for this proposition is not far to fetch, because an affidavit is the evidence on which an application is founded. This means, then, that throughout the life of these proceedings there was no affidavit that supports application until the applicant attempted to introduce fresh evidence to berth life into a nothing for an application is in order only if it is supported by an affidavit. Since, therefore, the affidavit supporting the application was fatally defective when these proceedings were instituted the application was invalid *ab initio;* nothing could be done to it that could save it.

What is also unusual is the manner the applicant introduced another affidavit into the record without leave of court. To say the least that was very irregular. Every practicing lawyer will know that an affidavit is evidence. It cannot be introduced at a time when the trial of the application was already concluded. To act as the applicant did is akin to allowing a plaintiff to adduce oral evidence after the close of the defence in substitution for evidence that he will discover cannot prove his case. What, therefore, is entitled the second affidavit of Mr Mkono was irregularly introduced into the record of proceedings. In that circumstance it has no evidential value and I now order that it be expunged from the record of proceedings. It is upon the foregoing reasons that I would hold that the application is totally invalid *ab initio.*

Another attack on the validity of the application is in the defence contention that the application in relation to the second and third reliefs is time-barred. This objection is not one of those that were

raised in the counter affidavit. It has been raised in terms of section 3(1) of the Law of Limitation Act 1971, which provides that:

> 3(1) Subject to the provisions of this Act, every proceeding described in the first column of the First Schedule to this Act and which is instituted after the period of limitation prescribed therefore opposite thereto in the second column, shall be dismissed whether or not limitation has been set up as a defence.

It is the learned defence counsel's contention that time began to run as regards the second relief, on 13 August 1997 when the caveat complained of was registered and that time in respect of the third prayer began to accrue on 7 July 1970.

Since the application was filed on 29 January 1998, therefore, the second prayer in the Chamber Summons came five months and seven days after the date the cause of action arose, which is well beyond the time allowed by law, namely, sixty days. That the third prayer was made some twenty seven years, six months and thirteen days from the date the cause of action arose. So that the alleged inaction lasted for twenty seven years, but the law allows only six months.

Learned counsel for the applicant has different views on limitation. He contends that the argument concerning limitation is completely irrelevant. The applicant, as pointed out, is seeking to retrieve Calico's title deed from the first respondent and to have certain memorials in the land register removed or, as the case may be, deleted. That is to say, pending the said removal and deletion, the wrongs perpetrated by the respondents will continue unabated. In further difference with the respondents Prof. Gondwe argues that section 7 of the Law of Limitation Act provides that where there is a continuing wrong a fresh period of limitation shall begin to run at every moment of the time during which the wrong continues.

In my considered view the period of limitation is tied up with TDFL'S resolve to put Calico under receivership in a bid to realize its interests under the debenture. That was put into effect when, on 7 April 1992, Mr N.E. Mkono was appointed receiver and manager.

It is from that time that any action by third parties that interfered with TDFL'S rights over Calico's property became wrongful, hence TDFL's right to sue to enforce those rights. Nothing adverse to TDFL's rights took place until 18 August1997, when a caveat was registered by the second respondent. The caveat checked the execution of the decision of Mr Mkono as receiver and manager to sell CALICO's assets to unable him realize the mortgage in favour of TDFL. The registration of the caveat is one action which I do find not to be continuous. If, therefore, the registration of the caveat be an actionable wrong, it is not a continuous one. In that circumstance I would uphold the contention by learned defence counsel that the period of limitation to institute proceedings to have the caveat removed or deleted from the land register began to run on 18 August 1997. On the same parity of reasoning the contention that the period for limitation in respect of the third prayer began to accrue on the date alleged by the respondents, that is to say, on the 7 of July 1970, is rejected. It is my judgment that both prayers are governed by the same circumstances as regards limitation. Consequently, were it that the application was potent in other respect, the third prayer would have been in time.

In yet another objection the respondents are contending that Mr Mkono has no right to be heard on behalf of Calico. It is submitted on their behalf that the entire purpose of this application is to unable Nimrod Elirehemah Mkono, as a receiver and manager of VSLIVO Textile Industries Limited, to sell the land registered in the name of CSLIVO Industries Limited under C.T. 15056. They argue that Mr Mkono can not be struggling to remove caveats from the aforesaid title, praying for the title to be released to him then sell the land registered under the title for the benefit of Calico Textile Industries Limited. To wind up their submissions on this point they pose this question: for whom, then, is Mr Mkono acting in filing this application? To learned defence counsel, apart from naming the applicant, Mr Mkono's affidavit gives no indication that he is in any way acting for Calico; and it does not reveal how the prayers made in the Chamber Summons can be of any use to Calico. Rather, Mr Mkono is acting

for his purported principal, the Tanzania Development Finance Limited. So they observe that to indicate Calico Textile Industries Limited as a party to this application is erroneous both in law as well as in fact.

I have given due consideration, as indeed I have to, to the argument that this application cannot be prosecuted by Mr Mkono on behalf of Calico presumably because he has not been instructed by the applicant company. In my view, and as Prof. Gondwe correctly argues, it is not the application which is erroneous in law as well as in fact. It is the attack on Mr Mkono's right as receiver and manager to maintain these proceedings which is erroneous.

Because once Mr Mkono was appointed receiver and manager to enforce TDFL's rights under the debenture he at once was clothed with power to do what Calico and TDFL agreed to in case Calico defaulted to repay the loan that is evidenced by the debenture. I am therefore in total agreement with learned counsel for the applicant that condition 6(1) of the TDFL debenture empowered the applicant to take possession of collect and get in all or any part of the property belonging to Calico that was mortgaged by Calico as security for the loan that TDFL advanced to Calico. Condition 5 of the debenture empowers the holder, TDFL, to appoint a receiver after ... the principal moneys hereby secured have become immediately payable..." The money becomes immediately payable under certain conditions of the loan agreement. The opening part of condition 6 declares that the receiver is the agent of the borrower company and that:

> ... he shall have authority and be entitled to exercise the powers hereinafter set forth in addition to and without limiting any general power conferred on him by law:
>
> (1) to take possession of, collect and get in all or any part of the mortgaged premises and for that purpose to take proceedings in the name of the company or otherwise as may seem expedient.

This objection would fail.

The last objection that has been raised by the respondent is the contention that the third respondent is wrongly joined. They rely on

section 10(1)(e) of the National Bank of Commerce (Reorganization and Vesting of Assets and Liabilities) Act Number 23 of 1997 which reads as follows:

> 10(1) Consequent upon the split of the former bank into the Company, the NMB and the corporation, all assets and the liabilities relating to banking business, to which the former bank was entitled or subject, immediately before the vesting date, with effect from the 1st day of October, 1997 by virtue of this section and without further assurance:
>
> (a) ...
>
> (b) ...
>
> (c) ...
>
> (d) ...
>
> (e) In respect of non-banking, assets and liabilities and all other assets and liabilities and business of the former bank not transferred and vested by paragraph (a)(b)(c), or (d) of the this subsection, be transferred and vest in the Corporation.

It is submitted that the equitable mortgage given to the National Bank of Commerce by Calico Textile Industries Limited was a banking asset and, for that reason, the same was not vested in the NBC Holding Corporation. It is contended that the applicant has failed to traverse the averment that there is a misjoinder of the third respondent. A specific prayer is therefore being made that the third respondent be struck out of the application and costs thereof be awarded to it.

Again in difference with the respondent's learned counsel, learned counsel for the applicant contends that as regards joinder of the third respondent, section 10(1)(a) and (b) of the National Bank of Commerce (Reorganisation and Vesting of Assets and Liabilities) Act 1997 (NBC Act), provides for transfer of assets from "specified branches" of the defunct NBC to one of the three new entities. The NBC Debenture dated 26 July 1977, which appears as annexture "MC 2" to the first respondent's counter affidavit does not proclaim the

branch to which it was issued by CALICO. As such, it is caught by section 10(1)(e) of the NBC Act, and could only vest in the NBC Holding Corporation. It is therefore submitted that the respondent's submission in this connection lacks basis both in fact and law.

Now when the National Bank was re-organized, three new institutions were established to take over all its functions, assets and liabilities. The three institutions so established were the National Bank of Commerce (1997) Ltd., the National Microfinance Bank and the NBC Holding Corporation. Section 10 of the National Bank of Commerce (Reorganization and Vesting of Assets and liabilities) Act, Number 23 of 1997 makes provision for the vesting of the assets and liabilities of the former NBC into the new institutions. The relevant part of section 10 is subsection (1)(a)(b) and (e). it provides that:

> (1) Consequent upon the split of the former bank is not the Company, the NMB and the Corporation, all the assets and the liabilities relating to the banking business, to which the former bank was entitled or subjet, immediately before the vesting date shall, with effect from the 1 day of October 1997, by virtue of this of section and without further assurance:
>
> (a) in respect of the banking business in the specified branches constituting the Company, be transferred to and be vested in the Company;
>
> (b) in respect of the banking business in the specified branches constituting the NBC, be transferred to and be vested in the NMB;
>
> (c) ...
>
> (d) ...
>
> (e) In respect of non-banking assets and liabilities and all other assets, liabilities and business of the former bank not transferred and vested by paragraph (a), (b), (c) or (d) of this subsection, be transferred to and be vested in the Corporation".

The "Company" in section 10 is reference to be NBC (1997) Ltd.

According to Prof. Gondwe the second respondent was made a party to these proceedings because the NBC debenture under review does not proclaim the branch to which it was issued by Calico. By implication he is arguing that although the debenture is a banking asset, it should be held to have been transferred to the second respondent because of the reason he has put forward.

Now, a very liberal interpretation of section 10 irresistibly leads to the conclusion that the banking business, to which mortgages and debentures belong, were transferred to the NBC (1997) Ltd. and to NMB. And, as clearly stated in subsection (1)(e), no-banking assets were transferred to the second respondent, so that the words "... and liabilities and all other assets, liabilities and business of the former bank..." which appear in sub-section(1)(e) must be construed *ejusdem generis* with the words "non-banking assets" which precede them. By reason of that interpretation the debenture in question could only be transferred to NMB or to NBC (1997) Ltd. Failure by Calico to declare the branch to which it was issued does not qualify it to be vested in the second respondent. What the applicant should probably do to in order to be able to enforce TDFL's rights under the debenture would be to locate the branch, for surely the debenture must have been issued to one of the branches of the erstwhile NBC. It is in that circumstance that this preliminary point of objection would succeed.

Now, as regards the fourth relief, it is on record that the title deed registered under certificate of title Number 15056 was deposited in court with the consent of all the parties. This prayer has therefore been overtaken by circumstances.

Upon the foregoing considerations the application would fail. It is accordingly dismissed with costs. Since the application has been dismissed, the need to consider the applicant's objections does not arise. It is ordered that the title deed which is the subject of this application be released to the first respondent. Order accordingly.

EDWIN WILLIAM SHETTO *v.* MANAGING DIRECTOR OF ARUSHA INTERNATIONAL CONFERENCE CENTRE

HIGH COURT OF TANZANIA AT ARUSHA

(Mroso, J.)

CIVIL CASE No. 3 OF 1997

Civil Practice and Procedure – Declaratory judgment – When a declaratory judgment may be given.

Civil Practice and Procedure – Pleadings – Pleading stating a specific amount of general damages prayed for – Whether proper.

Labour Law – Abolition of post by employer – Legal basis thereof.

Labour Law – Abolition of post by employer – Whether such abolition terminates contract of service with the incumbent of the post abolished.

Natural Justice – Principles of natural justice – The right to be heard – Effect of breach of principles of natural justice on a decision taken.

Damages – General damages – Pleading stating specific amount as general damages prayed for – Whether proper.

Tort – Defamation – Newspaper article originating from the defendant mentioning the plaintiff by name as a director who lost his job, and stating that he was negligent and a party to a financial loss suffered by the defendant – Whether defamatory.

The Board of Directors of the Arusha International Conference Centre (the "AICC") decided to abolish certain posts, including that of "*Director of Management Services,*" to which the plaintiff was its incumbent. Subsequent to the abolition of the post of director, the plaintiff's employment with AICC was terminated without giving him a right to be heard. The plaintiff filed this suit challenging the legal basis for abolishing the post of Director of Management Services; praying for a declaratory judgment on

the legality of his termination and praying for general damages mentioning a specific sum of TZS. 50 million. The court considered the legality of abolition of the plaintiff's post and his termination; the issue of declaratory judgment; whether or not the plaintiff was defamed; and the propriety of specifying an amount in the prayer for general damages.

Held: (i) The Board of Directors of the defendant Centre had power under paragraph 9(c) of the Arusha International Conference Centre (Establishment) Order 1978 to abolish any post including that of director; therefore the abolition of post of director was neither illegal nor null and void;

(ii) After abolition of the post of Director of Management Services, although the plaintiff would not have validly asked the defendant to keep him on employment on the same terms and conditions in view of the Board direction that fringe benefits would not be paid, yet his contract of service with the defendant subsisted and he could only be terminated for good cause;

(iii) Since the plaintiff could only be terminated for good cause the plaintiff should have been heard before the decision to terminate him could be taken;

(iv) It is wrong pleading to put a specific amount in a claim for general damages; the quantum of general damages, where awardable, is assessed by the court;

(v) The news article in the Uhuru newspaper originating from the defendant's Managing Director to the effect that the plaintiff, who was mentioned by name as a director who lost his job, was a negligent officer and party to the loss of TZS 173 million which the defendant had suffered, was defamatory.

Orders accordingly

Cases referred to:

(1) *Matalinga and another v. Attorney General* [1972] EA 518

(2) *Kyobe v. East African Airways Corportation* [1972] EA 403

(3) *Ridge v. Baldwin* [1963] 2 W.L.R. 935

(4) *General Medical Council v. Spackman* [1943] AC 627

(5) *Director of Public Prosecutions v. Sabinis Inyasi Tesha and another,* [1996] T.L.R. 156

(6) *Mahona v. University of Dar es Salaam* [1981] T.L.R. 55

Mr Loomu-Ojare, for the Plaintiff

Mr Makange, for the Defendant

JUDGMENT

(Delivered 17 June 1998)

MROSO, J.: The plaintiff, Edwin William Shetto, was employed as Director of Manpower Development and Administration in September 1990 by the defendant, The Arusha International Conference Centre. Later his designation apparently changed to Director of Management Services. He said that his appointment which was on permanent and pensionable terms was also confirmed after a successful completion of a 12 months probation period. On 23 October 1996 a letter was written to him by the Managing Director of the defendant, Major General (Retired) H.C. Lupogo informing him that his employment had been terminated by way of abolition of office with effect from 31 October 96. He was to get a total of TZS. 4 058 402 as his terminal benefits. He took those benefits. Even so, on 21 January 1997 he brought a suit against the defendant in this court seeking the following reliefs among others;

(a) (The) court be pleased to declare plaintiff's termination illegal, null and void and that plaintiff's posts *(sic)* of Director of Management and Administration still subsists and not phased out.

(b) (The) court be pleased to order re-instatement of the plaintiff.

(c) (The) court be pleased to order in the alternative to (b) compensation of TZS. 30 393 460 to cover period between termination and retirement age.

(d) (The) court be pleased to order damages for defamation in the sum of TZS. 50 million

The defendant denies that the termination of appointment was illegal. It contends that it was lawful for the Board of Directors of the defendant

organization to abolish the plaintiff's post for the reasons on which the Board acted. The plaintiff had averred that the defendant defamed him in two publications in the Daily News and the Uhuru Newspapers respectively. The defendant disputed the allegations contending that the publications were not defamatory of the plaintiff. The defendant also disputes the claims for any damages.

The defendant through its advocates – Makange Chambers raised in the amended written statement of Defence four preliminary points of objection to the suit. Two were argued as preliminary points of objection and the remaining two were argued by Mr Makange in his final written submissions.

The two preliminary points which were argued before the trial commenced related to misjoinder of causes of action, that is action on contract and also action on tort; and, in the alternative, that there was a non-joinder of necessary parties to the suit. The court has already given a ruling on those two points and it was ordered that the suit proceed to hearing.

At the commencement of the trial the following agreed issues were framed:

(1) Whether the abolition of the post held by the plaintiff was illegal and, therefore, null and void.

(2) If the answer to issue number 1 is in the affirmative, whether the plaintiff is entitled to special and general damages.

(3) Whether the press statements which the defendant's agents made to the press as reported in the Daily News and the Uhuru Newspapers respectively were defamatory of the plaintiff and if so, whether the plaintiff is entitled to damages.

(4) To what reliefs the parties are entitled.

In view of the allegation by the plaintiff that the defendant was party to defamatory stories which were published in newspapers, the court selected and appointed three assessors to sit in the trial. The three assessors sat throughout the trial and participated in asking witnesses

questions on any aspect of the case. Mr Makange in his final Written Submissions has challenged the propriety of the court allowing the assessors to sit throughout the trial arguing that the part of the case relating to termination of employment does not require the court to sit with assessors and that, presumably, the assessors ought to have been excluded until the court started to hear evidence relating to the publication in the newspapers of the alleged defamatory statements.

On the face of it the complaint is valid but the truth of the matter is that it was impracticable not to sit with the assessors throughout the trial. In the first place, only one witness for the plaintiff (the plaintiff himself) and one witness for the defence testified in the case. In the second place, the evidence on defamation was so interrelated to the evidence relating to the plainfiff's employment with the defendant and his subsequent termination that it was not practicable to compartmentalize it for purposes of deciding when and when not the assessors were to sit during the trial. It was also not practicable to prevent the assessors from asking the witnesses questions on issues other than those related to the allegations of defamation of character. It is my opinion that the questions as asked by the assessors and answered by the witnesses helped the assessors to appreciate the significance of the complaint by the plainfiff that the defendant defamed him in the press and the reason he was asking for damages for the alleged defamation. The participation of the assessors in the whole of the trial was, therefore, in the circumstances, unavoidable. For the above reasons I must overrule the defence submission that the trial was rendered a nullity.

In his final Written Submissions, Mr Makange also urged that because part of the suit is for a declaratory judgment then it ought to be dismissed because such a remedy is theoretical in the circumstances of the case. The particular circumstance which the learned advocate has in mind is that the plaintiff said in his evidence that he is now working with the Chamber of Commerce in Arusha.

This ground, with due respect to the learned advocate, is new, had not been pleaded and the advocate for the plaintiff had no prior

notice of it and, therefore, did not advert to it in his submissions. To dismiss the case on that ground as prayed would, therefore, in my view, amount to condemning the plaintiff unheard. Even so, the ground as raised is not valid in the circumstances.

Mr Makange's argument is that a declaratory judgment should not be granted where it is useless or embarrassing; that there must be a real and not a theoretical question. Among the cases he cited in support of that submission is *Matalinga and another (sic) (others) v. Attorney General* (1). In that case the High Court of Kenya said that before a declaration can be granted there must be a real and not a theoretical question in which the person raising it must have a real interest and there must be someone with a present interest in opposing it. Furthermore, the request must be for the court to pronounce on a legal right. That decision, with respect, seems to me to support the plaintiff's prayer for a declaratory judgment on the legality of his termination and the legality or otherwise of such termination is not rendered theoretical or embarrassing merely because subsequent to the termination he managed to secure some kind of employment. If this court grants the plaintiff the declaration he is seeking that could significantly affect both his legal rights and those of the defendant. I must, therefore, dismiss the advocate's argument. Let me now proceed to discuss the evidence with a view to answering the agreed issues in this case.

The Board of Directors of the defendant, at its 61st meeting on 30 September 1996, considered the need to restructure the management of the Centre. One of the resolutions reached was to abolish the post of director with the exception of that of the Managing Director. The resolutions were to take effect from 1 November 1996. Following from that resolution, the Managing Director wrote to the plaintiff to inform him that his post had been abolished and consequently he had been terminated. The first question here to consider is whether the Board of Directors was competent to abolish the post of Director which existed in the Centre.

In his written submissions to court Mr Loomu-Ojare, learned advocate for the plaintiff, does not seem to dispute the power of

the Board to abolish the post of director. I think, indeed, that the Board of Directors of the defendant Centre in whom the Management of the Centre is vested (see Paragraph 7 of GN. Number 115 of 1998) has such power. According to the powers of the defendant Centre as contained in paragraph 9 (c) of the Arusha International Conference Centre (Establishment) Order, 1978 as published in Government Notice Number 115 of 25 August 1978, it is provided that it has power:

> (c) to do anything which in the opinion of the Board, is necessary to facilitate the proper and efficient carrying on of the activities of the Centre and the proper performance of the functions of the Centre.

In the absence of a more specific provision I consider that the power cited above is broad enough to cover the abolition of offices in the employment of the defendant centre.

What Mr Loomu-Ojare contends is that the Board did not really abolish the plaintiff's office but merely downgraded it to managerial level. With respect, that is not correct. Item 10 of the Minutes of the 61st Board Meeting which were tendered in evidence at the trial reads at the relevant place:

> 10.7.4. Kwa kuzingatia hayo, Bodi iliagiza kwamba:
>
> (a) Cheo cha Ukurugenzi kifutwe; abaki Mkurugenzi Mwendeshaji akiwa na mameneja chini yake.

It seems to me clear that the post of director was abolished and that from thence there would be only the Managing Director who would have managers under him.

It is true that the duties and functions that were done by the erstwhile directors were re-assigned to managers. But while there had been five directorates, after the abolition of directorates only three managerial positions were to be created plus the office of the Hospital Superintendent in place of the office of the Director of Hospital Services. It cannot be validly said, therefore, that the directors were simply re-classified as managers.

Once it is accepted, as I have done, that the Board of Directors was competent to abolish any post, including that of director, it follows that the abolition was neither illegal nor null and void. The first issue is answered in the negative.

There is still the question whether the plaintiff's employment with the defendant was terminated at the instance of the abolition of the office or post of director.

I do not read in the minutes of the 61st Board Meeting any direction that the plaintiff be terminated. It was, however, envisaged that some employees would lose their employment as a result of the restructuring of the management of the Centre. It is obvious that if there were more than three managers before the Board decision that there be only three managerial positions it meant that a manager who could not be retained might lose his job.

It was apparently left to the Managing Director to decide on who was to remain in employment and who was to be terminated and how.

It appears, however, that the Managing Director thought that the abolition of the post of director automatically meant a person who had been holding that post had to be terminated. I read this erroneous meaning from the wording of the letter with reference Number ICC/C/PERS/1106 of 23 November 1996 which the Managing Director wrote to the plaintiff and by which he terminated his employment. It reads in part as follows:

> The 61 Board Meeting unanimously authorized an organization structure which abolished the posts of Directors. *Following the abolition of your post*, your services with this organization will cease effective from 31 October 1996. [emphasis supplied]

The words which I have underlined clearly show that the Managing Director believed the plaintiff had to be terminated. But that consequence needed not to follow. Given an option the plaintiff might have accepted a lesser job and there is some indication that the Board envisaged such a possibility. That was why, I think, it said in minute 10.7.4(i) as follows:

(i) Wale watakaoondoka kwenye wadhifa walio nao *nao kuendelea na kazi katika muundo mpya* watabaki na *mishahara yao wenyewe lakini bila marupurupu yaliyoambatana na wadhifa wa zamani.* [emphasis supplied]

Surely, the Board must have had in mind a person like the plaintiff and the Hospital Superitendent who were in office as directors but who could no longer continue as such following the abolition of the offence of director. I would agree with the learned advocate for the plaintiff that while the post of Director of Management Services was abolished in respect of the plaintiff the duties and functions under the post were not abolished even though they may have been re-distributed to other officers.

In the case of *Kyobe v. East African Airways Corporation* (2) which was an appeal to the Court of Appeal for Eastern African from the High Court of Kenya, the appellant was employed as general manager of East African Airways Corporation under a statutory provision in the 1963 legislation that established the East African Airways Corporation. The post was in 1967 abolished by the East African Airways Corporation Act 1967 which repealed and replaced the 1963 Act. A new post of Director General was created in place of General Manager. The appellant was not given the new post of Director General. He was dismissed and was paid a gratuity based on his total salary. He received the pay and then sued in court contending that he had been wrongfully terminated.

The Court of Appeal by a majority held that the repeal of the statutory post held by the appellant did not bring his service contract to an end. The new Act had a deeming clause that the persons who were in the service of the previous Corporation were deemed to have been appointed to the service of the new Corporation. The argument that the appellant's post of General Manager being statutory had been abolished by the new legislation and, therefore that he had been thereby terminated was not accepted by the court. Mustafa, J.A. who shared the opinion of the majority of the court said at page 412:

> In my opinion, although the post of general manager was abolished the contract of service between the Corporation and the appellant remained valid and effective. If, for instance, the appellant had asked to be given other duties in the Corporation on the same terms and salary as he was getting, I would have thought the corporation could have lawfully done so. There was nothing to indicate that the contract of service was linked exclusively to the post of General Manager to the exclusion of other, or that no variation can subsequently be made.

In our case, although the plaintiff would not have validly asked the defendant to keep him on employment on the same terms and conditions in view of the Board direction that fringe benefits would not be paid, yet his contract of service with the defendant subsisted and he could only have been terminated for good cause.

Since the plaintiff could only be terminated for good cause, he should have been heard before the decision to terminate him could be taken. The right to be heard is basic and breach of it renders the decision arising from the breach null and void. In *Ridge v. Baldwin* (3) Lord Reid speaking about rules of natural justice said:

> Time and again ... It has been stated that a decision given without regard to the principles of natural justice is void ... I see no reason to doubt these authorities. The body with the power to decide cannot lawfully proceed to make a decision until it has afforded to the person affected a proper opportunity to state his case.

Also, Lord Wright had this to say regarding rules of natural justice in the case of *General Medical Council v. Spackman* (4):

> If principles of natural justice are violated in respect of any decision, it is indeed immaterial whether the same decision would have been arrived at in the absence of the departure from the essential principles of justice. That decision must be declared to be no decision.

That reasoning was cited with approval in a decision of the Court of Appeal of Tanzania in *DPP v. Sabinis Inyasi Tesha and another* (5). Similarly in *Mahona v. University of Dar es Salaam* (6) the

High Court (Kisanga, J. as he then was) quashed a decision of the Minister of Labour because the Minister and decided an appeal made to him without hearing one of the parties. I must, therefore, declare the decision of the Managing Director of the defendant Centre void and set it aside. In effect, the plaintiff has not been terminated he is still in employment although not as a director. This decision does not mean that the defendant cannot now initiate termination proceedings if it considers such a course of action necessary and appropriate.

Arising from the decision that the plaintiff's contract of service with the defendant still subsist it follows that to this day he is entitled to his monthly salary. Since the court is not aware of any other benefits the plaintiff was getting, nothing beyond the salary can be granted. Furthermore, since the plaintiff at sometime after termination secured employment with the Arusha Chamber of Commerce to mitigate his loss of earnings from his employment with the defendant, he will be paid by the defendant only the difference between his salary and the salary which he has been getting from the Chamber of Commerce, assuming his salary from the Chamber of Commerce is less than the salary from the defendant. The claim for TZS. 30 393 460 has no basis in view of the decision I have just taken and I need not discuss it. The amount already paid and received by the plaintiff as terminal benefits will be discounted.

The plaintiff also claims damages for defamation of character by the defendant. He claims TZS. 50 million. As rightly pointed out by Mr Makange, this class of damages is of the general type as distinguished from special damages. It is wrong pleading to put a specific amount in a claim for general damages. The quantum for general damages where awardable is assessed by the court.

Although the plaintiff erroneously asked for a specific sum of general damages it does not follow, as Mr Makange suggests, that the court will summarily dismiss the claim for damages. If the court considers that the plaintiff should get damages, it will assess them and award the plaintiff.

As mentioned earlier, the Board of Directors of the defendant resolved on 30 September 96 to abolish the post of Director and that there were to be only three managerial positions. On 23 October 1996, the Managing Director wrote to the plaintiff two letters, one informing him that the post of director had been abolished and that he had been terminated with effect from 31 October 1996. The second letter was a testimonial. It is entitled "To whom it may concern – Re: Mr Edwin William Shetto." It said that during the employment of the plaintiff with the defendant he was found to be "a person of mature thinking, diligent, resourceful, hardworking and honest". He was dependable and trustworthy. He was one who would not let down his employer. But before those letters were written there had been two publications in the newspaper which the plaintiff says were defamatory of him.

On 17 October, 1996 there was a news item on page 5 of the Daily News with a title which ran as follows:

> AICC suffers TZS. 173 million loss

The source of the news was shown to be Mr Mkulo, the Chairman of the Board of Directors of the defendant Centre. It said that the Centre had suffered a loss of shillings TZS. 173 million shillings over a period of past five years. The loss prompted the Board to adopt structural changes to enhance efficiency. The changes included "the phasing out (of) 16 managerial positions, one directorate and trimming several workers of the parastatal".

The news item further said that although the Centre had five directorates the Board Chairman did not hint which directorate was being phased out. Regarding the loss of TZS. 173 million the Board Chairman is alleged to have said "most managers were busy with their private businesses, neglecting official duties.

> Mr Mkulo said it was the negligence of duties which resulted in the loss and even spoiling the reputation of the Centre.

On 19 October 1996 there another publication in the press, this time in the Uhuru Newspaper. The source of the news which was

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On 19 October 1996 there another publication in the press, this time in the Uhuru Newspaper. The source of the news which was

published was attributed to the Managing Director of the defendant, Major General (Retired) Lupogo. On page 5 of the newspaper there was a heading in bold letters running thus:

> Mkurugenzi aachwa bila kazi AICC". Then followed the news:
>
> Mabadiliko makubwa ya muundo wa utawala katika Kituo cha Mikutano cha Kimataifa cha Arusha (AICC) yaliyoidhinishwa na bodi ya kituo hicho hivi karibuni yamemwacha mkurugenzi wa utawala wa kituo hicho Ndugu Edwin Shetto bila kazi.
>
> Mkurugenzi Mtendaji wa AICC, Ndugu Herman Lupogo aliwaambia waandishi wa habari jana kuwa katika mabadiliko hayo kiongozi pekee wa ngazi ya juu, Ndugu Shetto amelazimika kupunguzwa ... hivi karibuni bodi ya AICC iliamua kufuta vyeo vya mameneja 16 na kurugenzi moja kufuatia hasara ya TZS.. Milioni 173 kwa uzembe uliokithiri katika utendaji na kuamua mambo nyeti ya shirika hilo bila kumweleza Mkurugenzi Mtendaji ...

The defendant did not dispute the correctness of the publications or that the persons who were said to have been the source of the published information were not in fact the source. What Mr Makange says in his final submissions is that the publications are in reported speech and do not cite the very words which the Board Chairman and the Managing Director used. That is true but in the absence of a repudiation by the sources of the information it must be assumed that the publications were accurate reports of what the press people were told. The defendant, therefore, must bear the consequences in the event the reports are considered defamatory.

The lady and two gentlemen assessors who sat with me have been of the view that the publication in the Daily News of 17 October 1996 was not defamatory of the plaintiff. However, as regards the publication in the Uhuru Newspaper of 19 October 1996 the assessors unanimously considered it defamatory of the plaintiff. With respect, I agree with the opinion of the assessors. The news article in the Uhuru was to the effect that the plaintiff, who was mentioned by name as as the director who lost his job, was a negligent officer and was party to the loss of TZS. 173 million which the defendant suffered.

As was said by one of the assessors, this report which orinated from the Managing Director had the effect (whether or not it was so intended) of clarifying to readers what had not been so clear in the earlier publication in the Daily News. It will be recalled that in the Daily News Article the Chairman of the Board of Directors was said to have explained to the press or the public that it was the negligence of duties which resulted in the loss "and even spoiling the reputation of the Centre." The negligent officials "were busy with their private business, neglecting official duties" It would be naïve to say, as Mr Makange would have the court say, that it was merely a defamation of a class of people from whom you could not identify the plaintiff, when the name of the plaintiff was specifically mentioned. The defendant must be held liable for this serious defamation even though the newspapers were not joined as parties, which they could have been. The only serious question to be considered now is the extent to which the defendant should be held liable in damages.

It was surely unnecessary for the Managing Director to mention the plaintiff in such a way that he was associated with the negligence of officers who allegedly caused the large financial less to the defendant. He could have been more responsible and discreet in his statement to the press. The plaintiff could not have been a negligent official and could not have been party to the financial loss to the Centre otherwise the testimonial which the Managing Director gave to the plaintiff four days after the press statement would be hollow, hypocritical and a base joke.

The claim by the plaintiff of TZS. 50 million as damages for the defamation was improper pleading as I already indicated in this judgment and that the error does not disentitle the plaintiff to damages.

In assessing damages to which the plaintiff is entitled I have taken into consideration the fact that he had unblemished character (Courtesy the testimonial); that twice he was made acting Managing Director of the Centre which has been holding international conferences and consequently exposing the plaintiff to a wide international clientele

and that the Uhuru newspaper is widely read in the country, if not also outside the country.

The plaintiff complained that he had found difficulty to obtain employment after he was wrongfully terminated despite his senior status. He also complained that his own school going children were getting derisive queries from their friends because of the defamatory publications. But there was no proof that his failure to get a suitable job was directly attributable to the newspaper publications.

All considered I think the plaintiff should be awarded a fair amount of damages, which I assess at TZS. ten million. He will also get his costs and the arrears of salary as well as the damages awarded to earn interest at the court rate until full payment.

GENERAL TYRE (E.A.) LIMITED *v.* PATRON SIAME AND ANOTHER

HIGH COURT OF TANZANIA
AT ARUSHA
(Mkwawa, J.)

CIVIL APPEAL No. 29 OF 1997

(From the Court of the Resident Magistrate of Arusha, in Employment Cause No. 10 of 1997)

Labour Law – Security of Employment Act – Order to reinstate an employee given by a competent authority – Whether the employer has option not to reinstate – Options available to the employee – Sections 27(1) and 40A(5)(b) of the Security of Employment Act.

After the Minister's order that the appellant employer should reinstate the respondent employees the employer decided to pay them statutory compensation. The employees referred the matter to court in order to enforce the Minister's decision. The trial court magistrate ordered the employer to pay the statutory compensation and salaries

and allowances that were in arrears. The employer appealed to the High Court challenging the jurisdiction of the trial court. The High Court considered whether or not after a reinstatement order by a competent authority the employer may opt to pay statutory compensation; it also considered the options open to an employee after an order of reinstatement.

Held: (i) An employer cannot, at his own initiative, choose to pay his aggrieved employee statutory compensation and twelve months salary as an alternative to complying with the Minister's or the Board's decision and order of reinstatement;

(ii) Where the Minister or the Board has ordered reinstatement or re-engagement, the complainant employee may opt for one of the two alternatives: he may either apply to the court under section 27(1) of the Security of Employment Act to have the order executed as if it was a decree, or he can claim statutory compensation and twelve months salary as provided under section 40A(5) of the Act;

(iii) Where an employee opts for payment of statutory compensation and twelve months' salary he does not become entitled to allowances and/or other benefits.

Orders accordingly

Editorial Note: With the coming into force of the Employment and Labour Relations Act 2004, Act Number 6 of 2004, an employer has a right to opt to pay statutory compensation and twelve months' salary *in lieu* of reinstating or re-engaging an employee; and an employee is entitled, in addition to statutory compensation and twelve months' salary, to wages due and other benefits from the date of the unfair termination to the date of final payment [section 40(3) of the Labour Relations Act 2004]

Cases referred to:

(1) *Mahona v. University of Dar es Salaam* [1981] T.L.R. 55

(2) *Juma Ally Kaziyabure v. Tanzania Posts and Telecommunications Corporation* [1994] T.L.R. 1

(3) *Obadiah Salehe v. Dodoma Wine Company Ltd,* HC – DOM Civil Case Number 53 of 1990 (unreported)

Statutory provisions referred to:

(1) of the Security of Employment Act, sections 27(1), 40A(5) and 40A(5)(b)

(2) Labour Relations Act 2004, section 40(3)

Mr Ngalo, for the Appellant

Mr Makange, for the Respondent

JUDGMENT

(Delivered 19 June 1998)

MKWAWA, J.: This appeal is against the decision of the Court of the Resident Magistrate of Arusha in Employment Cause Number 10 of 1997. The facts of the case may be briefly stated as the questions to be decided are purely legal and in my view require very careful treatment.

It is common ground that Patron Siame and Kaanarl William, hereinafter to be referred as the respondents, were employed by General Tyre E.A. Limited (the appellant). According to the version of the respondents it has been established that they were terminated from employment in July 1994. The respondents being aggrieved by the termination they challenged it through the Labour Conciliation Board which ordered their reinstatement. Being aggrieved by the decision of the Labour Conciliation Board the instant appellant preferred an appeal to the Minister for Labour – who rejected the appeal.

It is not in dispute between the parties that instead of the appellant reinstating them he decided to pay them statutory compensation. The respondents rejected this and decided to refer the matter to the trial court in order to enforce the decision of the minister. This they did in the aforestated Employment Cause Number 10 of 1997.

It is the respondents' case, if I may put it in a nutshell, that the appellant who was the employer has no option to refuse to reinstate

the respondents/employees under the provisions of section 40A of the Security of Employment Act (Chapter 574). It is also the respondents' case that the decision of reinstatement of the Minister shall be final and conclusive and shall be binding on the parties.

The trial magistrate in his decision had, *inter alia*, ordered the employer/appellant to pay the respondents/employees" 3 months' notice and 12 months' salaries as statutory compensation." He further held that in computing statutory compensation the salary ought to be the employee's present salary and not the one which he was receiving immediately before termination. He did not end up there as he awarded salary and allowances that were in arrears.

The appellant on the other hand impugns the aforesaid decision and in essence argues that the Court of the Resident Magistrate had no jurisdiction to hear and determine a matter which had been heard and finally concluded by a competent tribunal vested with the powers to deal with the matter. It is also the appellant's case that the respondents' entitlements were only those provided under the provisions of section 40A(5) of the said Act, namely statutory compensation and 12 months' salary.

The case for the appellant before me was advocated upon by Mr Ngalo whereas that of the respondents by Mr Makange. The learned counsel, with the leave of the court, pursued their appeal by way of written submissions. It is not irrelevant to mention that going by the submissions both learned counsel had only canvassed the issue of jurisdiction, namely whether the trial court had jurisdiction to entertain the matter brought under Employment Cause Number 10 of 1997.

The learned counsel for the appellant in essence contends that as the decision of the Minister was final the matter should not have been entertained by the trial court.

It is also the argument of Mr Ngalo that the trial court in considering and determining the matter raised before it by the respondents failed to invoke the provisions of section 40A of the Security of Employment Act.

In rebuttal Mr Makange, learned advocate for the respondents, counter-submitted to the effect that as the appellant had not complied with the reinstatement order of the Minister the matter had to be referred to the court for adjudication.

As neither side had in their submissions addressed themselves to the pertinent legal issues arising from the provisions of section 40A(5) of the said Act (Chapter 574), namely whether under the said provisions of the law an employer has an option to refuse to reinstate an employee, I feel it appropriate to do so for the interests of justice. In my view, with respect to the counsel, the aforegoing and not what has been raised by them was the central issue in this matter.

It is not without significance to mention that there are two schools of thought propounded by the High Court on the aforementioned. The first school of thought is that advocated by Kisanga, J. (as he then was) in *Mahona v. University of Dar es Salaam* (1), which holds that the employer has the right to refuse to reinstate the employee so long as he pays the statutory compensation plus twelve months' wages.

The second school of thought holds that the employer has no right to refuse to reinstate an employee when there is an order of reinstatement (See: *Juma Ally Kaziyabure v. Tanzania Posts and Telecommunication Limited* (2) per Msumi, J. as he then was, and *Obadiah Salehe v. Dodoma Wine Company Limited (Dodoma)* (3) Mwalusanya, J.

The exponents of the second school of thought are of the view that: "where the Minister or Board has ordered for reinstatement or re-engagement, the complainant employee may opt for one of the two alternatives. He may either apply to the court under section 27(1) of the Act to have the order executed as if it was a decree; or he can claim for payment of statutory compensation and twelve months salary as provided under section 40A (5) of the Act. Either of these alternatives can only be initiated at the instance of the aggrieved employee and not the offending employer. An employer cannot at his own initiative

choose to pay his aggrieved employee, statutory compensation and 12 months salary as an alternative to complying with the Minister's or boards' decision of reinstatement".

On my part I subscribe to the second school of thought because, as also subscribed by Mwalusanya J., it does interpret the said Act (Chapter 574) as a whole (combining sections 27 and 40A(5) unlike the decision in *Mahona* (1) which interprets section 40A (5) in isolation.

In the instant case the respondents went to the trial court but they did not do so to have the order of the Minister executed, as if it were a decree, under the provisions of section 27(1) of the said Act. Unfortunately, the trial court instead of proceeding under section 27(1) of the said Act purported to proceed the *Mahona's* way (1). But again, it exceeded the perimeters of the *Mahona's* case by awarding salary arrears and various allowances to the respondents.

For the foregoing reasons I am unable to sustain the decision of the trial court as the provisions of section 40A(5) (b) of the Security of Employment Act (as amended by Act Number 1 of 1975) provides that the aggrieved employee is entitled, from the offending employer, to statutory compensation and twelve (12) months' salary only.

The said law had impliedly and in fact deliberately excluded payment of allowances and/or other benefits. In otherwords allowances are not encompassed in the Act. But, that does not mean that the employee is not entitled to damages if he is not reinstated. (See: *Dodoma Wine Company Limited's* (3) case per Mwalusanya, J).

In the event, the award of allowances and other benefits to the respondents, being illegal, is hereby set aside. For the avoidance of doubt the computation of salary should be based on the salary that the respondents were receiving at the time the Minister ordered reinstatement.

The appeal is thus allowed to the aforestated extent only but fails in other respects. In the peculiar circumstances of this case, I consider

it proper to make no order as to costs. But should either party wish to press for costs, I am quite prepared to hear him in such respect.

NATIONAL INSURANCE CORPORATION *v.* KWEYAMBAH QUAKER

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Samatta and Lugakingira, JJ.A.)

CIVIL REFERENCE No. 25 OF 1997

(From the Ruling of a single judge of the Court of Appeal of Tanzania, Kisanga, J.A., dated 6 November 1997, in Civil Application No. 59 of 1997)

Appeal – Appeal to the Court of Appeal – Notice of Appeal and Jurisdiction of the High Court – Effect of lodging a Notice of Appeal on the jurisdiction of the High Court – Whether the High Court still has jurisdiction over a matter after Notice of Appeal to the Court of Appeal is lodged in respect of the same – Rule 76(1) of the Tanzania Court of Appeal Rules 1979.

Appeal – Notice of Appeal – Notice of Appeal to the Court of Appeal – Withdrawal of Notice of Appeal – Statutory provisions for withdrawing Notice of Appeal.

Appeal – Notice of Appeal – Notice of Appeal to the Court of Appeal – Withdrawal of Notice of Appeal – Whether Notice of Appeal is withdrawn by intimating to the High Court that appellant is withdrawing the notice.

Appeal – Appeal to the Court of Appeal – Institution of appeal – Whether an appeal to the Court of Appeal is instituted by Notice of Appeal – Appeal and Notice of Appeal distinguished – Rules 2(1), 76 and 83(1) of the Tanzania Court of Appeal Rules 1979.

Two applications by the applicant, one to set aside an *ex-parte* judgment and the other to stay execution of that judgment, were dismissed by the High Court. Then, on 4 June

1997, the applicant filed an application for extension of time to file a fresh application to set aside the *ex-parte* judgment, and also filed a fresh application for stay of execution. But a week later, on 11 June 1997, he lodged a Notice of Appeal against the *ex-parte* judgment. And then on 4 July 1997, he filed a Certificate of Urgency in the High Court for urgent disposal of the applications filed on 4 June 1997, and indicating that he was withdrawing the Notice of Appeal. The respondent's view was that the Notice of Appeal had not been withdrawn and, because 60 days had passed since it was lodged and the applicant had not taken steps to proceed with the appeal, he lodged a Notice of Motion to strike out the Notice of Appeal; a single judge of the Court of Appeal granted the Motion. The applicant then brought this reference to the full court. Among the issues considered on reference were whether the High Court still had jurisdiction to proceed with the applications filed on 4 June 1997 after the Notice of Appeal had been lodged on 11 June 1997, and whether the Notice of Appeal was effectively withdrawn by the applicant's intimation to that effect made to the High Court on 4 July 1997.

Held: (i) A Notice of Appeal is addressed to the Court of Appeal and the provision in rule 76(1) of the Tanzania Court of Appeal Rules 1979 for lodging the notice "with" the Registry of the High Court does not mean that the notice is lodged in the High Court; the High Court Registry is merely a transmitting agent for the Court of Appeal;

(ii) Once a Notice of Appeal has been lodged, any dealing with or in connection to it can only be transacted in the Court of Appeal; as the intimation to withdraw the Notice of Appeal in this case was directed to the High Court, it was ineffectual and the notice subsisted;

(iii) A Notice of Appeal removes a case from the High Court to the Court of Appeal and rule 76(4) of the Tanzania Court of Appeal Rules 1979 under which the High Court exercises jurisdiction to grant leave to appeal even after a Notice of Appeal has been lodged does not serve to bring back to the High Court a matter already before the Court of Appeal;

(iv) By lodging a Notice of Appeal the applicant thereby abandoned the applications lodged in the High Court for the ultimate setting aside of the *ex-parte* judgment and for staying its execution, and resolved instead to appeal against the merit of that judgment; in the absence of an effective withdrawal of the notice, the applicant could not go back to those applications;

(v) Although a Notice of Appeal is, by definition, also an appeal, the two do not mean one and the same thing; whereas a Notice of Appeal is lodged with the High Court Registry under rule 76(1) of the Tanzania Court of Appeal Rules 1979, an appeal is, in accordance with rule 83(1) of those Rules, instituted by lodging in the Court of Appeal the Memorandum and Record of Appeal within 60 days from the date of lodging the notice, and also an appeal has a number of features that are not there in relation to a notice;

(vi) As there is no specific provision for withdrawal a Notice of Appeal, the Court of Appeal invokes rule 3 of the Tanzania Court of Appeal Rules to order withdrawal of notices upon application to that court for such order; as in the present case the purported withdrawal was addressed to the High Court, it amounted to no withdrawal.

Reference dismissed

Cases referred to:

(1) *Motel Schweitzer v. T.E.Cunningham and another* (1955) 22 E.A.C.A. 252

(2) *Zuffer Kamarali v. Yunus Elias,* [1988] T.L.R. 170

(3) *Registered Trustees of Chama cha Mapinduzi v. Govan Abdalla,* CAT – Miscellaneous Civil Notice Number 1 of 1991 (unreported)

Statutory provision referred to:

(1) Tanzania Court of Appeal Rules 1979, rules 2(1), 76, 76(1) and 83(1)

Mr Lyimo, for the Applicant

RULING

(Dated 30 June 1998)

LUGAKINGIRA, J.A.: In this reference the court is invited to reverse the decision of a single judge striking out the applicant's Notice of Appeal for failure to take essential steps in an intended appeal.

The background to the reference is this. On 30 May 1997 the High Court at Dar es Salaam (Kaji, J.) dismissed the applicant's two applications in Civil Case Number 71 of 1994. These were an application to set aside an *ex parte* judgement and an application to stay execution of the judgment. Following the dismissals the applicant, on 4 June 1997, came up with two other applications, namely, an application for extension of time to present a fresh application to set aside the *ex parte* judgment and a fresh application for stay of execution. However, a week later, on 11 June 1997 the applicant lodged a Notice of Appeal against *ex parte* judgment; but not much later, on 4 July 1997 learned counsel for the applicant, Mr Lyimo, filed a Certificate of Urgency in the High Court praying for urgent disposal of the applications filed on 4 June 1997 and indicating on the same occasion that he was withdrawing the Notice of Appeal. To Mr Lyimo's understanding, therefore, the Notice of Appeal ceased to exist as from 4 July 1997.

The respondent, Mr Kweyambah Quaker, viewed the position differently. According to him the Notice of Appeal had not been effectively withdrawn, and since more than sixty days went by without the applicant taking steps with a view to proceeding with the appeal, he lodged a Notice of Motion praying for the notice to be struck out. The matter came before Kisanga, J.A. who agreed with the respondent and accordingly struck out the notice. His decision is conveniently summarized in these passages:

> ... After the Notice of Appeal has been filed, the matter is no longer in the High Court; it is now in this court, and any dealing with it subsequent to such filing of the notice can no longer be effected in the High Court unless this court for some reason remits the case there for the purpose.

He then added:

> Once I hold, as indeed I do, that the matter is now pending in this court, the respondent cannot have withdrawn it by his intimation to the High Court that his Notice of Appeal was withdraw the appeal the respondent ought to have followed the procedure laid down by rule 95 of the Court of Appeal Rules ...

At the hearing of this reference Mr Lyimo argued, first, that a Notice of Appeal is not an appeal but a signification of an intention to appeal and, therefore, that it does not remove a case from the High Court to the Court of Appeal. In support of this argument he referred to rule 76(4) whereby the High Court exercises jurisdiction to grant leave to appeal after a Notice of Appeal being lodged. He therefore contended that the Notice of Appeal had been effectively withdrawn by his intimation to that effect in the High Court, and the question of taking steps in the intended appeal did not, in the circumstances, arise. Second, Mr Lyimo argued that rule 95 applies to the withdrawl of appeals instituted in accordance with the provisions of rule 83 as distinct from Notices of Appeal which are lodged under rule 76. In his submission there is no provision in the rules specifically providing for the withdrawal of notices of appeal. He therefore invited the court to invoke rule 3 and hold that the notice had been effectively withdrawn by the intimation to the High Court in which it was lodged in the first place. He also briefly touched on the potential merits of his client's case as another ground justifying recourse to rule 3.

The respondent appeared in person and countered that the moment the applicant lodged the Notice of Appeal, it thereby abandoned the applications lodged in the High Court. In other words, the applicant could not fall back on those applications so long as the Notice of Appeal subsisted. He submitted that rule 95 applies to the withdrawal of Notices of Appeal and drew our attention to the definition of appeal in rule 2. Since the notice had not been withdrawn in accordance therewith, he argued, it subsisted and was liable to be struck out for failure to pursue the appeal.

There are therefore two issues for consideration and determination, that is, whether a Notice of Appeal removes a case from the High Court to the Court of Appeal and whether rule 95 applies to the withdrawal of Notices of Appeal. Beginning with the first issue, we have no hesitation answering it in the positive, and for these reasons. First of all, as pointed out by the learned single judge, a Notice of Appeal is, as per D, entitled "In the Court of Appeal of Tanzania,"

and this, in our view, means that the notice is addressed to the Court of Appeal. Secondly, it is not correct to say, as Mr Lyimo did, that a Notice of Appeal is lodged "in" the High Court, but according to rule 76(1) it is lodged "with" the Registry of the High Court. The duty of that Registrar is to forthwith endorse on the notice the date and time when it is lodged (rule 15), and to forthwith send one copy of it to the appropriate registry of the Court of Appeal (Rule 78). The particulars of the notice are according to rule 19(1)(d), then entered in a register of Civil Appeals of the Court; there is no corresponding provision for registering Notices of Appeal in the registry of the High Court. A Notice of Appeal is, therefore, not lodged in the proceedings in the High Court but the Registrar of that court is merely a transmitting agent for the Court of Appeal. We are satisfied having regard to these factors, and agree with Kisanga, J.A. that a Notice of Appeal has the effect of removing a case to the Court of Appeal.

It follows from the foregoing, and we again agree with the learned single judge, that once a Notice of Appeal has been lodged, any dealing with it or in connection thereto can only be transacted in the Court of Appeal. We are fortified in this view by the provisions of rule 104 whereby an amendment to a Notice of Appeal can only be effected pursuant to an order of the court. Where it is desired to withdraw a Notice of Appeal, leave to do so has to be sought from and granted by the court. In the instant matter the intimation to withdraw the notice was directed to the High Court. We think it was ineffectual and the notice subsisted.

Mr Lyimo's argument in reference to rule 76(4) is equally untenable. The provision is merely procedural and its primary purpose is to provide that a Notice of Appeal can be lodged before leave to appeal or a certificate on a point of law is obtained: of *Motel Schweitzer v. T.E. Cunningham and another* (1), at page 254. The rule takes into account the fact that it involves a process, which invariably spills into weeks and months, to obtain leave to appeal or to obtain a certificate on a point of law, whereas a Notice of Appeal has to be lodged within

14 days of the decision against which it is desired to appeal. The rule does not purport to bring back for the attention of the High Court a matter already before the Court of Appeal.

We think, on the other hand, there is merit in the respondent's argument that by lodging a Notice of Appeal the applicant had thereby abandoned the applications lodged in the High Court. The applicant had as it were, decided against setting the *ex parte* judgment aside and staying its execution and had resolved to bring the matter to this court and challenge the merits of the judgment. In the absence of effective withdrawal of the notice and an order of the court, the applicant could not possibly fall back on those applications in the fashion attempted in this case.

The second issue turns on the applicability of rule 95 to the withdrawal of Notices of Appeal. As stated before, Mr Lyimo argued that it did not apply while the respondent took a different view, basing his argument on the definition of the expression appeal in rule 2. It is perhaps desirable to set out the two provisions in order to clear the air on this matter. Rule 95(1) reads:

> 95(1) An appellant may at any time after instituting his appeal and before the appeal is called on for hearing lodge in the appropriate registry a written notice that he does not intend further to prosecute the appeal.

Quite clearly this provision does not address itself to the withdrawl of a Notice of Appeal and we cannot find any provision in the rules which specifically does so. However, rule 2(1) defines "appeal" in these terms:

> "appeal" in relation to appeals to the court, includes an intended Appeal, and "appellant" includes an intended appellant.

Mr Lyimo submitted, and correctly so, that a Notice of Appeal is a signification of an intention to appeal. This also accords with Form D which opens with the clause "In the matter of an intended appeal". We are therefore in agreement with the respondent that by definition

a Notice of Appeal is an appeal; but, we hasten to add, this is so if the context does not require otherwise. We wish to emphasize this not only because rule 2(1) opens with the clause "unless the context requires otherwise", but also because there are features in rules 76 and 83 which tend to distinguish a Notice of Appeal and an appeal. We will turn to examine these features.

Rule 76(1) requires a Notice of Appeal to be lodged with the Registrar of the High Court, but rule 83(1) has this to say on the institution of an appeal, and we cite only the necessary part.

> 83(1) Subject to the provisions of rule 122, an appeal shall be instituted by lodging in the appropriate registry, within sixty days of the date when the Notice of Appeal was lodged.
>
> (a) a Memorandum of Appeal, in quintuplicate;
>
> (b) the Record of Appeal, in quintuplicate;
>
> (c) the prescribed fees; and
>
> (d) security for the costs of the appeal.

The feature which immediately stands out is that whereas a Notice of Appeal is merely lodged, an appeal is instituted. To "lodge" in the context of rule 76 and other rules already referred to means to deliver because the Registrar of the High Court merely receives and transmits the notice to Court of Appeal, but to institute" means to bring into existence. An appeal therefore comes into existence when it is instituted. It will be seen that rule 83(1) uses both the words "instituted" and "lodging" and, quite-clearly, the former is the operative word while the latter is a device for bringing about the former. Secondly, whereas a Notice of Appeal is lodged with the Registrar of the High Court, an appeal is directly lodged in the appropriate registry of the Court of Appeal. We think the logic behind this is that since a Notice of Appeal removes a case to the Court of Appeal any steps subsequent to the notice being lodged have to be taken in the court itself. Thirdly, and we think this is the most significant, rule 83(1) mentions both "an appeal" and a "Notice of Appeal" in a

way which articulates their distinctiveness. There is an appeal on the one side and a Notice of Appeal on the other and the former has to be lodged within sixty days of the latter. These two things cannot in the context of this rule mean one and the same thing. One cannot possibly say that an appeal has to be lodged within sixty days of the appeal. Fourthly, an appeal is constituted by and instituted when the matters set out in paragraphs (a), (b), (c) and (d) of rule 83(1) are lodged. One cannot speak of an appeal as having been instituted, the existence of a Notice of Appeal notwithstanding, unless and until those paragraphs are satisfied. We can add for good measure the fact that in computing the time within which the appeal is to be instituted there is excluded the time required for the preparation and delivery of a copy of the proceedings by the High Court, a privilege not associated with a Notice of Appeal.

In the light of the foregoing we are of the opinion, and therefore agree with Mr Lyimo, that a Notice of Appeal is not an appeal in the context of rule 83. But it will be recalled that rule 95 comes into play "after instituing (the) appeal". Since an appeal is instituted in accordance with rule 83, we believe that rule 95 has reference to rule 83 and applies to the withdrawal of appeals instituted under that rule.

In *Zuffer Kamarali v. Yunus Elias* (2), Kisanga, J.A., made these pertinent remarks, at page 171:

> ... I have not been able to discover any rule in the Court of Appeal rules which specifically allows the withdrawal of a Notice of Appeal in Civil matters. The nearest provision I could find is rule 95(1) which allows an appellant to withdraw his appeal any time after instituting the appeal but before it is called on for hearing.

We think as a correct statement of the position and it leaves us with ...anxiety that in the instant case the learned judge took a different view without reference to this statement. We cannot hazard what he would have said had he done so.

In the absence of a specific provision in the rules for the withdrawal of Notices of Appeal, this court has on a number of occassions invoked

rule 3 to make orders of withdrawal. Kisanga, J.A. did so in the case just cited as did Nyalali C.J. in *The Registered Trustees of Chama cha Mapinduzi v. Govan Abdalla* (3). It is to be noted, though, that the court invoked that rule in the context of applications made to it. In the matter before us the purported withdrawal of the Notice of Appeal was addressed to the High Court and, in our view, it amounted to no withdrawal at all; it does not exist. We cannot as a result bring ourselves to invoke rule 3 and we decline to do so.

In sum, we are satisfied that the Notice of Appeal was not effectively withdrawn and since no step was taken to pursue the intended appeal, we are again satisfied that the notice was properly struck out. We dismiss the reference with costs to the respondent.

ATHUMANI SELEMANI MPONDA v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Lubuva and Samatta, JJ.A.)

CIVIL REFERENCE No. 25 OF 1997

(From the decision of the Resident Magistrate of Morogoro at Morogoro,Chilonji, PRM, Extended Jurisdiction, dated 9 May 1997, in Criminal Sessions Case No. 5 of 1997)

Criminal Practice and Procedure – Trial – Conviction entered but the passing of sentence is stayed pending appeal – Whether proper in law – Section 298(3) of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Appeals – Appeal lodged after conviction but before sentence is passed – Appeal premature.

The appellant was convicted of manslaughter. After conviction, an application for stay of sentence pending appeal was granted by the trial court. On appeal, the Court of Appeal considered the propriety of the appeal lodged before sentence.

Held: (i) At the close of hearing a criminal case, when the case on both sides is closed and the trial Court enters judgment, the process is not complete until sentence is passed on the accused person;

(ii) There is no provision in the law under which passing the sentence can be stayed pending appeal after conviction of an accused person;

(iii) The appeal against conviction is premature, having been lodged at a stage when the proceedings before the trial court were incomplete.

(iv) In exercise of the court's revisional jurisdiction the conviction quashed as it was not supported by the evidence on record.

Order accordingly

Mr Mselem for the Appellant

Mrs Kabisa for the Respondent/Republic

Statutory provision referred to:

(1) Criminal Procedure Act 1985, section 298(3)

JUDGMENT

(Delivered 01 July 1998)

LUBUVA, J.A.: The appellant was charged with the offence of murder, contrary to section 196 of the Penal Code. In exercise of extended jurisdiction, Principal Resident Magistrate (Chilonji, Ext. Jurisdiction) sitting at Morogoro acquitted the appellant of the charge of murder and convicted him of manslaughter, contrary to section 195 of the Penal Code. Upon the appellant's conviction of the offence of manslaughter, counsel for the appellant applied for stay of the sentence pending appeal to this court. The application was granted. From that decision this appeal has been preferred.

In this appeal a two-point Memorandum of Appeal has been filed. It states:

1. Evidence which amounted to mere suspicion that there was a possibility that the appellant might have caused the death of the deceased.

2. That the learned trial Principal Resident Magistrate (Ext. Jurisdiction) erred in strengthening and building up the prosecution's otherwise weak case by the purported weakness of the defence case.

Elaborating on these grounds, Mr Msellem, learned counsel for the appellant strongly maintained that it was erroneous on the part of the learned Principal Resident Magistrate to convict the appellant of the offence of manslaughter based on weak evidence. This is particularly so, where, as was the case here the evidence is circumstantial, such evidence should be watertight, Mr Msellem further stated. Mr Msellem conceded that the appellant had written a letter which was delivered to the deceased by PW6 suggesting an appointment at Masika bus stand within the Municipality of Morogoro. This however, Mr Msellem contended, was not conclusive evidence that the appellant killed the deceased. In this case, Mr Msellem insisted, where the prosecution had not proved its case beyond reasonable doubt, it was dangerous to base the conviction on mere suspicion.

Mrs Kabisa, learned State Attorney, respondend to these submissions briefly. She stated that the respondent/Republic was not supporting the conviction of the appellant for the offence of manslaughter for the following reasons: First, that the case against the appellant was not proved beyond reasonable doubt. Second, that the circumstantial evidence relied upon by the prosecution was weak and did not connect the appellant with the death of the deceased. She urged the court to quash the conviction.

In this appeal we think the primary issue for consideration is the propriety of the appeal. As already indicated, after the appellant was convicted of the offence of manslaughter, the learned magistrate (Ext. Jurisdiction) ordered a stay of the sentence pending appeal to this court against the conviction. It is common knowledge that at the close of hearing a criminal case, the trial judge is required to

pass sentence on the accused person upon conviction. This is provided for under section 298(3) of the Criminal Procedure Act 1985. It provides:

> 29(3) "If the accused person is convicted, the judge shall pass sentence on him according to law."

From the provisions of this sub-section, it is apparent that at the close of hearing a criminal case, when the case on both sides is closed and the trial judge delivers the judgment, the process is not complete until sentence is passed on the accused person. To our minds, there is no provision in the law under which the sentence is to be stayed pending appeal after the conviction of an accused person. In this case, we are inclined to the view that the learned trial magistrate had not completed the process of the trial before him when he ordered a stay of the sentence on 9 May 1997 before passing sentence after conviction. With respect, we think that was an error on the part of the magistrate. In the result, the appeal against conviction having been lodged at a stage when, as already indicated, the proceedings before the trial magistrate were incomplete, is premature.

Consequently, the appeal having been based on an incomplete trial process, ordinarily this court would have ordered the matter to be remitted to the trial court for passing an appropriate sentence in completion of the trial process. However in the instant case, such a course of action will not in, our considered opinion, meet the ends of justice of the case. The end result of remitting the matter to the trial court for completion of the trial process is that the appellant would, eventually after sentence, bring back the matter to this court on appeal. It is common knowledge that it takes time before the appeal process is finalized. In a case such as this one, where, the merits of it are such that the State Attorney on behalf of the respondent, Republic did not support the conviction, we think it would serve no useful purpose to remit the case to the trial court for sentence. The appellant would have spent considerable time in prison on account of a case whose appeal is bound to succeed. On a cursory glance through the record of the proceedings, we are in agreement with

the learned State Attorney in her indicated move, not to support the conviction against the appellant.

In the circumstances, rather than remitting the case to the trial court with direction to pass sentence, we are satisfied that the ends of justice of this case would be met by invoking the court's powers of revision under section 4(2) of the Appellate Jurisdiction Act 1979 as amended by Act Number 17 of 1993, in dealing with the matter at this stage. In exercise of that power, the conviction against the appellant for the offence of manslaughter, which, as indicated was not supported by the respondent, Republic is quashed and set aside. The appellant is to be set free forthwith unless otherwise held lawfully.

Similarly, as the trial magistrate (Ext. Jurisdiction) was in error in ordering a stay of the sentence pending appeal, the order of stay of sentence of 9 May 1997 is set aside. This was the subject matter in Criminal Revision Number 4 of 1997, which is hereby deemed to have been dealt with accordingly.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* ANJELINA OJARE

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Kisanga, Lubuva and Samatta, JJ.A.)

CIVIL REFERENCE No. 21 OF 1997

(From the judgment of the High Court of Tanzania at Arusha, Nchalla, J., dated 24 March 1997, in Criminal Appeal No. 31 of 1996)

Constitutional Law – Constitutionality of section 148(5) of the Criminal Procedure Act 1985 which provides that no bail shall be granted to a person charged with the offence of murder – Whether a Court of Resident Magistrate has jurisdiction to handle the issue.

Constitutional Law – Basic Rights and Duties – Violation of the fundamental right to personal freedom – The right of an accused person to be presumed innocent until proved guilty as guaranteed under articles 13(6)(b) and 15 of the Constitution – Procedure to be adopted in handling cases of violation of constitutional rights – Section 9(1) of the Basic Rights and Duties Enforcement Act 1994.

Statute – Interpretation of Statutes – Meaning of "any other action ... Lawfully available" – Section 4 of the Basic Rights and Duties Enforcement Act 1994.

Criminal Practice and Procedure – Right to bail – Statutory provision taking away the right to bail from person charged with murder – Whether the provision is constitutional – Section 148(5)(a) of the Criminal Procedure Act 1985.

The respondent was charged with murder and was granted bail by the court of the Resident Magistrate despite resistance by the prosecution which argued that under section 148(5)(a) of the Criminal Procedure Act 1985, the offence of murder is not bailable, and that at any rate a court of Resident Magistrate has no jurisdiction to grant bail in respect of murder which is not triable by that court. The Resident Magistrate's Court granted bail on the grounds that section 148(5)(a) of the Criminal Procedure Act 1985 violates constitutional rights of an individual. The Director of Public Prosecutions appealed unsuccessfully to the High Court. On a further appeal the Court of Appeal considered whether or not a Court of Resident Magistrate has jurisdiction to entertain constitutional matters and the proper procedure of enforcing fundamental rights granted under articles 12 to 29 of the Constitution.

Held:(i) When the issue whether section 148(5)(a) is constitutional was raised, the trial magistrate should have referred that issue to the High Court for decision unless either the parties agreed to the contrary or the magistrate was of the opinion that the raising of that question before him was merely frivolous or vexatious;

(ii) In terms of section 9(1) of the Basic Rights and Duties Enforcement Act 1994 the District Court had no jurisdiction to consider and decide the question whether or not section 148(5)(a) of the Criminal Procedure Act 1985 was constitutional; the proceedings in that court, therefore, were null and void and the decision of the High Court was bad in law in as much as it was based on a nullity.

(iii) The complainant, on whose behalf it was alleged that section 148(5)(a) of the Criminal Procedure Act 1985 was violative of her basic right guaranteed under arts 13(6)(b) and 16(1) of the Constitution, should have applied to the High Court or taken any other action which was lawfully available in terms of section 4 of the Basic Rights and Duties Enforcement Act 1994;

(iv) The expression "any other action ... lawfully available" as used in section 4 of the Basic Rights and Duties Enforcement Act 1994 applies to situations where the victim of an alleged wrong opts to seek redress under ordinary law even though the wrong was capable of being redressed as a violation of a basic right under the Constitution;

(v) The expression "... any other action ..." in section 4 of the Basic Rights and Duties Enforcement Act 1994 does not include an appeal to the High Court;

Appeal allowed

Statutoty provisions referred to:

(1) Criminal Procedure Act 1985, section 140(5)(a), 148(5)

(2) Basic Rights and Duties Enforcement Act 1994, section 9(1)

Mr Mussa, for the Appellant

Mr Mughwai, for the Respondent

JUDGMENT

(Delivered 01 July 1998)

KISANGA, J.A.: This appeal arises from the judgment of the High Court (Nchalla, J.) which upheld and affirmed the ruling of the District Court granting bail to the respondent.

The background to the case may be set out briefly as follows: The respondent applied to the District Court for bail under section 148(1) of the Criminal Procedure Act. The application was made at a time when proceedings of a preliminary inquiry into a charge of

murder against the respondent were pending in that court. The application was resisted by the prosecution on the ground that under section 148(5)(a) of the Criminal Procedure Act, the offence of murder is not bailable, and that in any case the Court of the Resident Magistrate has no jurisdiction to grant bail in respect of murder which was not triable by that court. The magistrate overruled the objection and granted bail. The Director of Public Prosecutions appealed unsuccessfully to the High Court which, as already stated, affirmed the decision of the Resident Magistrate, hence the present appeal to this court.

Before us, the appellant Director of Public Prosecutions was represented by Mr K.M. Mussa, learned Principal State Attorney, while the respondent was advocated for by Mr Mughwai, learned advocate. Counsel pointed out that a *nolle prosequi* in respect of the charge had already been entered on behalf of the Director of Public Prosecutions, and that this appeal was now intended only to set the record right.

The Memorandum of Appeal contained the following grounds:

1. That the learned judge erred in assuming jurisdiction over a matter falling within the provisions of articles 12 to 29 of the Constitution without complying with the provisions of the Basic Rights and Duties Enforcement Act.

2. That the learned Judge erred in law in granting bail contrary to section 148(5)(a) of the Criminal Procedure Act.

3. That the learned judge erred in holding that section 148(5)(a) of the Criminal Procedure Act violates articles 13(6)(b) and 15(2)(c) of the Constitution and that the same cannot be applied and enforced by the courts.

4. In the alternative to ground 2 hereinabove, the learned judge non-directed himself on the position of the law as it existed before the enactment of section 148(5)(a) before upholding and affirming the decision of the subordinate court.

On the first ground the thrust of Mr Mussa's submission is that the learned judge wrongly considered and decided on a matter falling within articles 12 to 29 of the Constitution which matter came to the High Court by way of appeal from the District Court. According to the learned counsel the matter could have been considered and decided upon by the High Court only if it was brought to that court pursuant to the procedure provided for under the Basic Rights and Duties Enforcement Act Number 33 of 1994. In response to that, Mr Mughwai maintained that the learned judge was justified to hear and decide the matter on appeal from the District Court.

A glance through the record shows that the issue of the constitutionality of section 140(5) (a) of the Criminal Procedure Act was raised in the District Court. Submissions on behalf of the parties in that court were centred on whether or not that provision violated the fundamental right of personal freedom of the individual, and the right of an accused person to be presumed innocent until proved guilty as guaranteed under articles 13(6)(b) and 15(1) of the Constitution of the United Republic, hereinafter to be referred to simply as the Constitution. That was clearly a matter falling within articles 12 to 29 of the Constitution, and the pertinent question that follows is: What was the procedure to be adopted in handling that question? That question was raised squarely in the High Court during the first appeal. There, it was submitted that the trial magistrate had no competence to consider the issue of the constitutionality of section 148(5)(a) of the Criminal Procedure Act, and that once that issue was raised before him he was obliged to refer it to the High Court for determination in terms of section 9(1) of the Basic Rights and Duties Enforcement Act. That provision says that:

> 9(1) Where in any proceedings in a subordinate court any question arises as to the contravention of any of the provisions of section 12 to 29 of the Constitution, the presiding magistrate shall, unless the parties to the proceedings agree to the contrary or the Magistrate is of the opinion that the raising of the question is merely frivolous or vexatious, refer the question to the High Court for decision; save that if the

question arises before a Primary Court the magistrate shall refer the question to the Court of a Resident Magistrate which shall determine whether or not there exists a matter for reference to the High Court.

The learned judge, however, rejected the submission, proceeded to consider the constitutionality of section 148(5)(a) and eventually upheld the decision of the trial magistrate which had granted bail holding, in the process, section 148(5)(a) to be inconsistent with the Constitution.

In rejecting the submission the learned judge referred to sections 4, 5 and 10 of the Basic Rights and Duties Enforcement Act.

Section 4 provides:

4. If any person alleges that any of the provisions of sections 12 to 29 of the Constitution has been, is being or is likely to be contravened in relation to him, he may, without prejudice to any other action with respect to the same matter that is lawfully available, apply to the High Court for redress.

Section 5 provides in effect that an aggrieved person who goes to the High Court for redress pursuant to section 4, shall do so by filing a petition to that court. Then section 10(1) provides that:

10(1) For the purposes of hearing and determining any petition made under this Act including references made to it under section 9, the High Court shall be composed of three judges of the High Court save that the determination whether an application is frivolous, vexatious or otherwise fit for hearing may be made by a single Judge of the High Court.

The learned judge, therefore, took the view that although the matter before him was not an application by way of a petition under section 5, he was nevertheless, entitled to deal with it pursuant to the option under section 4 whereby the aggrieved party could take any other action, like the appeal in the instant case. And since he was dealing with the matter as an appeal, he was again entitled to sit as a single Judge, and so the requirement of three judges under section 10(1) did not arise.

With due respect, we cannot agree with the construction put by the judge on section 4 of the Act. We do not think that the expression "... any other action...." in that provision includes an appeal lying to the High Court. In the instant case, for example, the aggrieved person was Mrs Ojare on whose behalf it was alleged that section 148(5)(a) of the Criminal Procedure Act was violative of her basic right as guaranteed by articles 13(c)(b) and 15(1) of the Constitution.

In terms of section 4, therefore, it was Mrs Ojare who had the option whether to go to the High Court or to take any other action lawfully available to her for redress. When the matter went to the High Court, however, this was not at the instance of Mrs Ojare. It was at the instance of the Director of Public Prosecutions who was alleging, not that section 148(5)(a) was violative of Mrs Ojare's basic right but, that the District Court had no competence to consider and decide on the constitutionality of that section. In other words the allegation or complaint by Mrs Ojare and that by the Director of Public Prosecutions differed completely from each other.

In the circumstances, therefore, it is plain that Mrs Ojare has neither applied to the High Court for redress under section 4 of the Basic Rights and Duties Enforcement Act, which would involve filing a petition to that court under section 5 of the same Act, nor has she exercised any other option which was lawfully available to her. In other words the appeal to the High Court cannot be regarded as any other action which was lawfully available to Mrs Ojare as the learned judge thought, because the appeal was not at the instance of Mrs Ojare and it was not alleging any infringement of her basic right. Even assuming that Mrs Ojare had lost in the District Court and then appealed to the High Court, this could not have amounted to her exercising another action or option lawfully available to her in terms of section 4. Because at that stage Mrs Ojare, having thus lost the action in the District Court, would have only one option lawfully open to her, anyway, and that is to appeal to the High Court. No other option would be lawfully open to her and therefore the provision would be meaningless.

We think that the expression "any other action ... lawfully available ..." as used in section 4 applies to situations where an alleged wrong, though capable of being redressed as a violation of a basic right under the Constitution, the victim of it, nevertheless, opts to seek redress under the ordinary law. Take, for instance, the wrong of unlawful confinement. A person who complains of it may, in terms of section 4 apply to the High Court for redress or institute criminal or civil proceedings under the ordinary law.

Thus we are satisfied that there was non-compliance with the provisions of section 4 of the Basic Rights and Duties Enforcement Act. The complainant on whose behalf it was alleged that section 148(5)(a) of the Criminal Procedure Act was violative of her basic right as guaranteed under articles 13(6)(b) and 15(1) of the Constitution neither applied to the High Court, nor exercised any other option which was lawfully available to her for redress. The learned judge therefore erred in failing to hold that there was such non-compliance.

The view we take of the matter is that when the issue of constitutionality of section 148(5)(a) was raised in the District Court, the trial magistrate should have proceeded in accordance with the procedure laid down under section 9(1) of the Basic Rights and Duties Enforcement Act reproduced earlier in this judgment. Under that procedure, the magistrate had a duty to refer that issue to the High Court for decision unless:

(a) the parties agreed to the contrary, or

(b) the magistrate was of the opinion that the raising of that question before him was merely frivolous or vexatious.

Neither (a) nor (b) was applicable in this case, and so the trial magistrate had no option but to refer the question to the High Court for decision. This he did not do; he considered the question himself and decided on it. Obviously, in terms of section 9(1) of the Act he had no competence or jurisdiction to do so. To that extent, therefore, the proceedings were null and void, and the learned judge should have held so.

Mr Mughwai submitted that section 9(1) of the Basic Rights and Duties Enforcement Act was not applicable because it was inconsistent with section 4 of the same Act quoted above. He contended that the use of the word "may" in that section meant that an aggrieved person has the option whether to go to the High Court or to a subordinate court for redress and that his client had opted to go to the District Court. We noted, by the way, that this line of argument is different from that adopted by the learned judge who maintained that the complainant had referred the matter to the High Court through an appeal.

The true position however, is that Mrs Ojare did not go to the Resident Magistrate's Court to seek redress for violation of her basic right. She had simply applied for bail in that court, and in the course of arguing the application by the parties or their representatives, the issue of constitutionality of section 148 (5)(a) of the Criminal Procedure Act arose. Then the point is that once the Resident Magistrate Court had taken cognizance that a constitutional question had thus arisen, it had a duty to refer such question to the High Court for decision because, as has been demonstrated above, the conditions specified under section 9(1) for displacing that duty were non-existent.

In yet another attempt to show that section 9(1) had no application here, Mr Mughwai contended that in any case that provision sought to derogate from Article 30(3) of the Constitution. The unofficial English version of that provision says that:

3(3) Any person alleging that any provision in this Part of this Chapter or in any law concerning his right or duty owed to him has been, is being or is likely to be violated by any person anywhere in the United Republic, may institute proceedings for redress in the High Court.

Counsel reiterated the contention that the word "may" as used in the provision meant that the aggrieved person had the option or discretion whether to go to the High Court or to the District Court for redress, and consistent therewith his client opted to go to the District Court. Therefore, in his view, section 9(1) of the Act cannot now be invoked

to defeat or derogate from article 30(3) of the Constitution, the supreme law of the land.

The answer to this is that sub-article (3) of Article 30 of the Constitution must not be read in isolation. It has to be read together with sub-article 4(a) of the same Article, again the unofficial English version of which reads:

> 30(4) Subject to the other provisions of this Constitution, the High Court shall have original jurisdiction to hear and determine any matter brought before it pursuant to this article; and the state authority may enact legislation for the purpose of:
>
> (a) regulating procedure for instituting proceedings pursuant to this Article;

Pursuant to this sub-Article, Parliament enacted the Basic Rights and Duties Enforcement Act, so that sub-articles (3) and (4)(a) of the Constitution have to be read together with this Act. When that is done, the import is that a person who complains of a violation of his basic right has the option whether to seek redress in the High Court by filing a petition in that court, or to take any other action lawfully available to him such as instituting a civil suit under the ordinary law to recover damages, say, for unlawful confinement. But where in the course of any proceedings in the subordinate court the issue of violation of a basic right of a party arises, then the trial magistrate must refer such question to the High Court for determination. However if the parties agree that the question should not be referred to the High Court, then the magistrate may proceed under the ordinary law to dispose of the suit or proceedings before him. Again if, on that question being raised in the District Court, the magistrate is of the opinion that the raising of it is merely frivolous or vexatious, then he can overrule it and proceed to conclude the proceedings under the ordinary law. His decision on whether the raising of the question was frivolous or vexatious is appealable or referable to the High Court.

It follows, therefore, that the trial magistrate had no competence or jurisdiction to hear and decide on the constitutionality of section 148(5)(a) of the Criminal Procedure Act which was raised before him. That was a matter to be referred to the High Court for decision, which was not done. To the extent of such omission or error, the proceedings in the District Court were null and void.

That, then, settles the first ground of appeal. Since the other grounds of appeal arise from matters which were purportedly decided on by the District Court and affirmed by the High Court, it follows that the decision of the High Court was bad in law in as much as it was based on a nullity. It purported to be based on a matter which was not before the court, and to uphold a decision which was no decision at all or which did not exist in law. It is, therefore, not necessary to consider the other grounds of appeal.

In the result, the appeal by the Director of Public Prosecutions is allowed. The judgment of the High Court is quashed, and the ruling/order of the District Court is declared null and void. Ordinarily we would have sent the matter back to the District Court for continuation of the hearing of the matter according to law from the stage immediately following the raising of the constitutional issue before that court. However such course of action is now overtaken by the events in the light of the *nolle prosequi* which was entered in this case.

KIJAKAZI MBEGU AND FIVE OTHERS *v.* RAMADHANI MBEGU

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Mackanja, J.)

(PC) CIVIL APPEAL No. 140 OF 1997

(From the decision of the District Court of Kinondoni, in Administration Cause No. 10 of 1997)

Probate and Administration – Application for grant of letters of administration – Caveat lodged against the application – Letters of administration granted while caveat still in force – Whether proper.

Probate and Administration – Rules of natural justice – The right to be heard – Trial court decides without according a hearing to the appellants' advocate – Travesty of justice.

Probate and Administration – Application for grant of letters of administration – Subject matter governed by Islamic law and case lodged in Primary court – High Court orders the case to be heard by another magistrate – District Court transfers the case to itself – Whether District Court has jurisdiction.

Probate and administration – Application for grant of letters of administration – Weight to be given to clan members' views in granting letters.

After the High Court had ordered a re-trial of a Probate and Administration Cause, the respondent lodged his application for grant of letters of administration in a Primary Court. Afraid that he might not get justice from the trial magistrate the respondent prayed that another magistrate try the case. Instead of acting as requested, the District Court decided to transfer the case to itself. While the case was before the District Court the appellants lodged a caveat against appointment of the respondent as administrator. Without giving a hearing to the appellants, the District Court decided the case in favour of the respondent. On appeal the decision of the District Court was challenged on a number of grounds, including failure of the court to act according to the wishes of clan members.

Held: (i) The District Court erred in granting letters of administration to the respondent while a caveat was in force;

(ii) The District Court erred in law by not giving to the appellants the right to be heard;

(iii) It was an error on the part of the District Court to ignore the order of the High Court to have the case tried before another magistrate, i.e. another Primary Court Magistrate;

(iv) It was wrong for the District Court to transfer to itself a matter that involved Islamic law, since jurisdiction in civil proceedings where customary law or Islamic law applies is vested in Primary Courts as provided for under section 18(1)(a)(ii) of the Magistrates' Courts Act 1984 read together with rule 1 of the Fifth Schedule to that Act;

(v) There is nowhere in the Magistrates' Courts Act 1984 a requirement for the court to collect clan views before a grant of letters of administration is made.

Appeal allowed

Statutory provisions referred to:

(1) Magistrates' Courts Act 1984, section 18(1)(a)(ii)

(2) Probate and Administration Ordinance, section 58(5)

Mr Mkondya, for the Appellants

JUDGMENT

(Delivered 02 July 1998)

MACKANJA, J.: This matter has a long history. It started as Administration Cause Number 55 of 1977 before the Magomeni Primary Court where Ubwa Mbegu was appointed administrator the estate of his late father, Mwinyimbugu Mshindo. After some time Ubwa Mbegu also passed away. Before his death, however, and according to the findings of this court, Kaji, J.; in (PC) Civil Appeal Number 150 of 1995, Ubwa Mbegu had sold one of the two houses constituting the estate and

had duly distributed the proceeds to the beneficiaries, the administrator and his brother; the latter is the present respondent. The findings made by Kaji J., further show that the two houses had been distributed to the beneficiaries as follows. One to the two brothers, and one to their eight sisters. The latter are the appellants here. So that when the respondent applied for letters of administration in respect of the house that was distributed to his sisters they resisted the move. They stated that whereas the house on Togo Street, Dar es Salaam, had been distributed to the two brothers, the one at Kongwa Street in Dar es Salaam also, was beqeathed to the appellants.

At page 2 of the typed judgment of Kaji, J., it is shown that on 30 December 1991, the trial Primary Court in Administration Cause Number 55 of 1977 ordered that the disputed house be evaluated before it was to be sold with directions that the proceeds be distributed to the male as well as to the female beneficiaries. That order was quashed by the District Court on 10 December, 1992 and it was ordered that the case be tried afresh before another magistrate. On 1 September 1995 a Senior Resident Magistrate, presumably in line with the decision of the District Court, held that the present respondent was not the choice of all the beneficiaries, directing him to refer the matter to their close relatives who would propose the person to apply for a grant. The appellants were aggrieved, hence (PC) Civil Appeal Number 150 of 1995 which was heard by Kaji, J.

It was observed by this court that while the decision that quashed the proceedings before the trial Primary Court and an order for a re-trial were still in force, the present respondent made a complaint to another magistrate who took that complaint to constitute an appeal – against the decision of the latter magistrate was wrong because the decision in respect of which he entertained an appeal was quashed and no one had appealed against it. So the invalid order of the District Court dated 1 September 1995, was quashed. The order for a re-trial was upheld. The judgment of this court is dated 2 October 1996.

On 6 December 1996, Ramadhani Mbegu lodged his application for a grant, inferentially in obedience with the order of this court.

For a copy of the judgment of this court is the only document that was filed in that application, Probate Cause Number 313 of 1996. Then on 9 January 1997, respondent wrote to the District Court expressing fear that he would not get justice from the trial magistrate. He, in consequence, prayed that another magistrate try the case. Instead of acting as requested, the District Court decided to transfer the case to itself. A case, Probate Cause Number 1 of 1997, was opened. After a number of adjournments the District Court appointed the respondent as administrator of the estate in a judgment that was delivered on 10 September 1997.

Meantime, and before the District Court delivered its judgement, the present appellants through their advocates, lodged a caveat against the appointment of the respondent on the following grounds:

1. That the petitioner did obtain the written consent of all the beneficiaries;
2. That the petitioner did not file an affidavit giving the full names and addresses of the persons whose consent was produced; and
3. That the petitioner was not the right person to a grant in respect of the house at Kongwa Street because it was devised *inter vivos* to the appellants by their late father.

The caveat was lodged on 3 April 1997.

The appellants were aggrieved by the decision of the District Court, hence this appeal. Mr Mkondya, learned advocate, who represents the appellants, has raised four interrelated grounds. The first one relates to the caveat. It is averred that the trial court erred in granting letters of administration to the respondent while the caveat was still in force. This ground appears to be persuasive as it appears to be forceful. It is tenable because the caveat having a life of four months from the date on which it is lodged in terms of section 58(5) of the Probate and Administration Ordinance Chapter 443, it was to expire on 2 October 1997. There was, therefore, a caveat in force on 10 September 1997 when the District Court delivered the impugned judgment. In that circumstance the first ground succeeds.

The second ground has a lot of force. It is averred that the trial magistrate erred in law and in fact in granting letters of administration to the respondent without affording the appellants a hearing. Mr Mkondya, argues, quite correctly, that nowhere was evidence given upon which the trial court based its findings. My perusal of the record of the trial court satisfies me that decision was made without even giving a hearing to the appellants' advocate, Mr Masawe, who was appearing before that court. The trial court's decision is, therefore, a traversty of justice. It offends cardinal rules of fairness.

Indeed, as Mr Mkondya submitted, it was an error on the part of the District Court to ignore the order that was made by this court, directing that the case be tried before another magistrate. What was intended was trial before another Primary Court Magistrate. True, there was a complaint against the second Primary Court magistrate. Nevertheless the applicant/respondent merely wanted a change of Magistrate, he did not apply for a change of venue.

It is my considered opinion that it was wrong for the District Court to transfer to itself a matter that involved Islamic law. Jurisdiction in civil proceedings where customary law or Islamic law applies is rested in the Primary Court in terms of section 18(1)(*a*)(11) of the Magistrates Courts Act as read with rule I of the Fifth Schedule to the Magistrates Courts Act. Once all the parties are Moslems, a Primary Court has jurisdiction to administer an estate even where it comprises of registered land. It was therefore erroneous for the District Court to ignore the order of this court as aforesaid. The contention in the third ground of appeal that the trial magistrate erred in granting letters of administration to the respondent contrary to the letter and spirit of the High Court judgment is well-founded.

The fourth ground lacks merit. It is there contended that in granting letters of administration the subordinate court had to act according to the wishes of clan members. There is nowhere in the Magistrates Courts Act 1985 where there is requirement to collect clan views before a grant is made. All that a subordinate court is required to consider is an application in the appropriate manner and to hear and to determine any objections to such application.

From the foregoing reasons the appeal succeeds. It is allowed with costs.

MEHBOOB AKBER HAJI AND TWO OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Kisanga, Lubuva and Samatta, JJ.A.)

CRIMINAL APPEAL No. 36 OF 1997

(From the decision of the High Court of Tanzania at Morogoro, Msumi, J.K., dated 15 July 1997, in Economic Criminal Case No. 3 of 1995)

Criminal Practice and Procedure – Identification Parade – Accused identified by two witnesses and identification by one witness is challenged – Whether accused persons properly identified.

Criminal Practice and Procedure – Charges – Offence capable of being committed in alternative ways – Proper way of charging .

Criminal Practice and Procedure – Sentencing – Trial judge sentencing on the basis of repealed law whose maximum sentence was less than that of the new law – Legality of sentence.

Criminal Law – Economic and Organized Crime – Illegal importation of dangerous drugs – Circumstatial evidence – Whether the offence is established.

Economic and Organized Crime – Leading organized crime – No proof of intent to benefit from such act – Whether offence of leading organized crime is established – Economic and Organized Crime Control Act 1984, section 59(2) and paragraph 4(1)(a) of the First Schedule.

Economic and Organized Crime – Leading organized crime – Bribing in order to facilitate port clearance of a container of dangerous drugs – Whether offence of leading organized crime is established – Economic and Organized Crime Control Act 1984, section 59(2) and paragraph 4(a) First Schedule.

Criminal Law – Actus reus and mens rea – Conviction of dealing in cannabis sativa resin – Appellants' confirmation that they were owners of the container having the drugs, that they worked together along with one Eliakim to get the container, still sealed, cleared from the port resulted from their joint efforts together with Eliakim's – Whether mens rea and actus reus established.

The appellants were convicted by the High Court on a total of 4 counts. The first and second appellants were convicted of unlawful importation of dangerous drugs into the country, illegal dealing in dangerous drugs and leading organized crime by bribing to facilitate clearance from the port of the container of dangerous drugs. The third appellant was convicted of leading organized crime by assisting in a criminal racket with intent to benefit from the act. On appeal to the Court of Appeal the appellants attacked the decision of the trial judge arguing, *inter alia,* that the circumstantial evidence on which the appellants were convicted was not sufficiently established, that *actus reus* and *mens rea* were not proved, that the appellants were not properly identified in the identification parade and that the sentence was excessive in the circumstances. The appellate court considered the arguments raised.

Held:(i) There was abundant circumstantial evidence, to implicate the first and second appellants fully with illegal importation of cannabis sativa resin, and the appellants' defences consisting of a mere denial to have anything to do with the container in question cannot have raised any reasonable doubt in the mind of the court;

(ii) The two appellants' information to PW6 that they were the owners of the container in question, that they actively worked together with Eliakim to get the container cleared from the port and that the container was duly released following joint efforts of Eliakim and the appellants sufficiently established *actus reus* and *mens rea* on the part of the two appellants;

(iii) On the totality of the evidence the appellants' conviction on the second count was well founded, especially in the light of the appellants' mere denial of the charge;

(iv) The payment of the bribe money to PW6 implicated both appellants sufficiently with leading organized crime;

(v) There was no evidence to implicate the third appellant with leading organized crime with intent to benefit from such act;

(vi) Since the learned trial judge meted out the sentence of 8 years imprisonment in respect of each count basing on outdated legislation whose maximum term of imprisonment was 15 years, since under the new provisions the maximum term of imprisonment is 20 years with a minimum term of 7 years, the sentence is enhanced to 10 years imprisonment for each count, to run concurrently.

(vii) ***Obiter:*** Where it is provided that an offence is capable of being committed in alternative ways the charge may properly be laid by setting out in the particulars the alternatives spelt out by the provision in which case evidence may be adduced to prove the charge on the basis of any of those alternatives.

Appeal by first and second appellants dismissed

Appeal by third appellant allowed

Statutes referred to:

(1) Crime Control Act 1984, section 59(2)

(2) Dangerous Drugs Ordinance, sections 7 and 23(2)(b)

(3) Economic and Organized Crime Control Act, section 8(a), 59(2)

Prof Shaidi and *Mr Mchome,* for the Appellants

Mr Shaidi and *Mr Matupa,* for the Respondent

Editorial Note: The Dangerous Drugs Ordinance has since been repealed, with the usual savings, by the Drugs and Prevention of Illicit Traffick in Drugs Act 1995 Number 9 of 1995.

JUDGMENT

(Dated 02 July 1998)

KISANGA, J.A.: The three appellants were jointly convicted by the High Court (Msumi, J.K.) on a total of four counts. On the first

count the first and second appellants were convicted of unlawful importation of dangerous drugs into the country, on the second count they were convicted of illegal dealing in dangerous drugs and on the fourth count they were convicted of leading organized crime. They were each sentenced to 8 years' imprisonment on each count, the sentence to run concurrently. On the third count the third appellant alone was convicted of leading organized crime and was also sentenced to 8 years' imprisonment. All the appellants have appealed against the convictions and sentences.

The convictions were based largely, if not wholly, on circumstantial evidence, the salient points of which may be set forth briefly as follows. During the first week of October, 1991 the container number 2222-0 landed at the Dar es Salaam port on board MS Sonvir House (PTV) Ltd. from Lahore, Pakistan. The container was consigned to Messrs. Badoo Exports Import Co. Ltd. of Dodoma, Tanzania, owned by one Eliakim Brown alias Brown Eliakim (hereinafter to be referred to simply as Eliakim). The three appellants and the said Eliakim who could not be arrested to date tried and eventually succeeded to have the container cleared from the port. They had requested to have the container opened for inspection not at the Dar es Salaam port but at its destination in Dodoma, and when this was refused they offered bribes to the customs official concerned in a bid to induce him to oblige but in vain. Upon the container being opened, it was found to contain, *inter alia*, substance which was later certified by the Government Chief Chemist to be *cannabis sativa* resin. Eliakim and the appellants offered a higher bribe in a bid to stop the customs official from sending a specimen of the stuff to the Government Chief Chemist for analysis. The contraband weighed 5.3 tons, and according to the charge sheet it was valued at TZS. 8 533 000 000.

While the process of clearing the container from the port was going on, Eliakim in the company of the first and second appellants were at the same time making arrangements with Messrs. Usafirishaji Mikoani Union Ltd. (UMU), a transport company, for the hire of a lorry to transport the container to Dodoma. After the container was

cleared from the port it was loaded on lorry number TZB 1371 which was later seized with the cargo in Ubungo area within the city of Dar es Salaam.

At the material time the first and second appellants and Eliakim were sharing a house at Msasani Village Villa which was searched and a briefcase was recovered from there, containing the shipping document relating to the container in question. The second appellant had arrived in Dar es Salaam from Dubai, 2-3 weeks before the arrival of the container. He had visa to stay in the country, but on the day the container was closed and released from the port he had exceeded his stay by one week; upon being asked why he had overstayed he simply said that it was an oversight.

The defence of each appellant consisted of a flat denial of the charge. The first and second appellants denied ownership of the container in question or any connection whatsoever with it. The third appellant, in addition to denying any involvement in the alleged offence, put up an *alibi* that during the period in question he was at his work station in Singida.

The learned Principal Judge accepted the prosecution story and, in the light of the mere denial of the charges by the appellants, accordingly convicted and sentenced the appellants as was shown at the beginning of this judgment. It is from that decision that this appeal now arises. Before us, all the appellants were represented by Professor L.P. Shaidi and Mr Mchome, learned advocates, while the respondent Republic was advocated for by Mr Shaidi and Mr S. Matupa, learned Principal State Attorney and Senior State Attorney, respectively. Counsel for the appellants filed a joint Memorandum of Appeal comprising six grounds of appeal which for ease of reference are set out herein below:

1. That the trial judge erred in both law and fact in convicting all the three accused persons solely on circumstantial evidence which was contradictory and insufficient to establish their guilt beyond all reasonable doubt.

2. That the trial judge erred in law and in fact by failing to give sufficient consideration and weight to the evidence adduced by all the three accused convicted persons.

3. That the trial judge erred in law and fact by convicting the accused persons without assessing whether available evidence was sufficient to establish the *actus reus* and *means rea* of each and every count separately.

4. That the trial judge erred in law and fact by accepting the evidence of the identification parade, which evidence was obtained improperly.

5. That the trial judge erred in law by admitting and relying on the evidence of Aman Nzinyangwa which was recorded during an earlier trial.

6. That the sentence imposed were excessive bearing in mind that the accused persons spent a long time in detention.

As the grounds of appeal appear to overlap, we propose to consider each count separately, evaluate the evidence adduced against each appellant on the respective counts and, in the process, address the points raised in the various grounds of the Memorandum of Appeal.

We have already stated that the evidence on which the appellants' convictions were based is largely, if not wholly, circumstantial. The first count against the first and second appellants alleged illegal importation of *cannabis sativa* resin, contrary to sections 7 and 23(2)(b) of the Dangerous Drugs Ordinance read together with paragraph 20 of the First Schedule to, and section 59(2) of the Economic and Organized Crime Control Act. In this court, there was the evidence of PW6, the customs officer who cleared the container in question from the port. His evidence shows that the first and second appellants accompanied Eliakim to the office of PW6 when desperate efforts were being made to clear the container from the port, and that in the course of this endeavour, Eliakim introduced both appellants to the witness as owners of the container and the appellants confirmed this. Then there was the evidence of PW3, former operations manager

of Usafirishaji Mikoani Union (UMU) Ltd. His evidence shows that at the material time Eliakim hired from his company a lorry to transport a container to Dodoma, and that in the process Eliakim introduced the first and second appellants to him as his business companions. Both PW3 and PW6 identified the two appellants at a police identification parade as the persons introduced to them by Eliakim in the course of the transactions respecting the container in question. Professor Shaidi challenged the identification of the appellants at the identification parade as being unreliable and worthless on the ground that the appellants were exposed to PW3 in a room at the police station just before the witness went to identify them. This issue was also raised before the trial judge who duly considered and rejected it. In our view, he was entitled to reject it. For, it was never suggested in cross examination to PW5, who conducted the identification parade, that he had so exposed the appellants to PW3 before calling him to do the identification. Secondly, PW3 categorically denied the suggestion that he saw the appellants that day before he went to identify them at the parade. Again PW6 was the other identifying witness, but it was not alleged or suggested that the appellants were also exposed to him before he identified them. Why should the appellants have been exposed to PW3 only and not to PW6?

Professor Shaidi further submitted that there were discrepancies in the prosecution evidence which rendered the identification of the appellants unreliable. PW3 testified that the people on the identifications parade were a mixture of Asians and Africans, Asians being in the majority, while PW5 claimed that they were all Asians. This discrepancy however, does not go to the root of the matter. Because the essential question is whether PW3 was able to identify the appellants from among a group of persons. It is not alleged that the appellants were the only Asians in that group. The evidence is that either the participants in that group were all Asians or that the Asians were in the majority. Thus, if PW3 was able to identify the appellants from the group, the question whether the group was made up wholly of Asians or was a mixture of Asians and Africans, the

Asians being the majority, cannot affect the correct identification of the appellants. The witness simply identified the two appellants Asians from a group of Asians or a mixture of Asians and Africans. It is to be noted that this criticism was not leveled against PW6, the other identifying witness. Indeed the identification of the appellants by PW6 was not challenged in any way. So that if PW6 correctly identified the two appellants, there can be no ground for alleging or suggesting that PW3 wrongly identified those appellants.

Again it was claimed that the appellants were conspicuously dirty at the parade and this made their identification by the witnesses so easy. However, this claim was made only belatedly by the second appellant in his re-examination. If it had any grain of truth in it one would expect him to have raised it much earlier either by putting it in cross-examination to PW5 who had conducted the parade, or in his own evidence in chief. The fact that his co-appellant never raised the claim, and the fact that he himself made it so belatedly increasingly goes to show that it was merely an afterthought.

We therefore find no valid criticism in the evidence of PW3 and PW6. We are satisfied that PW6 and PW3 were truthful witnesses. Like the trial judge we accept their evidence to the effect that both appellants and Eliakim actively worked together in their endeavour to have the container cleared from the port and transported to Dodoma. The only reasonable inference to be drawn from this is that the container must have belonged to both appellants, as indeed they confirmed to PW6. For, why should they seek to clear from the port and transport to Dodoma a container which was not theirs? The container must have been theirs, and PW6 must have cleared and released it to both Eliakim and the two appellants following their joint efforts and representations made to him in that behalf.

Professor Shaidi strenuously contended that the container belonged to Eliakim who was not charged. However, the prosecution disclosed that Eliakim could not be arrested. We would add that if he were arrested he would certainly have been charged jointly with the appellants

but that would not make any difference to the case against the appellants who would remain co-participants in the commission of the crime.

The evidence of PW6 and PW3 implicated both appellants sufficiently with the offence of illegal importation of *cannabis sativa* resin into the country. But there were other pieces of evidence which also implicated them and which we propose to refer to only briefly for the sake of completeness. Both appellants and Eliakim were sharing a house of the Msasani Village Villa until the very day the container was released from the port. When the house was searched a briefcase was recovered therein which contained the shipping document relating to the container in question. The first appellant in his defence claimed that the briefcase belonged to Eliakim who was staying with him as a guest and who on the day the container was released from the port had bid him good-bye and went away. To our minds, it is most unlikely that Eliakim who was going away after his temporary stay with the appellant as a guest would leave his briefcase behind. The more likely version is that, as PW1 the police officer testified, the briefcase was found in the room occupied by the first appellant who told the witness that the briefcase was his own. The question then is: Why should the first appellant keep the shipping document in respect of a container which did not belong to him and which he had nothing to do with? The only reasonable inference to be drawn is that both appellants and Eliakim who were staying in one house, worked together, using the shipping document, to clear the container in question from the port, and that it was in the course of that exercise that Eliakim introduced the appellants to PW6 as owners of the container. Again it was in the course of that exercise which involved delays at times, that the second appellant's 30 days' visa expired so that on the day the container was released from the port he had exceeded his stay by 7 days.

And finally, there was the evidence of PW2, the Police Officer, to the effect that on the day the container was released from the port he saw the first and second appellants just outside the port area talking to the driver of the lorry which was carrying the container. Professor Shaidi strongly submitted that this witness was unreliable

and that he could not have identified the appellants who, according to the witness himself, were at a distance of some 100 metres from him. We think that there cannot be much substance in this submission. Because the witness in his evidence said that he recorded the registration numbers of the appellant's motor vehicle, a Nissan Patrol van, which they had parked by the lorry carrying the container. He later instructed other police officers to trail the van while he trailed the lorry and that both appellants were eventually arrested on board the very same van. If the witness was able to identify the registration numbers of the appellants' van, and following that he could give instructions which led to the arrest of that van, then the witness could equally have identified or recognized the appellants at the very distance he identified the registration numbers of their van.

In a further attempt to discredit the prosecution evidence, Professor Shaidi pointed out that the evidence of this witness contradicts that of PW4 on the question: who arrested the lorry which was carrying the container. This witness asserted that it was he who arrested the lorry but PW4 claimed that it was he who did so. It seems that this could be explained on the basis that PW2 had instructed other police officers, including PW4 to trail the motor vehicles as they left the port area. It is possible that in compliance with such instructions PW4 trailed the lorry and eventually both he and PW2 arrested it. Looking at the evidence of PW2 in its totality, we find no good reason to reject it. We accept that evidence and find that the first and second appellants talked to the driver of the lorry carrying the container only a short distance outside the port area. The only inference to be drawn is that the appellants were the owners of and or had interest in the container and its contents which must have been imported by them or with their knowledge.

We, therefore, find that there was abundant evidence, circumstantial though it was, to implicate the first and second appellants fully with illegal importation of *cannabis sativa* resin, and the appellants' defences consisting of a mere denial to have anything to do with the container in question could not have raised any reasonable doubt in the mind

of the court, The appellants' conviction on the first count therefore, was amply justified and there is no reason whatsoever to interfere.

Next we come to the conviction on the second count, also against the first and second appellants, for dealing in *cannabis sativa* resin contrary to sections 8(a) and 23(2) of the Dangerous Drugs Ordinance read together with paragraph 20 of the First Schedule to, and section 59(2) of the Economic and Organized Crime Control Act. Section 8(a) of the Dangerous Drugs Ordinance provides that:

> 8. If any person
>
> (a) has in his possession (otherwise than in the course of transit through the Terrotory or its territorial waters), produces, sells or otherwise deals in the resin obtained from the plant *cannabis sativa* or any preparations of which such resin formed the base; shall be guilty of an offence against this Ordinance.

The evidence of PW6, the customs officer, which we have accepted, clearly shows that the first and second appellants admitted ownership of the container which had landed in Dar es Salaam and which was destined for Dodoma. Therefore the container, after being cleared and released from the port was in possession of the appellants within the meaning of section 8(a) above because such possession was not in the course of transit through Tanzania or her territorial waters.

Professor Shaidi strongly submitted on the point of insufficiency of evidence to establish *actus reus* and *mens rea* on the part of the appellants. With due respect to the learned counsel, however, we can find no merit in his contention. We have already found as a fact that the two appellants confirmed to PW6 that they were the owners of the container in question, that they actively worked together with Eliakim to get the container cleared from the port and that the container was duly released following joint efforts of Eliakim and the appellants.

The only reasonable inference to be drawn from this set of facts is that the appellants owned the contents of the container as well. It does not make sense at all to argue, as Mr Mchome submitted at

some state during this appeal, that the container could belong to the appellants while the contents belonged to other persons, presumably implying that the contents belonged to Eliakim. If that were so, the appellants could easily have said so but they did not, instead they disowned the whole consignment including the container itself. But what is even more is this: Was it practical in business transactions to consign the container to the appellants or their agents without their knowledge of what they should expect to find in it we think not.

We are satified that there was sufficient evidence to establish both *actus reus* and *mens rea* on the part of both appellants. On the totality of the evidence the appellant's conviction on the second count was well founded especially in the light of the appellants' mere denial of the charge.

Again the first and second appellants were convicted on the fourth count for leading organized crime contrary to paragraph 4(1)(a) of the First Schedule to, and section 59(2) of the Economic and Organized Crime Control Act, paragraph 4(1)(a) of the schedule provides that:

> 4(1) A person is guilty of the offence of leading organized crime when:
>
> (a) intentionally or willfully organizes, manages, directs, supervises or finances a criminal racket.

The particulars of the offence on the fourth count alleged that:

> Mehboob Akber Haji and Norman Francisco Toscano between the months of June and October, 1991 within the city of Dar es Salaam knowingly and intentionally financed a criminal racket, to wit, dealing in and importing dangerous drugs illegally, namely, 5.3 tons of *cannabis sativa* resin.

Their conviction on that count, was based on the evidence of PW6, the customs officer, who had cleared the container in question from the port. According to him Eliakim went to his office and told him that he had brought the agreed TZS. 10 million PW6 had been promised that money as an inducement not to send specimen of the contraband to the Chief Government Chemist for examination and report. Having stated that he had brought the agreed TZS. 10 million. Eliakim further

informed PW6 that he had also come with the owners of the container. Whereupon he introduced the appellants who confirmed to PW6 that they were the owners of the container and told him that the money was ready. Obviously this money must be that which Eliakim told PW6 that he had brought, because there had been no prior talk about money between PW6 and the appellants. Indeed the agreed money was subsequently delivered to PW6 by Eliakim and the third appellant.

Thus the two appellants were clearly behind the payment of the bribe money to PW6. As the admitted owners of the container, they paid the bribe money to PW6 through Eliakim, with whom they were actively working together, to facilitate the clearing and release of the container and the contraband in it. In other words the release of the container by PW6 was to all intent and purposes to Eliakim and the two appellants. Such evidence, in our opinion, implicated both appellants sufficiently with financing illegal dealing in *cannabis sativa* resin.

Professor Shaidi strenuously contended that the bribe money was paid to PW6 by Eliakim and not by the two appellants. However we find no substance in that contention. After the appellants had confirmed to PW6 that they were the owners of the container, they told him that the money was ready. Both appellants were meeting PW6 for the first time when Eliakim introduced them to PW6, and there had been no prior talk about money between them and PW6. And the question is: What was this money about. The answer is that it was that money which Eliakim had agreed to pay PW6 as an inducement not to send the specimen of the contraband to the Government Chemist for examination and report. It therefore follows that Eliakim must have delivered the bribe money to PW6 with the knowledge, and on the authority of the two appellants, the owners of the container.

In an attempt to discredit PW6 and to portray him as an unreliable witness, Professor Shaidi pointed out the discrepancies between his evidence in court and his police statement. In his evidence PW6 said that Eliakim introduced the first and second appellants to him

and that as he talked with them they invited him to Msasani Village Villa. According to his police statement, however, it is Eliakim who had invited him to Msasani Village Villa. In our view, this discrepancy can be resolved. PW6 regarded Eliakim and the two appellants as a group of people who were working together to secure the clearance and release of the container. So that if the invitation was extended to him by Eliakim it was easy to confuse it as an invitation extended to him by the appellants and vice versa, more so as the invitation was extended at a time when PW6 talked to Eliakim and the two appellants with hardly any time interval in between. In any case the contradiction or discrepancy did not go to the root of the matter. It does not affect the fact that the invitation was extended. It is merely concerned with the question who actually extended the invitation. But this is immaterial because since both Eliakim and the appellants were working together for a common purpose, and were staying together at Msasani Village Villa, it does not really matter, in our view, whether it was in fact extended by Eliakim or by the two appellants.

For our part, and as already stated, PW6 was a truthful and reliable witness. The learned Principal Judge was perfectly entitled to accept and act on his evidence as he did. As demonstrated above, that evidence implicated the first and second appellants. Their defences consisting, as they did, of a mere denial of the charge, cannot have cast any reasonable doubt as to their guilt. We are satisfied that the conviction on that count was well founded and there is no reason to interfere.

For the first and second appellants, therefore, we have considered and upheld their convictions on counts 1, 2 and 4. In the course of doing so we have also addressed the main points raised in the Memorandum of Appeal, namely, the contradictions in the prosecution evidence, improper identification of the appellants at the identification parade, the insufficiency of evidence to establish *actus reus* and *mens rea* and non-appraisal of the appellants' defences.

Turning now to the third count, the third appellant alone was convicted on it for leading organized crime contrary to paragraph 4(1)(c) of

the First Schedule to, and section 59(2) of the Economic and Organized Crime Control Act. Paragraph 4(1)(c) of says:

> 4(1) A person is guilty of the offence of leading organized crime who:
>
> (a) ...
>
> (b) ...
>
> (c) Knowingly furnishes advice, assistance or discretion in the conduct, financing, execution or management of the business or affair of a criminal racket with intent either to reap profit or other benefit from such act or to promote or further the criminal objectives of the criminal racket.

The particulars of the charge as laid alleged that:

> Fitah Ndekiro Ulomi during the month of October, 1991 within the city of Dar es Salaam knowingly assisted Mehboob Akber Haji and Norman Fransisco Toscano in the execution of a criminal racket, to wit, dealing in 5.3 tons of *cannabis sativa* resin *with intent to benefit from such act* [emphasis supplied].

Upon reading the particulars of the offence charged against the provision of the law creating that offence, it becomes apparent that in order to sustain conviction on that count, the prosecution must prove, as an essential ingredient, intent on the part of the prisoner to benefit from his act of assisting in the execution of the criminal racket. Such benefit, it seems, may be in the form of money or payment in kind, but must be something which the prisoner intended to get or receive in return for the assistance he offered. Indeed it would seem that, having regard to the particulars of the charge as laid, if the prisoner gratuitously assists in the execution of a criminal racket, that does not amount to an offence.

The question then is: What evidence was there to support the conviction on this count? There was the evidence of PW6 that at the material time Eliakim and the appellant went to his office where Eliakim said, and the appellant confirmed that both Eliakim and the appellant had once worked together at Singida; Eliakim added that

on this occasion he had asked the appellant to accompany him to his (PW6's) office. PW6 further testified that on the following day the two returned to his office and told him that the money was ready.

The other evidence tending to implicate the appellant was that of Amani Zinyangwa. That evidence was only taken into account by the learned trial judge because it was given at a previous trial of this very case but when the case was retried leading to the conviction now under review in this appeal the witness could not be traced. At the hearing of this appeal strenuous arguments were advanced by counsel for both sides on the admissibility of that evidence at the trial and the reliance to be placed on it. However, in the light of the decision which we have arrived at in this appeal, it is now not necessary to go into those questions. The substance of Amani's evidence, for what it was worth, was that the appellant assisted Eliakim to deliver the bribe money to PW6. This, together with the evidence of PW6 already referred to, was the only evidence implicating the appellant with the offence charged on this count. Such evidence might well have been sufficient to prove that the third appellant assisted Eliakim in the execution of a criminal racket. But did it go to show the intent or motive behind the giving of such assistance by the appellant. From the totality of the evidence it cannot be said with any degree of certainty that the appellant thus assisted in the matter with the intent of benefiting from his act. The motive or intent behind his act is a matter for conjecture. It could have been on intent, merely to assist Eliakim, a friend and a former colleague; that could not, in our view, constitute intent to benefit from his act which was an essential ingredient of the offence as alleged in the particulars. Thus we find that one of the essential ingredients of the offence charged was not proved, with the result that the conviction on that count was not justified. That conviction is, accordingly, quashed and the sentence imposed on it is set aside.

While we are still in the third count we find it appropriate to comment briefly on the way the charge on that count was laid, and we do so for future guidance to those responsible for drafting criminal

charges before the courts. In terms of paragraph 4(1)(*c*) of the First Schedule to the Economic and Organized Crime Control Act reproduced above and under which the third appellant was charged, a person will be guilty if he assists in the execution of a criminal racket with either of the two intents:

(a) to reap profit or other benefit from such act, or

(b) to promote or further the criminal objectives of the criminal racket.

The charge against the third appellant in this case was laid with reference to (a) only. The result is that if the charge does not stick, as indeed was the case here, that is the end of the matter. One cannot then proceed on the basis of (b) as the alternative, even if the evidence warrants it, for the simple reason that the prisoner was not given notice of that alternative at the trial so that he could defend himself on it accordingly. The better practice is that where it is provided that an offence is capable of being committed in alternative ways, the charge may properly be laid by setting out in the particulars the alternatives spelt out by the provision, then evidence may be adduced to prove the charge on the basis of any of those alternatives. Had that been done in the present case, the evidence on record could well have proved the charge on the basis of the alternative (b), namely, intent to promote or further the criminal objectives of the criminal racket.

We now proceed to consider the issue of sentence. This is raised in ground 6 of the Memorandum of Appeal, and it will now apply to the first and second appellants only since the third appellant has had his only conviction on the third count set aside. As stated before the first and second appellants were each sentenced to 8 years' imprisonment on counts 1, 2 and 4, the sentences to run concurrently. Professor Shaidi complained that such sentence was excessive bearing in mind that the appellants had spent a long time in detention since their arrest in 1991 until they were sentenced in 1997.

The learned Principal Judge in passing that sentence took into account such period spent by the appellants in detention. But he

took the view that drug trafficking posed a serious problem to the nation and the world at large, a situation which must be dealt with sternly. Appraising himself of the maximum penalty for the offence under our law as being 15 years' imprisonment, he accordingly imposed the prison term of 8 years.

It is now apparent, however, that the learned Principal Judge sentenced the appellants under an outdated legislation. For, under the Dangerous Drugs Ordinance, as amended by Act Number 13 of 1988 each of the convictions entered against each appellant attracted a minimum of 7 years' imprisonment and a maximum of 20 years' imprisonment, or a fine equal to the value of the drugs in question (which according to the charge sheet is TZS. 8 533 000 000 in this case) but in every case it shall not be less than TZS. 10 million. When Professor Shaidi's attention was drawn to this amendment, he still maintained that the sentence as imposed was excessive. For our part we, like the learned Principal Judge, think that drug trafficking poses a grave problem both nationally and globally. It must be strongly discouraged by taking stern measures against those who are proved to engage in it, and in such alarming quantities as in this case involving 5.3 tons of *cannabis sativa* resin. In this respect we have asked ourselves whether had the sentencing judge appraised himself of the correct law as amended he would have imposed the same sentence as he did. We think he would not because there is considerable difference between a maximum of 15 years' imprisonment and that of 20 years' imprisonment. The sentence ought to reflect that difference. In the circumstances we think that a sentence of 10 years' imprisonment will meet the justice of the case. Accordingly the sentence meted out to the first and second appellants on the first, second and fourth counts are each enhanced to 10 years' imprisonment, to run concurrently.

In the result the appeal of the first and second appellants against their convictions is dismissed, and the sentences are enhanced as stated above. The appeal by the third appellant Fita Ndekiro Ulomi is allowed. As already stated, his conviction is quashed and the sentence set aside.

SAMWELI MOYO *v.* MARY CASSIAN KAYOMBO

HIGH COURT OF TANZANIA
AT MBEYA
(Moshi, J.)

(PC) CIVIL APPEAL No. 21 OF 1996

(From the decision of the District Court of Mbeya at Mbeya in Civil Appeal No.124 of 1995, S.M. Rumanyika – Resident Magistrate)

Family Law – Matrimonial assets – Division of matrimonial assets upon divorce or separation – Power of the court to order division – Conditions upon which the court may order division – Section 114(1) of the Law of Marriage Act 1971.

Family Law – Maintenance – Order of maintenance for divorced wife – Order of divorce granted without a request for it and without ascertaining husband's means and ability to pay – Whether the order was properly given – Section 115 of the Law of Marriage Act 1971.

The parties to this appeal were granted divorce by the Primary Court which nevertheless declined to order division of matrimonial assets as it found that the assets were not matrimonial property. The District Court, on appeal by the respondent, ordered division of the assets and also ordered maintenance to be paid to the respondent. Upon further appeal to the High Court:

Held: (i) Under section 114(1) of the Law of Marriage Act 1971 the court may order division of assets only if the assets are matrimonial assets acquired by the parties during the marriage and through their joint efforts;

(ii) As the assets in this case were acquired neither during the marriage nor through the joint efforts of the parties, the District Court erred in ordering division of those assets;

(iii) As the order for maintenance was never asked for, and no enquiry was made into the means of the appellant about his ability to pay, and the divorce did not have the undesirable effect of pushing the respondent into any particular hardship, the order for maintenance was improperly given by the District Court.

Appeal allowed

Case referred to:

(1) *A.M. Kimweri v. Yusufu Athumani*, [1970] HCD n.119

Statutory provision referred to:

(1) Law of Marriage Act 1971, sections 114(1), 115

JUDGMENT

(Dated 3 July 1998)

MOSHI, J.: This appeal arises from orders for division of matrimonial assets and maintenance made by the District Court of Mbeya. The assets in question were two houses at Nzovwe Area within the Municipality of Mbeya, and two pieces of land (plots), one at Nzovwe and the other at Inyala Area.

The parties contracted a Christian marriage on 1 November 1983. Two issues came out of the marriage. On 11 July 1995 the respondent, Mary Cassian Kayombo, petitioned for divorce before the Urban Primary Court of Mbeya which was granted on 19 October 1995. The Primary Court was satisfied, upon the evidence before it, that the named properties were not matrimonial assets acquired by their joint efforts during the marriage within the meaning of section 114(1) of the Law of Marriage Act 1971, hereinafter called the Act. It was amply established in evidence that the properties were acquired through the efforts of the appellant alone before the marriage was contracted. So the Primary Court did not, and rightly so, make an order for the division of matrimonial assets. Also no order for the maintenance of the children was made as the children were staying with the appellant. And no order for the maintenance of the respondent was made in the obtaining circumstances. The respondent was then a personal secretary at the RDD's Office. She is now employed in a private company. The absence of an order for division of matrimonial assets

aggrieved the respondent who, in consequence, preferred an appeal to the District Court of Mbeya.

The District Court (S.M. Rumanyika, RM) upheld the very sound finding of the Primary Court that the relevant properties were not matrimonial assets acquired by the joint efforts of the parties during the marriage. The learned magistrate, like the Primary Court, was satisfied that the properties were personal to the appellant which he had acquired before the marriage. However, for reasons based upon lack of proper understanding of the relevant provisions of the Act, the learned magistrate went ahead and ordered the division of those properties between the parties. The two plots or pieces of land, one at Nzovwe and the other at Inyala, were given to the respondent. An order for the maintenance of the respondent by the appellant at the rate of TZS. 50 000 per month until she remarried or died effective 29 January 1996 was also made. The appellant, quite expectedly, felt aggrieved; hence this appeal in which both parties entered appearances before me and argued their respective sides of the matter themselves.

Three grounds of appeal were preferred by the appellant. They were:

1. That both Lower Courts had no jurisdiction to entertain the matter in that there had never been any reference of the matrimonial difficulty to a Marriage Conciliatory Board.
2. That the learned Appellate magistrate, having found as a fact that the marriage between the appellant and the respondent was contracted in 1983, erred in law in ordering division of property that was individually acquired in 1982 by the appellant alone.
3. That the learned Appellate Magistrate erred in law in ordering maintenance allowance to be paid by the appellant to the respondent in a case where the latter is the cause of all problems in the matrimonial home.

It was conceded by both parties in the course of the hearing of this appeal that the matrimonial difficulty had been referred to a Marriage

Conciliatory Board in terms of section 101 of the Act. So the first ground of appeal becomes invalid. The second ground of appeal, however, has merit. The power of the court to divide matrimonial assets is derived from section 114(1) of the Act which reads:

> 114(1) The court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such assets and the division between the parties of the proceeds of sale

From the citation to, and the wording of, section 114(1) of the Act, it is apparent that the assets envisaged thereat must firstly, be matrimonial assets; secondly, they must have been acquired by them during the marriage; and thirdly, they must have been acquired by their joint efforts. These three conditions must exist before the court's power to divide matrimonial or family assets under section 114(1) is invoked. In this case, the second and third conditions were not established. The relevant assets were acquired before the marriage by the efforts of the appellant alone. Under section 114(3) of the Act, reference to assets acquired during a marriage includes assets owned before the marriage by one party which have been substantially improved during the marriage by the other party or by their joint efforts. This, however, was not established to have been the case here. I am satisfied that the District Court erred in law in its order for the division of the assets. That order was clearly perverse and it must be quashed.

I pass on to consider the third ground of appeal. In terms of section 115(1)(e) of the Act the court may order a man to pay maintenance to his wife or former wife when granting or subsequent to the granting of a Decree of divorce. This power is discretionally which must be exercised judicially and/or reasonably. The Act prohibits the exercise of this power unless for special reason. The provision to section 115 reads:

> Provided that where the marriage has been dissolved, the wife shall not, unless the court for special reason so directs, be entitled to maintenance for herself for any period following the date when the dissolution takes effect.

In this case, I am satisfied that the respondent was not entitled to the order for her maintenance. The District Court did not give any reason for the Order, let alone special reason for it. The respondent had not asked for her maintenance at the trial and before the District Court. This would account for the fact that the Primary Court, in its good sense, did not make such an order. It would appear that the order for maintenance was an undeserving gift from the District Court to the respondent. And more, the Order was made without first inquiring into the means of the appellant. It was arbitrarily made. It is the law that maintenance must be fixed in relation to husband's means: see *A.M. Kimweri v. Yusufu Athumani* (1). This omission to ascertain the means of the appellant, that is to say, how much he could afford to pay, before determining a figure, was fatal to the award for maintenance. And lastly, that Order for maintenance was, in the circumstances, completely unnecessary. She had not been a full time domestic wife. She had not sacrificed her own career on the alter of matrimonial life. She remained employed and self-earning during the marriage and after divorce. The divorce, therefore, could not, and did not, in the circumstances, have had the undesirable and sad effect of practically thrusting her into destitution. I am satisfied that the District Court, likewise, erred in law in its order for the maintenance of the respondent. That order had not been the result of judicial and reasonable exercise of discretion. It must likewise, be quashed.

I accordingly allow the appeal, and hereby quash and set aside the District Court's orders for division of the relevant assets and for the maintenance of the respondent. No order is made as to the costs of this appeal.

NDIZU NGASA *v.* MASISA MAGASHA

HIGH COURT OF TANZANIA
AT TABORA
(Mchome, J.)

(PC) CRIMINAL APPEAL No. 140 OF 1997

(From the decision of the District Court of Shinyanga at Shinyanga, I.P.Kitusi, Resident Magistrate, in Criminal Appeal No. 71 of 1998)

Evidence – Assessment of evidence – Re-assessment of evidence by Appellate Court – Duty of first appellate court in making re-assessment.

The respondent was acquitted of a charge of causing actual bodily harm to the appellant. On appeal to the District Court, the acquittal was upheld on the ground that the Appellate court could not fault the court of first instance because the assessment of evidence was based on credibility of the witnesses. On second appeal to the High Court.

Held: (i) The first appellate court has a duty to re-assess the evidence of the trial court;

(ii) Had both the Lower Courts properly directed themselves on the evidence of the appellant, of PW2 the ten-cell leader, and on the PF.3 report, these would have sufficed to arrive at a conviction.

Appeal allowed

Case referred to:

(1) *R. v. Muhuzi Zaidi and another* [1969] HCD n. 249

JUDGMENT

(Delivered 24 July 1998)

MCHOME, J.: In Mwadui Primary Court of Shinyanga District, the appellant, Ndizu Ngasa, filed criminal charges of assault causing actual bodily harm contrary to section 241 of the Penal Code, against the respondent, Masisa Magasha. The trial court found the respondent not guilty and acquitted him. The aggrieved appellant appeal to the District Court unsuccessfully. This now is his second appeal.

In dismissing the first appeal, the learned Appellate Resident Magistrate held, *inter alia*:

> Since the learned trial court's decision seems to have been based on credibility or lack of it on the part of appellant I can not fault him, I being unable to reassess the parties credibility.

With all due respect to the learned first Appellate Resident Magistrate, the first Appellate Court has the duty to reassess the evidence of trial court. In *Republic v. Mahuzi Zaidi and another* (1) Georges, C.J. (as he then was) held:

> As in all appeals it is the duty of the court to weigh the evidence and draw its own conclusions, though it should always bear in mind that it has neither seen nor heard the witnesses and should make due allowance in that respect ... it must be borne in mind, however, that the appellate court in exercising its jurisdiction to review evidence and determine whether the conclusions of the trial judge should stand, should do so with caution. Where it is clear that the trial judge has plainly gone wrong and had failed to appreciate the weight or bearing of circumstances admitted or proved the Appellate Court should not hesitate to interfere.

The appellant told the trial court that on 22 September 1997, he saw the respondent grazing his cattle in the appellant's field. When he asked him to remove his animals from there, the respondent got angry and hit him with a stick once on the waist. The appellant went home to report to his relatives, and later reported to the police. The latter gave the appellant a PF.3 and later preferred this charge against the respondent. The appellant called his ten-cell-leader who told the trial court that he witnessed the respondent assaulting the appellant. Apparently that witness, called Zaire, took no steps against the respondent. The PF.3 report states that the appellant had: (1) Internal soft tissue injuries (2) Mild oedema (3) Bleeding nose." And that the size of wound is not measurable, but that it is on the lower back.

The respondent denied to have assaulted the appellant. He says the field he was grazing in was his grandson's and not the complainant's.

In rejecting the appellant's evidence the trial magistrate stated:

> *... Swali la kujiuliza ni kweli SM.1 alishambuliwa na mashtakiwa siku hiyo, na alimshambulia kwa sababu tu ya kutakiwa awaondowe wale ng'ombe....toka mle hazina ... Ushahidi wa mtu anayedai kushuhudia hili tukio unaiacha mahakama hii ikiwa na maswali mengi ya kujiuliza.*
>
> *(1) Kwa nini shahidi asishtuke na kitendo cha SU.1 cha kuchangia pale na amuulize SU.1?*
>
> *(2) Vipi shahidi asitoe msaada wowote au kutoa suluhu kitu ambacho mahakama hii inaamini ingeweza kuzuia SM1 na SU 1 wasichukue hatua ya kugombana?*
>
> *(3) Kama kweli Zaire (SM.2) alikuwepo wakati wa tukio... vipi mlalamikaji asijali hata kumlalamikia tu badala yake akimbilie nyumbani...*

And earlier on in his judgment the trial magistrate stated:

> *... shahidi anaeleza kuwa ni kweli mlalamikaji alishambuliwa na mshtakiwa lakini hakuweza kueleza kama kweli mshtakiwa angeweza kuchukizwa na kule tu kutakuwa na mlalamikaji kuwatoa ng'ombe wake kwenye hazina... shahidi pamoja na kumuona mlalamikaji akishambuliwa na mshtakiwa lakini hakuna ni sehemu gani alipopigwa hakuna jeraha au uvimbe uliotoka na kupigwa fimbo haikutolewa mbele ya Mahakama ...*

In brief, the argument of the trial magistrate for discrediting the appellant's evidence is that the appellant did not report to PW2 his ten-cell-leader who allegedly was at the scene but instead ran home and reported to the police later, that PW2. was present but took no steps to separate or reconcile the two, that PW2 did not state what part of the appellant's body was struck and there was no wound or swelling. This line of argument was concurred with by the first Appellate Court and the appeal was dismissed. But that argument is flawed. Had the first appellate court properly directed itself, it would have found that the trial magistrate had clearly faulted in his evaluation

of the evidence. The first Appellate Court had good cause for interference with the trial Court's judgment.

First as to the place where the appellant was hit he says he was hit once. PW2 said he saw the respondent hitting the appellant on the "matakoni" (buttocks). So the trial magistrate quoted PW2 out of context when he said he did not state the part of the appellant's body that was hit with the stick. The non-production of the stick too is not the appellant's fault as the stick was the respondent's and the appellant was not its custodian.

The trial Court also argues that there was no wound or swelling. Hitting by a stick does not necessarily inflict a wound or a swelling. Bodily harm does not necessarily have to amount to a swell or a puncture of the skin. The PF.3 report which I have quoted earlier shows that the appellant had "internal tissue injuries" on the lower back. This corroborates the testimonies of PW2 and the appellant that he was hit at the waist or buttocks.

With the injuries stated in the PF3, both Lower Courts ought to have considered why the appellant should have decided to let the one who inflicted those injuries on him go scot free and instead frame up the respondent.

The other flawed argument is that by just being told to remove his cattle the respondent would not have become so angry as to beat the appellant. But if the respondent was grazing in what he believed was a field he had the right to graze in, surely being asked to remove his cattle angered him. Reacting by hitting the appellant with a stick once is not unnatural at all. Only that it is unlawful as it amounts to taking the law in one's own hands.

The fact that PW2 took no steps when he witnessed the assault hardly makes any difference. He is no policeman. Some people are cowards. They do not want to interfere with other peoples' quarrels. One of the quarelling parties may turn against him. Some people have been killed while trying to separate fighting people. This fear

applies to anyone whether he be a ten-cell-leader. So the non-intervention by PW2 does not prove him a liar.

It is also argued that the appellant should have complained to PW2 instead of going home and then reporting to the police. There was no need to report to PW2, as the latter was present when PW1 was beaten. It was natural for the appellant to go home and report to his relatives and then to the police after seeing PW2 taking no steps despite the assault being committed in his presence. So had both Lower Courts properly directed themselves on the evidence of the appellant, PW2, the ten-cell-leader, and the PF.3 report these would have sufficed to arrive at a conviction. As I pointed out earlier, the fact that the respondent had a claim of right, apparently better than the appellant's over the grazing field does not justify him to assault the appellant.

For these reasons I allow this appeal and quash both Lower Courts judgments and set aside the respondents acquittal. Instead I find him guilty of assault causing actual bodily harm as charged. I sentence him to TZS. 5 000 fine or six months jail in default. The respondent to pay the appellant TZS. 5 000 as compensation.

AUGUSTINO LYATONGA MREMA *v.* SPEAKER OF THE NATIONAL ASSEMBLY AND THE ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Katiti, J.)

MISCELLANEOUS CIVIL APPLICATION No. 36 OF 1998

Constitutional Law – Separation of Powers – Court action to enquire into a decision taken by the National Assembly in the course and as part of parliamentary proceedings – Whether the action contravenes the doctrine of separation of powers.

Parliament – Powers, privileges and immunities of Parliament – Whether Court may question an action taken by the National Assembly – Article 100(1) of the Constitution and section 12 of the Parliamentary Immunities, Powers and Privileges and Immunities Act 1988.

High Court – Jurisdiction of the High Court – Jurisdiction of the High Court to enforce basic rights guaranteed under the Constitution – Whether High Court sitting with a single judge has jurisdiction to hear and determine any matter relating to the enforcement of basic rights guaranteed under the Constitution – Section 10 of the Basic Rights and Duties (Enforcement) Act 1994.

The applicant, a Member of Parliament, was attending and participating in the deliberations of the budget session of the National Assembly when, on 24 June 1998, the assembly passed a resolution suspending him from further attendance at and participation in the budget session going on. He filed a petition in the High Court challenging the competence of the assembly, led by the Speaker, to suspend him from Parliament. The petition averred, *inter alia*, that the suspension contravened rules 50(2), 43 and 45 of the Parliamentary Proceedings Rules 1988 and, therefore, also contravened articles 13(1), 13(6)(b), 21(1) and 26 of the Constitution that guarantee equality before the law, freedom of association, the right to participate in public affairs, the duty to guard and obey the Constitution and the right to institute proceedings to safeguard the law and the Constitution. While the petition was pending, he filed this application seeking an order to stay the implementation of the resolution to suspend him from Parliament pending hearing and determination of the petition. A preliminary objection was raised against the application advancing the grounds that under article 100(1) of the Constitution, the High Court had no jurisdiction to question parliamentary proceedings, and that a single judge of the Court could not determine any matter under the Basic Rights and Duties (Enforcement) Act 1994, save for what is provided for under section 10 of the said Act.

Held: (i) Unlike the British Constitution which is not written, our Constitution is written and stresses on human rights; it is therefore a right and a duty of our judges to have regard to the broad objective of any statutory obligation and also to have regard

to the Constitution we operate under in order to uphold the fundamental right of any party aggrieved if transgressed by any organ of the state, even Parliament;

(ii) Separation of powers is represented by an arrangement wherein the pillars of the state operate in a world of countervailing powers of Parliament, the Courts, and the Executive, and one of its facets is the rule of law which should find its fullest expression in the constitutional role of the Courts in upholding the rights of individuals against misuse of power by the Executive, or even Parliament, or any other authority of the State;

(iii) Under the doctrine of separation of powers, judges are conferred with authority to decide disputes without bias and there is nothing to prevent a judge from hearing any aggrieved party or to prevent any aggrieved party from pursuing his or her rights against any authority, however high placed it may be;

(iv) Order 60 of the Parliamentary Standing Orders 1988 [or rule 60 of the Parliamentary Standing Rules 1988], made under article 89(1) of the Constitution, allows the suspension of a Member of Parliament on matters happening in the House;

(v) As Order 60 of the Parliamentary Standing Orders 1988 provides for suspension of a Member of Parliament as a punishment, the National Assembly had the power to suspend the applicant;

(vi) In compliance with Article 100(1) of the Constitution which precludes the courts from questioning any proceedings of the National Assembly, the applicant is entitled to hide from the court what led to his suspension by the assembly and as the suspension was a disciplinary action by and within the National Assembly, the jurisdiction of the court to question it is ousted by the provisions of the said article;

(vii) The suspension of the applicant was within the constitutional powers of Parliament, exercisable for the purposes of its business and, in obedience to Article 100 of the Constitution, this court has no jurisdiction to hear the application.

Application dismissed

Cases referred to:

(1) *Bradlaugh v. Gossett* (1884) 12 QBD 271

(2) *Duport Steels Ltd v. STRS* [1980] 1 W.L.R. 142 (HL)

(3) *Hill v. Chief Costable of South Yorkshire,* [1990] 1 W.L.R. 946 at page 952

(4) *Re: Kerala Education Bill,* A 1958 S.C. 956

(5) *Abuki and another v. Attorney General,* Uganda Constitutional Court

(6) *Nawaz Sharif v. President of Pakistan,* P.L.D. 993 S.C. 474

(7) *Patricia De Lille and Pan Africanist Congress of Azania v. Speaker of the National Assembly,* High Court of South Africa, 8 May 1998

(8) *R. v. Her Majesty's Treasury, ex parte Smedley,* [1985] QB 657 (CA)

(9) *Ras Marain Singh v. Atamaram Govind,* AIR 1954 All. 319

(10) *MSM Sharma v. Dr. Shree Krishna Sinha and others,* AIR 1960, 1187

(11) *Janardan Reddy v. State of Hyderabad,* 1951 SCR 344; AIR 1951 SC 217

Statutory provisions referred to:

(1) Constitution, article 13(b), 21(1), 26 and 100(1)

(2) Basic Rights and Duties (Enforcement) Act 1994, section 10

(3) Parliamentary Proceedings Rules 1988, rules 50(2), 43 and 45

(4) Basic Rights and Duties (Enforcement) Act 1994, section 10

(5) Parliamentary Privileges Act Number 3 of 1988, section 12

(6) Parliamentary Immunities, Powers and Privileges Act, 1988, sections 3 and 12

Mr Mnyele, for the Applicant

Mr Salula, for the Respondents

RULING

(Delivered 27 July 1998)

KATITI, J.: Before this court is an application by the Hon. Augustino Lyatonga Mrema M.P., henceforth to be called "the applicant," against the Speaker of the National Assembly and the Attorney General, as first and second respondents respectively, seeking this court to issue a stay order against the full implementation of the Parliamentary resolution suspending him from further attending the on-going Parliamentary Budgetary Session. In the prosecution of this application, the said applicant is being represented by a Dar es Salaam based Advocate, Mr Mnyele and the learned Senior State Attorney, Mr Salula, represents the respondents.

The antecedents to this application are as follows. The applicant is, as above stated, a Member of Parliament representing Temeke Constituency, and was at the material time representing his said constitutency in Parliamentary Sessions going on in Dodoma. The facts show that as the Parliamentary deliberations were going on, 24 June 1998 the National Assembly passed a resolution suspending the Applicant from further attending the on-going budget session. Here, as fate would have it, we have Augustino Lyatonga Mrema, the applicant, seeking what he considers his rights, and for the first time challenging the extent of parliamentary competence under the leadership of the Speaker, and hence the petition filed, and this application pending the determination of the substantive petition.

The petition that has given birth to this application avers, among other things, the transgression of rules 50(2), 43, 45, of the Parliamentary Proceedings Rules of 1998, and consequently therefore articles 13(*b*), 21(1) and 26 of the Constitution, that guarantee equality before the law, freedom of association, participation in Public Affairs, contrary to the duty to guard and obey the Constitution. The applicant's application did provoke a Notice of Preliminary objection, to wit:

1. That under article 100(1) of the Constitution of the United Republic, the court has no jurisdiction to question the Parliamentary Proceedings.

2. That as a single Judge, he cannot determine any matter under the Basic Rights and Duties Enforcement Act 1994, save for what is provided under section 10 of the said Act.

For the prosecution of their respective areas the learned Counsel took their respective positions, as expected, to fight their respective battles. Mr Salula, in support of his preliminary objection, submitted basically on three areas, namely: 1- that this court has no jurisdiction to entertain a matter that pertains to what has happened within the four walls of the National Assembly as to do so would be contravening article 100(1) of the Constitution of the United Republic, and section 12 of the Parliamentary Privileges Act Number 3 of 1988, citing the case of *Bradlaugh v. Gossett* (1). -2- That the court would be messing up with the doctrine of separation of powers, and -3- that as a single Judge, this court lacks jurisdiction to hear the petition and, *ipso facto*, lacked jurisdiction to entertain this application. On the other hand learned Counsel Mr Mnyele, submitted that they had no quarrel with the cited constitutional provisions but his contention was that the said constitutional provisions were inapplicable. He maintained that whatever the Parliament or anybody does, must be within the permitting parameters of, and subject to, the Constitution and that the Parliament in suspending the applicant had infringed the applicants basic rights, and therefore contravened the Constitution, and that what the Speaker and his House committed was not an irregularity in procedure but a transgression of basic rights, a matter of substance and of constitutional transgression, as suspending a member of the house was not allowed. He submitted that in such circumstances the court has jurisdiction to make such order, or orders or directions, as may be appropriate for enforcing or securing the enforcement of basic rights of participating and representing his Constituency.

It is logical and meet, and expected, that I dispose off a preliminary objection by the learned State Attorney, Mr Salula. As we have to sail herefrom, and have therefore to adjust our rudder with our destination

in mind, we must have our route plan. Therefore in my view the issues to guide me are as follows: -1- whether the court in inquiring into the suspension of the applicant, as seeks the applicant, is a breach of the doctrine of separation of powers; -2-whether the National Assembly has the power to suspend a Member of Parliament; -3- whether in this case the suspension contravened Parliamentary Proceedings Rules and the Constitution; and -4- whether this court has jurisdiction to inquire into such suspension.

I would start with the objection that this court's entertainment of this application would amount to gross transgression of the doctrine of separation of powers, in that the judiciary would be encroaching upon Parliament's exclusive jurisdictional territory. The doctrine of separation of powers is based on the proposition that functions of state should be placed in different organs, so as to act as restraint on each other to avoid tyranny, without assistance from other Jurisdictions. In the case of *Duport Steels Ltd v. STRS* (2) the learned Judge Lord Dipplock had this to say:

> My Lords, at a time when more and more cases involve the application of legislation which gives effect to policies that are the subject of bitter public and Parliamentary controversy, it cannot be too strongly emphasised that the British Constitution, though largely unwritten, is firmly based upon the separation of powers; Parliament makes the law; the Judiciary interprets them. When Parliament legislates, to remedy what the majority of its members at the time perceive to be a defect, or a lacuna in the existing law (whether it be written law, enacted by existing state, or the unwritten common law, as it has been expounded by the judges in decided cases) the role of the Judiciary is confined to ascertain from the words that Parliament has approved as expressing its intention, what that intention was, and to give effect to it. Where the meaning of the statutory words is plain and unambiguous, it is not for the judges to invent fancied ambiguities, as an excuse for failing to give effect to its plain meaning because they themselves consider that the consequences of doing so would be inexpedient, or even unjust or immoral.

Lord Scarman, in the same case had this to say, and I quote:

> Within these limits, which cannot be said in a free society possessing elective legislative institutions to be narrow or constrained, judges, as the remarkable judicial career of Lord Denning himself shows, have a genuine creative role. Great judges are in their different ways Judicial activists. But the Constitution's separation of powers or, more accurately, functions must be observed if judicial independence is not to be put at risk. For if people and Parliament come to think that the judicial power is to be confined by nothing other than the judges sense of what is right (or as Seldon put it, by the length of the Chancellors foot), confidence in the judicial system will be replaced by fear of it, becoming uncertain and arbitrary in its application. Society will then be ready for Parliament to cut the power of the judges. Their power to do Justice will become more restricted by law than it need be or is to day.

J.R Lucas, commenting on the above case (The Times, 17 September 1980), *inter alia* observed:

> The judges should not take it on themselves to decide the law independently of Parliament but only to interprete Parliament's enactments as sensibly as they can. It is not the Judge's task to say what Parliament should have enacted but only to say, given that Parliament has enacted a general law, what its decision would have been in an individual case if it had been appraised of all the particular circumstances of the case.

The above is a proponent of the pure separatist view of the doctrine of separation of powers typical of the English sense of Constitution, which is unwritten and therefore without entrenchment of human rights which would have diluted their Parliamentary omnipotence, a serious hangover from Dicey, a committed preacher of Parliamentary Sovereignty, - see his **The Law of the Constitution** 39-40, and for which Allan in his book, **Law, Liberty and Justice**, laments that "the scope of restriction on Parliament's legislative competence is admittedly difficult and largely untested, our Jurisprudence has been impoverished by lawyer's uncritical adherence to the dogma of Parliamentary omnipotence." And from a very unlikely quarter to

vindicate Allan is a timorous statement from no less a distinguished judge than Lord Denning who, in what he thought would protect judicial independence and public confidence in the courts, said:

> One has to see in the great Constitutions of the United States of America and of India, the conflicts which arise from time to time between the judges and the Legislature. I hope we shall not have such conflicts in this Country. The independence of our Judges and their reputation for impartiality depend on their obeying the will of Parliament and on their being independent. The independence of the judges is the other pillar of our Constitution. – 369 HL Deb.25 March 1976 Cols 797 – 8 opposing a Bill of Rights.

All the same, the English common law and the courts have not lacked the armoury and ammunition in the name of the doctrine of *ultravires* for defending rights and liberties of individuals by strictly construing against statutes interfering with such liberty – see the case of *Hill v. Chief Constable of South Yorkshire* (3) at page 952.

My confident reaction would seem to be that the English approach is Parliamentary supremacist and I shall not seek assistance therefrom in the restructuring of our jurisprudence in this area. However while indeed judges should shy away from substitution of their views of the public interest or justice in the clear expression of Parliament's will, we should not be apologetic and timorous of notice, that unlike the British Constitution which is unwritten, our Constitution is written, with stress on human rights and which must be given a proper dynamic. In my view it is in that light a right and a duty that our judges here have regard to the broad objective of any statutory obligation and also, more importantly, have regard to the Constitution we are operating under to uphold the fundamental rights of any party aggrieved, if transgressed by any organ of State, even Parliament. In my view, should be that the doctrine of separation of powers, is more than a number of three branches of Government, it has to presuppose that the authority conferred upon the judge is to decide disputes and legal principles also subject to substantiation of transgression of rights, the said doctrine of separation of powers with a facet of upholding the rule of law and fundamental rights means so deciding without

bias, I can see no hurdle for the judge to entertain any aggrieved party and such aggrieved party to pursue his or her rights, however high the authority involved is, under the cover if the doctrine.

I think this is not opportune time to lecture anybody on the doctrine of separation of powers, if it suffices for us to now know that the values once strictly associated with the doctrine of the formal separation of Legislative, Executive and Judicial powers in a compartmentalized manner is no longer; it equally suffices to know that separation of powers may now be represented by the pluralist arrangement of a modern state, in which the powerful pillars of central government operate in a world of countervailing powers exercised by Parliament, courts, and the Executive, and even others, and if we know that the whole idea of separation of powers, one of the facets being the rule of law, should find its fullest expression in the constitutional role of the courts in upholding the rights of the individual against the misuse of power by the executive, or even Parliament, or any authority of the State. I would extend this to mean that this judicial function is carried out in reviewing the exercise of power by the Executive or public authorities, at the instance of individuals whose interests are affected, and to this extent I should be understood to mean that, *ipso facto*, separation of powers supports the rule of law, that all power, however plenary in form, "is given for a purpose, and that if it is exercised for any other purpose it is abused," and that for abuse, wherever it has occurred, the court should not send back the party claiming to have been aggrieved without hearing him. And subject to other factors being equal, the applicant should otherwise feel at home. Mr Salula's objection, on this score, fails.

The second area of contention is whether or not the National Assembly has power to suspend a Member of Parliament. While the learned Senior State Attorney maintained that what goes on in Parliament falls outside the jurisdiction of the court, the counsel for the applicant submitted that Parliament had exceeded its powers by suspending the applicant, thereby contravening the Parliamentary Proceedings and the Constitution. He submitted that the House had no power of

suspension, and that in suspending the applicant it arrogated to itself the power it did not have, hence injury to the applicant's fundamental rights. Bound by the pleadings, as I am, if the counsel is saying that the Parliament has no power to suspend a Member of Parliament, he obviously could not canvass against the extent thereof, and hence render in opportunity for the other party to offer a challenge which would, in my view, have been fascinating. I shall, with respect, find no difficulty in answering this issue as it is very clear for both blind and naked eye to see. It is rule 60 of the Standing Rules 1988 that, among other punishments, provides for suspension for different periods depending on the gravity of the offence. As I said above, as the extent thereof was not pleaded and contested, I would rather not extend my fishing gear into uninviting waters.

Are such powers of suspension and therefore the Standing Rules so unconstitutional as, may I pose, to contravene human rights? It is my view that an act or rule, so long as the possibility of its being applied to purposes not sanctioned by the Constitution cannot be ruled out, must be held wholly-unconstitutional and void. Our Constitution confers upon this court power of judicial review, it has been assigned the role of a sentinel on the quivive's on human rights issues, and it cannot abdicate from that duty: see Article 30(3) of the Constitution, and the Basic Rights and Duties Enforcement Act 1994. But I would be fast to add that this power of review, while exercisable in many areas like: (1) contravention of mandatory provisions of the Constitution, imposing limitations on the Legislature, (2) state operating beyond statutory state boundaries, (3) legislating on subject not assigned to the Legislature. Important for our purposes here, is the alleged contravention of fundamental rights in this case. I have, in that direction, cultivated myself to think that in determining the constitutionality of a provision or conduct alleged to be violative of a fundamental right, the court must weigh the substance, the real effect, and the impact thereof on the fundamental right alleged, see *Re: Kerala Education Bill* (4) at page 981 and *Abuki and another v. Attorney General* (5) by the Ugandan Constitutional court.

While on this area, I find it fascinating to pose a question as to what extra fundamental or human rights the applicant gained by being a Member of the National Assembly, rights for the violation of which he is now seeking remedy. I hold a confident view that the test in adjudging the constitutional validity or otherwise of an action of state or authority, on the cornerstone of fundamental rights, is what the object of the authority in taking the action is; what the subject matter of the action is, and to which fundamental rights it relates. With respect, our Constitution in Part III articles 12-24, provides for human rights generally, but none in particular for the inside of the National Assembly when constitutionally on duty, the violation of which should ache the applicant. But we know, and should know, that human rights are the premedial rights necessary for the development and expression of human beings. And the rights are fundamental because they enable a man to chalk out of his own life in the manner he likes, of course subject to other factors. They are, in my view, natural rights but since there did not exist an ordered mode for the enjoyment of such rights in a pre-political order, men expected a guarantee of these rights in an ordered society. They are the rights the inviolability of which is the duty of all civil governments to ensure. As the Supreme Court of Pakistan has explained in the case of *Nawaz Sharif v. President of Pakistan* (6) [where it] pointed out:

> ... basic fundamental rights of individual which presently stand formally incorporated in the modern constitutional documents derive their lineage from, and are traceable to the ancient Law of Nature, which the passage of time, and the evolution of civil society, great changes occur in the political, social and economic conditions of society.

It would seem to me that these rights, being almost as old as man in origin, could not have been discovered and earned by the applicant in and from the National Assembly. It follows, in my view, that the applicant's basic human rights were not as such violated in Parliament. While the applicant had his human rights intact and unviolated being in Parliament, and as a legitimate member thereof, he thereby *ipso facto* had to enjoy rights and privileges in Parliament, but also be

subject to the rules that pertain to the functioning of Parliament, under the jurisdiction of the Speaker and equally guaranteed by the Constitution. As a follow up, it seems to be uncontestable that the Act and the Standing Orders 1988, under which the Speaker has vast powers, were promulgated through the legislative competence of Parliament and particularly the Standing Orders promulgated under Article 89(1) of the Constitution, "*kuweka utaratibu wa kutekeleza shughuli zake,*" meaning "to lay down the procedure for the proper functioning of the Parliament's business." The Standing Rules or Orders, Order 60 includes suspension of a Member of Parliament as a punishment, obviously for a cause: see Orders 58, 59 etc. And in my view, it is this constitutionally permitted procedure, freedom and privilege, including suspension as punishment under rule 60 in Parliament, that the Constitution says shall not be questioned by the Court of Law; it should follow that suspension was according to law and the Constitution.

Whether the court has jurisdiction to inquire into the said suspension emanates from the complainant's, charges that his rights as a Member are violated by the Speaker of the National Assembly. His counsel cited the South African case – High Court of South Africa, of *Patricia De Lille and The Pan Africanist Congress of Azania v. The Speaker of the National Assembly* (7) to vindicate the applicant's position, while the learned Senior State Attorney said or submitted that what took place within the four walls of Parliament was exclusively for Parliament, under the control of the Speaker, and that the court has no jurisdiction to inquire into the same under the ousting article 100(1) of the Constitution, citing the case of *Bradlaugh v. Gossett* (1), and other authorities. The question for determination is whether this court would otherwise have jurisdiction to entertain the suspension act that took place within the four walls of Parliament in the course of its business. And it is this issue of jurisdiction, having disposed off other aspects above, that brings us here. I have always imagined that the inventer of Constitutions was initially troubled with power and the distribution thereof, for while the authority of any ruler should

ultimately rest upon law, it must also have the power; but law does not extend beyond power, and law without power is, *Ihering's* phrase, "a lamp that does not burn". It is here that we have to decide where power and the law reside on matters in Parliament, bearing in mind that in this country we have the supremacy of the Constitution, the distributor of such powers, 'the heir of the past and testator of the future," and the creator of the Organs of State.

The cited article of the Constitution, as ousting the court's jurisdiction in the matter is 100(1) of the Constitution, section 3 and 12 of the Parliamentary Immunities, Powers and Privileges Act 1988, hence to be called the Act. The curiousity and anxiety, I suppose, is what do they provide and hereunder is what they loudly say:

> Ibara 100(1)
>
> Kutakuwa na uhuru wa mawazo, majadiliano na utaratibu katika Bunge na Uhuru huo hautavunjwa na chombo chochote katika Jamhuri ya Muungano, au katika mahakama au mahali pengine nje ya Bunge.

I have made a free translation thereof, as follows:

> Article 100(1)
>
> There shall be freedom of expression, speech, participation, and procedure in the Assembly and such freedom shall not be interfered with nor questioned by any authority in the United Republic or in court or anywhere outside the National Assembly.

And coming to the Act, section 3 has this to say:

> Section. 3:
>
> There shall be freedom of speech and debate in the Assembly, and such freedom of speech and debate shall not be liable to be questioned in any court or place outside the Assembly.

And for purpose of jurisdiction and procedure in relation to breaches of parliamentary privileges, section 12(1) and (2) of the Act, has this to say:

Section 12(1) It is hereby declared for the avoidance of doubt that subject to the Constitution and the Standing Orders of the Assembly, the Assembly has all the powers and jurisdiction as may be necessary for inquring into, judging, and pronouncing upon the commission of any act, matter or thing, not amounting to an offence under this Act, which is a breach of Parliamentary privileges.

(2) The Speaker shall have the power, subject to the Standing Orders of the Assembly, to determine whether or not, any act, matter or thing is one into which the Assembly may inquire, judge and pronounce upon.

So far for the authority above, and what is sought to be protected is what goes on in the National Assembly while on active duty. But let me pose a mischievous question: for the National Assembly to deserve immunity, what goes on in there? I am sure the MPs know better but we reasonably know that the National Assembly is the power-house for the legislation of law, see article 64 of the Constitution, and a moulder of policy of State under the guiding Parliamentary Standing Orders, 1988, promulgated under article 89(1) and (2) of the Constitution, under the Chairmanship of the Hon. Speaker who, in this case, is the impleaded party. And the Speaker thereof is impleaded because by virtue of Article 84 of the Constitution and section 12(2) of the Act, I view him to have such duties as follows: he is, first, the spokesperson and representative of the National Assembly; he is the custodian of the Powers and Privileges of the Assembly; he is the Chief functionary and Constitutional Head of the Assembly; he is required under section 12(2) of the Act to discharge duties of a judicial or interpretative character, with finality attached to the same; and he is the Chairman of the assembly and, in that capacity, he maintains order in its debates, decides such questions as may arise on points of order, puts the questions and declares the determination of the assembly. The speeches, participation and debates are immunized, being the base of the essence of the Parliamentary System of Government that MPs express themselves without fear of legal consequences, with the orders and rules of

Parliament being under the control of the Speaker of the Assembly. Objectively observed, this is no mean portfolio, though the said Speaker should not shelter thereunder where human rights are involved.

On reflection, it is at this relevant juncture that I recall the South African case – *Patricia's case* (7), a case against the South African Assembly Speaker, that Mr Mnyele, counsel for the applicant, brought to my attention as applicable here. I thank him for dutifully and professionally giving such assistance to the court. The summary of what happened in the case is as follows: Patricia De Lille was, and perhaps still is, a Member of the National Executive Council of the Pan Africanist Congress of Azania, the second applicant therein, and she was Chief Whip of the Party in the South African National Assembly. While in the National Assembly, she alleged that her party had information that twelve members of the ANC had been spying for the then Apartheid Regime, and called upon the Government to publish their names, as they had been betraying their cause. Courageously, she mentioned eight of them, thereby provoking accusations by the Speaker and other members of the house that she had been unparliamentary in her language. She was forced to withdraw the allegations, and this she did, and yet an *ad hoc* committee, appointed hurriedly, recommended her suspension and she was suspended by the house, and hence the application she filed. In the said application challenging her suspension by the house, and therefore the Speaker, she complained, among other things: (1) that the *ad hoc* Committee had more ANC Members, and hence conspicuously biased; (2) that the *ad hoc* Committee Chairman was mysteriously replaced; (3) that already there was a pre-judgment against her, showing bias; (4) that the sanctions against her were pre-judged and considered even before she was found guilty; (5) that the appointment of that *ad hoc* committee was done as a political weapon for political reprisal; (6) that she had even been excluded from attending the *ad hoc* committee meetings; and (7) that her suspension was executed even after she had withdrawn the allegations meaning that, technically, the National Assembly had no material on which to base the suspension. Exercise of any privilege by the

National Assembly, including the Speaker, within the four walls was rejected, the court maintaining that it had jurisdiction to inquire into the suspension of the MP by the National Assembly.

In the judgment, the learned judge in condemning the suspension as unconstitutional and, *inter alia,* observed and I quote:

> In my judgment it is important that our courts should borrow wisely from other jurisdictions; comparative research is generally valuable, and is all the more so when dealing with problems new to our jurisprudence but well established in other jurisdictions. Nevertheless we should be careful and borrow wisely because our **Constitution is the produce of South African** history and must be interpreted accordingly ... Thus any privilege inconsistent or incompatible with the Constitution is invalid. Surely, the extent of privilege is inextricably bound with the exercise thereof. In other words, the determination of the extent of privilege must surely relate to its exercise. The contrary view is untenable. Otherwise Parliament would have a blank cheque to set the limits of its own powers. The Constitution, particularly section 2 thereof, enjoins us to ensure that the obligations imposed by the Constitution, which is the supreme law, must be fulfilled.
>
> There are many cases where the courts, including ours, have not hesitated to interfere with the exercise of powers by Parliament in conflict with Constitutionally guaranteed rights. For example, in the land mark case of *Minister of the Interior v. Harris*, where Parliament in the 1950s attempted to convert itself into the "High Court of Parliament," the Appellate Division had no hesitation in striking down the relevant legislation as being unconstitutional, as it unlawfully interfered with a constitutional guaranteed right to vote of the Cape Coloureds.... In short, the *Smiths case* is certainly authority for the view that the court has power to interfere with the exercise of parliamentary privilege which conflicts with constitutionally guaranteed rights. A claim of Parliamentary privilege does not defeat an action for redress of an infringed-right.

I have had the advantage of thoroughly reading the South African case, the *Patricia De Lille* (7) Judgment, brought to my notice by counsel for the applicant, and for that I do express my appreciation.

I agree that even in our country the Constitution is supreme law. The above case is instructive and deserves a lot of respect; but shallowly treated, it would seem to be perfectly on fours with the case at hand. But with respect, while human rights are perhaps universal, their protection of treatment may differ from jurisdiction to jurisdiction, depending on the presentation of the case, constitutional history or development of the country, as the cases from England, India and South Africa demonstrate. In the South African case, first, it is very clear that chicanery, negative political bias, were from the word go, so deliberately manufactured and put on the Parliamentary Assembly plant line which, from the little I know in our case, is absent; second the facts in that case were exhaustively disclosed to the court by the applicant while in this case, as per applicant's affidavit, the facts are not only scanty by design, but only start by the date of suspension, - 24 June 1998, the genesis of it all is under black cover; and third, it does seem that the South African Constitution does not have provision similar to article 100(1) of our Constitution, which has to be complied with. Further, while in that case, bias was conspicuously manufactured, and by a single party majority, in this case, bias is just read from sheer fact of majority; but this does not *ipso facto* mean bias, or impartiality, or the facts in that direction are lacking.

I agree, principally, that the majority the applicant complains against may be partial, may err as grossly as the few, and I further concede that the tyranny of the majority in democracies is not unheard of. The writers on democracy regard the majority as an essential to democracy, and Lincoln said: "A majority is the only true sovereign of the people". But when all is said, we must accept that the dangers of tyrannical use of the power of the majority still remains one of the problems of Governments and an area remediable by the electorate, and the courts cannot be substitutes thereof. Third, as the learned judge pointed out, their Constitution is a product of the South African history with, in my view, an extra snake-bitten sensitivity. Fourth, unlike the South African position, which does not provide for suspension, ours, - see Order 60 of the Parliamentary Standing Orders 1988,

does provide for such suspension principally and, as for the extent, that as aforesaid, is not the concern of the pleadings. Fifth, the South African Constitution does not seem to have the claw-back provision, see article 30 of our Constitution, that such freedom shall be subject to the freedom of others, the public generally and the interests of the state in particular. And sixth, in the South African case, the assembly went ahead, caring less even after the applicant had withdrawn allegations so that the assembly had nothing, no material before them, and convicted without a charge, which is obviously not the case here. With respect, this case shows how the Parliamentary rules were conspiratorially trodden on, how she was sentenced uncharged, unheard, without material to base the judgment on, how the persecution took dominion from the word go, breaching a totality of her rights within the National Assembly, which is not the case here. Thus while I have respect for the case, its persuasive base is so dilute that, with respect it will be no guide to me.

All said and done, there is no way one can tamper with any weighing scale to trivialize this jurisdictional matter. Regardless of the cause for suspension which is not disclosed anyway, one objectively looking at the matter would agree that the suspension of a Member of the National Assembly is a serious matter both for the Member and his constituency. Important debates and votes may take place during his absence; even if the period is short, he may not be able to present his view point or that of the group or the constituency he represents. But even worse, depending on the cause for suspension, the relevant Member of Parliament may loose credibility and be judged as an irresponsible, delinquent representative. However, the respondent maintans that the court has no jurisdiction. The solution to this issue is indeed far to seek, as it is the first time it has emerged, and I cannot boast of having a local precedent on the matter. I have above demonstrated why *Patricia's case* (7) has failed to persuade me, of course, with respect.

Having, however, considered the pros and cons of submissions, article 100, section 12 of the Act and of course *Patricia's case* (7),

I think both learned and illiterate will concede that for most of its activities, and by their nature, the National Assembly is the sole judge of its own privileges and duties in its business. This is not to say that Parliament cannot be questioned on anything regardless of its constitutional limits; after all as a creature of the Constitution it cannot, in my view, claim immunity if the proceedings are held without jurisdiction, e.g. in defiance of the mandatory provisions of the Constitution, or by exercising power which Parliament does not, under the constitution, possess. As I did point out above, the novelty of the controversy at hand in this country does not mean the same issue has not happened elsewhere, apart from the South African case. I shall now consider the case cited by the learned Senior State Attorney, *Bradlaugh v. Gossett* (1), to seek more experience on the matter and evaluate how persuasive it is, even if in relative terms. I have anxiously, if not also studiously, examined the case. At page 275, Lord Coleridge, *inter alia*, said:

> What is said or done within the walls of Parliament cannot be inquired into by a court of law. On this point all the judges in the two great cases which exhaust the learning of the subject – *Burdett v. Abbott* (9), and *Stockbate v. Hansard* (2) – are agreed and are emphatic. The jurisdiction of the Houses over their own members, their right to impose discipline within their walls is absolute, and exclusive. To these words of Lord Ellenborough added "They would sink into utter contempt, and inefficiency without it".
>
> Whether in all cases, and under all circumstances, the Houses are the sole judges of their own privileges in the sense that a resolution of either on the subject has that same effect for a court of law as an Act of Parliament, is a question which it is not now necessary to determine. No doubt, to allow any review of Parliamentary privilege by a court of law may lead, has led, to very grave complications, and might in many supposable case and in the privileges of the Common being determined by the Lords. But to hold the resolutions of either House absolutely beyond inquiry in a court of law, may land us in the conclusions not free from grave complications too.

The case above may have the character of antiquity, but the excerpted principle that the Parliamentary proceedings and procedures are excluded from review by the court seems to maintain a vitality that has defied the passage of time, and still rings. And Dworkins, **'Political Judges and the Rule of Law,'** (1978), 64 Proceedings of the British Academy 259, similarly inclined, says:

> The courts may not question what takes place in Parliament, as was declared long ago in article 9 of the Bill of Rights 1689. That the freedom of speech and debates, or proceedings in Parliament ought not to be impeached or questioned in any court or place out of Parliament.

And near and not far from today, in 1993, Lord Rees – Mogg brought legal proceedings in the English Court to challenge the ratification of the Maastricht Treaty, at the same time, there was a Bill before Parliament to make provisions consequential, on the ratification of the Treaty, there was a complaint that the proceedings would involve the questioning of debates or proceedings in the House, contrary to article 9 of the Bill of Rights. Although the House did not react, the Speaker delivered a warning (HC Deb Volume 229, Col. 353, 21 July 1993) thus;

> I ... take with great seriousness any potential questioning of our proceedings. There has, of course, been no amendment of [article 9] of the Bill of Rights and that Act places a statutory prohibition on the questioning of our proceedings ...
>
> I am sure that the House is entitled to expect when the case [*R v. Secretary of State for Foreign and Commonwealth Affairs, ex parte Rees Mogg]* begins to be heard on Monday that Bill of Rights will be respected by all those appearing before the court.

My duty in this regard will not be derogated from, I hope, if I dutifully add another demonstration. In the case of *R v. Her Majesty's Treasury* (8), where counsel for the Treasury argued that for the court to give any remedy to Mr Smedley at that stage would constitute an unjustifiable interference with the procedure of Parliament, and Sir John Donaldson, MR, observed thus:

> Before considering Mr Smedley's objection to the [proceedings so far taken], and to the obvious intention to advice Her Majesty to make an order in Council in the same terms if the draft is approved by both Houses of Parliament, I think that I would say a word about the respective roles of Parliament and the courts. Although the United Kingdom has no written Constitution, it is a constitutional convention of highest in importance that the Legislature and the Judicature are separate and independent of one another, subject to certain ultimate rights of Parliament over the Judicature which are immaterial for present purposes. It therefore behaves the courts to be ever sensitive to the paramount need to refrain from trespassing upon the province of Parliament, or so far as this can be avoided, even appearing to do so. Although it is not a matter for me, I would hope and expect that Parliament would be similarly sensitive to the need to refrain from trespassing upon the province of the court.
>
> Against that background, it would clearly be a breach of constitutional conventions for this court, or any court, to express a view, let alone take any action, concerning the decision to lay this draft Order in Council before Parliament, or concerning the wisdom or otherwise of Parliament approving that draft.

It is not out of place, in my view, to spread our curiousity to other jurisdiction to see the constitutional practice on a similar matter. This time I shall take a flight to the Republic of India. In the case of *Ras Marain Singh v. Atamaran Govind* (9) at page 327, the learned judge said:

> I have considered it desirable to state the law relating to privileges before grappling with the questions which this case raises as I think that much of the argument in this case on behalf of the applicant is based on the assumption that an erroneous decision by Mr Speaker or the House in respect of a breach of privilege can be the subject matter of scrutiny by a court of law. There is nothing startling in the proposition that finality attaches where under cover of it, no new privilege is created by the House, to a decision of the House in respect of the matter, relating to its privileges ....

On the question whether it was wise and statesman like to pursue the matter after Shri Raj Marain Singh had been ejected from the House, it would be improper for me to express an opinion. Obviously this court is not, in any sense whatever, a Court of Appeal or revision, against such Legislature, or against the rulings of the Speaker who, as the holder of an office of the highest distinction, has the sole responsibility cast upon him of maintaining the prestige and the dignity of the House. Parliamentary Government receives, for its successful working, a spirit of reasonableness and accommodation on the part of those, whether belonging to a majority or minority, who have been elected by the people to be their chosen representatives in our legislatures. A perusal of article 121 would show that the founding fathers have protected judges from criticism in Parliament, by laying down that there shall, except on motion of misbehaviour, be no discussion in Parliament on the conduct of any judge or Court of Law having Jurisdiction, in any part of India in the exercise of his or its Judicial functions.

The learned Judge went on to observe:

The resolution suspending the applicant from the House was a thing done "within the walls of the House" of a matter concerning its proceedings, the Legislature is the sole Judge. The matter in issue is a proceeding of the House of Common, in the House, and therefore "it is part of the course of its own proceedings" and subject therefore to its exclusive jurisdiction.

Perhaps not for or out of ear of monotony but for exhaustiveness, I would add another voice from the Indian Supreme Court, in the case of *MSM Sharma v. Dr. Shree Krishna Sinha and others* (10), in which the then Chief Justice, held:

It was contended that the procedure adopted inside the House of the legislature was not regular, and not strictly in accordance with the law. There are two answers to this contention, firstly that according to the previous decision of this court, the petitioner has not the fundamental right claimed by him. He is therefore out of court. Secondly the validity of the proceedings inside the legislature of a State cannot be called into question on the allegation that the procedure laid down by the law had not been strictly followed. Article 212 of the Constitution is a complete answer

to this part of the contention, raised on behalf of the petitioner. No court can go into these questions which are within the special Jurisdiction of the Legislature itself which has the power to conduct its own business. Possibly, a third answer to this part of the contention, raised on behalf of the petitioner, is that it is yet premature to consider the question of procedure as the committee is yet to conclude its proceedings. It must also be observed that once it has been held that the legislature has the jurisdiction to control the publication of its proceedings, and to go into the question whether there has been any breach of its privileges, the legislature is vested with complete jurisdiction to carry on its proceedings in accordance with its rules buiness. Even though it may not have strictly complied with the requirement of procedural law laid down for conducting its business, that cannot be a ground for interference by this court under articles 32 of the Constitution. Courts have always recognized the basic difference between want of Jurisdiction, and improper or irregular exercise of jurisdiction. Mere non-compliance with rules of procedure cannot be ground for issuing a writ under article 32 of the Constitution: vide *Janardan Reddy v. State of Hyderabad (11).*

The Indian cases are in obedience to the Indian Constitutional article 212(1) and (2) that stipulate:

121(1) That the validity of any proceedings in the Legislature of State shall not be called into question on the ground of any alleged irregularity procedures.

(2) No officer, or member of the Legislature of State in whom powers are vested, or under this Constitution, for regulating procedure, or the conduct of business or for maintaining order in the Legislature shall be subject to the jurisdiction of any court in respect of exercise by him of those powers.

As per this article, and the authorities above cited, it is clear, that the Indian Court would not be entitled to question the validity of "any proceeding" in Parliament on ground of irregularity of procedure. Thus the above immunity from judicial interference is confined to matters of irregularity of procedure, not to matters done without

jurisdiction, or done in defiance of mandatory provisions of the Constitution, or exercising powers not granted by the Constitution. It would seem to me that the above articles are, in substantive contents, not very different from what article 100(1) of our Constitution ordains, and I cannot see how suspension of the applicant as a punishment can be described other than a culmination of procedure within the House. It is here that on recapitulating and dutifully digesting the cases above and seeking their relevance to the circumstances of our country, I am more and better persuaded by the Indian cases. In our case rule 60 of the 1998 Standing Orders, made under article 89(1) of the Constitution allows in principle the suspension of a Member of Parliament, of course for a cause, on matters happening in the House and therefore it cannot be unconstitutional; and it is not unconstitutional when it is imposed. Further, although the suspension did not come upon the applicant like hailstone, and the applicant did not tell us what happened to make him liable to deserve the suspension, I shall assume that such suspension is a punishment resultant from disciplinary action within the Parliament, under the powers authorized by the Constitution and exercised by the Assembly in its own business in the course of its own proceedings. To maintain the dignity of the House in its serious business and to maintain its relevance to its business and the rights of Parliament as a people's institution, the preservation of those interests must be given precedence otherwise, as Lord Coleridge said, "They sink into utter contempt, and inefficiency without it".

The applicant is entitled to hide what led to his suspension, actually complying with article 100(1) of the Constitution that proceedings in Parliament shall not be inquired into by a court of law; such disciplinary action within the House falls within the House, and the Court's Jurisdiction is ousted, as article 100(1) of the Constitution loudly says. The rules and orders are for business in Parliament, and the vast powers exercisable within such Parliament have the protection of the Constitution for successful business of Parliament, the freedom within which must be circumscribed and consistent for the success of the Parliament.

And I am yet to hear of an authority holding that staying in the Parliamentary Sessions is at any cost and under any circumstances a constitutional right, and therefore sending one out or suspending him being labeled unconstitutional. I cannot, with respect, see the right violated. One does not have to philosophise, even if there are any rights as alleged then such rights have inherent limitations, so that such rights shall be enjoyed, all things being equal, if other rights are not trodden upon.

When one becomes a member of a society or group, or even organ of state, he necessarily parts with some rights or privileges which, as an individual, are not affected by his relations to others he might retain; he has to conduct himself so as not unnecessarily to injure or interfere with the rights of others. It follows that whatever rights and privileges the applicant had or has in the House, they should definitely be consistent with the obtaining order therein. So that even if there were no rule for suspension, there is an implied power of suspension, however short, if lack of peace in the House is for some reason occasioned by an MP in the house and, if so suspended, the said MP cannot be heard to complain of denial of participation if he was the author of the circumstances for suspension. There is no such thing as enjoying rights in the abstract, for instance, an MP cannot play disco in the House and be allowed to shelter under constitutional right, he will be sent out; you cannot murder and claim right to life, you will suffer death by hanging; you cannot claim right to work if there is no work, you will die of hunger; or you cannot claim a right to food, you will perish if there is no food, simply because, these are itemized in the Constitution. As Walter Lippiman emphasized:

> To maintain a constitutional order, men must be more truthful, reasonable, just and honourable than the letter of the Laws.

And even be more serious, we should claim our liberties with the caution as given by de Tocqueville: "That nothing is more futile is more futile in prodigies, than the art of being free, but there is nothing more arduous than the apprenticeship of liberty."

All the same, fifty years of the human rights declaration as standard achievement of all people, and of all nations, and they being designed to limit power to counterbalance a utilitarian use of power with an ethical requirement setting a limit to power so that any action, even with a semblance of challenge to power, abuse, like that the applicant did, is a welcome course of inspiration on the extent of such rights. And wisely, I think with respect, and more and better persuaded by the Indian authorities, and distinguishing the South African case which is a product of a Constitution and circumstances not too close to our own, I am convinced that the suspension was resultant from disciplinary action by the assembly, for matters committed within the assembly which has exclusive jurisdiction to deal with the same, within the four walls of the same, to maintain the dignity and integrity of the assembly, and the members themselves. The said suspension was part of the proceedings in the assembly, it was part of the course of its own proceedings. I therefore hold that the suspension was within the constitutional powers of Parliament as exercisable for purposes of its business. In obedience to article 100(1) of the Constitution, I shall hereby declare that this court has no jurisdiction to hear the petition, and therefore the application is unmaintainable, and I shall not by illegal force break into that parliamentary castle. The second objection is therefore pre-emptied, and its treatment is therefore rendered superfluous.

But even if it were otherwise, I would be reluctant to issue the stay sought for the conditions thereof, not being satisfied -1-a private member's motion has no time circumscription, the present parliamentary life is five years, and Tanzania is not dying tomorrow, nor are Tanzanians planning an exodus from this country. And as for the Temeke Constituency voters and other voters generally, truancy from the House, even to the extent of denying the Hon. Speaker a working quorum, is so common, and whether as a result of truancy or the Speaker's suspending order the effect is non-representation and a violation of the voters' rights, all the same, for which the electorate will be the judges: either when they know the effect of truancy, or the cause for suspension. The application fails, therefore, with costs.

SAID MNIMBO AND OTHERS *v.* STATE TRAVEL SERVICES LTD, TOURISM SERVICES TANZANIA AND PARASTATAL SECTOR REFORM COMMISSION AS OBJECTORS

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Kalegeya, J.)

CIVIL CASE No. 296 OF 1997

Public Corporations – Privatization of public corporations – Public corporation declared a specified public corporation with a view to privatization – Effect of declaring the corporation a specified corporation.

Civil Practice and Procedure – Garnishee Order – Order imposed on bank accounts of a wrong party to proceedings – Whether order may be lifted.

Banking – Garnishee order – Garnishee order imposed on bank accounts of a wrong party to the proceedings – Whether the order may be lifted.

The plaintiffs filed a suit against the State Travel Services Ltd for terminal benefits following staff retrenchment. After hearing the case *ex parte*, judgment was entered in their favour and a decree was drawn up to the sum of TZS. 185 697 985. The court, pursuant to the decree against State Travel Services Ltd, issued a garnishee order on 4 accounts held at Stanbic Bank, Arusha Branch, and 4 accounts at Stanbic Bank, Dar es Salaam; on 2 accounts held at NBC (1997) Ltd, Samora Avenue Branch, and one account at NBC (1997) Ltd, Foreign Branch, in Dar es Salaam.

Retrenchment of the employees followed declaration of the State Travel Services Ltd as a specified corporation under the Public Corporations (Amendment) Act 1993 [Number 16 of 1993], and the acquisition of 75% of its shares by Tourism Services Tanzania. Following that declaration the Parastatal Sector Reform Commission (PSRC) assumed responsibility over all matters that fell under the State Travel Services Ltd. Aggrieved by the garnishee order issued against the bankers of State Travel Services Ltd, Tourism Services Tanzania and PSRC filed an application praying for the garnishee orders to be lifted on grounds, *inter alia*, that from the date State Travel Services Ltd

was declared a specified corporation, it came under PRSC as receiver, and the provisions of the Bankruptcy Ordinance became operational, requiring that all debts and claims, including the suit leading to the decree, to proceed against PSRC.

Held: (i) Upon a public corporation being designated a specified public corporation, PSRC becomes an automatic official receiver of such corporation;

(ii) Section 43 of the Public Corporations (Amendment) Act 1993 [Number 16 of 1993] creates a special official receiver in the form of PSRC under which all properties of specified public corporations are placed in terms of section 9 of the Bankruptcy Ordinance Chapter 25, saving the specified corporation from being proceeded against by creditors, apart from the barrage against action by such creditors that they cannot file an action without leave of the court;

(iii) Under the Public Corporations (Amendment) Act 1993, all properties of the State Travel Services Ltd, including its bank accounts, were placed under PSRC as official receiver and in terms of section 9 of the Bankruptcy Ordinance, Chapter 25, such properties cannot be attached as the garnishee order purports to do;

(iv) Once a public corporation is designated a specified public corporation and placed under PSRC, only PSRC can be proceeded against by any deserving creditor;

(v) The application to lift the garnishee order is granted because (a) there is lack of particularity as to whether the 11 bank accounts attached belong to the judgment debtor, State Travel Services Ltd, and (b) even if they do they are not liable to such order being now under PSRC as official receiver of State Travel Services Ltd, exercising its powers under section 43 of the Public Corporations (Amendment) Act 1993, read together with section 9 of the Bankruptcy Ordinance.

Orders accordingly

Cases referred to:

(1) *New Insurance Company Ltd v. Lilian Evelyn Cross and another* [1966] EA 90

(2) *Bakari Ben and Jumaa Ben v. Zainabu Ama Ben Jumaa*, Civil Application Number 85 of 1997 (unreported)

Statutory provisions referred to:

(1) Public Corporations (Amendment) Act 1993, section 43

(2) Bankruptcy Ordinance, section 9

Mr Mujulizi, for the Applicants/Objectors

Mr Lutema, for the Plaintiffs

RULING

(Delivered 30 July 1998)

KALEGEYA, J.: This ruling is in respect of an application by Tourism Services Tanzania and Presidential Parastatal Sector Reform Commission (PSRC) as first and second applicants/objectors respectively praying for the lifting of a garnishee order issued against 4 bank accounts at Stanbic Bank Arusha branch; 4 bank accounts at Stanbic Bank, Dar es Salaam Branch; 2 accounts with NBC (1997) Ltd, Samora Avenue Branch, Dar es Salaam, and one account with NBC 1997 Foreign Branch, Dar es Salaam in response to a decree entered by this court against State Travel Services Ltd, defendant (as judgement-debtor) in favour of Said Mnimbo, John Nyange, Silvano Kagya and 74 others as plaintiffs/decree holders.

For clarity let us detailedly go through the facts leading, relating and surrounding this matter which are as follows:

Said Mnimbo, John Nyange and Silvans Kagya filed a representative suit on behalf of themselves and 74 others against the State Travel Services Ltd for terminal benefits following their retrenchment. Upon the plaintiff's advocate's submission before a brother judge that the defendants had refused service they (plaintiffs) were allowed to prove their case *ex parte* which they did by affidavit and judgement was accordingly entered in their favour. A decree to a tune of TZS. 185 697 985 was drawn up and this led to the garnishee order which is being challenged.

In order to have full appreciation of this matter I should pause here and touch another set of relevant factors leading to the filing of the suit.

By the Public Corporations (Amendment) Act, 1993 (Act Number 16 of 1993), the Public Corporations Act, Number 2 of 1992 was amended. Under this amendment, a special creature called the Presidential Parastatal Sector Reform Commission (PSRC) was created [section 21] and given very wide powers (section 22).

For clarity and in view of what will subsequently be discussed, even at the danger of making this ruling unnecessarily long, I will quote relevant sections of the said Act extension:

Section 21(1) There is hereby established a commission to be known as the Presidential Parastatal Sector Reform Commission which shall be an autonomous organ of the Government.

(2) The Commission shall be a body corporate with perpetual succession and common seal and shall be capable in its corporate name of;

Section 22(1) The Principal functions of the Commission shall be:

(a) to prepare and maintain an up to date list of all public corporations and make recommendations to the Minister on which public corporation should be declared to be specified public corporations;

(b) to formulate and execute detailed plans for the restructuring of all specified public corporations;

(c) to supervise, monitor and enforce the restructuring procedures and agreements in relation to specified public corporations;

(d) to liaise as necessary with responsible ministries and other organs of the Government with a view to ensuring that the objectives of the commission are achieved;

(e) to make such other recommendations as it considers necessary to enable the Commission to achieve its objectives under this Act.

(2) Without prejudice to subsection (1), during the period of its existence as specified under section 21 of this Act, the commission shall:

(a) be responsible to the President for ensuring the implementation of Government policies on the reform of the public corporations sector;

(b) implement the policies and programs of the Government with respect to the reform of the public corporation sector;

(c) develop operating policies, procedures and guidelines for the implementation of the public corporation re-structuring reforms decided by the Government;

(d) review and make recommendations on specific policies and legislation pertaining to the public corporations sector;

(e) liaise as necessary with responsible ministries in monitoring the performance of public corporations and in participating in the development and supervision of statements of corporate strategy.

Again, under section 4A of Act 16 of 1993 "Every public corporation existing on the coming into operation of this Act shall be deemed to be established pursuant to this Act ..."

Under section 38(1) "The Minister may upon the recommendation of the commission (PSRC) by order published in the Gazette declare a public corporation to be a specified public corporation to which the provisions of this Act shall apply".

The commission's powers are further strengthened by section 39(1) which provides, among other things:

Where a public corporation has been declared a specified public corporation, the commission shall from the effective date be responsible for the restructuring of that specified public corporation.

(2) Without limiting the generality of subsection (1) the commission may, in respect of any specified public corporation:

(a) cause a detailed financial and operational analysis of the specified public corporation to be carried out;

(b) determine the means by which the restructuring of the specified public corporation may be implemented;

(c) cause a valuation of assets of the specified public corporation to the carried out;

(d) invite expressions of interest from potential purchasers or lessors of the specified public corporation or of the assets of such corporation;

(e) publish guidelines for hiding and valuation procedures and criteria for the selection of purchasers or lessors;

(f) determine the price at which the shares in or the assets of the specified public corporation may be purchased or leased;

(g) hold discussions with the members of the board and officers and employees or their representatives of the specified public corporation with a view to achieving a fair, reasonable and harmonious restructuring of that specified public corporation;

(h) determine, in consultation with responsible ministries fair and reasonable severance, pension and other payment arrangements that may be appropriate following a restructuring of the specified public corporation.

(i) negotiate and cause to be executed such agreements as may be necessary with any party for the purchase, lease, management or control of shares in or assets of the specified public corporation;

(j) negotiate and cause to be executed such agreements as may be necessary with any party or the purchase, settlement or discharge of the liabilities or any other indebtedness of the specified public corporation;

(k) cause proceedings for the recovery of any debt owned to or by a specified public corporation or for the winding up liquidation or dissolution of the specified public corporation to be initiated; and

(k) do all such other acts as may be required to effect the restructuring of any specified public corporation.

The wide powers of PSRC do not end there. Under section 43 the commission is given a wider perspective as it is provided, again among others, that

(1) Notwithstanding any other law to the contrary, with effect from the date of publication of an order declaring a public corporation to be a specified public corporation the commission shall:

(a) without further assurance on appointment have the power to act as the official receiver of the specified public corporation; and

(b) have the power and all the rights of a receiver appointed in accordance with or pursuant to the Bankruptcy Ordinance.

(2) Without prejudice to subsection (1) of this section the commission shall:

(a) in relation to a public corporation which is insolvent-

(i) have power to determine whether the public corporation should be liquidated.

(ii) have power to determine an alternative restructuring option.

Provided that in the event of determining an alternative restructuring option the commission shall prior to proceeding with such option, inform all the interested parties in writing of the reasons for preferring that alternative option;

(b) in relation to the debts of private creditors, but after negotiating with such private creditors and with the consent of the Treasury have the power:

Under (c) and (d) the commission (PSRC) can exercise powers under (b) above in relation to government debts where the Corporation is wholly owned by Government, and where the govt. owns just shares, with consent of the Treasury and other shareholders.

Treading on the powers granted under this law (section 38(1), the Minister for Finance, vide G.N. 324 of 25 October 1996 declared various public Corporations to be "specified public corporations" and in the list included is "State Travel Services Ltd (present defendant/judgment debtor). PSRC informed the general public of the existence of this G.N. and other G.Ns. on similar subject in a public Notice contained in Daily News Paper dated 27 May 1997 displaying over 30 specified public corporations and, which again for clarity, the relevant part need to be quoted at length,

> Accordingly, the PSRC is now fully responsible for the devising and implementing divestitute of these companies. No action would be executed on the assets of the companies without the knowledge or/and prior approval of the PSRC. The PSRC will ensure orderly privatization of those companies and secure the interests of all the creditors and all other parties concerned in accordance with the law. Notwithstanding the specification order the management of the companies is still vested in the respective Board of Directors which are obliged to ensure continuation of business operations. The boards are obliged to consult and get approval of PSRC before making any decisions in relation to disposal, acquisitions of the assets and signing of any loan/credit or lease agreement. All creditors are informed to register their debts with PSRC through P.O. Box 9252, Dar es Salaam, within twenty five days from the date of this notice, i.e. 24 May 1997.

On 16 September 1997, the Government of the United Republic of Tanzania represented by PSRC and referred to as the Vendor (on first part); Tourism Services International Ltd referred to as Purchaser (on second part) and State Travel Services Ltd. (on third part) and referred to as the Company, entered into a sale agreement by which the purchaser bought 75% of the shares of the Company which had earlier on been owned 100% by the Government, leaving the latter with just 25% shares.

Meanwhile negotiations had been going on between PSRC and the employees of the State Travel Services (and regard being had to the facts available I will take it that they include the plaintiffs/decree-holders) possibly under section 9(2)(g) of Act 16 of 1993, which negotiations resulted in retrenchment of decree-holders in July, 1997. In accordance with the plaint whose contents have not been disputed by the defendants (as it decided not to appear let alone filing a Written Statement of Defence, coupled with the fact that in the course of arguments in this matter Mr Mujulizi for objectors was open enough to state that PSRC is arranging to pay the claims signifying that the claims are not disputed) it seems, during the retrenchment negotiations it was agreed between the plaintiffs and PSRC, that, among others, the plaintiffs/decree holders would be paid "a golden handshake of two months' salary for each year of service for the first ten years of service plus one month's salary for each year of service for years eleven to twenty years" which decision was approved by the Government. However not only were the "golden handshake" benefits not paid but also the severance allowance did not comply with the legal requirement of 5% of the annual salary times the number of years of service.

Embittered by the non-payment of the above-enumerated benefits, on 21 October 1997, exactly 36 days after 75% of the shares of the State Travel Services Ltd had been sold to Tourism Services International Ltd, the plaintiffs/decree-holders/ respondents filed an action against State Travel Services Ltd, claiming among others,

> TZS. 103 991 471 being the total golden handshake payments for the 77 plaintiffs as well as for a sum of TZS. 38 243 033 being the unpaid balance of total severance allowance for the 77 plaintiffs.

Interests and costs which after the passing of the judgment have totaled up to a decretal sum of TZS. 185 697 985, the subject of the disputed garnishee order.

Again it would seem the State Travel Services Ltd business is also being traded under the Tourism Services.

The applicants' attack is geared at unblocking the 11 bank accounts referred to above. In support of the application to lift the garnishee order, Mr Mujulizi's (for the applicants) lengthy arguments (including the accompanying affidavit) can be summarized as follows – that from the date the State Travel Services was declared a specified Public Corporation it came under PSRC as a receiver hence the provisions of the Bankruptcy Ordinance Chapter 25, became operational necessitating that all debts and claims including the suit leading to the decree, the subject of this controversy, against that corporation, had to proceed against PSRC as a receiver to protect investors from proliferation of suits which would render the objectives of the Act futile; that the garnishee order itself, on its face value is confusing, vague and capable of causing grievous and irreparable harm to the first objector (Tourism Services) as it was issued against all accounts operated by first objector, a trade name adopted after the 75% shares had been sold to Tourism Services International Ltd; that the accounts which have been affected are Trust Aaccounts – that due to operations of Air Services and Tours which involve the selling of tickets on behalf of various airlines, some of these accounts contain monies from other parties, and that the garnishee order would paralyse the first objector's operations, adding that if the said garnishee order is to be upheld let it be varied to hold only the monies of the State Travel Services Ltd.

Mr Lutema's equally lengthy and forceful submissions in response can conveniently be summarized in the following words; that although under Act (under which it was created) PSRC was given a wide range of powers as provided under various sections which include section 22, 37 and 43 it was not made an automatic official receiver to all specified public corporations as section 43 may purport to indicate, urging the court to note that in construing one section of an Act regard should be had to the other provisions of the same Act to avoid making the other such provisions superfluous (cited *New Insurance Coy Ltd v. Lilian Evelyn Cross and another* (1), and that in interpreting statutes the court should recapitulate to what was the intention of

the legislature by understanding the objectives and history of Act; that the purpose of the Public Corporations Act (Act 2 of 1992) as amended by Act 16 of 1993 was not limited to simply dissolving the various corporations and putting them under receivership but was to make better provisions for their establishment, management streamlining and related incidental matters thereto which included restructuring, dissolution and selling, that PSRC became an official receiver only to a corporation dissolved for non-performance in which case all powers of a Receiver would be exercised but it would not be in any other situations of restructuring like in the present case where State Travel Services did not cease to exist but merely had its share holding changed from 100% Government owned to 25% while 75% went to a private investor; that as a result there was no receivership of the State Travel Services Ltd. thus the said corporation has never ceased to exist and could therefore be properly sued as was the case here and a garnishee order issued.

Mr Lutema's arguments did not end there. He argued in the alternative that the court should hold that there was no sale agreement as such as section 5 of the Stamp Duty Act 20 of 1972, a mandatory provision requiring payment of Stamp Duty was violated thus leaving the State travel services as it was before the purported sale agreement; that there should have been other supporting affidavits regarding the sources of the information (citing *Bakari Ben and Jumaa Ben v. Zainabu Ama Beni Jumaa* (2) referred to in the affidavit which accompanied the Chamber Summons; that in the unlikely event it is found that the wrong party was sued the court should exercise its powers provided under Order1, rule 10(2) Criminal Procedure Code and add the right party, PSRC, and finally that if the court finds that there is need to lift the garnishee order the judgement debtor should be called upon to deposit the sums stated to guarantee payment to his clients in the event they win.

In reply, Mr Mujulizi maintained that depositing the decretal sum in court can't be legally ordered as there would be no pending proceedings before the court; that regarding the trust Accounts the decree-holder was duty bound to investigate and execute on the right

accounts of the judgement-debtor; that the stamp duty was supposed to be paid only on the share "transfer certificate"; that as the purpose of the Act was to allow amicable and smooth restructuring of public corporations and place them in hands of private entrepreneurs, a special receiver – PRSC difference from a receiver appointed under Chapter 25; 212 or appointed by court, was appointed under section 43 of Act 16 of 1993, with wide powers going beyond the mere dissolution of the corporation hence PSRC's public announcement in the daily newspaper that all claims against the specified public corporations should be registered with it, and finally that the garnishee order is not the only remedy and more so when PSRC does not disclaim liability.

Let us now turn to the core of the controversy – whether PSRC and Tourism Services have established that they have an interest in the accounts against which the garnishee order has been issued as against the judgment debtor – State Travel Services.

As rightly pointed out by both the learned Counsel the Amendment (Act 16 of 1993) was geared at restructuring public corporations and this is spelt out in the "objects and reasons" for its enactment prescribed in the Bill to that Act and which reflect the following:

> This bill is designed to effect amendments to the Public Corporations Act 1992, so that the Act becomes an appropriate vehicle for effecting the restructuring of public corporation.
>
> In effect, the Bill intends to narrow the scope of the Act to encompass only public corporations that are solely owned by the Government or majority owned by the Government.

This was a time when the Government was moving away from being the 'King' in the commanding heights of the economy and switching over to privatization. This can be discerned from the wide ranging powers given to PSRC as can be seen from the provisions of the Act already quoted above. The move was hastily and ambitiously hatched. It could not, in the circumstances, be water-tight in each respect and some flaws on the legal side is a telling factor.

I will start with the main argument – whether PSRC automatically becomes a Receiver of the public corporation immediately it is designated a specified public corporation section 43 of Act 16 of 1993 is already quoted. As rightly submitted by both Counsel, section 43 can not be interpreted in isolation as that would lead to superfluity of other provisions.

It has already been demonstrated that the objectives and reasons for the enactment of the Act (16 of 1993) was to restructure public corporations in which the government controlled 100% or majority shares. The provisions of the Act already quoted clearly show that in restructuring some specified corporations could be liquidated or restructured otherwise section 43(2) specifically authorizes PSRC, in insolvent corporations, to decide on whether they should be liquidated or be put on alternative restructuring option which includes selling. It was in the exercise of these powers that PSRC did not liquidate the State Travel Services Ltd. but sold the majority of its shares to a private investor (Tourism International Services).

The Bill to the relevant Act, giving "objectives and reasons" for the enactment of section 43 provided:

> It is proposed in section 43 that the commission should act as the official receiver of a specified public corporation. It should be entrusted with the power to make decisions on liquidation or alternative restructuring option.

Reading the intention of the Legislature in the provisions of section 43 and other provisions of the Act above quoted and as guided pointed out in the quoted objectives and reasons found in the Bill to the relevant Act one is left in no doubt at all that indeed PSRC was appointed an automatic official receiver of any public corporation upon the same being designated 'a specified public corporation'. With respect to both learned counsels, the heated argument on this seemingly issue seems to have emanated from a misapprehension of what an official receiver is. The way I understood their arguments they seemed to propose that a receiver is only appointed in ventures which have to be liquidated or under liquidation. With respect this

is not necessarily the case. A distinction here should be made between a receiver and liquidator although the former may also be appointed the latter and also between receivers appointed by courts and those by individuals or specific statutes.

As defined in the **Halsbury's Laws of England** (4 ed), Volume 39, paragraph 801:

> A receiver is a person appointed for the collection or protection of property. He is appointed either by the court or out of court by individuals or corporations. If he is appointed by the court, he is an officer of the court deriving his authority from the court's order. If he is appointed out of court, he is an agent and has such powers, duties and liabilities as are defined by the instrument or statute under which he is appointed and derive from the general law of agency.

A receiver is often appointed in general terms over all the property and assets, and his powers and duties must depend on the terms of his appointment. This would depend on the object of the appointment. It could be for the purposes of determining the rights of parties or to ascertain what encumbrance exist on a venture and what their priorities are or to settle dispute as to title.

A receiver could also at the sometime be appointed a manager of the venture.

What the above exposition leads to is that a receiver can be appointed even for ventures not under liquidation nor expected to be liquidated, the controlling purpose for such appointments being the collection or preservation of the relevant property for the benefits of persons who have an interest in it. It was under this principle that, by statute, PSRC was formed and appointed an official Receiver of all 'Specified public corporations' so designated under Act 16 of 1993.

I should reiterate that some distinction should be made between court appointed receivers and other receivers. Generally, it is true that receivers appointed by courts are so appointed for the preservation of a debtor's property pending an action against him or applying the

said property to satisfy a creditors claim or right in situations where the possibility of injury, loss or removal of that property is looming but for receivers appointed outside the court, as earlier hinted upon, it could be for the purpose of ascertaining the encumbrance or the exact state of the venture in preparation for another step to be taken.

Act 16 of 1993 took both curses and appointed PSRC as official receiver for both types of corporations – those which seemed insolvent hence were to be put on death roll by liquidation, and those which need restructuring as the State Travel Services came to be.

Mr Lutema's argument is caught up in the very web he knotted for the applicants: that we should look at the intention of the Legislature when passing that Act (I have already quoted the objects and reasons contained in the Bill). I must concede that section 43 could have been better framed, but notwithstanding the wanting wording, reading subsection 1(a), reinforced by 1(b), and supplemented by the intention of the Legislature as put in the objects and reasons for the enactment of the relevant law which were glaringly revealed in the very wide range of powers bestowed on PSRC, one is left in no doubt at all that the said PSRC was appointed an automatic official receiver to any specified public corporation upon being so designated. Having so concluded, then what is its effect on the application before us? Mr Mujulizi argues that as a Receiver, then all actions must proceed against PSRC in order to protect other investors.

Section already expressed appointed PSRC, out of court, as an official receiver. It however did not end there. This statute (Act 16 of 1993) did not merely appoint PSRC in a mere capacity of a Receiver appointed by individuals outside the court: it went on to cradle this special creature with very wide powers by pushing it into the domain of court appointed receivers! "It shall have the power and all the rights of a receiver appointed in accordance with or pursuant to the Bankruptcy Ordinance" (section (1)(b)).

An official receiver under the Bankruptcy Ordinance is so considered for a particular matter after the court has issued a "receiving order"

for the protection of the estate – this is after the debtor has committed an act of bankruptcy, or upon presentation of bankruptcy petition by either creditor or debtor. Among others, the "receiving order" would specifically mention who the official receiver is. However this situation is not applicable in our case because this special "Official Receiver", PSRC, is not the creature of the court and in any case State Travel Services was/is not under bankruptcy apart from the limitations of section 118 of this law – Bankruptcy Ordinance Chapter 25, which categorically provides,

> A receiving order shall not be made against any corporation or against any association or company registered under the Companies Ordinance.

Without attempting to reconcile the effects of this provision (section 118) to the case at hand as against the other relevant laws like the Companies Ordinance, it suffices to say that there was no receiving order.

The above observations notwithstanding however we have the glaring section 43(1)(b) of Act 16 of 1993 before us. This prescribes that PSRC has all powers and all rights of a receiver appointed in accordance with or pursuant to Bankruptcy Ordinance. It is under this clause that Mr Mujulizi prays to be allowed to take shelter. What powers are those? Are they of the nature and type as referred to by Mr Mujulizi?

An "official receiver" under the Bankruptcy Ordinance has indeed wide powers all geared at the protection and preservation of both the debtor and creditors' interest. Under section 75(1) "... the official receiver shall have relation both to the conduct of the debtor and to the administration of the estate". receiver has duty and power to investigate the conduct of the debtor as a whole (section 76). Under section 77, receiver, among others, has to make sure that the Estate is not wasted, can act as manager or trustee when those vacancies are open and even after their appointment, receiver has to keep a keen eye on the said manager or trustee (section 83). Other sections on incidental powers and privileges are not relevant to the situation

at hand except section 9(1) which states that after the estate or property of a debtor has been placed under an official receiver.

> ... there after, except as directed by the ordinance, no creditor to whom the debtor is indebted in respect of any debt provable in bankruptcy shall have any remedy against the property or person of the debtor in respect of the debt, or, shall commence any action or other legal proceedings unless with the leave of the court and on such terms as the court may impose.

Of all the powers of an "official receiver" indicated above those under section 9 of Chapter 25 should have been the ones specifically targeted by section 43(1)(b) of Act 16 of 1993. I am saying so because the other powers of the receiver under Chapter 25 are almost covered under a string of wide powers bestowed on PSRC under Act 16 of 1993. But these alone would not have sufficed. We have already observed that the intention of the Legislature was to afford a smooth restructuring of public corporations 100% or majority share owned by the Government in the wake of privatization. Indeed if private investors were to be attracted there were to be some kind of guarantee on their investments and a guarantee cushioning against debts and liabilities by the said corporations as is the case in this matter. I am fortified in my opinion on this by another factor that even the sale agreement (in which Tourism Services International) Ltd bought 75% of the State Travel Services Ltd) does not provide protection for this kind of liability – I believe this was due to the fact that it was thought that section 43 of Act 16 of 1993 had taken care of all this otherwise the private investor could not simply dump in money which would only soon be fished out by creditors as the decree-holders are trying to do. Due to this, section 43 of Act 16 of 1993 created a special official receiver in the form of PSRC under which all properties of specified public corporations were placed in terms of section 9 of Chapter 25 saving them from being proceeded against by way of remedy by creditors apart from the barrage against the said creditors that they cannot file an action thereof without the leave of the court. With respect to Mr Lutema, no distinction was

made between corporations that were to be placed under liquidation or restructuring. To attach any other interpretation would go counter to the intention of the Legislature when passing the relevant Act.

Thus under Act 16 of 1993 the properties including bank accounts of the State Travel Services were placed under PSRC as an official receiver, and in terms of section 9 of the Bankruptcy Ordinance they cannot be attached as the garnishee order purports to do. I have so concluded without going to the other side of the matter of whether the decree on which the garnishee order is found is legally proper as no court's leave was sought and secured before the action was filed in terms of section 9 Chapter 25 because that is not the issue before me apart from lack of jurisdiction to question it and existence of other avenue if relevant parties find it necessary to pursue it.

While still on this I should respond to Mr Mujulizi's contention that in the premises only PSRC can be proceeded against by any deserving creditor. While possibly desirable I have failed to see the basis of his proposition. Section 9 of Chapter 25 is silent on who should be sued. In my opinion, with courts leave, the debtor, in this case, State Travel Services Ltd, can be sued alone or jointly with PSRC as the former is still a corporate entity capable of suing or being sued. The above disposes the matter before us making it unnecessary to discuss other submissions, contentions and propositions made by both learned Counsel.

In conclusion, the application to lift the garnishee order is allowed, first for lack of particularity as to whether the 11 bank accounts attached belong to the judgement-debtor, State Travel Services Ltd, and, secondly, even if they were, they are not liable to such order being under PSRC as an official Receiver of State Travel Services Ltd exercising its powers under section 43 of Act 16 of 1993, read together with section 9 of the Bankruptcy Ordinance. Considering the role played by each party in the matter leading to this situation – in action by PSRC is not honouring what was agreed upon with the decree-holders hence the filing of the suit, and, the decree-holders

failure to follow the prescribed procedure under section 9 of Chapter 25, I order that each party meets its own costs.

ITAL AFRICAN TRANSPORTERS LTD *v* GIAFAR M. BEDER

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, J.A)

CIVIL APPLICATION No. 15 OF 1998

(Application for Leave to Appeal from the Ruling of the High Court of Tanzania at Dar es Salaam, Kileo, J., dated 6 March 1998, in Civil Case No. 160 of 1993)

Court of Appeal – Applications – Service of Notice of Motion on the respondent – Time within which the respondent is be served with a copy of the Notice of Motion – Rule 52(1) of the Court of Appeal Rules 1979.

Court of Appeal – Leave to Appeal – Application for leave to appeal to the Court of Appeal – Application to be made to the High Court first – Rule 44 of the Court of Appeal Rules 1979.

Court of Appeal Rules – Form of Application – Format for bringing applications to the Court of Appeal – Form A of the first schedule to the Court of Appeal Rules 1979.

An application for leave to appeal to the Court of Appeal was struck out by the High Court for being incompetent. A Notice of Motion was then filed before the Court of Appeal asking for leave to appeal to the Court of Appeal, the same relief that the applicant had failed to obtain from the High Court. It was contended, by way of a preliminary objection, that the Notice of Motion was not served on the respondent in time; that it was faulty as it did not follow the proper format as required by law; that it was not properly titled as it was amended; and that after the High Court had struck out the application for leave to appeal to the Court of Appeal, the applicant had the remedy of appealing to the Court of Appeal, not lodging another application.

Held: (i) The requirement of rule 52(1) that a Notice of Motion should be served to the other party in "not less than two clear days before the hearing" should be taken to refer to the hearing date as re-scheduled;

(ii) Where the law or a rule provides for a mode or way for the doing of anything, attempt should be made as far as possible to comply therewith;

(iii) The application is not properly before the court because it contravenes the provisions of rule 44 of the Court of Appeal Rules requiring such application to be made to the High Court first; the applicant must first make a valid application to the High Court before knocking on the door of the Court of Appeal; in this case no valid application had been made to the High Court in the first instance.

(iv) *Obiter:* It was open to the applicant to appeal to the Court of Appeal against the High Court decision, after obtaining the necessary leave to do so, but not to make further application to the Court of Appeal.

Application struck out

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rules 44 and 52(1)

(2) Civil Procedure Code 1966, Order 1, rule 10(3) and Order VI, rule 17

Mr Kalunga, for the Applicant

Prof. Fimbo, for the Respondent

RULING

(Dated 04 August 1998)

KISANGA, J.A.: There was before Kileo, J., an application for leave to appeal to this court against the ruling of the High Court (Kaji, J.) delivered on his behalf by the District Registrar on 12 December 1997. Kileo, J., found the application to be incompetent and accordingly struck it out, for failure by the applicant to specify the provision

under which relief was being sought, and for failure to annex to the application the ruling that was intended to be appealed against.

Mr LT Kalunga, learned advocate for the applicant, filed in court a confused document which purports to be an appeal against the ruling of Kileo, J. and which at the same time purports to be a Notice of Motion seeking various reliefs against the ruling of Kileo, J. and attacking the ruling of Kaji, J. as being "flooded in serious legal errors." This peculiar document was accompanied by the affidavit of the learned counsel.

When the matter came on for hearing on 29 June 1998 Professor M. Fimbo, learned advocate for the respondent, took a preliminary objection, the prior notice of which had been duly given. In the course of hearing the objection, Mr Kalunga conceded to some of the points raised, and upon his application I granted an adjournment to enable him to submit an amended proper Notice of Motion on or before 1 July 1998, with an order for resumed hearing on 8 July 1998. It turned out that 8 July 98 was a public holiday and so the hearing was later re-scheduled. When the hearing was resumed on 23 July 1998, Professor Fimbo objected to the amended Notice of Motion on the ground, *inter alia*, that a copy of it was not served on him, or the other two advocates representing the respondent, in compliance with rule 52 of the Court of Appeal Rules which says that:

> 52(1) The Notice of Motion and copies of all affidavits shall be served on all necessary parties not less than two clear days before the hearing.

Professor Fimbo stated that the amended Notice of Motion was received by their side only on 20 July 1998, when it should have been served on 6 July 1998. Professor Fimbo's second point of objection which was readily conceded by Mr Kalunga was that the amended Notice of Motion is not so titled; it is titled simply "Notice of Motion". On these grounds Professor Fimbo applied to have the amended Notice of Motion struck out.

In the alternative, the learned counsel submitted that once Kileo, J., struck out the applicant's application for leave to appeal, it was

not open to him to come to this court by way of further application, and that as far as the document purports to be an appeal against the ruling of Kaji, J., the whole exercise was misconceived because no leave has been obtained or sought to appeal against that ruling.

In response Mr Kalunga submitted that once the resumed hearing of the application was set for 23 July 1998 he was justified to serve the amended Notice of Motion on the other side on 20 July 1998 because in terms of rule 52 that was within".... Not less than two clear days before the hearing". I tend to agree with Mr Kalunga here. I think that the expression"... before the hearing appearing in rule 52(1) should be taken to refer to the hearing date as re-scheduled. For, it seems to me that rule 52(1) was designed to ensure that the party who is to be served with the documents in question has sufficient or reasonable time to study those documents. Thus had the hearing in this case proceeded on 8 July 1998 as originally fixed, the objection would, in my opinion, have merit because the respondent then would not have the stipulated time at his disposal to study the documents. However, the application having been re-scheduled for hearing on 23 July 1998, Mr Kalunga was justified to serve the respondent's counsel with the copy of the amended Notice of Motion on 20 July 1998, which gave two clear days before the matter came on for hearing after the re-scheduling.

As conceded by Mr Kalunga himself, the amended Notice of Motion should have been so titled but I am prepared to say that the omission is not so serious as to warrant the striking out of the document.

Responding to Professor Fimbo's alternative submission, Mr Kalunga maintained that after his application for leave to appeal was struck out by Kileo, J. he was perfectly entitled to come to the Court of Appeal by way of further application for leave to appeal. As far as his appeal against the Ruling of Kaji, J. is concerned, Mr Kalunga did not show that he had obtained or sought leave to appeal against it.

In order to fully appreciate the confused nature of Mr Kalunga's application, it is necessary to reproduce his amended Notice of Motion which he filed after I had granted him leave to do so:

IN THE COURT OF APPEAL OF TANZANIA

AT DAR ES SALAAM

In the Matter of an Intended Civil Application Number 15 of 1998

Between

ITAL African Transporters Ltd ... Applicant/Plaintiff

Versus

Giafar Mohamed Beder ..... Respondent/ Defendant

In the Matter of an Intended Appeal Civil Case Number 160 of 1993

Between

Ital African Transporters Ltd ..... Plaintiff

And

Giafar Mohamed Beder ..... defendant

Appeal from the ruling of the High Court of Tanzania at D.S.M. Kaji J. dated 4 December 1997 and delivered on 12 December 1997 in Civil Case Number 160 of 1993.

NOTICE OF MOTION

As ordered by Kisanga J.A. on 29 June 98

TAKE NOTICE that on ... the day of ...1998

At 9:00 o'clock in the morning or as soon thereafter as he can be heard Mr L.T. Kalunga, learned advocate for the above-named applicant, will move a judge of the court for an Order that:

(1) Refusal of Kileo J. granting leave to appeal to the Court of Appeal be reversed.

(2) Leave to appeal to the Court of Appeal be granted on the grounds that:

(i) The learned judge misdirected herself on the meaning and effect of rule 43(a) of the Tanzania Court of Appeal Rules 1979 and its applicability to the High Court.

(i) The learned judge misdirected herself on applicability and citation of the Appellate Jurisdiction Act 1979 in the Chamber Summons of the High Court.

(1) The Ruling of Kaji J. is flooded in serious legal errors in that:

(i) The added parties were added without their knowledge and/or consent in violation of Order 1, rule 10(3) and Order VI, rule 17 of the CPC 1966.

(ii) The amended Written Statement of Defence containing a "counter-claim" for which a ruling was given in favour of the defendant to proceed *ex-parte* was filed against a non-existent plaint of the "plaintiffs."

And for an Order that the costs of and incidental to this application abide the results of the said application. The application will be supported by the affidavit of L.T. Kalunga, Esq; Advocate.

L.T. Kalunga

Advocate for the applicant

Professor Fimbo pointed out that the format for bringing applications to the court is provided in Form A of the first schedule to the Court of Appeal Rules, but that Mr Kalunga's amended Notice of Motion is not in conformity therewith. This criticism is not without justification. For instance, the contents of numbers (1) and (3) of this document constitute a most unconventional way of framing prayers to be made in a Notice of Motion. It is accordingly emphasized that where a law or rule provides the mode or the way for the doing of anything, attempt should be made as far as possible to comply therewith.

It seems to me that the crucial question for determination in this matter is: What remedy was open to the applicant after Kileo, J. had struck out his application for leave to appeal to this court? Was it open to him to come to this court by way of a further application or to appeal to this court against the order of striking out that application? Professor Fimbo submitted that only the latter remedy was available but Mr Kalunga strongly maintained that either remedy was open to him, and that he chose the former.

Kileo, J. struck out the application for being incompetent in that the application was not properly before her, and that rendered her without jurisdiction to hear it. In other words the purported application was something which did not exist in law and which therefore, she could not entertain. So that in law there has been no application to the High Court for leave to appeal. The purported application before me, therefore, is not properly before me because it contravenes the provisions of rule 44 of the Court of Appeal Rules which requires that such application be made before the High Court first. In terms of that rule the applicant must have made a valid application to the High Court before coming to knock on the door of this court; it is not enough merely to show, as in this case, that a purported application was made to the High Court. The purported application before me, therefore, is incompetent, and that is a sufficient ground for striking it out.

Perhaps it is pertinent to point out that if Mr Kalunga considered himself aggrieved with the reasoning of the learned judge for striking out his application for leave to appeal, he was not without remedy. It was open to him to appeal to this court against that decision, after obtaining the necessary leave to do so of course, but certainly not to make further application to this court because he had made no valid application to the High Court in the first instance.

With that remark I conclude the matter by upholding Professor Fimbo's preliminary objection. For the reasons set out above, I hold that the purported application for leave to appeal is incompetent, and it is accordingly struck out with costs.

TANZANIA TRANSCONTINENTAL TRADING COMPANY *v.* DESIGN PARTNERSHIP LTD.

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

CIVIL APPLICATION No. 62 OF 1996

(Application for Review from the Judgment of the Court of Appeal of Tanzania at Dar es Salaam (Ramadhani, Mnzavas and Lubuva, JJ.A.), in Civil Appeal No. 28 of 1996, dated 2 October 1996)

Court of Appeal – Review Powers – Circumstances in which Court Appeal may review its own decision – Whether list of such circumstances is closed.

Court of Appeal – Review Powers – Bench of three judges – Whether the Court of Appeal consisting of three justices may extend the list of circumstances for review beyond those stated by the full bench.

Court of Appeal – Review Powers – Full Bench of the Court of Appeal – Circumstances in which only the full bench may exercise review powers.

Court of Appeal – Review Powers – Condition precedent for invoking review powers of the court.

This was an application to the Court of Appeal to review its previous decision on the ground that the advocate for the applicant who had argued the appeal previously had overlooked important points of law and fact, and misdirected himself by abandoning the main relief sought in the appeal, namely, to ask for an order vesting the suit land in the applicant. It was argued that the abandonment was done without the applicant's approval, resulting in a judgment with manifest injustice to the applicant. In response, it was argued that the application for review was incompetent as it did not fall within the list of grounds for review as set out by the court's full bench in *Transport Equipment Ltd v. Devram P. Valambhia* (1), and that the full court was not competent to consider any additions to the grounds established by the full bench.

Held: (i) The court, consisting of three justices of appeal, has jurisdiction to review any decision of the court, including that of the full bench;

(ii) Where, firstly, there are conflicting decisions of the court making it necessary to decide which of them is the correct law and, secondly, where the court is considering

to depart from its own previous decision, then the review powers may be exercised only by the full bench;

(iii) The court will not readily extend the list of circumstances for review because the court's power of review ought to be exercised very sparingly and only in the most deserving cases, bearing in mind the demands of public policy for finality of litigation and for certainty of the law as declared by the highest court of the land.

(iv) Where review is sought it must be established as a condition precedent that a wrong has been committed or an error has been made, and that review is being sought in order to redress the same.

Application refused

Cases referred to:

(1) *Transport Equipment Ltd v. Devram P. Valambhia*, 1998 T.L.R. 89

(2) *Poole v. R*, [1960] EA 62

(3) *Richard William Sawe v. Woitara Richard Sawe*, CAT., Civil Application Number 32 of 1994 (unreported)

Mr C. Tenga, for the Applicant

Prof Fimbo, for the Respondent

RULING

(Dated 06 August 1998)

KISANGA, J.A.: This is an application to this court to review its own judgment in Civil Appeal Number 28 of 1996 in which the applicant lost to the respondent. When the matter came on for hearing the first time, the court heard arguments advanced on a preliminary objection that the review was incompetent. The preliminary objection specifically alleged that the ground on which review was being sought did not fall within the instances for review as set out by this court in the case of *Transport Equipment Ltd. v. Devram P. Valambhia* (1) hereinafter to be referred to simply as *Valambhia's* case. In the course of that

preliminary objection, arguments centered on whether the list of instances or circumstances for review as set out in that decision was exhaustive and, overruling the objection, the court on 16 March 1998 held that the list was neither exhaustive nor closed. The relevant portion of that ruling reads:

> ... our interpretation and understanding of that decision is that the list of circumstances warranting the court's review of its own decision as stated therein is neither exhaustive nor closed. We think that those were the circumstances which came to light as a result of the research and survey that was carried out at the time. In that case, we do not think that it could be stated conclusively that those are the only circumstances in which this court could invoke its inherent powers of reviewing its own decision. For it is quite possible that with further research under changing circumstances, other equally suitable circumstances warranting the court's review of its own decision could well be brought to light. In that way, the list of circumstances stated in *Valambhia's case* would likewise change. From that point of view, we are respectfully not in agreement with Professor Fimbo's submission that the list is closed.

At the resumed hearing leading to the present ruling, the parties were represented by the same advocates who had argued the preliminary objection; they were Mr C. Tenga, learned advocate for the applicant and Professor M. Fimbo who advocated for the respondent. The Notice of Motion states that the court is being asked to review its decision in this case on the ground.

> That the advocate for the applicant in Civil Appeal Number 28 of 1996 either by accidental slip, mis-conception or deliberate omission overlooked important points of law and fact on the record thereby abandoning without instructions and approval of the applicant the most important and main relief sought by the applicant in the appeal thereby resulting in manifest injustice to the applicant.

On his submission, Mr Tenga seemed to waver or prevaricate somewhat. If we understood him correctly, he was saying that the advocate's error or mistake of overlooking important points of law and fact on

the record leading to the court rendering a judgment which resulted in manifest injustice to the applicant, either constituted a new circumstance warranting review, or that it amounted to one of the settled circumstances warranting review as spelt out in *Valambhia's* case, namely, an error which was manifest on the face of the record.

Before going into the merits of this ground it is necessary first to consider Professor Fimbo's related submission that this court as presently constituted by only three justices of appeal has no competence or jurisdiction to consider adding to or extending the list of circumstances for review beyond those spelt out by the full bench in *Valambhia's* case. According to him that issue can only be considered by full bench of the court which originally settled the list. Thus it becomes necessary to determine this point first because if Professor Fimbo is right, then it would be pointless for us to dwell on whether or not the error or mistake alleged in the Notice of Motion constitutes a new ground for review over and above those set out in *Valambhia's* case; we would have to reserve the issue for consideration by full bench.

Professor Fimbo could not cite any authority for the proposition that full court consisting of three justices of appeal has no jurisdiction to extend the grounds for review beyond those mentioned in *Valambhia's* case. Nor could we find any such authority ourselves. For our part, we could not accept his argument. We think that full court consisting of three justices of appeal have jurisdiction to interpret any decision of the court including that of full bench. A full court has competence or jurisdiction to interpret statutory law including the Constitution, which is the supreme law of the land, we can hardly find any justification for saying that such a division of the court is precluded from interpreting a judicial precedent. We feel certain that a full court has jurisdiction to interpret any decision of the court, including that of full bench. And as far as *Valambhia's* case is concerned, being a decision of full bench, a full court can, in the course of interpreting it, extend it in a fit case, beyond those circumstances for review enumerated therein. We need to emphasize, however, that the court will not readily

extend the list of circumstances for review, the idea being that the court's power of review ought to be exercised very sparingly and only in the most deserving cases, bearing in mind the demand of public policy for finality of limitation and for certainty of the law as declared by the highest court of the land.

The view that full court has jurisdiction to interpret any decision of the court is subject to two recognized exceptions. These arise first, where there are conflicting decisions of the court, which makes it necessary to decide which of them is the correct law. The second exception arises following the decision in *Poole v. Republic* (2) which laid down in effect that where the court is considering to depart from its own previous decision, it is obviously desirable that if practicable the matter be considered by a full bench. In these circumstances the matter is to be decided by full bench. But in the instant case neither of the two situations arose. There was certainly no question of any conflicting decisions of the court. The question of the court departing from its own previous decision did not arise either. Rather the issue here was that of extending the rule in *Valambhia's* case to cover a new or additional circumstance warranting review by High Court of its own decision. It seems plain to us that the question of the court departing from its own previous decision and the issue of extending the application of its decision are two different things; the former involves full bench in that according to *Poole's* case cited above it is obviously desirable that if practicable the issue of the court departing from its own previous decision be considered by full bench. But we are firmly of the opinion that the issue of extending the application of the court's decision does not require or make it desirable that it be considered by full bench.

In yet in another dimension Professor Fimbo took the view that currently, there are two conflicting views or decisions of the full court on this issue, which makes it necessary to have the matter reserved for consideration by a full bench. He referred to the decision of this court dated 16 March 1998, overruling his preliminary objection to this very application in which, as already stated, it was held that

the list of circumstances for review by this court, of its own decisions as set out in *Valambhia's* case, was not closed. As against this, the learned counsel referred us to another decision also of a full court in *Richard William Sawe v. Woitara Richard Sawe* (3) where, according to Professor Fimbo, it was held that the list was closed. In that case this court refused the applicant's Notice of Motion to it to review its own decision which had gone against him. In so doing the court said:

> This court can only be moved to exercise its review jurisdiction which is inherent not statutory in the following situations:
>
> (a) Where there is a manifest error apparent on the (face of) the record.
>
> (b) Where it is established that the court acted without jurisdiction.
>
> (c) Where it is established that the judgment was obtained by fraud.
>
> (d) Where it is established that one of the parties was condemned unheard.

It seems to us that Professor Fimbo's alleged conflict between *Sawe's* case and the said court's ruling of 16 March 1998 is more apparent than real. When deciding *Sawe's* case the court, undoubtedly had *Valambhia's* case in mind although it did not say so expressly. This is so because at that time *Valambhia's* case was the only authority on the power of this court to review its own decisions. And all that the court said there was that as the law stood then, the court would review its own decision only in the circumstances enumerated in *Valambhia's* case, but that Mr Sawe, the applicant, had not put forward any ground which fell within the scope of the list in *Valambhia's* case. There the court was not considering whether the ground advanced by Mr Sawe could or could not constitute a ground for review beyond those listed in *Valambhia's* case. In other words the court was not concerned with, and it was never invited to consider, whether the list in *Valambhia's* case was exhaustive or not, but rather with whether what the applicant had put forward as a ground for review did fall within that list or not. In the said ruling of 16 March 1998, however, the court specifically dealt with the question whether or not that

list was exhaustive or closed, and it held that the list was neither exhaustive nor closed; that is currently the law on that point.

It is significant to note that the said ruling of 16 March 1998 was delivered only five days after the ruling in *Sawe's* case dated 11 March 1998 which means that the two rulings were given independently of each other. Again it is noted that the ruling in *Sawe's* case was very short, covering hardly one full page, which re-affirms the view that the court did not consider the question of extending the list in *Valambhia's* case. In contrast the ruling dated 16 March 1998, in which that question was specifically considered, is a long one, covering seven pages, which in our view, increasingly suggests that if the court had considered that question in *Sawe's* case it is most unlikely that it would have come to a conclusion different from that contained in its ruling of 16 March 98.

Even if we were to uphold Professor Fimbo's submission that this court's ruling in *Sawe's* case dated 11 March 1998 and that of 16 March 1998 were in conflict, we think that the matter could not be resolved by adjourning this application for cosideration by full bench as urged by Professor Fimbo. Because assuming, for instance, that the ruling of 16 March 1998 which was given in the course of this application number 62 of 1996, did not represent the correct law, it would not be proper to consider the matter and declare the correct law in this very Application Number 62 of 1996. To do so would appear to infringe upon the principle of the need for finality of litigation. The practice adopted by the court so far has been to deal with the matter in a subsequent case where that issue is raised. In the context of the present case the matter would have to wait until another case comes up in future which raises the question whether or not the list of circumstances for review as spelt out in *Valambhia's* case is exhaustive or closed.

Having decided that a full court constituted by three justices of appeal have competence or jurisdiction to extend the list of circumstances for review as spelt out in *Valambhia's* case, we now turn to consider

whether the ground put forward in the applicant's Notice of Motion constitutes one such ground which warrants extension of the said list of circumstances. The said ground put forward by the applicant was reproduced earlier in this ruling, and the thrust of it is the applicant's own advocate improperly and without the applicant's approval abandoned the main relief sought in the appeal, thereby leading to the court giving judgement which resulted in manifest injustice to the applicant. It is at once apparent that the first question that arises for determination is whether the said advocate of the applicant acted improperly as alleged. In an attempt to establish this the applicant filed a total of three affidavits. The first two were sworn by Mr Jack Briller, the Managing Director of the applicant's company and Mr William Mwakasungula of Mwakasungula and Co. Advocates who had been retained to conduct the appeal. Their evidence is to the effect that the applicant had specifically instructed his counsel to ask for an order vesting the suit land into the applicant, but that Mr Mwezi Mhango of the same firm of Mwakasungula and Co. Advocates who actually argued the appeal abandoned that prayer.

The third affidavit was deposed to by Mr Mhango himself. Paragraphs 4, 5, 6 and 7 of his affidavit are very pertinent and are reproduced hereunder:

> 4. In the course of arguing the appeal I realized [that] ground number six which was in respect of 40% interest was neither supported by the prayers in the plaint filed by Donaldson and Wood nor by the evidence adduced before the trial court. I was also unable to see any amended plaint which contained any prayer of interest at 40% per annum. As a result of this I abandoned the [prayer] numbered (c) as far as it related to the order sought in respect of interest at 40% interest on the ground that I was bound by the pleadings filed in the High Court.
>
> 5. Further, I discovered from the record that evidence had been led at the trial that by the time the case came to trial the space in dispute had already been re-allocated to African Journal Ltd. This evidence appears on page 41 lines 15 to 17 where Exhibit P16 is produced;

page 46 from line 34 onwards up to the following page and Exhibit P16 which on page 71 of the record from the respondent to the appellant which informed the appellant of the re-allocation to African Journal Ltd.

6. Since the space in dispute had been allocated to African Journal Ltd. which was not a party to the suit which ended in the Court of Appeal in the form of this appeal I was of the opinion, possibly wrongly, that the issue of specific performance could not be pursued against the respondent who was no longer in a position to hand over the said area without African Journal Ltd., being given an opportunity to be heard.

7. In making the decision to drop the prayers in (b) and (c) in the Memorandum of Appeal I acted on my own for the reasons I have stated above and did not consult any officer of the appellant company or any other person. I based my decision purely on what is contained in the Record of Appeal and on my understanding of the law.

Our understanding of these paragraphs is that Mr Mhango does not admit that he acted improperly in taking the decision he did. Nor are we prepared to say that on information which was before him he acted improperly. Mr Tenga strenuously contended that had Mr Mhango consulted the applicant, he would have realized that the suit land had not been re-allocated to anyone, in which case he would not have abandoned the prayer for vesting such suit land in the applicant. With due respect to the learned counsel, however, we could find no basis for this submission. For, according to paragraphs 5 and 6 of Mr Mhango's affidavit the evidence in there cord of appeal is that the suit land had been re-allocated to African Journal Ltd, who were not a party to the suit. That averment by Mr, Mhango has not been contradicted or challenged in any way. Then the question is: What should have prompted Mr Mhango to consult the applicant on this point and solicit information which contradicted the Record of Appeal? In other words so long as the correctness of the Record of Appeal was not impeached, there was no reason for Mr Mhango seeking or

accepting information from the applicant, or indeed from anyone else, to contradict the Record of Appeal which clearly shows that the suit land had been re-allocated to a person who was not a party to the suit.

Mr Mhango was neither challenged nor contradicted when in paragraph 7 of his affidavit he stated that he based his decision purely on what was contained in the Record of Appeal and on his understanding of the law. Professor Fimbo submitted before us that indeed that is what senior counsel should have done, and we are inclined to agree. For, when in paragraph 6 of his affidavit Mr Mhango says that since the suit land had been handed over to third parties he "... was of the opinion, possibly wrongly, that the issue of specific performance could not be pursued against the respondent ...," he is simply saying that he based his decision on the opinion which, it is now being alleged, was wrong. But in our view, he is not acknowledging that his opinion leading to that decision was necessarily wrong.

Admittedly the applicant's instructions to counsel were to ask for the vesting of the suit land in the applicant. However, it has not been alleged that the applicant, in addition, restricted the powers or authority of his counsel in dealing with the appeal. The applicant continued to recognize his counsel as his agent who had the full conduct of the appeal. In conducting the appeal, Mr Mhango, as an advocate, was supposed to take decisions based on the Record of Appeal and on his own understanding of the law, which is exactly what he did. If, in the course of arguing the appeal, he discovered that the evidence did not support the prayer as instructed by the applicant, we think that he was not obliged to have recourse to the applicant before taking the decision he did. In our view, he rightly took a decision which was in consonance with the evidence on record, and in so doing he was not acting outside the scope of his authority as was submitted by Mr Tenga. For, as an advocate having the conduct of the appeal he had a duty not only to safeguard the interests of his client, but also to make correct representations before the court. Mr Mhango would not be discharging this latter duty, and indeed he

would be misleading the court, if he had pressed for the vesting of the suit land in his client knowing, as he did, that the evidence before the court went contra to the prayer. In short, in our view, Mr Mhango acted professionally.

Thus we are satisfied that no case has been made out showing that Mr Mhango acted improperly in abandoning the prayer for the vesting of the suit land in the applicant. In arriving at this conclusion we take note of Mr Tenga's disclosure at the hearing of this application that it was no longer intended to make submissions about Mr Mhango's decision to abandon the prayer for 40% interest p.a. on the sum of TZS. 1 028 071-70 as per paragraph 8 of the applicant's affidavit. For, if Mr Mhango's decision to abandon that prayer is no longer complained of, because no doubt it was proper, we could not see how his decision to abandon the prayer for vesting the suit land in the applicant can be said to be improper because both decisions were based on non-availability of material on record to support the prayers.

Thus in the absence of any finding that Mr Mhango acted improperly, then the question whether or not a circumstance exists which would warrant review does not arise. For, where review is sought, it must be established, as a condition precedent, that a wrong has been committed or an error has been made, and that review is being sought in order to redress the same. But in the instant case, as already demonstrated, the allegation that Mr Mhango acted wrongly in abandoning the prayer has not been established. Thus we can find no material in the applicant's Notice of Motion, for consideration whether a new circumstance exists or has emerged which would warrant extending the circumstances for review by the court of its own decision beyond those as enumerated in *Valambhia's* case.

Likewise Mr Tenga's alternative view that Mr Mhango's wrongful decision constituted or led to an error manifest on the face of the record is equally untenable because, as stated before, it has not been established in the first place that Mr Mhango acted wrongly in abandoning the prayer in question. Perhaps we should mention that there were long and interesting arguments than those made by the court, and

whether or not errors or mistakes by counsel can constitute a ground for review. But since it was not established that counsel, or indeed anyone, had committed an error in the instant case, we think that it would be of no practical value to decide on such matters.

In the result, and for the reasons set out above we refuse the application with costs to the respondent.

PEOPLES' BANK OF ZANZIBAR v. NAUSHAD MOHAMED SULEIMAN

HIGH COURT ZANZIBAR
At Vuga
(Dahoma, J.)

CIVIL CASE No. 23 OF 1997

Civil Practice and Procedure – Suits – Withdrawal of suits – Oral application for withdrawal of suit – Order XXVII, rule 1 of the Civil Procedure Rules.

Civil Practice and Procedure – Withdrawal of suit – Liberty to bring a fresh suit after withdrawal – Order XXIII, rule 2 of the Civil Procedure Rules.

Limitation of time – Limitation of time for suits – Computation of time of limitation for a suit previously – Items 34 and 52 of the schedule to the Law of Limitation Decree Chapter 12.

A suit filed in the High Court of Zanzibar and was withdrawn, upon an oral application to withdraw, even before a written statement had been filed by the defendant. It was subsequently argued that the withdrawal of that suit did not bar the plaintiff from bringing a fresh suit on the same matter, and that the new suit was not time barred as it was based on fraud and therefore fell under Item number 34 of the Law of Limitation Decree Chapter 12. It was noted that the leave to withdraw the suit granted was not accompanied with liberty to bring a fresh suit.

Held: (i) Permission to withdraw a suit with liberty to institute a fresh suit on the same subject matter contemplated under Order XXIII, rule 2 of the Civil Procedure Decree is required to be specifically sought and granted by an order;

(ii) The plaintiff is precluded from instituting any fresh suit in respect of the same subject matter because the suit was withdrawn without the leave to file a fresh suit;

(iii) This case is not based on fraud but is a clear case of negligence on the part of the employees of the plaintiff who cannot escape the blame; as such, the claim does not fall under item 34 of the Law of Limitation Decree, Chapter 12 of the Laws of Zanzibar, and is time barred under item number 52 of that law, which prescribes three years.

Suit dismissed with costs

Statutory provisions referred to:

(1) Civil Procedure Rules, Order XXVII, rule 1 and rule 2

Mr Mbwezeleni, for the Defendant

RULING

(Delivered 12 August 1998)

DAHOMA, J.: In this suit, the plaintiff filed a suit by presenting a plaint in the High Court being Civil Case Number 13 of 1995 on 15 June 1995 and as is provided by Order V, rule 12(a) and (b) of the Civil Procedure Rules, a summons was issued and served on the defendant ordering him to appear and answer the claim on a day therein specified.

Under Order VIII, rule 1 the court required the defendant to present a Written Statement of Defence. Before the defence was lodged the plaintiff applied orally to withdraw the suit under order XXVII, rule 1 as per directives from shareholders (Ministry of Finance.)

At the request of the plaintiff the suit was marked withdrawn on 12 February 1996. On the 20 November 1997 the plaintiff brought a fresh suit against defendant on the same subject matter demanding

repayment of USD 429 793 70. This suit was objected to by counsel for defendant. It was agreed by both side to file written submissions.

Counsel for plaintiff pleaded in his submissions that the prayer for withdrawal had the meaning of prayer for indefinite withdrawal which is the same as *sine die*, and the order of the Registrar was null and void and the suit was not time barred. This was a clear case of withdrawal under Order XXVII, rule 1 and the Registrar of the High Court under L1 Rules may exercise the powers and duties of a judge or a magistrate and may pronounce judgments, pass and sign decree and make orders and transact the business of the High Civil in the case referred to in the Order XXIII and rule (3).

Leave to withdraw the suit was not accompanied with liberty to bring a fresh suit. Permission to withdraw with liberty to institute a fresh suit contemplated under Order XXIII, rule (2) is required to be specifically granted by an order. Even on the assumption that the order was improperly made, it is conclusive between the parties, because however erroneous it might be deemed to have been, it cannot rightly be regarded as made without jurisdiction or does not indicate total want or loss of jurisdiction so as to render the order a nullity.

I therefore think neither of the authorities referred to by counsel for plaintiff could assist in this case because this was a case withdrawn without liberty to file a fresh suit. The application by the plaintiff to withdraw the case was in effect a confession that upon the law as it then stood the plaintiff would not be able to give evidence which would entitle him to succeed. The principle under Order XXIII, rule 1(3) is founded on public policy to prevent institution of suit again and again on the same cause of action.

Counsel for plaintiff alleged in his written submission that this case is based on fraud. It cannot be said that this case is based on fraud. I find it most difficult to hold that the conduct of the defendant amounted to fraud. I ought to say that from the plaint, it is a clear case of gross negligence on the part of the employees of the plaintiff and they cannot escape the blame. The plaintiff's written submission

in reply to defendant's preliminary objections does not appear to merit serious consideration. I think it should be regarded as a failure of this suit.

Now, for the purpose of considering the question of limitation the claim is time barred. The ground here alleged is the long delay amounting to lathes on the part of the plaintiff in instituting the suit. The plaintiff shall be bound by the law of limitation as if the first suit had not been brought. This would be sufficient to bar the plaintiff from succeeding in this action.

Item number 34 of the law of limitation cited by the counsel for plaintiff in his written submission is not at all relevant in this case because the said item deals with specific movable property lost or acquired by theft or dishonest misappropriation or conversion or compensation for wrongfully taking or retaining the same. But item number 52 of the Law of Limitation which deals with money payable to the plaintiff or money found to be due from the defendant to the plaintiff on accounts stated between them is applicable in this case and the claim is time barred by reason of item number 52 which provides the period of three years.

For the above reason, the suit is dismissed on the ground that the plaintiff is precluded from instituting any fresh suit in respect of such subject matter because the suit was withdrawn without the liberty to file a fresh suit and the claim is time barred under item number 52 of the Law of Limitation Chapter 12, which is the period of three years. Suit is dismissed with costs.

AUGUSTINO LYATONGA MREMA *v.* REPUBLIC AND DR. MASUMBUKO LAMWAI

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CRIMINAL APPEAL No. 1 OF 1998

(From the decision of the High Court of Tanzania at Dar es Salaam, Nsekela, J., dated 18 December 1997, in Miscellaneous Criminal Application No. 37 of 1997)

Court of Appeal – Powers of Revision – Conditions for invoking the court's Powers of Revision – Section 4 of the Appellate Jurisdiction Act 1979.

The applicant applied to the Court of Appeal for revision of the order of the High Court striking out an application for incompetence. It was argued that what the applicant was complaining against was appellable at the conclusion of the trial and the application under consideration was premature.

Held: (i) To invoke the Court of Appeal's power of revision there should be no right of appeal in the matter; the purpose of this condition is to prevent the power of revision being used as an alternative to appeal;

(ii) The applicant has not made out a case to move us to exercise the revisional jurisdiction of this court under section 4(3) of the Appellate Jurisdiction Act of 1970.

Application dismissed

Statutory provisions referred to:

(1) Appellate Jurisdiction Act of 1970, section 4(3)

(2) Appellate Jurisdiction Act 1979, section 4

Mr Mbuya, for the Appellant

Miss Munisi, for the first Respondent.

RULING

(Dated 14 August 1998)

MFALILA, J.A.: This is an application seeking to move this court to exercise its revisional jurisdiction under section 4 of the Appellate Jurisdiction Act 1970 as amended by the Appellate Jurisdiction (Amendment) Act 1993. The applicant wishes this court to revise the proceedings, ruling and order of the High Court of Tanzania at Dar es Salaam (Nsekela, J.) in Miscellaneous Criminal Application Number 37 of 1997. This application for the exercise of revisional powers of this court was made upon the appeal of the applicant being struck out for incompetency. It appears that the applicant was wholly dissatisfied with the outcome of his Miscellaneous Criminal Application in the High Court. He told this court that he is making this application so that the court can exercise its revisional jurisdiction under section 4(2). But we thought this was an obvious slip on Mr Mbuya's part, for this court can only exercise powers under that sub-section in the course of hearing an appeal. As it is, there is no appeal before us, we are therefore left with subsection (3).

Both Dr. Lamwai, the second respondent, and Miss Munisi learned State Attorney opposed this application. The second respondent complained that apart from the irregular nature of the application, it was simply a delaying tactic by the applicant who wishes to bring through the back door what had been barred by the front door, and that there is an urgent need to go back to the trial court and have this matter finalized without undue delay.

Miss Munisi added a new element after referring to previous decisions of this court on the exercise of revisional powers under sub-section (3) that one of the conditions is that there should be no right of appeal against the matter being complained against. She added that what the applicant is complaining against now is appellable subsequently at the conclusion of the trial, so she advised the applicant to exercise patience until the end of the trial.

The views of this court on the use of revisional powers under sub-section (3) have been expressed in a number of decisions and one condition expressed in these views is as Miss Munisi has rightly pointed out that there should be no right of appeal against the matter. The purpose of this condition is to prevent the provisions of this sub-section being used as an alternative to appeals. In the matter now before us, there is a right of appeal even if not at the present time. Therefore, if the applicant exercises a little patience, he will get what he is now seeking at the conclusion of the trial if the need arises. As it is now, the application for revision is premature.

We are therefore satisfied that the applicant has not made out a case to move us to exercise the revisional jurisdiction of this court under section 4(3).

Accordingly, we dismiss this application with an order that the record should be returned to the District Court for the trial to proceed from where it was interrupted. The trial will proceed as ordered in the ruling of Nsekela, J.

FRANCESCO TRAMONTANO *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Kalegeya, J.)

CRIMINAL REVISION No. 14 OF 1997

(From the Dar es Salaam Resident Magistrate's Court at Kisutu, in Miscellaneous Criminal Application No.1 of 1997)

Criminal Practice and Procedure – Witnesses - Recalling of a witness on accused's demand – Whether magistrate has discretion to refuse - Section 214(2)(a) Criminal Procedure Act.

Extradition – Minister's order to court for arrest and detention of fugitive – Court compliance with Ministers order - Whether lawful - Section 5(1) of Extradition Act 1965.

Extradition – Bail – Consideration of grant or refusal of bail in Extradition Cases.

There was a change of magistrates after the first witness had testified in extradition proceedings. A demand was made by the applicant to recall the witness, but the magistrate refused to do so on the ground that the previous magistrate having made no remarks about demeanour of the witness in the record, it followed that he had been satisfied with the witness' demeanour, and therefore, there was no need to recall the witness. The applicant is challenging the decision of the magistrate as well as his arrest on the order of the Minister of Home Affairs to the Kisutu Resident Magistrate's Court, and the bail conditions imposed upon him.

Held: (i) the section in the Criminal Procedure Act relating to recall of witnesses does not apply to extradition proceedings;

(ii) it was illegal for the Magistrate to have issued a warrant for the arrest of the fugitive on the basis of the Minister for Justices' order alone to him to issue the warrant. He must have some evidence, however informal, before issuing it. But in this case this error was not fatal because such evidence was soon brought to the Magistrate in the form of documents;

(iii) when it comes to extradition, there is a strong presumption against bail, which could be displaced if and only if, there is extremely strong evidence of circumstances special to the fugitive suggesting that he should get bail.

(iv) ***Obiter:*** Where an accused makes a demand to recall a witness, the Magistrate has no discretion to refuse to recall him, even if he is convinced that the nature of the evidence does not so require.

Order accordingly

Cases referred to:

(1) *Republic v. Rajab Lemu Seng'enge* [1980] T.L.R. 166

(2) *Sadiki Abdallah Alawi v. Zulekha and National Bank of Commerce,* Civil Application Number 56 of 1997 (DSM Registry) (unreported)

(3) *In the Matter and Extradition of Nacif-Borge* 829 F Supp. 1210 (D. November 1993)

Statutory provisions referred to:

(1) Criminal Procedure Act 1985, section 214(2)(a)

(2) Extradition Act Number 15 of 1965, sections 5(1) and 7(1)

(3) Civil Procedure Act, sections 150, 212 and 388

Mr Mwengela, for the Applicant

Mr Shaidi, for the Republic

JUDGMENT

(Dated 17 August 1998)

KALEGEYA, J.: The applicant, Francesco Tramontano, who is being faced with extradition proceedings under the Extradition Act 1965, before Kisutu Resident Magistrates' Court, has come to this court applying for the following orders:

1. That the ruling and Order of the Subordinate Court dated 1 August 1997 be revised for failure to make proper interpretation of section 214(2)(a) of the Criminal Procedure Act 1985.

2. That the whole proceedings of the Subordinate Court be quashed for being irregular in the following material particulars:

   (i) The proceedings are based on irregular requisition.

   (ii) The arrest of the accused was irregular.

   (iii) That the proceedings before the Subordinate Court are bad in law for the Extradition Act 1965 does not envisage proceedings against a person who is not formally charged in a court of law. (a mere suspect other than an accused or convict).

3. That bail conditions imposed by the subordinate court to the applicant on 22 April 1997 be varied and/or reduced as the same are oppressive and contain conditions which are per incuriam.

For easy appreciation of the issues a background leading to this state of affairs is necessary.

On 12 April 1997 acting under section 5(1) of the Extradition Act Number 15 of 1965, the Minister for Justice and Constitutional Affairs issued an order to Kisutu Principal Resident Magistrate for arrest and detention of applicant. For clarity, let it speak for itself.

To: The Principal Resident Magistrate,

Kisutu

DAR ES SALAAM

WHEREAS a request has been made by His Majesty's High Commissioner of the Kingdom of Belgium for the Extradition from the United Republic of Tanzania of Francisco Tromontano to Belgium to stand trial for offences of FORGERY, FRAUD and OBTAINING MONEY BY FALSE PRETENCES amounting to 110 million Belgium Francs (TZS. 2.2 billion) committed between 1990 and 1994;

NOW THEREFORE, I hereby require you to issue a Warrant for the arrest and detention of the said Francesco Tramontano.

GIVEN under my hand this 12 April 1997

Sgd: H. Bakari Mwapachu

MINISTER FOR JUSTICE AND CONSTITUTIONAL AFFAIRS

An arrest warrant was duly issued and applicant was apprehended and landed before the Kisutu Resident Magistrate's Court on 21 April 1997. After heated submissions by the defence led by Mr Mwengela, Advocate, on one side and Mr Shaidi, Principal State Attorney, on the other over an application for bail, the prayer was granted and applicant was released on bail on the following conditions. Again let the very wording in the court's order paint the picture:

1. The fugitive criminal will execute a bond of TZS. 100 million

2. There shall be produced three reliable sureties all Tanzanian and all resident permanently within the jurisdiction of this court. They shall each execute bonds of TZS. 50 million One of those sureties shall convince the court that he or she owns valuable immovable property of a value within the jurisdiction of this court.

3. The fugitive criminal shall deposit in court all travel documents and shall not leave the jurisdiction of this court without the prior written permission of this court.

4. To ensure that the fugitive criminal is available he shall report without fail thrice a week, i.e. every Monday, Wednesday and Saturday at the RCO , who shall register .... in an appropriate form.

Any failure to comply with any of these conditions shall lead to the cancellation of bail and forfeiture of bonds".

On 22 May 1997, a preliminary inquiry commenced by hearing the evidence of Ivo Moyersoen who identified himself as "an examining Magistrate and Vice President of the Tribunal of first Instance in Antwerp", Belgium, investigating the matter which involves the Applicant. His testimony followed by a lengthy cross examination covered 4 days – 22, 26, 27, 23 May1997. On 28 May1998 hearing was adjourned to 17 June 1997.

Unfortunately, Mr Kiwango, RM, who was presiding over this matter resigned from public service and it was re-assigned to Mr Mtotela, Principal Resident Magistrate. On 22 July 1997 Mr Mwengela, Advocate, prayed to have PW1 recalled under section 214(2)(a) of the Criminal Procedure Act arguing that it is his client's statutory right; urged the Magistrate to accept the prayer because "when the witness adduced evidence in court you were not in court and you do not know his credibility or demeanour" and also that they were challenging the bail conditions before the High Court.

The Principal Resident Magistrate dismissed the application holding (again for clarity, even at the danger of making this ruling unnecessarily long) thus,

The provisions of the act on demeanours are very clear. In order for a trial magistrate to rely on demeanours they must form part of the court record. This is what I understand from section 212 of Civil Procedure Act which I quote hereunder.

When a magistrate has recorded the evidence of a witness he shall also record such remarks, if any, as he thinks material respecting the demeanours of such witness whilst under examination.

This section is very clear and a trial magistrate has to record the remarks. The section does not suggest the converse that the magistrate should reflect demeanours in the course of writing a judgement which demeanours were not recorded after the conclusion of the evidence.

I have noted that the trial magistrate did not put any remarks with respect to demenours. That means he found PW1 fit and credible witness.

Section 214(2)(a) of Civil Procedure Act does not provide mandatory regulation as to the recall of witnesses when a case shifts to another trial magistrate. It says the accused may recall any of witnesses for the purpose of being reheard. It clearly shows that it is optional. In the circumstances it will be remembered that Mr Mchora for the fugitive was present and he did cross-examine. I do not see why PW1 should be recalled when he was present when he testified. I for one would like to say that I do not need to have PW1 recalled. I have gone through the testimony, I have understood what he said. Besides, the trial magistrate did not see demenours. Therefore, I see no reason why he should be recalled. This application is overruled and P.T.O. adding that the same court had power under section 150 Civil Procedure Act to vary bail conditions "If there is an application to do so." The above ruling prompted the applicant to apply for revision in terms indicated and quoted above hence the present ruling.

In support of the application Mr Mwengela, Advocate, submitted forcefully that while a magistrate who takes over a case from another Magistrate who has recorded evidence wholly or in part has power and discretion to act on the record or evidence recorded by his predecessor

or to resummon witnesses or order for trial or committal proceedings *de novo* under section 214(1) of the Criminal Procedure Act, 1985, he has no discretion but to allow the application once an accused decides to exercise his right of demanding the recalling of witnesses under section 214(2). He insisted that the difference is indicated by the words used: "may" in section 214(1) and "demand" in section 214(2). Further, he sought support in a treatise on **Indian Law, Digest of Criminal Procedure Code** by Chittalley (1966 Edition) which positively comments on a similar provision in their code before it was amended. Mr Mwengela again submitted that although section 214(2) Civil Procedure Act is silent about preliminary inquiries or committal proceedings that that should be taken to relate to committal proceedings in respect of offences falling under the Penal Code and other territorial law but not extradition proceedings which under section 7(1) of the Extradition Act have to be conducted as nearly as may be as in a preliminary inquiry because the said proceedings are more of a trial than committal proceedings as witnesses do testify. He finally attacked the definition attached by the Principal Resident Magistrate to the term "demeanour" under section 212 Civil Procedure Act that it does not mean "bad behaviour" as suggested by the Principal Resident Magistrate but it relates to a "way of behaving, conduct."

Regarding an argument on irregular requisition Mr Mwengela maintained that the Extradition Act does not provide for extradition of persons who are mere suspects – that it must be a fugitive criminal who has been convicted or charged before a court of law; that the applicant's arrest was also irregular as an arrest warrant against a fugitive criminal can only be issued when there is a Minister's order, evidence before a Magistrate and the latter's satisfaction in respect of the supporting evidence and proof of the existence of extradition treaty between the relevant countries. He asserted that the applicants' arrest was unlawful and irregular as he is just a suspect, there was no evidence before the Magistrate on which he could act and there is no proof of the existence of a treaty between Tanzania and Belgium, and that this misconceived and invalid proceedings should be quashed.

Finally, Mr Mwengela argued that the bail conditions imposed are gravely oppressive, unconstitutional and per *in curium* having taken away applicant's right to liberty, and more specifically the act of placing him into the hands of his adversaries (police) to whom he has to report thrice a week.

In an equally forceful counter submission Mr Shaidi, Principal state Attorney, argued that as per section 7 of the Extradition Act a Magistrate should conduct the proceedings as nearly as may be in a preliminary Inquiry while section 214(2)(a) Civil Procedure Act refers to a trial which proceedings are quite different from the one we have at hand; that even if it were to be positively considered, section 214(1), 214(2)(a) and 214(2)(b) should be read together as *vide* the latter sub-section the High Court has discretion to act or uphold proceedings where the Magistrate did not inform an accused of his right to recall witnesses – cited *R. v. Rajabu Lemu Seng'enge* (1). He stressed that to recall witnesses is wholly within the discretion of the Magistrate.

Concerning an alleged irregular requisition, Mr Shaidi, PSA, insisted that the applicant's arguments are based on Common Law system while the system prevailing in Belgium is continental or Roman Law system whereby an accused is brought first before the court of first instance where he has to face first the investigation Magistrate after which he would formally be charged before the court which would try him. He argued that as a fugitive criminal means a person accused or convicted of an extradition crime, and as a suspect includes an accused, and also as there is subsisting warrant of arrest against the applicant, the requisition proceedings are proper.

As for the alleged irregular arrest of applicant Mr Shaidi launched his attack by saying that the matter should have been raised before the subordinate court, adding that notwithstanding the non-enclosure of the arrest warrant and statements of evidence to the Minister's order, these were subsequently given to the applicant and that therefore if there was any irregularity it was curable, under section 388 Civil Procedure Act as it did not prejudice the Applicant.

For bail, Mr Shaidi insisted that the conditions set have to be looked at from the aspects that the sums involved are colossal (TZS. 2.2 billion) and the applicant is a foreigner.

In reply Mr Mwengela insisted that it is improper to lump together section 214(1), 214(2)(a) and 214(2)(b); distinguished *Seng'enge* case by saying that in that case proceedings had already come to an end and that extradition proceedings are not committal proceedings but could be dealt with as nearly as possible as is the case in committal proceedings and cited Civil Application Number 56 of 1997 *Sadiki Abdallah Alawi v. Zulekha S. Alawi and National Bank of Commerce* (unreported – DSM Registry).

I will tackle the issues raised in the same order they are presented.

In order to have a clear ambit of the arguments leveled on interpretation of section 214(2)(a) Civil Procedure Act it is pertinent that we examine its wording, and this can best be done by reproducing the relevant parts. The relevant parts read as follows:

> 214(1) Where any magistrate after having heard and recorded the whole or any part for the evidence in any trial or conducted in whole or party any committal proceedings is for any reason unable to complete the trial or the committal proceedings or he is unable to complete the trial or committal proceedings within a reasonable time, another magistrate who has and who exercises jurisdiction may take over and continue the trial or committal proceedings as the case may be and the magistrate so taking over may act on the evidence or proceeding recorded by his predecessor and, may in the case of a trial re-summon the witnesses and recommence the trial or the committal proceedings or otherwise subject to subsection (2)
>
> (2) Whenever the provision of subsection (1) applies:
>
> (a) *in any trial the accused may, when the such other magistrate commences his proceedings, demand that the witnesses or any of them be re-summoned and re-heard and shall be informed*

of such right by the second magistrate when he commences his proceedings;

(b) the High Court may, whether there be an appeal or not, set aside any conviction passed on evidence not wholly recorded by the magistrate before the conviction was heard, if it is of the opinion that the accused has been materially prejudiced thereby and may order a new trial". [Emphasis Supplied]

Now let us go into the arguments presented. With respect to Mr Shaidi, PSA, I cannot buy a proposition that both section 214(1) and 214(2)(a) have the same import as regards the re-summoning of witnesses. Once the accused makes a 'demand' that the witnesses be recalled the court cannot be said to have an 'option' (to use the word employed by the Principal Resident Magistrate) or 'discretion' as put by Mr Shaidi, PSA. To so hold would make the provisions of section 214(2)(a) superfluous and offend even the common meaning of the word "demand". If that were the intention of the Legislature, section 214(1) would have sufficed – the source of the wish to have witnesses recalled would not have mattered as in whatever form or in whatever manner the issue surfaced the determinant factor would have been the discretion of the court. However the legislature did not stop there – under, section 214(2)(a) it made it mandatory (the word used is 'shall') that the accused be informed of his rights to recall witnesses if he so wished; and once he is so informed and "demands" to have them recalled, the court has no discretion but to recall them. Again with respect to Mr Shaidi, PSA, section 214(2)(b) cannot be read together with the other subsections in order to get the interpretation of section 214 (1) because it deals with a different matter altogether. Under section 214(2)(b) the High Court, making its analysis of the evidence and finding based on evidence recorded by the predecessor magistrate may overturn the decision even if accused decided not to recall witnesses as indeed this may have been due to ignorance, timidity or indifference exalted by the facts of a particular case which the High Court finds to be contrary to the scales of justice considering the evidence recorded and the analysis

made thereof by the subordinate court. Clearly the *Rajab* case cited by Mr Shaid is irrelevant to this kind of situation.

The plain wording of section 214(2)(a) did not demand the level of the heated debate attained in this matter. However, in my view the current position of the Indian Criminal Procedure Code (after one 1955 amendment), as pointed out by the learned author and summoned by Mr Mwengela to his aid, *Chittalley* in the Digest referred to above needs to be introduced into our code. At page 2425, the learned author comments:

7. Proviso-Before the Amending Act 26 of 1955, the accused had a right to demand that the witnesses already examined before the previous magistrate, or any of them must be re-summoned and re-examined before the succeeding magistrate. This right has now been abolished, and whether witnesses or any of them should be re-summoned and re-examined is entirely left to the discretion of the succeeding magistrate.

This would guard against stubboin accuseds who wish to have witnesses recalled for the mere sake of it. This brings us to another observation regarding the ruling of the Principal Resident Magistrate attacked by Mr Mwengela. From the wording of his ruling already quoted above it comes out plainly, as pointed out by Mr Mwengela, that the said magistrate misconstrued the meaning of the word "demeanour" in section 212 Civil Procedure Act. A witness's demeanour refers to his general behaviour – the way he conducts himself while in a witness box cutting across the evidence he gives, response to questioning, whether evasive, affirmative, uncertainty, and goes even to his physical stature before the court – i.e. shaking, crying, smiling: the categories are unlimited, and it is a combination of all these factors taken together by the court in assessing whether to believe him or not that we use the word 'demeanour' in the legal world. Also it is not correct to say that a magistrate "must record demeanour" and that if no records are made it should be assumed that the witness is telling the truth! This is a wrong interpretation, in fact dangerous to the justice world, for the court decides on the totality of all the evidence tendered:

the first witness may seem credible on his face value only to be marked unreliable upon deposition of subsequent testimonies. Secondly, only deserving remarks need to be recorded by the court if it deems so important. Section 212 is clear on this:

> when a magistrate has recorded the evidence of a witness he shall record such remarks, if any, as he thinks material respecting the demeanour of such witness whilst under examination.

The purpose of recalling witnesses in a deserving case is to enable the succeeding magistrate to make assessment of the witnesses' demeanour. This however will depend on facts of a particular case. The succeeding Magistrate may upon going through the evidence recorded by his predecessor conclude that it is of the type which he need not have witnesses recalled. Of course where the accused demands to have them recalled the magistrate will have no discretion even if he is convinced that the nature of the evidence does not so require, and that is why I have observed that it is high time our Act was amended to be in line with what the situation is in India.

While still on the interpretation of section 214 Civil Procedure Act next we move to whether extradition proceedings are covered thereunder Mr Mwengela argues that they are while Mr Shaidi takes the contrary views.

Section 214(1) and (2) quoted above plainly refer to "trial" and "committal proceedings" section 7 of the Extradition Act, provides:

> Section 7(1) subject to the provisions of section 17, when a fugitive criminal is brought before a magistrate, *the magistrate shall hear the case in the same manner and have the same jurisdiction and powers as nearly as may be, as in a preliminary inquiry"* [emphasis supplied], section 17 is inapplicable.

Both Counsel concede that section 214 does not refer to Extradition proceedings. However that is the only far step they move together, they part when it comes to whether the said proceedings should be read into that provision. I have paid due attention to the arguments

and asked myself the question, what is the difference between "committal proceedings" and "preliminary inquiry".

The Criminal Procedure Act does not define the terms "Committal proceedings" or "Preliminary Inquiry". However **Black's Law Dictionary** (Abridged Sixth edition) gives us some light on the meaning of "preliminary hearing" which is defined as follows:

> The hearing by a judge to determine whether a person charged with a crime should be held for trial. A hearing held in felony cases prior to indictment during which the state is required to produce sufficient evidence to establish that there is probable cause to believe that a crime has been committed and (b) that the defendant committed it. Preliminary hearing before magistrate is, basically, a first screening of the charge; its function is not to try the defendant, nor does it require the same degree of proof or quality of evidence as is necessary for an indictment or for conviction at trial. Its function is to determine whether there is sufficient evidence to hold an accused for trial. Indigent defendants have a right to be represented by counsel at a preliminary examination.

Again, although the term "committal proceedings" is not defined as such, the definition attached to "Committing Magistrate" in the same dictionary can also assist us on what committal proceedings are considered to be. A Committing Magistrate is defined as:

> An inferior judicial officer who is invested with authority to conduct the preliminary hearing of persons charged with crime, and either to discharge them for lack of sufficient *prima facie* evidence or to commit them to jail to await trial or (in some jurisdictions) to accept bail and release them thereof. The term is said to be synonymous with "examining court".

Now looking at the two definitions one can only and logically conclude that generally both terminologies relate to the same procedure in that the Committing Court or the one which holds a preliminary inquiry or hearing investigates preliminarily into the guilt of the accused and then commits the said accused for trial by another court (invariably superior court). Under the preliminary inquiry/hearing

or committal procedure that existed in the past the Lower Courts had to hear evidence of witnesses intended to testify in support of the charge and then decide on whether a *prima facie* case had been established upon which finding the accused would be committed for trial by the High Court. This procedure, still applicable in some common law jurisdictions, is no longer in practice now as under the Criminal Procedure Act, the committing magistrate simply reads over the information and statements of witnesses to the accused and commits him for trial by High Court, our committal courts do not decide on whether or not there is prima facie case against accused.

Although I have observed that the 'committal proceedings" referred to in section 214 of the Civil Procedure Act can also properly be called "preliminary inquiry or hearing" this cannot aid the applicant for under the current system there is no calling of witnesses in committal proceedings and logically you cannot recall something which never existed in the first place.

And, further to the above, a preliminary inquiry or committal proceedings cannot be interpreted to mean "trial" provided under section 214(2)(a) Civil Procedure Act. Had the Legislature intended to have committal proceedings covered in section 214(2)(a) it would have so provided as it did in section 214(1)(a), and in any case, it would have been illogical because as already said there is no calling of witnesses in such proceedings, at least in our jurisdiction.

That apart, even if the old system of committal proceedings still existed, and covered section 214(2)(a), in my view, a fugitive criminal would have no right of recalling a witness because extradition proceedings are special and different proceedings as they are not geared at establishing the guilt of the person being requisitioned.

Indeed section 7 of the Extradition Act does not turn extradition proceedings into a preliminary inquiry but it provides that it should be dealt with "as nearly as may be" as is done in the latter proceedings (*Alawi case* cited above is very relevant). The same wording however imports and presupposes the existence of separate treatment in line

with the matter itself, that is, the Extradition proceedings as opposed to preliminary inquiry.

I have so concluded because of the following. I should start by insisting that extradition proceedings should not be equated to criminal prosecution. Extradition is just a procedure by which one sovereign nation turns over a person in its custody to another sovereign national following the latter's request. The extraditing Magistrate is not determining the guilt or otherwise of the person faced with extradition proceedings. In fact he is only concerned with whether extradition would be lawful and not whether the person to be extradited will be convicted. He is only concerned with whether there is a probable cause to believe that the person whose surrender is sought did commit the crime for which extradition is requested. What should be the standard of proof? It suffices if the evidence before him can cause a person of ordinary prudence and caution to conscientiously entertain reasonable belief of accused's guilty, a standard which is by far below that required in a normal Preliminary Inquiry let alone in trials. In this kind of situation it would be patently wrong to wholly attach to extradition proceedings the usual attendants to criminal prosecution. Relating this analysis to the facts of our case, affording applicant the rights of an accused under section 214(2)(a) is tantamount to saying that the extraditing court is required to be satisfied of the applicant's guilty *beyond all reasonable doubts* or even the establishment of a *prima facie* case which would indeed, in normal criminal prosecution, entail detailing and assessing the witnesses' demeanour. In fact, looking at the Extradition Act, the Extraditing Court may not even require the attendance of witnesses physically. It may merely rely on documents presented. The above is said however without prejudice to what the subordinate court will decide at the conclusion of the inquiry. For the reasons discussed, I hold as did the Principal Resident Magistrate (though for different reasons) that section 214(2)(a) Civil Procedure Act is not available for applicant's utility. Next, we turn to the complaint regarding irregular requisition and irregular arrest.

Section 5(1) of the Extradition Act states:

> 5(1) A requisition for the surrender of a fugitive criminal of any country who is in or suspected of being in Tanzania shall be made to the Minister by a diplomatic representative or consular officer of that country and, upon receipt of such requisition, the Minister may, by order under his hand, signify to a magistrate that a requisition has been made and require the magistrate to issue his warrant for the arrest and detention of the fugitive criminal.

While section 6 provides:

> 6(1) The warrant for the arrest of a fugitive criminal whether accused or convicted of a crime, who is in or suspected of being in Tanzania, may be issued by a magistrate:
>
> (a) *On the receipt of the order of the Minister and on such evidence as would,* in the opinion of the magistrate, justify the issue of the warrant if the crime has been committed or the criminal convicted in that part of Tanzania in which he exercises jurisdiction; or [emphasis supplied]

Reading section 5(1) and section 6(1) of the Extradition Act together, one is left convinced that the Legislature did not envisage the court acting merely on a Minister's order as was the case here but also on some accompanying evidence in respect of the crime allegedly committed. The evidence required is not defined. In my view it is rightly left to the Magistrate's discretion so it could be anything; simply a charge sheet or complaint, a statement of investigator and or anything related. The evidence referred to (section 6(1) should be one which in the opinion of the Magistrate justify the issuing of an arrest warrant if the offence were committed within his jurisdiction I am satisfied that the issuing of the arrest warrant based on the Minister's order alone without evidence was improper and Mr Mwengela rightly complained on this. Nevertheless, as submitted by Mr Shaidi, Principal State Attorney, this was not fatal in view of the fact that immediately thereafter the relevant documents were made available to the applicant and indeed the proceedings on the matter are still on.

Mr Mwengela's argument that the applicant should not have been demanded for extradition because he is just a suspect cannot stand either. As rightly submitted by Mr Shaidi, PSA, courts (including Advocates) are supposed to take judicial notice of international legal systems prevailing in different parts of the globe. The Belgium legal system being Roman Law or Continental Law it differs very much from the common law system prevailing in our country and on which Mr Mwengela based his complaints.

> "A DEMAND FOR EXTRADITION" sent to Tanzania in July 1996, and produced by Ivon Moyersoen (the witness who testified) and which was part of the documents he was cross examined upon clearly shows that applicant's arrest had been ordered by the investigating Magistrate of the court of first instance. It may be that this should have accompanied the minister's order but this is different from saying that when he was being extradited he did not fall under the definition of fugitive criminal. Again, for clarity let the "demand" document speak for itself.
>
> DEMAND FOR EXTRADITION
>
> The prosecutor of his Majesty the King at the court of first instance in Antwerp, Belgium feels honoured to request the competent, authorities for the extradition of the person hereafter. An application of the agreement relative to extraditions between Tanzania and Beligum ratified on 29 October 1901;
>
> IDENTITY OF THE PERSON TO BE EXTRADITED
>
> Surname Tramontano
>
> First Name Francesco
>
> Born in Bruscanio (Italy) 2 January 1942
>
> Nationality Italian
>
> Profession Without known profession
>
> Last residence known London (G,B) Break Avenue G.
>
> At present free on bail in Tanzania since 25 July 1996.

DECREE ON WHICH THE DEMAND IS BASED

The present demand is based on the order of arrest by default by the investigating Judge I. Moyersoen in Antwerp on 23 November 1995, on account of establishing and guiding an association of criminals in view of committing crimes, forgery and its use, fraud (subsidy fraud).

FACTS FOR WHICH THE EXTRADITION IS REQUESTED-TRAMONTANO

Also is chief of an organization that, succeeded, between 1990 and 1994, by means of false document in withdrawing monies, originating from the AROS, aid organization from the Belgian Ministry of Development Aid and meant for the development aid to Tanzania and this for an amount at present estimated at 110 million Belgian Francs.

A statement of the aforementioned facts is enclosed.

It is not a political nor a coherent crime.

THE PUNISHMENT IN BELGIUM

The aforementioned facts are punished by the articles 66, 193, 196, 197, 213, 214 and 322 of the Belgian Penal Code and the Royal Decree of 31 May 1933, as becomes clear from the enclosed copy of the applicable legal texts.

REFERENCE TO THE CONVENTION OF EXTRADITION

The crimes aforementioned are indicated in the aforementioned Convention of Extradition, ratified between Tanzania and Belgium, under article 1.7 and 11.

THE DURATION OF THE PUNISHMENT, REQUIRED BY THE CONVENTION

The maximum duration of the imprisonment for the fact, for which the extradition is demanded, surpasses the duration required as a minimum by the aforementioned convention of extradition.

Section 2, of the Extradition Act, defines a 'fugitive criminal' as follows:

> "fugitive criminal" means any person accused or convicted of an extradition crime committed within the jurisdiction of any other country who is in or is suspected of being in Tanzania and a reference to a fugitive criminal accused on convicted of an extradition crime committed within the jurisdiction of that country.

and, an "extradition crime" is defined as follows:

> "extradition crime" means a crime which, if committed within the jurisdiction of Tanzania would be one of the crimes described in the schedule to this Act.

Black's Dictionary of Law defines a 'suspect" as, a person "suspected to be involved in a crime" From the above I go with Mr Shaidi, PSA, that the term 'suspect' should not be looked at narrowly-clearly it is included and covered by the term fugitive criminal.

Mr Mwengela attacked the proceedings from yet another angle – that there is no proved treaty between Belgium and Tanzania concerning surrender of fugitive criminals. I must confess that this has exercised my mind a great deal Mr Shaid, PSA, decided to keep silent on this issue although it was vividly put by Mr Mwengela in his submission. The light on the matter is first ahead on us by the 'demand note' which states that there is an "agreement relative to extraditions between Tanzania and Belgium ratified in 29 October 1901".

Under section 3 of the Extradition Act, the following is provided:

> (1) *where an agreement has been made with any country with respect to the surrender to that country of any fugitive criminal,* the Minister may, by order published in the Gazette, declare that this Part of this Act shall apply in the case of that country subject in such conditions exceptions and qualifications as may be specified in the order, and this part shall apply accordingly.

(2) an order made under this section shall recite or embody the terms of the agreement and shall not remain in force for any longer period than the agreement.

(3) every order made under this section shall be laid before the National Assembly.

My research has convinced me that the relevant treaty was indeed ratified. My research landed me on a copy of the Treaty for the mutual surrender of fugitive criminals of 29 October 1901 between Great Britain and Northern Ireland and Belgium filed and recorded with the Secretariat of the United Nations on 8 May 1976 and which treaty covered all British colonies and nations under her supervision including Tanganyika (as she then was). The said research carried me further to other diplomatic exchanges between Tanzania, (after independence), and Belgium regarding the Extradition understanding which existed then. Once again the live and full contents of those communications can clarify better the issue.

On 30 November 1963, the Government of Tanganyika communicated to the Belgium Embassy the following:

> The Ministry of External Affairs and Defence of the Republic of Tanganyika presents its compliments to the Embassy of Belgium and has the honour to refer to the Note of 9 December 1961 from the President (then Prime Minister) of the Republic of Tanganyika to the Secretary-General of the United Nations concerning the treaty obligations of Tanganyika. That Note which was circulated to all member states of the United Nations stated, as follows:
>
> > As regards bilateral treaties validly concluded by the United Kingdom on behalf of the territory of Tanganyika or validly applied or extended by the former to the territory of the latter, the Government of Tanganyika is willing to continue to apply within its territory on a basis of reciprocity, the terms of all such treaties for a period of two years from the date of independence (i.e. until 8 December 1963) unless abrogated or modified earlier by mutual consent. At the expiry of that period the Government

> of Tanganyika will regard such of these treaties which could not by the application of the Rules of customary international law be regarded as otherwise surviving, as having terminated.
>
> The legal advisors to the Ministry are of the opinion that under the rules of customary international law the treaty between Great Britain and Belgium for the mutual surrender of Fugitive Criminals, done at Brussels, 29 October 1901, would not survive the two year period. Any rights and obligations which the Government of Tanganyika had under the said agreement would, therefore, terminate on 8 December 1963. The Government of Tanganyika is willing, however to keep the said agreement in force until such time as a new agreement can be negotiated directly between Tanganyika and Belgium. If the Government of Belgium is in favour of such an arrangement the Ministry has the honour to propose that this note, and the note of the Government of Belgium confirming such an arrangement shall constitute an agreement to that effect.
>
> The Ministry of External Affairs and Defence avails itself of this opportunity to renew to the Embassy of Belgium the assurances of its highest consideration.

The Belgium Embassy responded on 17 March 1964 as under:

> The Royal Embassy of Belgium presents its compliments to the Ministry of External Affairs and Defence and has the honour to acknowledge receipt of its note number PXC 211/007 of 30 November 1963, by which the Ministry of External Affairs and Defence of Tanganyika proposed to maintain temporarily between Belgium and Tanganyika, the provision of the treaty between Belgium and the United Kingdom of Great Britain and Ireland, for the mutual surrender of fugitive criminals, signed at Brussels on 29 October 1901.
>
> As the Belgian Government agrees to this proposal, the above-mentioned note of the Ministry and present reply will be regarded as constituting the agreement between the two Governments.
>
> Furthermore, the Belgian Government considers that this agreement includes also the additional conventions of the Belgo-British Treaty of

Extradition, signed the 5 March 1907 and 3 March 1911, conventions of which the applications have been extended to Tanganyika.

The Royal Embassy of Belgium would be obliged if the Ministry would confirm that such is its opinion also.

The Royal Embassy of Belgium avails itself of this opportunity to renew to the Ministry of External Affairs and Defence the assurances of its highest consideration.

On 30 October 1964, the Government of Tanzania further communicated with the Belgian Embassy as follows:

The Ministry of External Affairs of the United Republic of Tanzaia presents its compliments to the Royal Embassy of Belgium and has the honour to refer to the Embassy of Belgium and has the honour to refer to the Embassy's Note S.G. 759 of 9 June 1964, concerning extradition. The Ministry of External Affairs has the honour to confirm that the agreement between the Belgian Government and the United Republic of Tanzania to maintain temporarily the provisions of the treaty between Belgium and the United Kingdom of Great Britain and Ireland for the mutual surrender of fugitive criminals, signed at Brussels on 29 October 1901, also includes the additional conventions of the Belgo-British Treaty of Extradition, signed the 5 March 1907 and 3 March 1911, Conventions of which the applications had been extended to Tanganyika.

The Ministry of External Affairs of the United Republic of Tanzania avails itself of this opportunity to renew to the Royal Embassy of Belgium the assurances of its highest consideration.

From the above it is clear that the 1901 Extradition treaty survived the 2 year period which seems to have been the usual period for which such treaties could normally survive after independence; survived independence to-date. In the communication dated 30 November 1963, the Government of Tanganyika proposed:

The Government of Tanganyika is willing, however to keep the said agreement in force until such time as a new agreement can be negotiated directly between Tanganyika and Belgium.

The above proposal was accepted by the Belgium Government *vide* their communication dated 17 March 1964 and reconfirmed by the Government of the United Republic of Tanzania on 30 October 1964. As that understanding though intended to be provisional has subsisted to-date, however undersirable the situation may be, legally that treaty is still effective as between the parties – Belgium and Tanzania governments. This treaty read together with the saving provisions of section 28 of the Extradition Act (15 of 1965) and GN 159 of 1928 made under Chapter 22 (repealed) which provided for the application of fugitive criminals surrender Ordinance to Belgium as revealed on page 257 of Volume V Subsidiary Legislations, Chapter 1-112 clearly covers the present applicant. On this score also Mr Mwengela's complaint cannot have a base upon which to stand.

Finally we come to bail conditions described by Mr Mwengela as gravely oppressive. In criminal law generally, bail is the accused's right unless specifically taken away by statute. The guiding principle is whether accused will present himself before the court as and when required. However, in extradition proceedings, by their very nature, extra care should be exercised by courts when deciding on the question of bail. In most jurisdictions granting bail to a person faced with extradition proceedings is an exception rather than the rule, and common sense can easily grasp why it is so. In the United States, for example, with all the drums and trumpets claiming exceptional cherishing of human rights and personal liberties there the issue is treated with very exceptional focus.

The courts there have only curved a limited exception to the general prohibition against bail by simply giving birth to a principle called 'special circumstances' .An example is what was stated *In the Matter and Extradition of Nacif – Rorge*, 829 F. Supp. 1210, 1215 (D. NEV 1993.).

A person subject to international extradition may overcome the presumption against bail by presenting clear and convincing evidence demonstrating 'special circumstances' justifying release pending extradition, proceedings and that the person will not flee or pose a

danger to any other person or community... this exception should be exercised only in the most pressing circumstances and when the requirements of justice are absolutely peremptory.

The American Courts insist that the standard of 'Special Circumstances' for release on bail for persons involved in foreign extradition proceeding" is more demanding standard than that of ordinary accused criminals awaiting trials that special circumstances must be extraordinary and not factors applicable to and defendants facing extradition let alone the requirement that an extradite provide a clear and convincing evidence of special circumstances. *Why such strictness?* The following is the consideration.

> The demanding Government when it has done all that treaty and law require it to do, is entitled to delivery of the accused on the issue of the proper warrant and the other Government is under obligation to make the surrender, an obligation which it might be possible to fulfill if release on bail were permitted. *The enforcement of the bond, if forfeited would hardly meet the international demand, and the regaining of the custody of the accused obviously would be surrounded with serious embarrassment.* [emphasis supplied]

Of course the above is American Law but in my view it is good law. Generally all accuseds are invaluable suspects because until they are convicted they are presumed innocent. So even a fugitive criminal who is charged but not yet convicted in any foreign country, as in the case with applicant, is presumed innocent. However, bail is always considered on these very people presumed innocent the moment they are charged regardless of whether or not they will subsequent be convicted for that is another process conditions for bail, for those who manage to get bail, vary depending on various factors including the nature of the charge facing them. Now in the situation at hand, being charged with foregeries worth TZS. 2.2. billion or 110 million Belgian Francs and under extradition proceedings, cannot by all standards escape very stringent bail conditions; and for that matter one should thank his luck for getting bail at all as was the case in this matter Mr Mwengela's complaint on this cannot be justified.

While it may be true that placing an accused into hands of his prosecutors when it comes to granting bail, as Mwengela submitted (though I failed to trace the relevant authority which he simply cited as "the case of *Seif Shariff Hamad*"), considering the fact that this is not an ordinary criminal matter I was not prepared to disturb the imposed bail conditions but for one factor. The record shows that the Applicant has in between, been granted special release permits to travel outside Tanzania and has always returned. This is a positive pointer on his reliability on meeting bail conditions. For this reason condition four- reporting to the Regional Crimes Officer three times a week is hereby set aside. However bail conditions one to three remain undisturbed.

In conclusion the application for revision is hereby refused except to the extent indicated in respect of bail conditions.

TANZANIA PHARMACEUTICAL INDUSTRIES LTD *v.* DR. EPHRAIM NJAU (NUMBER 1)

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Lubuva, J.A.)

CIVIL APPLICATION No. 5 OF 1996

(Application for execution of the decree from the judgment of the High Court of Tanzania at Arusha, Munuo, J., dated 23 August 1996, in Civil Case No.3 of 1993)

Court of Appeal – Affidavits – Supplementary affidavit – Conditions for filing supplementary affidavit – Rule 46(3) of the Court of Appeal Rules of 1979.

Public Corporation – Specified Public Corporations – Public corporation declared a specified public corporation – Effects thereof – Sections 38(1) and 39 of the Public Corporations (Amendment) Act of 1993.

Appeal – Legal issues on appeal – Whether a legal issue not raised at the trial may be raised on appeal.

This is an application for stay of execution of a decree pending appeal. The application was filed without attaching a copy of the High Court decision sought to be stayed. Also the applicant filed a supplementary affidavit without seeking leave of the court or the consent of the other party. It was argued for the respondent that firstly the application was defective for lack of a copy of the High Court decision, and that the supplementary affidavit be expunged from the record. The applicant argued, *inter alia*, that the court should grant stay of execution as the applicant had been declared a specified corporation and therefore changed its legal status and if execution proceeded, it could be against a wrong party. It was argued for the respondent that the question of legal status of the applicant could not be raised now as it was not raised at the trial. It was noted that while the interest on the decretal sum was shown in the judgment to be 8% p.m, the decree showed it as 25% p.a.

Held: (i) Although under the court's rules there is no express requirement to attach to the application for stay of execution a copy of the decision sought to be stayed, logic and reason dictate that as it is the basis of the application, it should form part of the record;

(ii) Under rule 46(3) of the Tanzania Court of Appeal Rules 1979 a party wishing to file a supplementary affidavit has no choice but to seek leave of the court or the consent of the other party; as the supplementary affidavit was lodged contrary to this requirement, it is rejected and expunged from the record;

(iii) As the amount involved in the decretal sum is substantial, it is important to ascertain the applicable rate of interest at which the execution of the decree is to be effected; as such, it would not be in the interests of justice to carry on with the execution of the decree in its present form exhibiting a different rate of interest between the decree and the judgment;

(iv) A legal issue not raised at the trial can be raised at the appellate stage; the legal status of the judgment debtor corporation may have to be ascertained on appeal to ensure that the decree is executed against the right party.

Application allowed; costs in the cause

Cases referred to:

(1) *Febronia Gasper Maro and Evarist Gasper Maro v. Agnes G. Maro,* CAT – AR – Civil Application Number 2 of 1996 (unreported)

(2) *National Bank of Commerce v. Walter T. Czurn,* CAT – AR-Civil Application Number 2 of 1994 (unreported)

Statutory provisions referred to:

(1) Public Corporations (Amendment) Act of 1993, sections 38(1) and 39

(2) Tanzania Court of Appeal Rules 1979, rule 46(3)

Mr Ben Lobulu, for the Applicant

Mr C. Ngalo, for the Respondent

RULING

(Dated 17 August 1998)

LUBUVA, J.A.: In this application, Tanzania Pharmaceutical Industries Limited, the applicant is seeking to have the decree and judgment in Arusha High Court Civil Case Number 3 of 1993 of 23 August 1996, stayed pending the determination of the intended appeal. The Notice of Appeal was lodged in this court on 26 August 1996.

In the High Court Arusha, the respondent (original plaintiff) successfully sued the applicant (original respondent). He was awarded TZS. 43 732 800 salary entitlement, fringe benefits; pension; interest at 25% on the decretal amount plus costs. The applicant was employed by the respondent as General Manager based in Arusha. He was transferred from Arusha to Dar es Salaam. Dissatisfied with the transfer he filed a suit against the applicant in this application. From the decision of the High Court, (Munuo, J.) this application has been filed.

When this matter was called on for hearing on 21 July 1998, upon the court's observation that the copy of the High Court decision in respect of which stay of execution is sought, Mr Lobulu for the applicant in agreement with Mr Ngalo, learned counsel for the respondent, sought an adjournment. The hearing of the application was adjourned to 24 July 1998 in order to enable counsel to regularize the application.

It should be made clear that although there is no express requirement under the court's rules to the decree and judgment to the application, logic and reason dictate that as that is the basis of the application, it should form part of the record. Both the learned Counsel before me were in agreement as to the logic behind it. And so, as this court decided in AR-Civil Application Number 2 of 1996, *Febronia Gasper Maro and Evarist Gasper Maro v. Agnes G. Maro* (1) as a matter of practice, as far as it is practicable, it is desirable in my view, that a copy of the decision in respect of which stay of execution is sought should form part of the record for the application. Having regularized the application, the hearing of the matter resumed on 24 July 1998.

I intend to deal first with the issue touching on the supplementary affidavit filed on 10 July 1998 by the applicant. This, Mr Ngalo, learned counsel for the respondent submitted, was incurably defective because it violates rule 46(2) of the court's rules which requires such affidavits to be lodged with leave of the court or with the consent of the other party. In here, Mr Ngalo charged, neither the court's leave nor the consent of the respondent was sought. He urged the court to have the supplementary affidavit to be expunged from the record. Responding to these submissions, Mr Lobulu, learned counsel for the applicant conceded that the supplementary affidavit was irregularly filed. However, he urged the court to waive the requirement for leave of the court so as to ensure that justice was done in the case because he said, it was a mere procedural irregularity.

The provisions of rule 46(3) are clear and simple. Under this rule, it is optional for a party to file a supplementary affidavit. But once it is decided to file such a supplementary affidavit, the party so wishing to file the supplementary affidavit has no choice but to seek leave of the court or the consent of the other party. In this application, as correctly conceded by Mr Lobulu, no such leave was obtained. It follows that the supplementary affidavit was lodged contrary to the requirement of the Rule. Mr Lobulu's urge that the court waives the requirements of rule 46(3) can hardly be entertained because as yet there is no application made either formally or informally for

leave to lodge a supplementary affidavit. It seems to me that Mr Lobulu's request to waive the requirement of the Rule was as it were, incidentally bounced upon at the last minute in reply to Mr Ngalo's submission. In the circumstances, I reject the supplementary affidavit and order it to be expunged from the record.

Next, I shall deal with the decree in respect of which stay of execution is sought. At first, when Mr Lobulu, learned counsel raised it as one of the grounds for seeking the court's order for stay of execution, I was not, I must confess, impressed that raised a legal matter of considerable importance. On reflection however, and after a close scrutiny of the text of the decree, I was convinced that this could, possibly be the gravemen of the application. It was Mr Lobulu's submission that the decree was incapable of execution without attracting legal wrangle. In an endeavour to elaborate, he stated that it was incapable of execution because the claim for pension and costs was unquantified. On this, Mr Ngalo did not see any difficulty, for according to him, the decree was properly drawn up fully reflecting what was decided in the judgment.

With respect to Mr Lobulu, learned counsel, I do not accept the assertion that the decree is incapable of execution. That I think, is much of a generalized statement because, in my view, the decree by and large reflects what was decided in the judgment. To that extent it is therefore capable of execution. Furthermore, the situation here is different from a case in which the decision sought to be stayed is, for instance, merely declaratory in which case, there would be nothing in respect of which stay order could be, granted. Such is not the case here.

A cursory glance through the judgment, the basis of the decree, shows that most of the items awarded to the respondent, are reflected in the decree. These range from TZS. 43 732 800 salary entitlement, fringe benefits, other emoluments; pension; interest at 25% p.a. on the decretal amount from the date of the suit till payment in full and costs. The drawn up decree however, reflects an interest rate which

is different from that awarded in the judgment. In the decree an interest on the decretal amount at 8% p.m. from the date of judgment till payment in full is shown. It is therefore not certain at which rate of interest is the decree holder to be paid i.e. at the rate which is reflected in the judgment or in the decree. As the amount involved in the decretal sum is substantial, it is important that the applicable rate of interest at which the execution of the decree is to be effected should be ascertained. In a somewhat similar case, in AR-Civil Application Number 2 of 1994, *National Bank of Commerce v. Walter T. Czurn* (2) (unreported) this court granted stay of execution on the ground that it would be unjust to allow the decree to be executed in the form it was drawn up in which reliefs which were not shown in the plaint were included. Likewise, in the instance case the interest rate awarded in the judgment does not tally with that shown in the decree. In such circumstances, it would not be in the interest of justice to carry on with the execution of the decree at this stage.

There is yet another aspect of the matter. Referring to Government Notice Number 400 of 28 July 1995, Mr Lobulu insisted in his submission that as a result of this notice, great legal difficulties would be caused if execution is effected before the intended appeal is determined, In his view, this notice changed the legal status of the applicant company in which case if execution of the decree takes place before the issue on the legal status is resolved on appeal, the decree could be levied against a wrong party. Mr Ngalo discounted this argument as baseless because Mr Lobulu did not raise this issue at the trial since by then the Government Notice Number 400 of 1995 had long been published. In addition, Mr Ngalo said, a search at the Registry of Companies had revealed no change in the legal status of the applicant company in 1998.

In terms of section 38(1) of the Public Corporations (Amendment) Act, 1993, the Minister responsible is empowered to declare by order published in the Gazette a public corporation to be a specified public corporation. By Government Notice Number 400 of 28 July 1995, Tanzania Pharmaceuticals Industries Limited, the applicant,

was declared a specified public corporation. As a result, from the date of publication, the provisions of the Public Corporations Act, 1992 applied once a public corporation has been declared a specified corporation, section 39 of the Act, empowers the Presidential Parastatal Sector Reform Commission to restructure such a specified public corporation. With the restructuring of the corporation in place, the legal status of the applicant company may well have been affected. I accept Mr Ngalo's complaint that at the trial, the issue relating to the legal status of the applicant company was not raised. But as Mr Ngalo would no doubt be aware, a legal issue even though not raised at the trial, can be raised at the appeal state. In similar vein, the legal status of the applicant company and the consequence of its being declared a specified public corporation under Government Notice Number 400 of 29 July 1995 could well be looked into when the intended appeal is heard. With the appeal heard and the legal status of the applicant company examined, it would then be possible to ascertain that the decree would be executed against the right party.

For these reasons, I am satisfied that there are special circumstances in this case warranting the court's grant of an order for stay of execution. Accordingly, I allow the application and order that the execution in Arusha High Court Civil Case Number 3 of 1993 be stayed pending the determination of the intended appeal to this court.

The applicant is however, ordered to furnish security in favour of the respondent for the sum of TZS. 43 732 800 in the form of banker's guarantees. Costs of this application to be in the cause.

AFRICAN MARBLE COMPANY LTD *v.* TANZANIA SARUJI CORPORATION

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Samatta, and Lugakingira, JJ.A.)

CIVIL REFERENCE No. 14 OF 1997

(From the Ruling of a single judge of the Court of Appeal of Tanzania at Dar es Salaam, Ramadhani, J.A., dated 23 May 1997, in Civil Application No. 9 of 1997)

Court of Appeal Rules – Limitation of Time to lodge an appeal – Computation of time in which an appeal may be lodged – Point at which time starts to run – Rule 83(1) of the Court of Appeal Rules 1979.

Certificate – Certificate issued by the Registrar under rule 83(1) of the Court of Appeal Rules 1979 – Presumption that certificate is right and regular – Section 122 of the Evidence Act 1967.

This is a reference from the decision of a single judge dismissing an application to strike out a Notice of Appeal on the ground that the respondent had failed to institute the intended appeal within 60 days as prescribed under rule 82 of the Court of Appeal Rules 1979. The appeal was filed with the Registrar's Certificate under rule 83(1) of the Rules indicating the time it had taken to prepare the record of proceedings and give it to the respondent, which was to be excluded in the computation of time for the purposes of the 60 days limit to file the appeal. The applicant contended that the Certificate was given inadvertently as the Registrar did not consider that time began to run from the date the Registrar's office informed the respondent that the record of proceedings was ready for collection, not from the date the record is collected. In this reference, therefore, asks the court to disregard the Registrar's Certificate and render the appeal filed incompetent for lapse of time.

Held: (i) A certificate issued by the Registrar under rule 83(1) of the Court of Appeal Rules 1979 may be regarded, under section 122 of the Evidence Act 1967, as offering *prima facie* proof of what it states;

(ii) When a party interested thinks that a certificate given by the Registrar under rule 83(1) of the Court of Appeal Rules 1979 is materially wrong, he should take the necessary legal steps to have it varied or discharged by the court;

(iii) The record of proceedings was ready for collection when it was complete, that is on the date counsel for the respondent was informed at the registry that the documents his firm had asked for were ready for collection;

(iv) There was no basis for striking out the Notice of Appeal in this case.

Reference dismissed

Cases referred to:

(1) *Kighoma Ali Malima v. Abas Yusuf Mwingamno,* CAT – Civil Application Number 5 of 1987 (unreported)

(2) *Republic v. Mitha,* [1961] EA 568

(3) *The Commissioner of Income Tax v. Armstrong,* [1963] EA 505

(4) *Principal Secretary, Ministry of Defence and National Service v. Devram P. Valambhia,* [1992] T.L.R. 185

(5) *Estate of Bercovits (deceased) Canning and another v. Enever and another (Siemer Van Hermert and others intervening),* [1961] 2 All ER 481

(6) *Attorney-General v. Horner (Number 2),* [1913] 2 Ch. 140

(7) *Mohan Dairy v. Ratilal Bhurabhai,* [1966] EA 571

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rules 83(1), 82

(2) Evidence Act 1967, section 122

Mr Marando, for the Applicant

Capt. Kameja, for the Respondent

RULING

(Dated 18 August 1998)

SAMATTA, J.A.: We have before us a reference, applied for under rule 57(1) of the Tanzania Court of Appeal Rules 1979 (hereinafter

referred to as "the rules), from a ruling of a single Judge of this court (Ramadhani, J.A.) dated 23 May 1997, in which the learned single Judge dismissed the applicant company's application, made under rule 82 of the rules, to strike out a Notice of Appeal filed in respect of a decision of the High Court (Kaji, J.) on the ground that the respondent corporation had failed to institute the intended appeal within the sixty-day period prescribed by law. The reference has been argued with great tenacity by both learned advocates, Mr Marando, for the applicant company, and Capt. Kameja, for the respondent corporation. We are grateful to the learned advocates for their lucid and interesting arguments.

The material facts which constitute the background to the reference are not complex. In the interests of brevity we shall state them as follows: In compliance with a direction issued by this Court in Civil Appeal Number 38 of 1993 that the High Court assess general damages payable by the respondent corporation to the applicant company, following the act of the former detaining the latter's machinery. Kaji, J., assessed the damages at the sum of TZS. 150 760 260. The respondent corporation was aggrieved by that assessment and, accordingly, it filed the Notice of Appeal which later the applicant company sought to be struck out. Its advocates then were the Tanzania Legal Corporation (TLC). The advocates applied, on its behalf for a copy of the proceedings and Kaji, J.'s ruling on quantum of damages. On 14 November1996, they were, by a letter, notified by the Registrar of the High Court (the Registrar) that the record of the case asked for was ready for collection. It is not disputed that, following that notice, TLC collected the record, for which it paid TZS. 3 400.

Before the corporation's advocates processed the intended appeal, however, the respondent corporation withdrew its instructions to them and, on 28 November 1996, engaged the legal firm of Maajar, Rwechungura and Kameja to represent it in the case. It accordingly handed to Capt. Kameja documents connected with the intended appeal. Upon studying the documents, on 9 December 1996, the learned advocates noticed that the copy of the furnished record was incomplete

in that page 2 of the record of the proceedings and page 3 of Kaji J's ruling were not included. On the following day, that is to say, 10 December 1996, Capt. Kameja wrote to the Registrar, copying the letter to the applicant company's advocate, in the following terms:

> Further to our letter Ref. MRK/SARUJI/96/2132/96 dated 6 December 1996 we have upon scrutiny of the documents submitted to us by our client for the purpose of the intended appeal discovered that the copy of the proceedings furnished by *you* to our client is not complete in that page 3 of the ruling by Honourable Kaji, J. is missing and so is page 2 of the record of proceedings.
>
> Kindly furnish us with copies of the missing documents and we will be grateful if we could also at the same time be furnished with the Registrar's certificate.
>
> As copies of the proceedings, ruling and drawn order have already been paid for we assume that no further payment is required. [emphasis supplied]

It is not disputed that on or about 16 December 1996, Capt. Kameja was supplied by the High Court Registry, one copy of each of the record of proceedings and ruling of Kaji, J., which were complete, and a certificate issued by Registrar under rule 83(1) of the rules. The certificate reads as follows:

> This is to certify that the period from 15 October 1996 when advocate for the defendant (TLC) applied for copies of proceedings, ruling and order, in the above case to 16 December 1996 when the proceedings and a certificate of delay were given to him are to be excluded for such days were required for the preparation and delivery of the proceedings and certificate to the said advocate.

At the hearing of the application before the learned single Judge, Mr Marando, who represented the applicant there, too, submitted that the Registrar's certificate was inadvertently issued because, as he put it, the sixty-day limit for instituting the intended appeal started to run from 14 November 1996, the date on which the respondent corporation received the letter from the District Registrar notifying

it that the record of the case it had asked for was ready for collection. Capt. Kameja, who also represented the respondent corporation before the learned single judge, argued in support of the District Registrar's certificate. The learned single judge had no difficulty in rejecting Mr Marando's submission. In the course of his ruling, he said.

> A copy of that letter to the registrar requesting for a supplementary record was attached to the counter-affidavit sworn by Captain Kameja and it shows that it was copied to Mr Marando. There is no affidavit of Mr Marando denying receipt of the same and that makes the denials of Mumba Mabu to have no probative value. But in any case there is the certificate of the District Registrar issued under rule 83(1) which I cannot doubt without concrete proof, and not just allegations, that the certificate is a "mere fabrication." There is no such evidence.

Before us Mr Marando has strenuously attacked the learned single judge's decision. In our opinion, the result of this reference hinges upon the question of *onus*: was it on the respondent corporation to satisfy the learned single judge that the documents were short-supplied, or was it the applicant company to establish that the Registrar's certificate was incorrect on the computation of time? Mr Marando contended that there is nothing in the papers placed before us to show that the documents supplied to the respondent corporation by the Registrar were incomplete. Mr Marando further contended, citing *Kighoma Ali Malima v. Abas Yusuf Mwingamno* (1) that in the absence of an affidavit from TLC or the respondent corporation, there was no such proof. According to the learned advocate, any assertion in Mr Kameja's affidavit intended to supply such proof was nothing but hearsay evidence and therefore inadmissible. In *Kighama Malima's* case, there was an application under rule 82 of the rules for striking out a Memorandum of Appeal and Record of Appeal on the ground that neither the applicant nor his counsel had been served with the two documents.

The respondent's counsel attempted in his affidavit in opposition of the application to explain that failure by asserting that he had handed a Memorandum of Appeal to one Iddi Selemani Segumba, an

employee in his firm, and instructed him to deliver the same to the applicant's counsel, and the said Segumba informed him of what he had done in compliance with those instructions. No affidavit by Segumba was, however, filed in the proceedings. This court held, in effect, that, in the absence of an affidavit by Segumba, no reason, leave alone sufficient reason, had been advanced for the non-service of the Memorandum of Appeal on the applicant.

The purported appeal was struck out for being incompetent in law. In reaching that decision this court refused, as it was bound by law, to base its opinion on hearsay evidence. Capt. Kameja sought to meet Mr Marando's argument by contending that it would have not made any sense to ask the Registrar to swear an affidavit to the effect that he had short-supplied the respondent corporation when he is the one who issued the certificate of delay. According to the learned advocate the certificate *prima facie* shows that the Registrar had short-supplied the documents. He went on to distinguish *Kighoma Malima's* case from the instant case on the ground that in the latter case there is no denial by the Registrar of the correctness of his certificate and the applicant company has not asserted, under oath, that there was no short supply.

Before we deal with these arguments we must dispose of one interlocutory point. When the instant reference was called on for hearing, Mr Marando orally applied for leave to refer to some documents filed in reference Number 13 of 1997, the applicant company had intended to challenge a decision of a single judge of this court (Ramadhani, JA) granting the respondent corporation's application for stay of execution because he was not satisfied as to the applicant company's ability to refund the decretal amount should the intended appeal against the assessment of general damages by Kaji, J., be successful. The two applications, namely, the application to strike out the Notice of Appeal and the application for stay of execution, were argued before the learned single judge on the same day but separately.

While conceding that those applications had not been consolidated for the purpose of hearing, Mr Marando submitted that the record of Reference Number 13 of 1997 was before us and relevant to the determination of the Reference now before us, i.e. Reference Number 14 of 1997. Capt. Kameja, on the other hand, contended that there was no basis in law for counsel for the applicant company to be allowed to refer to some documents in Reference Number 13 of 1997. He contended that the two applications before the learned single judge were argued separately. Quite rightly, the learned advocate drew our attention to the fact that rulings on those applications were given separately. The learned advocate further submitted that the application for striking out the Notice of Appeal was not argued partly on the basis of the documents filed in the other application. According to the learned advocate, that application was not argued on the basis that a complete record had been supplied to TLC. It was our settled opinion that there was no basis in law for allowing counsel to refer to documents in Reference Number 13 of 1997 when arguing the latter reference.

First, the issue which Mr Marando, on behalf of the applicant company, has asked this court to consider is simply "as to whether the sixty days provided to institute the appeal starts to run from the day the intended appellant is informed that the record of proceedings are ready for collection from the Registrar or otherwise." That issue is distinct from the issue which the learned advocate asked this court to consider in Reference Number 13 of 1997, namely, "whether a stay of execution can be granted in the circumstances prevailing between the parties following the events which are described in Civil Application Number 9 of 1997 between the same parties."

Secondly, the application, the ruling on which has given rise to the instant reference, was argued on the basis that there was negligence on the part of Mr Kameja in delaying to ask for a supplementary record. It was not argued on the basis that a complete record had been supplied to the advocate. Thirdly, the affidavit sworn by Mr Mumba Mabu, the Managing Director of the applicant company, refers

to negligence of not applying for supplementary record quickly, and not to negligence of not using the full record in time. In our opinion, the two references were plainly distinct from each other, and the record of one could not, therefore, properly be used in arguing the other. It was for these reasons we refused Mr Marando's oral application.

Having given those reasons, we now turn to consider the merits or otherwise of the reference before us. We have already stated that, in our opinion, the result of the reference hinges upon the answer to this question: on which party did the *onus* of proof on the issue concerning the alleged short supply of the documents by the Registrar lie? With great respect to Mr Marando's interesting and clear argument, we are of the opinion that, as there is a certificate by the registrar regarding the period which was required by his office to prepare the record of the case, no question of relying on hearsay evidence arises in the instant case. A certificate, to use the definition given in **Jowitt's Dictionary of Law**, (2 ed) Volume 1, at page 304, is "a statement in writing by a person having a public or official status concerning some matter within his knowledge or authority". Applying that definition, it cannot be disputed that the issue of a certificate under rule 83(1) of the Rules by the Registrar constitutes a judicial act. That being so, the certificate may be regarded, under section 122 of the Evidence Act, 1967, a provision which embodies, among other things, the maxim, *omnia praesumuntur rite et solemnister esse acta* (All acts are presumed to have been done rightly and regularly), as offering *prima facie* proof of what it states. The section reads as follows:

> 122. The court may infer the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

This section is almost in *pari materia* with section 114 of the Evidence Act 1872 of India. The latter provision has been the subject matter of comment in a good number of cases. We shall refer to only two of those cases. In *R v. A Mitha* (2), the High Court of Uganda cited

with approval the following passage from **Woodroffe on the Law of Evidence,** (9 ed), at page 808:

> This section authorizes the presumption that a particular judicial or official act, which has been performed, has been performed regularly; *and the presumption can only be overturned by strong evidence.* But it does not authorize the presumption without any evidence that the act has been performed. [emphasis supplied]

Two years later, in *The Commissioner of Income Tax v. C.W. Armstrong* (3), Newbold, J.A., said, at page 513:

> This section authorizes the presumption that an official act, which is proved to have been performed, has been performed regularly; and this is a presumption which is not lightly over-ridden.

The reason for the maxim referred to above is the improbability of a public dereliction of duty: see G.D. Nokes, **An Introduction to Evidence,** (3 ed), page 69. There is a general disposition in courts of justice to uphold the acts described in the section, rather than to render them inoperative. *Ut res magis valeat quam pereat* (It is better for a thing to have effect than to be made void). But Mr Marando, relying on *The Principal Secretary, Ministry of Defence and National Service v. Devram P Valambhia,* (4), pressed us to disregard the Registrar's certificate in the instant case. The learned advocate contended in that connection that the certificate must have been inadvertently given because, as he put it, it ignores that Captain Kameja's client, the respondent corporation, was, on 14 November 1996, supplied with a complete record. Mr Marando contended that *Valambhia's* case (4) is an authority for the proposition that this court may, in a proper case, disregard a certificate issued by the Registrar under rule 83(1) of the Rules. With great respect to the learned advocate, that case is not, in our opinion, an authority for that proposition. In that case one of the issues before this court was whether or not the appellant could rely on a certificate of the Registrar, issued under rule 83(1) of the Rules, in computing time within which to lodge his appeal.

The court held that the answer to that question depended upon whether a copy of the appellant's letter to the Registrar applying for a copy of the proceedings was served on the respondent within the prescribed period of 30 days from the date of the decision which was being appealed from. The court found that no such service of the letter had taken place within the said period of 30 days, but it went on to hold that the appellant had been granted by the full court an extension of time within which to effect the service. Nowhere in its ruling in that appeal did the court lay down the principle which Mr Marando has sought to rely on in his argument in the instant case. Be that as it may, it cannot be doubted that this court may, in a proper case, disregard a certificate given by the Registrar under rule 83(1) of the rules.

Of course, the presumption under section 122 of the Evidence Act is rebuttable; it is not a conclusive presumption. But, as the passages we have cited from the two cases above clearly point out. It is not lightly over-ridden. Since the words "may infer" in the section leave it to the court to make or not to make the presumption, depending upon the circumstances of the particular case, the question arises whether it was right in the present case to presume that the Registrar's certificate was regularly made. With respect to Mr Marando, we feel compelled by the papers laid before us to assent to Capt. Kameja's contention that there is no evidence in this case showing or from which it can be inferred that the record supplied to TLC was complete.

On the contrary, those papers tend to establish, in our opinion, that the Registrar did not supply a complete record. First, it seems highly unlikely that if the position was, as contended by Mr Marando, that the record supplied was complete, the Registrar would not have pointed out that fact to Capt. Kameja, who, in his letter to the former, as will be recalled, clearly and emphatically asserted that the record supplied was incomplete. Secondly, the fact that the Registrar did not demand from Capt. Kameja extra fees in respect of the second record supplied, would appear to suggest and suggest strongly – that the Registrar accepted the learned advocate's assertion in his letter

to him that there had been a short supply of the documents to TLC. We agree with Capt. Kameja that the steps taken by the Registrar in this case are consistent with only the conclusion that, on receiving the learned advocate's letter and checking the matter, he was satisfied that it was true that he had supplied an incomplete record to TLC.

In his strenuous attack against the learned single judge's decision, Mr Marando also contended that the respondent corporation bore the *onus* of proof in this case, and that, to discharge that *onus*, it had to file an affidavit sworn by the Registrar to the effect that TLC had been short-supplied. In support of that contention the learned advocate cited the following passage from **The English and Empire Digest**, Replacement Volume 22, paragraph 1913, at page 204:

> 1913. *Admission by consent of a party – Whether subsequent objection precluded.*
>
> (1) Where a master, by his report, certifies a fact, and exceptions are taken to the report, it lies upon who are to uphold the report, to produce the evidence of the fact. So if he certifies the result of an account upon the allowance or disallowance of its items in dispute, and one of the parties excepts to the report, both as to the principle on which the account is taken, and the evidence in support of the allowance or disallowance of the items, the parties in whose favour the report is made, must produce the evidence on the hearing of the exceptions.
>
> (2) Qn: Whether such consent to admit copies of such proceeding as before mentioned, precludes the party who consents from objecting that the originals are not evidence.

With respect to Mr Marando, that passage is not, in our opinion, relevant to the issue before us. The passage, as we understand it, deals with how and by whom a report of a master based on *secondary* evidence and admitted with the consent of a party, and to which exceptions are taken, is to be substantiated. That is an entirely different issue. Ordinarily, when a party interested thinks a certificate given by the Registrar, under rule 83(1) of the rules, materially wrong, he should

take the necessary legal steps to have it varied or discharged by the court. In our opinion, the *onus* of proof in the application before the learned single judge lay on the applicant company. It had to rebut the presumption under section 122 of the Evidence Act. As was observed by Phillimore, J., in the *Estate of Bercovits (deceased) Canning and another v. Enever and another (Siemer Van Hermert and others intervening)* (5) at page 485:

> The force of the presumption or maxim varies with all the circumstances. Where a document is entirely regular in form it may be very strong; but where, as here, it is irregular and unusual in form the maxim cannot apply with the same force.

At no time during his interesting submission did Mr Marando point out any irregularity in form in the Registrar's certificate in the instant case, and we have not discovered any. The presumption that the certificate was regularly made must, therefore, be very strong. In our opinion, the learned single judge was perfectly right to base his decision on the Registrar's certificate. His finding based on the certificate cannot, in our opinion, be faulted, because, as Hamilton, L.J., puts it in *Attorney-General v. Horner* (6) at page 189:

> Presumption is the opposite of proof. It supplies the starting point for proof, and when complete proof fails, it may afford legitimate means of arriving at an affirmative legal conclusion.

Although the learned single Judge did not cite the section in his ruling, it cannot be doubted that he rightly approached his task in the application in accordance with section 4 of the Evidence Act, 1967, which reads:

> 4. Whenever it is provided by this Act or any other written law that the court may presume a fact, it may either regard such fact as provided, unless and until it is disproved, or may call for proof of it.

Before we part with this Reference we wish to say, out of deference to the lucid way Mr Marando presented his submission, one word or two on *Mohan Dairy v. Ratilal Bhurabhai* (7), another case which

the learned advocate relied on in his submission. In that appeal, two points *in limine* were taken up by the respondent. One of them was that the appeal was time-barred because it was filed after the prescribed period of 30 days. To meet that objection, the appellant sought to rely on a certificate given by the Registrar purportedly under section 65(2) of the Civil Procedure Act certifying on the time which was requisite for the preparation and delivery of a copy of the decree, ruling and formal order. The learned appellate Judge held that the latter part of the certificate, that is to say the part referring to the ruling and formal order, had to be disregarded as it was clear on the face of the certificate that it did not comply with the terms of the section. That case is clear on the face of the certificate that it did not comply with the terms of the section. That case is clearly distinguishable from the case now before us. In the instant case no question of the certificate given by the Registrar not complying with the terms of rule 83(1) of the rules arises. We are unable to find anything in *Mohan Dairy's* case (7) laying down a principle or rule of law that is useful to the applicant company in the instant case.

We have given the most earnest consideration to Mr Marando's arguments and in the end we are satisfied, for the reasons we have endeavoured to give, that Capt. Kameja is right in contending that there is no basis for faulting the learned single judge's decision. Accepting the Registrar's certificate, as we do, we hold that the record of the case was ready for collection when it (the record) was complete, that is on the date Captain Kameja was informed at the registry that the documents his firm had asked for were ready for collection. In our opinion, therefore, there was no basis, as the learned single judge held, for striking out the Notice of Appeal.

The reference is, for the foregoing reasons, dismissed with costs.

MOHAMED KIHAGO *v.* ABBAS KIHAGO

HIGH COURT OF TANZANIA AT ARUSHA

(Mkwawa, J.)

CIVIL APPEAL No. 58 OF 1997

Primary court – Jurisdiction – Jurisdiction of Primary courts over registered land in matters of Probate and Administration – Government Notice Number 320 of 1996.

Probate and Administration – Jurisdiction of Primary courts – Whether Primary courts have jurisdiction where the estate consists of registered land – Government Notice Number 320 of 1996.

The District Court dismissed an appeal, holding that the trial Primary Court had no jurisdiction to entertain the probate and administration matter because the estate involved consisted of registered land. The trial court had dismissed the application by the appellant who had sought to be appointed administrator of the estate of his late parents but the court did not appoint any other person as administrator. The High Court addressed the question whether the trial court had jurisdiction to entertain the matter.

Held: (i) Primary Courts have jurisdiction in matters of administration of estates if the law applicable is Islamic law regardless of whether or not the subject matter is land registered under the Land Registration Ordinance; the Appellate District Court, therefore, erred in holding that the Primary Court had no jurisdiction to entertain the matter;

(ii) The trial Primary Court acted contrary to law by failing to appoint some one to take care of the estate of the deceased;

(iii) The only way out now is to declare the doors open for any one wishing to petition for the Probate and Administration to do so at the earliest, the law of limitation notwithstanding, as none of the prospective petitioners is to blame for what happened.

(iv) ***Obiter:*** The concerned parties, being blood relations, should not waste time in fruitless litigation that will only inflame ill-feelings and act to their detriment; they should try to settle the matter amicably or seek the assistance of the Administrator General.

Appeal allowed; parties to bear their own costs

Case referred to:

(1) *Scolastica Benedict v. Martin Benedict* [1993] T.L.R. 1

Mr Makange, for the Appellant

JUDGMENT (ex-parte)

(Delivered 04 September 1998)

MKWAWA, J.: This matter is in respect of the original Arusha Urban Primary Court Probate and Administration Causes Number 75 and 76 of 1993 whereby the appellant, Mohamed Kihago, had lodged an application for his appointment as the administrator of the estate of his late father and mother.

It is amply clear from the records that the estate in question is quite substantial and is by and large involving registered landed property. It is also common ground that the appellant having filed his application the respondent, Abbas Kihago, filed a caveat and the matter went to a full trial. After the hearing the trial Primary Court dismissed the appellant's application, leaving the matter in a state that no one was appointed to administer the estate. The appellant being aggrieved by the decision of the trial Primary Court unsuccessfully appealed to the District Court and hence the instant appeal which, for reasons beyond my comprehension, was not opposed, and hence proceeded *ex-parte*.

It is not irrelevant to mention that in dismissing the appeal the learned magistrate held, *inter alia*, that the trial Primary Court had no jurisdiction to entertain the matter. Consequently, he declared the whole trial a nullity.

Both in the petition of appeal and in the written submission by Mr Makange, learned counsel for the appellant, several attractive grounds and arguments, respectively, have been raised. But this appeal can easily be disposed of by dealing with only one point, namely that the first appellate court erred in law in nullifying the proceedings in the trial Primary Court. It is on this basis that I will not dwell upon them, their weight notwithstanding.

It is true that the deceased's estate comprised of registered land. The parties being persons professing Islamic faith it is not surprising that they had desired that Islamic law should govern their matter. The question for consideration is whether the trial court had jurisdiction to entertain the matter. I hasten to answer the issue in the affirmative; the provisions of Government Notice Number 320 of 1996 are buttressed and/or fortified by the much celebrated decision of the Court of Appeal in *Scolastica Benedict v. Martin Benedict* (1). Primary Courts have been given jurisdiction in matters of administration of estates regardless of whether the subject matter is land registered under the Land Registration Ordinance.

It is in this respect that I am respectfully in agreement with Mr Makange, learned advocate for the appellant, that the appellate District Court erred in law by holding that the Primary Court had no jurisdiction to entertain this matter. As the decision of the appellate District Court was erroneous it can not be allowed to stand. I accordingly quash it. But, it might not fully serve the interests of justice to leave the matter there. The trial Primary Court, in not appointing an administrator to administer the deceased's estate, left the said estate unadministered. This state of affairs cannot be allowed to stand. There must be some one to take care of the estate for the benefit of the inheritors. It is the administrator who will also pay creditors and collect debts if there are any from the debtors. Thus the court acted contrary to the law by failing to appoint someone to take care of the deceased's estate.

For the reasons I have given, I am of the settled view that the only way out of this *impasse* is to declare the doors open for any one who wishes to petition for the probate and administration to do

so at the earliest, the law of limitation notwithstanding, as none of the prospective petitioner is to blame for what has happened.

I think I will be failing in my duty if I do not advise the concerned parties in this matter to amicably settle the matter between them as they are blood relations. They should see to it that they do not waste time in fruitless litigation that will only inflame ill-feelings and act to their own detriment. In the event that is not possible they are enjoined to seek the assistance of the Administrator General. It is, however, any pious hope that my advise will not fall on deaf ears or on barren soils, if I may use that expression. Having regard to the circumstances of this case, namely the chequered history, parties to bear their own costs. Order accordingly.

IN THE MATTER OF MOFAJU'S INVESTMENT COMPANY LTD

HIGH COURT OF TANZANIA
AT MWANZA
(Nsekela, J.)

MISCELLANEOUS CIVIL CAUSE No. 30 OF 1997

Company law – Memorandum of Association – Alteration of the provisions of the Memorandum of Association – Section 7 of the Companies Ordinance, Chapter 212.

Mofaju's Investment Company Ltd petitioned the High Court for confirmation of altered Memorandum of Association whereby 10 sub-clauses were added. Neither a copy of the petition nor a notice of its hearing was served on the Registrar of Companies.

Held: (i) In order for the court to make an informed opinion one way or the other and arrive at a sound decision, the Registrar's presence is of utmost importance in order to assist the court to arrive at the decision;

(ii) Order that the Registrar of Companies should be served with notice together with the petition and related documents.

Petition to be heard after service on the Registrar

Cases referred to:

(1) *Re: Private Boarding House Ltd* [1967] EA 143

Statutory provision referred to:

(1) Companies Ordinance, section 7

RULING

(Delivered 10 September 1998)

NSEKELA, J.: This is a petition by Mofaju's Investment Company Ltd. for confirmation of the alteration of the provisions of its Memorandum of Association by the addition of ten (10) sub-clauses adding to the objects of the company. Paragraphs 5 and 6 of the petition read as follows:

> 5. That an extra-ordinary general meeting of the company duly convened and held on 30 May 1997 the following resolution was duly passed as a special resolution in accordance with section 7 of the Companies Ordinance (Chapter 212) namely:
>
> That pursuant to section 7(1) of the Companies Ordinance (Chapter 212) the provisions of the Memorandum of Association of the company with respect to its objects added more objects clauses which are A1 to A10 which will appear and read as per attached.
>
> 6. That the intended additional company's objects proposed to be effected by the said special resolution are required to enable the company to carry on same business which under existing circumstances may conveniently or advantageously be combined with the business of the company.

At the bottom of page 2 of the petition it is indicated that a copy of the petition should be served on the Registrar of Companies but

there is no evidence on the record that the same was served. Section 7 of the Companies Ordinance provides as under:

> 7(1) Subject to the provisions of this section a company may by special resolution alter the provisions of its memorandum with respect to the objects of the company, so far as may be required to enable it:
>
> (a) to carry on its business more economically or more efficiently; or
>
> (b) to attain its main purpose by new or improved means; or
>
> (c) to enlarge or change the local area of its operations; or
>
> (d) to carry on some business which under existing circumstances as may convencently or advantageously be combined with the business of the company; or
>
> (e) to restrict or abandon any of the objects specified in the memorandum; or
>
> (f) to sell or to dispose of the whole or any part of the undertaking of the company; or
>
> (g) to amalgamate with any other company or body of persons.
>
> (2) The alteration shall not take effect until, and except in so far as, it is confirmed by the court.

I must comment at this juncture that the petition is admittedly not elegantly drafted. There are apparently a number of annexes which have been attached to the petition without any identification in the body of the petition. For instance, paragraph 2 of the petition refers to the Memorandum of Association but there is no indication where this is to be found: Apart from this the objects clause of the Memorandum of Association should be set out in the body of the petition. I have mentioned the fact that it would appear that the Registrar of Companies was not served with notice. Needless to say, the Registrar of Companies is a central figure in the administration of the Companies Ordinance and I subscribe to the view that he should be given a chance to enter appearance in matters that concern the office. In *Re-Private Boarding House Ltd* (1), the headnote reads as under-

> The petitioning company in the course of petitioning for an order confirming the alteration of its Memorandum of Association had applied ex *parte* for an order dispensing with advertisement of the petition and notices. On that application the judge dispensed with advertisement provided a copy of the petition of companies. But when the Registrar appeared at the hearing, the advocate of the company objected and claimed that the Registrar had no right of audience.
>
> **Held:** (i) The Registrar of Companies should be served with notice of and has a right to appear and be heard on applications to confirm alterations of objects and like proceedings in which his records are involved.
>
> (ii) The Registrar of Companies in such cases, when served with notice, should in turn give notice to the applicant and to the court as to whether or not he intends to appear."

I am in entire agreement with what was stated in the above case. In order for the court to make an informed decision one way or the other, the Registrar's presence is of utmost importance in order to assist the court to arrive at a sound decision. In the premises, I order that the Registrar of Companies should be served with notice together with the petition and related documents. If he does not wish to be present this fact should be communicated to the petitioner and the court. Thus the petition will only be heard after service of the petition on the Registrar.

HASMUH VALABDAS v. ATTORNEY GENERAL AND THREE OTHERS

HIGH COURT OF ZANZIBAR
AT VUGA
(Kannonyele, J.)

MISC. CRIMINAL APPLICATION No. 3 OF 1998

(From Original Criminal Case No. 2 of 1998)

Advocates – Competence of advocate to act for a client who is a fellow advocate – Whether an advocate can represent his partner in a court action – Legal Practitioners rules.

This was an application seeking to disqualify Mr Mbwezeleni, an advocate, from representing an accused person in Criminal Case Number 2 of 1998. Mr Mbwezeleni was represented by Mr Mkonje, another advocate and a partner to Mbwezeleni. An objection was then raised seeking to disqualify Mr Mkonje from representing his partner, arguing that Mr Mkonje, being a partner junior to Mr Mbwezeleni, would on that account not be independent in conducting legal representation for his client.

Held: (i) The advocate is entitled to be represented by an advocate of his choice; in any proceedings.

(ii) ***Obiter:*** If an advocate is, for any reason, conflicted in his interests in a case, the particular advocate should withdraw from the case otherwise the court or a party to the case or any other person having evidence to show such conflict of interest may commence proceedings to suspend or strike the advocate from the Roll.

Objection overruled

Case referred to:

(1) *Lobo v. Salehe S. Dhiyebi,* [1961] EA 223, 229

Mr Patel, for the Applicant

Mr Toufiq, Senior State Attorney, for the first Respondent

Mr Mnkonje, for the fourth Respondent

RULING

(Delivered 10 September 1998)

KANNONYELE, J.: I was about to hear an application, Miscellaneous Criminal Application Number 3 of 1998, seeking an order to issue for, among others, Mr Mbwezeleni, learned advocate, to be disqualified from representing the accused in Criminal Sessions Case Number 2 of 1998 on account of an alleged unprofessional conduct. Mr Mbwezeleni engaged a fellow advocate, Mr Mnkonje, to represent him in the application alleging professional misconduct against him. However, Mr Mnkonje's representation of Mr Mbwezeleni is also being resisted in an informal (verbal) preliminary objection from the bar by both, the applicant's counsel (Mr Patel) and also by Senior State Attorney representing the first respondent (SMZ), Mr Toufiq. Both Messers Patel and Toufiq, learned counsel, contend that Mr Mnkonje cannot represent Mr Mbwezeleni because they are business partners in Zanzibar MM Law Chambers, where Mr Mnkonje is a junior partner. Whereas the application against Mr Mbwezeleni is brought under section 9(2) rule(6) *(sic)* of the Legal Practitioners Rules made under Chapter 28 of the Laws of Zanzibar, the objection against Mr Mnkonje's representation of Mr Mbwezeleni is not revealed under what legal provision it is based.

Arguing on his own behalf and his client's, Mr Mnkonje expressed the view that the objection against him is misconceived and unsound in law. He submitted that it has not been shown how by him representing Mr Mbwezeleni the applicant's case will be prejudiced to warrant his disqualification as counsel for Mr Mbwezeleni. He also submitted that he is not a witness for either of the parties to the case and, therefore, the question of conflict of interest would not and cannot arise in so far as he is concerned in this matter.

Given the objections raised against Mr Mnkonje, Mr Mbwezeleni himself was asked if he had any comments to make on the matter.

All he said was that he needed the services of Mr Mnkonje in order to contain his own emotions during the proceedings brought against him.

I must confess that never in my experience of thirty two years at the bench have I ever heard of an advocate being resisted to represent a party in a particular case other than by way of proceedings preferred against him or her, as the case may be, with a view to his/her suspension from practice or to have his/her name deleted from the Roll of Advocates. Yes, there may have been such instances before but I say I have never known one before. However, instances of professional misconduct warranting the suspension or striking from the Roll of Advocates are, for Zanzibar, stated in rule 9 of the Legal Practitioners Rules. Sub-rules (1) to (5) all raise specific instances of professional misconduct and although sub-rule (6) is not as much specific but general in character, it must be read *ejusdem generis* to the specifics stated in sub-rules (1) to (5). On the other hand, the procedure to achieve the end results stated in rule 9 is provided under rule 10 of the rules. It is there provided by who proceedings may be commenced (sub-rule (2)) by an application to a judge in Chambers (Chamber Summons (sub-rule (1))

In relation to Mr Mnkonje, no professional misconduct is alleged against him. Nor are there any proceedings preferred against him envisaging his suspension or deletion of his name from the Roll of advocates. It is only his association with Mr Mbwezeleni as professional partners which is said against him. But neither is their partnership as such a legal entity being accused of any professional misconduct so as to implicate Mr Mnkonje in person as a member of the partnership. It is only his junior position to Mr Mbwezeleni in the partnership which is said against him, it being alleged that he would not be independent in the conduct of his legal representation of his client.

In my understanding, however, an advocate who appears for a client in a contested case is retained to advance or defend his client's case and not his own. This he must do strictly upon instructions and with a scrupulous regard to professional ethics. Remembering that he is an officer of the court and owes a duty to the court as well as

to his client, he must never knowingly mislead the court as to the facts or the law citing *Lobo v. Salehe S. Dhiyebi* (1).

There is the principle under which any advocate is expected to conduct himself in any particular proceedings. True, if for any reason it transpires that there is a conflict of interest between the advocate's conscience on the one hand and those of his client and or the court on the other, the particular advocate should withdraw his brief. If he does not and someone – anyone: the court, a party to the case or just any other person seized with evidence capable of proof to establish such conflict of interest between the advocate's conscience and the court and or his client, that person may commence proceedings to suspend or strike the advocate from the Roll.

We say there is no professional misconduct leveled against Mr Mnkonje in this case. I therefore see no merit in the objection raised against him and, there being no proceedings preferred against him envisaging his suspension or deletion of his name from the Roll, it must be presumed, with due respect, that the objections are ill-conceived and not based on any sound principle of law. As such it must be brushed aside with all contempt it deserves for its misconception, inelegance and unprofessional flavour, contrary to what one would have expected from professional lawyers of such wide experience as those we have in this case.

I am satisfied Mr Mbwezeleni is entitled to legal representation by counsel of his choice with whom he can be assured of those fiduciary relations which at times have been termed as contracts *uberrimae fidei*. He has choosen Mr Mnkanje against whom the objectors have nothing unprofessional to say about him.

The objection is devoid of merit and not supported by any sound principle of law and is therefore hereby over-ruled.

Order accordingly

LAMSHORE LIMITED AND J.S. KINYANJUI *v.* BIZANJE K.U.D.K.

HIGH COURT ZANZIBAR
AT VUGA
(Kannonyele, J.)

CIVIL CASE No. 13 OF 1994

Evidence – Burden of Proof – Duty to prove alleged facts – The duty to prove is on the party alleging – Sections 102 and 103 of the Evidence Decree Chapter 5.

The second plaintiff is the sole signatory of the first plaintiff company. The parties entered into an agreement which subsequently the defendant did not honour on the claim that the first plaintiff company, with which they had entered into agreement was a non-existent fictitious entity, rendering the agreement *void ab initio*. The claim was based on the purported non-delivery of letters sent by the defendant to the first plaintiff company through the address indicated in the agreement, and also that the plaintiff company was not registered in England as claimed. While no evidence was adduced to show that the company was not registered, there were photocopies of an envelope stamped "return to sender" and a letter to the effect that the address on the agreement was non-existent.

Held: (i) The contract cannot be invalidated on the mere allegation of non-existence of the first plaintiff company without evidence to show the alleged non-existence;

(ii) The suit cannot fail upon the mere allegation that the plaintiff company is non-existent while the natural person who brought that company into the picture is identifiable and available.

Preliminary objection overruled

Statutory provision referred to:

(1) Evidence Decree, sections 102, 103 and 115

Dr Lamwai, for the Plaintiffs

RULING

(Dated 10 September 1998)

KANNOYELE, J.: A suit based on an agreement executed between a limited liability company (Lamshore Ltd.) and a Trading Company (Bizanje KUDK), which is also a public corporation, was filed by the sole signatory to the contract on the side of the limited liability company. The signatory, James Samuel Kinyanjui, is in the suit the second plaintiff himself, while the company for which he signed is the first plaintiff. The public corporation is sued for breach of the contract.

The suit is resisted in a preliminary objection on the ground that the plaintiff company is non-existent and fictitious. It is contended that the limited liability company which is the first plaintiff does not exist in fact and for that reason the contract is contended to have been rendered invalid (void) *ab initio*. The alleged non-existence of the company is based upon an alleged false registration and address of the company evidenced by purported abortive search of registration confirmation in England and non-receipt of letters at the given address in Switzerland. It was submitted that efforts to confirm registration of the company in England proved futile. However, there is no certificate or any documentation to confirm the alleged efforts and futility of the results. On false address, it was alleged that a letter sent to the given address in Switzerland was returned to the defendants on an alleged non-existence of such address at the point of destination. Photocopies of the allegedly returned envelope and letter were produced as evidence here for, it being alleged that the originals could not be traced for production as evidence at this trial. Referred for comparison of the address was the said photocopy of the envelope and copy of the contract agreement where in the opening paragraph on the very first page thereof the address of the first plaintiff company is given.

In reply on this point Dr. Lamwai, for the plaintiffs, referred the court to the plaintiffs' letter written from Nairobi dated 22 February

1993 (annex 8) at a street number. The address in the defendant's annexe 1(c) which indeed is a photocopy of the contract agreement bears no street number of the plaintiffs' Swiss address. It was submitted by Dr. Lamwai that it was this omission of the street number in the address which was the cause of non-delivery of the letter and not non-existence of the plaintiff company. He argued that this, therefore, cannot be a sufficient, less still just cause for invalidating the contract. It was, however, also argued that there was no evidence before the court to prove the alleged non-delivery of the letter where only a photocopy of the envelope was produced, leaving behind the original envelope itself and, this, without sufficient explanation to justify it as required by law. The court was accosted not to act on hearsay evidence.

Counsel for the defendant company also submitted that they made a search to confirm the plaintiff company was indeed a registered company in England. However, they had no certificate to confirm their purported search and the futile results thereof. Wherefore counsel for the plaintiff submitted that in the absence of such certificate from Her Majesty's office in England, the information to that extent should not be acted upon. Moreover, it was argued, a company could have a Certificate of Incorporation in one country with a Certificate of Compliance in another but this could not be evidence of non-existence nor invalidity of the company in the latter.

The crux of the argument is validity and, therefore, enforceability of the contract. The defendants argue that they were dealing with a fake, but in reality, non-existent company. It is consequently argued that the contract was void *ab initio*, inferrably on account of fraud and/or misrepresentation. On the other hand, the plaintiffs contend that the contract cannot be invalidated on the mere purported non-existence of the plaintiff company, an argument which, however, is not substantiated by any evidence. The more so where the plaint includes that second plaintiff whose identity has never been doubted at anyone time, neither at the creation of the contract nor at the stage of execution and less still at the stage of these proceedings. Dr. Lamwai for the

plaintiffs thus prayed the court to hold the suit is competent and the preliminary objection incompetent, to be overruled accordingly. On my part, I concur with Dr. Lamwai, for the plaintiffs, in the entire materiality of his arguments, which is why I overruled the objections at the outset reserving my reasons therefore. I now give those reasons.

In the first place, I do not see any misrepresentation on the part of the plaintiff at the creation of the contract based on identification of the parties and necessary information required for identification of both plaintiffs. I am also satisfied there was no attempt to withhold material information relating to identification and or address of the plaintiffs. If anything, omission of the street number in the plaintiff company's address in the contract agreement was inadvertent but non-fraudulent error which for that reason is negligible to invalidate the whole contract. For, if it were a calculated and designed non-disclosure, the plaintiffs would not subsequently disclose the street number as they do in their letter, annexe 8. Unless there was clear evidence of deliberate concealment, misrepresentation and/or overt act of fraud which, however, there is not, I would hold, as indeed I do, that the defendants are bound by the rules of estoppel (section 115 of the Law of Evidence Decree Chapter 5).

There was also the question of the plaintiff company not being registered in England. It is the defendants alleging this; they therefore had the duty to prove non-registration of the company in England: he who alleges a fact has the duty to prove it (sections 102 and 103 of the Evidence Decree Chapter 5). The defendants came up with no evidence to discharge this duty. This argument then, be on its own merits or in supplement to any other, would stand to collapse. It is accordingly overruled.

Lastly, albeit not the least, is on the position of James Samuel Kinyanjui, the second plaintiff in this case. Kinyanjui is the sole signatory on the side of the plaintiff party to the contract agreement. I am of the view that be is entitled in his own right and also on behalf of the company as party to the contract to sue (and/or be sued) in that regard. He was the sole natural person binding to the contract

the legal person in the name of Lamshore Ltd, as a party of the agreement. On these premises, I concur with Dr. Lamwai, for the plaintiffs, that the suit cannot fall at the mere non-existence of the plaintiff company where the natural person who brought that company into the picture is identifiable and available.

In the event, there was only one option to me and that was to overrule the preliminary objection and let the suit proceed on merit to its logical conclusion.

STEPHEN MASATO WASIRA *v.* JOSEPH SINDE WARIOBA AND THE ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Samatta, J.A.)

CAT-MZA CIVIL APPLICATION No. 1 OF 1998

Limitation of Time – Consequences thereof – High Court finds that an application filed was time barred – Whether such application may be dismissed or struck out – Section 3(1) of the Law of Limitation Act 1971.

Res Judicata – Issue decided in previous case was whether the first respondent had been served with Notice of Appeal – Issue in subsequent case is whether the applicant honestly believed he had served Notice of Appeal on the first respondent – Whether the matter in the subsequent case is res judicata.

Extension of Time – Grounds for extension of time – Applicant seeking extension of time to file Notice of Appeal after previous notice is struck out for failure to serve it on the respondent – Whether an honest but mistaken belief that he had served that previous notice is a sufficient ground to grant extension.

Aggrieved by the decision of the High Court in an election petition, the applicant filed a Notice of Appeal and subsequently lodged his appeal against that decision. The appeal was struck out following a preliminary objection on the ground that the Notice of Appeal had not been served on the first respondent. The applicant applied to the High Court for leave to file a fresh Notice of Appeal and serve it out of time. The High Court held that the application was time barred and struck it out. The applicant then brought this application before the Court of Appeal, to seek extension of time to file a fresh Notice of Appeal and serve it on the respondents. The respondents, besides resisting the application on merit, also raised objections to the application arguing that it was improper for the applicant to bring it to the Court of Appeal because the High Court had not determined the application to it on merit, but had only struck it out and the applicant, therefore, had the alternative of appealing against the said striking out or applying for extension of time to file that same application before the High Court. They also argued that the matter was *res judicata* because the Court of Appeal had rejected the claim that the applicant honestly believed that the first respondent had been served with a copy of the Notice of Appeal.

Held: (i) According to rule 44 of the Court of Appeal Rules, if the High Court refuses an application for extension of time like the one filed there by the applicant, the unsuccessful applicant may file a similar application before the Court of Appeal; the applicant, therefore, was entitled to file this application;

(ii) Having held that the application before it was time-barred, the High Court had, under section 3(1) of the Law of Limitation Act 1971, only the power to dismiss it and not to strike it out, as happened in this case;

(iii) The issue in the appeal that was struck out by this court was whether the 1st respondent was served with a copy of the Notice of Appeal while in the present litigation it is whether the applicant honestly believed that the first respondent was served; therefore, the issue in this application is not *res judicata*;

(iv) The conduct of the applicant was inconsistent with the assertion that he honestly believed that a copy of the Notice of Appeal had been served on the first respondent; the conclusion therefore is that the applicant did not believe that the Notice of Appeal had been served.

Application dismissed

Cases referred to:

(1) *Regina v. Connely* [1963] 3 W.L.R. 839, 850

(2) *Duedu v. Yiboe* [1961] 1 W.L.R. 1040

(3) *New Brunswick Railway Co v. British and French Trust Corporation Ltd* [1938] 4 All ER747

(4) *Hoystead v. Taxation Commissioner* [1926] AC 155

(5) *Reg. v. Morgan* [1976] AC 182

(6) *Dr. Ally Shabhay v. Tanga Bohora Jamat*, [1997] T.L.R. 305

(7) *Edwards v. Edwards* [1997] 1 W.L.R. 149

Mr Maira, for the Applicant

Dr. Mwaikusa, for the first Respondent

Mr Mwidunda, for the second Respondent

Statutory provision referred to:

(1) Law of Limitation Act 1971, section 3(1)

(2) Appellate Jurisdiction Act 1979, section 11(1)

RULING

(Dated 29 September 1998)

SAMATTA, J.A.: This is an application under rule 8 of the Tanzania Court of Appeal Rules 1979 (hereinafter referred to as "the rules") for two reliefs: (1) leave to lodge a Notice of Appeal in respect of the judgment of the High Court (Lugakingira, J., as he then was) in Miscellaneous Civil Cause Number 25 of 1995 out of time; and (2) leave to serve upon the respondents copies of the aforesaid Notice of Appeal out of time. The applicant's application before the High Court (Mrema, J.) for the same reliefs was unsuccessful, the learned judge having held that it was, under section 3 of the Law of Limitation Act 1971, as read together with Item 21 of Part III of the First Schedule to the Act, time-barred.

The background to the application may, I think, be stated as follows. The applicant was one of the candidates who, in the General Election conducted in October 1995 in the country, contested the Bunda parliamentary seat. The first respondent was one of his opponents in the election. At the conclusion of the poll, the Returning Officer declared the applicant to be the successful candidate. The first respondent was aggrieved by that result of the election; he summoned the law to his aid – he petitioned the High Court, under section 8(2) and III (c) of the Elections Act 1985 (the Act) for, *inter alia,* a declaration that the election was, on the ground that it was not free and fair, null and void. On 30 August 1996, after a long trial, Lugakingra, J. (as he then was) allowed the petition and declared the election of the applicant as a Member of Parliament for Bunda Constituency null and void. In the judgment the learned judge found the applicant guilty of an act of corrupt practice but, holding that corrupt practice was no longer a certifiable electoral offence, he declined to certify the said corrupt practice to the Director of Elections. The applicant was aggrieved by the aspect of the learned judge's decision declaring the election null and void. On 2 September 1996, he lodged a Notice of Appeal in respect of it. On 1 November 1996, he lodged his appeal, Civil Appeal Number 50 of 1996. The first respondent, on his part, was aggrieved by the learned trial judge's decision declining to certify to the Director of Elections that the applicant was guilty of an act of corrupt practice. He also lodged an appeal, in which he prayed for, among other relief, an order directing the learned trial Judge to certify to the Director of Elections in terms of section 114(1) of the Act. When the applicant's appeal to this court came on for hearing, Dr. Mwaikusa, who was counsel for the first respondent in the appeal, raised, pursuant to a notice he had given in May 1997, under rule 100 of the rules, a preliminary point that the appeal was incompetent in law on the ground that, contrary to rule 77(1) of the rules, a copy of the Notice of Appeal has not been served on his client. In

his affidavit sworn in support of the preliminary point the first respondent emphatically denied having been served with the document. The applicant sought to meet the preliminary objection by asserting that on 2 September 1996, he attempted to serve a copy of the notice on Mr Rweyamamu, the advocate who represented the first respondent at the trial, but the said advocate refused to accept the service. The applicant further asserted that, following the advocate's refusal, he visited Mwanza Hotel where the first respondent was staying as a guest, but, having not found the latter in his room, he left a copy of the notice with one John Natay (Natay), a receptionist at the hotel, who informed him that the first respondent had not yet checked out of the hotel and who undertook to deliver the document to him. In his counter-affidavit the applicant asserted that later Natay informed him that he had delivered the document to the first respondent. Natay swore an affidavit in which he asserted that he had delivered the document to the first respondent at the hotel and that he did so on 2 September 1996. The first respondent countered under oath that Natay could not have done so because he checked out of the hotel at 8:30 am. on that day to catch a scheduled flight to Dar es Salaam. This court carefully considered the competing assertions, and the upshot of it was that it was satisfied that it was more probable than not that the first respondent had not been served with a copy of the Notice of Appeal. It accordingly struck out the appeal on the ground that it was incompetent in law. In the course of its ruling the court said:

> Considering all the circumstances of the case, therefore, we are satisfied that it is more likely than not that the respondent was not served with a copy of the appellant's Notice of Appeal. That renders the appeal defective. Since the appellant did not take steps to remedy the defect until only after he was prompted by the respondent's notice of this preliminary objection, the appeal cannot now be saved.

The court, after a hearing, allowed the first respondent's appeal and directed that the learned trial judge certify to the Director of Elections in terms of section 114 of the Act. His appeal having been struck out, the applicant filed before the High Court Miscellaneous Civil

Application Number 28 of 1997, in which he prayed for leave to lodge a Notice of Appeal and serve copies thereof on the respondents out of time, the application which Mrema, J., eventually "struck out" under section 3 of the Law of Limitation Act 1971, as read together with Item 21 of Part III of the First Schedule to the said Act. Following that "striking out," the applicant lodged the application now before me. In the affidavit he has sworn in support of that application the applicant substantially repeats the story he gave in his attempt to meet the preliminary objection which was raised against his appeal, but in paragraph (8) of the affidavit he states:

> ... I am bringing this application not to bring into question the ruling of the Court of Appeal on this matter, but to crave the Court of Appeal to find that I was under an honest but a mistaken belief that the notice had been served, while it had not, and to conclude that this is sufficient ground for granting this application.

When the application was called on for hearing, Mr Mwidunda, Principal State Attorney, raised, on behalf of the second respondent, pursuant to a notice he had given, two points *in limine*. The first point was that the applicant's application before Mrema, J., having been struck out on the ground that it was time-barred, the applicant had only two remedies available to him: either to apply before the High Court for extension of time within which to lodge an application for the two reliefs he sought or to seek leave to appeal to this court against the learned judge's ruling. The learned Principal State Attorney concluded his argument on this point by submitting that the application now before me is incompetent in law and ought, for that reason, to be struck out. Supporting that preliminary objection, Dr. Mwaikusa, counsel for the first respondent, contended that since the application before the High Court was not heard on merits, it having been struck out on a preliminary objection, the proper course for the applicant to take would have been to contest that striking out by way of appeal. Both counsel for the respondents urged me to strike out the present application. Mr Maira, counsel for the applicant urged me to hold that the application is properly before this court. He submitted that,

the High Court and this court enjoying concurrent jurisdiction to extend time within which to lodge a Notice of Appeal and to serve a copy thereof on a respondent, and the applicant having complied with rule 44 of the Rules, the reason for refusal of the application before the High Court is irrelevant in determining whether the application before this court is competent in law. According to the learned advocate, "refusal is refusal whether on a preliminary objection or on merits." The learned advocate went on to contend that seeking leave to appeal would have been a very lengthy and costly procedure. He urged me to dismiss the preliminary point with costs.

The second respondent's second preliminary point is that the application now before me is *res judicata*. Mr Mwidunda contended that in Civil Appeal Number 50 of 1996, between the same parties this court rejected the applicant's assertion that he (the applicant) honestly believed that the first respondent was served with a copy of the Notice of Appeal he had lodged in this court on 2 September 1996. According to the learned Principal State Attorney, that assertion having been rejected, the same cannot be the subject matter of fresh litigation between the parties under rule 8 of the Rules. Counsel concluded his argument on the point by urging me to dismiss the application now before me. In his very brief submission on this point, Dr. Mwaikusa adopted as his the learned Principal State Attorney's argument, and, like the learned Principal State Attorney, urged me to dismiss the application. Mr Maira strongly resisted the second preliminary point, too. He contended that the present application is *res nova*, because, as he put it, in Civil Appeal Number 50 of 1996 the applicant's case was that the first respondent was served with a copy of the Notice of Appeal, whereas in the instant application the heart of his case is that he honestly believed that the first respondent had been served. According to counsel, in Civil Appeal Number 50 of 1996 that issue was not litigated or determined. Mr Maira urged me to dismiss the preliminary point with costs. Neither Mr Maira nor counsel for the respondents cited any case in support of their arguments.

I propose to deal with the first preliminary point first. While I own that I find the arguments of counsel for the respondent on this point attractive, I do not find merit in them. The High Court has power under section 11(1) of the Appellate Jurisdiction Act 1979, to extend the time for giving notice of intention to appeal from its own judgment. Rule 8 of the Rules confers upon this court the same power. According to rule 44 of the Rules, whenever an application may be made to either court it shall in the first instance be made to the High Court. In my opinion, that rule implies, very clearly, that if the High Court refuses or dismisses such an application, the unsuccessful applicant may file a similar application in this court. It is true that Mrema, J.'s order was to strike out the application before him. In my respectful opinion having held that the application was time-barred, the learned Judge had only the power to dismiss it and not, as he purported to do, to strike it out. Section 3(1) of the Law of Limitation Act, the provision under which the learned Judge purported to base his order of striking out the application reads:

> 3(1) Subject to the provisions of this Act, every proceeding described in the first column of the First Schedule to this Act, and which is instituted after the period of limitation prescribed therefore opposite thereto in the second column, shall be *dismissed* whether or not limitation has been set up as a defence. [emphasis supplied]

In my opinion, the fact (assuming it is a fact) that the application before the High Court was time-barred cannot be said to have made that application a nullity. I can see nothing in rule 44 of the Rules which compels me to accede to the contentions made on behalf of the respondents. I agree with Mr Maira that there is no legal basis for upholding the first preliminary point. It should be pointed out for what it is worth that, according to section 43 thereof, the Law of Limitation Act is not applicable to proceedings in this court. I speak with no hesitation since my view upon the matter is clear: whether or not the remedies mentioned by counsel for the respondents were available to him, the applicant was entitled under rules 8 and 44 of the Rules, unless some other law prevented him, to file the

application now before me. I must therefore proceed to consider the merits or otherwise of the respondents' second preliminary point.

The law of this country, like the laws of other civilized nations, recognizes that, like life, litigation has to come to an end. Those who believe that litigation may be continued as long as legal ingenuity has not been exhausted are clearly wrong. Having made those observations, I proceed to consider whether the law precludes the applicant from asserting in the instant application that there were sufficient grounds for his delay in serving the first respondent with a copy of the Notice of Appeal. The first point I must determine is whether there is a law, which prohibits re-litigation between the same parties in this court. I have no doubt that the Civil Procedure Code 1966 (the code) is not such law. I hold that view because section 2 of the said Code makes the provisions of the code inapplicable to proceedings before this court. The section reads:

> 2. Subject to the express provisions of any written law, the provisions of this code shall apply to all proceedings in the High Court of the United Republic, Courts of Resident Magistrates and District Courts.

In any case, the application of the provisions of sections 9 and 10 of the code, which embody the doctrine of *res judicata,* is confined to *suits,* the meaning of which term does not include every judicial proceeding. But does that mean a litigant before this court may re-litigate a question which has been conclusively and finally determined in an earlier proceeding between the same parties (or privies)? To the question thus posed I would answer that the litigant cannot do so. In my considered opinion, litigation before this court (as well as litigation, other than *suits,* conducted before the High Court, Courts of Resident Magistrates and District Courts) is governed by the well established common law principle of *estoppel per rem judicatum.* According to that principle, "an issue distinctly raised and decided may not generally be permitted to be litigated afresh between the same parties or persons claiming under them": see *Regina v. Connely* (1). The principle applies where the question before the court was substantially

the issue decided in previous proceedings whether or not there was an express finding in terms: see *Duedu v. Viboe* (2). In his book, **An Introduction to Evidence**, (3 ed) at page 221, Professor GD Nokes describes the scope of the estoppel in the following terms:

> An estoppel by judgment can occur only when the same matter is litigated twice. An estoppel between parties includes both the decision and its grounds; but it is not always easy to ascertain whether a matter decided in a former action is the same as that raised in a later action. This is largely dependent upon the construction of the records, unless one or more of the issues in both proceedings is or are obviously identical.

In approaching my task at this stage of the proceeding, I also bear in mind the famous words of Lord Romer in *New Brunswick Railway Co. v British and French Trust Corporation Ltd.* (3) at page 770:

> ... It is no doubt true to say that, whenever a question has in substance been decided, or has in substance formed the ratio of, for been fundamental to, the decision in an earlier action between the same parties, each party is estopped from litigating the same question thereafter. However, this is very different from saying that he may not thereafter litigate, not the same question, but a question that is merely substantially similar to the one that has already been decided.

Applying to this case the principles stated in the above quoted passages, I ask myself whether, by raising the issue of *bona fide* belief in the application now before me, the applicant can be said to be attempting to re-open the issue which this court was called upon to, and did, decide on the preliminary objection raised by the first respondent in Civil Appeal Number 50 of 1996. With all respect to the energetic arguments of counsel for the respondents, I am of the settled opinion that the litigation in the Civil Appeal and the one in the present application are distinct from each other. As rightly contended by Mr Maira, the issue in the former proceeding was whether the first respondent was served with a copy of the Notice of Appeal, while in the present litigation it is whether, accepting that no such service was effected, the applicant honestly believed that the first respondent was served.

While admiring the respondents' counsel's submissions, I am unable to see how it can be said that the latter issue was substantially in issue in the earlier proceeding. I do, of course, take the following passage from the judgment of the Judicial Board of the Privy Council, delivered by Lord Shaw, in *Hoystead v. Taxation Commissioner* (4) at page 170, as also representing the law of this country:

> ... The plea of *res judicata* applies, except in special cases, not to points upon which the court was actually required by the parties to form an opinion and pronounce a judgement, but to every point which properly, belonged to the subject of litigation, and which the parties, exercising reasonable diligence, might have brought forward at the time.

I cannot, however, see how, the issue in Civil Appeal Number 50 of 1996 having been whether the first respondent was served, the applicant could properly introduce in his response to the preliminary objection raised in the appeal the assertion he has made in the instant application, namely, that he honestly believed that the first respondent was served. It is true, of course, that on page 6 of its ruling this court makes a finding on the applicant's belief, but in my view that finding did not in substance form the ratio of the court's decision.

For the foregoing reasons, I am of the firm opinion that the applicant's assertion in the application now before me that he honestly believed that the first respondent was served is not legally inconsistent with the finding of this court in Civil Appeal Number 50 of 1996 that it was more probable than not that the first respondent was not served with a copy of the Notice of Appeal. The issue concerning the applicant's belief is not, in my opinion, *eadem questio*. I conclude, therefore, that the salutary principle of *estoppel per rem judicatum* is not applicable to the application now before me.

For the reasons I have endeavoured to give, I dismiss the preliminary objections with costs.

That decision brings me face to face with the question raised by the application for leave to lodge a Notice of Appeal to serve copies thereof on the respondents out of time, namely, whether the applicant

believed that the first respondent was served with a copy of the Notice of Appeal he, the applicant, had lodged in court on 2 September 1996. Before I proceed further, however, I desire to make it perfectly clear that, although in this ruling I will, like counsel in their arguments addressed to me, use the words "honest belief (*bona fide* belief)" and " honestly believed" (partly because some of our laws, including the Penal Code, use such terms), I entirely agree with what Lord Fraser says in the following passage from his judgment in *Reg. v. Morgan* (5) at page 236:

> Strictly speaking, I do not think that a belief, if held at all, can be held otherwise than honestly.

A belief may be formed with or without due care and may, therefore, be reasonable or unreasonable, but it cannot, in my opinion, be dishonest. It would be a contradiction of terms to speak of a "dishonest belief."

In a very energetic argument, Mr Maira urged me to hold that the applicant honestly believed that the first respondent was served with a copy of the Notice of Appeal. He drew my attention to, among other things, the following two factors as evincing that belief: (1) the applicant's "attempt to serve the document on Mr Rweyemamu;" and (2) the applicant's visit to the Mwanza Hotel for the purpose of effecting service on the first respondent.

According to the learned advocate, the applicant intended to do what the law required him to do but, unfortunately, he did not achieve that goal. Mr Maira further submitted that this application is one in which, to use his own words, "the rigours of the law should be oiled with the conscience of the court". He urged me to grant the application. Both counsel for the respondents vehemently opposed it. Dr. Mwaikusa contended that the applicant's alleged belief that the first respondent had been served is an incredible story because, as the learned advocate put it, the applicant's conduct after 2 September 1996, including his failure to verify the service; his statements to the press on 8 September to the effect that he had no intention of appealing against Lugakingira, J.'s judgment; and the fact that on the following day,

that is to say, September 9, he wrote to the Chairman of the National Electoral Commission, with a copy to the Speaker of the National Assembly, formally informing him that he had no intention of lodging an appeal, and asking him to initiate the process for a parliamentary by-election in the Bunda Constituency, proves that the applicant had no intention to appeal against the High Court's decision. Mr Mwidunda essentially adopted Dr. Mwaikusa's submissions as his. He also asked me to take into account, in reaching my decision on the question whether or not the applicant honestly believed that the first respondent was served with a copy of the Notice of Appeal, the fact that after allegedly handing over the document to Natay the applicant made no effort whatsoever before the notice of preliminary objection was served on him to check with the hotel receptionist whether he had handed over the document to the first respondent.

What a man believes can only be ascertained from his conduct and statements. I ask myself, therefore, whether the material before me proves on a balance of probabilities that the applicant honestly believed that Natay had served the copy of the Notice of Appeal on the first respondent. Having given anxious and, I hope, careful consideration to that issue, I find myself constrained by the material (including relevant court records) before me to answer it in the negative. Upon being made aware many months later that the first respondent had given a notice, under rule 100 of the Rules, that he intended to raise a preliminary objection to his (the applicant's) appeal, the applicant's immediate reaction was to file in this court Civil Application Number 29 of 1997 in which he prayed for extension of time within which to serve a copy of the Notice of Appeal on the first respondent. This reaction is, in my opinion, totally inconsistent with the alleged fact that the applicant honestly believed that Natay had done what he had asked him to do, namely, to serve a copy of the Notice of Appeal on the first respondent. That conduct of the applicant suggests strongly in my view – that the applicant was not informed by Natay that he had served the document on the first respondent. If his assertion now were true his natural immediate reaction would, I think, have

been to ask Natay to swear an affidavit to contradict the assertion implied in the first respondent's intended preliminary objection. I can see nothing in the steps the appellant took on 8 and 9 September 1996, in relation to the Bunda parliamentary seat, which robs the conclusion that the applicant did not believe that Natay had served a copy of the Notice of Appeal of its force. In my opinion, no one sufficiently conversant with human behaviour would regard the applicant's reaction as being consistent with the assertion that the appellant honestly believed that Natay had served a copy of the Notice of Appeal on the first respondent. On a balance of probabilities I find, therefore, that the applicant had no such belief.

In *Dr. Ally Shabhay v. Tanga Bohora Jamaat* (6), I ventured to express the view, which I adhere to, that what is stated by Sir Joceyln Simon, P., in the following passage from his judgment in *Edwards v. Edwards* (7), at page 151 is equally true as regards the administration of justice in this country:

> So far as procedural delays are concerned, Parliament has left a discretion in the courts to dispense with the time requirements in certain respects. That does not mean, however, that the rules are to be regarded as, so to speak, antique timepieces of an ornamental value but of no chronometric significance, so that lip service only need to be paid to them. On the contrary, in my view the stipulations which Parliament has laid down or sanctioned as to time are to be observed unless justice clearly indicates that they should be relaxed.

Having regard to what I have said above, I am of the firm opinion that in the instant case justice does not indicate that the stipulations in the provisions of rule 77(1) of the Rules should be relaxed in favour of the applicant. *Interest republicae ut sit finis litium* (It concerns the State that there be an end of litigation). The application is dismissed with costs.

WANKIRA BETHUEL MAISE AND NATIONAL HOUSING CORPORATION *v.* KAIKU FOYA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, J.A)

CIVIL APPLICATION No. 42 OF 1998

(From the decision of the High Court of Tanzania at Dar es Salaam, Mackanja, J., dated 26 June 1998 in Dar es Salaam)

Civil Practice and Procedure – Execution of decree – Stay of execution pending appeal – Application for stay of execution pending an appeal that requires Leave to Appeal – Whether stay of execution may be granted where no Leave to Appeal has been sought and granted.

The applicant filed an application for stay of execution of a decree of the Court of the Resident Magistrate pending appeal to the Court of Appeal. The intended appeal required leave to appeal but no such leave had been obtained or applied for.

Held: Where Leave to Appeal has not been sought and obtained, an application for stay of execution pending appeal is not properly before the court.

Application is struck out

Cases referred to:

(1) *Bank of Tanzania v. Minister of Labour and 8 others*, Civil Applications Numbers 11 and 12 of 1997 (unreported)

(2) *Willow Investments v. Mrs Mbombo Ntumba* [1997] T.L.R. 93

(3) *National Bank of Commence v. Star Transport Co. Ltd*, Civil Application Numbers 60 of 1995 (unreported)

Mr Wambali, for the first Applicant

Mr Luguwa, for the second Applicant

Capt. Sanze, for the Respondent

JUDGMENT

(Dated 30 September 1998)

RAMADHANI, Ag. C.J.: This is an application for a stay of execution. However, the respondent filed a notice of preliminary objection containing two points but only one of them is relevant and was conceded to by the learned advocates of the applicants. Captain Sanze, learned advocate for the respondent, pointed out that this matter originated in the Court of the Resident Magistrate and so, required Leave to Appeal but none has been obtained. The learned advocate added further that as time has lapsed, there is a need to apply for an extension of time within which to file the application for Leave to Appeal.

At first, both Mr Wambali, learned counsel for the first applicant, and Mr Lugua, learned advocate for the second applicant, resisted the objection saying that there is an application pending before the High Court asking for leave to appeal. However, at the end of the day, they threw in the towel and conceded that there is no leave to appeal and also that time to apply for leave needs to be enlarged. Both learned advocates applied for an adjournment so as to consider withdrawing this application formally. Upon being told by the court that there is this prayer for striking out the application for stay of execution, both learned advocates decided to leave the matter with the court. Captain Sanze, on the other hand, stuck to his guns and reiterated his prayer for striking out the application for stay of execution.

The objection has greatly exercised my mind but finally, I am of the considered opinion that I have to follow the decisions of this court on similar applications like this before me now. It has been decided in a number of instances that where leave to appeal has not been obtained, then an application for stay of execution is not properly before the court. I held so in *Bank of Tanzania v. Minister of Labour and eight others* (1). In those applications I referred to two decisions of this court: *Willow Investments v. Mrs Mbombo Ntumba* (2); and *The National Bank of Commerce v. Star Transport Co. Ltd.* (3).

So, the preliminary objection is upheld and this application is struck out as it is not properly before the court. Costs to follow the event. The applicants are free to exercise their right of reference if they so wish. Overruled by *East African Developemnt Bank v. Blue Enterprises Ltd and another*, Court of Appeal of Tanzania at Dar es Salaam, Civil Reference Number 7 of 2004 (12 November 2004).

SAID A. MARINDA AND THIRTY OTHERS *v.* MINISTER OF LABOUR AND YOUTH DEVELOPMENT AND THE ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Mapigano, Mackanja and Kalegeya, JJ.)

MISCELLANEOUS CIVIL CAUSE No. 57 OF 1996

Labour Law – Labour disputes resolution – Jurisdiction of the Minister in labour disputes – Whether the Minister has jurisdiction to adjudicate on disputes founded on redundancy – Sections 39(2) and 40A of the Security of Employment Act 1964.

Labour Law – Voluntary Agreement – Voluntary agreement signed by employer and employees' union but neither party takes steps to get it registered by the Industrial Court – Effect of the failure to register the agreement – Section 39(4) of the Industrial Court Act 1967.

As part of an exercise to restructure its business the Bank of Tanzania, as employer, declared a number of its employees redundant and terminated their employment. Those terminated included the applicants who, being aggrieved by the termination, sought to challenge it through their trade union. The trade union reported the matter as a trade dispute to the Labour Commissioner who, with the consent of the Minister for Labour, the first respondent, referred it to the Industrial Court for inquiry in terms

of section 9B of the Industrial Court Act 1967. The Minister considered the dispute and decided to dismiss it; the decision, of the Minister, was registered as an award of the Industrial Court. Aggrieved, the applicants filed this application for *certiorari* on the grounds that the Minister had no jurisdiction over the dispute as it was founded on redundancy, that the Minister based his decision on terms of a voluntary agreement that was not registered as required by the law, and that the procedural requirements for redundancy were not followed in declaring the applicants redundant.

Held: (i) Although the applicants were indeed employees in terms of the Security of Employment Act 1964, that fact did not entitle them to contest their redundancy under that law; sections 40A and 39 of the Security of Employment Act 1964 do not allow employees to contest termination of employment effected by way of a redundancy exercise and they did not contest their termination under that Act;

(ii) As the voluntary agreement signed by the employer and the employees' union was not registered by the Industrial Court; the said agreement was, according to section 39(4) of the Industrial Court Act 1967, inoperative and not binding on the parties to it;

(iii) As the applicants' employment was terminated by way of a redundancy exercise carried out on the basis of a voluntary agreement that was not registered; the redundancy exercise was invalid *ab initio*;

(iv) As the dispute referred to the Minister arose from a redundancy exercise that was invalid *ab initio*, there was nothing before the Minister on which to make a decision and, accordingly, the Minister's decision was also invalid;

(v) The employer's decision of terminating the applicants' employment by way of redundancy was also invalid for failure to consult with the field branch of the employees' trade union prior to the redundancy exercise as required under section 6(1)(g) of the Security of Employment Act 1964.

Minister's decision and award of the Industrial Court quashed

Case referred to:

(1) *Njombe/Ludewa/Makete Cooperative Union Ltd v. Minister for Labour, Youth and Culture*, HC – Songea – Miscellaneous Civil Cause Number 8 of 1994 (unreported)

Statutory provisions referred to:

(1) Security of Employment Act 1964, sections 6(i)(g), 39(2) and 40A

(2) Industrial Court Act 1967, sections 39(4), 4(1) and 4(1A) and 9

(3) Employment Ordinance, section 2

Mr Msemwa, for the Applicants

Mr Mwidunda, for the Respondents

RULING

(Delivered 02 October 1998)

MACKANJA, J.: The applicants were at one time employees of the Bank of Tanzania (the employer). It seems that it became necessary for the employer to restructure its business. We are not called upon to consider whether or not the exercise was necessary or expedient. Suffice it now to say that the reduction of employees became one of the ways of going about what had to be done. The applicants are among those who were retrenched. They were aggrieved, so they took steps to challenge the employer's decision. They commenced their search for justice with filing their complaint at their field branch. A field branch is, according to section 4 as read together with section 5 of the Security of Employment Act, Chapter 574, a branch of a trade union which must be established at the employer's place of business in which ten or more union members (being employees within the meaning of that Act) are employed. The matter was ultimately referred to the Secretary General of the trade union, the Organization of Tanzania Trade Unions – OTTU, because the field branch could not resolve the dispute. On his part, the Secretary General reported a trade dispute to the Commissioner for Labour who, with the consent of the Minister for Labour, referred the matter to the Industrial Court

of Tanzania for inquiry in terms of section 9B of the Industrial Court Act 1967. The Minister considered the dispute and made a decision. In his decision, which was registered as an award by the Industrial Court, he dismissed the complaint. The applicants were aggrieved, hence this application.

The purpose of this application is in the prayer that this court removes unto itself the decision of the Minister and issue an order of *certiorari* to quash the decision of the Minister for Labour and Youth Development. They have four grounds in the statement, namely:

(1) that the Minister lacked jurisdiction to entertain the dispute against the applicants;

(2) that the Minister made his decision with regard to matters contained in the voluntary agreement which was not registered as required by law;

(3) That the applicants were governed by the Security of Employment Act which ousts the jurisdiction of the Minister; and

(4) That the applicants were not lawfully and justifiably made redundant because procedural requirements as laid down by law were not followed.

Mr Mwidunda, learned Senior State Attorney, appeared for the respondents while Mr Msemwa is advocating for the applicants. The respondents did not file any written arguments.

Mr Msemwa, learned counsel for the applicants, did not see it necessary to argue seriatim the grounds on which the application is founded. According to his priorities the first ground is last but one. Ground four is the last one. Ground two comes ahead of the first ground. We will ignore that approach; instead we will consolidate the first and the third grounds, since they concern almost the same issue.

Learned counsel contends that all the applicants are employees whose labour – management relations fall within the perview of the Security of Employment Act, 1964. According to him the Minister's

jurisdiction in relation to the discipline of such employees is limited to summary dismissal and termination as provided by section 40A of the Security of Employment Act. He argues that there are no provisions that empower the Minister to adjudicate trade disputes founded on redundancy. He cites *Njombe/Ludewa/Makete Co-operative Union Ltd v. Minister for Labour, Youth and Culture* (1) Mwalusanya, J., as authority. He has on the authority of that case, urged us to undo the Minister's decision. The first issue we are called upon to decide, therefore, is whether the applicants are "employees" for purpose of the Security of Employment Act.

Section 40A of the Security of Employment Act 1964 (Chapter 574) was enacted by way of an amendment to the above Act. It was one of the amendments that were enacted in Labour Laws (Miscellaneous Amendments) Act Number 1 of 1975 which Mr Msemwa erroneously cites as Act Number 150 of 1975. To the extent that it is relevant here section 40A provides thus:

> 40A(1) Notwithstanding any other provision of this Act or of any other written law, where an employer terminates the employment of any employee or summarily dismisses any employee and the employee is aggrieved by such termination or dismissal, the employee may at any time before the expiration of fourteen days from the date on which such termination or dismissal takes effect, refer such termination or dismissal to the (conciliation) board and the board may, if it is satisfied:
>
> (a) that the termination was manifestly unreasonable and
>
> (b) that the circumstances in and on account of which the employment of the employee was terminated by the employer are not circumstances of the kind specified in subsection (2) of section 39; and
>
> (c) that the employee did not consent to the termination or that the termination was not at the instance of the employee; and
>
> (d) that the employee has not accepted any statutory compensation to which he may be entitled under this Act; and
>
> (e) that the employee has not taken up any other employment; and

> (f) that it will not be unreasonable or unjust to order the employee's re-instatement or the re-engagement by the employer,

Order the employer to re-instate or re-engage the employee.

Whoever is aggrieved by the decision of the board has the right to appeal to the Minister for the time being responsible for labour matters. As it can be seen, section 40A and those preceding it and that which come after it have one legislative scheme. They contain previsions that deal with the discipline and tenure of office of an individual employee. The Security of Employment Act 1964, therefore, creates jurisdiction for the conciliation boards and for the Minister in relation to labour disputes involving a single employee. And, for the purposes of this Act the term 'employee" does not cover all salaried employees and wage earners. It has the meaning ascribed to it by section 2 of the Employment Ordinance Chapter 366; it:

> means any person who has entered into or works under a contract of service with an employer whether by way of manual labour, clerical work, or otherwise and whether the contract is expressed or implied or is oral or in writing.
>
> ... been covered but are deliberately exempted. They include members of Military Forces; members of the Police Force; members of the Prisons Services; members of the National Service; members of the Unified Teaching Service; members of the East African Community; Civil Servants in the service of the United Republic other than members of the auxiliary grades; casual employees; apprentices and any employee who, in the opinion of the labour officer, is employed in the management of the business of his employer. So an "employee" who is covered by the provisions of the Security of Employment Act, 1964, is one who does not have any thing to do with the management of the employer's business and personnel.

There is no evidence in the instant case that any of the applicants is caught up by the exemptions. They are, therefore, held to be employees in respect of whom the Security of Employment Act applies.

Granted that the applicants are employees within the meaning of that word as ascribed to it in the Security of Employment Act,

were they entitled to institute a collective dispute arising from a contentious redundancy exercise in terms of the Security of Employment Act?

It seems to us to be the case that not every unacceptable termination would entitle an employee to lodge a complaint before the Conciliation Board. The board must be satisfied that the pre-condition that is provided for in section 40A(1)(b) of the Act has been met, namely, that the circumstances in and on account of which the employment was terminated by the employer are not circumstances of the kind specified in subsection (2) of section 39 of that Act. They are:

(a) the winding up or partial winding up of the business, work which the employee was employed to perform, or the removal of the business wholly or partly from Tanganyika; or

(b) the total or partial suspension of the work for reasons outside the control of the employer; or

(c) the completion of seasonal or temporary work; or

(d) the redundancy of the employee; or

(e) the inefficiency of the employee or his inability to perform properly the work he was employed to do; or

(f) the failure or neglect of the employee, without any sufficient reason, to fulfil the duties incumbent upon him under the contract of employment or under the employer's works rules applicable to the place of employment; or

(g) the replacement of the employee for the purpose of improving efficiency and productivity; or

(h) the occurrence of any circumstances which, having regard to the nature of the work or the character of the business, render the employee unsuitable to continue to perform the work he was engaged to do; or

(i) the absence of the employee from work on account of illness beyond the time permitted by law or regulations or any collective agreement

or contract of service under which he is entitled to sickness benefits from his employer; or

(j) the employee has reached the statutory and compulsory retirement age; or

(k) the re-engagement or re-instatement of an employee in accordance with the decision of the board or the Minister into a position filled since such employee's termination or summary dismissal or suspension by the employer in question; or

(l) the employment is terminated in circumstances which would have justified summary dismissal under section 20 of the Act; or

(m) the employee has been engaged in undermining or attempting to undermine the authority of the employer or the Field Branch; or

(n) the Minister has certified that, in the interests of good industrial relations or for the avoidance of dissension at the place of work, the employment may be terminated without the payment of the statutory compensation.

It follows that even though the applicants are employees under the Security of Employment Act, that fact alone cannot entitle them to seek redress against a contentious redundancy under procedure that are laid down therein. Contrary to what they would like to have, section 40A and 39 of the Security of Employment Act bar any employee from contesting a termination of employment that arises from a redundancy. This means, therefore, that the fact that they are employees under the Security of Employment Act the Minister for Labour does not have jurisdiction unless he exercises powers that are vested to him by other legislative enactments. And as it will be shown later the Minister made the impugned decisions exercising a jurisdiction conferred to him under the Industrial Court of Tanzania Act Number 41 of 1967.

In the matter before us the applicants, all of whom are employees under the Security of Employment Act, did not prosecute their dispute with their employer through the Conciliation Board. Evidence on record

shows that they referred their dispute to their Field Branch from where the matter was referred to the Labour Commissioner. The Labour Commissioner referred it to the Minister for Labour and the latter ultimately referred it to the Industrial Court as a trade dispute for inquiry. The procedure that was followed, therefore, is one which is provided for under the Industrial Court of Tanzania Act Number 41 of 1967 as amended from time to time. There are three parallel procedures through which employees or employers may institute trade disputes at the Industrial Court. Two are created under section 4 and the third under section 9 of the Industrial Court of Tanzania Act1967.

The procedure under section 4 of the Industrial Court Act commences in one of two ways. Under subsection (1) of that section:

> (1) Subject to the other provisions of this section, any trade dispute... may, if not otherwise determined, be reported to the Labour Commissioner by notice in writing given either by or on behalf of the employer or on behalf of the employees, as the case may be, by the general secretary of a registered trade union of which the employees are members.

For purpose of this Act the word "employee" is defined under section 3 to mean:

> ...any person who has entered into a contract of service with an employer whether by way of manual labour, clerical work or otherwise and whether the contract is expressed or implied or is oral or in writing.

Read in isolation this definition is wider than that in the Security of Employment Act and the Employment Ordinance. It appears to suggest that it covers supervisory, managerial as well as ordinary employees.

Subsection (1A) of section 4 of the Industrial Court of Tanzania Act introduces an entirely new dimension. The way it is framed, it overrides the provisions of subsection (1) of that section; it states:

> (A) Notwithstanding subsection (1), an employee who-

> (a) is not an employee within the meaning assigned to that term by the Security of Employment Act, 1964; or
>
> (b) is not a member of a registered trade union, or
>
> (c) though a member of the registered trade union is not supported by the field branch in the dispute with his employer, shall be entitled to institute before the court a trade dispute between him and his employer, either in person or by advocate.

As it is clear from the provisions of subsection (1) of section 4, the Industrial Court of Tanzania Act makes provision for the determination of collective as well as individual trade disputes in the spirit of the definition of the expression "trade dispute". The expression "trade dispute" is defined to mean:

> ...any dispute between an employer and employees or an employee in the employment or non-employment or the terms of employment or with conditions of labour of any of those employees or such an employee.

We have given careful consideration to the provisions of section 4(1) and 4(1A) of the Industrial Court of Tanzania Act. We are of the firm view, and we so hold, that section 4 of that Act makes provision for two parallel procedures. The first one is that for which subsection (1) makes provision. It lays down procedure for collective disputes for employees irrespective of whether they belong to managerial, supervisory or auxiliary grades. The second procedure is where individual employees lodge trade disputes directly to the Industrial Court in accordance with the provisions of subsection (1A) of section 4. Under this latter procedure, and in view of the overriding nature of that sub-section, individual disputes can be lodged only by an employee who does not fall within the ambit of the Security of Employment Act.

A third procedure under which trade disputes may be determined is by way of an inquiry in accordance with the provisions of section 9 of the Industrial Court of Tanzania Act. It provides that:

> where any trade dispute exists or is apprehended, the Labour Commissioner may inquire into the causes and circumstances of the trade dispute and,

with the consent of the Minister for the time being responsible for labour matters, refer any matter appearing to him to be connected or relevant to that trade dispute to the Industrial Court whether or not the matter or dispute is a trade dispute within the meaning assigned to that expression by section 3.

It will be the duty of the Industrial Court to inquire into those matters and to report on them to the Minister. The provisions of section 9 appear to be as wide as those of subsection (1) of section 4 of the Industrial Court of Tanzania Act. They also admit of a wider definition of the term "employee".

The pleadings and the submissions of learned counsel for the applicants clearly show that the applicants prosecuted their dispute in accordance with the provisions of section 9 of the Industrial Court of Tanzania Act. Notwithstanding the fact that the applicants followed this procedure to the letter, they now swear that they have been advised by their advocate, Mr Msemwa, that the Minister lacked jurisdiction to entertain their trade dispute because it involves. "... redundancy matters originating under the Security of Employment Act." There is no doubt that the advice was wrong because as we have had occasion to say while considering the provisions of section 40A(1) and 39(2) of the Security of Employment Act, an employee for purposes of that Act, if his employment was terminated, redundancy is a circumstance in and on account of which an employee will not be entitled to refer a dispute to the Conciliation Board. Conversely, however, redundancy, being as it is connected to the existence or non-existence of employment, it can legitimately found a trade dispute before the Industrial Court for direct adjudication or by way of inquiry. The applicants' trade dispute was dealt with as an inquiry and that was in conformity with our laws. The contention to the contrary, therefore, is totally misconceived.

From the foregone considerations we hold the view that the first and third ground is wholly untenable; we would dismiss them.

This brings us to the second ground. There is evidence to the effect that soon before the retrenchment exercise was undertaken

by the employer, the employer and the trade union, the Orgnisation of Tanzania Trade Union (OTTU) commenced collective bargaining. The only negotiable issue was, it seems, the restricting of the employer's business and the consequent redundancies. As a result of collective bargaining, a voluntary agreement was put in place. It was finally signed by the parties that were privy to its conclusion. And, as stipulated in the agreement, the employer enforced that agreement and applied it in reducing employees that were considered as surplus age. The applicants are among the employees who lost their jobs as a result.

The applicants have taken great exception to the implementation of that agreement. They contend in their affidavit evidence that there was no consultation with all the OTTU field branches prior to the implementation of the redundancy exercise. At best, the leadership of the field branches were made aware of the exercise at the time of signing the voluntary agreement and that at that time the employer had already made a decision to retrench employees contrary to law. We think that kind of evidence is hearsay.

There is further affidavit evidence to the effect that the voluntary agreement is unenforceable because it was not registered by the Industrial Court of Tanzania. Mr Msemwa has addressed us on this point; we think he is basically right although he erroneously refers to the voluntary agreement interchangeably with a negotiated agreement. The two types of agreements are different and distinguishable. They also concern different issues. He has also touched on section 6(i)(g) of the Security of Employment Act 1964, which makes a mandatory requirement to the employer to consult with the field branch at his place of work if redundancy of employees becomes inevitable. We will first of all deal with the modalities of registering a voluntary agreement and the effects of registration and non- registration.

It is now common ground that the applicants' employment was brought to an end in a redundancy exercise. The modalities of that exercise, as we have shown, were based on a voluntary agreement which set down the criteria that were to be followed. As a matter of law, a voluntary agreement will not be enforceable and be binding

on the parties to it unless it is registered under section 39(4) of the Industrial Court of Tanzania Act 1967. In particular, the relevant part provides thus:

> (4) No voluntary agreement shall be operative or be binding on the parties thereto unless it is registered by the Industrial Court..
>
> Provided that where the court does not register a voluntary agreement within three months the employer and the employees may commence implementing the voluntary agreement.

So it is mandatory that in order to have an operative and enforceable voluntary agreement the parties to it must ensure that it is registered by the Industrial Court by taking all the necessary and appropriate steps that are laid down in the Act. The proviso to subsection (4) of section 39 applies only to a situation where having received the voluntary agreement the Industrial Court does not register it within three months of having received it. It seems to us, and we think it is borne out by the affidavit evidence, that the employer and the employees did not take any step with a view to registering their voluntary agreement. The complainants are now saying that the employer had no authority to carry out the retrenchment exercise that was based on the terms and conditions as laid down in the unregistered voluntary agreement.

The clear provisions of subsection 4 of section 39 of the Industrial Court Act admits no intelligible controversy. As it says "No voluntary agreement shall be operative or be binding on the parties thereto unless it is registered by the Industrial Court." We hold, therefore, that the voluntary agreement was inoperative and was not binding on OTTU who signed it on behalf of the employees. It automatically does not bind the applicants. It follows that since it is inoperative it cannot be the basis for a retrenchment exercise. Accordingly that exercise was invalid *ab initio*. That being the case there was nothing before the Minister on which to make a decision. In that circumstance reason compels us to say that the Minister's decision has thereby been rendered invalid.

Another ground upon which the rendition of the invalidity to the employer's decision, and consequently to the award of the Industrial Court, is founded is the non-observance of the mandatory provisions of section 6(1)(g) of the Security of Employment Act, 1964. That law requires the employer and the field branch to consult with one another:

> ... concerning any impending redundancies and the application of any joint agreement on redundancies.

Two things are required. First, to consult with one another; second the application of a joint agreement on redundancies if one has been reached. A purposeful interpretation of these provisions leads us to the conclusion that the consultations must produce a joint agreement on redundancies if one is not in place already. If the agreement is signed, then any action must be stayed until that agreement is registered by the Industrial Court. Alternatively, it may be implemented or, if after it is submitted to that court for registration and three months have elapsed before it is registered. In this case there was no operative joint agreement, otherwise termed a collective agreement, under which a redundancy exercise could be carried out. There was therefore nothing before the Minister to decide.

It is upon the foregoing considerations that we now hold that the applicants have made out their case. Accordingly the prerogative order of *certiorari* would lie. In the final result the application is allowed with costs. Consequently the Minister's decision and the award of the Industrial Court are quashed.

JAMES IBAMBAS *v.* FRANCIS SARIYA MOSHA

HIGH COURT OF TANZANIA AT MWANZA

(Lugakingira, J.)

CIVIL APPEAL No. 54 OF 1994

(From the decision of the District Court of Sengerema at Sengerema, in Civil Case No. 13 of 1992, J.K. Mzonge, District Magistrate)

Land Law – Customary title to land – Whether customary title to land terminates upon the land being surveyed – Section 2 of the Land Ordinance.

Land Law – Acquisition of title to land – Offer of title to land given over land still held under customary law – Effect thereof.

The respondent applied for and was offered the disputed plot of land in 1985 and issued with a Certificate of Occupancy, and continued to pay rent regularly. In 1990, when he wanted to enter the land he was resisted and thrown out by the appellant who was living there. The trial court found for the respondent, holding that the land was allocated to him lawfully after it was surveyed, and that the appellant had no title since he had already been compensated. According to the evidence the appellant had acquired the land in 1959 and was staying thereon ever since; the land was surveyed in 1984 and the allocation to the respondent was made in 1985; and the compensation for the plot was brought in 1989, four years after the allocation to the respondent.

Held: (i) The appellant held a valid customary title over the land from which the disputed plot was created and that title did not terminate on account of the mere act of surveying the land; something more than mere survey was required to extinguish the appellant's title;

(ii) Customary title to land can be extinguished by surrender, signified by offer and acceptance of compensation;

(iii) Compensation paid to the appellant 4 years after the purported allocation to the respondent could not retrospectively extinguish the appellant's customary title;

(iv) Since the customary title was neither surrendered nor extinguished otherwise, it still subsisted when the purported allocation was done and no valid offer could thereby be given to the respondent;

(v) The respondent had acquired no title to the land and was a trespasser.

Appeal allowed

Case referred to:

(1) *S. Kakubukubu v. M J Kasubi*, Court of Appeal, Civil Appeal Number 14 of 1991(unreported)

Mr Magongo, for the Appellant

Mr Nasimire, for the Respondent

Statutory provision referred to:

(1) Land Ordinance, section 2

JUDGMENT

(Dated 13 October 1998)

LUGAKINGIRA, J.: This appeal arises from the decision of the District Court of Sengerema, in a dispute over the ownership of Plot Number 18, Industrial Area, Sengerema Township. The respondent brought action alleging that the appellant had trespassed on the plot and praying for the appellant's ouster and compensation for destroyed banana plants. The action was successful in all respects save for compensation where the trial magistrate found no evidence of the alleged destruction.

Briefly, in 1985 the respondent applied to the Sengerema District Land Office for an industrial plot. He was offered the disputed plot by a letter dated 30 April 1985. He paid the fees required of him and was issued with a Certificate of Occupancy (Land Office Number S. 242104) for a term commencing on 1 April 85 and expiring on 30 June 85 and thereafter on a year to year basis. He has been regularly paying the annual land rent. But when in or about 1990 he attempted to enter the plot, he was resisted and thrown out by the appellant. This gave rise to criminal proceedings which terminated in this court in (PC) Criminal Appeal Number 30 of 1990. The court stated that

the matter at issue was civil rather the criminal, hence the instant proceeding.

It was not disputed, on the other hand, that the appellant acquired the land in which the disputed plot came to be comprised in 1959 and had since been living there with his family. He claimed at the trial that his efforts to obtain a right of occupancy from the District Land Office in the 1970s and 1980s were unsuccessful, as he was always told that the area had not yet been surveyed, but he was surprised when in 1989 the respondent confronted him with his letter of offer.

Further evidence for the respondent's side came from the Land Surveyor, PW3 Mabula Gogadi, who surveyed the area in 1984 and the District Land Officer, PW Deusdedit Narwango, who stated that the appellant was paid compensation of TZS. 30 000 on 2 March 1989 for his house and crops on the plot, but this was challenged by the appellant in cross-examination.

In his judgment, the trial magistrate said, *inter alia*:

> ... there is no dispute that there is a letter of allocation of the grant of the plot served on the plaintiff (Exhibit "A") which means that, I should be taken as deliberately saying that the plaintiff is currently the lawful owner of the plot in dispute, by virtue of its lawful allocation to him after the plot was surveyed... it is an elementary principle that as between the plaintiff and defendant, the one who has a better title to possession prevails. Accordingly the defendant has no good title over the suit plot since he has already been compensated.

Mr Magongo who appeared for the appellant attacked this decision on three grounds, but I will confine myself to two. He submitted, in the first place, that the respondent's offer was not superior to the appellant's deemed right of occupancy which had not been extinguished in the absence of acquisition or revocation, and cited *S. Kakubukubu v. M.J. Kasubi* (1), a decision of the Court of Appeal; and, secondly, he expressed doubts on the evidence regarding payment of compensation. In reply Mr Nasimire, who appeared for the respondent, expressed doubts whether the appellant had been on the land since 1959 and

suggested that if additional evidence was required on the payment of compensation it could be called for.

I did not, with respect, find Mr Nasimire's response very useful. The appellant's evidence of acquiring the land in 1959 and staying on it ever since was in fact not disputed at the trial. As regards payment of compensation, I do not need additional evidence when the alleged payment was itself placed on 2 March 1989, that is, four years after the material events, and when such evidence might amount to curing a defective respondent's case, as opposed to providing a clarification. The issue for determination, and which the trial magistrate toyed with, is whether the respondent acquired a valid title over the plot. The magistrate was of the impression that the respondent acquired a lawful title through the allocation, and he derived this from the fact that the land was surveyed as well as his finding that compensation was paid to the appellant. I think the impression was erroneous from both scores. In accordance with section 2 of the Land Ordinance Chapter 113, the appellant held a customary title over the land from which the disputed plot was created and this title was by no means extinguished by the mere act of the survey. It was a misconception for PW3 to say, as he did, and for the magistrate apparently to believe, that the appellant and other persons whose lands were similarly surveyed became squatters following the survey, when the provisions of the Land Survey Ordinance Chapter 390, do not provide for the extinction of existing rights upon the survey of any piece of land. You do not enter upon somebody's land, whether with or without his invitation, survey it and brand him a squatter, although I do happen to know how popular the expression is in the Land Office parlance. Something more than just a survey was therefore required to extinguish the appellant's title. Unfortunately PW3 did not say in what circumstances the survey was prompted. Mr Magongo therefore suggested that the title should have been acquired or revoked, citing *Kakubukuku* (1). In fact that case never decided on the modes of extinguishments of customary titles as such but held that the caretaker of the land

involved had no authority from the appellants, its owners, to surrender it. Regarding revocation in particular the court said:

> ...we should point out... that the provisions of section 10 of the Land Ordinance could not have been applied as the land, though urban, was held by the appellants under customary law...

In my view, while the provisions of the Land Acquisition Act, 1967 relating to compulsory acquisition or the declaration of redevelopment areas may in appropriate cases be used to extinguish customary titles, but there was no evidence of any such process here, the least demanding, yet equally efficacious course, is that of surrender, signified simply by an offer and acceptance of compensation. What was the position in this case?

Assuming for argument's sake that compensation was paid to the appellant, this was admittedly done in 1989, four years after the purported allocation. The payment could not have retroactive effect. This means when the respondent was offered Plot Number 18 in April 1985 the appellant's customary title still subsisted, since it had neither been surrendered nor otherwise extinguished, and no valid offer can be made of land with a subsisting title. The respondent therefore acquired no title and there was no title which he could renew from year to year. It must be said, above all, that the so-called evidence of compensation relief upon was secondary and inadmissible in the circumstances of this case. PW2 was not at Sengerema at the time of the alleged payment but derived his information from a payment voucher in his custody. That payment voucher, being available, was the admissible evidence and should have been tendered accordingly. As it is now, there was no evidence of payment at all.

It follows, in my judgment, that this appeal succeeds and is allowed with costs. The appellant is and has always been the lawful owner of the disputed plot. He may, if he wishes, take out a right of occupancy from the Land Office.

LUCAS HASSAN MWAMBA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Ramadhani and Mfalila, JJ.A.)

CRIMINAL APPEAL No. 204 OF 1994

(From the decision of the High Court of Tanzania at Morogoro, Kyando, J., in Criminal Sessions Case No. 55 of 1988, dated 29 July 1994)

Criminal Law – Murder – Defence of insanity – When defence may be raised or pleaded.

Criminal Practice and Procedure – Insanity as a bar to a trial – Procedure to be followed by trial court.

The appellant was convicted of murder contrary to sections 196 and 197 of the Penal Code Chapter 16, and condemned to suffer death. In the trial before the High Court the appellant's Counsel raised insanity as a bar to the trial but the trial judge took it as a defence of insanity and proceeded to convict him of murder. On appeal against conviction;

Held: (i) There are two situations in which the issue of insanity could be raised: as a defence to a charge of murder arguing that at the time of committing the offence the accused person was insane; or as a bar to a trial arguing that the accused person is in capable of standing trial.

(ii) In this case insanity was advanced as a bar to trial the learned first trial judge ought to have proceeded with the hearing of the case for the prosecution and when he decided that there was a case to answer then he should have ordered the appellant to be sent to Isanga Mental Asylum, only to continue with the trial or start it *de novo,* as the case might have been, if there was a medical report that the appellant was fit to stand trial.

(iii) There was no miscarriage of justice there is no reason at all to order a retrial.

Appeal dismissed

Mr Mselem, for the Appellant

Msection Korosso, for the Republic

Statutory provisions referred to:

(1) Penal Code, sections 196 and 197

(2) Criminal Procedure, sections 216(3), 216(8), 293 and 388(1)

JUDGNMENT

(Delivered 23 October 1998)

RAMADHANI, J.A.: The appellant, Lucas Hassan Mwamba, was convicted of murder contrary to sections196 and 197 of the Penal Code Chapter 16, and was condemned to suffer death. He has preferred this appeal.

The appellant was living with his two wives, Anatoria Mihayo (PW1) and Dotina Damas (PW3), at Msemule Village, Kilosa District. The appellant had gone away leaving PW1 pregnant and on his return he found her with a baby. It was the evidence of PW1, PW3 and also Lomjo Hassan Mwamba (PW2), the younger brother of the appellant, who was also living in the same house, that the appellant was disturbed by the fact that the baby was black.

On Saba Saba Day of that year, 1987, the appellant, PW2 and PW3 went to the festivals. The appellant was the last to return home in the late hours of the night and was let into the house by PW1. After some time PW1 went out and upon her return she found the appellant sitting on the baby's bed. The appellant reiterated his comments as to the complexion of the baby and demanded to know who its father was. It was at that point that PW1 noticed that the baby had been strangled and that it was dead. She started to cry but she was beaten by the appellant and ordered not to cry. When PW2 and PW3 tried to enter the room of the appellant and PW1 to find out what the matter was, they were scared off by the appellant who was brandishing a knife. PW1 managed to sneak out but she feared going to any neighbour as they were some distance away. While still out and perplexed, PW1

saw the appellant emerging from a bush. She rushed back into the house and was received by an empty cot. The appellant refused to disclose the whereabouts of the corpse to anybody, even his ten house cell leader, Gaudence Pangulinga (PW4).

In his defence, the appellant accepted that the baby was dead but he alleged that the death was caused by cerebral malaria, commonly referred to as *degedege*. But the other three inmates of the house testified that the baby was very healthy that fateful day. However, in an extra judicial statement, the appellant admitted to have killed the baby.

The appellant was represented by Mr Mselem, learned advocate, who abandoned the first two grounds of appeal and only argued the third:

> That the learned trial judge erred in fact and in law in failing to receive and consider the report on appellant's insanity. The proceedings were a mistrial.

Mr Mselem, correctly pointed out that on 21 April 1989 before Bahati, J, the learned defence counsel, Mrsection Kaaya, was granted her prayer that the appellant be sent to a mental asylum for the observation of his mental state. On 6 December 1989 when the case came before Mapigano, J., it was adjourned because the court observed that "the accused is still detained at Isanga." However, on 4 May 1992, that is some 29 months later, the case came before Kyando, J., and the appellant was present but there was no mention of his mental state. However, the case was adjourned because crucial witnesses had not appeared. The trial commenced on 4 May 1992 but without mentioning the mental state of the appellant, nor was a medical report from the Isanga Institution produced. Mr Mselem submitted that that constituted mistrial and prayed for retrial.

On behalf of the respondent/Republic was Msection Korosso, learned State Attorney, who said that the issue of insanity was not raised at the hearing. In any case, she submitted, if there was a medical report as to the mental state of the accused person, it had to be evaluated by the court which had to make its own decision on the matter. In

addition, Msection Korosso contended that section 388(1) of the Criminal Procedure Code saves the situation.

There are two situations in which the issue of insanity could be raised: as a defence to a charge of murder arguing that at the time of committing the offence the accused person was insane, or as a bar to a trial arguing that the accused person is incapable of standing trial. The tenor of the argument of Mr Mselem was insanity as a defence to the charge of murder and that was why he complained that defence witnesses who were going to prove insanity of the appellant were not called to testify.

From the record it appears that the appellant was sent to Isanga because his defence counsel was doubtful whether or not he was fit to stand trial. Mrs Kaaya had this to say:

> ... the accused appears to me to be of unsound mind in that I cannot communicate with him. He does not appear to understand anything which I tell him or ask him. He is in my submission incapable of making any defence. In that case I pray that the accused be sent to hospital for observation as to his unsoundness of mind.

In our opinion insanity was advanced as a bar to trial because the appellant could not defend himself. Unfortunately, the learned trial judge took it as a defence of insanity and immediately ordered the appellant to be taken to Isanga. What the learned judge ought to have done was to proceed with the hearing of the case for the prosecution and when he decided that there was a case to answer then he should have ordered the appellant to be sent to Isanga [section 216(3) of the Criminal Procedure Act] and would only have continued with the trial or start it *de novo*, as the case might have been, if there was a medical report that the appellant was fit to stand trial (section 216(8)). That was not done.

Now, the question is whether that omission has "occasioned failure of justice" and so, we should order retrial under section 388 of the Criminal Procedure Act. The record shows that after the close of the case for the prosecution, the appellant was addressed as required

by section 293 of the Criminal Procedure Act and he stated "I will testify on oath. I have one witness to call." A person who is insane at the time of trial would not have responded so. But that is not all, the appellant went on to give a lucid account of his side of the story and intelligently answered all the questions put to him. His answers also showed that he understood and remembered all that the four prosecution witnesses had said either agreed with them or contradicted them as he deemed appropriate.

We are satisfied that there was not an iota of miscarriage of justice and so, we see no reason at all to order a retrial. Having said so, we must say that the guilt of the appellant was proved beyond any reasonable doubt. We cannot fault the learned trial judge in any way. We, therefore, find no merit at all in this appeal and we dismiss it in its entirely.

PRINCE PEACE COMPANY *v.* NATIONAL HOUSING CORPORATION

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Chipeta, J.)

CIVIL REVISION No. 70 OF 1998

(From the order of the Court of the Resident Magistrate of Dar es Salaam at Kisutu, A. Kabuta, Resident Magistrate, dated 16 October1998)

Civil Practice and Procedure – Interim order – Whether court may grant an Interim Restoration Order where its jurisdiction is challenged – Section 68 and Order 37 of the Civil Procedure Code 1966.

Execution proceedings were filed in the Court of Resident Magistrate from the decision of the Regional Housing Tribunal in which the applicant had been declared the new

tenant of the second respondent, the National Housing Corporation. In the course of the execution proceedings the first respondent was evicted from the suit premises and his belongings removed therefrom. The first respondent then filed an application for an order extending time within which to file objection proceedings. When the matter came up before the Resident Magistrate counsel for the applicant applied to file a counter affidavit to which the first respondent had no objection. The first respondent then prayed for an interim order restoring him to the suit premises. Counsel for the applicant objected on the ground that he had already filed a notice of preliminary objections one ground of which was that the court had no jurisdiction in the matter.

Held: When an allegation is made that the court has no jurisdiction, and it is clear that the allegation cannot be dealtwith at once, such court has power to make any interlocutory orders in the matter before a decision is made on the question of jurisdiction if such court is satisfied that such an order will protect the ends of justice.

Order of the Magistrate upheld

Statutory provision referred to:

(1) Civil Procedure Code, section 68 and Order 37

Mr Yustus, for the Applicant

Mr Kalolo, for the first Respondent

Mr Mwiwasa, for the second Respondent

RULING

(Delivered 26 October 1998)

CHIPETA, J.: This is a ruling on the question whether an interim order made by Kisutu R.M.s Court on 19 October1998 was properly made in the circumstances of the case.

The background of the matter is that in Dar es Salaam Regional Housing Tribunal Application Number 89 of 1998, the tribunal declared Prince Peace Company (hereinafter referred to as the applicant) to be the new tenant of the respondent in that application, that is, the National Housing Corporation (herein cited as the second respondent).

The first respondent in these proceedings, that is, Gems of Africa Limited, were not a party before the tribunal.

After the Tribunal's decision, execution proceedings were commenced in Kisutu R.M.'s Court Miscellaneous Civil Cause Number128 of 1998, and in the course of the execution, the former tenant, who, it is alleged, is the firstrespondent in these proceedings, was evicted and his properties removed from therein and kept outside. The first respondent then filed an application for an order extending time within which to file objection proceedings.

The matter came before A. Kabuta, R.M., on 16 October 1998. On that day, learned counsel for the applicant applied to file a counter affidavit. Learned counsel for the first respondent said that he had no objection but he prayed for an interim order restoring the first respondent into the suit premises. That application was objected to by learned counsel for the applicant who said that they had already filed a notice of preliminary objections, one of which objections was that the trial court had no jurisdiction in the matter.

The learned magistrate granted the applicant's application to file a counter affidavit and also issued an interim or interlocutory order restoring the first respondent into the suit premises.

Both learned counsels for the applicant and the second respondent were aggrieved by the interim order. Before this court, they submitted that the interim order was improperly made because one of the preliminary objections was that the trial court had no jurisdiction, and so that court ought to have dealt with that question first before dealing with the application for an interim order or before issuing that order. Learned counsel for the first respondent submitted that the interim order was properly made and was within the provisions of section 68 and Order 37 of the Civil Procedure Code.

It is certainly true that where the question of jurisdiction of a presiding tribunal has been raised, such tribunal should determine that question speedily and at an appropriate time if the question is disputed. Courts, however, have been vested with the power to make

interlocutory or interim orders pending finalization of pleadings or the determination of matters in controversy between the parties. A court will exercise that power where it is satisfied that such an order is necessary to prevent the ends of justice from being defeated.

When an allegation is made that the court has no jurisdiction, and it is clear that that allegation cannot be dealt with at once, such court has the power to make any interlocutory orders in the matter before a decision is made on the question of jurisdiction if such court is satisfied that such an order will protect the ends of justice. In determining the question whether or not to make an interim order, the court will take into account the balance of inconvenience, the likelihood of injurty which is substantial and which can be or ought to be avoided at the earliest opportunity in the course of the proceedings.

In the instant case, the authorities cited by learned counsels for the applicant and the second respondent emphasize the fact that the question of jurisdiction is fundamental. They are not authority for the proposition that a court cannot issue interlocutory orders before the question of jurisdiction has been decided. A court is free to make such orders in the course of the proceedings.

In this case, the pleadings had not been completed; the first respondent's properties were exposed to wasteand possible destruction; the applicant had not yet moved into the suit premises; and the question of jurisdiction had not yet been determined. In those circumstances, therefore, the learned Resident Magistrate was perfectly entitled to make the interim order in order to prevent the ends of justice from being defeated or undue injury caused to any of the parties. For these reasons, the order of the trial court restoring the first respondent into the suit premises pending the determination of questions in the proceedings in that court was properly made, and so it is hereby confirmed.

KASSIM FARIJALA v. REPUBLIC

HIGH COURT OF TANZANIA AT MTWARA

(Kaji, J.)

CRIMINAL APPEAL No. 12 OF 1998

(From the judgment of the District Court of Liwale at Liwale, in Original Criminal Case No.16 of 1997)

Evidence – Witness – Hostile witness – Statement made by witness who later retracts it and is declared a hostile witness – Whether that statement may form the basis of conviction.

The appellant was charged with and convicted of rape contrary to sections 130 and 131 of the Penal Code Chapter 16, and was sentenced to five years imprisonment. During the trial the rape victim denied to have been raped by the appellant; although admitting to have been raped, she said she could not identify the man who had raped her due to darkness. At the Police Station the victim had made a statement which implicated the appellant to be the rapist. On this, the prosecution asked for leave, and was allowed, to treat the victim as a hostile witness and then proceeded to tender her police statement in court as evidence. The trial court admitted the statement and convicted the appellant on the basis of that statement.

Held: The learned Magistrate was wrong in convicting the appellant on a retracted statement because a retracted statement of a hostile witness is of no evidential value.

Appeal allowed, conviction quashed

Statutory provisions referred to:

(1) Penal Code teh Evidence Act 1967, sections 130 and 131

Mr Malamsha, for the Republic

JUDGMENT

(Dated 02 November 1998)

KAJI J.: The appellant Kassim Farijala was charged with rape contrary to sections 130 and 131 of the Penal Code Chapter 16. He denied the charge. However at the end of the trial he was found guilty as charged and was convicted accordingly. He was sentenced to 5 years imprisonment. He was aggrieved.

It was alleged in the charge sheet that on 17 November 1997, at about 23:45 hours at the Liwale District CCM Building compound the appellant did unlawfully have carnal knowledge of a girl called Helena Lipyanda without her consent. But during the trial the said Helena Lipyanda (PW1) denied to have been raped by the appellant. She said on the material day, at night while waiting for the UHURU Torch at Liwale CCM Building she moved away nearby to help herself (urinate). Suddenly a man grabbed her and dragged her into cashewnut trees and raped her. She said she could not identify the rapist due to darkness.

PW2 Hanifa Kinderu and PW3 Salima Chilima who were nearby said they also saw PW1 Helena being dragged by a man into cashewnut trees but since it was dark they could not identify that man. The prosecution prayed for leave to treat PW1 as a hostile witness. Leave was granted and PW1 Helena was declared a hostile witness and her statement to the police was tendered in court. It was on the basis of that statement that the appellant was convicted and sentenced to 5 years imprisonment.

Obviously this was not enough. The prosecution should have cross examined her on relevant matters and her replies recorded. The whole aim of declaring a witness hostile is to enable the party who called him to cross examine him and impeach his credit, if he so wishes, to impress upon the court that the witness is a liar who should not be believed. All these are clearly stated under sections 154, 163 and 164 of the Evidence Act Number 6 of 1967.

In the present case PW1 had been declared a hostile witness. When cross examined by the appellant she denied to have mentioned his name to the Police as she was unable to identify the rapist due to darkness. PW2 and PW3 whose evidence would probably have corroborated the retracted statement of PW1, denied to have identified the rapist. Under those circumstances there was no evidence at all upon which to convict the appellant. It is rather interesting to note that PW1 who was raped and felt the pinch denied the appellant to be her assailant. But the trial magistrate insisted he was the one. This was not a proper case for the court to insist on what has been denied by the victim.

It is upon the above reasons that I do hereby quash the conviction and set aside the sentence of 5 years imprisonment. The appellant is to be released from prison forthwith unless lawfully held in custody for another charge or charges.

TALIAN LANGOI v. MUSEE LOSERIAN

HIGH COURT OF TANZANIA
AT ARUSHA
(Mroso, J.)

(PC) CIVIL APPEAL NUMBER 39 OF 1997)

(From the District Court of Arusha in Civil Appeal No. 9 of 1996)

Evidence – Witness – Court witnesses – Circumstances under which a court can call its own witness(es).

Amongst his grounds of appeal the appellant criticized the trial court for calling its own witnesses on top of those called by the parties to the suit.

Held: (i) It was not necessary for the trial court to take it upon itself to call witnesses.

(ii) The trial court's decision was based on all the evidence which was adduced for the parties at the trial.

Appeal dismissed

Cases refered to:

(1) Joseph Marco v. Pascal Rweyemamu [1977] LRT n. 59

(2) Barka Said Salim v. Mohamed Said [1970] HCD n. 95

(3) Salehe Mohamburi v. Naseni Mrinda [1969] HDC n. 276

Statutory provision referred to:

(1) Magistrats' Act 1985, section 25(1)

Mr Chadha, for the Appellant

JUDGMENT

(Dated 03 November 1998)

MROSO J.: Before the merits of the appeal can be considered the respondent raised a preliminary point of objection that the appeal is barred by limitation. The appeal is on a judgment which originates in the Primary Court. According to section 25(1) of the Magistrates' Courts Act 1984 the time requisite for lodging an appeal to the High Court from the District Court in a case originating in the Primary Court is thirty (30) days.

The judgment of the first appellate court was delivered on 27 January 1997. The appellant's earlier advocate, Mr Mughwai, applied for a copy of judgment for appeal purposes on third (3) February 1997. According to Mr Chadha, learned advocate (current) for the appellant, the copy of judgment was supplied on 15 April 1997 and the appeal lodged on 15 May 1997. On the face of it, therefore, the appeal was filed out of time by seven days, even when the time requisite for obtaining a copy of judgment is excluded. But it is submitted

for the appellant that Mr Alute Mughwai who earlier acted for the appellant knew for the first time on 3 February 1997 that judgment had been delivered on 27 January 1997 and therefore that the period between 27 January 1997 and 3 February 1997 should be excluded in computing the time taken to lodge the appeal to the High Court.

I have seen an affidavit which was filed by Mr Mughwai in which it is explained that the judgment in the case before the first appellate court had been adjourned twice, on 11 December 1996 and on 20 January 1997, because the magistrate who was to deliver it was not available on those two occassions. He says that on 20 January 1997 the magistrate's clerk "informed us that ... we were to be informed of the judgment date" upon the return of the magistrate to the station. He further says that he and his client were never again notified of the date the judgment was to be delivered and that he just fortuitously discovered on 3 February 1997 that the judgment had in fact been delivered on 27 January 1997.

The respondent filed a counter-affidavit in connection with the date the judgment was given. He says that on 20 January 1997 a court clerk by the name of Miss Fatina called up the case (although the record was not available), before late Luambano, Resident Magistrate, who orally adjourned it to 27 January 1997 for judgment. On 27 January 1997 the judgment was delivered on the afternoon in the absence of both parties.

The respondent does not remember clearly if on 20 January 1997 when late Luambano, Resident Magistrate, allegedly said judgment would be delivered on 27 January 1997 the appellant and or his advocate was present. He uses the words "we all appeared" (before Luambano). This court is not sure who the word "we" stands for. He repeats the expression "we all appeared" in connection with the morning of 27 January 1997. If the term "we" means both the appellant and the respondent the inference would be that the appellant knew that judgment would be delivered on 27 January 1997 and that he has himself to blame if he did not wait for the delivery of the judgment on the afternoon of that date. However, considering the affidavit of Mr Mugwai

it is probable the word "we" did not necessarily mean the appellant as well as the respondent or their respective advocates. It may well have meant just the respondent and his advocate. For the respondent's affidavit to have the effect for which it was intended that is to say, that the appellant was aware of the date of judgment, he should have stated in clear words that both the respondent and the appellant or their respective advocates were informed that judgment would be delivered on 27 January 1997. I am, therefore, not going to take the word "we" to mean necessarily the appellant together with the respondent. In effect the preliminary objection has not been susbstantiated and is overruled. Now, to the merits of the appeal.

The first and third grounds of appeal relate to evaluation of the evidence. The second ground of appeal criticizes the trial court for calling its own witnesses and then basing its own witnesses and then basing its decision on the evidence of those witnesses. The fourth and last ground of appeal allege that the trial court denied the appellant opportunity to call two more named witness. Let me start with the last ground of appeal.

The appellant complains that the trial court wrongly refused him opportunity to call his other witnesses Manuel and Mama Natongoraki (now deceased but was present in court during the trial). The respondent has disputed the complaint and, in fact, the record does not bear out the appellant. According to the court record, after the appellant's witness number 4 – Ayubu Langoi had given evidence he (appellant) informed the court that that was the close of his case. Since he was trying before me to suggest that the trial court record was not faithful I allowed him as well as anyone else who was in court immediately after the evidence of Ayubu Sangoi who supported his allegation to file affidavits to the effect that he expressed the need to call the named witnesses but that the trial magistrate refused to take their evidence. No such affidavits were filed, even that of the appellant. I, therefore, find the appellant's criticism against the trial court unfounded in that regard. That of appeal is dismissed. I shall now consider the second ground of appeal.

It is true that after both appellant and the respondent had given their respective evidence and their respective witnesses had testified, the court moved to the *locus in quo* and then said *inter alia*:

> *... baada ya ukaguzi wa shamba hilo lenye madai inaonekana wanaopakana kabisa na shamba hilo ni Mishooki Wayani Langoi, Lydia Saul na hawa hawakutoa ushahidi wao hapa mahakamani (hawakuitwa na wadaawa) na mahakama hii inawaita kutoa ushahidi wa nyongeza.*

It would appear that a Primary Court hearing a case can call its own witnesses to give evidence. Rule 37 of the Primary Courts Civil Procedure Rules 1963 published in Government Notice Number 31 of 29 May 1964 says:

> 37. Where the courts (*sic*) calls a witness of its own motion it may direct that the expenses, if any, in respect of such witness be paid by any of the parties to the proceeding or by all parties in such proportion as it may think fit.

The Civil Procedure Rules do not explain in what circumstances the Primary Court would be entitled to call a witness of its own motion.

Mr Chadha, citing **Mulla on Civil Procedure** (14 ed), Volume II at page 1232 (The Edition is not available in the court Library) on the power of court to call its own witnesses submitted that the power should not be invoked to assist a weak case of a party. He says that although the provisions of the Civil Procedure Code do not apply to Primary Courts, that is a general principle underscoring the impartiality of courts.

Mr Chadha has the support of the decisions of the High Court. In the case of *Joseph Marco v. Pascal Rweyemamu* (1). In that case the trial court – which was either a District Court or a Court of Resident Magistrate – called its own witness and substantially based its judgment on the evidence which was given by that witness. The court had relied on its authority provided by Order XVI, rule 14 of the Civil Procedure Code 1966. When the case went on appeal to the High Court Mfalila, Judge, as he then was, remarked:

> ... it was extremely improper for him (the trial magistrate) to assist the plaintiff so openly in the prosecution of his case. If the trial magistrate or a judge takes upon himself of task of billing additional witnesses on behalf of any party to the dispute, and bias is alleged, it will be very difficult to displace. Secondly, I think such power should be very sparingly used ...

Disapproval of the calling of a witness by a court to assist a party who has a weak case was also expressed by the High Court, late Hamlyn, J. in an earlier case. In *Barka Said Salum v. Mohamed Said* (2) a lady, Barka, had sued her husband, Mohamed, for divorce on the basis of allegations but called no witnesses to substantiate the allegation. The trial court found that her evidence alone was insufficient. On appeal to the District Court, the woman complained that the trial court should have called corroborating evidence. The District Court, however, wisely explained that it was for a party to present his or her own case to court and not for the court to make a case for the litigant.

On further appeal to the High Court Hamlyn, J. said, agreeing with the District Court, that the woman was clearly wrong and that "he litigant should produce what evidence there is to establish her case." He added:

> It is only rarely that a court will, of its own motion, in cases such as this seek to clarify an issue by requiring an additional witness.

Perhaps an illustration of a situation in which the court can take initiative to call its own witnesses is provided in the decisions of Georges, C.J. (as he then was) in the case of *Salehe Mahamburi v. Naseni Mrinda* (3). A dispute over land in Pare was taken to the Primary Court. The plaintiff in the case had claimed that he inherited the disputed piece of land which the defendant had taken and subdivided to tenants.The trial Primary Court found for the plaintiff but on appeal to the District Court by the defendant the trial court decision was reversed on the ground that since the defendant was the person in possession he did not have to prove anything, rather it was for the

plaintiff to prove his title. On further appeal to the High Court Georges, C.J. said:

> Looking at the matter from the point of view of English Land Law, I would agree with the view – is however, expressed by the District Magistrate proof of title here quite a difficult thing where there are no deeds showing ownership of customary land ... To decide cases on the basis of onus of proof, as in England, is not desirable and would certainly not be understood. I would therefore ... order a new trial before the Primary Court. If the parties do not call the Mlao who originally is supposed to have authorized the defendant to distribute the land, than the court should call him ... The persons actually in occupation of the land should also be summoned by the court if the parties do not call them. There will then be available enough material on which justly to arrive at a decision in this case. It must be understood that parties are not legally advised in litigation in the Primary Courts. All efforts should be made, therefore, to have all the facts brought but ...

I have quoted from Georges, C.J.'s judgment at some length in order to see if the rationale in it can answer Mr Chadha's complaint against the trial magistrate in the case under appeal.

The trial court shown that the appellant as plaintiff gave evidence and called three witnesses, two of whom supported his claim that the disputed ½ acre piece of land belonged to him after he inherited it from his deceased father. Similarly, the respondent as defendant gave evidence and called four witnesses to support his counter-claim that the disputed piece of land belonged to him after he inherited it from his own deceased father David Langoi (PW3) and Ayubu Langao (PW4) as well as Lokong'omwaki Loilojelejaki (DW3), Lobaya Motika (DW4) and (DW5) Lesian Landipitip were all close relatives of the parties.

The two witnesses who were called by the court of its own motion were also close relatives of both parties. They both gave evidence in support of the respondent. The question to be considered is whether

it was necessary in order for a just decision in the case to be reached for the trial court to take upon itself to call those witnesses.

With respect, it was not necessary at all for the trial court to call witnesses Naishooki Wayani and Lyidia Saul. In fact the evidence which they gave had already been given by witnesses who were called by the respondent. The trial magistrate, therefore, unnecessarily exposed himself to accusations of trying to strengthen respondent's case against the appellant.

It is not true, however, as suggested by the appellant and argued by Mr Chadha that the decision of the trial court was based on the evidence of the court witnesses. Although the trial court made reference to that evidence, it is clear that the decision was based on all the evidence which was adduced. Note the words in the Primary Court judgment which read:

> *Mahakama hii imechunguza ushahidi wa pande zote mbili kwa makini na kuona kuwa madai haya hayakuthibitika.*

I am satisfied that considering the evidence which was adduced for the parties at the trial and even disregarding the evidence of the court witnesses, it was simply a matter of credibility as to who between the parties should succeed in the case. The two lower courts found the evidence of the respondent and his witnesses as the more credible and I have no valid grounds for disagreeing with them. I must, therefore, dismiss this appeal with costs.

NOEL PHILEMONI MOHAMED *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT MTWARA
(Kaji, J.)

CRIMINAL APPEAL No. 29 OF 1997

Criminal Law – Cattle Theft – Two goats slaughtered and stolen at night – Appellant found with 2kgs of goat meat the following evening – Whether the appellant was the thief.

Two goats were slaughtered and stolen from their shed at night. At about 5 or 6pm the appellant was found with 2 Kgs of goat meat looking for buyers. When asked he said he had got it from Kilabu cha Wazee. He was arrested and subsequently charged with cattle theft and convicted. No body had denied the presence and sale of goat meat at Kilabu cha Wazee and nobody had bothered to check whether the appellant had got the meat from there or not. On appeal:

Held: As the meat found with the appellant was not identified as that of the two stolen goats, the appellant was convicted on suspicion. However strong it may be, suspicion cannot be the basis of conviction.

Appeal allowed

Statutory provisins referred to:

(1) Penal Code, section 268

JUDGMENT

(Delivered 04 November 1998)

KAJI, J.: Noel Philimon Mohammed, who is the appellant in this appeal, was charged with cattle theft contrary to section 268 of the Penal Code Chapter 16. It was alleged in the charge sheet that on 14 February 1997 at about 2:00am, at Mkumba Village within Nachingwea District,

Lindi Region the appellant stole two goats valued at TZS. 50 000 being the property of Gaudencia d/o Makota. He denied the charge. However at the end of the day he was found guilty as charged and was convicted accordingly. He was sentenced to 5 years imprisonment. He was also ordered to pay Gaudensia TZS. 50 000 being the value of the stolen goats. He was aggrieved. He is now appealing against the conviction, sentence and the compensation order.

At the trial the prosecution adduced evidence to the effect that on the night of 13 February 1997 at about 2:00am. PW1 Gaudencia d/o Makota discovered that her two goats valued at about 50 000 had been slaughtered and stolen. There was a lot of blood stains at the goat-shed. At that time she did not know the thief or thieves. She reported the matter to her sister, PW2 Blandina d/o Makota, and to the relevant authorities.

Then at about 5 or 6 pm the appellant was found with 2kgs of goat meat in a plastic bucket looking for buyer. When he was asked as to where he had got that meat he said he had got it from Kilabu cha Wazee. They did not believe him. These were PW3 Number C 2306 Cpl. Nassoro and PW2 Blandina. They suspected that meat to be of the two stolen goats The appellant was with another young man. They were taken to Nachingwea Police Station, but on the way they ran away and left PW2 and PW3 with the plastic bucket and the goat meat. The appellant was arrested later and charged with cattle theft.

In his defence he said he had bought the meat from Kilabu cha Wazee for his soup and that he ran away because PW3 Cpl. Nassoro and many others who were around beat him very brutally alleging he was a thief. The learned trial magistrate found that explanation unreasonable in the sense that if he was really innocent that much, there was no cause to run away especially that it was near Nachingwea Police Station where he would have found peace and protection. He therefore found him guilty as charged and convicted him accordingly and sentenced him as above.

In his grounds of appeal the appellant insisted that he had bought that meat from Kilabu cha Wazee and that he was not connected with that theft in any way. The learned Senior State Attorney Mr Malamsha who represented the Republic at the hearing of this appeal did not support the conviction on the ground that there was no evidence to prove that that meat was really from the two stolen goats

In short that is the gist of the matter. There is no dispute that Gaudencia's two goats were stolen on the night of 13 – 14 February 1997 and that she did not see the thief or thieves. There is also no dispute that on the following evening the appellant was found with 2kgs of goat meat. The only crucial issue is whether that meat was that of the two stolen goats and whether he was the one who had stolen them.

There was no direct evidence that the meat was from the two goats. Nobody identified the same. A skin or head would perhaps have shed more light. There was also no indirect or circumstantial evidence to show that meat was of the said two goats and that it was the appellant who had stolen them. The appellant had told PW2 Blandina and PW3 Cpl. Nassoro right from the time they questioned him as to how he had come by that meat that he had bought it from Kilabu cha Wazee. Neither PW2 nor PW3 denied the presence and sale of goat meat at Kilabu cha Wazee. In fact none bothered to check whether the appellant had really bought that meat from the meat stall at Kilabu cha Wazee.

The learned trial magistrate based the conviction on the appellant's act of running away. There could be many reasons for doing so including the one stated by the appellant. But the learned Magistrate's reasoning would perhaps hold some water if that meat would have been identified to be of those two goats. But since the same was not identified his reasoning cannot justify that conviction. It did not qualify the standard of circumstantial evidence. It was merely a suspicion. A suspicion cannot be the basis of conviction however strong it may be.

It is upon the above reasons that I quash the conviction and set aside the sentence and the compensation order. The appellant is to be released forthwith from prison unless lawfully held in connection with another charge or charges. Appeal allowed.

MATHIAS KATONYA *v.* NDOLA MASIMBI

HIGH COURT OF TANZANIA
AT MBEYA
(Moshi, J.)

(PC) CIVIL APPEAL No. 87 OF 1995)

(From the decision of the District Court of Mbeya at Mbeya in Civil Appeol No. 32 of 1995, S. Musa, District Magistrate)

Customary Law – Limitation period – Limitation period for recovery of clan land – Item 6 of the Customary Law (Limitation of Proceedings) Rules 1963, Government Notice Number 311 of 1963.

Primary Court – Assessors – Substitution of assessor after trial has commenced – Effect thereof – Section 7 of the Magistrates' Courts Act 1984.

Civil Practice and Procedure – Irregularity in the trial proceedings – Whether appellate Court may vary or alter the decision – Section 37 (2) of the Magistrates' Courts Act 1984.

Civil Practice and Procedure – Primary Court – Irregularity in Primary Court proceedings – Judgment signed by magistrate only and not signed by assessors – Whether curable.

The appellant filed a suit in a Primary Court for recovery of clan land from the respondent more than fourteen years after the act complained of took place. The trial

began before the magistrate sitting with two assessors but on subsequent hearings the magistrate sat with two assessors one of whom had not taken part on the first day of the trial. This new assessor was the first one to give his opinion with which the original assessor concurred after the magistrate had summed up the case to them. The trial magistrate wrote the judgment of the court agreeing with them. He signed the judgment but none of the assessors did.

Held: (i) As the land was held under customary law the limitation period for its recovery was twelve years and, therefore, the suit was time barred

(ii) The substitution of an assessor or assessors during trial is an irregularity

(iii) An assessor who has not heard all the evidence in a trial is incompetent

(iv) A Court on Appeal will not reverse or alter a decision of the Lower Court because of an irregularity in the proceedings unless such irregularity has in fact occasioned a failure of justice

(v) It is evident that the participation of a stranger influenced the result and there was therefore a failure of justice

(vi) A trial magistrate is required to consult assessors and not to sum up the case to them before obtaining their opinions

(vii) It is mandatory for the magistrate and assessors to all sign the judgment and failure to do so was a fatal irregularity.

Appeal dismissed with costs

Cases referred to:

(1) *Ezizeus Rutakubwa v. Jason Angelo* Civil Appeal Number 21 of 1987 (unreported)

(2) *Joseph Kabni v. Regina,* 21 E.A.C.A. 260

(3) *Kabulofwa Mwakalile and 11 others v. R* [1980] T.L.R. 144

Statutory provisions referred to:

(1) Customary Law (Limitation of Proceedings), Item 6 of Schedule

(2) Magistrates Court Act 1989, sections 7 and 37(2)

JUDGMENT

(Delivered 13 November 1998)

MOSHI, J.: The dispute between the parties centred on a shamba. Each party claimed ownership of it. The appellant's contention was that the respondent had encroached into that shamba since the year 1977-1978. The suit, however, was preferred in 1991.

The Primary Court of Ilembo unanimously found in favour of the appellant. The respondent felt aggrieved and preferred an appeal to the District Court of Mbeya. The District Court allowed the appeal on two technical grounds and quashed the proceedings of the Primary Court. The grounds were, firstly, that the suit was time-barred, and, secondly, that there had been a change of assessors. would, with respect, uphold the decision of the District Court.

Firstly, the shamba was clan land held under, and governed by, customary law. The period of limitation for its recovery was twelve years according to item 6 of the Schedule to the Customary Law (Limitation of Proceedings) Rules 1963, G.N. 311 of 1964, which reads:

> Proceedings to recover possession of land or money secured on mortgage of land ... Period of limitation 12 years.

That the period of limitation for the recovery of such land is twelve years according to item 6 of the Schedule to G.N. 311 of 1964 was settled by the Court of Appeal in *Erizeus Rutakubwa v. Jason Angero,* (1). In this case the appellant had twelve years during which to claim the land from the respondent. He did not do so. He preferred the suit after thirteen years. The suit was thus time-barred.

Secondly, there was indeed a change of assessors. On 6 July 1993 the trial magistrate sat with Kamegele and J. Ntosa as assessors. The evidence of the appellant was heard and the case was adjourned till on 20 July 1993. On that day the magistrate sat with S Nsyukwe and J Ntosa. These two continued to sit with him for the remaining

part of the trial. With respect, Nayukwe was, quite obviously, incompetent to take part in proceeding as he had not done so from the beginning. The question, therefore, is whether Nsyukwe's participation was fatal.

As a general rule the substitution of an assessor or assessors during a trial has the effect of making the trial a nullity: *Joseph Kabui v. Reginam* (2), and *Kabulofwa Mwakalile and others v. R* (3). In point of principle, every member of a judicial tribunal must hear all the evidence which is tendered before the tribunal in order to fully participate in deciding the matter. Section 7 of the Magistrates' Courts Act 1984 does not authorize substitution of an assessor or assessors in the course of a trial.

There are, however, the provisions of section 37(2) of the Magistrates' Courts Act to reckon with. Under these provisions a decision or order of a Primary Court or District Court under Part III of the Act would not be reversed or altered by reason of any irregularity in the proceeding before or during hearing unless it has in fact occasioned a failure of justice. The test of determining whether a change of assessors during trial is a curable irregularity or not is, therefore, whether such a change occasions a failure of justice to a party in fact.

Looking at what transpired in this case there can be no doubt that there was failure of justice. It is evident from the record before me that the participation of Nsyukwe, a stranger, influenced the results. He gave his opinion before J. Ntosa who then concurred with him, and the trial magistrate then concurred with both of them. Nsyukwe's opinion, therefore, was not without consequence. In those events, it could not safely be ruled out that the opinion of Nsyukwe, who had heard only part of the evidence, influenced the rest of the members of the court in coming to their opinions. I am thus satisfied, as was the District Court, that the participation of Nsyukwe occasioned injustice. There is yet another technical ground upon which the proceedings of the trial court could be nullified. There was contravention of the provision of rule 3 of the Magistrates' Courts (Primary Courts) (judgment of the court) Rules G.N. Number 2 of 1988, which provides:

3(1) Where in any proceedings the court has heard all the evidence or matters pertaining to the issue to be determined by the court, the magistrate shall proceed to consult with the assessors present, with the view of reaching a decision of the court.

(2) If all the members of the court agree on one decision, the magistrate shall proceed to record the decision or judgment of the court which shall be signed by all the members.

(3) For the avoidance of doubt a magistrate shall not, *in lieu* of, or in addition to, the consultations referred to in sub-rule (1) of this Rule, be entitled to sum up to the other members of the court.

What happened in this case was, firstly, that the Primary Court magistrate summed up the case to the two assessors present and recorded their opinions instead of holding consultations with them. The magistrate did not thus adhere to the procedure laid down in sub-rule (1) above. I take the view, however, that the error cannot vitiate the decision as I consider it to have occasioned no failure of justice, and therefore curable under section 37(2) of the Magistrates' Courts Act 1984.

Secondly, and worse by far, the judgment of the Primary Court was signed by the Primary Court magistrate alone, and not by the assessors as well, and thus in contravention of sub-rule (2) above. Assessors are an essential part of the court. They are members of the court, and the judgment or decision of the court, if not unanimous, is on the majority vote basis. This means that the assessors may take sides against the magistrate, and theirs becomes the judgment or decision of the court. In this case, the decision was unanimous, and it was mandatory in terms of sub-rule (2) above for the magistrate and the two assessors to have all signed the judgment recorded by the magistrate. In the circumstances of this case, I am satisfied that the judgment of the primary was not, in law, a judgment, and that the irregularity was fatal to the proceedings.

For all the foregoing reasons, this appeal stands dismissed with costs here and in the courts below.

FELIX TUMBO KISIMA *v.* TANZANIA TELECOMMUNICATION CO LTD AS ASUCCESSOR TO TANZANIA POSTS ANDTELECOMMUNICATIONS CORPORATION

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Ag. C.J., Mfalila, and Lugakingira, JJ.A.)

CIVIL APPEAL No. 12 OF 1997

(From the Judgment of the High Court of Tanzania at Dar es Salaam, Kyando, J, dated 24 April 1994 in Civil Case No.177 of 1986)

Civil Practice and Procedure – Appeal – Appeal to the Court of Appeal – Respondent not served with copies of the Memorandum and Record of Appeal – Whether appeal is competent – Rule 80 of the Court of Appeal Rules 1979.

Civil Practice and Procedure – Respondent as successor to the original respondent – Whether he could be made a party to the proceedings without the leave of the court – Rule 85(2) of the Court of Appeal Rules 1979.

The appellant launched this appeal against Tanzania Telecommunication Company Limited as successor to his erstwhile employers the defunct Tanzania Posts and Telecommunications Corporation. The appeal relates to the judgment in a suit filled in the High Court at Dar es Salaam in which the appellant's suit for wrongful termination of his services against his employer was dismissed with costs. Before the hearing of the appeal the respondent raised a preliminary objection on two grounds. Firstly, that the appeal was incompetent because the respondent was not served with copies of the Memorandum of Appeal and Record of Appeal. Secondly, that no leave of this court was sought for and granted to join the present respondent as a party in the appeal. Counsel for the appellant asked the court to give him chance to rectify the shortcomings.

Held: (i) All the rules which counsel for the appellant failed to comply with are mandatory provisions and the learned advocate was required to serve before or within seven days of lodging the memorandum and Record of Appeal copies of these documents

on the respondent. He was also required to seek and get leave of the court before making the respondent a party in this appeal.

(ii) Non-compliance with these provisions made the appeal incompetent, hence, there was nothing before the court which it could order to be rectified.

Appeal struck out

Statutory provision referred to:

(1) Court of Appeal Rules 1979, rules 79, 80 and 85(2)

Mr Ngalo, for the Appellant

Mr Mujulizi, for the Respondent

RULING

(Dated 23 November 1998)

MFALILA, J.A.: The appellant, Felix Tumbo Kisima, launched this appeal against Tanzania Telecommunication Company Limited as successor to his erstwhile employers the defunct Tanzania Posts and Telecommunications Corporation. The appeal relates to the judgment of the High Court of Tanzania at Dar es Salaam in Civil Case Number 177 of 1986 in which the appellant's suit for wrongful termination of his services against the Tanzania Posts and Telecommunications Corporation was dismissed with costs.

Before to-day's hearing, the respondent filed a notice of preliminary objection against the appeal on two grounds. Firstly, that the appeal is incompetent because the appellant has not to-date served the respondent with copies of the Memorandum and Record of Appeal.

Secondly, that no leave of this Honourable Court was sought for and granted to join the Tanzania Telecommunications Company as a party in this appeal. And at the hearing of this appeal, Mr Mujulizi learned counsel for the respondent, argued in support of the preliminary objection that the respondent was not served with the notice of appeal,

rather the notice was served on its predecessor the defunct corporation and that, therefore, it should have been served under rule 80 after the completion of the formalities of making it a party to the appeal under rule 85(2). Mr Mujulizi added that because the respondent was not served with the Notice of Appeal, it did not comply with rule 79 consequently it was not served with the Memorandum and Record of Appeal under rule 90 which made this appeal incompetent. Secondly Mr Mujulizi argued that the respondent as successor to the original respondent could only be made a party to the proceedings with the leave of the court under rule 85(2). Accordingly he prayed that the appeal be struck out for being incompetent.

In reply Mr Ngalo learned counsel for the appellant, conceded the correctness of the grounds of the respondent's preliminary objection, but he asked this court to give him a chance to rectify the shortcomings cited so that the hearing of the appeal can proceed on merits.

We are obviously in sympathy with the predicament in which Mr Ngalo finds himself, but this is the most we can do. All the rules with which he failed to comply are mandatory provisions. He was required to serve before or within seven days of lodging the Memorandum and Record of Appeal copies of these documents on the respondent. He was also required to seek and get leave of the court before making the respondent a party in this appeal. Non compliance with these provisions makes this appeal incompetent hence there is nothing before us which we can order to be rectified.

Accordingly we uphold the preliminary objection and order that this appeal be struck out for incompetence. We also make an order for costs in favour of the respondent.

DADI SAIDI KWANGA *v.* NURDIN AKACHAPA

HIGH COURT OF TANZANIA
AT MTWARA
(Kaji, J.)

(PC) CIVIL APPEAL No. 1 OF 1997

(From the Judgment of Mtwara District Court at Mtwara in Civil Appeal No. 17 of 1997)

Family Law – Divorce – Dissolution of marriage – Whether dissolution effected by talak and division of matrimonial assets – Law of Marriage Act 1971.

Family law – Marriage – Contracting a civil marriage – Whether a civil marriage is contracted by registration of intention – Section 29 of the Law of Marriage Act 1971.

Family Law – Adultery – Proof of adultery.

The respondent contracted a civil marriage with Joane Reveta. Twenty four years later the respondent issued Joane with a talak and on the same day matrimonial properties jointly acquired were divided. Five months later, the appellant and Joane agreed to contract a civil marriage and registered their intention at the District Commissioner's Office. Three months later, the respondent successfully sued the appellant for adultery damages.The appellant unsuccessfully appealed to the District Court. Hence the present appeal.

Held: (i) Civil marriages are recognized by the provisions of section 29 of the Law of Marriage Act 1971, Chapter 71.

(ii) Although the issuance of a talak is evidence that the marriage has broken down, it does not amount to a dissolution of such marriage; under the Law of Marriage Act, only courts of Law can dissolve a lawfully contracted marriage; in the absence of such a divorce decree in this case, the marriage between the respondent and Joane was still in existence, and so anybody having an affair with her commits adultery.

(iii) Adultery is a matter of fact and so can be established by direct or circumstantial evidence; there was insufficient evidence to prove to a degree of reasonable probability that the appellant and Joane had lived together either as lovers or as "husband and wife."

(iv) There was no evidence that the intended marriage between the appellant and Joane was finally contracted; mere registration of an intention to marry cannot be sufficient evidence of adultery.

Appeal allowed

Case referred to:

(1) *Gai Lipenzule v. Sumi Magoge* [1983] T.L.R.289

Statutory provision referred to:

(1) Law of Marriage Act 1971, section 29

JUDGMENT

(Delivered 24 November 1998)

KAJI, J.: This is a second appeal. The appellant Dadi Saidi Kwanga was successfully sued by the respondent Nurdin Akachapa for adultery damages before Mikindani Primary Court. His appeal to Mtwara District Court was dismissed for want of merits. Hence this appeal.

It was common ground before the trial court that in 1972 the respondent Nurdin, a muslim, married DW2 Joane Reveta, a Christian, under a Civil Marriage. On 26 December 1996 the respondent issued Joane with a *talak* bearing the following message:

> *Mimi Nurdin Akachapa natoa talaka kwa aliyekuwa mke wangu Bi Joan R Mosha kuwa si mke wangu tena kuanzia tarehe hii ya leo 26, Desemba 1996.*
>
> Hivyo mzazi mpokee mwanao.
>
> Asante.
>
> Mimi Mwanao
>
> (Signed Nurdin Akachapa)

Pursuant to that *talak* the said Joane was on or around 12 February 1997 handed over to her brother in the name of Temba as her guardian. On that very same day the properties which they had acquired jointly during the existence of their marriage were divided. Later the respondent approached her (Joane) for "Kurejea" but she refused. Around April 1997, the appellant betrothed Joane to which she accepted. In May 1997, they registered their intention to marry at the Office of the District Commissioner Mtwara.

On 27 August 1997 the respondent instituted a suit before Mikindani Primary Court claiming for TZS. 150 000 against the appellant as compensation for adultery (*ugoni kwa sababu ya kumshawishi mke wake na kufunga ndoa naye* – according to the plaint). It was the respondent's contention that Joane was and is still his legal wife because the *talak* he issued did not dissolve their marriage; and that the appellant's act of living with her as "his wife or lover" entitled him to adultery damages.

The appellant denied to have made love with Joane or to have lived with her as his wife or lover or to have lived with her under any circumstances which would cast some doubt that he had ever committed adultery with her. He said since the respondent issued her with a *talak* and did not "kumrejea", and further that since they divided their matrimonial property and she was handed over to her guardian, he believed in good faith that she was free to marry. He proposed to her and she accepted. They registered their intention to marry. But they did not get married nor did he have sexual intercourse with her, nor did he live with her in one room or one building.

The trial court was satisfied with Nurdin's evidence. It awarded him TZS. 150 000 as prayed. Dadi was not satisfied. He appealed before Mtwara District Court where he lost. He then lodged this appeal before this court. His main grounds of appeal can be summarized as follow:

(1) That he did not have sexual intercourse with the respondent's wife.

(2) That there was no direct evidence that he ever had sexual intercourse with the respondent' wife.

(3) That he has never lived with the respondent's wife in one room or one house.

(4) That at any rate Joane was no longer a legal wife of the respondent after issuing her with a talak which he did not "kumrejea."

(5) That after issuing her with a *talak*, followed by the division of their matrimonial property and the handing over to her guardian, she was no longer his wife and was free to marry anybody.

(6) That he merely betrothed Joane and registered their intention to marry, but he did not marry her.

(7) That even if it is assumed that Joane is still the legal wife of the respondent, yet a mere betrothal and registration of intention to marry cannot entitle the respondent to adultery damages, or in other words, those acts do not amount to adultery.

(8) That he was not caught "in *Flagrante Delicto*" and that there was no witness who witnessed the alleged adultery nor was there any exhibit of whatever description

He therefore, called upon this court to allow his appeal with costs. The respondent called upon this court to dismiss this appeal in that it has no merits. He said the appellant is still living with his wife Joane in a house which Joane has rented. In short that is the gist of the matter.

There is no dispute that the respondent married Joane in 1972 under a Civil Marriage. Civil marriages are recognized by law under section 29 of the Law of Marriage Act 1971. There is no evidence that marriage has been legally dissolved. Granting of a *talak* is a sign that the marriage has broken down. But it is not a dissolution of that marriage. Under the Law of Marriage Act 1971 it is only the courts of law which can dissolve a legal marriage. Therefore in law, in the absence of a divorce decree by a court of competent jurisdiction,

the marriage between the respondent and Joane is still in existence. Whoever trespasses with her commits adultery.

The only crucial issue in this case is whether under the circumstances described in this case the tort of adultery was proved. There is no direct evidence of anybody who witnessed the appellant committing adultery with the respondent's wife. But adultery being a matter of fact can be established by either direct evidence or by circumstantial evidence. See *Gai Ipenzule v. Sumi Magoye* (1).

We have now to consider very carefully whether the relevant circumstances established to a degree of reasonable probability that the appellant had committed adultery with the respondent's wife. I must admit that the trial court record (proceedings) was not very clear as to whether Joane and/or the appellant admitted to have been living together in one room or house. Joane is recorded to have said vaguely as follows:

> (Akachapa) hakurudi tena mpaka mwezi wa 8 tarehe 8 akidai kuja kuzuru kaburi la mjukuu wake. Alikuja kutia vurugu ndani ya nyumba akidai mwenye nyumba atufukuze *mimi na bwana wangu.* Mwenye nyumba nilimtaarifu. Mimi nilikwenda polisi kutoa taarifa hizi. Ndipo huyu alirudi Newala [emphasis supplied].

The landlady PW2 Fatuma d/o Kazali did not help much. She simply said when asked by the first assessor "mdaiwa nilikuwa namwona." The appellant admitted only the process of betrothal. But in his judgment the trial magistrate wrote as follows:

> Mdaiwa Dadi Saidi Kwanga ndani ya maelezo yake amesema kwamba anaye mke wa mdai baada ya kumwacha yeye mwenyewe. Na SU2 Joan Reveta pia anakubali kabisa kwamba bwana aliye naye ni mdaiwa Dadi Saidi Kwanga baada ya kuachwa na mume wake Nurdini Akachapa baada ya kufunga ndoa yao Mwaka 1972 ... Kwa hiyo mdai anayo haki ya kudai fidia ya ugoni kwa mdaiwa Dadi Saidi Kwanga. Kwa hiyo madai ya TZS. 150 000 mdai ameshinda na mdaiwa ameshindwa. Kwa hiyo mdaiwa alipe TZS. 150 000 pamoja na ada TZS. 1 000

Those people were giving their evidence before him (i.e. trial magistrate). It could be they really said so but he omitted to record the same in the proceedings. But this court cannot be guided by assumption. It must be guided by the evidence on record.

Since there is nothing in the record (proceedings) showing that the appellant and the respondent's wife admitted to have lived together either as mere lovers or as "husband and wife", the court cannot safely hold that the overall circumstances suggested that the tort of adultery was committed or was established to a degree of reasonable probability. It would appear the respondent was not serious enough with his claim. He could not call even a single witness who witnessed the appellant and the respondent's wife living under adulterous circumstance. The respondent said he managed to find the appellant living with Joane in their matrimonial home at PW2 Fatuma's home where he (appellant) had moved with his property which included his clothes. But he never bothered to call a Ten Cell Leader of that area or anybody to witness. In fact the respondent appears to be a fun fellow. He said the appellant who was his friend and advisor from 1995 advised him to divorce his wife Joane. He obliged and issued a *talak*. Later when he wanted "kumrejea" the appellant advised him not to do so and that the final solution was to divide the property they had earned jointly during the existence of their marriage.

Again, he obliged and complied with. Now he is lamenting that the appellant is living with her in a house she has rented. If he has evidence on this, the doors of the courts are open. He can take the necessary steps he deems fit. The last issue is that the respondent did not show any evidence that the intended marriage between the appellant and Joane was finally contracted. A mere registration of an intention to marry cannot *per se* be sufficient evidence of adultery.

It is upon the above reasons that I have been of the view that the circumstantial evidence as adduced by the respondent at the trial where he was the plaintiff, did not establish his claim to a degree of reasonable probability. In view of this I do hereby quash the decisions

of the two courts below and set aside the orders made thereat. Appeal allowed with costs.

SILAS SIMBA *v.* EDITOR OF MFANYAKAZI NEWSPAPER AND ANOTHER

COURT OR APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 7 OF 1997

(From the High Court of Tanzania at Dar es Salaam, Bubeshi, J., dated 23 December1996)

Powers – Inherent powers – Court looking at records or receipt book to determine correct date – Whether proper.

At the start of the hearing of the appeal against *ex parte* judgment of the High Court, the advocate of the respondents raised a point *in limine* on behalf of the second respondent asking that the appeal be struck out because the second respondent was not served either the Notice of Appeal or the Record of Appeal. The advocate further urged, in the alternative, that the appeal be stood over until determination of a chamber application filed in the High Court to set aside the *ex parte* judgment. On the question of service the appellant submitted that the second respondent had refused to accept service, and that the application for setting aside *ex parte* judgment was inserted in the file after the appeal had been filed. In order to determine the truth of the matter the court examined the Exchequer Receipt book from which the court cashier had issued receipt number 0476645 to the advocate of the respondent section

Held: (i) Exchequer Receipt Number 0476645 issued on 23 January 1997 to the advocate of the respondents was among many other receipts issued on that day, namely Numbers 06706641, 06706642 and 06706643, issued to various advocates for renewal

of their practicing certificates while Numbers 06706644, 06706646, 06706647, 06706648 and 06706649 were issued to various advocates in respect of various civil cases.

(ii) The assertion of the appellant that the application for the setting aside of the *ex parte* judgment was inserted in the file after the appeal had been filed is not borne out by the Exchequer Receipt Book.

(iii) The appeal against the assessment of damages is stood over pending determination of the application to set aside the *ex parte* judgment of the High Court.

Order accordingly

RULING

(Dated 02 December 1998)

SAMATTA, J.A.: This is an appeal against the *quantum* damages awarded for defamation in a judgment of the High Court (Bubeshi, J.) after an *ex parte* proof. The appellant was awarded the sum of TZS. 2 000 000. Three members of the court assisted the learned judge in trying the case. The first member assessed damages at that figure; the second member at TZS. 5 000 000 and the third member at TZS. 6 000 000 The learned trial judge accepted the assessment by the first member.The appellant says that assessment is inadequate and ought to be varied.

When the appeal was called on for hearing, Dr Lamwai, counsel for the respondents, raised, on behalf of the second respondent, a point *in limine*. He submitted that the appeal is incompetent in law on the ground that the second respondent was served with neither a copy of the Notice of Appeal nor a copy of the Record of Appeal.

He urged us to strike out the appeal. The learned advocate also urged us, in the event we are not inclined to hold that the appeal is incompetent, to order that the appeal be stood over until a chamber application to set aside Bubeshi, J.'s *ex parte* judgment the Second respondent has filed in the High Court is determined. According to counsel, that chamber application was filed on 23 January 1997. The appellant's answer to the preliminary point seeking to have the

appeal struck out was simple but forceful: he served the Notice of Appeal and the Record of Appeal on the second respondent but in each case the latter refused to accept the service. According to the appellant the second respondent was served with the Notice of Appeal on 6 January 1997, and with the Record of Appeal on 21 February 1997. The appellant asserts in his affidavit that the application to have the *ex parte* judgment set aside was "inserted in the High Court case file after the appeal [had been] lodged on or about 3 March 1997", and he repeated that assertion in the course of making his submission.

It seems to us that logic demands that we deal first with the application to have the appeal stood over until the disputed chamber application is determined. We proceed, therefore, to deal with that point. In order to discover on which side lies the truth as regards when the chamber application was filed we painstakingly examined the Exchequer Receipt book from which the court cashier issued receipt number 047665 on 23 January 1997, in respect of the payment made by Messrs MRA Lamwai and Co., Advocates, in connection with the filing of the chamber application. The receipt book is the one which bore receipts with numbers 04706601 to 04706800 inclusive. The following is what we have discovered from the exercise. The four receipts immediately preceding Receipt Number 04706645, namely, Receipts Numbers 04706641, 04706642, 04706643 and 04706644, were issued on the same date, that is to say, 23 January 1997. The four immediate subsequent receipts – Numbers 04706646, 04706647, 047-6648 and 04706649 – were also issued on the same date, to different firms of advocates, MRA Lamwai and Co. (in connection with High Court Civil Case Number 17 of 1997), R Marandu (in connection with High Court Civil Case Number 20 of 1994), "legal counsel (advocate)" (in respect of Civil Case Number 18 of 1997), and M.A. Ismail (in connection with Civil Case Number 11of 1996). Receipt Numbers 04706641, 04706642 and 04706643 were issued in respect of renewals of practicing certificates of advocates F.A. Ureni, D.N. Kapoor and D.C. Mbezi respectively, while Receipt Number 04706644 was issued to Messrs Maira and Co. Advocates, in connection with High Court Civil Case Number 62 of 1996.

Bearing in mind these discoveries, we entertain no doubt that the appellant's bold assertion that the chamber application to set aside the *ex parte* judgment was filed after he had filed the instant appeal has no grain of truth. We are satisfied that the filing of the chamber application preceded the lodging of the appeal. Having arrived at that opinion, we agree with Dr Lamwai that justice demands that the appeal be stood over until the chamber application before the High Court is determined by that court. That view compels us to hold, as we do, that the point *in limine* regarding the competence of the appeal has been prematurely raised. We therefore express no opinion on it.

For the reasons we have given, we order that the appeal against assessment of damages be stood over pending the determination of the chamber application filed before the High Court by the second respondent to have Bubeshi, J.'s *ex parte* judgment set aside and the case tried *inter partes*. The respondents will have their costs.

AFRICAN TROPHY HUNTING LTD. *v.* ATTORNEY GENERALAND FOUR OTHERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani A. .C.J.J, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 25 OF 1997

(From the decision of the High Court of Tanzania at Dar es Salaam, Bube.shi, J., dated 23 September 1996 in Miscellaneous Civil Case No. 4 of 1994)

Civil Practice and Procedure – Temporary and Interim orders of injuction – Whether time prescribed for validity thereof begins to run from the time of compliance with order.

The appellant company were aggrieved by the withdrawal of hunting blocks that had been allocated to them. They applied for orders of *certiorari* and *mandamus* against the first, second and third respondents. This was followed by an application for an Interim Order of Injunction. While the application for the interim order was still pending, the same hunting blocks were allocated to the fourth and fifth respondents. The application for the interim order was heard by the High Court and granted, and it was ordered that pending the determination of the main application the *status quo* be maintained. The fourth and fifth then brought an application to challenge the Interim Order of Injunction, praying that the order should be set aside. Though the High Court found that the interim order had by then expired, the court still proceeded to allow that application and set aside the order. The appellant appealed to the Court of Appeal, *inter alia*, on the ground that since there was no compliance with the order on the part of the third respondent, the Interim Order of Injunction still existed, as the time prescribed in rule 3 under Government Notice Number 508 of 1991 begins to run from the time of compliance with the order.

Held: (i) The running of the time prescribed in rule 3 under Government Notice Number 508 of 1991 does not depend upon compliance with the terms set in the court order;

(ii) Since the order for interim injunction had lapsed, the application to set it aside was incompetent and should have been struck out.

Appeal Dismissed

Case referred to:

(1) *Kirklees B.C. v. Wickens Building Supplies Ltd.*, (1993) AC 227

Statutory provision referred to:

(1) Civil Procedure Code 1966, Order 37, rule 1 and rule 4 of

Mr Nyange, for the Appellant

Mr Mbuya, for the Respondents

JUDGMENT

(Dated 03 December 1998)

LUBUVA, J.A.: This appeal arises from High Court Misc. Civil Cause Number 4 of 1994. In that case the applicant, who, in this matter is the appellant, had applied by Chamber Summons for orders of *certiorari* and *mandamus*. The orders sought were in these terms:

(1) To remove into this Honourable Court and quash the decision of the Director of Wildlife in the Ministry of Tourism Natural Resources and Environment of 4 August 1994, withdrawing the blocks allocated to the applicant namely, Selous K4 and R1.

(2) To compel the Director of Wildlife Ministry of Tourism, Natural Resources and Environment to restore the blocks withdrawn.

In order to have a clear picture of the sequence of events, we think it is appropriate at this juncture to preface our judgment with a brief outline of the background giving rise to this case. On 24 November 1992, the appellant was allocated by the Director of Wildlife, Ministry of Tourism, Natural Resources and Environment hunting blocks Selous K4 and R1. On 18 June 1993, these hunting blocks were withdrawn from the appellant on the grounds that the appellant had failed to pay the requisite block fees and the underutilization of the blocks. After the appellant was served with the letter of withdrawal Reference Number GD/16/44/11/138 of 18 June 1993, proceedings for *certiorari* and *mandamus* were initiated in the High Court i.e. Miscellaneous Civil Cause Number 4 of 1994. The amended Chamber Summons was filed on 6 December 1995.

While the application for *certiorari* was still pending, African Trophy Hunting Limited, the (original applicant) the appellant, filed another application for a temporary injunction against the Principal Secretary, Ministry of Tourism, Natural Resources and Environment and the Attorney General. On 13 February 1995, the High Court (Bubeshi, J.) heard the application. Allowing the application for temporary

injunction, the learned judge ordered the status quo to be maintained pending the hearing of the main application i.e. Miscellaneous Civil Cause Number 4 of 1994. It is apparent however, that after the withdrawal of the hunting blocks from the appellant, the respondents, Eco Hunting Company Limited and African Bush Company Limited were allocated the same hunting block section The respondents, fearing that they would be affected by the Interim Order of Injunction of 13 February 1995, filed an application seeking the rescission, variation or setting aside of the order. The application was filed under Order 37, rule 4 of the Civil Procedure Code, 1966. The ground for the application was that the status quo sought in the Interim Order of Injunction could not be maintained at that stage without affecting the interests of other third parties. After a careful consideration and analysis of the matter, the learned judge came to the conclusion that the Interim Order of Injunction of 13 February 1995 was no longer valid, it had expired on 13 August 1995. The application was granted and the Interim Order of Injunction was set aside on 23 September 1996.

Against the decision of 23 September 1996, the appellant, African Trophy Hunting Limited, has preferred this appeal. Mr Nyange, learned counsel appeared for the appellant at the hearing of this appeal. He filed a ten-point Memorandum of Appeal. When the appeal was called on for hearing, Mr Nyange opted to argue most of the grounds together. This, he said, was due to the fact that some of the grounds in effect overlapped. From these grounds of appeal, we think in totality the gravament of the appeal is reflected in the following issues: First, that the appellant had all along complained that the court's order of 23 February 1995 had not been complied with. Second, that since there was no compliance with the court order, time had not started to run in regard to the order of temporary injunction. Third, that the respondents had no *locus standi* in the proceeding section We propose to address these issues in this appeal. In dealing with the appeal, if we do not consider each and every point canvassed by the learned counsel for both parties, it is not out of discourtesy. Otherwise, we are grateful to the counsel for their very helpful, lucid and well researched submissions.

Arguing grounds 1, 2 and 3 together, Mr Nyange submitted that from the time the Interim Order of Injunction was issued on 13 February 1995, the appellant had all along been complaining that the order of court of 13 February 1995 had not been complied with. That is, the Director of Wildlife, Ministry of Tourism, Natural Resources and Environment who was, by the order of 13 February 1995 restrained from withdrawing hunting blocks from K4 and R1 from the appellant did not maintain the status quo, Mr Nyange stated. He further submitted that by the time the Interim Order of Injunction was issued on 13 February 1995, the Director of Wildlife had already (27 January 1995) allocated hunting blocks K4 and R1 to Econ Hunting Company Ltd. In that situation, Mr Nyange went on, it was not possible to maintain the status quo envisaged because the matter had been overtaken by events.

Mr Nyange, learned counsel went further in his submission. He stated that as the status quo was not maintained in terms of the Interim Order of Injunction of 13 February 1995, the time had not started running. Elaborating on this, Mr Nyange adamantly maintained that notwithstanding the provisions of rule 3 of Notice Number 508 of 22 November 1991, which provides for the validity of an order of injunction for a period not exceeding six months, the time starts running from the time of compliance with the court order. In this case, he stressed, so long as the court order of 13 February 1995, was not complied with, the order of temporary injunction also still remained valid.

Then Mr Nyange dealt with the question of the respondents' *locus standi*. He submitted that as the respondents were not parties to the proceedings in the High Court for certiorari and mandamus, they (respondents) had no *locus standi* in the proceedings for the variation or setting aside of the order of 13 February 1995 for interim injunction. This is so, he went on, because an application for discharging or varying an injunction order can only be made by one who is a party to the proceedings and not anybody who is dissatisfied with the order.

On the other hand, Mr Mbuya, learned counsel who appeared for the respondents in this appeal responded to the submissions regarding the *locus standi* of the respondent section In his submission, he eloquently made the distinction between an application made under Order 37 rule 2 and another under rule 4 of the same Order. That under rule 2 an application for an injunction is only available to a party to a suit but an application for variation or discharge of an order under rule 4 is available to any interested party. In this case, Mr Mbuya submitted, in the course of implementing the order for temporary injunction of 13 February 1995 to maintain the status quo, the interests of the respondents were affected by the withdrawal of the hunting block section For that reason, he further stated, the respondents had an interest in the matter. Therefore, he concluded, they had *locus standi* in the matter.

With regard to the fact that the appellant had all along been complaining that the court order of 23 February 1995 had not been complied with, Mr Mbuya, while conceeding that, that may well have been so, he strongly maintained that it was not due to the fault of the respondent section Rather, he insisted, it was due to the appellant's failure to disclose to the court at the time the order of 13 February 1995 was issued that the appellant was not in possession of the hunting blocks. As a result of such non-disclosure on the part of the appellant, Mr Mbuya pressed, the order was issued by the court on the assumption that the applicant, the appellant in this matter, was in possession of the hunting blocks. In these circumstances, and, in the absence of any fraud on the part of the respondents, Mr Mbuya concluded, there is no basis upon which to fault the learned judge's decision to allow the application for review and discharge of the order of 23 February 1995.

We shall first address the issue whether in matters pertaining to interim orders of injunction, time starts to run from the time of compliance with the court order. As just observed, Mr Nyange strenuously urges the court to take the view that as long as the court order granting an interim injunction is not complied with, time does not start running. According to him, the order for temporary injunction remains valid

for an indefinite period if there is no compliance. With great respect, we find this a novel and attractive submission which, we are however, unable to accept. Not only is it unconvincing but it is also absurd as well. It is trite knowledge that the power to grant an injunction is discretionary on the part of the court and that such discretion is to be exercised judicially. In the case of *Kirklees BC v. Wickens Building Supplies Ltd.* (1), the House of Lords underscored this principle in these terms:

> The power to grant injunctions, which now arises under section 37 of the Supreme Court Act 1981, is a discretionary power, which should not as a matter principle be fettered by rules.

In Tanzania, the court's power to grant temporary injunctions is provided for under Order XXXVII, rule 1 of the Civil Procedure Code, 1996. It is significant to note that the word used in the Tanzanian statute is "temporary" injunction. In practice however, it is apparent that the terms "temporary" and "interim" are sometimes used interchangeably. In relation to the duration of an interim injunction, the learned author David Bean, in his book **Injunctions** (6 ed) at page 3 describes interim injunction as follows:

> An interim injunction is still more temporary, and remains in force only until a named day...

As the term temporary injunction implies as well the wording of Order XXXVII, rule 1 of the Civil Procedure Code in Tanzania and other persuasive pronouncements of the law in other jurisdictions, we are increasingly convinced that an order for temporary injunction is valid only for the specified period. Mr Nyange's contention that in this case, the validity and duration of the order was dependant upon compliance with the terms given in the court order is, with respect, not in accord with the spirit behind the issuance of orders for temporary injunction. It is absurd, to say the least. We reject it.

Having taken the view that a temporary injunction is valid for the period specified in the order, what was the position in the instant case. Here, we think there are two facets to the problem. First, concerns

the period when the order was made, and second, the period six months after the issuance of the order on 13 February 1995. Addressing on how the status quo could be maintained at the time when by 27 January 1995 the hunting blocks had been re-allocated, the learned judge lamented that it was unfortunate that the matter was not brought to the notice of the court. For our part, we wish to say no more than that the court order was nonetheless, at that time unless discharged or set aside, valid.

Next, we propose to deal with the period six months after 13 February 1995. Dealing with the validity of the order of 13 February 1995 the learned judge said:

> I hold therefore that the order this court granted on 13 February 1995 expired on 13 August 1995 and no attempts have been made to revive it. And on that ground alone I further hold that since it is no longer valid it cannot be used to withdraw the two hunting blocks from third parties and restore them to the *first respondent*s (*sic*). [emphasis supplied]

From this, we think it cannot be gainsaid that the learned judge was correct in her view of the matter. This is so, in our considered opinion, for two reasons: Firstly, the Order of 13 February 1995 was for an interim injunction, not a perpetual one. Secondly, the law in Tanzania under which the relief was granted, specifically provides for an order of this kind to be in force for a period not exceeding six months by virtue of Government Notice Number 508 of 22 November 1991, Order XXXVII, rule 4 was amended in order to introduce a maximum period of six months when an Interim Order of Injunction would be in force. As amended, it reads:

> In addition to such terms as the keeping of an account and giving security, the court may by order grant injunction under rule 1 or rule 2 and such order shall be in force for a period specified by the court, but not exceeding six months. [emphasis supplied]

There is however, a proviso to this order which, in appropriate circumstances, upon an application by the party concerned, the court may grant an extension for a further period not exceeding an aggregate

of one yea rule In this case, there being no application made for the extension of the order before the expiry of six months, the order of 13 February 1995, as correctly held by the learned judge, expired on 13 August 1995, when the six months' period ended. That is, by operation of the law, at the expiry of six months, the order of 13 February 1995 ceased to have any legal force, it lapsed. Consequently, it follows therefore, that on 23 September 1996, when the learned judge dealt with the application for varying or rescission of the order for temporary injunction, the order the subject matter of the application, was no longer of any legal force.. This, it is apparent that the learned judge was consciously aware when granting the application by stating *inter alia:*

> In the premise I allow the application as prayed, the order of 13 February 1995 which is no longer valid is hereby set aside.

With respect, we think that while the learned judge correctly addressed the legal status of the order of 13 February 1995 at the time after the expiry of six months, she got mixed up as it were, in the concluding part of the ruling. If, as already indicated, the learned judge had found, and correctly so in our opinion, that the order was no longer of any legal force, it had lapsed, then the application before her was incompetent. It was based on an order which had no legal force at the time. In that situation, to grant the application on the learned judge did, by implication, in our view, it amounted to construing the order of 13 February 1995 as one still having legal force i.e. valid. This, with respect, was not correct. The application before the learned judge being incompetent, the proper course was for the application to be struck out.

This ground alone, we are satisfied is sufficient reason for disposing of this appeal. Having taken this view, we think it unnecessary to deal with the other grounds which were ably argued at the hearing of the appeal.

In the event, for the foregoing reasons, the appeal is dismissed with costs.

FAIZEN ENTERPRISES LTD *v.* AFRICARRIERS LTD.

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mfalila, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No.38 OF 1997

(From the decision of the High Court of Tanzania at Dar es Salaam, Mwaikasu, J., dated 10 July 1995, in Civil Case No. 307 of 1998)

Civil Practice and Procedure – Ex parte hearing – Effect of postponing hearing ex parte – Whether provision to postpone hearing may be used to allow absent plaintiff to proceed ex-parte – Order 9, rule 6(1) of the Civil Procedure Code 1966.

Civil Practice and Procedure – Whether plaintiff may prove entire case by affidavit – Order 9, rule 6 and Order 19, rule 1 of the Civil Procedure Code 1966.

Hearing of the suit was set for 15 April 1993, but the defendant did not appear when the suit was called for hearing on that day. The High Court then ordered that the plaintiff should proceed *ex-parte* by affidavit, the affidavit to be filed by 27 April 1993. The court also directed that the case should come for mention on 28 April 1993. Counsel for both parties appeared when the case came for mention before the Registrar on that day and the Registrar, by consent of both parties, ordered the filing of counter – affidavit, apparently on the defendant's application to set aside the order to proceed *ex parte*. Eventually the defendants application to set aside that order was dismissed and, accordingly, the plaintiff proceeded *ex-parte*. In an *ex parte* judgment delivered seven years after the institution of the suit, the suit was dismissed, the judge finding that the plaintiff had failed to prove its case. On appeal to the Court of Appeal by the plaintiff, there were rival arguments by counsel over the question raised by the court, namely, whether the High Court was correct to proceed the way it did.

Held: (i) Where the High Court applies Order 9, rule 6(1)(a) and proceeds *ex parte*, the court should do so straight away and hear the evidence of the plaintiff and his witnesses, if any;

(ii) Where a prayer to proceed *ex parte* under Ordinance 9, rule 6(1)(a) is granted and the court then postpones the reception of the plaintiff's evidence, that tantamounts to adjourning the hearing of the suit *ex-parte*, and rule 7 of Order 9 comes into force if the defendant appears at or before such hearing and assigns good cause for his previous non-appearance;

(iii) Order 9, rule 6 should not be used to allow absent plaintiffs to proceed *ex parte;*

(iv) Order 19, rule 1 does not permit a plaintiff to prove his entire case by affidavit.

Order accordingly

Statutory provision referred to:

(1) Civil Procedure Code 1966, Order 9, rule 6 and Order 19, rule 1

Mr Ndyanabo, for the Appellant

Mr Mkattte, for the Respondent

JUDGMENT

(Dated0 3 December 1998)

MFALILA, J.A.: In the High Court of Tanzania at Dar es Salaam, the appellant company Faizen Enterprises Limited, sued the respondent Company Africarriers Limited for among other things, a declaratory order that it is the lawful owner of Plot Number 106C Chang'ombe Industrial area and for a further order of permanent injunction against the respondent company and its agents or employees to stop any unlawful acts of physical trespass onto the plot or challenging the appellant's lawful title. It was not clear to us why throughout the record, Plot Numbers 109C and 106C Chang'ombe Industrial area are used interchangeably. But since the offers refer to plot Number 109C, we shall stick to that number in this ruling.

In their Written Statement of Defence, the respondent company made an equally spirited claim to the plot, stating that the offer to the appellant was null and void because at the time it was made, the

plot was already on offer to some other party and such offer was still subsisting. When the pleadings were completed, the endless saga of mentions and adjournments started, more often than not in complete disregard of the provisions in the Civil Procedure Code. The result of this non-compliance with the provisions of the Civil Procedure Code was the unnecessary delay in the completion of the case. It took seven years (1988-1995) to complete this simple case. Just to illustrate our point that the trial court unnecessarily delayed the completion of this case, it took two years to complete the case from the time the court ordered the case to proceed *ex-parte* for the non appearance of the defendant (1 April 1993 – 10 July 1995). We did not make any effort to try to comprehend how this could possibly happen.

Be that as it may, on 10 November 1992, the hearing date was finally set for 15 April 1993. On this date, when the case was called for hearing, Counsel for the plaintiff was present, but no representative of the defendant company was present in court. Learned counsel for the plaintiff made the following application:

> Mwajasho: I pray for leave to proceed *ex parte* by affidavit as the defendant is absent.
>
> Order: Application granted. Affidavit by 27 Apirl 1993. Mention on 28 April 1993.

Then a fresh round of adjournments and mentions started all over again as if the Civil Procedure Code did not exist. The result was that it took two more years to proceed *ex parte*! When finally the *ex parte* judgment was delivered on 10 July 1995, the suit was dismissed with costs, the plaintiff had failed to prove its case! It lodged this appeal pointing out a number of factual and legal errors in the judgment. These are not relevant in view of the attitude we took at the hearing of this appeal.

At the hearing of this appeal, we took the view that the trial was beset with a lot of procedural problems which needed our attention before proceeding with the appeal on merit. The question we posed

to counsel was whether the trial judge was correct to proceed the way he did.

How did the judge proceed? First, in the absence of the defendant on the day fixed for hearing, the judge directed on the application of Counsel for plaintiff that the plaintiff should proceed to prove its case *ex parte*. Counsel for the plaintiff made a further application that he should prove his case by affidavit. This application was also granted by the trial judge and set a date for filing the affidavit by 27 August 1993 and that the case should come up for mention the following day on 28 April 1993. Were these orders and all those that followed in the next two years correct?

Mr Ndyanabo learned counsel for the appellant argued that the learned trial judge acted correctly under Order 9, rule 6(1) and that if there was non-compliance with rule 7, this was cured by subsequent events.

On the other hand, Mr Mkatte learned counsel for the respondent, argued that the subsequent applications made by the appellant could not cure the initial non-compliance with Order 9, rule 6(1) as well as rule 7 and he cited commentaries by **Sarkar on Civil Procedure** 8 ed at page 717.

As indicated earlier, on the day set for hearing (actually one of numerous such dates) the plaintiff's counsel appeared but the defendant's failed to appear, thereupon the plaintiff's counsel applied or prayed to proceed *ex-parte*. Fair enough, this is what the law says, see Order 9, rule 6. But what is beyond our comprehension is the plaintiff's counsel other prayer or application that he be allowed to prove his case *ex parte* and by affidavit. How can anyone prove his entire case by affidavits and whose affidavits anyway? And most important, under what provision can this be done? But the court easily, perhaps automatically, allowed this application and ordered that the affidavit(s) should be filed by 27 April 1993 and the case mentioned the following day 28 April 1993.

On the first part of the order, this must have been done under Order 9, rule 6 which provides as follows:

> Order 9, rule 6(1)(a)(i)-Where the plaintiff appears and the defendant does not appear when the suit is called for hearing then-(a)-(i) If the suit is before the High Court and it is proved the summons was duly served, the court may proceed ex-parte;

What was the effect of the court order granting the prayer to proceed *ex-parte* and at the same time postponing the filing of the affidavit(s) in proof to another date? We think the effect of this was that the hearing was adjourned to the new returnable date of 27 April 1993, but then the court complicated matters by setting down a mention date: After this adjournment, the provisions of rule 7 came into force, this rule provides as follows:

> Rule 7: Where the court has adjourned the hearing of the suit *ex-parte* and the defendant, at or before such hearing, appears and assigns good cause for his previous non-appearance he may upon such terms as the court may direct as to costs or otherwise, be heard in answer to the suit as if he had appeared on the day fixed for his appearance.

But what happened after 15 April 1993 when the order to proceed *ex parte* and the filing of affidavits by the plaintiff was made, was in total disregard of the provisions of the above rule. When the case came up for mention on 28 April 1993 as ordered on 15 April 1998, Counsel for both sides appeared, the Registrar by consent of the parties ordered the filing of counter affidavits apparently in a new application to set aside the order to proceed ex-part and no order was made in respect of the order of 15 April 1993. It took the court two years to untangle the mess but only to dismiss the application to set aside the order to proceed *ex-parte* made more than a year earlier "When the suit is called for hearing" (see **Sarker Commentaries** p. 478), the question then is: What was the first day of hearing in this case? Was it 15 April 1993 or 27 April 1993 the latest date for the plaintiff to file his affidavit? Since on all subsequent dates the

defendant dutifully appeared and so many hearing dates were set, the legitimacy for proceeding *ex parte* was lost. All that the court needed to do was to comply with rule 7 and ask counsel for the defendant to assign good cause why he did not appear on 15 April 1993. The case would have ended sooner than the 2 years it took.

We shall next consider the order by the court allowing counsel for the plaintiff to prove his case by affidavit. Several questions came to our minds in connection with this order. First, 15 April 1993 was the date set for the hearing of the suit, presumably therefore counsel for the plaintiff had come to court with all his witnesses and exhibits ready to proceed with the hearing. If this is so, why then or what prevented him from proceeding with the hearing? Was counsel's application to proceed *ex parte* by affidavit meant to hide the fact that even the plaintiff was in no position to proceed with the hearing? If the court had not as it were automatically granted this strange application, it would have seen through the deception and discovered that even the plaintiff had no witnesses to proceed with the case. Secondly, under what provision did the court allow counsel for the plaintiff to prove his case by affidavit? In the Civil Procedure Code, affidavits are provided under Orders 11 and 19. Affidavits in Order 11 are those filed in answer to interrogatories thus irrelevant here. Order 19 provides as follows:

> Order 19, rule: Any court may at any time for sufficient reason order that any particular fact or facts may be proved by affidavit or that the affidavit of any witness may be read at the hearing on such conditions as the court thinks reasonable.
>
> Provided that where it appears to the court that either party *bona fide* desires the production of a witness for cross-examination, and that such witness can be produced, an order shall not be made authorizing the evidence of such witness to be given by affidavit.
>
> Rule 3: Affidavits shall be confined to such facts as the defendant is able of his own knowledge to prove, except on

interlocutory applications, on which statements of his belief may be admitted.

Even assuming that the provisions of this order allow a plaintiff to prove his case by affidavit, what sufficient reason did counsel give to bring his case within the ambit of Order19, rule1 and that he was not disqualified under the proviso to that rule? But we think more important is the consideration that in this case the plaintiff would be required to prove its entire case not isolated or individual facts by affidavit section In the circumstances, we think that this Order should not be used to allow absent plaintiffs to proceed *ex parte*.

For these reasons, we are satisfied that the court was not correct in proceeding the way it did, this non-compliance with the provisions of the Civil Procedure Code resulted not only in very confused proceedings but worse in an unwanted seven years delay before the case could be completed. We think the fair thing to do in such circumstances is to quash the proceedings in the High Court, set aside the judgment and other ancillary orders with an order that the case be retried before another judge who we trust will adhere strictly to the provisions of the Civil Procedure Code.

INTERTEC EAST AFRICA A. S *v.* B AND S INTERNATIONAL

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Lubuva, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 46 OF 1997

Civil Practice and Procedure – Issues – Issues of law – and Issues of facts – Where issues of law may dispose of the case or part of it – Court must determine issues of law first – Order 14, rule 2 of the Civil Procedure Code 1966.

Company law – Foreign company- Certificate of compliance by foreign company – Whether a foreign company not incorporated in its own country can take out a Certificate of compliance in Tanzania – Section321 of the Companies Ordinance Chapter 212.

Civil practice and procedure – Companies standing in legal proceedings – Whether a foreign not incorporated in its home country can institute legal proceedings.

The appellant sued the respondent in the High Court for trespass to the property and committing waste. The action failed and the appellant appealed to the Court of Appeal. The appellant claimed to be incorporated in Denmark as public limited company, after its shareholders passed a resolution to convert it from being a private limited company. However when the appellant applied for and obtained a Certificate of Compliance under section 321 of the Companies Ordinance so as to establish a business in Tanzania, the Commerce and Companies Agency had not approved the appellant's conversion from a private to a public limited company, in the event, the agency refused to approve and register that conversion; but the appellant continued with operations in Tanzania as if the conversion was approved and registered and it was in that position when it commenced legal proceedings in the High Court.

Held: (i) Once the court form the opinion that an issue of law may dispose of the case or any part thereof, it has no discretion but to try that issue: Order 14, rule 2 of the Civil Procedure Code;

(ii) The claim that the appellant was never incorporated in Denmark was a fundamental issue implying that it could not maintain a suit in court and required immediate determination; the trial judge, therefore, proceeded with material irregularity while there was a preliminary issue capable of disposing of the whole case.

(iii) A foreign company not incorporated in its home country cannot validly take out a Certificate of Compliance under the Companies Ordinance and establish a place of business nor institute legal proceedings in this country.

(iv) As the appellant never came into existence, there was no valid suit before the trial judge; the suit was a nullity from the start.

Appeal dismissed; no order as to costs

Cases referred to:

(1) *Partab Singh v. Gurmji Singh,* 1959 Punj. 1776

(2) *Nanu Ram v. Vardichand,* 1978 A. Raj. 138

(3) *Mohum Chunder v. Azeem,* (1968) 2 Punj. 309

(4) *Screedhar Pani v. State,* 1979 Uri. 55

Statutory provisions referred to:

(1) Companies Ordinance, section 321

(2) Civil Procedure Code, Order 14, rule 2

Mr Maira, for the Appellant

Dr Mwaikusa, for the Respondent

JUDGMENT

(Dated 03 December 1998)

LUGAKINGIRA, J.A.: The appellant claimed to be a limited liability company incorporated in Denmark and having a place of business in Tanzania. It also claimed to be the beneficial and registered owner of a parcel of land comprised in Certificate of Title Number 21724 and known as Plot Number 29C, Block "A", Makuburi, Dar es Salaam City. The respondent is undisputedly a limited liability company incorporated in Denmark and having a place of business in Tanzania. The appellant commenced action in the High Court at Dar es Salaam alleging that the respondent had trespassed on the property aforesaid, committing waste by installing machinery and equipment thereon, and prayed for the respondent's eviction, a permanent injunction restraining further trespass, mesne profits, general damages, costs and any other relief section. The action failed in its entirety hence this appeal.

We will attempt to highlight the salient features in the dispute. On 13 August1985, the Danish Commerce and Companies Agency in the Ministry of Industry registered a private limited company of the name APS K BUS 8 NR 1135. At an Extraordinary General Meeting held on 17 April 1986, the shareholders resolved, among other things, to convert the company from a private limited company (APS) into a public limited company (AS) and to change its name to Intertec East Africa AS. A Board of Directors was also elected which included Mr Bjerne Alling and his wife Mrs Hasina Jivraji Alling, the latter being a substantial shareholder in the proposed company. Mr Alling was also elected Managing Director of the company. In order for these changes to take effect they had to be approved and registered by the Danish Commerce and Companies Agency. But towards the end of May 1986, before such approval and registration was obtained, Mr Alling was dispatched to Dar es Salaam to establish a branch of the company.

At Dar es Salaam he delivered to the Registrar of Companies the documents required under section 321 of the Companies Ordinance (Chapter 212) and was on 30 August1986, issued with a Certificate of Compliance in the name of Intertec East Africa AS, the appellant. Less than three months later, on 14 November 1986, to be exact, the Danish Commerce and Companies Agency refused to effect registration of the conversion and change of name of APS KBUS 8 NR1135. In view of the setback the company held a General Meeting on 29 June 1987 at which it was resolved merely to change the name to Intertec East Africa APS. The change was approved and registered by the Commerce and Companies Agency on 13 June 1988.

Meanwhile the appellant was proceeding with operations in Dar es Salaam as if nothing was happening in Denmark. In October 1989, it acquired the suit property by a transfer of the right of occupancy from one Purshottam Gokal Solanki. It was common ground that the respondent moved onto the premises in July-August 1992. The suit was filed on 11 September 1992 and was apparently triggered by the dismissal of Mr Alling as Managing Director and the restructuring

of the shareholding which had resulted in the erosion of Mrs Alling's commanding position. Since the dismissal came from the board of Intertec East Africa APS and restructured shareholding obtained in that company, these and related matters are the subject of another suit still pending before the High Court. In its Statement of Defence, the respondent raised two preliminary issues, namely, that the appellant was not incorporated in Denmark and that it filed the suit without leave of the board of directors; alternatively, it averred that the appellant was a sister company, both of them being owned or substantially owned by Intertec Contracting AS, a company incorporated in Denmark, and that it entered the suit premises pursuant to a lease agreement concluded with the appellant. In an amended statement of defence the respondent added another preliminary issue to the effect that the suit was *re judicata* on account of a decision of the Court of Aarhus, Denmark, in a dispute between Intertec East Africa APS and Mr Alling delivered on 29 March 1994. In November 1995, while the suit was pending trial in the High Court, the Registrar of Companies, upon representations by Intertec East Africa APS, cancelled the appellant's registration and Certificate of Compliance. He then issued a Certificate of Compliance in the name of APS KBUS 8 NR1135 retrospectively from 30 August 1986 and at the same time issued a Certificate of Change of Name in the name of Intertec East Africa APS at the first hearing of the suit, the then counsel for the respondent, Mrs Kasonda, informed the trial judge (Kaji, J.) that she had agreed with Mr Maira, who appeared for the appellant at the trial and before us, to withdraw the preliminary issues and include them in the main suit, "because most of them will need witnesses to be proved," (except for the issue of *res judicata* which she withdrew completely. The learned judge agreed and proceeded to frame the following issues for determination.

(1) Whether the plaintiff company has a place of business in Tanzania.

(2) If the answer is in the negative, does the plaintiff company have a *locus standi* in these proceedings?

(3) Was the authority of the board necessary before the institution of these proceedings?

(4) Who is the lawful owner of the suit property/premises?

(5) Is the defendant a lawful tenant or a trespasser on the suit property/ premises?

(6) What reliefs are the parties entitled to?

We are surprised that the trial had to take this course. Our surprise derives not only from the fact that the decision to postpone the trial of the preliminary issues entailed a longer trial, but also because the decision disregarded the express provisions of the law. It is provided as follows in Order14, rule 2 of the Civil Procedure Code 1966:

> When issues both of law and of fact arise in the same suit, and the court is of opinion that the case or any part thereof may be disposed of on the issues of law only, it shall try those issues first, and for that purpose may, if thinks fit, postpone the settlement of the issues of fact until after the issues of law have been determined.

This provision is evidently mandatory. Once the court forms the opinion that an issue of law may dispose of the case or any part thereof, it has no discretion but to try that issue first: see, for instance, *Partab Singh v. Gurmji Singh* (1). If the answer to the issue disposes of the whole case, the court would be freed from any obligation to inquire into the remaining questions for they might no longer be valid questions or the answers thereto might be academic. That would be the position where, for instance, it is found on a preliminary issue, that the court has no jurisdiction or the suit is incompetent. The position in India has slightly changed since 1976 and their new rule 2 provides for the pronouncement of judgment on all issues notwithstanding that a case may be disposed of on a preliminary issue, except where the issue relates to the jurisdiction of the court or a bar to the suit created by any law. Our rule 2, however, remains what India's was up to 1976 and the change is not relevant to uses.

The question, therefore is, whether in the instant case there was an issue of law the answer to which could have disposed of the whole or part of the case. The learned trial judge does not appear to have given this matter any consideration but we have no hesitation in giving an affirmative answer The charge that it had never come into existence, implied that it could not maintain a suit in a court of law. That was a fundamental issue which went to the root of the entire case, and which therefore called for immediate settlement. The reason assigned for withdrawing the preliminary issues into the main suit, namely, to avoid calling witnesses, cannot be justified under the rule. The rule itself provides for a trial and this, in our view, includes adduction of evidence. In the case of *Nanu Ram v. Vardichand* (2), the Rajasthan High Court in India decided to the effect that the only question of law which could be dealt with as a preliminary issue was not only one which went to the root of the case but also which was capable of being decided without recording evidence. We have not read and therefore cannot criticize that decision but we wish to observe that it does not appear to represent the predominant view among the High Courts in India. There is no doubt, in the final analysis, that the trial judge proceeded with material irregularity when there was evidently a preliminary issue capable of disposing of the whole case; but since the irregularity did not affect the merits of the judgment as a whole, we say no more on the subject but to look at the consequences.

In his judgment the trial judge held with reference to the first and second of the framed issues that the appellant had not established a place of business in Tanzania, after finding that it was not incorporated in Denmark, and that it had no standing in these proceedings. We agree and we think that even at that late hour the learned judge could still have spared himself considerable trouble by stopping there and striking out the suit. As correctly found, the conversion of APS KBUS 8 NR1135 into a public limited company of the name Intertec East Africa AS, and of which the appellant purports to be, never went through. The appellant hence never came into existence under Danish law and was not in existence when it purported to apply for and to

obtain a Certificate of Compliance at the Companies' Registry in Dar es Salaam or when it instituted this suit. A foreign company which is not incorporated in its home country cannot validly take out a Certificate of Compliance under the Companies Ordinance nor can it institute valid proceedings in the courts of this country. The learned judge should therefore have struck out the suit even at that stage without having to enquire into the remaining issues because it was incompetent. But because this never occurred to him, he went further and made these interesting remarks:

> What was purportedly registered on 30 August, 1986 as Intertec East Africa A/S was actually APS KBUS 8 NR 1135 which by then was incorporated in the country of origin (Denmark) bearing Registration Number 102, 895. Therefore in law from 30 August, 1986 when Intertec East Africa A/S was purportedly registered till on 10 June 1988 when APS KBUS NR 1135 changed to INTERTEC East Africa APS, APS KBUS 8 NR 1135 was operating its business in this country under a mistaken name of INTERTEC East Africa A/S and from 13 June 1988 when APS KBUS 8 NR 1135 was changed to Intertec East Africa APS to 17 November 1995 when rectification was made in the office of the Registrar of Companies, Intertec East Africa APS had been operating its business in this country under a mistaken name of Intertec East Africa A/S.

In the same vein, and in reference to the fourth issue, he held that Intertec East Africa APS was the lawful owner of the suit property, "although the Certificate of Occupancy Exhibit P8 was mistakenly written in the name of Intertec East Africa A/S..." As regards the fifth issue, he found the respondent a lawful tenant of Intertec East Africa APS which was, again according to him, "mistakenly operating under the name of Intertec East Africa A/S". He did not find it necessary to answer the third issue. He concluded with these significant remarks:

> ... that company (i.e. Intertec East Africa A/S has no legal personality and it is incapable of suing and therefore cannot have *locus standi* in these proceedings. However the fate of that company will probably be dealt with better in Civil Case Number 244 of 1992 where the existence

or legality of Intertec East Africa APS is being challenged by the plaintiffs Hasina Alling, Bjarne Alling and Intertec East Africa A/S.

The Memorandum of Appeal consisted of four grounds couched in these terms:

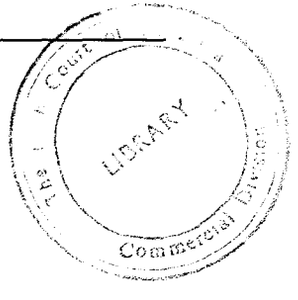
1. The learned trial judge erred in fact and in law in accepting the changes made by the Registrar of Companies in November 1995 when the dispute was already in court and hence *sub judice.*
2. The learned trial judge erred in holding that the suit property does not belong to the appellant company despite the Certificate of Title.
3. The learned trial judge misdirected himself in holding that the respondent was a lawful tenant of the appellant *(sic)* when the purported lease is not witnessed by the Chief Executive of the appellant company.
4. The learned judge erred in law in not holding that the registering of the appellant company and the issuance of certificate under section 321 of the Companies Ordinance was proper.

At the hearing of the appeal, Mr Maira conceded that the appellant company was never incorporated in Denmark. We think that dispose of the fourth ground. As stated earlier, since the appellant was not incorporated in Denmark, it could not validly take out a Certificate of Compliance under the Tanzania Companies Ordinance. To put it differently, the acquisition of the Certificate of Compliance did not bring the appellant into existence in Tanzania in the absence of incorporation in Denmark, but the exercise at the Companies' Registry was a nullity. As regards the third ground, the trial judge actually held that the respondent was a lawful tenant of Intertec East Africa APS, after holding that the latter company was the lawful owner of the suit property, "although the certificate of occupancy exhibit P8 was mistakenly written in the name of Intertec East Africa A/S".

Apart from that correction we do not feel called upon to go into the merits of the first, second and third grounds of appeal because they arise from an adventure that had no basis in law. After it was

found that the appellant never came into existence, the trial judge should have realized that there was no valid suit before him since the appellant had no capacity to institute one. As Dr Mwaikusa, learned Counsel for the respondent put it, once it was determined that the appellant never existed, everything else fell into place. The problem in this case was the trial judge's perception of the issue as one of the appellant's standing or *locus standi* in the proceeding. This inevitably tended to dissociate the proceedings from the appellant while not necessarily impugning the legitimacy of the former. What was at the issue was not standing, which means no more than the right to be heard, but the capacity, as the learned judge realized at the end of his judgment, the appellant did not have. The suit was therefore a nullity from the start. It was like bringing a suit against a person who is found to have died before its institution; it is a nullity from start though it may have been filed in ignorance of his death: see *Mohm Chunder v. Azeen* (3) and *Screedhar Pani v. State* (4). In the light of the foregoing, we are of the view that the pronouncements of the learned judge subsequent to the determination that the appellant did not exist were a nullity, and we declare them so. It is to be observed also that the issues involved in those pronouncements are more directly in issue in Civil Case Number 244 of 1992 which is still pending. This, we think, was additional reason for him to have refrained from expressing any position on the matter.

The appeal is otherwise without merit and it is accordingly dismissed. In view of the peculiar circumstances of this case, we make no order as to costs.



MWALIMU OMARI AND ANOTHER *v.* OMARI A. BILALI

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mfalila and Samatta, JJ.A.)

CIVIL APPEAL No. 19 OF 1996

(Appeal from the decision and decree of the High Court of Tanzania at Dar es Salaam, Masanche, J., dated 15 May 1990 in Civil Appeal No. 22 of 1987)

Land law – Customary land law – Whether a holder of land under customary law can be reduced into a squatter.

Land law – Customary land law – Title of a holder of a right of occupancy under customary law is recognized by the law of the land, i.e., the Land Ordinance.

Land law – Customary land law – In what circumstances the title of a holder of right of occupancy under customary law can be taken away.

Land law – Customary land law – Whether customary law on land and tenure applies in urban areas.

Land law – Customary land law – No one can hold land under customary law in a planned area - Customary law cannot apply in urban areas.

Land law – Customary land law – Title to urban land is dependent on granted rights of occupancy - Customary law does not operate in urban areas.

Land law – Declaration of urban land as a planning area – Whether such declaration divests the original owners of their customary titles on the land.

The appellants had been occupying a plot of land in Magomeni area, Dar es Salaam, under customary tenure. Subsequently the plot was surveyed and the respondent was granted a right of occupancy on the plot which now became Plot Number 60. A dispute arose over who was the rightful party to occupy Plot Number 60. the matter

came before a Court of the Resident Magistrate who decided for the respondent. On appeal to the High Court, the learned judge upheld the decision of the trial court on the ground that since the appellants were merely holders of a deemed right of occupancy (as their tenure was under customary law) their rights were those of licensees and that therefore they could not hold the land in adverse to anyone. The first appellate court further held that because customary law could not apply in an urban area, the appellants were therefore squatters.

The Court of Appeal in considering whether holders of land under customary law in planned areas have an inferior title to those who are subsequently allocated revisited the cases of *Mtoro bin Mwamba v. Attorney-General* (2) and *Methuselah Paul Nyagwaswa v. Christopher Mbote Nyirabu* (3).

Held: (i) Customary tenure does not apply in urban areas, let alone in the heart of the City of Dar es Salaam.

(ii) The appellants held no titles under customary law, they were squatters.

(iii) Title to urban land is only dependent on granted rights of occupancy because customary law does not operate in urban areas.

(iv) *Obiter:* The title of a holder of right of occupancy under customary law can only be taken away from the holder by an act authorized by a relevant law, i.e., the Land Acquisition Act, not by a simple act of declaring an area a planning area.

(v) It would be wrong in law to hold that a declaration of urban land as a planning area divests the original owners of their customary titles on the land.

(vi) If the appellants in this appeal held customary title on the disputed plot prior to its grant to the respondent, they would be protected by section 33(1)(b) of the Land Registration Ordinance and therefore their title could not be extinguished by the subsequent grant of the right of occupancy on the same plot to the respondent.

Appeal dismissed

Cases referred to:

(1) *Col. Kashmiri v. Naginder Singh Matharu* [1988] T.L.R. 163

(2) *Mtoro bin Mwamba v. Attorney-General* [1953 - 1957] (2) T.L.R. 327

(3) *Methuselah Paul Nyagwaswa v. Christopher Mbote Nyirabu* [1985] T.L.R.103

(4) *Emmerson v. Madison* 1906 AR 569

Dr Lamwai, for the Appellants

Mr Semgalawe, for the Respondent

JUDGMENT

(Dated 03 December 1998)

MFALILA, J.A.: This is a second appeal by the two appellants, Mwalimu Omari and Ahmed Baguo, their first to the High Court was dismissed. The relevance of what we intend to state in this judgment makes it necessary to state as fully as possible what is alleged in the pleadings as well as the evidence which was adduced at the trial.

In the Resident Magistrate's Court at Dar es Salaam, the respondent filed a suit against the appellants in which he prayed for a declaratory order that he is the lawful holder over Plot Number 60 Block E Magomeni area in the City of Dar es Salaam; for an order to demolish all improvements carried out on the said plot by the appellants; for a perpetual injunction restraining the appellants and/or their servants from continuing or repeating any of the acts complained of and damages. The basis of these claims, the respondent alleged, is that he is the holder of the right of occupancy for a term of 33 years over plot Number 60 Block E Magomeni area effective from 1 July 1978. That in violation of this right, the appellants and/or their servants and agents unlawfully entered the plot and without his consent proceeded to carry out certain improvements on the said plot thereby frustraiting his own efforts to carry out improvements on the said plot. The respondent further claimed that the appellants did all this wrongfully claiming that they were the lawful holders of the said plot.

In answer to these claims, the appellants stated that they have a title over the plot in dispute by adverse possession, they have been

in uninterrupted possession and control of the said plot since March 1965 and that therefore the respondent's alleged right of occupancy for a term of thirty-three years effective from 1 July 1978 cannot legally operate to extinguish their claim in adverse possession. The appellants also denied trespassing on to the said plot and that the respondent's prayer for a perpetual injunction "is unjust and calculated to defeat their claim in adverse possession."

The appellants' counter claim to this plot therefore was based on adverse possession.

In support of his case, the respondent told the trial court that in 1978 he applied for a plot to the Ministry of Lands and in July, Plot O.60 Block E in Magomeni was allocated to him vide letter of offer dated 25 July 1978. He paid all the necessary dues, took possession of the plot and started to effect some developments on it. He also complied with the order that he should pay compensation for any improvements he found on the plot but his offer to compensate the appellants for their cassava and latrine was rejected. It was when they entered the plot and started effecting developments of their own that he filed this suit against them.

In support of his claim over this plot, the first appellant Mwalimu Omari, told the trial court that he has been living in the Magomeni area since 1995. He cleared a plot on which he built his house. He gave one of these houses to his late son-in-law. Upon the death of his son-in-law, his parents sold the plot to the second appellant Ahmed Baguo and the position remained like this until 1978 when the respondent came and told them to leave because the plot had been allocated to him.

The second appellant, Ahmed Baguo, told an almost identical story as to how he acquired the plot in this unsurveyed area, that he was given the plot by the first appellant Mwalimu Omari. Later he said he applied for a grant of title and that he was offered Plot Number 60 which the respondent also claimed. These contending claims led to this suit. He admitted that apart from the latrine, he never put up

any structure on the plot. He also conceded that while the title to this plot was offered to him in 1980, this was after the same plot had been offered to the respondent in 1978 and that the latter offer was superior to his own. He concluded his testimony by stating that the dispute over this plot was finally taken of the Prime Minister's Office where it was recommended that the respondent's offer be revoked and the same plot offered to the appellants by virtue of the fact that they were physically on the plot at the time it was offered to the respondent. This recommendation, he said, was never acted upon.

In his judgement, the trial magistrate held that since the appellants were merely holders of a deemed right of occupancy (as their tenure was under customary law) their rights were those of licenses and that therefore they could not hold the land in adverse to anyone. He further held that because customary law could not apply in an urban area, the appellants were therefore squatters. In this position they could not defeat the respondent's claim over the plot, the claim which was supported by a statutory grant of a right of occupancy. On the appellants claim that they were also later offered a right of occupancy over the same plot, the trial magistrate said that this cannot help them because all it means is that there was double allocation of the plot, in which case it is the earlier grant which is effective. He therefore entered judgment for the respondent. Against this decision the appellants appealed to the High Court.

The High Court (Masanche, J.) dismissed the appeal holding as did the trial court that as squatters or holders under customary law, the appellants claim over the plot in dispute cannot override the respondent's claim which is backed by a grant of title under the Land Ordinance.

The appellants were yet again dissatisfied with this decision, they sought and were granted Leave to Appeal to this court. However this being a second appeal, they could only appeal on a point or points of law which the High Court framed as follows:

Whether holders of land under customary law in planned areas have an inferior title to those who are subsequently allocated.

In their Memorandum of Appeal to this court, the appellants lodged two grounds as follows:

(a) That the learned judge erred in law and in fact in holding that title to urban land was only dependant on a grant.

(b) That the learned judge erred in law and in fact in holding that a declaration of urban land as a planning area divested the original owners of their customary title to that land.

And asked this court to:

(a) quash the judgments of the courts below

(b) declare the appellants as the lawful owners of the suit land

(c) order the respondent to pay the appellants' costs of and incidental to the appeal and the proceedings in the courts below.

At the hearing of this appeal, Dr Lamwai, learned counsel who appeared for the appellants, argued on the point of law certified by the High Court when granting leave to appeal. He submitted that section 2 of the Land Ordinance provides a possibility of holding land under another system other than the Land Ordinance. This section provides for granted and deemed rights of occupancy which is under customary law. He added that the occupiers by virtue of a deemed right of occupancy must be informed of the impending plan so that he can apply, if he fails to get the grant, then he is entitled to compensation. Dr Lamwai added that if, as it is usual in practice, this is not done, then any grant of a right of occupancy to another occupier cannot be superior to the deemed right. This, Dr Lamwai concluded, is what happened in this case, the appellants as holders of a deemed right of occupancy were not informed of the impending plan hence the subsequent grant of the right of occupancy to the respondent cannot take precedence over the appellants' deemed grant which in the circumstances was a better title.

On the other hand, Mr Semgalawe learned counsel who advocated for the respondent, submitted that the respondent's offer had priority over the appellants' because it was issued first in point of time, and for this proposition he relied on the decision of this court in *Col. Kashimiri v. Naginder Singh Matharu* (1).

On our part, we think this is the time to revisit and consider the decision in the old colonial case of *Mtoro bin Mwamba v. Attorney General* (2), and *Methuselah Paul Nyagwaswa v. Christopher Mbote Nyirabu* (3) the two cases which were so widely canvassed both at the trial and in the High Court. Going by what happened in the two courts below, both in the submissions and judgements, it became quite clear to us that the decisions in the two cases are not entirely free from difficulties.

As we indicated at the beginning of this judgement, the appellants' claim to this plot was grounded on adverse possession. The pleadings are silent as to whom the appellants held this plot in adverse because adverse possession must always have an object. This question of adverse possession is also tied up with the relative merits and strengths between the two rights of occupancy created by the Land Ordinance i.e. granted and deemed rights of occupancy.

In the Land Ordinance Chapter113, a right of occupancy is defined as a title to the use and occupation of land and includes the title of natives or of a native community lawfully using or occupying land in accordance with native law and custom. Of course this definition should have been stripped off its colonial verbiage yesterday, but be that as it may, under this definition one right of occupancy is created by a direct grant of public land by the President in terms of section 6 of the Land Ordinance, the other one is that of a person or persons holding land in accordance with customary law. From this, two contending views were advanced in this case. One view which was advanced by or on behalf of the appellants, was that since the right of occupancy held by the appellants under customary law subsisted prior to the grant for the right of occupancy to the respondent and as there was

no evidence adduced that such prior right of occupancy had been revoked or acquired under the Land Acquisition Act 1967, the grant of the right of occupancy over the plot to the respondent in terms of section 6 of the Land Ordinance was ineffectual as in these circumstances the President had no right or capacity to contract or grant such land to another person.

The other opposing view which was canvassed by or on behalf of the respondent, is that a right of occupancy granted in terms of section 6 of the Land Ordinance, confers a superior and overriding title to the one based on customary law even if the latter is older.

In upholding the respondent's claim over this plot, both courts below relied on the decision in *Mtoro bin Mwamba* and *Nyagwaswa* cases on the status of holders of land under customary law, and virtually equated them with squatters and that the effect of the decision in the Nyagwaswa case was to render holders of land under customary law squatters once the area in which their land, is declared a planning area and that thereby they lose all rights except the right to compensation for unexhausted improvements. In the course of this judgement, we intend to look closely at the decisions in these two cases and hopefully reduce some of the confusion.

In the *Nyagwaswa* case, the facts were briefly as follows: The appellant, Nyagwaswa, purchased an unsurveyed piece of land held under customary law in Mbezi Beach Village. It was agreed and the case proceeded on that basis that Mbezi Beach Village though within the jurisdiction of the City of Dar es Salaam, was a registered village under the Villages and Ujamaa Villages Act 1975. Mbezi Beach Village was therefore classified as a rural area within the City of Dar es Salaam. It was described as a Green Belt Area. This sale to Nyagwasa was witnessed by the local CCM Chairman and Ward Secretary.

Subsequently, the respondent Nyirabu obtained or was granted a right of occupancy over the same piece of land under section 6 of the Land Ordinance Chapter 113. Before Nyirabu started building on the plot. Nyagwaswa started to build on it claiming that he was

the rightful owner of the plot. Nyirabu successfully sued him in the High Court. In deciding in his favour, the High Court held that the right of occupancy issued to Nyirabu was obtained legally and without fraud, that Nyagwaswa had trespassed on Nyirabu's plot and that the right of occupancy issued to Nyirabu extinguished all Nyagwasa's prior rights and interests over the said plot. This decision was challenged by Nyagwaswa on appeal to this court and it was in that appeal, (Civil Appeal Number14 of 1985) that this court was called upon to decide on the merits of the two competing claims to this plot, one by Nyagwaswa under customary law and the other by Nyirabu under section 6 of the Land Ordinance, and the status of the holder of a piece of land under customary law in an area after it is declared a planning area.

It is clear from the majority judgement of the court, that the court avoided to resolve this problem directly for reasons which Mustafa, J.A. gave. Instead the court chose to dispose of the appeal on another ground, namely, the absence of consent to the sale by the Village Council. But what was the problem? The relative arguments in support of both claims were very forcefully and ably presented by counsel on each side. It was argued in support of Nyirabu's claim that his Certificate of Occupancy was registered and that this was a first registration without fraud and that the provisions of section 33(1)(b) of the Land Ordinance could not help Nyagwaswa because there was evidence from which it could be inferred that Nyagwaswa's estate in the disputed land was registerable. Such evidence, it was argued, consisted in the value of the building (over 500 000 at that time) which Nyagwaswa was putting up and also the view he expressed that he wanted to own the place for as long as he wanted. This, it was further argued, indicated that Nyagwaswa was putting up a permanent and substantial building and was contemplating occupation for a term in excess of 5 years, these facts made his estate registerable. Consequently, Nyirabu as owner of a registered state, held it free from all estates and interests whatsoever as provided by section 33 (1)(b) of the Land Ordinance.

On the other hand, it was argued on Nyagwaswa's behalf that section 33(1)(b) refers to the interest in the land being registerable, and that Nyagwaswa's interest in the land which derived from customary law was nowhere stated to be registerable, hence Nyagwaswa's interest *vis a vis* Nyirabu's in this plot was protected under sub-section (1)(b) of section 33 of the Land Registration Ordinance.

We think it would make matters clearer if we reproduce at this stage section 33(1)(b) in full.

> Section 33(1) The owner of any estate shall, except in case of fraud, hold the same free from all estates and interests whatsoever other than
>
> 1. not applicable
>
> 2. the interest of any body in possession of the land whose interest is not registerable under the provisions of this Ordinance.

In the light of these arguments and statutory provisions, this court Mustafa J.A., as he then was, held as follows at page 108:

> In my view the law in Tanzania on land and tenure is still developing and certain areas are unclear and would have to await the necessary legislation. At any rate I am not prepared on the rather inconclusive and tenuous arguments adduced in this appeal, to hold that the rights of a holder of a right of occupancy by virtue of customary law is extinguished and he thereby becomes a "squatter" on an area being declared a planning area.

And on whether or not Nyagwaswa's interest was protected by section 33(1)(b) of the Land Ordinance, the court held at page 109:

> ... I am also of the view that the interest of the appellant (Nyagwaswa) was not compulsorily registrable, and therefore by virtue of section 33(1)(b) of Chapter 334 the right of the respondent (Nyirabu) *vis a vis* the appellant (Nyagwaswa) is not indefeasible and impeachable.

With respect we agree with this view as a correct interpretation of section 33(1)(b) although the question of compulsory registration

does not come in at all and we think with even greater respect that Nyirabu's interest was subject to Nyagwaswa's right as firmly protected by section 33(1)(b). In other words, Nyirabu's interest though registered, was defeasible and impeachable by Nyagwaswa's right under section 33(1)(b). What this amounts to is that a holder of a right of occupancy under customary law cannot under any circumstances be reduced to a squatter. What is a squatter?" By the ordinary dictionary meaning, squatter is a "person who settles on new, especially public land without title, a person who takes unauthorized possession of unocuppied premises." Since the title of a holder of a right of occupancy under customary law is recognized by the law of the land, i.e. the Land Ordinance, such a holder does not fit in the above definition of a squatter, his title being protected by State. Such a title can only be taken away from the holder by an act authorised by a relevant law i.e. the Land Acquisition Act but certainly not by a simple act of declaring an area a planning area. It is for these reasons that we agree with the minority judgement delivered by Makame, J.A. in the following words at page 114:

> When the respondent (Nyirabu) was made an offer of the parcel of land in dispute on 18 July 1978 the area had already been designated and registered as Mbezi Village under the Villages and Ujamaa Villages Act 1975. The spirit and effect of the Act and the various regulations made under it, is among other things, to place the land within the jurisdiction of the village at the disposal of the Village and its Kayas, under the administration of the village, for the economic and social transformation and development of the village and its inhabitants. The state decided that it should be so, and it would defeat the objective of the law if grants over the same land were made, even by superior authorities without consultation or at the very least knowledge, of the village authorities This, I am satisfied, is what happened in the instant case, as is clearly brought out by the testimony of DW3 Ally Kibwana, the CCM branch Chairman of the area and one of the persons who witnessed the transactions between the appellant (Nyagwaswa) and Mmole. There is no evidence that at the time of the said transaction the area had already been surveyed. In fact the defence evidence is that it had not bee. Once the appellant got the plot in April 1978, he contacted the Kinondoni District Land Office for a survey and title and the same District Land Office turned round and made an offer to the respondent in July 1978, behind the appellant's back as it were, when it knew that the appellant was in possession and wanted a title. According to Kiluluma "the Land Office would not survey a piece of land and allocate it to somebody without involving the Village Council. [emphasis supplied]

With respect, we agree fully with these views on the respective rights of the appellant Nyagwaswa and the respondent Nyirabu although to us it would matter little whether Nyagwaswa's title was registered or not as we are firmly of the view that it was securely protected by sections 2 and 33(1)(b) of the Land Ordinance. The court could therefore have allowed Nyagwaswa's appeal on this ground if there had not been the sticky problem of consent by the Village Council. We therefore think with respect that the provisions of the Land Ordinance as they are and the forceful exhaustive arguments advanced, were sufficient to enable the court to hold that the right of a holder of a right of occupancy under customary law, cannot be extinguished and turn such a holder into a "squatter" upon the area being declared a planning area.

Having avoided to give a direct answer to the issue of relative validity of a right of occupancy under customary law and that granted under section 6 of the Land Ordiance, the court chose to base its decision on another ground, namely, that Nyagwaswa's purchase from Mmole was not sanctioned by the Village Council as the regulations require. To this effect, Mustafa, J.A. stated:

> I am of the view that the sale by Vincent Patrick Mmole to the appellant (Nyagwaswa) of the land in Mbezi was void and ineffective as it took place without the approval of the village council. The appellant had not acquired any right or title in the land which could defeat the title in the land acquired by the respondent (Nyirabu) by virtue of the Certificate of Occupancy issued to him. There was no extinguishing of the appellant's anterior title to the land, he never had acquired a title to or interest in the land in dispute...

The majority of the court thought that there approval allegedly given by the CCM branch Chairman and the Ward Secretary were not sufficient, because these two officials could not constitute "the Village Council." Makame, J.A. (dissenting) thought that the approval given by these two officials was sufficient as it must have been given on behalf of the council whose stamp appeared on the sale documents. Although Makame, J.A.'s approach is more practical, we think it is fraught with dangers of possible abuse by officials who might purport to act on behalf of the Village Council. To stem such likelihood, it is safe to insist, as the court did in this case, on the approval by the counsel as the regulations require. What does all this mean with regard to the situation in this case? With the above analysis of the Nyagwaswa case, one could legitimately say that like Nyagwaswa, the appellants in this appeal having held customary title on the disputed plot prior to its grant to the respondent, were protected by section 33(1)(b) of the Land Ordinance and that therefore their title could not be extinguished by the subsequent grant of the right of occupancy on the same plot to the respondent. But before we can say so, it has to be established that the appellants in this case like Nyagwaswa, held rights of occupancy under customary law over the land in dispute prior to its grant to the respondent under section 6 of the Land Ordinance. This point is of extreme importance because only then can it be said that the two cases are on all fours. In the *Nyagwaswa* case, the land claimed by both Nyagwaswa and Nyirabu was in a village registered under the Villages and Ujamaa Villages Act 1975 Act 1975. The effect of this was that although the area was within the jurisdiction of the City of Dar es Salaam, it was classified as a rural area where customary law applied. In that village, any disposition of land, had to get the approval of the Village Council, and any grant even by superior authorities over land in the village. The question is whether the appellants in the present case are in the same position. The facts as revealed show that the plot in dispute is situated in the Magomeni suburb of the City of Dar es Salaam. The appellants occupied this plot within the City of Dar es Salaam without authorization from the relevant authorities, namely, the City Council or the Land Office. This was prior to the

area being surveyed and demarcated. Customary law on land and tenure does not apply in urban areas, let alone in the heart of the City of Dar es Salaam. The appellants were therefore by definition squatters. The position then is that the present case is radically different from *Nyagwaswa* because in the present case the appellants occupied the land in dispute as squatters and therefore unprotected, while *Nyagwaswa* held the land in dispute under a right of occupancy in customary law and therefore enjoyed the protection under section 31(1)(b) of the Land Ordinance. The question in these circumstances is therefore whether the appellants could hold the land in adverse possession to anyone as claimed. This point was extensively canvassed in the *Mtoro bin Mwamba* case referred to earlier in this judgment. The trial court relying on the decision in *Mtoro bin Mwamba* held that the appellants cannot claim title over the plot in dispute under customary law because no customary law tenure applies in an urban area, therefore the appellants had never had any deemed right of occupancy and that for this reason they were mere squatters. As such, they cannot claim adverse possession against anyone with an offer of a granted right of occupancy. On this point, the Court of Appeal for Eastern Africa (Sir Newnham Worley VP) stated in *Mtoro bin Mwamba:*

> It remains for me to consider the claim based upon adverse possession, which the learned Registrar rejected but which is not referred to in the judgment of the High Court. The learned Registrar rightly held himself bound in the law by a decision of the High Court of Tanganyika in Miscellaneous Civil Appeal Number 5 of 1947 upholding a decision of a previous registrar in Application Number A/633 to the effect that in the case of land held by a native, the inference must always be that the possession was permissive not adverse. The learned Registrar also considered and rejected various submissions made by Mr Morrison with the object of distinguishing the present case. Before us Mr Morrison conceded that the decision of this court in *Mubena v. Registrar of Titles and another* (1949) 16 EACA 79 was against him on the question of permissive occupation but sought to call in aid the decision of the Privy Council in *Secretary of State v. Debendralal Khan* 1933 ILR 61 CAL 262 on the question of overt possession.

> These points of law were not however fully argued before us and I do not propose to examine them at length, for the reason that in my opinion the appellants' claim on this ground breaks down on the facts as disclosed in the evidence. Even if it be assumed that his possession and that of his father before him was overt and adverse first to the German administration and then to the British it is clear that such possession has been twice interrupted.

Similarly, in the present case, the appellants can only succeed if they at least established that at any one time for a continuous period, they asserted a right of occupation adverse to the respondent. There was no such evidence that the appellants ever made any such claim to possession adverse to the respondent. Their claim to this plot without any title in these circumstances was inferior to the respondent's who has a title. To this end, we are in agreement with the observations of the Privy Council in *Emmerson v. Madison* (4) at page 575 quoted by the Court of Appeal for Eastern Africa in *Mtoro bin Mwamba* to the following effect:

> Nothing can be better settled than that if a person having title can get into possession of land in the actual occupation of a person having no title, he may continue such possession and that the person who was in actual occupation cannot succeed in ejectment against him on the strength merely of his former occupation. The presumption of title which arises from simple occupation and possession is answered and the person who has no title cannot succeed against the person who has both title and possession.

We are now in a position to revert to the point of law framed by the High Court and to the grounds of appeal. The point of law as framed by Maina J. when granting Leave to Appeal was whether holders of land under customary law in planned areas have an inferior title to those who are subsequently allocated. We wish to say with respect that no one can hold land under customary law in a planned area. The statement is therefore legally incorrect. We say this in full awareness that *Mtoro bin Mwamba* is not a direct authority for the proposition that customary law does not apply to urban areas, the main issue in that case being the right of a holder under customary law to register

his title under the Land Ordinance. The question of application of customary law in urban areas or the right of holders of land under customary law in planned or urban areas was not directly answered in *Nyagwaswa*. But we want to say now that customary law cannot apply in urban areas for the very good reason that a deemed right of occupancy is not compulsorily registerable whereas in urban areas all titles to land must be registered. This is necessary for smooth urban planning. Therefore if the learned judge was referring to the legal status of those holding land under customary law after the area is declared a planning area in relation to those who are subsequently granted the same land, the answer as we have already stated is that a deemed right of occupancy is equal to the granted right of occupancy under the Land Ordinance hence none takes precedence over the other. Therefore all that the holders of deemed rights of occupancy need to do is to convert these into granted rights of occupancy by having their holdings surveyed and title deeds issued to them. Sections 2 and 31(1)(b) of the ordinance make this quite clear. In the circumstances we think Dr Lamwai was making an understatement when he submitted that all that needed to be done to protect a deemed holder of a right of occupancy was to inform him of an impending plan. Dr Lamwai was also not correct when he submitted that section 2 of the Land Ordinance provides a possibility of holding land under another system other than the Land Ordinance. There is no other system, both deemed and granted rights of occupancy are held under the Land Ordinance and both are equally recognized and protected. But the point is irrelevant in this case because as we have already held, the appellants, for the reasons we have given, were squatters who held no protectable title under the Land Ordinance.

Turning now to the two grounds in the Memorandum of Appeal, we answer the first ground to the effect that the learned judge was correct in holding that title to urban land is only dependent on granted rights of occupancy because customary law does not operate in urban areas. The exception of course is where a rural area is by statute left to exist within an urban area as was the case with Mbezi Beach

Village in the *Nyagwaswa* case. Accordingly we dismiss the complaint in this ground.

With regard to the second ground, it would certainly be wrong in law to hold that a declaration of urban land as a planning are divested the original owners of their customary titles on the land for reasons already stated in this judgment, but no such thing happened in this case because the appellants held no titles under customary law, they were squatters. Accordingly we also dismiss the complaint in this ground. For all these reasons we dismiss the appeal in its entirety with costs.

IVAN MAKOBRAD v MIROSLAV KATIC, VESNA PALADIN AND INGRA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Ramadhani and Lubuva, JJ.A.)

CIVIL REFERENCE No. 9 OF 1998

Civil Practice and Procedure – Reference from single judge – Failure to serve Notice of Motion and Record of the Reference on respondent – Application of rules 57, 51, 52 and 45 of Court of Appeal Rules 1979.

Civil Practice and Procedure – Stay of execution - Doubts as to true owner of property in proceedings for stay of execution – Order of stay granted.

Applicant's application for stay of execution was dismissed by a Single Judge. Applicant was dissatisfied; hence this reference. When the matter was called on for hearing, the respondents raised a preliminary objection to the effect that they had not been served with a copy of the Record of Reference. On the merits, it was shown that there was a dispute as to who Ingra was and who owned the property sought to be protected.

Held: (i) Where an informal application is made, as was the case here, such an application is not bound by the provisions of rule 52(1) of the Court of Appeal Rules 1979, unless there has been an adjournment. Where there has been a lapse of time by reason of an adjournment there is need to serve copies of the documents and also the grounds for the reference to the respondent. The whole purpose of service is to enable the other party to prepare and that he should not be taken by surprise;

(ii) The rules are silent on the question of service of notice in a reference. The Honourable Chief Justice was advised to consider regulating applications for reference. But until such time as there are specific rules, the lacunae had to be filled with a practice note; in future applicants for reference should serve the respondents with copies of all the documents required to be filed under rule 51(2) of the Rules and also to state and serve the grounds for the reference;

(iii) There were serious doubts as to who Ingra was whose property was to be safeguarded, and so an order of stay of execution was granted.

Order accordingly

Mr Mselem, for the Applicant

Mr Kesaria, for the Respondents

RULING

(Dated 08 December 1998)

RAMADHANI, J.A.: The applicant, Ivan Makobrad, unsuccessfully applied for an order of stay of execution before our learned brother Mfalilia, J.A. Naturally, he is dissatisfied with that refusal and hence he has filed this reference.

When we came to hear the application, the respondents, Miroslav Katic, Vesna Paladin and Ingra, had a preliminary objection. Mr Kesaria, learned advocate for the respondents, pointed out that up to the time he was making his objection, he had not been served with a copy of the Notice of Motion and also a copy of the Record of the Reference. Mr Kesaria pointed out that there is no specific rule in the Tanzania Court of Appeal Rules 1979, dealing with the issue of service in

application for references. So, the learned advocate invoked rule 3(2)(a) of the said rules.

Mr Mselem, learned advocate for the applicant, pointed out that references are provided for under rule 57. He pointed out further that he had lodged in the court two extra copies of the record as required by rule 51(2). He submitted further that the rule does not require an applicant to serve anything on the respondent. He offered an explanation for that by saying that as no new evidence is taken in a reference, a respondent is presumed to have in his possession a complete record of the application which was before a single judge. Mr Kesaria owned to have with him in court a copy of that record. We reserved our ruling on the objection to this time.

As pointed out by Mr Mselem, reference is provided for in rule 57 to any one who is dissatisfied with the decision of a single judge. An application for a reference can be made informally to the judge at the time of giving the decision or by writing to the Registrar within seven days after the decision has been made. In this case it was made informally soon after Mfalila, J.A., gave his decision.

Mr Mselem relies on the provisions of rule 51 which says:

> (1) When an application is to be heard by a single judge, the application and other documents relating to it shall be filed in duplicate, and in all other cases in quadruplicate.
>
> (2) When an application is adjourned by a single judge for the determination of the court and in any case where an application is referred to the court under rule 57, the person applying to the court shall, before the date of the hearing of the court, file two extra copies of the application and the other documents relating to it, including any affidavits filed by any other party prior to the adjournment or the giving of notice, as the case may be.[emphasis supplied]

It is obvious that that rule deals with the number of copies to be filed in court and not with service to the respondent. The two sub-rules are complementing each other. Two copies have to be filed in

an application before a single Judge. A reference, on the other hand, is before a full court and so, falls under "in all other cases" of sub-rule (1) requiring four copies. Hence sub-rule (2) requires an applicant to file two more copies. But can it be argued, then, that rule 51 dispenses with the need to serve a respondent with the necessary documents.

Service of documents to parties is regulated by rule 52 and sub-rule (1) provides:

> The Notice of Motion and copies of all affidavits shall be served on all necessary parties not less than two clear days before the hearing.

Now, a reference is an application and applications are required by rule 45(3) to be by motion except if made informally, like this one. Are the provisions of rule 52(1) ousted in informal applications?

We have to distinguish between two types of informal applications. There are those which are made in the course of a hearing. Certainly those cannot be bound by rule 52(1) unless there is an adjournment. The application before us belongs to the other type of informal applications which are heard after a lapse of time from the making of the application. It is our considered opinion that in this latter type of informal application, there is a need to serve copies of documents and also the grounds for the reference to the respondent. The whole purpose of service is to enable the other party to prepare and that he should not be taken by surprise.

However, we realize that the rules are silent on the question of service to a respondent in a reference and we must admit that this is a shortcoming. We recommend to the Honourable the Chief Justice to consider regulating applications for reference. However, until such time as there are specific rules, we have to fill the lacunae with a practice note. In future applicants for references should serve the respondents with copies of all the documents required to be filed under rule 51(2) and also to state the grounds for the reference.

We, therefore, dismiss the preliminary objection and we now go on to consider the merits of the reference.

One of the reasons for the application for a stay of execution is that the applicant will suffer substantial damage if stay of execution is not ordered because the first two respondents are not residents of Tanzania and so, should the appeal succeed, execution will be difficult if not impossible. The learned single judge dismissed that argument because the third respondent, who is the employer of the two respondents as well as the applicant, is a company registered in Tanzania and that execution will be exacted on the company.

Mr Mselem pointed out that Ingra was joined as the third respondent as prayed. He went further to point out that before Ingra filed a Written Statement of Defence two more prayers were granted. An order of injunction made against the respondents on 16 December 1997 was vacated and in its place an injunction was issued against the applicants, the learned advocate submitted that the main plank of the appeal pending before the court is challenging the identity of the third respondent. Mr Mselem alerted the court that property might be left in the wrong hands if stay of execution is not ordered.

Mr Kesaria, on the other hand, said that the applicant claims to be protecting the property of Ingra but when Ingra wants to take hold of its property, the applicant is resisting. On the issue of the identity of Ingra, the learned counsel submitted that there are two separate companies: Ingra and Ingra M and G. He admitted that the first respondent is a director of both companies. However, Mr Kesaria conceded that if there is a dispute as to who is Ingra and so, the real owner, then the solution is to stay execution until the appeal is finalized.

After hearing submissions of both learned advocates, our minds are left in serious doubt as to whom the real Ingra is, whose property is to be safeguarded, and who is the fictitious Ingra against whom the property is to be protected. Because of that nagging doubt, and as conceded by Mr Kesaria, we order a stay of execution. So, the reference is allowed. Costs to follow the event.

AUGUSTINE LYATONGA MREMA v. DONATI MATHEW MBWAGAI AND OTHERS

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Samatta and Lugakingira, JJ.A.)

CIVIL APPEAL No. 29 OF 1998

(From the decision of the High Court of Tanzania at Dar es Salaam, Katiti, J., dated 2 December 1997 in Miscellaneous Civil Case No. 139 of 1996)

Elections – Security for costs – Whether failure to explicitly itemize security for costs in exchequer receipt renders an election petition incompetent – Rule 11 of the Elections (Election Petitions) Rules 1971.

The appellant was the successful candidate in a parliamentary by-election for the Temeke constituency. The respondents were registered voters in the by-election and challenged the appellant's election before the High Court. At the filing of the petition an exchequer receipt for TZS. 4 500 was issued by the High Court Registry which did not particularize the items paid for Counsel for the appellant raised a preliminary objection that security for costs had not been paid as required by rule 11(1) of the Elections (Election Petitions) Rules 1971, hence the petition should be "struck out." The court overruled the objection hence this appeal.

Held: A clerical error in receipts is an irregularity which has no bearing on the form or substance of an election petition and cannot lead to a miscarriage of justice.

Appeal dismissed

Mr Nyange, for the Appellant

Mr Kisusi, for the first to seven Respondents

Mr Komba, for the Attorney General

JUDGMENT

(Dated 10 December 1998)

LUGAKINGIRA, J.A.: This appeal contests the decision of the High Court at Dar es Salaam (Katiti, J.) on a preliminary objection. The appellant was the successful candidate in a parliamentary by-election for the Temeke Constituency held on 6 October 1999. The first to seventh respondents were registered voters in the by-election and are challenging the appellant's election before the High Court in an election petition, Miscellaneous Civil Cause Number 139 of 1996. The Attorney General who is the eighth respondent in this appeal is cited as the first respondent in the petition.

At the filing of the petition on 21 October 1996, Exchequer Receipt Number 04554725 for TZS. 4 500 was issued by the High Court Registry. This receipt, however, did not particularize the items paid for but states merely: "in respect of Miscellaneous Civil Case Number 139 of 1996". On 19 August 1997 the presiding judge fixed a date for hearing the petition but this kept changing for various reasons. When the petition came on for hearing on 1 December 1997, learned counsel for the appellant Mr Nyange raised a preliminary objection to the effect that security for costs had not bee paid as required by rule 11(1) of the Elections (Election Petitions) Rules 1971. He submitted that the petition was therefore not properly before the court and prayed that it be dismissed. He should, of course, have prayed that it be struck out. In reply, Mr Kisusi, learned counsel for the first to seventh respondents, resisted the prayer by demonstrating that security for costs and other items like filing fees were all comprised in the omnibus receipt. As a precaution also he had that morning paid a further sum of TZS. 1 000. He was supported by Mr Kamba, learned Senior State Attorney who appeared for the Attorney General. The court overruled the objection, hence this appeal.

We were more or less treated to the same arguments and replies at the hearing of the appeal. Mr Nyange's basic contentions were

that security for costs has to be paid at the filing of the petition or within the time the petition may be presented, and that it was not paid in this case since the receipt did not spell it out. The relevance of Mr Nyange's further contentions depend rather on whether the aforegoing can be answered in his favour and need no particular mention.

The answer to the first contention should be looked for in rule 11(1) itself. It reads:

> The Registrar shall not fix a date of the hearing of any petition unless the petitioner has paid into the court as security for costs the sum of five hundred shillings.

First of all, Mr Nyange came up with the argument that "hearing of the petition" commenced with the hearing of all preliminary matters. He did so because on 17 April 1997, the Senior Deputy Registrar of the High Court fixed a hearing date for an application to amend the petition. We are unable to agree with him. An application to amend, as distinct from a preliminary objection, is directed at the constitution or the making of the petition itself rather than its fate. In this case, for instance, after the ruling on the application to amend, there followed the amended petition, the respondent's replies to the amended petition and the petitioners' reply to those replies. Until that stage, the petition cannot be said to have been ready for hearing and it is a curious argument which suggests that hearing of a petition commences with the steps intended to bring the petition about. In truth, therefore, the Registrar never fixed a hearing date of the petition on 17 April 1997 or at any time according to our appreciation of the record.

Then, secondly, we can find nothing in the sub-rule to support the contention that payment of security for costs has to be made at the filing of the petition or within the time when the petition may be presented, which is fifteen days from the announcement of the election results. The sub-rule makes payment of security for costs a necessary condition for the Registrar to fix a hearing date, and to that extent it operates compulsively, but it is not correct to say that a petitioner is obliged to pay security for costs at the time of filing

his petition. If the Legislature had intended such a position it could easily have said so. According to rule 8(1), for instance, a petition has to be lodged with the payment of the prescribed fee. Similarly, according to rule 114(1) of the Court of Appeal Rules, a civil appeal can be lodged in this court only upon payment of TZS. 2 000 as security for costs. It is therefore clear to us that under rule 11(1) a petitioner is under no obligation to pay security for costs at the filing of a petition but may postpone payment until the pleadings are complete.

Mr Nyange's second basic contention was that security for costs was not paid in this case. The learned judge in the High Court appears to have been ambivalent on the issue. He observed that the amount [of 4 500] may well have comprised the security for costs [but] there is no way of knowing by just looking at the ERV ..." Generally he held that if security for costs was not in fact paid, it was an irregularity curable under rule 27(1) of the Election Rules.

We were fortunately spared the dilemma of the learned judge for we think the circumstances were such as to permit an unequivocal answer to the question. Mr Kisusi's analysis of the TZS. 4 500 payment shows an excess or balance of TZS. 1 000 which not even Mr Nyange could explain away. The filing fee was TZS. 500 according to item 1 of the Second Schedule to the Election Rules; service charges for two respondents were TZS. 2 000 according to item 12 of the schedule to the Court Fees (Amendment) Rules 1996 (G.N .120/ 96); and fees for tendering two exhibits come to TZS. 1 000 according to item 17 of the same. The total is TZS. 3 500 leaving a balance of TZS. 1 000 .We find it difficult to accept Mr Nyange's arguments that this was not security for costs merely because the receipt did not state so. The rationale of conceding, as Mr Nyange does, that filing fees were paid, but not security for costs, when neither item is spelt out on the receipt, hardly commends itself to reason. Either everything was paid or nothing was paid.

We think, with respect, the balance of TZS. 1 000 represents payment of security for costs at the rate of TZS. 500 for each respondent.

In reaching this view we should not be understood as condoning the perfunctory manner in which receipts are sometimes prepared but wish to deprecate it strongly. We think, however, that clerical errors in receipts are an irregularity which has no bearing on the form or substance of an election petition and cannot lead to a miscarriage of justice. It is therefore of little moment. The appeal is dismissed with costs.

AZIM SULEMAN PREMJI v. ATTORNEY GENERAL AND DR AMAN WALID KABOUROU (NUMBER 1)

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 63 OF 1998

(From the Judgment and Decree of the High Court of Tanzania at Tabora,Masanche, J., in Miscellaneous Civil Cause No. 3 of 1995)

Civil Practice and Procedure – Court of Appeal Rules – Rights and duties of parties to appeal relating to service of documents – Failure to comply with the Rules and effect thereof – Rules 76, 77, 79, 82, 89(1) 90, 92(1) and 106(b) of the Court of Appeal Rules.

Civil Practice and Procedure – Right to counsel – Right of a party to dismiss counsel – Duty of judge on an application by a party to dismiss advocate.

Appeal – Record of Appeal – Record of Appeal being incomplete – What steps a party may take.

During the trial in the High Court, the second respondent applied to the court to dismiss an advocate who had acted irresponsibly by abandoning him in midstream and allow him to engage another advocate. The trial court rejected the application. In

the Court of Appeal, before the hearing of the appeal got underway, learned counsel for the second respondent applied for leave under rule 106(b) of the Tanzania Court of Appeal Rules 1979, instead of rule 82 of the Rules, to raise a preliminary objection. Leave was granted. Learned counsel submitted that the appeal was incompetent because first, the appellant failed to serve the Memorandum of Appeal and Record of Appeal within seven days as per rule 90 of the Rules and, secondly, that the appeal was incompetent because of incompleteness of the record in that it did not contain the original petition which was amended, and that its absence deprived the second respondent of the opportunity to find out whether the petition was filed out of time or in time. In support of the preliminary objection, counsel for the first respondent submitted that the appellant had acted unreasonably in sending the Memorandum of Appeal to an advocate who, to the knowledge of the appellant, was no longer acting for the second respondent. Counsel for the appellant countered by saying that the Record of Appeal was complete and that service was done timeously under rule 77(2). The second respondent did not comply with rule 79 of the Rules.

Held: (i) The second respondent was highly prejudiced in his defence by a decision made by the trial judge on his application to dismiss Mr Kwikima and engage another advocate.

(ii) The right to defend one's case and the choice of an advocate to do this is unconditional. These two rights cannot depend on the willingness of an advocate to withdraw from the case. A client has an unfettered right to dismiss an advocate.

(iii) Since the High Court had rejected the second respondent's application to dismiss Mr Kwikima, Mr Kwikima was officially still his advocate and the appellant was perfectly entitled to treat him as such.

(iv) Only a respondent who has complied with rule 79 is entitled to have the Memorandum and Record of Appeal sent to him under rule 90. Since the second respondent did not comply with rule 79 he could not be heard to complain that the Record of Appeal was sent to the wrong party because he was not entitled to one.

(v) If the second respondent felt that the record was defective or insufficient he should have filed a supplementary record under rule 92(1) of the Rules since the situation in this case was different from one where the defect involves the absence of one of the documents listed in rule 89, that is, a decree or Memorandum of Appeal.

Preliminary objection dismissed.

Mr Mbezi, for the Appellant

Mrs Sumari, for the first Respondent

Mr Mwengela, for the second Respondent

RULING

(Dated 10 December 1998)

MFALILA, J.A.: Before the hearing of this appeal got underway, Mr Mwengela, learned counsel for the second respondent, rose and applied for leave to raise a preliminary objection under rule 106(b) which might have been raised under rule 82. We granted him such leave. Thereupon Mr Mwengela submitted in support of his preliminary objection that since the appellant failed to serve the respondent with the Memorandum and Record of Appeal within seven days as required by rule 90, the present appeal is incompetent and should therefore be struck out. He submitted further that this appeal is incompetent for another reason, that is the incompleteness of the record. He said that the Record of Appeal is incomplete because it does not contain the original petition which was amended, and that its absence deprived the respondent the opportunity to find out whether the petition was filed in or out of time.

In further support of the preliminary objection, Mrs Sumari, learned Senior State Attorney who appeared for the first respondent, the Attorney General, argued that the appellant acted unreasonably in sending the Memorandum of Appeal and the Record of Appeal to Mr Kwikima whom he knew was no longer representing the second respondent. Mr Mwengela had gone further and suggested that the appellant had done so deliberately in order to frustrate the defence of the second respondent.

In reply Mr Mbezi, learned counsel for the appellant, said that both the Memorandum and Record of Appeal were timeously served

on the counsel for the second respondent on Mr Kwikima and that he did this under rule 77(2) after having earlier served both the second respondent and Mr Kwikima with the Notice of Appeal. He added that as he received no response from either of them after service of Notice of Appeal, he reverted to rule 77. As to the second ground of the record being incomplete, Mr Mbezi said that the record was complete with all the necessary documents required under rule 89 (1).

Before we proceed to determine the preliminary objection on merits, we wish to state that the second respondent was highly prejudiced in his defence by a decision made by the trial judge on his application to dismiss Mr Kwikima and engage another advocate. We honestly failed to see why the judge rejected the second respondent's application to dismiss an advocate who had acted irresponsibly by abandoning him in midstream, and then refusing to let him engage another advocate. This surprising decision by the judge put the second respondent in a very awkward situation whereby he had to fend for himself in a very difficult legal situation. It should always be borne in mind that the right to defend one's case and the choice of an advocate to do this is unconditional. These two rights cannot depend on the willingness of an advocate to withdraw from the case. A client has an unfettered right to dismiss an irresponsible and/or incompetent advocate.

In determining this preliminary objection we intend to reproduce the relevant provisions of the Court Rules:

Rule 77(1) Where any person requires to be served with a copy of a Notice of Appeal gave any address for service in or in connection with the proceedings in the High Court, and has not subsequently given any other address for service, the copy of the Notice of Appeal may be served on him at that address, notwithstanding that it may be of an advocate who has not been retained for the purpose of an appeal.

Rule 79(1) Every person on whom a Notice of Appeal is served shall:

a. Within fourteen days after service on him of the Notice of Appeal lodge in the appropriate registry and serve on the intended appellant notice of full and sufficient address for service, and

b. Within fourteen days serve a copy of the notice of address for service on every other person named in the Notice of Appeal as a person intended to be served.

Rule 90 (1) The appellant shall, before or within seven days after lodging the Memorandum of Appeal and the Record of Appeal in the appropriate registry, serve copies of them on each respondent who has complied with the requirements of rule 79.

From these rules, it is clear that an intended appellant has the obligation and duty to lodge in the High Court a written Notice of Appeal within fourteen days of the date of the decision against which it is desired to appeal. Seven days thereafter another obligation and duty arises under rule 77(1) namely to serve copies of such notice on all persons likely to be affected by the intended appeal. After this the obligations and duties shift to the respondent after receiving the Notice of Appeal as required under rule 79, that is within fourteen days thereof to lodge in the appropriate registry and serve on the intended appellant notice of a full and sufficient address for service. This compliance with rule 79 by the respondent shifts the obligations and duties back to the appellant who is required under rule 90 within seven days after lodging the Memorandum of Appeal and the Record of Appeal to serve copies of them on each respondent who has complied with rule 79.

What then happened in this case, the appellant said that he fully complied with rules 76 and 77 by lodging the Notice of Appeal and serving it on all the relevant parties within the prescribed time limits. The respondents did not dispute this, they acknowledged receipt of the copies of the Notice of Appeal. The second respondent conceded that he did not comply with rule 79 after receiving the copy of the Notice of Appeal, but contended that notwithstanding this lapse on his part, the appellant should not have sent the Record of Appeal to Mr Kwikima whom he knew was no longer acting for him. He should,

he added, have sent the Record of Appeal to him as he did with the Notice of Appeal.

But rule 90 is quite clear on this. Only a respondent or any other party who has complied with rule 79 is entitled to have the Memorandum and Record of Appeal sent to them under rule 90. Since in this case, the second respondent conceded his non-compliance with rule 79 he cannot be heard to complain that the Record of Appeal was sent to the wrong party because he was not entitled to one. But in this case the appellant bent over backwards to accommodate him by sending the copy of the record to the advocate who officially was still his advocate. As the court had rejected the second respondent's application to change his legal representation, Mr Kwikima was still his counsel and the appellant was perfectly entitled to treat him as such particularly when both the second respondent and Mr Kwikima failed to respond as required by rule 79. We said the appellant bent over backwards to accommodate the second respondent in sending the Record of Appeal to the address shown subsisting at the trial under rule 77(2) because the service envisaged under that rule is service of the copy of Notice of Appeal not the Memorandum and Record of Appeal.

The second ground for the preliminary objection namely that the Record of Appeal is incomplete for non-inclusion of the original petition, can be disposed of by a simple answer namely that if the second respondent felt that the record was defective or insufficient, he should have filed a supplementary record under rule 92(1). This situation is different from one where the defect involves the absence of any one of the documents listed in rule 89 i.e. a decree or Memorandum of Appeal.

For these reasons, we dismiss he preliminary objection and order that the appeal should now proceed to hearing on merits.

ELINEEMA ANDREA v. REPUBLIC

HIGH COURT OF TANZANIA
AT ARUSHA
(Mushi, J.)

CRIMINAL APPEAL No. 4 OF 1998

(From the District Court of Arusha at Arusha in Criminal Case No. 67 of 1997)

Criminal Practice and Procedure – Preliminary hearing – Admission of a retracted Cautioned Statement and other disputed items as exhibits during preliminary hearing – Whether procedure was proper – Section 192 of the Criminal Procedure Act.

The appellant and another person were charged and convicted of robbery with violence. Amongst the evidence on which the trial magistrate based his conviction was a Cautioned Statement of the appellant which he retracted during preliminary hearing but was overruled by the magistrate. The prosecution also tendered some of the alleged stolen items which the appellant denied knowledge of, but was similarly overruled by the court, which admitted the said itEms as exhibits.

Held: (i) The basic principle in conducting a preliminary hearing is to seek agreement between the parties on relevant and triable issues or facts in the case to enable expeditious finalization of the case. It is against the spirit and principle of agreement between the parties envisaged in a preliminary trial for a trial magistrate to overrule a party on objection to a particular proposal.

(ii) The exhibits tendered during preliminary hearing and relied upon in the subsequent trial and judgment vitiated the whole proceedings.

Appeal allowed

JUDGMENT

(Dated 14 December 1998)

NM MUSHI, J.: The appellant, Elineema Andrea and one Afraeli Siwalo, were jointly charged and convicted with the offence of robbery with violence contrary to sections 285 and 286 of the Penal Code. It was alleged that the appellant and Afraeli Siwalo on 6 January 1997, the two persons jointly stole several items from the Holy Ghost Fathers farm at Tengeru. It was further alleged that at the time of stealing they used force by attacking the watchmen and caused them to suffer some injuries. The stolen property was valued at TZS. 7 735 000 The appellant was sentenced to fifteen (15) years imprisonment. He is appealing against both conviction and sentence.

The appellant has put forward several grounds challenging the judgement of the trial court. One of the grounds of appeal reads:

> That the trial magistrate erred in law and fact when she admitted as exhibit a Cautioned Statement which was retracted.

The Cautioned Statement of the appellant was admitted as Exhibit F2 and it was tendered during the preliminary hearing. The appellant objected to the tendering of the alleged Cautioned Statement but the learned trial magistrate overruled the objection raised by the appellant. The alleged Cautioned Statement was believed and relied upon by the trial magistrate, *inter alia*, as a basis of conviction.

In the same trial, during preliminary hearing the prosecution produced some items which were stolen and were alleged to have been in possession of the appellant. The items were found in a vehicle in which the appellant was a passenger. The appellant objected to the tendering of the items on the grounds that they were not found in his possession. The learned trial magistrate overruled the appellant's objection and allowed the prosecution to tender the same and were marked as Exhibit P1 The trial magistrate relied heavily on Exhibit P1 as a basis of convicting the appellant. The manner in which Exhibits P1 and P2

were tendered and the objections against producing the same was recorded as follows:

> The first accused wrote a caution statement at police station in which he said that the properties were given to him by Kiduu or Afraeli Siwalo to sell. The said Kiduu was arrested and on 31 January 1997 all the accused were brought to court. I pray to tender those properties as exhibit.
>
> First accused: I have no objection
>
> Second accused: I object I have not seen them before
>
> Third accused: I object I have not seen them before
>
> Fourth accused: I have object I have never seen them
>
> Court Objection overruled. One Lister Peter Machine, Electrical Motor Horse PW1 10 and another HP 5, admitted as Exhibit P1 collectively.
>
> I also pray to tender the caution statement of the first accused.
>
> First accused: I object because I did not write it voluntarily I only agree to my name religion, occupation age and residence. Those are what I wrote voluntarily.
>
> Second accused: I object because I was not involved in the robbery.
>
> Third accused: I object because I do not recognize it
>
> Fourth accused: I object because I do not recognized it.
>
> COURT: Objections overruled. Caution statement of the first accused admitted and marked Exhibit P2 That is all. First accused facts in dispute
>
> (2) I was not involved in the robbery of Holy Ghost Farm in the night of 5 January 1997.
>
> (3) The goods that are Exhibit P1 in court were not in my possession.
>
> Sgd: F.J. Mushi, RM
>
> Sgd: Public Prosecutor
>
> Sgd: Accused Persons

second accused I was not involved in the robbery that occurred in Holy Ghost on 5 January 1997

Sgd: F.J. Mushi, RM

Sgd: Public Prosecutor

Sgd: Accused Person

Third accused: I was not involved in the robbery in Holy Ghost on 5 January 1997

Sgd: F.J. Mushi, RM

Sgd: Public Prosecutor

Sgd: Accused Person

Fourth accused: I was not involved in the robbery on Holy Ghost on 5 January 1997 I did not give the properties that are Exhibit P1 to sell.

Sgd. F.J. Mushi, RM

Sgd: Public Prosecutor

Sgd: Accused Persons.

Preliminary hearing is conducted under section 192 of Criminal Procedure Act. And for the purposes of this appeal I shall reproduce here subsection (1) and (2) which reads:

B. Notwithstanding the provisions of section 229, if an accused person pleads not guilty, the court shall as soon as is convenient hold a preliminary hearing in open court in the presence of the accused or his advocate if he is represented by an advocate and the public prosecutor to consider such matters as are not in dispute between the parties and which promote a fair and expeditious trial.

C. In ascertaining such matters that are not in dispute, the court shall explain to an accused who is not represented by an advocate about the nature and purpose of the preliminary hearing and may put questions to the parties as it thinks fit. The answers to the questions may be given without oath or affirmation."

The purpose of conducting preliminary hearing is to consider and ascertain such matters as are not in dispute between the parties in order to promote fair and expeditious trial. The basic principle in conducting preliminary hearing is to seek agreement between the parties on relevant and triable issues or facts in the case to enable expeditious finalization of the case. No fact or document is ever regarded or treated as undisputed in a preliminary hearing unless it is agreed upon by both the accused and the prosecution. If one of the parties, i.e. the accused or prosecution, raises an objection to a proposed fact or document, then that fact or document is disputed and it must be left out to await trial. It is against the spirit or principle of agreement between the parties envisaged in a preliminarily trial for a trial magistrate to overrule a party on objection to a particular proposal as was done in this case.

With regard to Exhibit P1, the appellant who was the first accused at the trial clearly stated, and I quote;

The goods that are Exhibit P1 in court were not in my possession.

And with regard to Exhibit P2, this is what was recorded.

I pray to tender the caution statement of the first accused.

First accused:

I object because I did not write it voluntarily.

I only agree to my name, religion, occupation,

Age and residence. That is what I wrote voluntarily.

Also fourth accused at the trial, Afraeli Siwalo alias Kiduu, stated:

I did not give the properties that are Exhibit P1 to sell.

I have already stated that the learned magistrate overruled those objections and admitted Exhibits P1 and Exhibit P2

From what has been stated above, Exhibits P1 and P2 were admitted in contravention of subsection (1) of section 192 of Criminal Procedure Act (CPA.) for lack of agreement on the facts between the parties.

There is yet another irregularity in the proceedings. The learned trial magistrate did not comply with the provisions of subsection 3. This subsection requires that and I quote:

> ... The court shall prepare a memorandum of the matters agreed and the memorandum shall be read over and explained to the accused in a language that he understands, signed by the accused and his advocate and by Public Prosecutor and then filed.

From the record it appears that the accused, the Public Prosecutor as well as the trial magistrate signed what was termed: "Facts in dispute".

On page five of the typed proceedings. The law requires the parties to sign matters which are undisputed and NOT on disputed matters.

This confirms my earlier observation that there were no agreed relevant or triable issues in the case.

Subsection 4 of section 192 under which the preliminary trial is conducted, requires that:

> .... Any fact or document admitted or agreed in a memorandum filed under this section shall be deemed to have been duly proved.

and therefore no more evidence will be required in the subsequent trial to prove the same. Exhibits P1 and P2 which, in accordance with the prosecution evidence, were the pillars of their case, were admitted contrary to the provisions of section 192 and there was no evidence adduced in the subsequent trial to prove the same. In law therefore, the position is as if Exhibits P1 and P2 were not part of the record of the court against whose judgement this appeal has been brought.

In her judgment the learned trial magistrate, found as proved facts on matters ascertained in Exhibit P1 and statement contained in Exhibit P2 as true and proved when she wrote:

> On top of that act, (appellant) first accused at the trial was found with some of the stolen properties that are Exhibit P1.

And again:

> On top of that, DW wrote a caution statement (Exhibit P2) in which he admitted to have obtained those properties illegally.

The learned trial magistrate, *inter alia*, relied on Exhibit P1 and P2 to convict the appellant. It has been demonstrated that Exhibits P1 and P2 were not properly tendered and therefore not provided in accordance with the law. The judgement was therefore partly based on non existent or illegal evidence rendering it to be illegal as well. The judgment cannot be allowed to stand.

As if this was not enough, the learned trial magistrate did not comply with provisions of subsection 2 of section 192 of CPA. I have deliberately quoted above the subsection *in extenso*. This section requires that:

> In ascertaining such matters that are not in dispute, the court shall explain to an accused who is not represented by an advocate about the nature and purpose of the preliminary hearing ...

For understandable reasons, this provision is mandatory. A trial magistrate should clearly state on the record at the start of a preliminary trial where an accused is not represented by an advocate that provisions of subsection 2 of section 192 of CPA have been complied with. If an accused person does not understand the nature and purpose of the preliminary trial, it means that he does not know his rights and therefore he will not participate fully in his trial and failure to make an accused fully participate in his trial amounts to a miscarriage of justice.

It is apparently clear that the provisions of section 192 of Criminal Procedure Code were flagrantly not complied with and the exhibits tendered during preliminary trial and relied upon in the subsequent trial and judgement, vitiated the whole proceedings rendering it a nullity. The result is therefore that the appeal is allowed. The proceedings and judgment are hereby declared a nullity. The conviction is hereby quashed and sentence set aside.

One Afraeli Siwalo was convicted on the same proceedings and on the same evidence. I am not aware that he has appealed against his conviction and sentence. In the exercise of my revisional powers under section 373 of CPA for the same reasons as for the appellant, Elineema Andrea, the conviction of Afraeli Siwalo is quashed and the sentence is set aside.

I make no order for retrial but the matter is open for the Director of Public Prosecution to institute fresh charges against the appellant, Elineema Andrea and Afraeli Siwalo.

MIROSLAV KATIC AND TWO OTHERS *v* IVAN MAKOBRAD

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Ramadhani and Lubuva, JJ.A.)

CIVIL APPLICATION No. 66 OF 1998

(From Ruling of a Single Judge of the Court of Appeal of Tanzania at Dar es Salaam)

Civil Practice and Procedure – Application of rule 45(1) and (2) of the Court of Appeal Rules – Revisional jurisdiction of the Court of Appeal – Section 4 of the Appellate Jurisdiction (Amendment) Act Number 17 of 1993 – Objective behind the Act.

Court of Appeal Rules –Revisions – Revisional jurisdiction of the Court of Appeal – Section 4 of the Appellate Jurisdiction (Amendment) Act Number 17 of 1993 – Objective behind the Act.

In High Court Civil Case Number 321 of 1997, initially, the respondent, Ivan Makobrad, had filed the suit against the first and second applicants, namely Miroslav Katic and

Vesra Paladin. The third applicant, Ingra, applied to be joined as one of the defendants. In granting that application on 3 July 1978 the High Court also ordered the respondent, Ivan Makobrad, who was the plaintiff in the suit, to vacate the suit premises. The respondent then filed Application Number 36 of 1998 in the Court of Appeal seeking stay of execution of the ruling and order of 3 July 1998. A single judge dismissed that application on 14 August 1998. The matter then went back to the High Court where on 30 September 1998 an eviction order was issued against the respondent. On 1 October 1998 the applicant applied for execution of the eviction order. On the same day the respondent filed an application in the High Court for vacation of the execution order of 30 September 1998 pending determination of a reference to the Court of Appeal against the decision of the single judge of 14 August 1998. The High Court granted the application and so vacated its order of execution of the order which had already been carried out.

The applicants filed this application under section 4(3) of the Appellate Jurisdiction (Amendment) Act 1993 by a Notice of Motion of Ingra to revise the decision of the High Court of 1 October 1998 in Civil Case Number 321 of 1997. A preliminary objection was raised to the effect that the application was incompetent as rule 45(1) and (2) had not been complied with. On the main application, it was submitted that the same was misconceived as the decision sought to be challenged was appealable. Leave was sought to amend the application to state grounds for application.

Held: (i) Under rule 45(1) and (2) of the Court of Appeal Rules the grounds of an application are matters of substance that go to the root of the matter and it is mandatory to state them in the Notice of Motion; failure to state the grounds in the Notice of Motion is fatal to the application.

(ii) The objective behind the enactment of the revisional powers of the court was not to provide an alternative to its Appellate Jurisdiction but to enable the court in certain circumstances, to satisfy itself as to the correctness, legality or propriety of any decision or order of the High Court.

(iii) Having regard to the peculiar circumstances of the case, the nature of the matter and the subject of the intended revision, it was felt that it was in the interests of the ends of justice that leave be granted to the applicant to amend the Notice of Motion so as to comply with the requirement of rule 45(1) of the Court of Appeal Rules 1979.

(iv) *Obiter:* In the peculiar circumstances of this case, even though the matter involved was appealable, the court's revisional powers could be invoked to rectify the situation. There was a glaring error on the part of the High Court in that its order purported to nullify that court's previous order of execution which had taken place and secondly, it also purported to overrule a previous order of the court by a Single Judge refusing to grant stay of execution. Such glaring type of error on the part of the High Court calls for urgent remedial action on the part of the court. Since the appeal process would have taken time, it was thought more appropriate and expeditious to invoke the revisional jurisdiction of the court than the appeal process, particularly in a situation such as this which appeared to border closely on a travesty of justice. Preliminary objection is overruled.

Order accordingly

Cases referred to:

(1) *Giafar Mohamed Bedder and another v. Ital African Transport Ltd* CAT, Civil Application Number 4 of 1994 (unreported)

(2) *Atlantic Electric Ltd v. Morogoro Region Co-operative Union (1984) Limited,* [1993] T.L.R. 12

(3) *VIP Engineering andMarketing Ltd v. Said Salum Bakhresa Ltd.*, CAT Civil Application Number 47 of 1996 (unreported)

(4) *Transport Equipment Ltd v. Devram P. Valambia,* Civil Application Number 46 of 1994 (unreported)

(5) *Halais Pro-Chemie Industries Ltd. v. Wella A.G.,* [1996] T.L.R. 269

Mr Kesaria, for the Applicant

Mr Mselem, for the Respondent

RULING

(Dated 16 December 1998)

LUBUVA, J.A.: This application is filled under section 4(3) of the Appellate Jurisdiction Act 1979, as amended by Act Number 17 of 1993.

By Notice of Motion filed by Ingra, the applicant is moving the court to revise the decision of the High Court (Mackanja, J.) in Civil Case Number 321 of 1997 dated 1 October 1998. The application is supported by an affidavit sworn by Dilip Kesaria, learned counsel for the applicant. As stated in the Notice of Motion, the purpose of seeking revision in this application is to declare the *ex parte* order of 1 October 1998 by Mackanja, J. illegal and improper. In part, it is stated in the affidavit that the order is illegal and improper because:

> That the said order of the learned judge of 1 October 1998 overrules an earlier order of the Court of Appeal (Mfalila, J.A. of 14 August 1998 – Civil Application Number 36 of 1998.

The facts giving rise to the case are simple and generally not disputed. In High Court Civil Case Number 321 of 1997, initially, the respondent had filed a suit against the first and second applicants. The third applicant, Ingra, applied to be joined as a defendant. Granting the application on 3 July 1998, the High Court also ordered the respondent to vacate the suit premises at Plot Number 30 Kurasini Road in Dar es Salaam. Following this order, the respondent filed in this Court Application Number 36 of 1998 seeking to stay the execution of the ruling and order of 3 July 1998. On 14 August 1998, a single judge of this court (Mfalila, J.A.) dismissed Application Number 36 of 1998. Then the matter went back to the High Court where, on 30 September 1998 an eviction order was issued against the respondent. On 1 October 1998 the applicants lodged an application for the execution of the eviction order of 3 July 1998. On the same day (1 October 1998) the respondent through the services of Mr Mselem, learned counsel, applied for the order of execution of 30 September 1998, to be vacated pending the determination of the reference preferred to this court against the decision of the single judge. Granting the application for vacating the order of 1 October 1998, the High Court (Mackanja, J.) issued the order in the following terms.

Accordingly, it is decided that the order allowing execution of the order in respect of which an appeal is pending before the Court

of Appeal is hereby vacated. If the order for execution has already been executed, that said execution is hereby nullified.

This is the order which is complained against by the applicants, before the application came on for hearing, the respondent had filed a notice of preliminary objection. As indicated in the notice of preliminary objection, the ground upon which the objection is based is that:

> The application is incompetent and not properly before the court for failure to state the grounds thereof in the Notice of Motion.

At the commencement of the hearing of this application Mr Mselem, learned counsel for the respondent, made submissions in support of the preliminary objection. In the first place, he firmly contended that the application before the court was incompetent because it did not state the grounds of the application. Elaborating on this, it was his further submission that the omission to state the grounds in the Notice of Motion is fatal to the application as this is a mandatory requirement under rule 45(2) of the Court's Rules. For this submission, Mr Mselem relied on the decision of this court in the following cases which are not yet reported: *Giafar Mohamed Bedde and another v. Ital African Transport Ltd.* (1), *Atlantic Electric, Limited v. Morogoro Region Cooperative Union (1984) Limited,* (2), *VIP Engineering and Marketing Ltd. v. Said Salum Bakhresa Ltd.* (3).

In the second place, Mr Mselem submitted that in terms of the Appellate Jurisdiction Act 1979 as amended by the Appellate Jurisdiction (Amendment) Act Number 17 of 1993, (hereinafter referred to as the Act) the application is misconceived. This is so, he contended, because section 4(3) of the Act cannot be invoked in situations where the matter involved is appeallable. In this case, Mr Mselem maintained, if the applicant was dissatisfied with the order of the High Court of 1 October 1998, an appeal could with leave be preferred on grounds of it being illegal and improper. That is, he went on in his submission, the situation of the case is such that it could not be said that the matter is not appeallable or that the appellate process has been blocked by judicial process. Among other cases, Mr Mselem referred the

court to *Transport Equipment Ltd. v. Devram P. Valambhia,* (4) (not yet reported) and *Halais Pro-Chemic Industries Ltd.,* (5).

Countering the submission on the first point that the Notice of Motion was defective for failure to state the grounds of appeal Mr Kesaria took the opposite view. Because the grounds for the application are set out in the affidavit accompanying the Notice of Motion, the application was competent, he further insisted. At any rate, Mr Kesaria went on in his submission, the court has not been consistent in its decisions by single judges of this court on whether it is mandatory to state the ground for the application in the notice of motion. However, Mr Kesaria prayed from the bar, should the court find that it is mandatory to state the grounds in the Notice of Motion, then the applicant should be granted leave to amend the Notice of Motion by stating the grounds therein.

Then Mr Kesaria dealt with the argument that the application is incompetence on account of the fact that it concerns a matter which is appellable. While conceding that the powers of revision vested in the court were not meant to be invoked as an alternative to the appeal process, Mr Kesaria boldly contended that in a situation such as the case here, where the High court instead of invoking proper jurisdiction and due process of law, blatantly went far widely out of jurisdiction, the exercise of the powers of revision was warranted. That is, in order to ensure speedy corrective measures over a glaring mistake by the High Court, it was more appropriate to invoke the court's revisional powers than the appeal process, he concluded.

We propose to deal first with the complaint that the Notice of Motion does not state the grounds for the application. Failure to disclose the grounds in the Notice of Motion, Mr Mselem strongly contends, is fatal to the application. The issue therefore is whether it is a mandatory requirement under rule 45(1) and Form A in the First Schedule to the rules to state the grounds. In addressing the issue, it is imperative to have a close look at the provisions of rule 45(1) which provides:

> Subject to the provisions of sub-rule (3) and to any other rule allowing informal application, all applications to the court shall be by motion, which shall state the grounds of the application. [emphasis supplied]
>
> (2) a Notice of Motion shall be substantially in the Form A in the First Schedule to these rules ... [emphasis supplied]

With regard to the Notice of Motion, in part, Form A provides:

> ... Advocate for the above named applicant, will move the court/a judge of the court for an order that ... on the grounds that ...

From these provisions, our understanding of rule 45(1) and (2) in that the grounds of the application are matters of substance, they go to the very root of the matter. For that reason and as the wording of sub-section (1) of rule 45 indicates, it is a mandatory requirement to state the grounds in the Notice of Motion substantially in the manner indicated in Form A. It being a mandatory requirement under this rule, it goes without saying that failure to state the grounds in the Notice of Motion is, as contended by Mr Mselem, fatal to the application. In the case of *VIP Engineering and Marketing Ltd. v. Said Salim Bakhressa Ltd.*, (3) the learned single judge of this court (Samatta, J.A.) restated this position of the law. There, in an application for extension of time to file an application for review of the judgment of the court, a preliminary objection was raised. Among others, it was contended that the Notice of Motion was incompetent because the grounds for the application were not stated in it. It was held *inter alia*, that rule (1) provides for a mandatory requirement which cannot be breached.

However, the preliminary objection was nonetheless not sustained for a different reason. That is that the respondent had not been prejudiced by the applicant's failure to state the grounds in the Notice of Motion. The applicant was granted leave to amend the Notice of Motion. From this decision, despite the fact that the preliminary objection was not sustained, we think the grave men of the decision is that rule 45(1) in mandatory in its requirement to state the grounds of the application in the Notice of Motion. A similar view was held by

this court in the case of *Giafar* (1). In that case a stay of execution was sought. The single judge dismissed the application on the ground *inter alia*, that the Notice of Motion did not state the grounds of the application as required under rule 45(1). The case of the *Atlantic* (2) was also cited by Mr Mselem.

This case however, does not in our view, have a direct bearing on the need for the grounds of the application being stated in the Notice of Motion. The issue involved was whether there was substantial compliance with Form D in the First Schedule to the rules. The Notice of Appeal was struck out and the preliminary objection upheld on the ground that failure to comply substantially with Form D is a fatal irregularity. From these cases, apart from the differences in the particular nature of the points at issue, we can see no inconsistency in the court's decision with regard to failure to state the grounds of the application in the Notice of Motion as claimed by Mr Kesaria. In our understanding, the court in its decisions in these cases has consistently held the view that the irregularities and omissions involved in these cases were not merely procedural, they were of fundamental nature going to the root of the matter. In that situation the court has further held, the non-conformity with rule 45(1) would be a breach of a mandatory requirement.

At this juncture, we pause to consider the effect of such non-compliance under rule 45(1) of the Rules in this case. Mr Mselem was quick in urging us to strike out the application. As already indicated, the other reason he advanced for striking out the application was that the matter was appeallable. Mr Kesaria for the applicant had, we think rightly, conceded that this application involves a matter which in appellable to this court. In such a situation, ordinarily, the court would not invoke its powers of revision because that would amount to making use of the revisional powers as an alternative to the Appellate Jurisdiction of the court.

On this, we are settled in our minds that the objective behind the enactment of the amendment effected by Act Number 12 of 1993 to the Appellate Jurisdiction Act 1979 was not to provide an alterative

to the Appellate Jurisdiction. It is common ground that the court was vested with revisional powers in order that in certain circumstances, the court can satisfy itself as to the correctness, legality or propriety of any decision or order of the High Court. In this case, we are increasingly convinced that the peculiar circumstances of the case are such that even though, as urged by Mr Mselem, the matter involved is appeallable, the court's revisional powers could appropriately and promptly be invoked to rectify the situation. In our considered opinion the special circumstance of this case is that the matter was dealt with by the High Court in such a way that it appears that the order of 1 October 1998, is problematic for two reasons:

First, it purports to nullify the High Court's previous order if execution had taken place and secondly, it also purports to overrule a previous order of this court by a single judge refusing to grant stay of execution. Such glaring type of error on the part of the High Court we think calls for urgent remedial action on the part of the court. In order to achieve this, it is our view that it is more appropriate and expeditious to invoke the revisional jurisdiction of the court than the appeal process which would take time. In a situation such as this which, it appears to us borders closely on travesty of justice, for prompt corrective action, the court could appropriately invoke its powers of revision.

Furthermore, as regards the mandatory requirement under rule 45(1) to state the grounds of the application in the Notice of Motion we have restated the legal position in general. In the instant case, while it is undisputed that the grounds were not stated in the Notice of Motion such grounds can be gleaned from the accompanying affidavit sworn by Mr D. Kesaria, counsel for the applicant. In that case, we are inclined to the view that though the grounds were not stated in the manner required under rule 45(1) such were made known to the respondent through the affidavit. Consequently, we think the respondent cannot be said to have been prejudiced by the applicant's failure to state the grounds in the Notice of Motion. And, so, if the respondent was not prejudiced by the applicant's non-disclosure of the grounds

in the Notice of Motion, we are not persuaded by Mr Mselem's forceful submission to have the application struck out. Rather, having regard to the peculiar circumstances of the case, the nature of the matter, the subject of the intended revision, we think that the ends of justice of the case would be met by granting leave to the applicant to amend the Notice of Motion so as to comply with the requirement of rule 45(1) of the Court's Rules 1979.

In the event, and for the foregoing reasons, the preliminary objection is overruled. The application for leave to amend the Notice of Motion by stating the grounds of the application is granted within two weeks from the date of this ruling. Each party to bear its costs.

SEBASTIAN RUKIZA KINYONDO *v.* DR MEDARD MUTALEMWA MUTUNGI

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Mfalila, Lubuva and Samatta, JJ.A.)

CIVIL APPEAL No. 83 OF 1998

(From the Judgment and Decree of the High Court of Tanzania at Bukoba, Lugakingira, J., dated 27 May 1998 in Miscellaneous Civil Cause No. 12 of 1995)

Civil Practice and Procedure – Appeals – Notice of Appeal – Respondent alleges Notice of Appeal was not served in time – Rule 77(1) of the Court of Appeal Rules 1979 – Who carries the evidential burden to prove service of the copy of the Notice of Appeal.

Civil Practice and Procedure – Limitation – Question of limitation and jurisdiction of the High Court not raised at the trial and the court of first instance did

not make a decision on it – Whether the matter can be raised on appeal and determined by the appellate court.

Civil Practice and Procedure – Jurisdiction – When the issue of jurisdiction can be raised – Whether it can be raised regardless of the requirements of the Rules.

The appellant, Sebastian Rukiza Kinyondo was declared to be the elected Member of Parliament for the Bukoba constituency during the 1995 General Elections. Dr Medard Mutungi being dissatisfied with the results filed a petition which resulted in the declaration of the parliamentary election in the said constituency null and void, hence, this appeal.

At the commencement of the hearing of the appeal Counsel for the respondent raised a preliminary objection in terms of rule 100 of the Court of Appeal Rules 1979. Firstly, that the appeal was incompetent for the appellant's failure to serve Notice of Appeal on the respondent within the prescribed period. The bone of contention between the parties was the service of the copy of the Notice of Appeal. Secondly, that the court had no jurisdiction to entertain ground number 1 of the appeal as that ground was not raised and considered by the trial court.

Held: (i) Where in the preliminary objection, the respondent alleges that he was not served with the copy of the Notice of Appeal within seven days of the Notice of Appeal, he has a greater burden to discharge than the appellant; the respondent, the objector, has failed to discharge that burden to the required standard, i.e., on a balance of probabilities.

(ii) There was no decision of the High Court made on the issue of jurisdiction it follows that there was no foundation upon which this issue could be specified in the memorandum of appeal as a point which is alleged to have been wrongly decided by the High Court.

Ground one of the preliminary objection dismissed, ground two allowed

Cases referred to:

(1) *Hon. Wilbroad Slaa v. Arusha Kalwa and 5 others* [1999] T.L.R. 85

(2) *Azim Premji v. Aman Walid Kabourou,*[1996] T.L.R. 156

(3) *Anwar Z. Mohamed v. Said Selemani Masuko,* Civil Reference Number 18 of 1997 (unreported)

(4) *Leonsi Ngalai v. Hon. Justine Afred Salakana and Attorney General,* Civil Appeal Number 38 of 1996 (unreported)

Messrs Rweyongeza and *Galati,* for the Appellant

Messrs Magafu and *Swai,* for the Respondent

Mr Kabonde, Amicus curiae

RULING

(Dated 16 December 1998)

LUBUVA, J.A.: This appeal arises from an election petition filed in the High Court at Mwanza, Miscellaneous Civil Cause Number 12 of 1995. During the 1995 General Elections, the appellant Sebastian Rukiza Kinyondo, one among other candidates for the Bukoba Rural Constituency was declared to be the elected Member of Parliament. Dr Medard Mutungi being dissatisfied with the results filed the petition. As a result, the High Court (Lugakingira, J.) declared the Parliamentary Election of 1995 in Bukoba Rural Constituency null and void. Hence this appeal.

At the commencement of the hearing of this appeal Mr Magafu, who together with Mr Swai, learned counsel, appeared in this appeal for the respondent raising a preliminary objection. Earlier, before the Appeal was called on for hearing, Mr Magafu had filed a notice of preliminary objection in terms of the provisions of rule 100 of the Court's Rules 1979, hereinafter referred to as the rules. The preliminary objection was based on the following two grounds:

(5) The appeal is incompetent for the appellant *(sic)* failure to serve the Notice of Appeal to the respondent within the prescribed period.

(6) This Honourable Court has no jurisdiction to entertain ground number 1 of the appeal as that ground was not raised and considered by the High Court during the trial.

Dealing with ground one of the preliminary objection Mr Magafu submitted that the appeal was incompetent because the appellant did not serve the respondent with the copy of the Notice of Appeal within seven days after the Notice of Appeal was lodged. This, he contended, was in contravention of rule 77(1) of the Rules. Elaborating on this Mr Magafu set out the sequence of events as follows: That judgment in the High Court (sitting at Bukoba) Miscellaneous Civil Cause Number 12 of 1995 was delivered on 27 May 1998. The Notice of Appeal was filed on the same day i.e. 27 May 1998 and that the respondent was not served with the copy of the Notice of Appeal until 15 June 1998. According to Mr Magafu the only available evidence in support of the claim that the respondent was served on 15 June 1998 was his (Magafu) diary in which the name "Magafu" is entered against the date 15 June 1998. That after the respondent had been served with the copy of the Notice of Appeal, the respondent signed the diary of the appellant's advocate.

On this ground of preliminary objection, the issue is simple, namely, whether the Notice of Appeal was served within seven (7) days as prescribed under rule 77(1) which, in part, provides:

> 77(1) An intended appellant shall before or within seven days after lodging a Notice of Appeal, serve copies of it on all persons who seem to him directly affected by the appeal ... [emphasis supplied]

It is apparent therefore that it is a mandatory requirement for the appellant to serve the respondent with a copy of the Notice of Appeal within seven days of the Notice of Appeal. The court, however, has the discretion to extend the time in which to serve the notice where sufficient reason is shown. In this case, Mr Magafu for the respondent strenuously contends that the respondent was served with the Notice of Appeal on 15 June 1998. On the other hand, Mr Galati, learned counsel who, together with the lead counsel, Mr Rweyongeza, appeared for the appellant, vehemently opposed the preliminary objection. With regard to the Notice of Appeal, Mr Galati maintained that the Notice of Appeal which was lodged at the High Court sub-registry at Bukoba on 27 May 1998 was also served on the same day i.e.

27 May 1998 personally on the respondent, Dr Medard Mutungi. He submitted further that Dr Mutungi, the respondent signed the dispatch book of Galati and Co. Advocates after he was served the copy of the Notice of Appeal. The signature by Dr Mutungi, Mr Galati urged, was sufficient evidence on the respondent.

Upon close scrutiny of the dispatch book and prompting by the court, Mr Galati concedes that no date was shown against Dr Mutungi's name. This, Mr Galati went on in his submission, was due to inadvertence on the part of his office. In these circumstances it seems to us that even if it is accepted that Dr Mutungi appended his signature to the name "Dr Mutungi" there is no cogent evidence to show that the respondent was served on 27 May 1998. In the absence of the date being shown, we do not think that the alleged signature of Dr Mutungi is by itself conclusive evidence of service being effected on the respondent on 27 May1998 and not 15 June 1998. What is more, upon being shown the dispatch book in court, it appeared to us that the words indicating subject matter of the dispatch in question, namely, "Notice of Appeal" are written in different handwriting. In these circumstances, the appellants claim that the respondent was served with the copy of the notice on 27 May 1998 is, to our minds, highly suspicious.

In the upshot therefore, with regard to ground one of the preliminary objection, the issue concerning the service of the copy of the Notice of Appeal turns on the word of one person against the other. The respondent says service was effected on 15 June 1998 while the appellant claims it was on 27 May 1998. Neither of them as already indicated, has adduced plausible evidence is support of the date claimed. Consequently both the respondent, the objector, and the appellant have in our view, failed to discharge the evidential burden to prove service of the copy of the Notice of Appeal on the respondent. It must however be pointed out at once that in holding this view, we are quite alive to the settled principle that he who alleges must prove. In the case before us, it is the respondent who alleges that he was not served with the copy of the notice of appeal within seven days

of the Notice of Appeal. On this aspect, the respondent, the objector in the preliminary objection, has a greater burden to discharge than the appellant. That burden in our estimation, the respondent, the objector, has failed to discharge to the required standard, i.e., on a balance of probabilities. That disposes of ground one of the preliminary objection.

We now turn to ground two. Mr Magafu forcefully submitted that the question of limitation and jurisdiction of the High Court cannot be entertained at this stage on appeal because it was not raised at the trial and the court of first instance did not address or make a decision on it. He went on in his submission, on 27 March 1998, at the trial the parties were given the opportunity to prepare written submissions. In the written submissions, he said, this issue was not raised at all. Instead, Mr Magafu stated, objection was raised in respect of verification and not jurisdiction and limitation. To entertain this issue at this stage, Mr Magafu insisted, is a violation of rule 86(1) of the Court's Rules. In that rule, Mr Magafu further elaborated, it is a mandatory requirement that a Memorandum of Appeal should set out the grounds of objection to the decision appealed against, specify the points which are alleged to have been wrongly decided. In this case, he said, the question of jurisdiction and limitation not having been raised, was therefore not decided by the High Court thus does not fall within the scope of rule 86(1). Mr Magafu was quick to point out that the case of *Hon. Wilbroad Slaa v. Arusha Kalwa and others* (1) is distinguishable from this case. In his submission, while in the case of *Dr Slaa* (1) the issue of jurisdiction and limitation was raised and decided at the trial, in this case the issue was neither raised nor decided on. He urged the court to sustain the preliminary objection on this ground with the result that ground one of the memorandum be struck out.

Vigorously opposing the preliminary objection on this ground, Mr Rweyongeza, learned counsel for the appellant, urged that the objection was misconceived. He said, this court has powers which enables it to step into the shoes of the High Court so as to deal even with issues which were not dealt with by the High Court. In support

of this proposition, he cited the case of *Azim Premji v. Aman Walid Kabourou* (2). In the instant case, it was Mr Rweyongeza's contention that the High Court assumed wrong jurisdiction in dealing with the election petition case when the time prescribed under section 115(2) as amended by Act Number 3 of 1997 had expired. He further submitted that the question of jurisdiction is so fundamental that any error pertaining to jurisdiction should be corrected by the Court of Appeal irrespective of whether or not the matter was decided by the High Court. Finally, Mr Rweyongeza urged that court to exercise its revisional jurisdiction to correct the error if this submission this ground is not sustained.

Mr Kabonde, learned Senior State Attorney appeared at the hearing of the appeal as a friend of the court – *amicus curiae*. In his brief submission he more or less made a repeat of what had been submitted by Mr Rweyongeza. He was firmly of the view that if the High Court had as summed wrong jurisdiction in determining the election petition, the court has wide powers to deal with the matter either on appeal or revision. With such wide powers he added, it does not matter whether the point of law involved was raised at the trial court, the Court of Appeal can competently deal with it. For this proposition Mr Kabonde made a vain effort to cite a case which he promised to avail to the court later after consulting his office in Mwanza. Eventually, he furnished the case of *Anwar Z. Mohamed v. Said Selemani Masuka* (3).

The issue for determination in this matter is whether ground one of the Memorandum of Appeal in this appeal can be entertained. In addressing this issue, it is imperative to make it clear from the outset that this court is an appellate court which deals essentially with appeals. The court is therefore a creature of statute in which its jurisdiction and powers are prescribed and the procedure for the processing of appeals is as well provided for under the Rules of the Court. As against this factual situation, the question is whether in this appeal, the issue of jurisdiction and limitation, the subject matter of ground one of the Memorandum of Appeal can be raised in this appeal. As pointed out earlier, Mr Magafu has forcefully argued that it cannot

because it was not addressed and decided by the High Court as the court of first instance. With respect, we think there is merit in Mr Magafu's submission. The filing of a Memorandum of Appeal is one of the essential steps to be taken towards the institution of an appeal. Rule 86(1) of the Court's Rules provides for the format and scope of the Memorandum of Appeal. In part, rule 86(1) provides:

> A Memorandum of Appeal shall set forth concisely and under distinct heads, without argument or narrative, the grounds of objection to the decision appealed against, specifying the points which are alleged to have been wrongly decided, and the nature of the order which it is proposed to ask the court to make (emphasis supplied).

From this provision of rule 86(1) it is clear that in order for a subject matter to qualify for appeal purposes, it should comply with the requirement of the Rule. That is, in the first place, the matter should pertain to the decision of the court against which the appeal is preferred. Secondly, the Memorandum of Appeal should also specify the points which are alleged to have been wrongly decided. In the instant case, we agree with Mr Magafu that the question of jurisdiction and limitation was not raised and as a result, it was not decided by the High Court. On this, if we understood Mr Rweyongeza properly, he also conceded that the issue was not raised at the trial. As he put it himself, the issue somehow featured at the trial when dealing with the amendment to the pleadings. Otherwise, the issue did not arise. In the circumstances, as there was no decision of the High Court made on the issue of jurisdiction and limitation, it follows that there is no foundation upon which points which are alleged to have been wrongly decided could be specified in the Memorandum of Appeal. Consequently, in the absence of a decision by the High Court on this aspect, we are settled in our minds that the issue of jurisdiction is not, in the circumstances, subject to the Memorandum of Appeal in terms of rule 86(1) of the Court's Rules.

If the subject matter in ground one of the Memorandum of Appeal does not fall within the scope and preview of rule 86(1) on what basis can it be dealt with in this appeal. Mr Rweyongeza valiantly

submitted that because the issue of jurisdiction is so fundamental, the court has powers to deal with it. We agree that the question of jurisdiction is fundamental but as already observed, the court carries out its work in terms of laid down rules governing appeals. It is common ground that all appeals including those touching on constitutional issues have to comply with the requirements of the Rules. In the case of *Leonsi Silayo Ngalai v. Hon. Justine Alfred Salakana and Attorney General* (4), this court emphasized the importance of adhering to the rules governing appeals even where a constitutional right is involved. That case involved an election petition in which, among others, the question of jurisdiction and Leave to Appeal was raised. The court held to the effect that in an appeal against the decision of the High Court in an election petition case a party may appeal as a matter of right to the Court of Appeal. However, as regards the need for complying with the rules governing appeals the court *inter alia*, stated:

> For the avoidance of doubts, we must emphasize, that this right of appeal, like all other rights of appeac to this court, has to be exercised in accordance with the procedural rules regulating appeals to this court.

The rationale behind the need for complying with the Court's Rules in regulating appeals is not far to seek. If appeals are not dealt with strictly in accordance with the rules, we apprehend the danger of turning the appeal court into a court of first instance where issues are to be tried subject to the rigour of cross examination by affected parties before a decision is arrived at. Furthermore, non-compliance with the rules would, in our view, tempt some of the parties to raise issues at the appeal stage which for some reason were not raised at the trial. We think for an effective appeal system geared towards a proper system of administering justice tendencies of this nature should be deprecated.

As regards the cases cited to us in support of the proposition that issue touching on jurisdiction can be raised on appeal even if they were not raised at the trial, we intend to briefly make observation on two of them. We agree with Mr Magafu, learned counsel that the

case of *Dr Wilbroad Slaa* (1) is distinguishable from this. In that case, the question of jurisdiction was in issue from the commencement of the trial, it was a subject of decision by the High Court against which the matter came on appeal to this court. Likewise, the case of *Azim Premji v. Aman Walid Kabourou* (2), does not in our view, advance the appellant's case any further. In that case which also involved an election petition, unlike the situation in this case, the contended issues on appeal were, among others, the question of citizenship which was an issue at the trial and was decided upon. However the question of citizenship was not one of the grounds of appeal but the court raised it *suo motu*, invited arguments on it and made a decision. In this case, the situation is different, the issue did not arise at the trial and so, there is no legal basis upon which it can be specified in the Memorandum of Appeal as a point which is alleged to have been wrongly decided by the High Court. And so, these two cases are not, in our opinion, on all fours with the instant case.

Finally, we turn to Mr Rweyongeza's invitation to the court to invoke its powers of revision. On this, and with respect to the great industry on the part of the learned counsel, we hardly need to dwell for long. For the reasons we have endeavoured to give, namely that in a case such as this where the appellant was ably represented by counsel at the trial the issue was not raised at all despite the prompting by the trial judge, we are not inclined to exercise the court's powers of revision.

In the event, we dismiss ground one of the preliminary objection. Ground two of the preliminary objection is allowed with consequential result that ground one of the Memorandum of Appeal is struck out. Costs in the cause.

YASIN RAMADHANI CHANG'A *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Samatta JJ.A.)

CRIMINAL APPEAL No. 46 OF 1996

(From the conviction of the High Court of Tanzania at Mtwara, Moshi, J, dated 7 August 1996 in Economic Crimes No. 2 of 1996)

Evidence – Evaluation of evidence on appeal – Appellate Court's re-evaluation of evidence of trial Court – Principles to be applied.

The appellant was charged with two counts of corrupt transaction contrary to section 3(1) of the Prevention of Corruption Act 1971. After considering the available evidence, the trial Court acquitted him casting doubt on the credibility of two crucial prosecution witnessese. The Republic appealed to the High Court, which convicted him after re-evaluating the evidence. Subsequently the appellant preferred this appeal.

Held: (i) An appellate court can differ from a trial court if its opinion is not supported by the evidence and the right inferences of fact;

(ii) The first appellate court was wrong in faulting the trial magistrate;

(iii) *Obiter:* Demeanour is exclusively for the trial court. However, demeanour is important in a situation where from the totality of the evidence adduced an inference or inferences can be made which would appear to contradict the spoken word.

Appeal allowed

Case referred to

(1) *Isango v. R* [1968] EA 140

Dr 1308

Mr Jadeja, for the Appellant

Mrs Aboud, for the Republic

JUDGMENT

(Dated 16 December 1998)

RAMADHANI, J.A.: The appellant, Yasin Ramadhani Chang'a, was the Regional Manager of the National Insurance Corporation (NIC), Mtwara Branch. He was charged with two counts of corrupt transaction contrary to section 3(1) of the Prevention of Corruption Act 1971. The particulars of the first count were that on the third day of November 1995, he corruptly solicited a bribe of TZS. 1 000 000 from one Abdallah Said (PW3). In the second count, it was alleged that on the same day he corruptly received from PW3 a bribe of TZS. 50 000. It was not in dispute that the shop of PW3's father in Newala, which had been insured, was burgled and some items of property got stolen. Hence a claim was lodged with the NIC. It was alleged by the prosecution that the appellant solicited and eventually received a bribe as an inducement to hasten the settlement of the claim.

The District Court of Mtwara, the trial court, did not believe the prosecution witnesses and so, acquitted the appellant. The Republic appealed to the High Court (Moshi, J.) which convicted him and sentenced him to imprisonment for a term of five years for each count and ordered the sentence to run concurrently. The appellant has preferred this appeal. When we came to hear this appeal, we were told by Mr Jadeja, learned counsel for the appellant, assisted by Mr Kumwembe, learned advocate, that the appellant was granted a Presidential pardon and was discharged from prison. The learned advocates said that this appeal is to clear his name. Of course, the appeal is more than that. It is also to enable him to get his dues from the NIC should he succeed.

The prosecution procured a total of five witnesses. PW1 was SP John Mhilu who was the RCO. He told the court of how he was approached by one Ahmad who complained to him that the appellant was demanding a bribe of TZS. 1 000 000 as an inducement for settling an insurance claim. PW1 issued TZS. 50 000 of police money to Ahmad who was

in the company of a much younger person. PW1 then set a trap and, together with SP Mshashu Method (PW5) and Assistant Inspector Alphaxad Lugole (PW2), caught the appellant red handed. Both PWs 2 and 5 told the court that while in PW1's office, they witnessed some police money being handed over to PWs 3 and 4, that they followed them to the NIC and that they went to arrest the appellant after PW4 came out of the office of the appellant and gave the agreed sign.

We may point out here that the defence did not dispute the fact that the appellant was caught with the police money shortly after one of the two young persons left his office. So, the evidence of these three witnesses need not detain uses. It was agreed at the trial that the issue was "Did the accused solicit the TZS. 1 000 000 from Abdallah to facilitate payment of compensation to Abdallah's burgled shop which had been insured?" We have to see what the two young persons, the crucial witnesses, said.

Abdallah Said (PW3), the son of the claimant of the insurance compensation, came to Mtwara from Newala to check on the progress of his father's claim. At the Newala bus station, he met one Yesaya Ali Kinyau (PW4), a form one pupil at Newala Secondary School. PW4 was going to Lindi but agreed to accompany PW3 to the NIC offices at Mtwara. It was further agreed that PW3 would then assist PW4 to board a bus to go to Lindi. At the NIC, PWs 3 and 4 went to the appellant who informed PW3 that all preparations for the payment of the claim were ready but he cautioned PW3 that because of the bureaucracy at the NIC Headquarters Dar es Salaam, it would hasten payment if PW3 gave some TZS. 1 000 000. Immediately they left the office so that PW3 could go to look for the money. As they were going, the appellant told them that he was leaving that very day for Dar es Salaam and so, they should make haste.

PWs3 and 4 went straight to report to the police where they saw PW1 who gave them the police money which they took with them to the appellant. As they got into his office, PW3 said, the appellant

remarked "Abdallah you have not prepared for what I told you. So you can give me anything you have". The version of PW4 was almost *verbatim*: "Abdallah as you have not prepared yourself for the amount told you, give me anything". PW3 then gave the appellant the police money and immediately thereafter PW4 got out to give the agreed signal to the three police officers; PWs 1, 2 and 5.

The appellant in his evidence on oath said that as the Branch Manager he was authorized to pay any claim not exceeding TZS. 300 000 while any claim not exceeding TZS. 2 000 000 had to go through a claim's committee of the branch. Claims exceeding TZS. 2 000 000 were sent to the NIC Headquarters in Dar es Salaam together with some documents for consideration and payment.

The appellant said further that he was aware of the claim of the father of PW3 which was attended to by one Simon Peter Rweyemamu (DW1) who was then the head of the Non-Life Insurance at Mtwara. On the fateful day, the appellant was going to Dar es Salaam and was approached by PW3 in the company of PW4, who was introduced to him as a younger brother of PW3. The appellant was requested to go with PW4 to Dar es Salaam. The appellant agreed. PW3 left to fetch an air ticket for the trip and he was back within minutes and deposited on the appellant's table an envelope. In cross examination, the appellant said that he was told by PW3 that the envelope contained some money for the use of his younger brother and also saw PW3 taking some money from the envelope and giving it to PW4 so that he could buy himself a drink outside the appellant's office. Immediately after PW4 left to go and buy himself a drink, the three police officers entered his office. The appellant had said the same in his caution statement (Exhibit P. "D").

DW1 said that on 7 September 1995 he wrote to PW3 a letter (Exhibit D1) urging him to furnish the necessary documents for the submission of the claim to the headquarters. These documents were supplied except for the receipts for the purchase of the various goods which were stolen from the shop. These documents were sent to Dar es Salaam vide a letter of 14 September 1995 (Exhibit PC4).

On the fateful day, DW1 said, PW3 went to his office but then left to go to the office of the appellant.

The learned magistrate acquitted the appellant of both charges. As for the first count of soliciting a bribe of one million shillings, the learned trial magistrate had three reasons for discharging the appellant. First, he did not believe the two crucial witnesses, that is, PWs 3 and 4. He found that there was no relationship established between the two witnesses and he felt it strange that PW4 postponed his trip to Lindi so as to escort PW2, whom he had just met in the bus so, he felt that their company and their evidence must have been concocted. Secondly, the learned magistrate did not agree with the prosecution's submission that there was no ill feeling between the appellant and PW3. The learned magistrate had this to say: "Abdallah [PW3] might have not had personal ill feeling with the accused but he certainly was not happy with the affair of visiting the Bima eleven times travelling all the way from Newala."

Lastly, the learned magistrate was not satisfied that it was established that the appellant solicited any bribe. He observed that it was not shown that in his ten previous visits to the NIC, PW3 was ever asked to give a bribe. The issue of a bribe surfaced only on the eleventh visit. Not only that, but the learned magistrate went on to observe that PW3 said that when he entered the appellant's office he was told by the appellant:

> Kwa kuwa madai ya baba yako yamekamilika taratibu zote ... nataka shilling milioni moja.

The learned magistrate asked himself whether or not the statement had any truth. He came to the conclusion that the statement was false. The learned magistrate argued that the evidence tendered by the prosecution was that a total of five documents were required to be supplied by PW3 to the NIC Mtwara for transmission to the NIC Headquarters for preparation of compensation. He observed that the prosecution had not proved that by 3 November 1995 three of the five required documents had been produced. Therefore the learned

magistrate found that the statement could not have been true and he wondered who was the liar as between the appellant, the alleged author of the words, and PW3, who testified that the words were uttered.

As for the second count of corruptly receiving TZS. 50 000, the learned magistrate was of the opinion that the prosecution failed to prove that the appellant received the money corruptly. The learned magistrate relied on *Isango v. R* (1) which sets out that for a money receipt to be corrupt, it must be proved that it was given as an inducement in relation to the duties of the recipient. He was of the opinion that was not proved with respect to the appellant.

As already said, the learned judge on appeal reversed the decision of the trial magistrate and remarked that. "In acquitting the respondent, the trial magistrate, I must say, impeached the credibility of PW3 and PW4 for reasons which were difficult to discern." The learned judge had a five-prong attack on the reasoning of the learned magistrate.

First, he said that the Lower Court did not find PWs 3 and 4 to be credible because he thought it strange that PW4 delayed his trip to Lindi simply to escort PW3. The learned judge found that not to be unusual as between friends. He felt further that it was not material to know the exact relationship between PW3 and PW4. To him what was crucial was what was proved to be their role in the matter. Second, the learned judge faulted the learned magistrate when he doubted the credibility of the two witnesses simply because it was not shown that there had been demands for a bribe during the previous ten trips of PW3 to the NIC. The learned judge said that only one act of soliciting was enough in law.

Third, contrary to what the learned magistrate held, the learned judge observed that it was evident that all the necessary documents had been submitted. Thus the learned judge found the learned trial magistrate to have erred to doubt that the appellant had uttered the words that everything was ready and that what was being awaited was making payment only. Fourth, the learned judge criticized the learned magistrate for finding that PW3 had ill feelings towards the

appellant. On the contrary, the learned judge pointed out that there was cordial relations between the two as was shown by the appellant giving his business card to PW3. The learned judge held further that PW3 ought to have known that plotting against the appellant would have a negative effect of delaying payment. Lastly, the learned judge remarked that the learned trial magistrate should not have taken into account the absence of a bargain between PW3 and the appellant. To the learned Judge that was immaterial for the conviction.

The learned judge was of the opinion that on a proper direction the learned trial magistrate ought to have found PWs 3 and 4 credible. The learned judge started by pointing out that the two witnesses were not accomplices and so, they did not require corroboration. As for the first count of soliciting, the learned judge said:

> Having with great presence of mind examined the totality of the evidence, I see absolutely no possibility of PW3 and PW4 bothering the police, and getting them to take the steps they took unless, as I find, PW3 was solicited *(sic)*.

As for the second count, the learned judge observed that the only issue was whether the receipt was corrupt or not. He held that certain snippets of information gleaned from the evidence supported the finding that the receipt was corrupt. He mentioned these pieces of evidence as: One, the fact that PW4 was not going to Dar es Salaam but to Lindi. Two, the reason given by PW3 for being given the business card of the appellant, that is, to facilitate his following up of the matter. Three, the way the appellant was caught by PWs 2 and 5 holding the money when the two stormed into his office after the bribe was given to him.

At the hearing of this appeal, Mr Jadeja started by saying that the appellant was framed by the two witnesses. Mr Jadeja pointed out that the trial magistrate heard and saw the witnesses giving evidence and so, he was better placed to determine their credibility than the learned judge who merely read the scripts. The learned advocate remarked that a trial magistrate does not write down all the words spoken at the hearing of a case. However, the learned advocate pointed

out, all things which transpire in the court do make impressions on the magistrate who will rely on all of them in making his decision.

Then the learned advocate pointed out that the learned judge did not state the principles on which an appellate court would differ from the finding of not guilty by a trial court. He said that an appellate court might have its own views on evidence but that is not enough to upset the findings of the trial court. Mr Jadeja submitted that in an appeal against an acquittal the position is slightly different in that the presumption of innocence is reinforced by the acquittal itself.

Mr Jadeja argued that the trial magistrate was justified in having doubts as to why PW4 abandoned his trip to Lindi so as to escort PW3. He also pointed out that the learned Magistrate had reasons to be doubtful because it was strange for a person to ask for a bribe in the presence of a total stranger, that is, PW4.

On behalf of the Republic/respondent was Mrs Aboud, learned state attorney. She said that the appellate court followed the principles of reversing the opinion of the trial court as it considered the evidence evaluated it and drew its own conclusions.

We think that it will help to dispose of this appeal if we catalogue the facts proved and also those pieces of missing information. Then we can be in a better position to determine as between the trial court and the first appellate court, which made the correct inferences.

The shop of PW3's father was insured and was burgled on 20 August 1995. The theft was reported to the NIC on 22 August 1995, that is two days later. The police confirmed the occurrence of the theft by their letter of 6 September 1995 (Exhibit PC5) to the NIC. On the following day, that is, on 7 September 1995, DW.1 wrote a letter (Exhibit D1) to PW3's father asking for certain documents. On 14 September 1995, DW1 wrote to the NIC Headquarters, Dar es Salaam, copy to PW3's father, transferring the claim and also transmitting the documents to the headquarters which was the competent authority to deal with claims of over two million shillings. This was just 24 days after the theft. When the alleged bribe was given, that,

on 3 November 1995, only ten weeks had elapsed since the theft had occurred and about seven weeks since the claim had been transmitted to the headquarters.

It was not shown whether or not PW3 was accompanied by any person on the ten previous occasions when he went to the NIC. The appellant was not controverted when he said that he had seen PW3 previously but that he talked to him for the first time on that fateful day. The claim had all the time been dealt with by DW1, who was in charge of Non Life Insurance. It was DW1 who wrote the letter to PW3's father and that to the NIC headquarters. PW4 confirmed that when he said "we came into the accused's office who introduced himself to us". PW3, on the other hand, said "I was told by the manager to come to inquire of payment". PW3 did not elaborate how the manager told him, face to face or through an intermediary. However, it is undisputed fact that the appellant and PW3 met twice on that day.

The relationship of PW3 and PW4 is not clear. PW1 and the appellant said that PW4 was introduced to them by PW3 as his younger brother PW3 and PW4 themselves said that they were friends. Their story was that they met in a bus coming from Newala on the fateful day and that at Mtwara PW4 agreed to escort PW3 to the NIC instead of proceeding straight to Lindi, his destination. They went to the appellant who told PW3 that the headquarters would delay payment and that one million shillings would be needed to expedite matters. PWs 3 and 4 left to go to look for the money and they went straight to the police and got the trap money from PW1. They took the money to the appellant. Upon arrival, the appellant told PW3 to give him whatever amount he might have. PW3 gave the trap money to the appellant and immediately PW4 went out to make the agreed signal. PWs 1, 2 and 5 stormed the office and arrested the appellant.

PWs 3 and 4 said that they came to know from the appellant that he was leaving on that day for Dar es Salaam when they were leaving his office to go to look for the bribe money. The appellant, however, said that PW3 approached him with a request to take PW4 with him

to Dar es Salaam because PW3 had heard that the appellant was going there on that day.

From those proved facts and the missing links, let us see what inference could be drawn. It is palpable evidence that the claim was processed with admirable speed. One wonders whether it was necessary for PW3 to make eleven trips to the NIC, that is, a trip a week. The wonder is more amplified by the fact that DW1 had already transferred the claim to Dar es Salaam and that NIC Branch in Mtwara did not have anything more to do. Of course, it has been said that the appellant wanted a bribe so as to expedite matters at the headquarters. But we shall deal with that shortly.

One wonders why on this eleventh trip PW3 needed an escort. Assuming that PW3 and PW4 were friends, one cannot help asking what sort of friendship that one was, between a thirty years old PW3 and PW4 who was a Form I pupil aged 15 years. Anyway, be it as it may their meeting on that day was purely accidental.

One is forced to ask why did PW3 deem it necessary to have an audience with the appellant? Had he and PW4 known in advance that the appellant was going to Dar es Salaam, then it would have been easy to see that they had specifically gone to lobby him to try to expedite matters at the headquarters. But they said that they only came to know of the trip as they were leaving the appellant's office to go to look for the bribe money. Of course the story of the appellant is diametrically opposite. PWs3 and 4 approached him precisely because they knew that he was going to Dar es Salaam. This explains why PW3 needed to see the appellant, for the first time and that belatedly, on the eleventh trip, when the matter was no longer at Mtwara but at the Headquarters.

The next question is what was the purpose of the visit? PW3 claimed that he had gone to inquire about the progress of the claim. But why had he gone to the appellant and not to DW1 who had been handling the matter? The appellant, on the other hand, said that PW3 approached him with a request of entrusting into his care a youth of

15 years who was also going to Dar es Salaam. That sounds more plausible and explains why PW3 on this eleventh trip had to be escorted to the NIC and why he by-passed DW1 and went to see the appellant.

If we take the explanation of the visit as given by PW3, one wonders why the appellant was so bold as to demand a bribe from PW3 whom he was dealing with for the first time and in the company of a third party, even though introduced as a younger brother The bewilderment is multiplied when we are told of what happened when PWs 3 and 4 went back to the appellant with the police money. Immediately PWs3 and 4 entered the office, the appellant blurted that he could be given any amount of money that was available, so blurting without knowing whether or not PW3 had gone back with any money at all.

Now, after making the above inferences, we can appreciate the doubts entertained by the learned trial magistrate in believing PWs 3 and 4. If it is doubtful that the appellant solicited a bribe of any amount from PW3 then one wonders why he received the trap money except, as he said, in trust for the use of the teenage PW4 who was to be in his care for the trip to Dar es Salaam. With due respect we differ from the opinion of the learned first appellate judge that the learned trial magistrate "impeached the credibility of PW3 and PW4 for reasons which were difficult to discern".

Before we come to the end, we have to say that what was before the High Court was a first appeal, so it was by way of a rehearing and the learned judge was entitled to re-appraise the evidence and draw inferences of fact. It is true, as Mr Jadeja pointed out, that the appellate court should tread with a lot of care since it is dealing with scripts while the trial court dealt with live persons revealing their demeanours. Despite of that, the appellate court can differ from the trial court if its opinion is not supported by the evidence and the right inferences.

It is true that demeanour is exclusively for the trial court. However, demeanour is important in a situation where from the totality of the evidence adduced, an inference or inferences can be made which

would appear to contradict the spoken word. In other words, when the evidence given would appear hard to believe, then the trial court can make an observation of the demeanour of the witness or witnesses and hold that they must have, nevertheless, told the truth.

The appeal is therefore allowed. The convictions by the High Court are quashed and the sentences set aside. Since the appellant is already out on a Presidential pardon, we make no order with respect to his release.